Execution Version

ENGINEERING, PROCUREMENT AND CONSTRUCTION AGREEMENT

(Dixon Project)

dated as of April 16, 2026

by and between

Dixon Solar, LLC

and

SunEnergy1, LLC

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ENGINEERING, PROCUREMENT AND CONSTRUCTION AGREEMENT

This ENGINEERING, PROCUREMENT AND CONSTRUCTION AGREEMENT (this "Agreement"), dated as of April 16, 2026 (the "Execution Date"), is by and between Dixon Solar, LLC, a Delaware limited liability company ("Owner"), and SunEnergy1, LLC, a North Carolina limited liability company ("Contractor"). (Owner and Contractor are sometimes referred to herein each as a "Party" and collectively as the "Parties").

RECITALS

WHEREAS, Owner has entered into the following agreements relating to its proposed development, ownership and operation of a proposed 210 ("MW") (dc) solar photovoltaic ("PV") electric generating facility (the "System") to be located at a site in Jackson County, Ohio, as more specifically identified in Exhibit 1 attached hereto (the "Site"): (1) one ground lease with the site owner (collectively, the "Ground Lease") and (2) a Generation Interconnection Agreement with respect to the System with PJM and the Transmission Owner (the "Generation Interconnection Agreement");

WHEREAS, (a) Owner has, in tandem with entering into the Generation Interconnection Agreement, pursuant to the GIA, elected to self-build certain interconnection assets (the "Interconnection Facilities") that will upon completion thereof be owned by the Transmission Owner and will be the site of the Point of Interconnection, and (b) Owner and Contractor have entered into a separate agreement regarding Contractor's role in the engineering, procurement and construction of the Interconnection Facilities and certain Network Upgrades (as that term is defined in the GIA) (the "BUS EPC Agreement");

WHEREAS, Contractor obtains permits for, develops, engineers, designs, procures, constructs and installs ground-mounted solar PV electric generating systems and as such is able to permit, develop, engineer, design, construct and install the System;

WHEREAS, Owner desires to engage Contractor to obtain permits for, develop, engineer, design, supply, construct and install the System at the Site, and interconnect the System to the Grid in accordance with the Generation Interconnection Agreement; and

WHEREAS, subject to the terms and conditions of this Agreement, Contractor desires to provide to Owner such permitting, development, engineering, design, supply and construction, installation and interconnection services.

NOW THEREFORE, in consideration of the mutual promises set forth below, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

AGREEMENT

1. Definitions.

1.1 Certain Definitions. As used in this Agreement, the following terms have the following meanings:

"Abandons" means that Contractor has, for any reason other than a Change Event, unsafe conditions or Contractor's exercise of its rights under this Agreement (including any right of Contractor to suspend performance of the Work provided hereunder), significantly reduced the number of personnel dedicated to performing the Work at the Site, with no apparent indication of any good faith intention to return those personnel to perform Work at the Site, such that there is no longer a reasonable possibility that Contractor can maintain progress of the Work sufficient to achieve Substantial Completion within sixty (60) days after the Guaranteed Substantial Completion Date.

"Additional Modules for Breakage" is defined in Section 5.17.4.

"Adverse Third Party Rights" means (A) any rights as to any easement or right of way, held by the Pipeline Rights Holder, and (B) or any mineral, oil, gas or other subsurface rights across, under, or through the Site held by each of the following interest holders, or their successors in interest claiming under such rights, as applicable, (i) Waterloo Coal; (ii) Jay Hall Trust dated June 16, 1997; (iii) Buckeye Furnace Mining Company LLC; and (iv) J.H. Browne, Trustee.

"Affected System Delay" means any delay in the performance of the Work that demonstrably results from Contractor being unable to perform Work due to Network Upgrades on an Affected System (as such terms are defined in the Generation Interconnection Agreement).

"Affiliate" means, as applied to any Person, any other Person directly or indirectly controlling, controlled by or under common control with, such Person. For the purposes of this definition, "control" (including with correlative meanings, the terms "controlling," "controlled by" and "under common control with"), as applied to any Person, means the possession, directly or indirectly through one or more intermediaries, of the power to either (a) elect a majority of the directors (or Persons with equivalent management power) of such Person or (b) direct or cause the direction of the management or policies of such Person, whether through the ownership of securities or partnership, membership or other ownership interests, by contract, by operation of law or otherwise.

"Agreement" is defined in the preamble.

"Antiquity" means any man-made object, fossil, human remains, or evidence of human burials, which has a reasonable likelihood of being determined by any Governmental Authority to be of historical value or to require preservation pursuant to any Applicable Law relating to antiquities protection.

"Applicable Law" means, for any Person, any constitution, code, statute, law, regulation, ordinance, rule, judgment, order, decree, permit, concession, grant, franchise, license, agreement, directive, guideline, treaty, policy or requirement of, or other governmental restriction

or any similar form of decision of or determination by, or any interpretation or administration of any of the foregoing, by any Governmental Authority to which the Person or any of its business is subject.

"Applicable Permits" means any license, authorization, certification, filing, recording, permit or approval, including any environmental, construction or operating permit, that is required by Applicable Law to be obtained by Contractor in connection with the performance of the Work, including the operation of the System prior to Substantial Completion by Contractor to the extent contemplated by this Agreement, and those licenses, authorizations, certifications, filings, recordings, permits and other approvals listed in Schedule 5.14 and not identified therein as the responsibility of Owner.

"Assigned Warranties" is defined in Section 4.2(d).

"Base Supply" is defined in Section 5.17.4.

"BUS EPC Agreement" is defined in the recitals.

"BUS EPC Change Event" has the meaning set forth in the BUS EPC Agreement.

"BUS EPC Termination for Convenience" means that the Project Owner (as defined in the BUS EPC Agreement) has terminated the BUS EPC Agreement without cause pursuant to Section 13.7 thereof.

"Business Day" means a day other than Saturday, Sunday or any day on which banks located in New York, New York are authorized or obligated to close.

"Capacity Liquidated Damages" means, for every kW_{ac} by which the System fails to achieve the Performance Guarantee below the Deadband, an amount of $1,300 per kW_{ac}, with such amount pro-rated for partial kW_{ac}, up to the Capacity Liquidated Damages Cap.

"Capacity Liquidated Damages Cap" means an amount equal to ten percent (10%) of the Contract Price.

"CERLCA" is defined in the definition of "Environmental Law".

"Certificate of Final Completion" means a certificate in the form thereof attached hereto as Exhibit 7.

"Certificate of Mechanical Completion" means a certificate in the form thereof attached hereto as Exhibit 4.

"Certificate of Substantial Completion" means a certificate in the form thereof attached hereto as Exhibit 5.

"Change Event" is defined in Section 14.4(a).

"Change in Applicable Law" means (a) any binding change after the Execution Date in the judicial or administrative interpretation of, or adoption after the Execution Date of, any Applicable Laws (excluding any Applicable Laws relating to net income taxes and excluding any Applicable Laws relating to the organization, existence, good standing, qualification, or licensing of Contractor or its Affiliates or Subcontractors in any jurisdiction), that is inconsistent or at variance with any Applicable Laws in effect on the Execution Date, (b) the imposition after the Execution Date of any new condition or new requirement (except for any conditions or requirements that result from the acts or omissions of Contractor or any Subcontractor), not required as of the Execution Date, affecting the issuance, renewal or extension of any Applicable Permits (excluding any Applicable Permits relating to the organization, existence, good standing, qualification, or licensing of Contractor or its Subcontractors in any jurisdiction), including the requirement by any Governmental Authority to obtain and maintain any Applicable Permit that was not required by such Governmental Authority as of the Execution Date or (c) any other event that is expressly described as constituting a Change in Applicable Law in this Agreement. Notwithstanding the foregoing, the following shall not be a Change in Applicable Law: (i) the enactment of or change in any federal, state, or local laws regarding income taxes for which Contractor is responsible under this Agreement or (ii) the imposition of New U.S. Tariffs (which is separately addressed in Section 18.3).

"Change Order" means a written document in the form of Schedule 1D executed by the Parties after the Execution Date authorizing a Scope Change or otherwise in connection with a Change Event, and, to the extent applicable, setting forth any revisions to this Agreement necessary to effect the Scope Change or address the Change Event, including any adjustment to the Contract Price or the Project Schedule (including the Guaranteed Substantial Completion Date).

"Code" means the Internal Revenue Code of 1986, as amended.

"Contract Documents" means this Agreement, the Exhibits and Schedules hereto, and the Documentation.

"Contract Price" is defined in Section 18.1.

"Contractor" is defined in the preamble.

"Contractor Guarantor" means SE1 Holdco, LLC.

"Contractor Guaranty" is defined in Section 5.23.

"Contractor Indemnitee" is defined in Section 25.5.

"Contractor Siting Board Obligations" is defined in Section 5.25.2.

"Contractor's Representative" means the individual designated by Contractor in accordance with Section 3.2.

"Covered Period" is defined in Section 21.1.12.

"Covered Subcontractor" means any Subcontractor or lower-tier subcontractor whose Subcontract amount equals or exceeds Two Hundred Fifty Thousand Dollars ($250,000), and from whom lien waivers are required under this Agreement.

"Critical Path" means, as applicable, the sequence of Work activities in the Project Schedule or the Working Schedule that is: (a) the path with the lowest Float Value; (b) the path upon which any Work activity, if delayed, would reasonably be expected to delay the achievement of Substantial Completion by the Guaranteed Substantial Completion Date; and (c) the longest path from the current start point to the Guaranteed Substantial Completion Date. "Float Value" means amount of time that a particular task or activity can be delayed without causing a delay to the Guaranteed Substantial Completion Date. Items of Work that may be considered on the "Critical Path" shall include items of Work that were not critical path items at the commencement of the Work but that become critical path items due to changes to the "Critical Path" during the execution of the Work (including in connection with any Change Event or delay or acceleration in the Work).

"DAS/SCADA" means the data acquisition system or supervisory control and data acquisition system for the System, in accordance with the specifications set out in Schedule 28, as applicable.

"Deadband" is defined in Section 9.5.

"Default Rate" means an interest rate per annum equal to the lesser of: (a) the rate published by the *Wall Street Journal* as the "prime rate" on the date on which such interest begins to accrue plus two percent (2%) and (b) the maximum rate permitted under Applicable Law.

"Delay Liquidated Damages" is defined in Section 12.2.2.

"Delay Liquidated Damages Cap" means an amount equal to fifteen percent (15%) of the Contract Price.

"Designated Roads" is defined in Section 5.26.

"Direct Costs" means the actual additional costs that are incurred by Contractor as a result of the Change Event giving rise to the Change Order for the following items: (a) compensation for labor utilized and in the direct employ of Contractor, at the rates as set forth in Schedule 1F (provided that for labor performed at locations other than the Site, such costs shall only include that portion of time reasonably required for the Work); (b) cost of materials and equipment incorporated into the System (including costs associated with shipping, transportation, delivery or storage); (c) payments properly made by Contractor to Subcontractors for any labor, materials, equipment, professional services or otherwise in connection with the execution of the Work; (d) rental charges of machinery and equipment (but excluding hand tools) used in the performance of the Work; (e) additional permit or inspection fees; (f) costs for temporary facilities, sundries and utilities paid for by Contractor; (g) compensation of engineers or other design professionals employed directly by Contractor; (h) taxes, assessments, fees, penalties, tariffs, duties or other costs imposed by any Governmental Authority, except for any fees, fines, penalties or damages imposed as a result of any act or omission of Contractor or any of its Subcontractors; (i) additional premiums for bonds; and (j) reasonable costs of mobilization or demobilization.

Notwithstanding the foregoing, "Direct Costs" shall not include (i) salaries or other compensation (including costs of contributions, assessments, fringe benefits or taxes based on salaries or compensation) of Contractor's personnel at Contractor's principal office and branch offices (except in connection with any such personnel's performance of the Work or services in connection therewith as provided in the previous sentence); (ii) expenses of Contractor's principal and branch offices (except in connection with the such personnel's performance of the Work or services in connection therewith as provided in the previous sentence); (iii) Contractor's profit, overhead or general expenses of any kind; (iv) any replacement, repair or other costs or liabilities arising from any loss of or damage to any equipment, tools or other property owned or used by Contractor or its Subcontractors (except to the extent that any such loss or damage is caused by Owner or any Owner Indemnitee); (v) costs to correct or reperform any components of such Work as a result of the negligence or breach of this Agreement by Contractor or its Subcontractors; (vi) any fines or penalties assessed against Contractor or its Subcontractors in connection with such Work that were assessed due to the fault of Contractor or its Subcontractors; or (vii) any costs or expenses other than those specifically set forth above as "Direct Costs."

"Disclosing Party" is defined in Article 32.

"Dispute" is defined in Section 30.1.

"Documentation" means all materials in printed or electronic format that are or are to be delivered hereunder or otherwise agreed by the Parties to be delivered by Contractor to Owner, including all construction plans, specifications, schedules, schematics, operations and maintenance manuals, equipment and software manuals, non-proprietary electrical system loss calculations, non- proprietary wind load engineering calculations, drawings (including "as built" drawings of buildings, structures, plant operating equipment and ancillary plant equipment), reports and test data and results. A list of all material Documentation, including the date by which each such item of Documentation is to be delivered by Contractor, is set forth on Schedule 1C.

"Dollar" and "$" means the lawful currency of the United States of America.

"E&S Permits" means those certain erosion and sediment control, grading, fill or similar Applicable Permits, or other similar types of Applicable Permits or approvals, that do not impact the operation of the System but are required by a Governmental Authority.

"Energization" means that the System or portion thereof has been energized and has been synchronized with, and is capable of transmitting electric energy to, the Grid and is ready to be placed into service, including in accordance with the Generation Interconnection Agreement.

"Early Works PO" is defined in Section 7.1.1.

"Energization Notice to Proceed" is defined in Section 8.5.

"Environmental Law" means any Applicable Law relating to pollution or protection of the environment and human health, including the Hazardous Materials Transportation Act, 49 U.S.C. §1471 et seq.; the Toxics Substances Control Act, 15 U.S.C. §§2601 through 2629; the Clean Air Act, 42 U.S.C. §7401, et seq., the Resource Conservation and Recovery Act, 42 U.S.C. §6901 et seq., the Federal Water Pollution Control Act, 33 U.S.C. §1251 et seq., the Safe Drinking

Water Act, 42 U.S.C. §300f, et seq., the Comprehensive Environmental Response, Compensation, and Liability Act, 42 U.S.C. §9601 et seq. ("CERCLA"), the Oil Pollution Act, 33 U.S.C. § 2701, et seq., and the Emergency Planning and Community Right-to- Know Act, 42 U.S.C. § 11001, et seq.

"Equipment" means (a) any and all materials, supplies, apparatus, machinery, equipment, parts, tools, components, instruments, appliances, spare parts and appurtenances thereto that are required for prudent design, construction, interconnection or operation of the System in accordance with Industry Standards and (b) any and all materials, supplies, apparatus, machinery, equipment, parts, tools, components, instruments, appliances, spare parts and appurtenances thereto described in, required by, reasonably inferable from or incidental to the Work or the Contract Documents. As used herein, "Equipment" expressly excludes (i) the Owner Equipment and (ii) any equipment, tools or supplies of Contractor or its Subcontractors that is not intended to be incorporated into or installed as a permanent part of the System.

"Excused Site Condition" means any subsurface condition at the Site (including subsurface Pre-Existing Hazardous Materials) that exists solely because of the Reclaimed Mine conditions which delays Contractor's performance of the Work or increase Contractor's cost to complete the Work and that, in any case (a) was not a naturally occurring condition, (b) was not a subsurface Antiquity unrelated to the Reclaimed Mine condition, (c) was not a gas or oil well, (d) was not and could not have been reasonably discovered through Contractor's inspection of the Site in accordance with Section 5.24, (e) was unknown by Contractor as of the Execution Date and (f) was not identified in the Site Information and would not reasonably have been discernable by a prudent contractor in its review of the Site Information in a manner that accords with Industry Standards.

"Execution Date" is defined in the recitals.

"Expected Facility Performance" is defined in Schedule 1B.

"Final Completion" means that the System shall have achieved all of the conditions set forth in Section 11.1.

"Final Completion Date" is defined in Section 11.3.

"Financing Parties" means the lenders, security holders, investors, institutions, equity providers and other Persons currently or in the future providing debt or equity financing (including tax equity) or refinancing to or on behalf of Owner or any of its Affiliates including for the development, construction, ownership, operation or maintenance of the System or any portion thereof, or any trustee or agent acting on behalf of any of the foregoing.

"FM Costs Threshold" is defined in Section 14.4(f).

"Force Majeure Event" means, when used in connection with the performance of a Party's obligations under this Agreement, any act or event (to the extent not caused by the fault or negligence of such Party or any of its Subcontractors or any Affiliates of such Party or any of its or their agents or employees) arising after the Execution Date that is unforeseeable (or being foreseeable, is unavoidable through the exercise of reasonable efforts) and is outside the reasonable

control of the Party that invokes it, and that renders said Party unable to comply totally or partially with its obligations under this Agreement (other than payment obligations). Subject to compliance with the foregoing, examples of Force Majeure Events include:

(a) war, riot, acts of a public enemy or other civil disturbance;

(b) acts of God, including storms (except as provided in subsection (vii) below), floods, lightning, earthquakes, hailstorms, ice storms, tornados, tsunami, typhoons, tropical depressions, hurricanes, landslides, volcanic eruptions, range or forest fires, and objects striking the earth from space (such as meteorites), sabotage or destruction by a third party (other than any Person employed or retained by or on behalf of the Party) of facilities and equipment relating to the performance by the affected Party of its obligations under this Agreement;

(c) except as provided in subsection (i) below, strikes, walkouts, lockouts or similar industrial or labor actions or disputes, pandemics or epidemics that adversely affect the ability of a Party to obtain or deploy labor with the required skillsets;

(d) except as provided in subsection (viii) below, (i) the failure of a Governmental Authority to renew an Applicable Permit or the suspension of the Work as mandated by a Governmental Authority, or (ii) delays beyond ordinary and customary processing times in the issuance or approval of any Applicable Permit by a Governmental Authority or delays beyond ordinary and customary inspection times in the inspection of the (i) the Work by or on behalf of applicable Governmental Authorities, or (ii) imported Equipment by applicable customs agents; *provided* that such action or inaction of the Governmental Authority is not the result of the claiming Party's non-compliance with Applicable Laws; and

(e) disruptions in supply chains for Equipment caused by a separate Force Majeure Event, but only so long as the Party claiming the Force Majeure Event has undertaken the procurement of such Equipment in accordance with Industry Standards.

Notwithstanding anything in the foregoing to the contrary, in no event shall any of the following constitute a "Force Majeure Event": (i) strikes and other labor disputes (including collective bargaining disputes and lockouts) of the labor force under the control of the Party claiming the Force Majeure Event or its Affiliates or with respect to the Work by a Subcontractor on the Site unless the strike or other labor dispute is part of a more widespread or general strike or labor dispute extending beyond the claiming Party, its Affiliates or such Subcontractor; (ii) any labor or manpower shortages (unless the same results from pandemic, epidemic or any independent, identifiable Force Majeure Event); (iii) unavailability, late delivery, failure, breakage or malfunction of equipment or materials (unless the same results from an independent, identifiable Force Majeure Event); (iv) general fluctuations in the market prices for equipment or materials; (v) economic hardship (including lack of money) of the claiming Party or its Affiliates or their respective subcontractors or suppliers; (vi) delays in transportation (excluding delays in clearing customs as described above, delays in transportation resulting from accidents not caused by the claiming Party or its Affiliates or their respective subcontractors or suppliers, closure of roads or other transportation route by Governmental Authorities or delays resulting from an independent,

identifiable Force Majeure Event); (vii) any weather condition at the Site that is within the applicable ten (10) year average values for such condition for the area where the Site is located, according to the records of the nearest weather station of the National Oceanic and Atmospheric Administration to the Site; (viii) any failure by Contractor to obtain or maintain any Applicable Permit it is required to obtain or maintain hereunder (but without limiting Contractor's rights under this Agreement in connection with any Change in Applicable Law); (ix) a Change in Applicable Law, (x) a Transmission Owner Delay, or (ix) the imposition after the Execution Date of new or additional tariffs, duties, or other similar taxes or charges levied by the United States of America (or its agencies) on the importation of goods.

"Generation Interconnection Agreement" or "GIA" is defined in the recitals.

"Governmental Authority" means any domestic or foreign governmental, tribal or regulatory authority, agency, court, commission, arbitration tribunal or other governmental, tribal or regulatory entity.

"Grid" means the electric grid facilities controlled or operated by PJM within the PJM Region.

"Ground Lease" is defined in the recitals.

"Guaranteed Substantial Completion Date" means June 30, 2027.

"Hazardous Material" means any substance, pollutant, effluent, residue, or contaminant that is defined or listed in, or otherwise classified pursuant to, any Environmental Law, including materials listed in 49 C.F.R. § 172.101 and materials defined as hazardous substances pursuant to Section 101(14) of CERCLA, as a "hazardous substance," "extremely hazardous substance," "hazardous material," "hazardous waste," "infectious waste," "medical waste," "toxic substance," "toxic pollutant," or any other formulation intended to classify substances by reason of deleterious properties such as ignitability, corrosivity, reactivity, carcinogenicity, toxicity, or reproductive toxicity; and asbestos, petroleum (including all petroleum-related products, by-products, and wastes), polychlorinated biphenyls, urea formaldehyde, radon gas, radioactive materials (including any source, special nuclear, or by-product material), explosives, chlorofluorocarbons, and lead or lead-based materials.

"HSSE Requirements" is defined in Section 5.5.

"Indemnified Party" is defined in Section 25.8.

"Indemnifying Party" is defined in Section 25.8.

"Independent Engineer" is defined in Section 3.4.

"Industry Standards" means those practices, methods and standards of care, safety, performance and diligence normally practiced or approved by a significant portion of solar engineering, construction and installation firms experienced in the engineering, procurement and construction of solar PV power plants having the general characteristics of the System in performing services of a similar nature in the United States and are consistent with good

engineering, design, procurement and construction practices, Applicable Permits, permits relevant to the System or the Site that are held in the name of the Owner (to the extent copies of such permits have been provided to Contractor in writing), Applicable Laws and other standards established for such Work. Industry Standards are not intended to be limited to optimum standards, to the exclusion of others, but rather are intended to include a range of acceptable standards generally accepted in the utility-scale ground-mounted solar PV power plant engineering, procurement and construction industry.

"Infringement Claims" is defined in Section 25.3.

"Initial Payment" is defined in Section 19.2.

"Initially Completed Payment Milestones" is defined in Section 19.1.

"Interconnection Facilities" is defined in the recitals.

"Interconnection System Improvements" is defined in Section 6.6.

"Inverter Unit" means any device used to convert DC electric energy to AC electric energy installed as part of the System, including (a) associated DC equipment, cables, components, devices, and materials that interconnect photovoltaic molecules with the current inverter and (b) the individual modules or components that produce DC electric energy from sunlight connected to such current inverter.

"Lien" means any lien, mortgage, pledge, encumbrance, charge, security interest, defect in title, or other claim filed or asserted in connection with the System by or through Contractor, a Subcontractor or any other third party under the control or supervision of Contractor or any Subcontractor against the System, the Site, the Equipment or any other structure or equipment at the Site.

"Long-Term Credit Rating" means the rating assigned by Moody's or S&P to a Person's long-term senior unsecured debt unsupported by third-party credit enhancement.

"Losses" is defined in Section 25.1.

"Major Milestone" means the milestones set forth in the Milestone Payment Schedule.

"Major Subcontractors" means, collectively, (a) those Subcontractors listed in Schedule 4.1 or otherwise providing Equipment of the type described in Schedule 4.1 and (b) those Subcontractors providing services, materials, equipment, supplies or any other Work, the cost of which is in excess of One Million Dollars ($1,000,000) per Subcontract or such lesser amount as is demonstrably mandated by any Financing Parties; *provided* that any and all Subcontracts with the same Subcontractor shall be aggregated for purposes of this clause (b).

"Mechanical Completion" means that the System shall have achieved all the conditions set forth in Section 8.1.

"Mechanical Completion Date" is defined in Section 8.4.

"Milestone Payment Schedule" means the milestone payment schedule set forth on Schedule 1E.

"Minimum Investment-Grade Rating" means, with respect to any Person: (a) a Long-Term Credit Rating of no less than (as applicable) BBB- from S&P and Baa3 from Moody's; and (b) without a "credit watch", "negative outlook" or other rating decline alert by S&P, Moody's, or such alternate rating source, as applicable, but only if such decline alert(s) would be reasonably expected to reduce such Long-Term Credit Rating to below the applicable level specified in subsection (a) of this definition.

"Minimum Performance Guarantee" means "Minimum Facility Performance" as defined in Schedule 1B.[1]

"Modules" is defined in Section 5.17.4.

"Monthly Progress Report" is defined in Section 5.15.4.

"Moody's" means Moody's Investors Service, Inc. or its successor.

"MW" is defined in the recitals.

"New U.S. Tariffs" is defined in Section 18.3.

"Notice to Proceed" means the written notice given by Owner to Contractor in the form of the execution of this Agreement pursuant to Section 7.1.

"O&M Spare Modules" is defined in Section 5.17.4.

"OPSB Certificate" means the Certificate of Environmental Compatibility and Public Need issued by the Ohio Power Siting Board in Case No. 21-768-EL-BGN.

"Owner" is defined in the preamble.

"Owner BAR Policy" means the "All Risk" Builder's Risk Insurance Policy obtained by Owner pursuant to Section 24.1.

"Owner Delay" means any delay in Contractor's performance of the Work or an increase in Contractor's costs to perform the Work, in any case that has demonstrably resulted from any (a) actions of Owner and any of Owner's separate contractors, including the Independent Engineer, that hinder, delay or prevent the progress of the Work (other than actions that Owner has the right to take under this Agreement and the reasonable actions of the Independent Engineer as are undertaken in a manner consistent with the responsibilities such an engineer has in connection with a project like the Project), (b) failure of Owner to perform any of its obligations

[1] Drafting Note: Per Schedule 1B, Minimum Facility Performance is 92.5% of the Expected Facility Performance, which will be the nameplate capacity of the Project as described in the PEA, and will be spelled out in Schedule 1B.

under this Agreement at the time required under this Agreement (other than by exercise of its express rights under this Agreement), (c) failure by Owner to deliver, or cause to be delivered, the Owner Equipment to the Site in accordance with the Owner Equipment Delivery Schedule, (d) Owner Equipment Defects, (e) interference with the performance of the Work or any portion thereof by Owner or its personnel, agents, representatives (including Owner's Representative), consultants and invitees, including the Financing Parties, suppliers of Owner Equipment and any of Owner's separate contractors, including the Independent Engineer (other than actions that Owner has the right to take under this Agreement and the reasonable actions of the Independent Engineer as are undertaken in a manner consistent with the responsibilities such an engineer has in connection with a project like the Project), (f) the provision by Owner of Modules that deviate from the required module type or bin class as described in Schedule 30 of this Agreement, (g) failure of Owner to deliver the Energization Notice to Proceed to Contractor within the time specified in Section 8.5, (h) exercise by Owner of its right to suspend the Work or any portion thereof pursuant to Section 20.1, (i) exercise by Contractor of its right to suspend the Work or any portion thereof pursuant to Section 6.4 or Section 20.2, (j) change in any of the applicable requirements of the Project Agreements with respect to the Work at any time after the Execution Date, (k) comments made by Owner or the Independent Engineer to the construction drawings or plans pursuant to Section 5.4 which is required by Owner to be incorporated by Contractor into such drawings or plans and is inconsistent with or not contemplated by this Agreement (to the extent such comments are not the result of Owner's discovery of an error in Contractor's preparation of such drawings or plans), (l) an Affected System Delay, or (m) any other event that is expressly described as constituting an Owner Delay in this Agreement. Notwithstanding anything herein to the contrary, unless a BUS EPC Termination for Convenience has occurred (in which case Section 6.7 will apply) a delay in the interconnection of the System to the Grid for back-feed and testing purposes will not be considered an Owner Delay.

"Owner Equipment" means the equipment described in Schedule 30.

"Owner Equipment Defect" means any defect (including any latent defect) or deficiency in the Owner Equipment or any failure of the Owner Equipment to conform with applicable specifications, including failure of the Owner Equipment to perform in accordance with applicable specifications; *provided* that defects, deficiencies or non-conformities of the Owner Equipment shall not be considered Owner Equipment Defects to the extent that the same are caused by Contractor's negligent acts or Contractor's failure to comply with its obligations under this Agreement with respect to the receipt, unloading, inspection, handling, storage, construction and installation of Owner Equipment.

"Owner Equipment Delivery Schedule" means the schedule set forth in Schedule 25.

"Owner Guarantor" means, collectively, (i) Brookfield Global Transition Fund-A, L.P., a Delaware limited partnership, (ii) Brookfield Global Transition Fund-B, L.P., a Delaware limited partnership, (iii) Brookfield Global Transition Fund-C, L.P., a Delaware limited partnership and (iv) Brookfield Global Transition Fund (ER) SCSp, a Luxembourg special limited partnership (société encommandite spéciale), jointly and severally.

"Owner Guaranty" is defined in Section 6.4.

"Owner Indemnitee" is defined in Section 25.1.

"Owner's Representative" means the individual designated by Owner in accordance with Section 3.1.

"Owner's Title Policy" means that certain a final ALTA Form 2021 extended coverage policy of leasehold title insurance policy or policies issued to Owner.

"Party" and "Parties" have the respective meanings given to such terms in the preamble.

"Payment Milestone" means each discrete payment milestone listed on Schedule 1E.

"Performance Bond" is defined in Section 5.22.

"Performance Guarantee" means the Expected Facility Performance (subject to the Deadband).

"Performance Tests" means the tests of the System, as more particularly described in, and conducted in accordance with, Schedule 1B, by which Contractor demonstrates that the System meets the Expected Facility Performance, subject to the Deadband.

"Person" means any individual, corporation, limited liability company, partnership, company, joint venture, association, trust, unincorporated organization or Governmental Authority.

"Pipeline Incentive Amount" means an amount equal to five hundred thousand dollars ($500,000).

"Pipeline Incentive Conditions" means the earlier to occur of (A) (i) the delivery to Owner of a release, non-disturbance or similar agreement, in form and substance acceptable to Owner, from the Pipeline Rights Holder and (ii) no Contractor Event of Default shall have occurred and be continuing; and (B) the Substantial Completion Date.

"Pipeline Rights Holder" means the holder of rights (or their successor in interest) related to the following exceptions referenced in that certain Title Commitment in Schedule B, Part II identified as items 33, 34, 35, 36, 37, 71, 72, 73, 74, 94.

"PJM" means PJM Interconnection, L.L.C.

"Point of Interconnection" is defined in the Generation Interconnection Agreement.

"PPA" means a power purchase agreement between the Owner and an offtaker that has a rating assigned to its long-term senior unsecured debt unsupported by third-party credit enhancement of no less than (as applicable) "Baa3" from Moody's Investor Service, Inc. or "BBB-" from S&P Global Ratings.

"Pre-Existing Hazardous Materials" means Hazardous Materials that existed on, at, or under the Site due solely to the Reclaimed Mine condition of the Site prior to the earlier of the date that (i) the landlord pursuant to the Ground Lease, which is an Affiliate of Contractor, acquired any property subject to the Ground Lease and (ii) such landlord had actual knowledge of such Hazardous Materials. For the avoidance of doubt, any other Hazardous Materials that existed on, at, or under the Site prior to the foregoing date that do not exist because of the Reclaimed Mine Condition shall not be considered Pre-Existing Hazardous Materials.

"Project Agreements" is defined in the recitals.

"Project Schedule" means the schedule for the completion of the Work, a "Level 1" version of which is set forth on Schedule 1A, and a "Level 3" version of which will be agreed upon by the Parties in writing (replacing the Level 1 version) as described in Section 7.2. Except as set forth in Section 7.2, the Project Schedule may only be modified by Change Order in accordance with Article 14.

"Punch List" is defined in Section 5.20.

"Punch List Holdback Amount" means an amount equal to one hundred fifty percent (150%) of the aggregate value of the items on the Punch List as mutually agreed to between Owner and Contractor as of the date of Substantial Completion.

"Purchase and Exclusivity Agreement" means that certain Amended and Restated Purchase and Exclusivity Agreement, dated as of April 16, 2026, by and between SE1 DevCo, LLC and BGTF UG Cardinal Holdings LLC.

"PV" is defined in the recitals.

"Qualified Guarantor" means any Person which has (i) a Minimum Investment-Grade Rating or (ii) a Tangible Net Worth equal to or greater than four hundred million dollars ($400,000,000).

"Receiving Party" is defined in Article 32.

"Reclaimed Mine" means the area or areas within the Site that were previously subject to mining operations and have been reclaimed, filled-in, restored or otherwise remediated prior to the Execution Date.

"Release" means any release, deposit, discharge, emission, leaking, leaching, spilling, seeping, migrating, injecting, pumping, pouring, emptying, escaping, dumping, disposing or other movement of Hazardous Materials into the indoor or outdoor environment (including the movement of Hazardous Materials through ambient air, soil, surface water, ground water, wetlands, land or subsurface strata).

"Remedial Action Plan" is defined in Section 5.15.3.

"Remedial Act" is defined in Section 25.3.

"Representatives" means, collectively, Contractor's Representative and Owner's Representative.

"Retainage" is defined in Section 19.7.

"Roadway Agreement" is defined in Section 5.26.

"Roadway Improvements" is defined in Section 5.26.2.

"S&P" means S&P Global Ratings or its successor.

"Scope Change" is defined in Section 14.1.

"Scope of Work" means the description of the Work as set forth in Schedule 1C.

"Seasonally Constrained Work" means any portion of the Work that (a) is on the Punch List; (b) is required by any E&S Permits; and (c) as a result of the time of year during which Substantial Completion is achieved, cannot be completed on commercially reasonable terms within thirty (30) days after the Substantial Completion Date due to seasonal factors, such as snow, freezing temperatures, mud or excessive rain.

"Site" is defined in the recitals and as further described in Exhibit 1.

"Site Information" means the information regarding the Site set forth on or referenced in Schedule 27.

"Spare Parts List" is defined in Section 5.8.

"Step-In Notice" is defined in Section 4.2(c)(i).

"Subcontract" means any contract, agreement, purchase order or other binding commitment between Contractor and a Subcontractor or, as applicable, between two Subcontractors, in each case with respect to any portion of the Work, including as may be entered into prior to the Execution Date.

"Subcontractor" means any Person or entity at any tier, other than Contractor, that performs any portion of the Work, including suppliers of any Equipment, in each case, in furtherance of Contractor's obligations under this Agreement.

"Substantial Completion" means that the System shall have achieved all the conditions set forth in Section 10.1.

"Substantial Completion Date" is defined in Section 10.3.

"Substation" means the facility as described in Schedule 1C that will comprise, without limitation, switchgear, breakers, control building, metering and relays, DAS/SCADA system, switchyard with structures and breakers, and a step-up transformer, and which will be utilized to consolidate the power production from the System and increase the voltage to match the requirements under the Generation Interconnection Agreement for transmitting power to the

Grid. The Substation will be owned by Owner and is separate from and does not comprise any equipment or other assets owned or to be owned by the Transmission Owner (including the Interconnection Facilities).

"System" is defined in the recitals and is described more fully in Schedules 1C, 5.1, and 28. The System includes the Owner Equipment and all permanent works at the Site contemplated by the Scope of Work, including drainage systems, and roads.

"System Displacement Event" is defined in Section 5.24.2.

"Tangible Net Worth" means, in respect of any Person as of any applicable date of determination, the aggregate amount of tangible balance sheet assets of such Person *minus* the aggregate amount of the balance sheet liabilities of such Person, in each case determined in accordance with U.S. generally accepted accounting principles, consistently applied.

"Tariff Threshold" is defined in Section 18.3.

"Tariff Protected Equipment" is defined in Section 18.3.

"Termination of Adverse Third Party Rights" is defined in Section 5.24.1.

"Termination Payment" is defined in Section 16.7(a).

"Title Commitment" means Title Commitment Number GLC2600326 Revision 2 ((added liability amount and updated Survey)dated March 27, 2026 attached hereto as Exhibit 16.

"Transformer Substantial Completion Work Logs" is defined in Section 5.9.1.

"Transmission Line" means the 138 kV high voltage line and structures, including the structure to be located at the "Point of Change in Ownership" (as that term is defined in the GIA), connecting the step-up transformer in the Substation to the Transmission Owner switching station as described in the GIA and as further described in Schedule 1C.

"Transmission Owner" means Ohio Power Company.

"Transmission Owner Delay" has the meaning set forth in the BUS EPC Agreement.

"Warranty" is defined in Section 23.1.

"Warranty Period" is defined in Section 23.1.

"Work" means the Equipment and all services, labor, obligations, duties, and responsibilities to be performed by Contractor under this Agreement in connection with, or relating to, the completion of the System (or any component thereof, including the Equipment), and the achievement of Final Completion, including the items described in Article 2, Article 5 and Schedule 1C.

"Working Schedule" means the schedule of the actual and projected progress of the Work as will be kept and continually updated by Contractor through Final Completion.

1.2 Other References. As used in this Agreement, unless otherwise specified or where the context otherwise requires:

(a) all references to "Articles" and "Sections" are to Articles and Sections of this Agreement;

(b) all references to "Exhibits" and "Schedules" are to Exhibits and Schedules attached to this Agreement, each of which is an integral part of this Agreement and made a part of this Agreement for all purposes;

(c) references to any gender include all others if applicable in the context;

(d) terms defined in the singular shall have the corresponding meaning when used in the plural and vice versa;

(e) all uses of "include" or "including" mean "without limitation";

(f) references to any agreement or contract are to such agreement or contract as amended, modified or supplemented from time to time in accordance with the terms hereof and thereof; *provided* that, all references to the Project Agreements (including any exhibits, schedules and other attachments thereto) are to the Project Agreements as in effect immediately prior to the Execution Date, and without giving effect to any amendment or modification thereof or other variance therefrom on and after the Execution Date, unless any such amendment, modification or other variance shall be expressly consented to in writing by Contractor (such consent not to be unreasonably withheld or delayed);

(g) any reference to any federal, state, local or foreign statute or law means such statute or law as amended, supplemented, modified or replaced from time to time and also refers to all applicable rules and regulations promulgated thereunder; *provided*, *however*, that Contractor shall be entitled to propose a Change Order for a Change in Applicable Law, as described in Section 14.4;

(h) the word "or", unless otherwise indicated, is not to be considered exclusive;

(i) the words "this Agreement," "hereof," "hereunder," "herein," "hereby" or words of similar import refer to this Agreement as a whole and not to a particular Article, Section, subsection, clause, or other subdivision of this Agreement;

(j) any reference to a Person includes such Person's successors and permitted assigns and any reference to a Governmental Authority includes any successor thereto;

(k) any definition in one part of speech of a word, such as definition of the noun form of that word, shall have a comparable meaning when used in a different part of speech, such as the verb form of that word;

(l) the headings of particular provisions of this Agreement are inserted for convenience only and shall not be construed as a part of this Agreement or serve as a limitation or expansion on the scope of any term or provision of this Agreement; and

(m) any provisions hereof including the words "written" or "in writing" means hand-written, type-written, printed or electronically made and resulting in a permanent record.

2. Scope.

(a) Contractor shall:

(i) procure, provide and pay for, on a fixed price basis, all items and services necessary for the proper execution and completion of the Work, whether temporary or permanent and whether or not incorporated or to be incorporated into the System, including all professional design and engineering services, development, Equipment procurement (excluding the Owner Equipment, the procurement of which and delivery to the Site is the sole responsibility of Owner, subject to Contractor's obligations in respect of the Owner Equipment in accordance with Sections 6.5 and 5.17), supervision, labor, materials, equipment, tools, construction equipment and machinery, utilities, interconnections (in accordance with the Generation Interconnection Agreement), transportation, and the procurement of the Applicable Permits, and the provision of all other items, facilities and services within the scope of the Work to complete the System and achieve Final Completion; and

(ii) perform, supervise, coordinate and direct the Work, including the permitting, engineering, design, procurement, project management, construction, interconnection, testing, start-up and commissioning of the System, in accordance with this Agreement and the Generation Interconnection Agreement, including the general standards specified in Section 5.1 hereof. Work not specifically delineated in this Article 2 or elsewhere in this Agreement shall be performed and provided by Contractor to the extent necessary to complete the System in accordance with Industry Standards.

(b) Subject to Owner's and the Independent Engineer's approval to the extent expressly required under this Agreement, including Section 5.4, Contractor shall have sole control over the engineering, design and construction means, methods, techniques, sequences, and procedures and for coordination of all portions of the Work under this Agreement. Notwithstanding the foregoing, Contractor acknowledges that in order to secure and maintain project financing for the System, Contractor must satisfy the Independent Engineer and the Financing Parties with respect to various aspects of the Project, such as Equipment selections (including technical specifications), engineering and design documentation, testing protocols, and testing results and related reports following the Performance Test, and may have input upon quality control standards and verification of compliance with applicable codes, standards, and permits. With respect to testing protocols, Owner will within thirty (30) days of the Execution Date (and/or, if a new Independent Engineer is thereafter selected, then within thirty (30) days of such selection) present to the Independent Engineer the testing protocols that are set forth in Schedule 1B,

and the Parties will thereafter cooperatively work together and with the Independent Engineer in good faith toward satisfying the Independent Engineer regarding testing protocols. Without prejudice to Contractor's rights under Sections 14.2 and 14.4 as applicable, Contractor will cooperate with the Independent Engineer in connection with the foregoing and otherwise in connection with the Independent Engineer's efforts that relate to the Work or the System; *provided* that such cooperation shall not require Contractor to incur additional out of pocket costs or increase Contractor's liability under this Agreement. Contractor will permit the Independent Engineer during normal business hours to access to the Work and such engineering drawings and civil and electrical designs so as to enable the Independent Engineer to deliver such certificates and written reports to Owner or the Financing Parties as Owner or the Financing Parties may reasonably request, including with regard to (i) the adequacy of the civil engineering and electrical design of the System, (ii) the compliance of said designs with all applicable standards and codes; (iii) the project life of selected components of the System, and (iv) any other information which Owner or the Financing Parties may reasonably request pertaining to the Work, and, in each case, subject to Article 32 and any other confidentiality restriction applicable to such requested information.

(c) Contractor shall perform the Work in a manner reasonably expected to enable it to achieve Substantial Completion by the Guaranteed Substantial Completion Date. Contractor shall promptly notify Owner in writing if any Major Milestone becomes likely not to be met in accordance with the Project Schedule, which notice shall include a reasonably detailed description of the corrective action to be taken by Contractor.

(d) Where this Agreement describes the Work in general terms, but not in complete detail, it is understood and agreed that the Work includes any incidental work or services that can be reasonably inferred as required or necessary to construct and complete the System in accordance with the requirements of this Agreement.

3. Representatives; Independent Engineer;

3.1 Owner Representative. Owner designates, and Contractor agrees to accept, John McVaigh as Owner's "Representative" with respect to this Agreement and Contractor's performance of the Work. Subject to Section 3.3, the actions taken by Owner's Representative shall be deemed to be the acts of Owner and shall be fully binding upon Owner. Owner may, upon the prior consent of Contractor (which consent shall not be unreasonably withheld, conditioned or delayed), change the designated Owner's Representative.

3.2 Contractor Representative. Contractor designates, and Owner agrees to accept, Dirk Corn as Contractor's "Representative" with respect to this Agreement and Contractor's performance of the Work. Subject to Section 3.3, the actions taken by Contractor's Representative shall be deemed the acts of Contractor and shall be fully binding upon Contractor. Contractor may, upon the prior consent of Owner (which consent shall not be unreasonably withheld, conditioned or delayed), change the designated Contractor's Representative.

3.3 Limited Authority. Notwithstanding Sections 3.1 and 3.2, except as otherwise expressly set forth in this Agreement, a Representative, in its capacity as such, shall

have no power or authority on behalf of a Party to give, enter into, consent to or execute any amendments, Change Orders, waivers, consents or other non-routine communications on behalf of a Party hereunder.

3.4 Independent Engineer. Owner has designated Natural Power, an engineering consulting firm, as the independent engineer under this Agreement (the "Independent Engineer").

4. Subcontracting.

4.1 Major Subcontractors. The Parties have agreed upon the list of approved Major Subcontractors set forth in Schedule 4.1. Contractor shall have that portion of the Work identified in Schedule 4.1 provided or performed by the Major Subcontractor for such Work as set forth in Schedule 4.1, and Contractor shall not change or replace any such Major Subcontractor or engage or retain any other Major Subcontractor without the prior written approval of Owner, which approval shall not be unreasonably withheld, conditioned or delayed.

4.2 Subcontracts.

(a) Each Subcontract entered into by Contractor, whether before or after the Execution Date, whether or not a counterparty thereto is a Major Subcontractor, shall (i) be in writing and (ii) contain similar protections as set forth in this Agreement (including representations and warranties that all Work furnished or delivered, and all materials and tools used on Site, by such Subcontractor shall contain zero percent (0%) asbestos, refractory ceramic fibers, lead, methylene chloride or polychlorinated biphenyls; and provisions regarding safety, warranty, termination, taxes, confidentiality, intellectual property, and indemnification). In addition, all Subcontracts with Major Subcontractors providing Equipment of the type listed on Schedule 4.2 shall (and Contractor hereby represents and warrants that each such Subcontract shall) permit the assignment by Contractor to Owner, at any time upon notice to the Major Subcontractor that is a party to such Subcontract, of the Assigned Warranty (as defined below) provided therein.

(b) With respect to any Subcontract with a Major Subcontractor that is entered into before or after the Execution Date, Contractor shall, prior to entering into such Subcontract with such Major Subcontractor, provide for Owner's reasonable review and comment a copy of the proposed form of Subcontract to be entered into with such Major Subcontractor. Contractor will reasonably consider any suggested revisions to such Subcontract from Owner; *provided* that Owner provides such comments within ten (10) Business Days of its receipt of the proposed Subcontract. As a condition to Substantial Completion, Contractor will provide Owner with copies of each executed Subcontract with a Major Subcontractor; *provided* that Contractor may redact from such copies pricing information any other commercially sensitive information (except that in no event shall any provisions of any such Subcontract relating to the applicable Assigned Warranty being provided by such Major Subcontractor constitute "commercially sensitive information"), as determined by Contractor in its reasonable discretion.

(c) With respect to any Subcontract with a Major Subcontractor that is entered into before or after the Execution Date, such Subcontract with such Major Subcontractor shall provide that:

(i) upon notification (the "Step-In Notice") to the Major Subcontractor from Owner or Financing Parties, that (A) this Agreement has been terminated due to a Contractor Event of Default and (B) Owner or Financing Parties will thereafter be assuming Contractor's payment obligations for goods and services under such Subcontract, then (1) such Major Subcontractor shall continue to perform its responsibilities under such Subcontract for the benefit of Owner (and/or Financing Parties, as the case may be) and shall recognize Owner (and/or Financing Parties, as the case may be) as being vested with all the rights of Contractor to receive the goods or services supplied under such Subcontract; (2) such assumption by Owner of payment obligations for goods and services shall not render Owner responsible for any liabilities of Contractor under such Subcontract that arose prior to the date of such assumption, and (3) such Major Subcontractor shall not have any right to seek payment from Owner or the Financing Parties for goods or services under such Subcontract unless and until such Major Subcontractor has received the Step-In Notice; and

(ii) Owner may in its sole discretion also elect at any time or from time to time, without issuing a Step-In Notice, to make any one or more payments to such Major Subcontractor for the goods or services under such Subcontract that are for the System, and such Major Subcontractor will credit such payment toward the purchase price of such goods or services that are for the System; *provided*, that if Owner so elects to make any such a voluntary payment, this will not give such Major Subcontractor any right to seek further payment from Owner.

Notwithstanding the subcontract provision described in Section 4.2(c)(ii) as may be contained in a subcontract with a Major Subcontractor, Owner agrees with Contractor that Owner will not exercise its rights to make a voluntary payment under such provision unless and until the following have occurred: (1) Owner has become aware that a payment has not been made to such Major Subcontractor, (2) Owner has consulted with Contractor regarding the circumstances of such non-payment, and (3) Contractor fails within a reasonable time to provide Owner with information that Owner, in its reasonable opinion, considers as assurance that such non-payment will not have a material delay to the completion of or an adverse effect on the Work. If Owner makes any payments to a Major Subcontractor in accordance with any of the foregoing provisions, Owner may offset such payment against amounts owed to Contractor under this Agreement.

(d) Effective as of the Substantial Completion Date, Contractor hereby assigns to Owner, and Owner hereby accepts, all of Contractor's right, title and interest in and to each of the warranties of the Major Subcontractors of the Equipment types listed on Schedule 4.2, as applicable, and to all common law or statutory warranty rights (including U.C.C. rights) applicable to the same, in each case free and clear of any Liens (collectively, the "Assigned Warranties"). Contractor shall be responsible to take all actions and resolve

all preconditions necessary, including, but not limited to, providing any notice of such assignment within any required timeframe, seek and obtain any requisite approvals necessary for such assignment, store, install, inspect, and maintain the Equipment as required by the Major Subcontractor (prior to the assignment), and make all payments necessary to ensure the Assigned Warranties are assignable and effective, in order to ensure that each of the Assigned Warranties can be, and are, assigned to Owner. Owner acknowledges and agrees that, (i) except for the representation and warranty in Section 4.2(a) above regarding the assignability of the Subcontracts and Contractor's obligation to make any payments required by any subcontract with a Major Subcontractor in order to ensure the continued enforceability of the Assigned Warranties (but then only to the extent the Owner is not in default of its payment obligations under this Agreement), the foregoing assignment of the Assigned Warranties on the Substantial Completion Date shall be without any other representation or warranty of Contractor, and (ii) Owner shall be responsible for any and all obligations of Contractor with respect to the Assigned Warranties to the extent arising from and after the foregoing assignment of the Assigned Warranties, and (iii) effective upon the date of such assignment, Contractor shall be relieved of all liability (including any Warranty claims) in connection with or arising from such Assigned Warranties.

4.3 Reserved.

4.4 Inverters. Notwithstanding anything to the contrary in this Agreement, each Inverter Unit shall be, unless otherwise approved in writing by Owner, the model number from a manufacturer as described below and will have an inverter load ratio (DC/AC) of at least 1.2 and not more than 1.7:

(a) First Solar model No. FS-7535A-TR1 Dec2023; or

(b) SunGrow model No. SG4400UD-MV-US inverters.

4.5 Liability for Subcontractors. The approval by Owner, or the execution by Contractor, of any Subcontract shall not relieve Contractor of any of its obligations under this Agreement or relieve Contractor of its responsibility for any of the Work rendered or required to be rendered by any such Subcontractor. Contractor shall at all times be responsible for the acts, omissions, failures and faults of all Subcontractors as fully as if they were the acts, omissions, failures and faults of Contractor (other than those covered under Assigned Warranties). Contractor shall be responsible for performance of all the Work, whether performed by Contractor or its Subcontractors. Nothing in this Agreement shall constitute any contractual relationship between Owner and any Subcontractor, and Owner shall not undertake any obligation to pay, or to be responsible for the payment of, any sums to any Subcontractor.

4.6 Payments. Contractor shall promptly pay each Subcontractor the amount to which such Subcontractor is entitled in accordance with its Subcontract. Contractor shall promptly notify Owner of (a) any dispute with, or claim by any single Subcontractor if such claim exceeds Five Hundred Thousand Dollars ($500,000.00) or (b) if the aggregate of claims or disputes with

all Subcontractors exceeds One Million Dollars ($1,000,000.00), then any disputes or claims beyond such threshold.

5. Contractor Responsibilities.

5.1 Standards of Performance. Contractor shall perform and complete the Work in accordance with this Agreement (including Schedules 1C, 5.1, and 28), Industry Standards, Applicable Laws, Applicable Permits, permits relevant to the System or the Site that are held in the name of the Owner (to the extent copies of such permits have been provided to Contractor in writing), and, to the extent relevant to the Work, the Project Agreements such that Owner shall be in a position to satisfy its obligations thereunder relevant to the Work and the Project Agreements. Contractor hereby confirms that, as of the Execution Date, (a) Contractor has copies of all Project Agreements, and (b) Contractor has reviewed the Project Agreements, and in each case understands and is familiar with the requirements of the same to the extent relevant to the Work.

5.2 Sufficient Personnel. Contractor shall use, and shall require that each of its Subcontractors use, a sufficient number of Persons, who shall be qualified, properly trained and, if required by any Applicable Law or any Governmental Authority, licensed, permitted, registered or approved, so that Contractor may complete the Work and Contractor's other obligations under this Agreement in an efficient, prompt, economical and professional manner and in accordance with the Project Schedule.

5.3 Labor. Contractor shall use reasonable efforts to minimize the risk of labor-related delays or disruption of the progress of the Work. Contractor shall promptly take any and all reasonable steps that may be available in connection with the resolution of violations of collective bargaining agreements or labor jurisdictional disputes. Contractor will comply with the prevailing wage and apprenticeship requirements as set forth in Schedule 5.3.

5.4 Construction Drawings and Plans. Contractor shall perform engineering and design services for the Work. Contractor will use qualified and duly licensed (as required by Applicable Law) architects, engineers and other professionals selected and paid for by Contractor, in each case as are necessary to prepare the Documentation. Contractor shall prepare the construction drawings and related plans and submit the same to Owner for approval by Owner and the Independent Engineer as contemplated in Schedule 5.4. Owner shall have twenty (20) Business Days after the receipt of any such drawings or plans to respond to Contractor regarding the same, it being agreed that if Owner does not provide any comments to Contractor within such period, the construction drawings and plans as so submitted shall be deemed to have been approved by Owner. Any approval by Owner (actual or deemed) of such construction drawings and plans shall in no way relieve Contractor of any of its obligations or responsibilities hereunder. Contractor may incorporate Owner's proposed comments to any construction drawings and plans into subsequent submissions as necessary (in Contractor's reasonable discretion) to maintain the progress of the Work in accordance with the Project Schedule.

5.5 Health and Safety. Contractor shall perform the Work in accordance with, and shall cause all Subcontractors to perform the Work in accordance with, Section 5.19. Without limiting the foregoing, Contractor shall, and shall cause all of its employees, agents and

Subcontractors to, comply with the requirements regarding health, safety and security set forth in Schedule 5.5 (the "HSSE Requirements").

5.6 Training of Owner's Personnel.

5.6.1 Concluding no later than one (1) week prior to the Substantial Completion Date, Contractor shall provide Owner's personnel with one (1) day of on-Site operation and maintenance training in respect of the System, with the content of such training to be consistent with the outline of the course agenda set forth on Schedule 5.6.

5.6.2 Scheduling of training shall be coordinated between Contractor and Owner.

5.7 Utility Use. Contractor shall be responsible to provide and pay for all construction utilities (such as power, sewage, water, and fuel) that are necessary for Contractor to perform the Work on the Site.

5.8 Spare Parts. A preliminary list of recommended spare parts that are required for the ongoing operations and maintenance of the System is attached hereto as Schedule 5.8 (the "Spare Parts List"). Contractor shall update and amend the Spare Parts List, as applicable, and shall provide a final version of the Spare Parts List to Owner as a condition to Substantial Completion in accordance with Section 10.1.7.

5.9 Technical Documents to be Delivered by Contractor. Contractor shall deliver to Owner (a) a substantially complete draft in electronic format of the operations and maintenance manual for the System no later than one (1) week prior to the Substantial Completion Date, but within such time to support the training required by Section 5.6; and (b) final versions, in electronic format, of the operations and maintenance manual and as-built drawings prior to Final Completion. Any other Documentation not described in the foregoing sentence shall be delivered by Contractor to Owner pursuant to Schedule 1C.

5.9.1 Transformer Work Logs. No later than thirty (30) days following the completion of all installation, testing, and commissioning activities with respect to the step-up transformer comprising part of the Substation, Contractor shall deliver to Owner complete and accurate work logs from the transformer manufacturer or the Contractor, as applicable, relating to such transformer activities (the "Transformer Substantial Completion Work Logs"). The Transformer Substantial Completion Work Logs shall include, at a minimum with respect to actions by the transformer manufacturer or the Contractor, as applicable: (a) a record of reasonable details as to the installation activities performed; (b) all testing data and results, including transformer turns ratio (TTR) testing, winding resistance testing, insulation resistance testing, and dissolved gas analysis (DGA) oil sample results; (c) all inspection records and any deficiencies identified and remediated in connection therewith; (d) all factory acceptance test records, to the extent in Contractor's possession or control; and (e) any other documentation required by the transformer manufacturer or by Applicable Law in connection with the installation, testing, or commissioning of the transformer. Contractor's obligation to deliver the Transformer Substantial Completion Work Logs in accordance with this Section 5.9.1 shall be a condition to Substantial Completion pursuant to Section 10.1.

5.10 Record Drawings. Contractor shall maintain in good order at the Site all material Documentation for the performance of the Work, including at least one (1) record copy of the drawings and specifications, marked currently to record changes made during construction, all of which will be available to Owner in electronic format for inspection and use promptly following request therefor.

5.11 Compliance with Generation Interconnection Agreement. Contractor shall comply with PJM's and Transmission Owner's interconnection requirements, including all applicable requirements set forth in the Generation Interconnection Agreement.

5.12 Cooperation. Contractor shall provide Owner assistance in providing periodic status updates, data, responses to request for information and reports to any applicable Governmental Authorities or other third party, in each case as may be reasonably requested by Owner and at Owner's expense.

5.13 Compliance with Laws; Hazardous Materials.

(a) In the performance of the Work, Contractor shall at all times comply with and cause its Subcontractors to comply with, all Applicable Laws, including Environmental Laws. Contractor shall ensure that the System, as designed, constructed and installed by Contractor, complies, and, when operated in accordance with Industry Standards, shall comply with all Applicable Laws. Should Contractor receive from any Governmental Authority any written notice of material violation or alleged material violation of any Applicable Law or Permits, Contractor will provide a copy of such notice to Owner within seven (7) days of its receipt thereof.

(b) Contractor shall:

(i) be responsible at its cost for the remediation, clean-up and removal of, and for any environmental liabilities relating to, any Releases of Hazardous Materials, to the extent the same are caused by Contractor's or its Subcontractors' negligence or breach of Environmental Laws in connection with the performance of the Work;

(ii) as part of the Work, be responsible at its cost for removing, treating, disposing of and handling, in a manner consistent with applicable Environmental Laws, any Hazardous Material; *provided* that the foregoing shall not limit Contractor's entitlement to a Change Order for schedule relief pursuant to Section 14.4 for any Pre-Existing Hazardous Materials at the Site that constitute an Excused Site Condition;

(iii) notify Owner in writing of any Hazardous Materials it intends to use in performance the Work before such utilization is commenced; and

(iv) notify Owner in writing, as soon as practicable but in any event within two (2) Business Days, if it becomes aware that it has uncovered or otherwise come into contact with any Pre-Existing Hazardous Materials at, under or around the Site or if any Hazardous Materials are Released onto the Site as a result of the performance of the Work, and Contractor will promptly take reasonable actions to contain and prevent further exacerbation of any Release; *provided* that if Contractor discovers any suspected Pre-

Existing Hazardous Materials at the Site that constitute an Excused Site Condition, Contractor shall be entitled to a Change Order for schedule relief pursuant to Section 14.4.

5.14 Permits. Contractor, at its expense, shall obtain, renew and maintain, and shall file any documents required to obtain, renew or maintain, any Applicable Permits on a timely basis. Those Applicable Permits known as of the Execution Date are listed in Schedule 5.14, including (to the extent applicable) each pending application with a Governmental Authority with respect to any of the foregoing. The Parties will work diligently to agree upon any updates to Schedule 5.14 that may be required to reflect all Applicable Permits known as of the Execution Date (or as may be required from time to time following the occurrence of a Change Event) and will document the same in a mutually acceptable amendment to this Agreement or a mutually acceptable Change Order that, based upon the principles set forth in Sections 14.4(d) and 14.4(e), covers Contractor's additional Direct Costs to be incurred and/or provides Project Schedule relief to accommodate such updated Schedule 5.14, as applicable. Contractor shall pay for all taxes, fees and costs in order to obtain the Applicable Permits.

5.14.1 Crossing Agreements. In addition to and without limiting the generality of the foregoing, Contractor shall, or alternatively shall cause its Affiliate SE1 Devco, LLC to, at its sole cost and expense, obtain and maintain in Owner's name (a) all crossing consent agreements required in connection with the performance of the Transmission Line or the installation, construction, or operation of any component of the Transmission Line across or under any public or private right-of-way, railroad, utility corridor, waterway, or other property of any Governmental Authority or private party, (b) all "letters of no objection" or equivalent confirmations required by any authority having jurisdiction over any such crossing or over any portion of the Transmission Line, and (c) any other Applicable Permits necessary for Contractor to complete the Transmission Line, in each case on a timely basis so as not to delay the achievement of Substantial Completion by the Guaranteed Substantial Completion Date. Contractor acknowledges that the necessity of obtaining such crossing consent agreements, letters of no objection, and other Applicable Permits has been accounted for in the Contract Price and Project Schedule. Accordingly, Contractor shall not be entitled to any Change Order, additional compensation, schedule relief, or other adjustment of any kind arising from or in connection with any failure, delay, difficulty, or increased cost in obtaining, renewing, or maintaining any such crossing consent agreement, letter of no objection, or other Applicable Permit, regardless of the cause of such failure or delay, including any refusal, condition, or requirement imposed by any Governmental Authority or private party with jurisdiction over any such crossing or other permit matter. Notwithstanding the forgoing, any obligation of Contractor or Contractor's Affiliates to maintain any of the aforementioned crossing consent agreements, "letters of no objection" or equivalent confirmations, or any other Applicable Permits ceases at Final Completion.

5.15 Reports and Meetings.

5.15.1 Regular Meetings. Contractor shall attend and participate in regular meetings with Owner, as needed, for the purpose of work coordination between the Work and other work for which Owner is responsible, discussing the status of the Work and

anticipating and resolving any problems. Regular meetings shall occur at a frequency of weekly at a minimum or more often as the Parties may mutually agree.

5.15.2 Monthly Meetings. Contractor shall attend and participate in regular meetings either at the Site or via teleconference with Owner which shall occur monthly (or upon such other interval as Owner may reasonably request from time to time) for the purpose of discussing the status of the Work and anticipating and resolving any problems and which may include, at Owner's request, any Persons that have agreed in writing to be bound by the confidentiality obligations set forth in Article 32.

5.15.3 Remedial Action Plan. If at any time after the Execution Date Owner determines in its reasonable discretion that Contractor is more than fifteen (15) days behind the Project Schedule such that Contractor cannot reasonably be expected to achieve Substantial Completion by the Guaranteed Substantial Completion Date, then Owner may notify Contractor of such determination and require that, within ten (10) Business Days of such notice, Contractor submit to Owner a plan demonstrating in reasonable detail the measures that Contractor has taken or will take in order to achieve Substantial Completion by the Guaranteed Substantial Completion Date (such plan, a "Remedial Action Plan"). If after Contractor issues the Remedial Action Plan, Owner determines in its reasonable judgment that the Remedial Action Plan is not reasonably likely to ensure that Substantial Completion is achieved by the Guaranteed Substantial Completion Date, Contractor shall provide a revised Remedial Action Plan to Owner within five (5) Business Days of Owner providing such notice of deficiency. This process shall continue until both Parties, using commercially reasonable efforts and all due diligence, bearing in mind that time is of the essence, mutually agree that Substantial Completion is reasonably likely to be achieved by the Guaranteed Substantial Completion Date.

5.15.4 Project Schedule Updates and Monthly Reporting. Within ten (10) days after the end of every calendar month through Substantial Completion, Contractor shall provide progress reports, which shall include: (a) a copy of Contractor's then-current Working Schedule and a comparison of the progress of the Work under the same to the Project Schedule, including the incorporation of delay and acceleration analyses where applicable and evidencing the Critical Path (using, in the Working Schedule, the same logic and activity durations for each task as are in the Project Schedule), utilizing SmartSheet, (b) a detailed description of the progress of the Work during the prior month, (c) an updated report as to Contractor's adherence to the Project Schedule, including a statement of any changes to any Major Milestone that have been or are forecasted to be missed, along with Contractor's then-applicable Remedial Action Plan to recover the Project Schedule (if any, as required under Section 5.15.3), (d) an explanation of any significant issues that remain unresolved and Contractor's recommendations for resolving the same, (e) a summary of any significant events that are scheduled or expected to occur during the following thirty (30) days, (f) total Contractor and Subcontractor hours worked at the Site and any safety incidents recorded, (g) progress and percentage completion of major equipment installation and (h) all additional information reasonably requested by Owner (the "Monthly Progress Report").

5.16 Equipment Supplied by Contractor. Except with respect to the purchase, transport and delivery of Owner Equipment, Contractor, at its expense, shall purchase, transport, deliver, inspect to the extent it deems necessary, and construct and install all Equipment necessary to complete the System as required hereunder. All Equipment, or any component thereof, to be supplied by Contractor or its Subcontractors that is to comprise, be a part of or be incorporated into, the System shall be (a) new and unused, (b) in good condition and (c) fit for the use(s) for which it is employed by Contractor or its Subcontractors. Such Equipment shall at all times be maintained, inspected and operated as required by Applicable Law, consistent with Industry Standards and in accordance with, and in a manner that does not void, any manufacturers or supplier's warranties (including any warranties of Major Subcontractors). Notwithstanding the foregoing, if any Equipment is subject to a valid warranty claim by Contractor, the failure or inoperability of such Equipment that is the subject of the warranty claim shall not result in a violation of subsections (b) or (c) of this Section 5.16. Contractor further agrees that all licenses, permits, registrations and certificates or other approvals required by Applicable Law or any Governmental Authority shall be procured and maintained for the Equipment at all times during the use of the same by Contractor or its Subcontractors in the performance of any of Contractor's obligations under this Agreement. Contractor will abide by the requirements as set forth in Schedule 5.16 (Domestic Content Requirements).

5.17 Unloading and Inspection of Owner Equipment

5.17.1 Contractor shall reasonably cooperate with and support Owner in Owner's efforts to cause the Owner Equipment to be delivered to the Site. Contractor shall have sufficient equipment and personnel to receive and unload Owner Equipment delivered to the Site; *provided* such Owner Equipment is delivered to the Site in accordance with the Owner Equipment Delivery Schedule. If delivery of Owner Equipment cannot be made to the Site when scheduled due to Contractor's failure to be ready to receive delivery and perform unloading, then Contractor shall within three (3) Business Days after request therefor from Owner select and designate a warehouse or other suitable storage site within a reasonable distance from the Site for storage of such Owner Equipment (such site, or, if Contractor fails to designate a site within such period, a site selected by Owner, the "Storage Site"), and Owner will cause the same to be delivered to such Storage Site. Upon arrival of the Owner Equipment at the Storage Site, risk of loss and damage will transfer to Contractor, and Contractor will be responsible for unloading the Owner Equipment, handling and placing the same into storage (in a manner compliant with any OEM storage recommendations or requirements) at the Storage Site, Owner shall provide reasonable assistance in the facilitation of communications between Contractor and the vendor of the Owner Equipment, in support of Contractor's coordination of the unloading and storage of such Owner Equipment. Contractor will be responsible for maintaining such Owner Equipment while at the Storage Site, and for re-loading, handling and transporting such Owner Equipment from the Storage Site to the Site at such time when Contractor determines to do so. All costs, expenses, taxes, fees or other charges arising from or relating to the bearing of such risk of loss (including insurance), storage, unloading, maintenance, re-loading, and transportation to the Site will be borne by Contractor without reimbursement by Owner.

5.17.2 Owner shall provide Contractor with at least three (3) Business Days prior written notice of the schedule date on which deliveries of Owner Equipment will commence (and, if once commenced there is an extended unplanned break in deliveries, the same notice prior to re-commencement). If pursuant to Section 6.5 the commencement of deliveries will be earlier than the timing described in the Project Schedule, then Owner will in good faith use commercially reasonable efforts to provide more than three (3) Business Days' advanced notice of such delivery commencement. Contractor shall receive, unload, and store, as applicable, Owner Equipment upon delivery to the Site at the location directed by Owner and within the time and volume requirements set forth in the Project Schedule. Within ten (10) days after the delivery to the Site of any Owner Equipment, Contractor shall inspect, jointly with Owner (or a designated representative of Owner) if requested by Owner, each such item of Owner Equipment for apparent, visible damage or defects and missing components. Contractor shall be responsible for all demurrage, other damages and additional costs and expenses incurred by Owner, including under any Owner supply contract for the applicable Owner Equipment, as a result of Contractor's failure to unload the Owner Equipment within the time periods set forth in the Project Schedule. In the event there is apparent, visible damage or defects to any Owner Equipment or any missing components thereof, in any case upon delivery, Contractor shall promptly notify Owner thereof. Owner shall have sole discretion and responsibility with respect to the rejection of any Owner Equipment containing such damage or defect. At the written request of Owner and at Owner's cost and expense, Contractor shall cooperate with Owner and any supplier of Owner Equipment to coordinate the return, at Owner's sole cost and expense, of any Owner Equipment that is rejected by Contractor at Owner's written direction. Contractor shall not be responsible for any impacts to the performance of the Work resulting from the rejection of any Owner Equipment and, to the extent any Owner Equipment is so rejected, such rejected Owner Equipment will be treated for all purposes under this Agreement as having not been delivered to the Site.

5.17.3 Contractor shall be solely responsible for storing, handling, and utilizing Owner Equipment in a manner consistent with all written manufacturer specifications and storage recommendations provided Owner has delivered, or caused the applicable supplier of Owner Equipment to deliver, to Contractor all such specifications and recommendations at least ten (10) Business Days prior to the delivery of such Owner Equipment to the Site. If any Owner Equipment is damaged after delivery to the Site for any reason other than a Force Majeure Event or the actions or omissions of Owner or its employees, agents and representatives and other contractors (including as a result of improper storage of such Owner Equipment or during installation of such Owner Equipment by Contractor or its Subcontractors) then subject to Section 5.17.4 (including Contractor's right to use the Additional Modules for Breakage), Section 13.2 and Section 13.3, Contractor shall be responsible for all costs and expenses associated with the replacement of such Owner Equipment with equipment of substantially the same make, model and specifications as the original Owner Equipment.

5.17.4 If solar modules ("Modules") supplied as Owner Equipment are found to be damaged upon delivery, Contractor will promptly notify Owner of the same as provided in Section 5.17.2, and such damaged Modules will be return-

shipped to an address to be provided by Owner (at Owner's sole cost and expense) for disposal by Owner. Contractor acknowledges that the Modules to be supplied per Schedule 30 include (a) the base supply Module count set forth therein (the "Base Supply"), (b) an additional amount of replacement Modules, ear-marked for use for installation breakage, beyond the Base Supply (the "Additional Modules for Breakage"), and (c) an additional amount of spare Modules to be used by Owner in the maintenance and operation of the System ("O&M Spare Modules"). Contractor may use, without additional cost or liability, such Additional Modules for Breakage and O&M Spare Modules in the event there is breakage of any of the Base Supply Modules for any reason (including Force Majeure), subject to the following sentence. If, due to breakage during and after delivery, to the extent caused by Contractor or its Subcontractors and not due to the actions or omissions of Owner or its employees, agents, representatives and other contractors or Force Majeure, Contractor requires Modules (i) in excess of the sum of the Base Supply and Additional Modules for Breakage, then Contractor may upon request to utilize O&M Spare Modules but Contractor will pay Owner an amount equal the actual, demonstrable direct costs incurred by Owner to procure and deliver replacement O&M Spare Modules to the Site, and (ii) in excess of the Base Supply, Additional Modules for Breakage, and O&M Spare Modules, then Contractor will notify Owner of the same, and Owner will cause such additional Modules to be delivered to the Site, and Contractor will pay Owner an amount equal to the actual, demonstrable direct costs incurred by Owner to procure and deliver such additional Modules to the Site. Payment by Contractor will be due within thirty (30) days after its receipt of an invoice from Owner; *provided* that Owner may offset any amount payable by Contractor under this Section 5.17.4 against any amounts Owner owes to Contractor under this Agreement. Any excess Modules (including damaged Modules) that remain uninstalled after the Substantial Completion Date shall, at Owner's election and sole cost and expense, either (i) remain in storage on the Site, or (ii) be shipped (in whole or in part) to such other location as directed by Owner in writing. Notwithstanding anything herein to the contrary, Owner shall bear the cost of recycling any Modules received in damaged condition that are not return-shipped to Owner as contemplated herein unless such Modules were damaged by Contractor or its Subcontractors (in which case Contractor shall be responsible for such cost).

5.18 Screening Measures. Contractor shall comply with all applicable labor and immigration laws that are relevant to Contractor's Work under this Agreement, including the Immigration Reform and Control Act of 1986 and Form I-9 requirements. Without limiting the generality of the foregoing, to the extent required by Applicable Law, Contractor shall perform all required employment eligibility and verification checks and maintain all required employment records. Contractor acknowledges and agrees that it is responsible for conducting adequate screening of its employees and agents prior to starting the Work. By providing an employee or Subcontractor under this Agreement, Contractor warrants and represents that it has completed the screening measures with respect to such employee or Subcontractor and that such screening measures did not reveal any information that could reasonably be expected to adversely affect such employee's or Subcontractor's suitability for employment or engagement by Contractor or competence or ability to perform duties under this Agreement. In all circumstances, Contractor

shall ensure that the substance and manner of any and all screening measures performed by Contractor pursuant to this Section 5.18 conform to Applicable Law.

5.19 Protective Measures.

5.19.1 Contractor shall take Industry Standard precautions reasonably necessary to protect from personal injury, death or occupational disease, all workers and all other Persons who may be on or about the Site or surrounding premises where Work is being done. In the event that Contractor places fifty (50) or more personnel at the Site, whether employees or Subcontractors, to perform the Work, Contractor shall designate a responsible, qualified full-time member of Contractor's or any of its Subcontractor's organizations at the Site whose duty shall be taking reasonable measures for the prevention of incidents and injuries and addressing unsafe and undesirable behavior for each of the following two (2) areas: environmental matters (EPA and state-level) and safety matters, as each area relates to activities generally and the Work specifically.

5.19.2 Until the Owner has approved the Certificate of Substantial Completion, Contractor shall undertake reasonable measures to ensure that all Persons working at the Site or who enter the Site for any purpose comply with all Applicable Laws relating to health and safety and the HSSE Requirements.

5.19.3 Contractor shall be responsible for Site security and will take all reasonable precautions (including installation of fencing and 24x7 camera feeds as soon as reasonably possible after the Execution Date) at the Site required to prevent vandalism, theft and danger to the System, the Site, Equipment and personnel. Without limiting the generality of the foregoing, until Owner has countersigned the Certificate of Substantial Completion, Contractor shall: (a) take all reasonable precautions to prevent injury to all Persons on the Site and arrange to have first aid administered to all Persons who are injured or become ill on the Site and request assistance; (b) provide sufficient light for all Work; and (c) make contact with the local fire department, police department, and hospital and be aware of local emergency response procedures.

5.19.4 All trucks, vehicles, equipment, machinery, or the like provided by Contractor shall be in safe operating condition and at all times shall be properly maintained and safely operated.

5.19.5 Contractor shall follow good construction practices at the Site. Contractor shall have a Person on Site, with the requisite training and experience, to observe on-Site activities with a view to, among other things, the potential need for additional worker protections.

5.19.6 Contractor shall keep the relevant part of the Site where the System is located and surrounding areas free from waste, garbage and debris. On or prior to the Final Completion Date, Contractor shall have removed from the Site all tools, trailers, surplus and waste materials (other than such as is required to perform Seasonally Constrained Work at a later time), and shall otherwise leave the System and the Site in neat and clean condition.

5.19.7 To the extent of any conflict arises between the requirements of this Section 5.19 and the HSSE Requirements, the HSSE Requirements will control.

5.20 Punch List. Prior to submittal of the initial Certificate of Substantial Completion, Contractor will prepare and deliver to Owner a written list setting forth all of the items of Work that remain to be performed in order to complete the Work; *provided* that such items of Work on such list shall only be items the noncompletion of which will not adversely affect the reliable or safe operation of, or the ability to perform testing of, the System in compliance with Applicable Laws, Applicable Permits and permits relevant to the System or the Site that are held in the name of the Owner (to the extent copies of such permits have been provided to Contractor in writing). Such list shall also state the proposed time limits within which Contractor will complete each of such remaining Work items. Within ten (10) Business Days of its receipt of such list, Owner will reasonably review the same and notify Contractor of any proposed revisions thereto. Owner's and Contractor's representatives will then meet and consult in good faith to agree upon the definitive, final version of such list (including the approved time limits within which Contractor will perform such remaining Work items) (such final list, as agreed to by Owner, the "Punch List").

5.21 Compliance Obligations. Contractor shall comply with the provisions contained in Schedule 5.21. Contractor will also use commercially reasonable efforts to adhere to and abide by any compliance obligations as may be mandated by the Project's offtaker as may be notified to Contractor by Owner in writing after execution of the offtake agreement.

5.22 Performance Bond. Within twenty-one (21) days following the Execution Date, Contractor will deliver to Owner a performance bond in the form attached hereto as Exhibit 13 issued by a surety reasonably acceptable to Owner with a penal sum in the amount of twenty percent (20%) of the Contract Price (the "Performance Bond"); *provided*, that if the Financing Parties require a higher penal sum for the bond as a condition to providing construction financing, and Owner does not have any other lender(s) willing to provide such financing at similar economic terms without a higher bond amount, the Parties will work in good faith to achieve the higher bond penal sum. The Performance Bond shall remain in full force and effect in accordance with the terms thereof. If Contractor fails to timely deliver the Performance Bond, Owner shall have the right to suspend its payment obligations under this Agreement until the Performance Bond is delivered.

5.23 Contractor Guaranty. Within three (3) days following the Execution Date, Contractor will provide an executed guaranty issued by Contractor Guarantor in the form attached hereto as Exhibit 15 (the "Contractor Guaranty"). The Contractor Guaranty shall remain in full force and effect in accordance with the terms thereof. If Contractor fails to timely deliver the Contractor Guaranty, Owner shall have the right to suspend its payment obligations under this Agreement until the Contractor Guaranty is delivered.

5.24 Site Inspections Contractor acknowledges that, as of the Execution Date, it has (a) performed a visual inspection of the Site, (b) reviewed the Site Information and (c) satisfied itself as to all matters regarding the Site as can reasonably be derived from such inspection and review; *provided*, *however*, that the foregoing shall not affect Contractor's rights to a Change Order for schedule relief under Section 14.4 with respect to any Excused Site Condition. In the

event Owner requests Contractor to perform further Site investigations after the Execution Date, the same shall be considered an Owner-requested Scope Change and Contractor shall be entitled to cost and schedule relief as provided in Section 14.2. Notwithstanding anything to the contrary in this Agreement, Contractor shall be responsible for all costs associated with and necessary to overcome any subsurface condition at the Site, including any Excused Site Condition, to complete the Work and the Contract Price includes all such costs. For the avoidance of doubt, Contractor's sole remedy with respect to any Excused Site Condition shall be limited to schedule relief as provided in Section 14.4(c)(ii)(B).

5.24.1 Contractor acknowledges and agrees that it has investigated and identified, or has caused its Affiliates to investigate and identify, the Adverse Third Party Rights in relation to the Site and shall be solely responsible (A) at its cost and expense, to use commercially reasonable efforts to terminate, satisfy, remove, or otherwise extinguish any such Adverse Third Party Rights (the "Termination of Adverse Third Party Rights"), or (B) to cause its Affiliate to, at such Affiliate's cost and expense, to use commercially reasonable efforts to cause the Termination of Adverse Third Party Rights.

5.24.2 In addition to the foregoing, and until the Termination of Adverse Third Party Rights as to all Adverse Third Party Rights, if at any time prior to the later of (i) five (5) years after the Substantial Completion Date and (ii) the expiration of the Covered Period, any Adverse Third Party Rights interest holder exercises or attempts to exercise any Adverse Third Party Rights and the exercise of such rights results in or requires the removal, relocation, or temporary or permanent displacement of any PV modules, racking, cabling, inverters or other System components (a "System Displacement Event"), Contractor shall, at its sole cost and expense (except to the extent such costs and expenses are covered pursuant to the Owner's Title Policy), (1) promptly present a bona fide plan to Owner demonstrating in reasonable detail the measures that Contractor has taken or will take to address, administer, or implement such System Displacement Event and the amount of time reasonably required for Contractor to complete such removal, relocation, or temporary or permanent displacement of any PV modules, racking, cabling, inverters or other System components in an expeditious manner and (2) upon Owner's acceptance of such plan, which such acceptance shall not be unreasonably withheld, conditioned, or delayed, perform all commercially reasonable rearrangements, relocations, and reinstallations of the affected portions of the System so as to complete or restore (in the event that the System Displacement Event occurs after Substantial Completion) the System in accordance with the requirements of this Agreement and to minimize the loss of energy generation and nameplate capacity (to the extent such exceeded the minimum requirements under this Agreement after Substantial Completion), consistent with Industry Standards and Applicable Permits. Such rearrangements, relocations, and reinstallations shall be performed in a manner intended to preserve at all times, to the maximum extent practicable, (i) the System's generating capacity, (ii) compliance with the Minimum Performance Guarantees and Performance Guarantees, and (iii) the operability, safety, and warranty status of the System to the greatest extent possible.

5.24.3 To the extent any System Displacement Event occurs, after Contractor had previously demonstrated achievement of the Performance Guarantee or Minimum Performance Guarantee (as applicable), to the extent that Owner accepts

Contractor's plan in accordance with Section 5.24.2 to perform such services, Contractor shall, at its sole cost and expense (except to the extent such costs and expenses are covered pursuant to the Owner's Title Policy), following the completion of any removal, relocation, or temporary or permanent displacement of any System components required in connection with such System Displacement Event, perform such testing, commissioning, and other activities as are necessary to demonstrate that the System, when restored, satisfies: (i) the conditions for Substantial Completion as set forth in Section 10.1; (ii) the Minimum Performance Guarantee; and (iii) the Performance Guarantee (subject to the Deadband). Such demonstration obligations shall be performed in accordance with the procedures and protocols set forth in Schedule 1B and shall be subject to Owner's and the Independent Engineer's reasonable review and approval.

5.24.4 Notwithstanding anything to the contrary in this Agreement (including Article 14), Contractor shall not be entitled to any Change Order, additional compensation, adjustment to the Contract Price, extension of the Project Schedule (including the Guaranteed Substantial Completion Date), or any other relief of any kind arising from or in connection with (a) the exercise or attempted exercise of any Adverse Third Party Rights by any third-party rights holder (or any Person claiming under such rights), (b) any System Displacement Event, or (c) any removal, relocation, or temporary or permanent displacement of any System components required in connection with any Adverse Third Party Rights, including any costs or expenses incurred by Contractor in connection with performing the obligations set forth in Sections 5.24.1, 5.24.2, and 5.24.3. Contractor acknowledges and agrees that the existence of any Adverse Third Party Rights, and the potential for a System Displacement Event, has been accounted for in the Contract Price and Project Schedule, and Contractor has satisfied itself as to the nature and extent that Adverse Third Party Rights exists or may be exercised through its inspection of the Site, public records, and review of the Site Information pursuant to Section 5.24. Provided however, that Contractor shall not have any obligation to incur any costs or expenses in excess of an aggregate of Three Million Dollars ($3,000,000.00) pursuant to its obligations set forth in this Section 5.24.2 through Section 5.24 together with Section 25.4 (except to the extent such costs and expenses are covered pursuant to the Owner's Title Policy).

5.24.5 For the avoidance of doubt, and notwithstanding anything to the contrary in this Agreement, Delay Liquidated Damages shall not be abated, suspended, or otherwise reduced by reason of the exercise or attempted exercise of any Adverse Third Party Rights, any System Displacement Event, or any removal, relocation, or temporary or permanent displacement of any System components required in connection with any Adverse Third Party Rights. To the extent that Substantial Completion had previously been achieved before the exercise of such Adverse Third Party Rights or any System Displacement Event, Contractor shall be obligated to complete the removal, relocation, or temporary or permanent displacement of any PV modules, racking, cabling, inverters or other System components and, upon restoration of the System, to satisfy: (i) the conditions for Substantial Completion as set forth in Section 10.1; (ii) the Minimum Performance Guarantee; and (iii) the Performance Guarantee (subject to the Deadband) pursuant to Section 5.24.3, all within the time set forth in the Owner accepted plan required by Section 5.24.2. In the event that Contractor does not complete the requirements of the immediate prior sentence within the time set forth in the Owner accepted plan required by Section

5.24.2, then, subject to Section 12.5, Contractor shall be liable for Delay Liquidated Damages for each and every day until Contractor completes such requirements. Contractor's obligation to pay Delay Liquidated Damages in accordance with Section 12.2 shall remain in full force and effect notwithstanding any obligation of Contractor to perform rearrangement, relocation, reinstallation, testing, or commissioning activities pursuant to Sections 5.24.2 and 5.24.3.

5.24.6 For the avoidance of doubt, unless and until Contractor has achieved the Termination of Adverse Third Party Rights as to all Adverse Third Party Rights, Contractor's obligations and responsibilities required by Sections 5.24.1 through 5.24.5 in respect of a System Displacement Event are continuing obligations that shall survive achievement of Final Completion and the expiration of the Warranty Period.

5.25 Compliance with Contractor Siting Board Obligations.

5.25.1 Contractor acknowledges that the System is subject to the Certificate of Environmental Compatibility and Public Need issued by the Ohio Power Siting Board to Owner ("OPSB Certificate") in Case No. 21-768-EL-BGN, as set forth in the Opinion and Order entered on September 21, 2023. Accordingly, Contractor shall, in performing the Work under this Agreement, comply with all requirements, conditions, and obligations set forth in the OPSB Certificate to the extent such requirements, conditions, and obligations relate to or affect the design, engineering, procurement, construction, testing, commissioning, or installation of the System or any component thereof.

5.25.2 Without limiting the generality of Section 5.25.1, Contractor specifically acknowledges and agrees that the obligations set forth in Exhibit 3 - Siting Board Obligations as the responsibility of Contractor (the "Contractor Siting Board Obligations") are applicable to the Work and Contractor shall perform and comply with the requirements contained therein at Contractor's sole expense.

5.25.3 To the extent not otherwise submitted and/or filed prior to the Execution Date, Contractor shall prepare, submit to Owner for review and approval (such approval not to be unreasonably withheld, conditioned, or delayed), and, unless otherwise directed by Owner, file with the Ohio Power Siting Board (to the extent required by the OPSB Certificate) all plans, reports, studies, drawings, and other documentation required by the OPSB Certificate, including but not limited to:

(a) Final detailed engineering drawings and specifications;*

(b) Geotechnical reports and subsidence mitigation plans;*

(c) Unanticipated Discovery Plans;*

(d) Vegetation management plans;

(e) Landscape and lighting plans;

(f) Transportation management plans;

(g) Spill prevention and response plans;

(h) As-built drawings and specifications; and

(i) Any other documentation required under the OPSB Certificate that relates to the design, construction, or installation of the System.

5.25.4 Contractor shall cooperate with Owner and provide Owner with all information, documentation, and assistance reasonably necessary to enable Owner to comply with Owner's obligations under the OPSB Certificate, including those obligations that are not directly related to the Work but that require information or documentation regarding the Work.

5.25.5 Contractor shall attend and participate in all preconstruction conferences with Ohio Power Siting Board staff as required under the OPSB Certificate either on behalf of or together with Owner and shall ensure that such Subcontractors whose Work is impacted by the OPSB Certificate attend such conferences as required, *provided* that any such preconstruction conferences are scheduled in coordination with Contractor.

5.25.6 If any requirement of the Contractor Siting Board Obligations conflicts with or is inconsistent with any provision of this Agreement (including the Schedules and Exhibits), the Parties shall work together in good faith to resolve such conflict; provided, however, that in all cases the more stringent requirement shall apply unless otherwise directed by Owner.

5.25.7 Contractor shall promptly notify Owner in writing of any actual or potential non-compliance with the OPSB Certificate of which Contractor becomes aware, including any notice of violation or alleged violation received from the Ohio Power Siting Board, Ohio Power Siting Board staff, or any other Governmental Authority relating to the OPSB Certificate.

5.25.8 Contractor's obligations under this Section 5.25 shall survive Substantial Completion and Final Completion to the extent necessary for Contractor to complete any outstanding Contractor Siting Board Obligations that relate to the Work, including the filing of as-built specifications and any required post-construction documentation.

5.25.9 Contractor shall indemnify, save harmless and defend the Owner Indemnitees from and against, and pay, any and all Losses incurred by any Owner Indemnitee in connection with or arising from any claim, demand or cause of action of every kind and character in relation to any damage or disturbance of any field tile drainage systems and soils at the Site caused by Contractor.

5.26 Compliance with Roadway Use Agreement.

5.26.1 Contractor acknowledges that the Project requires use of certain public roadways subject to that certain Roadway Use, Repair and Maintenance Agreement by and between Bloomfield Township and Owner, dated March 13, 2026, attached as

Schedule 29 (the "Roadway Agreement"). Accordingly, Contractor shall, in performing the Work under this Agreement, comply with all requirements, conditions, and obligations set forth in the Roadway Agreement to the extent such requirements, conditions, and obligations relate to or affect the design, engineering, procurement, construction, or installation of the System or any component thereof, or the use of the roadways identified in Appendix A to the Roadway Agreement (the "Designated Roads").

5.26.2 Without limiting the generality of Section 5.26.1, Contractor specifically acknowledges and agrees that it shall, at its sole expense:

(a) Prior to commencement of any improvement to the Designated Roads or use of such Designated Roads, videotape, photograph, and/or otherwise document in writing the existing condition of the Designated Roads and deliver the same to Owner and Bloomfield Township for review and approval (and shall take any further actions as reasonably necessary to obtain approval of the same);

(b) Determine whether any Designated Roads require any modifications or permanent improvements as are reasonably necessary to accommodate the use of the Designated Roads by Contractor, Subcontractor, and any supplier of Owner Equipment, including the widening of certain roads, the strengthening and/or spanning to existing culverts and bridges, increasing any turning radius, or corner or intersection widenings, improvements to any intersections or improvements, and other improvements and modifications reasonably necessary to accommodate the heavy equipment and materials to be transported on the Designated Roads and the anticipated number of personnel performing the Work ("Roadway Improvements);

(c) Construct all Roadway Improvements in time to support the Project Schedule and to comply with all applicable engineering standards and submit stamped engineering drawings to Bloomfield Township prior to commencement of any Roadway Improvements;

(d) Be responsible for the cost of all maintenance and repairs reasonably necessary to allow for the continued use of the Designated Roads for the duration of the Work until Final Completion;

(e) Be responsible for the cost of the removal of all Roadway Improvements and all restoration and repairs reasonably necessary to put the Designated Roads in the condition that existed immediately prior to the Project and in accordance with the documented conditions (unless otherwise directed by Bloomfield Township);

(f) Use reasonable efforts to restrict all vehicles related to the Work to the Designated Roads;

(g) Use reasonable efforts to ensure that all vehicles related to the Work abide by all local, state, and federal speed limits and traffic laws and comply with all reasonable requests of Bloomfield Township to take necessary precautions to protect the traveling public, including the immediate removal of dirt, mud, and debris carried onto the Designated Roads;

(h) Upon completion of the Project, inspect the Designated Roads with Bloomfield Township, prepare a list of damages to be repaired, make all necessary repairs to return the Designated Roads to substantially the same condition as they were prior to the Project, and provide written notice of completion to Bloomfield Township;

(i) Reimburse Bloomfield Township for any expenses incurred and sought from Contractor or Owner in relation to the Roadway Agreement or this Section 5.26; and

(j) Post a performance bond in favor of Bloomfield Township as required by the Roadway Agreement to cover the costs of any damages made to the Designated Roads.

5.26.3 Contractor shall cooperate with Owner and provide Owner with all information, documentation, and assistance reasonably necessary to enable Owner to comply with Owner's obligations under the Roadway Agreement.

5.26.4 Contractor shall promptly notify Owner in writing of any actual or potential non-compliance with the Roadway Agreement of which Contractor becomes aware, including any notice of violation or alleged violation received from Bloomfield Township or any other Governmental Authority relating to the Roadway Agreement.

5.26.5 Contractor's obligations under this Section 5.26 shall survive Substantial Completion and Final Completion to the extent necessary for Contractor to complete any outstanding obligations under the Roadway Agreement or this Section 5.26 that relate to the Work, including post-construction repairs and restoration of the Designated Roads.

5.26.6 Contractor shall indemnify, save harmless and defend the Owner Indemnitees from and against, and pay, any and all Losses incurred by any Owner Indemnitee in connection with or arising from any claim, demand or cause of action of every kind and character arising from Contractor's breach of or failure to comply with the requirements of the Roadway Agreement and this Section 5.26.

6. Owner Responsibilities.

6.1 Access. Subject to any restrictions imposed by the Ground Lease, Owner shall provide Contractor with all necessary access, on a 24x7 basis, to the Site for completion of the Work in accordance herewith. Notwithstanding the foregoing, Contractor shall be responsible for obtaining all necessary access to any properties (other than the Site) on or through which the Transmission Line is to be constructed.

6.2 Compliance with Laws. Owner shall perform its obligations hereunder in accordance with Applicable Laws, including but not limited to all Environmental Laws.

6.3 Inspection. All Work performed by Contractor or its Subcontractors and all Equipment and the Owner Equipment shall be subject to inspection by Owner, but such right of inspection, or such inspection, of the Work or Equipment or Owner Equipment shall not relieve Contractor of its responsibility in accordance with the provisions hereof for the performance of the Work or otherwise with respect to the Equipment and the Owner Equipment. Owner shall ensure,

in coordination with Contractor, that any inspections by Owner do not unreasonably interfere with or delay Contractor's performance under this Agreement. In its sole discretion, Contractor may elect to accompany Owner during such inspection(s). Owner shall provide Contractor a copy (or, in Owner's sole discretion, a summary) of any report prepared by Owner for its use resulting from such inspections; *provided* that Owner will not be obligated to provide any information that constitutes attorney work product or is subject to the attorney-client privilege.

6.4 Owner Guaranty. Within three (3) days following the Execution Date, Owner will provide an executed guaranty issued by Owner Guarantor in the form attached hereto as Exhibit 14 (the "Owner Guaranty"). The Owner Guaranty shall remain in full force and effect in accordance with the terms thereof. The Parties acknowledge that the Owner Guaranty will automatically terminate upon the occurrence of the following events: (capitalized terms in items (a) – (c) not otherwise defined in this Agreement are as defined in the Owner Guaranty): (a) the date that the Maximum Guaranteed Amount is reduced to zero, (b) such time at which the Owner has no further Guaranteed Obligations and any claims made with respect to the Guaranteed Obligations prior to such date have been satisfied in full, and (c) the date that Owner provides to Contractor written confirmation that financing for the Project is secured and available to be drawn upon by Owner to pay Contractor the Contract Price (or remaining portion thereof), such written confirmation to Contractor to include Owner confirmation that such financing provides sufficient coverage of Owner's payment obligations with respect to the Contract Price under the EPC Agreement. If Owner fails to timely deliver the Owner Guaranty, Contractor shall have the right to suspend performance of its obligations under this Agreement until the Owner Guaranty is delivered.

6.5 Owner Equipment. Owner shall purchase and procure the Owner Equipment and arrange and pay the costs of transporting and delivering the Owner Equipment to the Site, all at Owner's sole cost and expense, in accordance with the Owner Equipment Delivery Schedule. Owner shall not deliver any Owner Equipment to the Site in excess of the quantities of Owner Equipment required to be delivered as of any applicable date as set forth in the Owner Equipment Delivery Schedule or more than seven (7) days in advance of any such date, in any case, without the prior written consent of Contractor (which consent shall not be unreasonably withheld, conditioned or delayed). Any failure by Owner to abide by the foregoing sentence will be treated as an Owner Delay and Section 14.4 shall apply. If requested by Contractor, Owner will use commercially reasonable efforts to deliver Owner Equipment earlier than the dates as set forth in the Owner Equipment Delivery Schedule, but Contractor recognizes that Owner may not succeed in those efforts and that Owner is not obligated to expend additional funds in connection with the same.

6.6 Charges for Interconnection System Improvements. The Parties acknowledge that under the GIA Owner is responsible to pay PJM and/or Transmission Owner for their costs to engineer, procure, construct and install additional interconnection facilities or other improvements and related equipment (other than the Interconnection Facilities) and/or upgrade existing interconnection facilities, in each case, in order to accommodate interconnection of the System with the Grid ("Interconnection System Improvements"). The costs to complete the Interconnection Facilities under the BUS EPC Agreement are not to be included as costs of Interconnection System Improvements. As between the Parties, Owner will be responsible to make required payments to PJM or Transmission Owner (as applicable) for such Interconnection System

Improvements in accordance with the requirements of the GIA; however, to the extent that the aggregate of documented payments of such costs (i) exceed one million seven hundred eighty two thousand eight hundred fourteen and 00/100 dollars ($1,782,814), Contractor will be liable to reimburse Owner for fifty percent (50%) of such excess costs and (ii) are less than such amount, Owner shall share fifty percent (50%) of such savings. Owner may set off such owed reimbursement amount against any amount owed to Contractor under this Agreement. To the extent the reimbursement amount exceeds amounts owed by Contractor, then Owner will invoice Contractor for such reimbursement and Contractor will pay such invoice within thirty (30) days of its receipt.

6.6.1 Contractor acknowledges that Section 11.2.3.3 of Schedule L of the GIA states that "[a]ll work performed by or on behalf of the Project Developer shall be conducted by contractors, and using equipment manufacturers or vendors, that are listed on the Transmission Owner's List of Approved Contractors." Contractor will abide by this requirement with respect to any Interconnection Facilities and Network Upgrades (as those terms are defined in the GIA) to be constructed by Contractor under this Agreement and included in the Scope of Work. The Parties acknowledge that as of the Execution Date Contractor itself is not listed on the "List of Approved Contractors" (as defined in the GIA) but is making efforts to be named on that list. Contractor will indemnify, defend and hold Owner harmless from and against all claims and Losses arising from the fact that Contractor is not listed on the List of Approved Contractors. If at any time Transmission Owner notifies Owner that it is in breach of the GIA as a result of Contractor's not being listed on the List of Approved Contractors, Contractor will at its expense take all actions necessary or appropriate to support and effectuate Owner's efforts to cure such alleged breach, including transferring all Subcontracts to Owner and thereafter undertaking all obligations of Contractor under this Agreement in the capacity as Owner's construction manager and/or agent (as determined by Owner) pursuant to a written agreement reasonably acceptable to the Parties.

6.6.2 Contractor shall construct any Interconnection Facilities or Network Upgrades (as those terms are defined in the GIA) included within the Scope of Work, including, specifically, the Transmission Line and Substation, under this Agreement in conformance with conditions and obligations set forth in the GIA.

6.7 Grid Connection and Backfeed. If a BUS EPC Termination for Convenience has occurred, then Owner will thereafter be responsible for providing a connection to the Grid and backfeed power for energization and commissioning work by the applicable date(s) as set forth in the Project Schedule, and a delay in completing the same will be an Owner Delay.

7. Commencement of Work; Project Schedule.

7.1 Notice to Proceed. Execution of this Agreement constitutes the issuance by Owner of Notice to Proceed with the Work.

7.1.1 Notwithstanding the foregoing, the Parties acknowledge and agree that certain portions of the Work commenced on or before December 14, 2025, through Purchase Order #DIX2026-0101 (the "Early Works PO") for the completion of those portions of Work specified therein. All Work completed under the Early Works PO shall be deemed as Work completed under this Agreement and all

payments made in relation to the Early Works PO made pursuant to Section 19.2 shall be counted as payments towards the Contract Price.

7.2 Project Schedule. Within fifteen (15) Business Days after the Execution Date, Contractor will provide to Owner a draft version of a detailed, "Level 3" schedule that will detail the planned progress for the timely completion of the Work (including the achievement of Substantial Completion by the Guaranteed Substantial Completion Date) based upon the "Level 1" schedule set forth in Schedule 1A (as adjusted by any Change Order described in Section 7.1); *provided* that such proposed draft update of the Project Schedule shall not modify the Guaranteed Substantial Completion Date or the date of any Major Milestones included in the "Level 1" schedule set forth in Schedule 1A (as adjusted by any Change Order described in Section 7.1) unless otherwise consented to by Owner in writing. Such draft update of the Project Schedule shall contain Major Milestones and include details to support all major engineering, procurement, construction, commissioning and testing activities with respect to the System. Within ten (10) Business Days of Owner's receipt of such draft update of the Project Schedule, Owner shall notify Contractor of its agreement thereto or any comments Owner may have; *provided* that Owner's comments to the proposed draft update of the Project Schedule shall not modify the Guaranteed Substantial Completion Date or the date of any Major Milestones included in the "Level 1" schedule set forth in Schedule 1A (as adjusted by any Change Order described in Section 7.1). The Parties will work diligently to agree upon the final version of such "Level 3" schedule, and once agreed will document the same in a mutually acceptable amendment to this Agreement or a mutually acceptable Change Order, and thereafter the same shall be the "Project Schedule," which may only be altered by Change Order; *provided* that if Owner does not respond or makes no comments within such ten (10) Business Day-period, then Owner shall be deemed to have accepted and approved such proposed draft update of the Project Schedule and the same shall thereafter be the "Project Schedule", which may only be altered by Change Order. Without limiting any of the foregoing, the Project Schedule shall meet the following requirements: (a) be suitable for monitoring the progress of the Work and (b) be in sufficient detail to demonstrate adequate planning for and orderly completion of the Work. Without prejudice to Section 12.2.2, Contractor shall perform the Work in accordance with the Project Schedule.

8. Mechanical Completion and Energization.

8.1 Conditions. "Mechanical Completion" shall occur upon satisfaction of the following conditions:

8.1.1 "Transmission Owner Acceptance" (as that term is defined in the BUS EPC Agreement) has occurred under the BUS EPC Agreement; *provided*, that if a BUS EPC Termination for Convenience has occurred, then this condition will not apply;

8.1.2 the System shall be mechanically, electrically, and structurally constructed and completed in accordance with all requirements applicable thereto as specified in this Agreement (it being agreed, for purposes of this Section 8.1.1, that the "System" shall exclude the DAS/SCADA; *provided* that (a) such exclusion shall not adversely affect safe operation of the System, and (b) Contractor shall continue to use commercially reasonable efforts to complete the construction, completion and commissioning of the DAS/SCADA as soon as practicable);

8.1.3 the System shall be mechanically, electrically and functionally installed and ready for commissioning, Energization (but has not yet achieved Energization), adjustment and testing on a safe and reliable basis without damage to equipment or personnel;

8.1.4 Contractor shall have completed the following tests, at a minimum, in accordance with the requirements of this Agreement: (i) insulation testing of all MV underground cables, (ii) DC wire test to include insulation testing, (iii) DC voltage testing, and (iv) DC polarity testing of 100% of the System; *provided*, *however*, transformer testing (Transformer Turns Ratio (TTR), winding resistance, insulation resistance, DGA oil sample) is specifically excluded; and

8.1.5 Contractor shall have in accordance with the requirements of this Agreement (a) completed the engineering, design, assembly, installation and construction of all components comprising the Substation, and all relay and protection testing has been completed thereupon; (b) completed the engineering, design, assembly, installation and construction of all components comprising the Transmission Line; (c) interconnected the Transmission Line in accordance with Generation Interconnection Agreement and the other requirements of this Agreement (but without causing Energization to occur); (d) successfully completed all functional testing on the Substation and Transmission Line (which excludes any tests that require Energization to have occurred or that would cause Energization to occur); and (e) the Substation and Transmission Line are ready for (but have not yet achieved) Energization; and

8.1.6 Owner has countersigned the Certificate of Mechanical Completion as described in Section 8.3.

8.2 Control; Operations. Upon the System having achieved Mechanical Completion, the Parties acknowledge that, without limiting in any way Contractor's obligations under Section 13.2, Owner shall have taken title to the System pursuant to Section 13 but Contractor shall continue to control operation of the System. Contractor acknowledges that such operation will be limited by the requirements of Section 8.5.

8.3 Certificate of Mechanical Completion. When Contractor believes that it has achieved the requirements of Mechanical Completion (except the condition in Section 8.1.6), Contractor shall notify Owner in writing with a Certificate of Mechanical Completion, substantially in the form of Exhibit 4. Promptly thereafter, Owner shall conduct such investigations and inspections as it deems necessary or appropriate to determine if Mechanical Completion has in fact been achieved. Within five (5) Business Days after its receipt of Contractor's notice, Owner shall notify Contractor either that (a) Mechanical Completion has been achieved and countersign and deliver to Contractor the Certificate of Mechanical Completion, or (b) Mechanical Completion has not been achieved, stating in reasonable detail the reasons therefor. In the event Owner provides timely written notice that Mechanical Completion has not been achieved, Contractor shall, at its sole cost and expense, insofar as such failure to achieve Mechanical Completion is due to the performance, or lack of performance, of the Work by Contractor, immediately correct or remedy the defects, deficiencies and other conditions which

prevent Mechanical Completion. The foregoing procedures shall be repeated until the date Mechanical Completion has in fact been achieved. If Owner fails to accept or reject Contractor's written notice of a Certificate of Mechanical Completion within the aforesaid five (5) Business Day period, then (i) such failure shall constitute an Owner Delay and Section 14.4 shall apply, and (ii) Owner will be obligated to make the associated milestone payment for Mechanical Completion (as set forth in the Milestone Payment Schedule) as if it had accepted the Certificate of Mechanical Completion as of the date it was delivered. The foregoing shall not relieve Contractor of its obligation to achieve Mechanical Completion in accordance with this Agreement.

8.4 Mechanical Completion Date. The "Mechanical Completion Date" shall be the date on which Owner countersigns the Certificate of Mechanical Completion submitted by Contractor to Owner; *provided*, *however*, that if within five (5) Business Days after its receipt of a Certificate of Mechanical Completion, Owner notifies Contractor that Mechanical Completion has been achieved and countersigns such Certificate of Mechanical Completion "as submitted" by Contractor to Owner, with no additional Work having been performed by Contractor following the submittal of such Certificate of Mechanical Completion, the Mechanical Completion Date shall be the date on which Contractor submitted such Certificate of Mechanical Completion to Owner. Any Disputes between the Parties regarding whether or not Mechanical Completion has been achieved shall be resolved in accordance with Article 30.

8.5 Energization. When Contractor believes it is approximately thirty (30) days from achieving Mechanical Completion, and at approximately ten (10) Business Days from achieving Mechanical Completion, it will in each instance notify Owner in writing of the date that Contractor anticipates achieving Mechanical Completion. Contractor acknowledges that such notices are important for Owner, as they will support its financing of the System. Notwithstanding anything herein that may be to the contrary, unless and until Owner delivers to Contractor a notice in the form set forth in Exhibit 12 (the "Energization Notice to Proceed"), Contractor shall not (a) perform Energization on the System or any portion thereof, (b) allow any part of the System to receive any back-feed power, (c) close the disconnect switches for the System (which shall be and remain open until after the Energization Notice to Proceed has been received by the Contractor), (d) allow any electric power to be transmitted from any portion of the System through the Substation or the Transmission Line, or (e) begin to synchronize the System with the Grid. Owner shall be responsible for obtaining all permissions, approvals and permits required to energize the System, and Owner's failure to issue the Energization Notice to Proceed within ten (10) Business Days after the Mechanical Completion Date for any reason other than Contractor's breach of its obligations under this Agreement shall constitute an Owner Delay. CONTRACTOR EXPRESSLY ACKNOWLEDGES THAT ITS UNDERTAKING ANY OF THE ACTIONS SET FORTH IN ITEMS (a) THROUGH (e) PRIOR TO RECEIPT OF AN ENERGIZATION NOTICE TO PROCEED MAY RESULT IN SIGNIFICANT ECONOMIC DAMAGE TO OWNER, FOR WHICH OWNER RETAINS ALL RIGHTS FOR RECOVERY AVAILABLE TO IT UNDER LAW AND EQUITY AND THE PARTIES EXPLICITLY AGREE THAT DAMAGES ARISING FROM CONTRACTOR UNDERTAKING ANY SUCH ACTIONS PRIOR TO RECEIPT OF ENERGIZATION NOTICE TO PROCEED, IF ANY, SHALL NOT BE CONSIDERED CONSEQUENTIAL DAMAGES HEREUNDER, BUT SHALL BE SUBJECT TO THE MONETARY LIMITATION OF LIABILITY SET FORTH IN SECTION 26.3. Owner shall be

entitled to market and receive revenue from all energy produced by the System (if any) from and after Energization.

9. Performance Testing.

9.1 Performance Tests. Subject to Section 8.5, as a condition of Substantial Completion, Contractor shall start up and commission the System and perform the Performance Tests in conformance with the requirements and protocols set forth in Schedule 1B. Contractor's technical personnel (or, when applicable, the installer and/or manufacturer's personnel, with Contractor's supervision) shall operate the System during the Performance Tests, although Owner (and Owner's personnel, agents, representatives, consultants and invitees, including the Financing Parties) shall be entitled to be present during any Performance Tests. Contractor shall provide Owner and the Independent Engineer with at least five (5) Business Days' prior written notice (unless Owner agrees to a shorter period) of the commencement of any Performance Tests in order to permit Owner's Representative and the Independent Engineer to coordinate attendance and observation of such Performance Tests.

9.2 Minimum Performance Guarantee. Contractor guarantees that the System will be capable at Substantial Completion of operating at a capacity that is no less than the Minimum Performance Guarantee.

9.3 Performance Test Interference. In the event the System is fully functioning and has otherwise met all requirements of Substantial Completion but Contractor is unable, despite its good faith commercially reasonable efforts, to successfully complete any Performance Test(s) for (a) a period of five (5) Business Days thereafter solely due to PJM or Transmission Owner interconnection limits or PJM's or Transmission Owner's inability to accept power at the required levels (presuming compliance by Contractor with the requirements of the Generation Interconnection Agreement) or (b) Owner Equipment Defects, then, in either case, the same shall be treated as an Owner Delay and Section 14.4 will apply. Without limiting the foregoing, if, as described in the preceding sentence, Contractor is unable to successfully complete any Performance Test(s) and such inability is solely due to the foregoing reasons and extends beyond the date that is sixty (60) days after the Guaranteed Substantial Completion Date (without taking into account any extension thereof due to such Owner Delays), then Owner shall be obligated to make the associated milestone payment for Substantial Completion (as set forth in the Milestone Payment Schedule) and release the Retainage (less the Punch List Holdback Amount) in accordance with Section 19.8; *provided* that Contractor shall be responsible for completing the Performance Test(s) in accordance with this Agreement as promptly as reasonably practicable upon receipt of written notice from Owner that the applicable PJM, Transmission Owner, or Owner Equipment Defect has been resolved such that Contractor may proceed with completion of the Performance Test(s).

9.4 Satisfaction of Minimum Performance Guarantee.

(a) As soon as practicable following successful completion of any Performance Tests, Contractor shall submit to Owner's Representative and the Independent Engineer the raw data and completed results of such Performance Tests. By submitting the foregoing, Contractor represents to Owner that the raw data and completed results are accurate and

the Performance Tests have been conducted in accordance with the applicable requirements of this Agreement. Within ten (10) Business Days after its receipt thereof, Owner shall notify Contractor whether or not it agrees that the Minimum Performance Guarantee has been satisfied, stating, if it disagrees, in reasonable detail the reasons therefor. In the event that Owner provides timely written notice that the Minimum Performance Guarantee has not been satisfied, Contractor shall, after receipt of such notice and reasonably promptly, but in no event later than thirty (30) days thereafter, adjust or modify any of the Work and take all corrective actions so that the System may successfully achieve the Minimum Performance Guarantee and repeat the Performance Tests, without prejudice, however, to any of Owner's rights and remedies in accordance with this Agreement. If the System cannot be corrected within thirty (30) days due to the unavailability of equipment or material necessary for the correction of the System and the Parties agree to a plan in writing for corrective action proposed by Contractor including a projected timeline in order to meet the Minimum Performance Guarantee, then Contractor shall be allowed the time in accordance with the agreed upon corrective action plan to adjust or modify any of the Work so that the System may successfully achieve the Minimum Performance Guarantee and repeat the Performance Tests. Nothing in the foregoing shall prejudice any obligation that Contractor may have to pay Delay Liquidated Damages due to any failure to achieve Substantial Completion by the Guaranteed Substantial Completion Date.

(b) Notwithstanding the foregoing, if the Minimum Performance Guarantee is not satisfied within such thirty (30) day period or other agreed upon time limit, Owner shall have the right, at its sole discretion and upon written notice to Contractor, to require Contractor to continue to take all actions and measures necessary to improve the performance of the System to achieve the Minimum Performance Guarantee.

(c) If any Dispute regarding the satisfaction of the Minimum Performance Guarantee arises, either Party shall be entitled to submit the Dispute to dispute resolution pursuant to Article 30; *provided*, *however*, that, pending resolution of any such Dispute, Contractor shall continue to take such actions as Owner may require in its notice. Anything in this Section 9.4 to the contrary notwithstanding, Contractor shall not be deemed in breach hereof or obligated to pay Delay Liquidated Damages for resulting delays in achieving Substantial Completion to the extent that the failure to satisfy the Minimum Performance Guarantee is due to an Owner Equipment Defect.

9.5 Satisfaction of Performance Guarantee. Following the completion of the Performance Test, if the System has achieved the Minimum Performance Guarantee but has not achieved the Performance Guarantee (subject to the Deadband), Contractor shall have the right to proceed with one of the following options: (a) perform corrective Work necessary to achieve the Performance Guarantee (subject to the Deadband) and conduct up to five (5) additional Performance Tests in an effort to achieve the Performance Guarantee (subject to the Deadband) or (b) pay the Capacity Liquidated Damages (and as contemplated in clause (b)(ii) of Section 10.1.2). If, as a result of such corrective Work, the additional Performance Tests demonstrate the System has achieved the Performance Guarantee (subject to the Deadband), then Contractor shall not be liable for any Capacity Liquidated Damages. If after the fifth (5th) additional Performance Test, or if Contractor decides to cease further corrective Work or additional Performance Tests, the System has not achieved the Performance Guarantee (subject to the Deadband), then Contractor

shall pay the applicable Capacity Liquidated Damages based upon the results of the average of the Performance Test(s) performed by Contractor. Notwithstanding the foregoing, Contractor's election to perform corrective Work as described in clause (a) of this Section 9.5 shall not relieve Contractor of its obligation to pay Delay Liquidated Damages as applicable and to the extent required under Section 12.3. Anything in this Section 9.5 to the contrary notwithstanding, (i) Contractor shall not be liable for any Capacity Liquidated Damages if the System achieves performance that is within two and one-half percent (2.5%) of the Performance Guarantee (the "Deadband") and (ii) Contractor's liability for Capacity Liquidated Damages shall be reduced to the extent the capacity shortfall resulting in the failure to satisfy the Performance Guarantee beyond the Deadband would not have occurred but for an Owner Equipment Defect.

10. Substantial Completion.

10.1 Substantial Completion. "Substantial Completion" of the System shall occur upon the satisfaction of all of the following conditions:

10.1.1 Mechanical Completion shall have been achieved;

10.1.2 (a) the System shall have satisfied the Minimum Performance Guarantee and (b) either (i) the System shall have satisfied the Performance Guarantee (subject to the Deadband) or (ii) Contractor shall have paid the applicable Capacity Liquidated Damages in accordance with Section 9.5;

10.1.3 the System shall have proven capable of delivering energy on a sustained basis without experiencing any abnormal or unsafe operating conditions on any interconnected sub-system;

10.1.4 the System (including the DAS/SCADA) shall be (a) mechanically, electrically, and structurally constructed and completed and commissioned in accordance with the commissioning procedures in Schedule 8.1 and all other requirements applicable thereto in accordance with this Agreement, (b) interconnected to the Grid in accordance with the requirements of the Generation Interconnection Agreement, and (c) generating verifiable, billing quality electricity production data, as evidenced by the DAS/SCADA;

10.1.5 Contractor shall have provided a certificate substantially in the form of Exhibit 6 to Owner stating that:

(a) all Applicable Permits have been obtained and maintained as required by Applicable Law, and, to the extent applicable to achieve Final Completion, are in full force and effect;

(b) Contractor has provided the training to Owner's personnel required pursuant to Section 5.6; and

(c) except with respect to the Owner Equipment or as otherwise authorized by Owner in writing, all Work furnished or delivered by Contractor and all materials and tools used by Contractor on the Site contain zero percent (0%)

asbestos, refractory ceramic fibers, lead, methylene chloride or polychlorinated biphenyls;

10.1.6 Contractor shall have provided to Owner a list of the System's major equipment, including the make and model number of all PV modules, inverters, racking, step-up transformers, switchgear and solar irradiation and meteorological monitoring equipment;

10.1.7 Contractor shall have delivered to Owner a final version of the Spare Parts List required pursuant to Section 5.8;

10.1.8 the Punch List shall have been agreed upon and accepted in writing by Contractor and Owner as described in Section 5.20, and a copy of the Punch List will be attached to the Certificate of Substantial Completion;

10.1.9 Contractor shall have provided to Owner (a) substantially complete drafts of an operation and maintenance manual for the System, (b) substantially complete drafts of as-built drawings depicting the System as of the date of the submission of the Certificate for Substantial Completion, the Transformer Substantial Completion Work Logs, and (c) any other Documentation set forth in Schedule 1C that is required to be delivered at Substantial Completion;

10.1.10 Contractor shall have provided to Owner a breakdown by category for purposes of determining ITC-eligible and non-ITC-eligible costs (excluding the Owner Equipment) in respect of the Contract Price, substantially in the form of Schedule 26;

10.1.11 Contractor shall have submitted to Owner all duly executed conditional lien waivers and releases from Contractor and each Covered Subcontractor, in the form of Exhibit 8;

10.1.12 Contractor has paid all accrued and undisputed Delay Liquidated Damages;

10.1.13 Contractor shall have provided to Owner copies of all Subcontracts with Major Subcontractors as required under Section 4.2(b);

10.1.14 Contractor shall have delivered to Owner all special tools (if any) that are required by the manufacturers of Equipment to operate and maintain the same;

10.1.15 Contractor shall have assigned to Owner the Assigned Warranties as contemplated by Section 4.2(d); and

10.1.16 Owner shall have countersigned the Certificate of Substantial Completion as described in Section 10.2.

10.2 Certificate of Substantial Completion. When Contractor believes that it has achieved the conditions for Substantial Completion (other than the condition in Section 10.1.16), Contractor shall notify Owner in writing with a Certificate of Substantial Completion, substantially

in the form of Exhibit 5. Promptly thereafter, Owner shall conduct such investigations and inspections as it deems necessary or appropriate to determine if Substantial Completion has in fact been achieved. Within ten (10) Business Days after its receipt of Contractor's notice, Owner shall notify Contractor either that (a) Substantial Completion has been achieved and countersign and deliver to Contractor the Certificate of Substantial Completion, or (b) Substantial Completion has not been achieved, stating in reasonable detail the reasons therefor. In the event that Owner provides timely written notice that Substantial Completion has not been achieved, Contractor shall, at its sole cost and expense, insofar as such failure to achieve Substantial Completion is due to the performance, or lack of performance, of the Work by Contractor, immediately correct or remedy the defects, deficiencies and other conditions which prevent Substantial Completion. The foregoing procedures shall be repeated until Substantial Completion has in fact been achieved. Following Substantial Completion, Contractor and Owner shall from time to time mutually update the Punch List to remove items as and when they are completed. If Owner fails to accept (and countersign) or reject Contractor's written notice of a Certificate of Substantial Completion within the aforesaid ten (10) Business Day period, then (i) such failure shall constitute an Owner Delay and Section 14.4 shall apply, and (ii) Owner will be obligated to make the associated milestone payment for Substantial Completion (as set forth in the Milestone Payment Schedule) as if it had accepted the Certificate of Substantial Completion as of the date it was delivered. The foregoing shall not relieve Contractor of its obligation to achieve Substantial Completion in accordance with this Agreement.

10.3 Substantial Completion Date. The "Substantial Completion Date" shall be the date on which Owner countersigns the Certificate of Substantial Completion submitted by Contractor to Owner; *provided*, *however*, that if within ten (10) Business Days after its receipt of a Certificate of Substantial Completion, Owner notifies Contractor that Substantial Completion has been achieved and countersigns such Certificate of Substantial Completion "as submitted" by Contractor to Owner, with no additional Work having been performed by Contractor following the submittal of such Certificate of Substantial Completion, then the Substantial Completion Date shall be the date on which Contractor submitted such Certificate of Substantial Completion to Owner. Any Disputes between the Parties regarding whether or not Substantial Completion has been achieved shall be resolved in accordance with Article 30.

10.4 Acceptance. Acceptance by Owner of the Certificate of Substantial Completion shall not constitute acceptance by Owner of defective or otherwise non-conforming Work or in any way operate to release Contractor from any obligation under this Agreement Contract (other than the obligation of Contractor to achieve Substantial Completion).

11. Final Completion.

11.1 Final Completion. "Final Completion" shall occur upon the satisfaction of all of the following conditions:

11.1.1 Substantial Completion shall have been achieved;

11.1.2 all items on the Punch List, with the exception of any Seasonally Constrained Work, shall have been completed or otherwise resolved by mutual agreement of the Parties;

11.1.3 Contractor shall have provided Owner with the final versions in electronic formats of an operation and maintenance manual and final as-built drawings for the System including updates depicting all changes or installations made since Substantial Completion, together with all other Documentation required to be delivered to Owner by Contractor pursuant to this Agreement and Schedule 1C and not otherwise delivered in final form to Owner in connection with the achievement of Substantial Completion, including other test and inspection certificates and reports applicable to the Work;

11.1.4 Contractor shall have removed all of its construction equipment, material and support personnel from the Site (other than such as is required to perform Seasonally Constrained Work at a later time), and the Site shall be free of construction debris;

11.1.5 Contractor shall have provided Owner with redacted invoices or other documentation evidencing Contractor's proof of purchase of the Equipment and shall have submitted completed warranty cards for the Equipment to the original equipment manufacturers, as applicable (for clarity, excluding in each case the Owner Equipment);

11.1.6 Contractor shall have provided Owner a certification that all invoices that include sales and use taxes have been paid and that Contractor and all of its Subcontractors have no outstanding claims or expenses relating to such sales and use taxes;

11.1.7 Contractor shall have provided Owner with duly executed conditional lien waivers and releases from Contractor and each Covered Subcontractor (and any other Subcontractor who performed Work at the Site, to the extent obtained by Contractor, after reasonable efforts), in the form of Exhibit 10;

11.1.8 Contractor shall have removed all Roadway Improvements and restored or repaired the Designated Roads to the condition that existed immediately prior to the Project in accordance with Section 5.26;

11.1.9 Contractor shall have delivered to Owner all O&M Spare Modules not otherwise used as contemplated in Section 5.17.4; and

11.1.10 Owner shall have countersigned the Certificate of Final Completion as described in Section 11.2.

11.2 Certificate of Final Completion. When Contractor believes that it has achieved all of the conditions of Final Completion (other than the condition in Section 11.1.10), Contractor shall notify Owner in writing with a Certificate of Final Completion, substantially in the form of Exhibit 7, which certificate shall be accompanied by any information deemed reasonably necessary by Contractor. Promptly thereafter, Owner shall conduct those investigations and inspections as it deems necessary or appropriate to determine if Final Completion has in fact

been achieved. Within ten (10) Business Days after its receipt of Contractor's notice, Owner shall notify Contractor that either (a) Final Completion has been achieved and countersign and deliver to Contractor the Certificate of Final Completion, or (b) Final Completion has not been achieved, stating in reasonable detail the reasons therefor. In the event that Owner provides timely written notice that Final Completion has not been achieved, Contractor shall, at its sole cost and expense insofar as such failure to achieve Final Completion is due to the performance, or lack of performance, of the Work by Contractor, immediately correct or remedy the defects, deficiencies and other conditions which prevent Final Completion. The foregoing procedures shall be repeated until Final Completion has in fact been achieved. If Owner fails to accept or reject Contractor's written notice of a Certificate of Final Completion within the aforesaid ten (10) Business Day period, then (i) such failure shall constitute an Owner Delay and Section 14.4 shall apply, and (ii) Owner will be obligated to make the associated milestone payment for Final Completion (as set forth in the Milestone Payment Schedule) as if it had accepted the Certificate of Final Completion as of the date it was delivered. The foregoing shall not relieve Contractor of its obligation to achieve Final Completion in accordance with this Agreement. Any Owner Delay of the type described in this Section 11.2 shall extend the date by which Final Completion must be achieved for purposes of Section 16.1.10.

11.3 Final Completion Date. The "Final Completion Date" shall be the date on which Owner countersigns the Certificate of Final Completion submitted by Contractor to Owner; *provided*, *however*, that, if, within ten (10) Business Days after receipt of any Certificate of Final Completion, Owner notifies Contractor that Final Completion has been achieved and countersigns such Certificate of Final Completion "as submitted" by Contractor to Owner, with no additional Work having been performed by Contractor following the submittal of such Certificate of Final Completion, the Final Completion Date shall be the date on which Contractor submitted such Certificate of Final Completion to Owner. Any Disputes between the Parties regarding whether or not Final Completion has been achieved shall be resolved in accordance with Article 30.

11.4 Acceptance. Acceptance by Owner of the Certificate of Final Completion shall not constitute acceptance by Owner of defective or otherwise non-conforming Work or in any way operate to release Contractor from any obligation under this Agreement Contract (other than the obligation of Contractor to achieve Final Completion).

12. Liquidated Damages.

12.1 Delay Liquidated Damages. The Parties agree that it would be extremely difficult to determine precisely the amount of actual damages that would be suffered by Owner due to the failure of Contractor to achieve Substantial Completion by the Guaranteed Substantial Completion Date, but that the Delay Liquidated Damages are a fair and reasonable determination of the amount of actual damages that would be suffered by Owner for the applicable deficiency, and that the Delay Liquidated Damages do not constitute a penalty. Contractor hereby expressly waives any defense or right to contest the validity of the Delay Liquidated Damages on the grounds that they are void as penalties or are not reasonably related to actual damage.

12.2 Failure to Achieve Substantial Completion Guaranteed Date. Contractor guarantees that Substantial Completion will occur by the Guaranteed Substantial Completion Date. Contractor acknowledges that if Substantial Completion is not achieved by the Guaranteed

Substantial Completion Date, Owner will suffer substantial damages, including loss of services and attributes, the ability to meet its regulatory obligations to meet the needs of its customers, additional interest, and financing charges on funds received by Owner to finance the Work, and other operating charges, but such damages are extremely difficult to determine precisely.

12.2.1 Substantial Completion Liquidated Damages. If Substantial Completion is not achieved by the Guaranteed Substantial Completion Date, as such date may be extended by Article 14, Contractor agrees to pay Owner as liquidated damages the amount set forth below per day, accruing from the day after the Guaranteed Substantial Completion Date until the day on which Substantial Completion is achieved (the "Delay Liquidated Damages"):

Day 1 through Day 30: **$0** per day

Day 31 through Day 60: **$22,500** per day

Day 61 through achievement of Substantial Completion: **$45,000** per day

12.2.2 Nature of Damages. Contractor's payment of Delay Liquidated Damages as set forth in Section 12.2.1 shall be in full satisfaction of Contractor's responsibility for monetary damages for a delay in achievement of Substantial Completion by the Guaranteed Substantial Completion Date, and, except for Owner's termination rights pursuant to Section 16.1, shall be Owner's exclusive remedy and Contractor's exclusive liability for Contractor's delay in achieving Substantial Completion by the Guaranteed Substantial Completion Date; *provided*, *however*, that payment of such Delay Liquidated Damages shall not relieve Contractor of its obligations in respect of the Contractor's warranty obligations and the obligation to achieve Final Completion. Owner may withhold Delay Liquidated Damages that it in good faith believes are payable by Contractor from any amounts payable by Owner under this Agreement.

12.3 Payment of Delay Liquidated Damages. Owner shall issue an invoice to Contractor for any Delay Liquidated Damages and Contractor shall pay such Delay Liquidated Damages within fifteen (15) Business Days after receipt of the invoice. Late payments of Delay Liquidated Damages, including any that were subject to a good faith dispute but which were subsequently determined to be due and payable in accordance with this Agreement, shall bear interest from the initial due date until the date actually paid at the Default Rate.

12.4 Capacity Liquidated Damages. The Parties agree that it would be extremely difficult to determine precisely the amount of actual damages that would be suffered by Owner due to the failure of Contractor to achieve the Performance Guarantee (subject to the Deadband), but that the Capacity Liquidated Damages are a fair and reasonable determination of the amount of actual damages that would be suffered by Owner for the applicable deficiency, and that the Capacity Liquidated Damages do not constitute a penalty. Contractor hereby expressly waives any defense or right to contest the validity of the Capacity Liquidated Damages on the grounds that they are void as penalties or are not reasonably related to actual damage.

12.5 Liquidated Damages Cap. Subject to Section 26.2, the aggregate amount of all Delay Liquidated Damages payable by Contractor hereunder shall in no event exceed the Delay

Liquidated Damages Cap and the aggregate amount of all Capacity Liquidated Damages payable by Contractor hereunder shall in no event exceed the Capacity Liquidated Damages Cap.

13. Title; Risk of Loss.

13.1 Title. Good, exclusive and marketable title, free and clear of all Liens (other than any Liens imposed by or through actions or omissions of Owner, including as a result of Owner's failure to pay any amount under this Agreement), to all Equipment and to each constituent part thereof shall pass to Owner (or shall have already passed to the extent such events occurred prior to the Execution Date) upon the completion of the earlier of the following: (i) the date that such Equipment or constituent part thereof is delivered to the Site, and (ii) the date payment of the amount then due under an invoice covering such Equipment or constituent part thereof is made by Owner to Contractor, notwithstanding any disputed amounts withheld or offset by Owner against any payment sought by Contractor in accordance with the terms of this Agreement. To protect Owner's interest in all Equipment with respect to which title has passed to Owner but which remain in the control of Contractor or another party, Contractor shall take or cause to be taken all steps reasonably necessary under Applicable Laws to protect Owner's title to the Equipment and to protect Owner against claims by other parties with respect thereto. Any transfer of title shall in no way affect Owner's other rights as set forth in other provisions of this Agreement or be deemed an acceptance or approval of such Equipment (or any Work). The foregoing does not limit Contractor's lien rights under applicable law.

13.2 Contractor Risk of Loss. From the Execution Date until the date on which Owner executes the Certificate of Substantial Completion or termination of this Agreement, whichever occurs first, and subject to Section 13.3, Contractor assumes risk of loss and full responsibility for the cost of replacing, repairing, restoring or rebuilding any loss or damage to the System and all Equipment (including temporary materials, equipment and supplies) that are purchased by Contractor for permanent installation in or for use during construction of the System or Owner Equipment (after delivery thereof to the Site in accordance with Section 6.5 (or delivery to the Storage Site in accordance with Section 5.17.1), regardless of whether Owner has title thereto under this Agreement; *provided*, *however*, that the Parties agree that Contractor's liability for any damage to the System or any other property loss which is covered by Owner BAR Policy or uninsured damages or losses shall be limited to five hundred thousand dollars ($500,000) per occurrence; and, *provided, further*, that the foregoing shall not apply with respect to any loss or damage that is caused by the negligent or willful acts of Owner or its agents (including suppliers of Owner Equipment and any of Owner's separate contractors, if any), employees, representatives or invitees. Notwithstanding anything to the contrary in the foregoing, Contractor shall be responsible for any casualty loss or damage to any property on the Site or comprising the Work that are not compensated under the Owner BAR Policy that are attributable to exclusions from coverage under the Owner BAR Policy that are attributable to Contractor's negligence or willful acts or omissions, or which are not ordinarily covered under such an "All Risk" Builder's Risk Insurance Policy. This Section 13.2 shall apply to any loss or damage caused by a Force Majeure Event prior to the Substantial Completion Date, but the Parties acknowledge that Contractor has certain Change Order rights with respect to Force Majeure Events as set forth in Section 14.4.

13.3 Owner Risk of Loss. Owner shall bear the risk of loss and full responsibility in respect of the System (a) from and after the date on which Owner signs the Certificate of

Substantial Completion and (b) at all times, to the extent such loss is caused by the negligent or willful acts of Owner, its agents (including suppliers of Owner Equipment and any of Owner's separate contractors, if any), employees, representatives or invitees. Notwithstanding the foregoing or Section 13.2, Contractor shall be fully responsible for loss or damage to the System that is caused by (i) the negligent or willful acts of Contractor, its Subcontractors, or its and their agents, employees or representatives or (ii) any warranty Work performed by Contractor or any of its Subcontractors.

13.4 Contractor Tools. Risk of loss or damage to the equipment or tools of Contractor, all Subcontractors and their respective employees and agents shall at all times remain with those parties, and Owner shall have no responsibility for such equipment or tools, unless such loss is due to the negligent or willful acts of Owner, its agents, employees, representatives or invitees.

14. Changes and Extra Work.

14.1 Scope Changes. Owner and Contractor shall each be entitled to request changes in the Work consisting of additions, deletions or other revisions thereto (each, a "Scope Change"). A "Scope Change" does not include any minor modifications in or to the Work (a) not involving (i) extra cost, (ii) change in design, quality or performance or (iii) adverse effects on the safety of equipment and (b) not inconsistent with the purposes of the Work. Except if any Scope Change is necessary for the protection of life or property or for the safety of the Work as a result of a condition posing an imminent danger to the foregoing, in which case Contractor shall immediately notify Owner in writing, any Scope Change shall only be authorized through a Change Order, which shall only be effective when signed and accepted by Contractor and Owner. All Scope Changes shall be performed in accordance with the provisions of this Agreement, except as may be otherwise provided in the Change Order.

14.2 Owner Scope Changes. Without invalidating this Agreement, Owner may request a Scope Change or an acceleration of the Work (to the extent feasible under the circumstances) by advising Contractor in writing. As soon as practicable after receipt of notice of a requested Scope Change or acceleration from Owner, Contractor shall, with respect to such request, prepare and forward to Owner a proposed Change Order (which shall specify the time period for which such proposed Change Order will remain valid (which shall be at least five (5) Business Days)), any details of any of Contractor's proposed adjustments to the Contract Price, Project Schedule, Guaranteed Substantial Completion Date or any other terms or conditions of this Agreement. If Owner does not (a) return a countersigned copy of the proposed Change Order to Contractor or (b) provide written notice to Contractor that it does not accept the proposed Change Order, describing in reasonable detail its objections to the proposed Change Order within the time period indicated in such proposed Change Order, then such proposed Change Order shall be deemed not accepted by Owner. Contractor shall not be obligated to perform any change in the Work in connection with an Owner requested Scope Change or acceleration of the Work unless a Change Order has been mutually agreed and entered into by the Parties; *provided*, *however*, in the event that the Parties cannot agree upon the price or other terms of the proposed Change Order, Owner may direct Contractor in writing to perform any extra or changed Work or acceleration of the Work on the basis of, and the Contract Price shall be increased by, the Direct Costs incurred

by Contractor as a result of any such extra or changed Work *plus* a mark-up of twelve and one-half percent (12.5%) of such Direct Costs.

14.3 Contractor Proposed Scope Changes. Contractor may propose Scope Changes to Owner if those Scope Changes improve the System or are otherwise advisable for the Work but shall have no right to require a Scope Change that is not contemplated by this Agreement. Any proposed Scope Changes, regardless of whether or not such Scope Change is ultimately accepted by Owner, shall not affect the obligations of Contractor to perform the Work and to deliver the System in the form agreed to in this Agreement, unless otherwise agreed in writing and signed by all of the Parties.

14.4 Change Orders for Certain Events.

(a) Subject to and in accordance with the provisions of this Section 14.4, Contractor shall be entitled to Change Orders for changes to the Contract Price and changes to the Project Schedule (including the Guaranteed Substantial Completion Date) in connection with the occurrence of any of the following if, and only to the extent, that any such occurrences arises after the Execution Date: (i) an Owner Delay; (ii) a Change in Applicable Law, (iii) a Force Majeure Event; (iv) an Excused Site Condition; (v) imposition of new Permit requirements in accordance with Section 5.14, (vi) the imposition of New U.S. Tariffs (to the extent contemplated under Section 18.3) up to the Tariff Threshold, (vii) any incremental costs incurred by Contractor in connection with obtaining any serial defects warranties with respect to the Equipment (to the extent contemplated under Section 23.4) (viii) any change by Owner in the makeup or specifications of the Owner Equipment; (ix) so long as a BUS EPC Termination for Convenience has not occurred, any BUS EPC Change Event, or (x) any other event that is expressly described in this Agreement as entitling Contractor to, or otherwise requiring, a Change Order (each, a "Change Event"). Contractor specifically agrees to and hereby waives any right to any changes to the Contract Price and changes to the Project Schedule (including the Guaranteed Substantial Completion Date) for any of the foregoing occurrences that occurred prior to the Execution Date.

(b) As soon as reasonably practical after Contractor becomes aware of a Change Event, but within no later than ten (10) Business Days after Contractor becomes aware of such Change Event, Contractor will notify Owner in writing of the same, providing with such notice all reasonably then-available details regarding the Change Event and its then-anticipated impact on the schedule or costs of performing the Work. If Contractor fails to provide such notice within such period, then it will be deemed to have waived its rights to receive a Change Order only with respect to the applicable Change Event. As soon as reasonably practicable after the occurrence of a Change Event, Contractor will present to Owner a final update of all schedule and/or costs impacts of the Change Event.

(c) Subject to Section 14.4(b), and provided that Contractor has used commercially reasonable efforts to mitigate any potential delays to the Project Schedule or increased costs, in any case resulting from the applicable Change Event, (i) if and to the extent that a Change Event results in a delay in the performance of the Work, then Owner

will issue a Change Order to extend the Project Schedule as described in Section 14.4(d), and (ii) if and to the extent that a Change Event increases Contractor's costs to perform the Work, Owner will issue a Change Order to increase the Contract Price as described in Section 14.4(e); *provided* that (A) in the case of a Force Majeure Event, such increase to the Contract Price shall be subject to Section 14.4(f), (B) in the case of an Excused Site Condition, the maximum extension of the Project Schedule (including the Guaranteed Substantial Completion Date) that Contractor shall be entitled to shall be limited to ninety (90) days (less any extension of time granted under the BUS EPC Agreement for any Excused Site Condition) and Contractor shall not be entitled to any adjustment to the Contract Price , (C) no such adjustment to the Contract Price shall be made with respect to delays caused by the Independent Engineer under clauses (a), (e) or (k) of the definition of Owner Delay, and (D) no adjustment to the Contract Price shall be made for a BUS EPC Change Event. For the avoidance of doubt, Contractor's failure to possess or maintain any contractor or electrical license required by Applicable Law to perform the Work shall be at Contractor's sole risk and shall not serve as the basis for any Change Event, any Change Order, or any extension of time for any Contractor obligation under this Agreement (including, specifically, the obligation to achieve Substantial Completion by the Guaranteed Substantial Completion Date).

(i) Notwithstanding the foregoing or anything in this Agreement to the contrary, any subsurface condition, obstruction, soil density, refusal, hard layer, cobble, rock, rock fragments, or other difficulty encountered in the installation of any solar pile foundations, whether or not related to any Reclaimed Mine condition, that could reasonably be overcome, mitigated, or avoided through the use of pre-drilling, pilot holes, or similar preparatory drilling methods customarily used in the solar construction industry shall not constitute an Excused Site Condition. Contractor shall be responsible for implementing such pre-drilling, pilot holes, or similar installation methods as necessary to achieve the required pile depth, alignment, and structural performance. The need for, or use of, pre-drilling, pilot holes, or similar methods, including any resulting impacts to Contractor's means and methods, productivity, schedule, or costs, shall be deemed a Contractor obligation under this Agreement and included within the Contract Price. Accordingly, Contractor shall not be entitled to any Change Order, additional compensation, schedule relief, or other adjustment arising from conditions that can be addressed through such methods.

(d) Subject to Sections 14.4(b) and 14.4(c), to the extent that Contractor demonstrates, to Owner's reasonable satisfaction, that a Change Event will delay the Critical Path progress of the Work despite Contractor's use of commercially reasonable efforts to mitigate such delay, then Owner will issue a Change Order to extend the dates in the Project Schedule (including the Guaranteed Substantial Completion Date) by the

number of days corresponding to the number of days of delay in the Critical Path demonstrated by Contractor as being required solely as a result of the applicable Change Event. Contractor's demonstration of the impact on the Critical Path must be made on a basis that analyzes the actual impacts of the given Change Event on the then-current Working Schedule (incorporating all then-present delays unrelated to the Change Event (or any other Change Event), but without any changes to any schedule logic or activity durations from those in the Project Schedule).

(e) Subject to Sections 14.4(b) and 14.4(c), with respect to any Change Order required to be issued to increase the Contract Price as a result of a Change Event other than a Force Majeure Event, such Change Order will equitably increase the Contract Price on a lump-sum basis as agreed by the Parties and set forth in such Change Order. If the Parties are unable to agree upon such a lump-sum increase to the Contract Price, then the Contract Price shall be increased by an amount equal to the additional Direct Costs demonstrably incurred by Contractor solely as a result of the applicable Change Event *plus* a mark-up of twelve and one-half percent (12.5%) of such Direct Costs. To the extent the Parties can agree on an estimated increase to the Contract Price based on the calculation described in the immediately preceding sentence, they will set forth the same in a mutually agreed and executed Change Order. If as of the Substantial Completion Date or the Final Completion Date it has become reasonably apparent that such estimate was higher or lower than Contractor's Direct Costs incurred with respect to the applicable Change Event, the Parties shall enter into a further Change Order to increase or decrease, as applicable, the final Contract Price based on the actual additional Direct Costs incurred by Contractor (plus the applicable 12.5% mark-up) with respect to such Change Event, and the applicable milestone payment due Contractor under Section 19 (in respect of Substantial Completion or Final Completion, as applicable) shall be adjusted (upward or downward) as applicable.

(f) Subject to Sections 14.4(b) and 14.4(c), if and to the extent that the aggregate total of all Direct Costs incurred by Contractor after the Execution Date as a result of all Force Majeure Events (whether claimed by Owner or Contractor) exceeds Two Hundred Fifty Thousand Dollars ($250,000) (the "FM Costs Threshold"), then, in connection with any Force Majeure Event, Owner shall issue a Change Order increasing the Contract Price by an amount equal to the Direct Costs demonstrably incurred by Contractor beyond the FM Costs Threshold as a result of such Force Majeure Event. To the extent the Parties can agree on an estimated increase to the Contract Price based on the calculation described in the immediately preceding sentence, they will set forth the same in a mutually agreed and executed Change Order. If as of the Substantial Completion Date or the Final Completion Date it has become reasonably apparent that such estimate was higher or lower than Contractor's Direct Costs incurred with respect to the applicable Change Event, the Parties shall enter into a further Change Order to increase or decrease, as applicable, the final Contract Price based on the actual additional Direct Costs incurred by Contractor with respect to such Change Event, and the applicable milestone payment due Contractor under Article 19 (in respect of Substantial Completion or Final Completion, as applicable) shall be adjusted (upward or downward) as applicable. Contractor acknowledges and agrees that Contractor has not incurred Direct Costs as a result of any Force Majeure Events (whether claimed by Owner or Contractor) accruable against the FM Costs Threshold as of the Execution Date.

15. Force Majeure.

15.1 Notification. As soon as reasonably practicable, but no later than ten (10) Business Days, after becoming aware of a Force Majeure Event, the Party impacted thereby will notify the other Party in writing of (a) all reasonably then-available details regarding the same, and (b) the reasonably estimated anticipated length of the delay as such Party reasonably estimates will be caused by such Force Majeure Event. Contractor's notice to Owner with respect to any Force Majeure Event that may constitute a Change Event will be deemed to also constitute notice of the same for purposes of Section 14.4(b). The impacted Party will update the other Party on a reasonable regular basis of all material developments concerning the actual impacts of, and the efforts and results of efforts to mitigate, the Force Majeure Event.

15.2 Mitigation. In the event of any Force Majeure Event, the Party affected by such Force Majeure Event shall (a) exercise all commercially reasonable efforts to bring the situation caused by the Force Majeure Event under control and mitigate the extent, duration, and impact of such Force Majeure Event on the Work and the System and (b) provide periodic reports to the other Party with respect to the status of the Force Majeure and its impacts and the affected Party's actions and plans for actions in accordance with (a) above (such periodicity to be weekly if requested by Owner, where Contractor is the affected Party), and (c) promptly notify the other Party of the cessation of the event or condition giving rise to the Force Majeure Event.

15.3 Remediation Plan. If a Force Majeure occurs that is reasonably projected to prevent more than 25% of the System from being able to be completed by the original Guaranteed Substantial Completion Date, then Contractor will work with Owner to develop as soon as practicable (but in any event by no later than a target date of twenty (20) days after Owner's written request for Contractor's assistance) a written plan for the remediation and recovery from such Force Majeure.

15.4 Change Orders. If Contractor's performance is affected by any Force Majeure Event (whether the affected Party claiming such Force Majeure Event is Owner or Contractor), Contractor shall be entitled to a Change Order to the extent described in Section 14.4.

15.5 Termination by Owner. If a Force Majeure Event occurs that prevents and delays performance of the Work so long as to permit termination by the offtaker, applicable counterparty of the Generation Interconnection Agreement, or the Ground Lease (and such counterparty so terminates such Project Agreement) such action shall entitle Owner, in its sole discretion, to terminate this Agreement without penalty.

15.6 Termination by Either Party. If a Force Majeure Event declared by Contractor delays the Critical Path for a consecutive period of time greater than two hundred fifty (250) days, then Owner, in its sole discretion, shall have the right to terminate this Agreement. If a Force Majeure Event declared by Owner delays Contractor's performance of the Work for a consecutive period of time greater than two hundred fifty (250) days, then Contractor, in its sole discretion, shall have the right to terminate this Agreement. Any termination by either Party under this Section 15.6 shall be without penalty or liability for either Party, except Owner shall pay Contractor the portion of the Contract Price attributable to all Work performed in accordance with Agreement through the date of such termination (including in respect of all Payment Milestones

achieved hereunder for which payment has not yet been made to Contractor and the pro-rated portion of any other Payment Milestones corresponding to the portion of Work so performed).

16. Events of Default; Termination Rights.

16.1 Contractor Events of Default. Each of the following is a "Contractor Event of Default":

16.1.1 Contractor Abandons the Work;

16.1.2 Contractor effects an assignment or purported assignment of its rights or duties under this Agreement in violation of Article 44;

16.1.3 Contractor voluntarily commences bankruptcy, insolvency or similar debtor-relief proceedings, or becomes insolvent or generally does not pay its debts as they become due, or admits in writing its inability to pay its debts, or makes an assignment for the benefit of creditors;

16.1.4 Insolvency, receivership, reorganization, bankruptcy or a similar proceeding is commenced against Contractor and such proceeding is not dismissed or stayed within a period of ninety (90) days thereafter;

16.1.5 Contractor fails to pay any amount due hereunder to Owner on the due date and the amount remains unpaid and not disputed in good faith thirty (30) Business Days following receipt of notice thereof from Owner;

16.1.6 Contractor fails to maintain any insurance coverages required pursuant to Article 24 and Contractor fails to remedy such breach within ten (10) days after the earlier of (a) the date on which Contractor first had actual knowledge of such breach and (b) the date on which Contractor first receives notice thereof from Owner;

16.1.7 Any representation or warranty made by Contractor in this Agreement proves to have been false in any material respect when made (but, if such breach is capable of being cured, only to the extent such breach continues for thirty (30) days following receipt of a notice in writing of such breach from Owner);

16.1.8 Contractor fails to provide to Owner a Remedial Action Plan when required under Section 5.15.3 and such failure continues for ten (10) Business Days after Owner's written demand for a cure of such failure;

16.1.9 Contractor's liability for Delay Liquidated Damages reaches the Delay Liquidated Damages Cap, Capacity Liquidated Damages reaches the Capacity Liquidated Damages Cap, or the sum of the two reaches the cap thereon under Section 26.2, or Contractor fails to achieve Substantial Completion within one hundred eight (180) days after the Guaranteed Substantial Completion Date (as may be extended by a Change Order under Article 14);

16.1.10 Contractor fails to achieve Final Completion within one hundred eighty (180) days after the Substantial Completion Date or such longer period as may be provided for in the Project Schedule (in any case as may be extended pursuant to a Change Order or Article 14, as applicable);

16.1.11 Contractor Guarantor disavows, or otherwise fails to perform, its obligations under the Contractor Guaranty, or Contractor fails to cause the Contractor Guaranty, or the Contractor Guaranty otherwise ceases, to be maintained in full force and effect in accordance with its terms and this Agreement;

16.1.12 Contractor breaches any of its material obligations under this Agreement (other than those obligations relating to any of the matters set forth above in this Section 16.1) and fails to cure such breach within sixty (60) days following receipt of written notice of such breach from Owner; and

16.1.13 a "Contractor Event of Default" as that term is defined in the BUS EPC Agreement has occurred under the BUS EPC Agreement.

16.2 Certain Owner Remedies. In the event of the occurrence of a Contractor Event of Default, without limiting its other rights and remedies at law or in equity (including, if it so elects in its sole discretion, to terminate this Agreement), Owner shall have the right to:

16.2.1 use any Subcontractor with or without assuming its Subcontract, and pay it in accordance with the terms of its Subcontract, or in accordance with such other terms on which Owner and Subcontractor may mutually agree, and credit payments against the Contract Price or charge Contractor therefor upon written demand for any sums that are paid directly by Owner to any Subcontractor for any Work that (a) is not covered by any invoice that has been previously issued to Owner by Contractor and paid by, Owner hereunder and (b) if covered by an invoice that has been previously issued to Owner by Contractor, and paid by, Owner hereunder, is in excess of the invoice amount allocated to such Work; and

16.2.2 require Contractor to assign any or all of the Subcontracts with one or more Major Subcontractors to Owner and require Contractor to provide evidence reasonably satisfactory to Owner that Contractor has assigned such Subcontracts to Owner including the assignment of any Assigned Warranties to Owner to the extent that any such Assigned Warranties have not already been assigned to Owner.

16.3 Additional Owner Remedies. In the event that Owner elects to terminate this Agreement as a result of a Contractor Event of Default, and in addition to any rights otherwise available to Owner hereunder, (a) Contractor shall use commercially reasonable efforts to reduce

or otherwise mitigate any expense or damage to Owner and (b) Owner shall have the right to complete, or have completed, the Work and seek cover damages for completion of the Work.

16.4 Cumulative Remedies. The remedies set forth in Sections 16.2 and 16.3 are not exclusive but are in addition to any other rights and remedies that may be available to Owner under this Agreement or Applicable Law.

16.5 Owner Events of Default. Each of the following is an "Owner Event of Default":

16.5.1 Owner effects an assignment or purported assignment of its rights or duties under this Agreement in violation of Article 44;

16.5.2 Owner or Owner Guarantor hereunder voluntarily commences bankruptcy, insolvency or similar debtor-relief proceedings, or becomes insolvent or generally does not pay its debts as they become due, or admits in writing its inability to pay its debts, or makes an assignment for the benefit of creditors;

16.5.3 Insolvency, receivership, reorganization, bankruptcy or a similar proceeding is commenced against Owner or Owner Guarantor and such proceeding is not dismissed or stayed within a period of ninety (90) days thereafter;

16.5.4 any representation or warranty made by Owner in this Agreement proves to have been false in any material respect when made (but, if such breach is capable of being cured, only to the extent such breach continues for thirty (30) days following receipt of a notice in writing of such breach from Contractor);

16.5.5 Owner fails to pay any amount due hereunder to Contractor on the due date and the amount remains unpaid and not disputed in good faith thirty (30) Business Days following receipt of notice thereof from Contractor;

16.5.6 Owner Guarantor disavows, or otherwise fails to perform, its obligations under the Owner Guaranty, or Owner fails to cause the Owner Guaranty, or the Owner Guaranty otherwise ceases, to be maintained in full force and effect in accordance with its terms and this Agreement;

16.5.7 Owner breaches any of its material obligations under this Agreement (other than those obligations relating to any of the matters set forth above in this Section 16.5) and fails to cure such breach for a period of sixty (60) days thereafter; *provided* that a breach by Owner that constitutes an Owner Delay and thus entitles Contractor to receive a Change Order under Section 14.4 will not be considered an Owner Event of Default hereunder if either (i) such Change Order has been executed by the Parties, or (ii) the Change Order is being disputed by the Parties in good faith (such disputes being subject to Articles 27 and 30); and

16.5.8 a "Project Owner Event of Default" as that term is defined in the BUS EPC Agreement has occurred under the BUS EPC Agreement.

16.6 Contractor Remedies. In the event of any Owner Event of Default, Contractor shall have all rights and remedies at law or in equity, including those that may be available to Contractor under this Agreement, including the right to terminate this Agreement or, subject to Section 20.2, the right to suspend performance of the Work.

16.7 Owner Termination Without Cause.

(a) Owner may terminate this Agreement without cause if and only if Owner complies with the procedures set forth in this Section 16.7. If Owner, at any time after the Execution Date, determines in its sole discretion to terminate this Agreement without cause, then Owner may deliver to Contractor written notice of such determination (the "Termination Notice"). Upon Contractor's receipt of the Termination Notice, Contractor will suspend the Work, and Owner shall pay to Contractor an amount (the "Termination Payment"), as reflected in an invoice delivered by Contractor, equal to the sum of the following, without duplication: (i) the portion of the Contract Price attributable to all Work performed in accordance with Agreement through the date of such termination (including in respect of all Payment Milestones achieved hereunder for which payment has not yet been made to Contractor and the pro-rated portion of any other Payment Milestones corresponding to the portion of Work so performed); *plus* (ii) all costs and expenses reasonably incurred by Contractor in withdrawing Contractor's and Subcontractors' equipment and personnel from the Site and in otherwise demobilizing, plus a mark-up of twelve and one-half percent (12.5%) of such costs and expenses; *plus* (iii) the costs and expenses reasonably incurred by Contractor in terminating contracts with Subcontractors pertaining to the Work (excluding subcontracts with any Affiliates of Contractor); *plus* (iv) an amount equal to twenty five percent (25%) of the portion of the Contract Price not paid as of the date of such termination (taking into account the amounts paid pursuant to subsection (i) and (ii) above). Contractor shall use commercially reasonable efforts to mitigate the costs and expenses described in clauses (i) and (ii) above. Contractor shall submit reasonable supporting information and documentation of any fees or expenses claimed by Contractor with the invoice for the Termination Payment. Owner shall pay such invoice within thirty (30) days after its receipt of the invoice for the Termination Payment unless it disputes in good faith certain elements thereof, in which event only the undisputed portion of the Termination Payment need be made within such thirty (30) day period.

(b) Payment of the Termination Payment shall be the sole and exclusive liability of Owner, and the sole and exclusive remedy of Contractor, with respect to any termination of this Agreement under this Section 16.7 with respect to which Owner is obligated to pay the Termination Payment to Contractor, and in such event Owner shall have no further liability to Contractor (other than payment of the Termination Payment) notwithstanding the actual amount of damages that Contractor may have sustained in connection with such termination. Calculation of the Termination Payment has been agreed upon and fixed hereunder because of the difficulty of ascertaining the exact amount of such damages Contractor will actually sustain in the event of a termination of this Agreement pursuant to Section 16.7 for which such Termination Payment must be paid by Owner, and the Parties agree that the calculation of the Termination Payment is reasonable and does not constitute a penalty.

17. Intellectual Property.

17.1 Ownership of Rights in Documentation. Subject to Section 17.2 and Article 32, all rights, title and interests in and to the Documentation shall be owned by Owner and the Documentation shall immediately become the property of Owner when prepared by Contractor and received by Owner; *provided* that nothing in the foregoing shall impair, alter or otherwise affect Contractor's proprietary rights in its patents, copyright rights, trade secrets, products or other intellectual property in the Documentation or otherwise prejudice the rights of Contractor derived from Article 32; *provided*, *further*, that the passage of title will in no way prejudice Contractor's right of payment from Owner for such Documentation pursuant to this Agreement.

17.2 License. Contractor agrees to grant, and hereby grants to Owner, subject to Owner's obligations under Article 32, an irrevocable, sub-licensable, non-exclusive, royalty-free license under all patents, copyrights and other intellectual property of Contractor, related solely to the Work, now or hereafter owned or controlled by Contractor, but only to the extent reasonably necessary for the operation, maintenance, decommissioning or repair of the System or any subsystem or component thereof designed, specified, or constructed by Contractor under this Agreement. No other license in such patents and intellectual property is granted pursuant to this Agreement. Owner may use any drawings or documents provided by Contractor in respect of the Work as necessary in connection with any future expansion of the System by or on behalf of Owner; *provided* that Contractor shall not have any responsibility or liability whatsoever (whether to Owner or any other Person) arising from such use by Owner

18. Contract Price.

18.1 Amount. Subject to the following sentence, as full compensation for the Work and all of Contractor's obligations hereunder, Owner shall pay to Contractor as the contract price for the Work hereunder [redacted] (the "Contract Price"). The Contract Price shall only be modified by Change Orders approved in accordance with Article 14. The Contract Price shall be paid in accordance with Article 19.

18.2 Fixed Price. Except as otherwise set forth herein (including in connection with interconnection adjustments in Section 5.11 and Change Orders approved in accordance with Article 14), the Contract Price is firm and fixed and not subject to any variation or price adjustments (downward or upward) and includes all costs and expenses to be incurred by Contractor in connection with the performance of the Work, including all costs and expenses related to design, engineering, Equipment, erection, commissioning and Performance Tests, travel, lodging and Applicable Permits.

18.3 U.S. Tariffs. Owner agrees and acknowledges that the Contract Price includes all tariffs, duties, or other similar taxes or charges levied by the United States of America (or its agencies) in connection with the importation into the United States of America of any Equipment that Contractor procures for the System in effect as of the Execution Date. In the event that any new or additional tariffs, duties, or other similar taxes or charges are levied by the United States of America (or its agencies) in connection with the importation into the United States of America on any inverters, transformers or Substation components ("Tariff Protected Equipment")

that Contractor procures for the System in excess of the tariffs, duties, or other similar taxes or charges upon such Tariff Protected Equipment in effect as of the Execution Date (collectively, the "New U.S. Tariffs"), Contractor shall be entitled to a Change Order under Section 14.4 that increases the Contract Price, but does not adjust the Project Schedule, in an amount equal to the amount of such New U.S. Tariffs on such Equipment, but only up to the Tariff Threshold (as defined below); *provided*, that before purchasing Tariff Protected Equipment from a supplier in a country subject to New U.S. Tariffs, Contractor will use commercially reasonable efforts to identify in consultation with Owner options for alternative suppliers of the same equipment that are located in countries to which no or lower U.S. tariffs, duties or other similar charges apply, it being acknowledged that such consultation may include options that could involve a requirement for adjustments to the Project Schedule. Contractor shall submit to Owner sufficient supporting documentation evidencing the amount of New U.S. Tariffs incurred by Contractor as part of its request for a Change Order under Section 14.4. The "Tariff Threshold" shall be the total of two million one hundred thousand dollars ($2,100,000) less the amount of price increase under any Change Orders issued under the BUS EPC Agreement for New U.S. Tariffs (as that term is defined in the BUS EPC Agreement). In no event shall Contractor's entitlement to Change Orders for New US Tariffs exceed the Tariff Threshold. Contractor agrees and acknowledges that the Contract Price includes, and Contractor shall bear all risk at all times as to: (a) any and all amounts for tariffs, duties, or other similar taxes or charges levied by the United States of America (or its agencies) in connection with the importation into the United States of America on any Tariff Protected Equipment that Contractor procures for the System, whether in effect or made effective as of or after the Execution Date, in excess of the Tariff Threshold and (b) any and all amounts for tariffs, duties, or other similar taxes or charges levied by the United States of America (or its agencies) in connection with the importation into the United States of America on any Equipment other than the Tariff Protected Equipment that Contractor procures for the System, whether in effect or made effective as of or after the Execution Date.

18.4 Owner Credit. Owner shall have a credit in the amount of [redacted] (the "Owner Credit") available to be applied by Owner, in its sole discretion, against any invoice submitted by Contractor under this Agreement with respect to the Contract Price; *provided, however*, that such credit shall not be applicable to, and may not be applied against, the Initial Payment invoice described in Section 19.2. Owner may apply this credit in one or more installments against any such invoice or invoices until the full amount of the Owner Credit has been fully utilized.

19. Invoicing and Payment.

19.1 Payment Milestones. The Payment Milestones set forth in the Milestone Payment Schedule attached hereto as Schedule 1E have allocated to them the amount of the Contract Price that Contractor shall be entitled to receive upon the completion of the particular Payment Milestone. The Parties acknowledge that payment may include compensation for materials and Equipment not yet incorporated into the System that have been delivered to and suitably stored at the Site or, if agreed to in writing, at designated off-site locations. The Payment Milestones (including the amounts thereof) shall be adjusted, upon mutual agreement of the Parties, to account for changes to the Contract Price arising from any Change Orders entered into pursuant to this Agreement. The Parties acknowledge and agree that, as of the Execution Date, the "Notice to Proceed," "MPT Ordered," "Inverters Ordered," and "34.5 Breakers Ordered" Payment

Milestones set forth in Schedule 1E, and as included in the invoice for Initial Payment provided pursuant to Section 19.2, have been achieved by Contractor (the "Initially Completed Payment Milestones"); provided that the amount of the Initially Completed Payment Milestones shall be reduced by the Pipeline Incentive Amount until the Pipeline Incentive Conditions are satisfied. No later than three (3) Business Days after satisfaction of the Pipeline Incentive Conditions, and upon receipt of an invoice, Owner agrees to pay Contractor the Pipeline Incentive Amount.

19.2 Invoices; Deliverables. Prior to or no later than, the Execution Date, Contractor shall submit an invoice for (i) the Initially Completed Payment Milestones plus the amount of the Early Works PO in the aggregate amount of [redacted] (the "Initial Payment"). The invoice for the Initial Payment, less the applicable Retainage in the amount of [redacted], shall be paid to Contractor on the Execution Date and Contractor shall provide Owner with an unconditional lien waiver and release in the form attached hereto as Exhibit 9 dated as of the Execution Date. The Retainage with respect to the Initial Payment shall be held and released in accordance with Section 19.7. Contractor shall, within ten (10) Business Days after its receipt of the Initial Payment, provide from each Major Subcontractor duly executed unconditional lien waivers and releases, in each case in the form attached hereto as Exhibit 9. By the fifth (5th) Business Day of each calendar month after the Execution Date, Contractor shall submit (a) an invoice to Owner setting forth all Payment Milestones in Schedule 1E that Contractor has completed during the prior calendar month, (b) the Monthly Progress Report for the prior calendar month, (c) a projection of the amount that will be invoiced to Owner in the following calendar month, and (d) any other documentation that Parties mutually agree is reasonably required to substantiate Contractor's progress or right to payment. In addition, (i) as a condition to each payment hereunder (other than with respect to Final Completion), Contractor shall provide with each such invoice to Owner duly executed conditional lien waivers and releases from Contractor and each Major Subcontractor, in each case in the form attached hereto as Exhibit 8, and (ii) within ten (10) Business Days after its receipt of each payment (other than with respect to Final Completion), Contractor shall provide in respect of itself and each Major Subcontractor duly executed unconditional lien waivers and releases, in each case in the form attached hereto as Exhibit 9. As a condition to Substantial Completion, Contractor shall provide to Owner duly executed conditional lien waivers and releases from Contractor and each Covered Subcontractor (and any other Subcontractor who performed Work at the Site to the extent obtained by Contractor, after reasonable efforts), in each case in the form attached hereto as Exhibit 8, and within ten (10) Business Days after its receipt of the milestone payment for Substantial Completion, Contractor shall provide to Owner unconditional lien waivers and releases duly executed by Contractor and each Covered Subcontractor (and any other Subcontractor who performed Work at the Site, to the extent obtained by Contractor after reasonable efforts), in each case in the form attached hereto as Exhibit 9. As a condition to payment for Final Completion, Contractor shall provide to Owner with its invoice therefor duly executed conditional lien waivers and releases from Contractor and each Covered Subcontractor (and any other Subcontractor who performed Work at the Site to the extent obtained by Contractor, after reasonable efforts), in each case in the form attached hereto as Exhibit 10, and within ten (10) Business Days after its receipt of the milestone payment for Final Completion, Contractor shall provide to Owner unconditional lien waivers and releases duly executed by Contractor and each Covered Subcontractor (and any other Subcontractor who

performed Work at the Site, to the extent obtained by Contractor after reasonable efforts), in each case in the form attached hereto as Exhibit 11.

19.3 Payments. Invoices and supporting documentation shall be sent to Owner via email to John McVaigh (john.mcvaigh@brookfieldrenewable.com) or through such other persons or means later designated in writing by Owner. If any invoice is deficient in any material respect, Contractor shall be required to resubmit that invoice in proper form before Owner incurs any obligation to pay any portion of it. Except for any portions of any invoices disputed in good faith, and provided that Contractor has timely submitted to Owner the required deliverables under Section 19.2, invoices shall be paid by Owner within fifteen (15) Business Days of receipt by Owner, and Owner shall have the right to withhold payment on any such disputed portions until such Dispute is resolved in accordance with Article 30. Notwithstanding anything to the contrary set forth herein, Contractor acknowledges and agrees that, so long as the Owner makes the Initial Payment as set forth in Section 19.2, the timing of the Initial Payment shall not be considered to be in any way delinquent or late or represent an Owner Event of Default. If a payment obligation falls due on a day other than a Business Day, the obligation shall be deemed to be due on the next Business Day. Overdue payment obligations of Owner hereunder, including those payment obligations that were previously subject to a Dispute and are subsequently found to be due and payable in accordance with this Agreement, shall bear interest from the initial date due until the date paid at the Default Rate.

19.4 Final Invoice. Upon Final Completion, Contractor shall submit to Owner a final invoice which shall set forth all remaining amounts due to it pursuant to this Agreement (less an amount equal to one-hundred fifty percent (150%) of the estimated cost to perform any Seasonally Constrained Work that was not completed as part of Final Completion). The final invoice shall also include, in addition to the documentation otherwise required by this Article 19, a certification stating that all required sales taxes have been paid. In the event of any Seasonally Constrained Work, Contractor shall complete all such Seasonally Constrained Work as soon as reasonably practicable, but in no event later than the earlier of (a) the date by which such Seasonally Constrained Work must be completed under the applicable E&S Permits, or (b) the date that is twelve (12) months after the Final Completion Date. Upon completion of the Seasonally Constrained Work, Contractor shall submit to Owner an invoice for the amount previously withheld under this Section 19.4 on account of such Seasonally Constrained Work, and Owner shall pay such invoice in accordance with Section 19.3.

19.5 Withholding. Owner may withhold from all or part of any payment of any invoice or release of Retainage, such amount as is reasonably necessary to protect itself from loss or damage on account of any (a) defective Work that has not been remedied; (b) Contractor Event of Default that has occurred and is continuing; (c) third-party claims arising from the Work filed against the Site or Owner for which Contractor has indemnification obligations under this Agreement; *provided* there is reasonable evidence that such claims will be advanced; or (d) Liens against the Work, the System or the Site as a result of any action or inaction of Contractor, its Subcontractors or not otherwise excused pursuant to this Agreement, in any case that have not

been discharged or otherwise removed in accordance with Section 28.2. When the reason for withholding has been remedied, Owner shall promptly pay such withheld amount to Contractor.

19.6 Set Off. Owner may set off or deduct any undisputed amounts due and payable by Contractor to Owner hereunder from amounts due and payable by Owner to Contractor under Substantial Completion and Final Completion milestone payments.

19.7 Retainage. Contractor agrees that Owner shall retain an amount equal to ten percent (10%) of each invoice (other than with respect to Substantial Completion and Final Completion) (the "Retainage") as security for Contractor's performance under this Agreement and any interest thereon shall accrue for the account of Owner and not Contractor. Notwithstanding the foregoing, Owner shall not withhold Retainage in respect of any amounts (including deposits) set forth in an invoice which relate in any way to the procurement of Equipment (including the storage, transportation or delivery thereof). Upon Substantial Completion, subject to Section 19.6, Owner shall release to Contractor all Retainage less the Punch List Holdback Amount. The Punch List Holdback Amount shall be paid to Contractor within thirty (30) days after the Final Completion Date.

19.8 No Acceptance by Payment. No partial payment made under this Agreement shall be construed to be acceptance or approval of any part of the Work or to relieve Contractor of any of its obligations under this Agreement.

20. Suspension of the Work.

20.1 By Owner. Owner may, in its sole discretion, direct Contractor to suspend all or any portion of the Work for such period of time as Owner shall specify in the written notice thereof to Contractor (with such suspension to commence on the date specified therein). Contractor shall resume any suspended Work in accordance with a further notice from Owner to such effect. The Project Schedule shall be adjusted as described in Section 14.4 in connection with any such suspension of all or any portion of the Work. Without limiting the foregoing, if any one or more Owner suspensions under this Section 20.1 delay Contractor's performance of the Work for an aggregate period of time greater than one hundred eighty (180) days, then Contractor, in its sole discretion, shall have the right to terminate this Agreement upon ten (10) Business Days' prior written notice, and such termination shall be treated as a termination by Owner under Section 16.7.

20.2 By Contractor. Contractor may, upon five (5) Business Days' prior written notice to Owner, suspend the Work temporarily if Owner fails to make any undisputed payment on the appliable due date and such amount remains unpaid for a period of ten (10) Business Days thereafter; *provided*, *however*, that Contractor shall, promptly following receipt of any such payment by Owner, resume the Work.

20.3 Resumption of Work. After Contractor resumes the performance of the Work after any suspension thereof under this Article 20, Contractor shall examine the Work affected by the suspension. Contractor shall make good any defect, deterioration or loss of the construction or the Work affected that may have occurred during the suspension period, and hold Owner and its Affiliates and their respective consultants and other contractors harmless against

any claim or liability therefor; *provided* that the Contract Price shall be adjusted as described in Section 14.4.

21. Taxes.

21.1 Taxes on Contractor Tools. Contractor shall pay all taxes on Contractor's purchases of goods, tools, equipment, supplies and other consumables that are not permanently incorporated into the System and that remain the property of Contractor. Contractor shall also pay all taxes attributable to Contractor's construction equipment, temporary buildings and other property used by Contractor in its performance of this Agreement. Allowance for such taxes is included in the Contract Price, and Contractor shall pay those taxes when assessed, without claim against Owner for reimbursement. Contractor shall impose a similar obligation on all Subcontractors and shall ensure that no Subcontractor shall have any claim against Owner for reimbursement of those taxes.

21.2 Sales and Use Tax on Equipment and Materials. Notwithstanding the above, the Contract Price includes all taxes, including monies for the payment of any and all sales, use, excise, gross receipts, ad valorem, privilege, or other such taxes and all customs duties and fees on Equipment incorporated into the System and all labor and services provided by Contractor or its Subcontractors under this Agreement. Without limiting the generality of the foregoing, (a) upon Contractor's written request, and assuming Contractor's compliance with any legal requirements required to obtain the same Owner will use commercially reasonable efforts to assist Contractor in identifying which items of Equipment may be subject to exemptions from such taxes and, if legally permitted, will attempt to obtain and issue to Contractor such exemption certificates or equivalent information acceptable to the relevant Governmental Authority to support the exemption from such taxes on Equipment incorporated into the System and in this event will be responsible for submitting all required exemption certification applications as may be applicable to the appropriate Governmental Authority to obtain any applicable exemptions and (b) Contractor shall assist Owner in obtaining any applicable exemptions reasonably available to Owner in connection with this Agreement as reasonably directed by Owner.

21.3 Other Contractor Taxes. Contractor shall be solely responsible for the reporting, filing and payment of any and all taxes associated with payments received for the Work, Contractor's income taxes in respect of this Agreement, and all payroll taxes, income tax withholding, social security contributions and any payroll-related tax, fees or similar charges on wages or fees paid to its employees and agents for services. Contractor shall be responsible for complying with all reporting, payment, and other requirements and for obtaining the benefit of any

provision of any law that exempts any portion of the payments received for the Work from any tax.

21.4 Owner Taxes. Except as otherwise provided in this Agreement, Owner shall pay all applicable taxes related to the ownership and operation of the System and the ownership of the Site (including any applicable property taxes).

22. Representations and Warranties; Cooperation.

22.1 Representations and Warranties of Contractor. Contractor represents and warrants to Owner as of the Execution Date that:

22.1.1 Contractor is a limited liability company duly organized, validly existing, and in good standing under the laws of the State of North Carolina, and has full power to engage in the business it presently conducts and contemplates conducting, and is and will be duly licensed or qualified and in good standing under the laws of the State of Ohio and in each other jurisdiction wherein the nature of the business transacted by it makes such licensing or qualification necessary and where the failure to be licensed or qualified would have a material adverse effect on its ability to perform its obligations hereunder.

22.1.2 Contractor has (either directly or through its Subcontractors) all the required authority, ability, skills, experience and capacity necessary to perform the Work in a timely and professional manner, utilizing sound engineering principles, project management procedures, construction procedures and supervisory procedures, all in accordance with Industry Standards.

22.1.3 The execution, delivery and performance by Contractor of this Agreement have been duly authorized by all requisite action of its governing bodies.

22.1.4 The execution, delivery and performance by Contractor of this Agreement will not (a) violate or conflict with any material covenant, agreement or understanding to which it is a party or by which it or any of its properties or assets is bound or affected, or its organizational documents or (b) subject the System or any component part thereof or the Site to any lien other than as contemplated or permitted by this Agreement.

22.1.5 The individual executing this Agreement on its behalf has been duly authorized to do so and this Agreement constitutes its legal, valid and binding obligation, enforceable against it in accordance with its terms, subject as to enforceability of remedies to limitations imposed by bankruptcy, insolvency, reorganization, moratorium or other similar laws relating to or affecting the enforcement of creditors rights generally and general principles of equity.

22.1.6 There are no actions, suits, proceedings or investigations pending or, to its knowledge, threatened against it before any Governmental Authority that individually or in the aggregate could result in any impairment of its ability to perform its obligations under this Agreement.

22.1.7 There are no strikes, lockouts or other labor disputes pending, or, to its knowledge, threatened or scheduled to occur, with respect to any of its factories, offices or other facilities. To its knowledge, there are no strikes, lockouts or other labor disputes pending, or threatened or scheduled to occur, with respect to any of the factories, offices or other facilities of any of its Subcontractors.

22.1.8 No Applicable Permit is required on its part in connection with the execution, delivery and performance by it of its obligations under this Agreement, except those (a) that are listed on Schedule 5.14 (as may be updated pursuant to Section 5.14) and that have already been obtained and are in full force and effect or (b) that have been applied for and are listed on Schedule 5.14 (as may be updated pursuant to Section 5.14) and which it anticipates will be timely obtained in the ordinary course of performance of this Agreement and before being required by Applicable Law and the Project Schedule.

22.1.9 It is not aware of any Change Event for which Contractor is, or may be, entitled to a Change Order as of the Execution Date.

22.1.10 It is not aware that Owner has issued any change order, amendment, directive, or notice that would alter Contractor's obligations under the Agreement.

22.1.11 There has been no loss or damage to the System and no claims have been made against any policy of insurance required to be maintained by Contractor under this Agreement.

22.1.12 From the Execution Date and continuing until the close of the recapture period described in Section 50(a) of the Code (the "Covered Period"), neither Contractor nor any of its Affiliates was, is, or will become a "specified foreign entity" (within the meaning of Section 7701(a)(51)(B) of the Code).

22.1.13 Notwithstanding any provision to the contrary in the Agreement, and with respect to Contractor's Work (but, for the avoidance of doubt, not with respect to any Owner Equipment), based on the Code and guidance issued by the Internal Revenue Service as of the Execution Date, at no time during the Covered Period will any "specified foreign entity" (within the meaning of Section 7701(a)(51)(B) of the Code) or "foreign influenced entity" (within the meaning of Section 7701(a)(51)(D) of the Code) have any right to exercise "effective control" (within the meaning of Section 7701(a)(51)(D)(ii) of the Code) over the System or any "qualified facility"

included therein for purposes of Section 48E of the Code. If at any time after the Execution Date during the Covered Period, the Internal Revenue Service issues guidance with respect to or related to foreign entities of concern, the Parties agree to meet in good faith and determine any necessary amendments to this Agreement or change of Subcontractor, to ensure the Project remains eligible for qualification for any investment tax credits. If at any time after the Execution Date during the Covered Period, with respect to Contractor's Work (but, for the avoidance of doubt, not with respect to any Owner Equipment), it is determined based on the Code and guidance issued by the Internal Revenue Service as of the Execution Date that a "specified foreign entity" (within the meaning of Section 7701(a)(51)(B) of the Code) has a right to exercise "effective control" over the System or any portion thereof, the Parties agree to meet in good faith and determine any necessary amendments to this Agreement or change of Subcontractor, to ensure the System remains eligible for qualification for any investment tax credits.

22.1.14 Contractor represents and warrants that construction of the Project began, for purposes of IRS Notice 2018-59, during the calendar year 2025. Upon written request from Owner, Contractor shall (i) promptly (but in no event later than ten (10) days following such request) furnish any additional documentation or information relevant or necessary to validate the documentation and information required to support that the Project began construction for U.S. federal income tax purposes in calendar year 2025, and (ii) reasonably cooperate with any inquiry or request by any Governmental Authority with respect to the Project having begun construction for U.S. federal income tax purposes in calendar year 2025, including by the provision of records and the making reasonably available any employees and advisors with firsthand knowledge of the facts or analysis relevant to the subject matter of such inquiry or request.

22.2 Representations and Warranties of Owner. Owner represents and warrants to Contractor as of the Execution Date that:

22.2.1 Owner is a limited liability company duly formed and validly existing under the laws of the State of Delaware and has full legal capacity and standing to pursue its limited liability company purpose (including the capacity to dispose of and encumber all of its assets) and full power to engage in the business it presently conducts and contemplates conducting, and is and will be duly licensed or qualified and in good standing under the laws of each jurisdiction wherein the nature of the business transacted by it makes such licensing or qualification necessary and where the failure to be licensed or qualified would have a material adverse effect on its ability to perform its obligations hereunder.

22.2.2 The individual executing this Agreement on behalf of Owner has been duly authorized to do so and this Agreement constitutes a legal, valid and binding obligation of Owner, enforceable against it in

accordance with its terms, subject as to enforceability of remedies to limitations imposed by bankruptcy, insolvency, reorganization, moratorium or other similar laws relating to or affecting the enforcement of creditors rights generally and general principles of equity.

22.2.3 The execution, delivery and performance by Owner of this Agreement have been duly authorized by all requisite action of its governing bodies. Owner has obtained all consents, approvals, authorizations or orders of third parties, including Governmental Authorities, if any, necessary for the authorization, execution and performance of this Agreement by Owner.

22.3 Cooperation. Upon the receipt by a Party of a written request from the other Party, each Party shall execute such additional documents, estoppels, instruments and assurances and take such additional actions as are reasonably necessary and desirable to carry out the terms and intent hereof, all on terms and conditions negotiated by the Parties in good faith. Neither Party shall unreasonably withhold, condition or delay its compliance with any reasonable request made pursuant to this Section 22.3, but neither Party shall be obligated to execute any document contemplated hereby if the Parties are unable in good faith, after using commercially reasonable efforts, to negotiate the terms and conditions of such document.

23. Warranty.

23.1 Contractor System Warranty. As the "Warranty," Contractor warrants, commencing on the Substantial Completion Date and for a period of two (2) years thereafter (as may be extended as provided below, the "Warranty Period"), that (a) (i) at the time of Substantial Completion, the System, including all Equipment (but excluding the Owner Equipment), will be new and of good quality, and (ii) the System (excluding any Equipment covered by an Assigned Warranty and the Owner Equipment, but not the Work relating thereto) will be free from errors and defects in workmanship, materials and design, and shall conform to the requirements and standards set forth in this Agreement, including the Scope of Work and Equipment manufacturers' requirements and (b) the Owner Equipment shall have been properly installed and integrated into the System in accordance with Industry Standards and all applicable written specifications and installation instructions to the extent provided to Contractor by Owner prior to Contractor's installation or integration of the same. Notwithstanding the foregoing, the Warranty shall not include any deficiencies or defects in Equipment to the extent the correction of such deficiency or defect (by repair, replacement or otherwise) is covered under the Assigned Warranty with respect to such Equipment provided by the applicable Major Subcontractor. If Contractor has taken any action or has failed to take any action, in any case that is not in accordance with the express conditions of the Assigned Warranty, that causes an Assigned Warranty to be nullified, voided or otherwise rendered inapplicable in whole or in part, then the deficiency or defect that would have been covered by the Assigned Warranty but for such action or inaction will be covered by Contractor under the Warranty.

23.2 Contractor Warranty Work. If, at any time after the Substantial Completion Date and prior to the expiration of the Warranty Period, Owner notifies Contractor of any failure or breach of the Warranty set forth in Section 23.1, and provided such failure or breach is in fact

covered by the Warranty, Contractor shall, at Contractor's sole cost and expense (including the cost of transportation, labor, equipment, parts and all other incidental and other "in and out" costs associated therewith), promptly correct such failure or breach in a manner and at such times that reasonably minimize the nature and extent of any interruption of Owner's operation of the System, whether by repair, retrofit, replacement or otherwise (which corrective action shall include any necessary removal, disassembly, re-design, reinstallation, reassembly, reconstruction, re-grading or re-testing and commissioning of any part or portion of the System connected to, damaged or otherwise affected by such failure, breach or corrective action) and otherwise cause the System to comply with the foregoing Warranty and this Agreement. If any such corrective action affects the accuracy of any Documentation, Contractor shall, at its sole expense, furnish Owner with corrected Documentation. All parts and components employed in repairs and replacements to the System shall be subject to the foregoing Warranty and have a level of quality and workmanship equivalent to that required of the Work as initially installed under this Agreement and shall conform in all material respects to the requirements of this Agreement, including any particular make or model as provided in Schedule 1C or elsewhere in this Agreement. Subject to Section 32(a), Contractor shall, upon Owner's reasonable written request, provide Owner with reasonable access to information within Contractor's possession and control regarding Equipment that is the subject of a claim by Owner under any Assigned Warranty so as to allow Owner (or its designee) to conduct a root cause analysis of any defect or non-conformity in such Equipment. The Warranty Period for all corrective work under this Article 23 performed (and all related parts and components) shall be extended to the later of the date that is one (1) year after the completion of corrective work or the expiration of the original Warranty Period; *provided* that the Warranty Period shall in no event be extended beyond the date that is three (3) years after the Substantial Completion Date. Any corrective work performed by Contractor pursuant hereto (a) shall be completed within a reasonable period of time, (b) shall address the cause, and not just the effect, of such failure or breach and (c) shall be subject to such tests and inspections as mutually agreed to by the Parties, and Contractor shall demonstrate to the reasonable satisfaction of Owner that such failure or breach has been properly corrected. If Contractor fails to initiate and diligently take steps to promptly correct such failure or breach within fifteen (15) Business Days after Contractor receives Owner's written notice of any such failure or breach and to pursue that corrective action fully and continuously thereafter, Owner may undertake or arrange corrective action at Contractor's expense. Any such corrective action by or on behalf of Owner pursuant to the previous sentence that is performed in accordance with this Section 23.2, this Agreement (including Schedule 1C) and Industry Standards shall not limit, impair or void, the Warranty. During the Warranty Period, Contractor shall reasonably cooperate with Owner in connection with any root cause analysis performed by or on behalf of Owner and in connection with Owner's pursuit of any claim under an Assigned Warranty.

23.3 Warranty Exceptions. Contractor shall have no responsibility with respect to any failure or breach of the Warranty set forth in Section 23.1 to the extent that such failure or breach is the result of any of the following:

23.3.1 Alterations or repairs made to the System's supporting structure, or to any part of the System or associated wiring and parts, without Contractor's prior written approval (not to be unreasonably withheld or delayed), unless permitted by, and then in accordance with, Owner corrective action under Section 23.2;

23.3.2 Owner-directed maintenance to the System affecting ground cover, soil stability or erosion prevention measures;

23.3.3 Use of the System beyond the scope contemplated in its operating manuals or technical specifications;

23.3.4 Defects caused by Owner's failure to comply with the operation and maintenance manuals and manufacturers' guidelines applicable to the System;

23.3.5 Ordinary wear and tear;

23.3.6 Force Majeure Events; and

23.3.7 Deficiencies or defects covered under the Assigned Warranties of the Major Subcontractors and any warranty for the Owner Equipment.

23.4 Serial Defects. Contractor shall use commercially reasonable efforts to obtain customary and commercially available serial defect warranties from the suppliers of the Equipment set forth on Schedule 23.4 and such serial defect warranties, to the extent obtained, shall be Assigned Warranties. If obtaining such serial defect coverage will result in additional payments to the applicable supplier of the relevant Equipment, Contractor will notify Owner of this in writing and give Owner a reasonable opportunity to determine whether it will cover the additional amount. If Owner elects to pay such additional amount, then (a) such obtained serial defect warranties shall be Assigned Warranties, and (b) Contractor shall be entitled to a Change Order pursuant to Section 14.4 to adjust the Contract Price for any incremental costs or expenses to be incurred by Contractor in obtaining such serial defect warranties. If Owner elects not to pay such additional amount, then Contractor shall have no further obligation to obtain serial defect coverage with respect to the applicable Equipment.

23.5 Intellectual Property. Contractor represents and warrants that: (a) no portion of the Work, System (other than the Owner Equipment) or Documentation, or any use thereof, will infringe or misappropriate any right of any Person, including any copyright, patent right, trademark right, trade secret right or confidentiality right of any Person; and (b) there are no past or present actions, suits or proceedings, nor any actions, suits or proceedings that have been threatened, that allege that any portion of the Work, System (other than the Owner Equipment) or Documentation, or any use thereof, infringes upon or misappropriates any such right of a Person. In the event of a breach of the foregoing, Contractor will have the obligations as set forth in Section 25.3.

23.6 Documentation. Contractor warrants that, from the period on which any final Documentation is provided by Contractor to Owner until the end of the Warranty Period, all such Documentation, including the written instructions regarding the use of Equipment in operation and maintenance manuals, shall be complete and accurate as of the time such Documentation is provided by Contractor to Owner. If Owner notifies Contractor of, or Contractor otherwise becomes aware of, any failure or breach of the Warranty provided by Contractor in this

Section 23.6 prior to the end of the Warranty Period, Contractor shall, at its sole expense, furnish Owner with corrected Documentation.

23.7 Title. Subject to Section 13.1, Contractor warrants that the System (other than the Owner Equipment) shall be free from encumbrances to title when title thereto purports to transfer to Owner pursuant to Section 13.1.

23.8 Disclaimer. CONTRACTOR'S SOLE WARRANTY HEREUNDER FOR THE SYSTEM AND THE DOCUMENTATION SHALL BE AS SET FORTH IN THIS ARTICLE 23 AND, EXCEPT AS SET FORTH IN THIS ARTICLE 23, AND WITHOUT PREJUDICE TO CONTRACTOR'S OBLIGATIONS HEREUNDER TO ACHIEVE THE MINIMUM PERFORMANCE GUARANTEE, CONTRACTOR DOES NOT MAKE (AND HEREBY EXPRESSLY DISCLAIMS) ANY OTHER WARRANTIES IN RESPECT TO THE SYSTEM OR THE DOCUMENTATION OF ANY KIND WHATSOEVER, INCLUDING THE WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE. CONTRACTOR SHALL NOT BE LIABLE FOR ANY DEFICIENCY OR DEFECT IN THE WORK TO THE EXTENT THAT THE SAME RESULTS FROM ANY SPECIFIC DIRECTION OF OWNER IN WRITING REQUIRING CONTRACTOR TO PERFORM THE WORK IN A MANNER THAT IS CONTRARY TO CONTRACTOR'S WRITTEN RECOMMENDATION THAT SUCH PERFORMANCE WILL BE CONTRARY TO REQUIREMENTS OF SECTION 5.1; *PROVIDED* THAT ANY SUCH DEFICIENCY OR DEFECT IS NOT THE RESULT OF CONTRACTOR'S FAILURE TO PROPERLY IMPLEMENT THE WORK IN ACCORDANCE WITH THIS AGREEMENT. EXCEPT AS STATED IN THE LAST SENTENCE OF SECTION 23.1, THE SCOPE OF CONTRACTOR'S WARRANTY DOES NOT INCLUDE ANY EQUIPMENT COVERED BY ANY ASSIGNED WARRANTIES ASSIGNED BY CONTRACTOR TO OWNER PURSUANT TO SECTION 4.2.

24. Insurance.

24.1 Coverages. From the Execution Date, each Party has procured or caused to be procured and shall maintain or cause to be maintained in full force and effect at all times from the Execution Date through the end of the applicable period specified in Schedule 24, the insurance coverages specified in Schedule 24. Contractor shall require its Subcontractors, at their expense, to procure or cause to be procured and maintain or cause to be maintained in full force and effect at all times the insurance coverages specified in Schedule 24 or Contractor may provide such coverage on their behalf. Owner shall procure the Owner BAR Policy in accordance with the requirements set forth in Schedule 24. Owner will be responsible for all deductibles under the Owner Bar Policy, subject to Contractor's obligations to pay the amounts set forth in Section 13.2 with respect to each claim made under the Owner BAR Policy.

All such insurance coverage shall be in accordance with the terms of this Article 24 and Schedule 24. Neither Party nor any Subcontractor shall be required to procure, maintain or cause to be maintained insurance except as specifically set forth in this Article 24 and in Schedule 24.

24.2 Additional Coverages. Subject to prior agreement of the Parties, additional insurance coverages may be included, at Owner's cost and responsibility, under Contractor's insurance policies pursuant to Section 24.1.

24.3 Policy Requirements. The insurance required of a Party (and its Subcontractors in the case of Contractor) hereunder shall (a) be primary coverage without the right of contribution from the other Party, (b) include contractual liability in the amounts of coverage specified in Schedule 24 for an insured contract to specifically cover the other Party's obligations under this Agreement (and Subcontractors' obligations in the case of Contractor), if any, and (c) name the other Party and its Affiliates, as applicable, as additional insureds. All such insurance policies shall be with financially sound and reputable insurance companies that have an (i) A.M. Best rating of A- and a financial strength category of "XII" or higher, (ii) a Standard & Poor's financial strength rating of A- or higher, or (iii) are otherwise reasonably satisfactory to the other Party; and all such policies shall be on terms that are reasonably satisfactory to the other Party.

24.4 Certificates and Notice. As of the Execution Date, and upon a Party's request annually thereafter (provided Substantial Completion has not yet been achieved), each Party has delivered and shall deliver to the other Party certificates of insurance evidencing the coverage required hereunder, which shall specify that the insured Party's (and Subcontractors' in the case of Contractor) respective insurers shall endeavor to provide the other Party at least thirty (30) days' prior written notice in the event of any material modification, cancellation or termination of coverage, except ten (10) days' notice for non-payment of premium. If at any time the insurance to be provided by a Party hereunder shall be reduced or cease to be maintained, then (without limiting the rights of the other Party in respect of any default that arises as a result of such failure) the other Party may at its option take out and maintain the insurance required hereby and, in such event, as applicable, (i) Contractor shall be entitled to cost relief pursuant to a Change Order and (ii) Owner may withhold from any payments to Contractor, in each case for the cost of insurance premiums expended for such replacement insurance.

24.5 No Limitation. The insurance policy limits set forth herein shall in no way be construed as limits on the Parties' liability under this Agreement. Neither approval nor failure to disapprove insurance furnished by Contractor or any Subcontractor shall relieve Contractor from responsibility to provide, or cause to be provided, insurance as required by this Agreement.

24.6 Owner BAR Policy. After the occurrence of any casualty event resulting in property loss or damage on the Site which constitutes a claim to be filed under the Owner BAR Policy, Contractor (in consultation with the Owner), will determine if Work needs to temporarily cease in the affected area to preserve evidence or otherwise prevent prejudicing recovery of loss proceeds under the Owner BAR Policy, in which case Owner will take reasonable efforts to have adjuster on Site and clear return to Work within thirty (30) days. If Contractor is prevented from working in the area affected by the claim for more than thirty (30) days due to unreasonable delay from the adjuster in arriving on site, Contractor will be eligible for a reasonable adjustment to the Contract Price or the Project Schedule (including the Guaranteed Substantial Completion Date) (negotiated between Owner and Contractor). Contractor shall fully cooperate with the insurers providing the Owner BAR Policy to maximize the recovery of insurance proceeds thereunder, and Contractor shall provide all documentation and information requested by such insurers with respect to each covered claim thereunder.

25. Indemnity.

25.1 Contractor Indemnity. Contractor shall indemnify, save harmless and defend Owner and its Affiliates and its and their respective directors, officers, shareholders, employees, agents, representatives, successors and assigns (each, an "Owner Indemnitee") from and against, and pay, any and all damages, liabilities, losses, costs and expenses associated therewith (including attorneys' fees and other professionals' fees) (collectively, "Losses") incurred by any Owner Indemnitee in connection with or arising from any claim, demand or cause of action of every kind and character by any third party (including any Governmental Authority) for (a) physical damage to or physical destruction of third party property, or death of or bodily injury to any person (including any of Contractor's or any of its Subcontractors' personnel, employees or agents) to the extent caused by or arising out of or related to Contractor's breach of this Agreement or the negligence or willful misconduct of Contractor or any of its Subcontractors or any of their respective employees, personnel, agents, or invitees, except to the extent caused by the negligence or willful misconduct of any Owner Indemnitee, and (b) any violation or alleged violation of Applicable Laws (other than Environmental Laws) by Contractor, any Subcontractor or any of their respective employees, personnel, agents, invitees or third parties over which either has control.

25.2 Contractor Environmental Indemnity. Contractor shall indemnify, save harmless and defend the Owner Indemnitees from and against, and pay, any and all Losses incurred by any Owner Indemnitee in connection with or arising from any claim, demand or cause of action of every kind and character for or by reason of:

25.2.1 any Release of Hazardous Materials on, at or under the Site caused by Contractor, any Subcontractor or any of their respective employees, personnel, agents, representatives, or invitees or for which Applicable Law would otherwise hold Contractor or any such Subcontractor liable;

25.2.2 any enforcement or compliance proceeding commenced by or in the name of any Governmental Authority because of an alleged, threatened or actual violation of any Environmental Law by Contractor, any Subcontractor or any of their respective employees, personnel, agents, representatives or invitees;

25.2.3 any action reasonably necessary to abate, remediate or prevent a violation or threatened violation of any Environmental Law due to any Release caused by Contractor, any Subcontractor or any of their respective employees, personnel, agents, representatives or invitees; and

25.2.4 any unauthorized asbestos, refractory ceramic fibers, lead, methylene chloride or polychlorinated biphenyls furnished or delivered to the Site or installed as part of the System (exclusive of the Owner Equipment) by Contractor or any Subcontractor.

25.3 Contractor Proprietary Rights Indemnity. Contractor shall indemnify, save harmless and defend the Owner Indemnitees from and against, and pay, any and all Losses incurred by any Owner Indemnitee in connection with or arising from any third party claim of (a) infringement or misappropriation by Contractor (or any Subcontractor) of any patent, copyright, trade secret, invention, proprietary information, other intellectual property right, or other rights of any third party (collectively "Infringement Claims") in connection with the System (other than the Owner Equipment) or any Work, including any Documentation, or (b) Contractor's (or any Subcontractor's) violation of any third-party license to use intellectual property in connection with the System (other than the Owner Equipment) or any Work, including any Documentation. If the operation or use of the System (other than the Owner Equipment), any Equipment or any Documentation is enjoined as a result of an Infringement Claim, Contractor will, at Contractor's option and expense for all associated costs, either (i) procure the right for such Owner Indemnitees to continue to use the System, Equipment or Documentation or (ii) replace or modify the System, Equipment or Documentation, or any part thereof, with another system, equipment or documentation of reasonably equivalent quality and performance capabilities which is non-infringing; *provided* such replacement or modification does not cause the System, Equipment, Documentation, or any part thereof, to fail to comply with any of the performance requirements of this Agreement, including, but not limited to, all functionality, technical specifications and warranties herein. If Contractor is obligated, and fails, to perform (i) or (ii) of the preceding sentence within sixty (60) days of the date of the written notice of an Infringement Claim(s) from Owner or any third party, Owner shall have the right to take such remedial acts it determines to be reasonable to mitigate any impairment of its use of the System or any Equipment (each a "Remedial Act"). Contractor shall indemnify the Owner Indemnitees for all reasonable amounts paid and reasonable direct costs associated with Remedial Acts. Notwithstanding any of the foregoing, in no event shall Contractor have any indemnity obligations under this Section 25.3 for any Losses arising from or in connection with any modification (including any expansion) of the System by Owner or any other Person that was not, in either case, authorized in writing by Contractor.

25.4 Contractor Adverse Third Party Rights Indemnity. Until the date that is fifteen (15) years after the Execution Date, Contractor agrees to indemnify Owner Indemnitees from and against, and to promptly pay to Owner Indemnitees, or reimburse Owner Indemnitees, for any and all Losses (which for the purposes of this Section 25.4 shall include any and all costs and expenses of investigation, defense, settlement, redesign, reconstruction, removal, relocation, repair, replacement, delay, diminution in value, lost revenues in respect of the PPA, and reasonable attorney's fees and professional fees), unless otherwise covered pursuant to the Owner's Title Policy which shall be applied prior to any indemnification obligation, resulting from (i) the exercise or attempted exercise by any holder of Adverse Third Party Rights, (ii) any failure to obtain, or alleged inadequacy of, the Termination of Adverse Third Party Rights; or (iii) any requirement by an interest holder of the Adverse Third Party Rights (prior to such Termination of Adverse Third Party Rights) to remove, relocate, redesign, repair, replace or modify any portion of the Project, including solar panels, racking, foundations, electrical equipment, access roads, gen tie facilities or other Project improvements. *Notwithstanding the foregoing*, Contractor shall not have any obligation to indemnify Owner Indemnitees for any Losses pursuant to this Section 25.4 , together with any actual costs or expenses in connection with complying with Section 5.24.2 or Section 5.24.3 (excluding general overhead in respect of such work) in excess of an aggregate of

Three Million Dollars ($3,000,000) (not including costs or expenses covered pursuant to the Owner's Title Policy).

25.5 Owner Indemnity. Owner shall indemnify, save harmless and defend Contractor and its Affiliates and its and their respective directors, officers, shareholders, employees, agents, representatives, successors and assigns (each, a "Contractor Indemnitee") from and against, and pay, any and all Losses incurred by any Contractor Indemnitee in connection with or arising from any claim, demand or cause of action of every kind and character by any third party (including any Governmental Authority, but excluding any other Contractor Indemnitees) for (a) physical damage to or physical destruction of third party property, or death of or bodily injury to any person (including any of Owner's personnel, employees or agents) to the extent caused by or arising out of or related to Owner's breach of this Agreement or the negligence or willful misconduct of Owner or any of their respective employees, personnel, agents, or invitees, except to the extent caused by the negligence or willful misconduct of any Contractor Indemnitee, and (b) any violation or alleged violation of Applicable Laws (other than Environmental Laws) by any Owner Indemnitee or any invitee of any of them.

25.6 Owner Environmental Indemnity. Owner shall indemnify, save harmless and defend the Contractor Indemnitees from and against, and pay, any and all Losses incurred by any Contractor Indemnitee in connection with or arising from any claim, demand or cause of action of every kind and character arising as a result of (a) any Release of Hazardous Materials occurring after the Execution Date on, at or under the Site caused by any Person other than Contractor, any Subcontractor or any of their respective employees, personnel, agents, representatives, or invitees (and in any event excluding any Release for which Contractor has responsibility to Section 5.13(b)) and (b) any violation of Environmental Laws after the Execution Date caused by any Owner Indemnitee.

25.7 Comparative Fault and Negligence. It is the intent of the Parties that where, as between the Parties, fault or negligence, as applicable, is determined to have been joint or contributory each Party shall bear the proportionate cost of any Losses of any nature attributable to that Party's fault or negligence, as applicable.

25.8 Indemnity Procedures. If any claim is brought against a Party with respect to which a claim for indemnification may apply under this Article 25 (in such capacity, the "Indemnified Party"), then the Indemnified Party shall (i) promptly notify the other Party (in such capacity, the "Indemnifying Party") thereof in writing of the existence of such claim and promptly deliver copies of any and all documents served on or otherwise received by the Indemnified Party with respect to such claim (provided, however, that any failure to promptly notify the Indemnifying Party or deliver such copies will not relieve the Indemnifying Party from any obligation hereunder except to the extent that the Indemnifying Party is materially prejudiced by such failure), (ii) allow the Indemnifying Party to assume sole control over the defense of such claim with counsel reasonably acceptable to the Indemnified Party (unless in the opinion of counsel for the Indemnified Party there is a conflict of interest between the Parties with respect to such claim) and (iii) provide, at the Indemnifying Party's cost and expense, assistance and information reasonably requested from time to time, by the Indemnifying Party. If the Indemnifying Party does not assume the defense of the Indemnified Party, or if a conflict precludes the Indemnifying Party from assuming the defense, then the Indemnifying Party shall reimburse the Indemnified Party on a

monthly basis for the Indemnified Party's defense through separate counsel of the Indemnified Party's choice; *provided* such counsel shall be reasonably acceptable to the Indemnifying Party. Even if the Indemnifying Party assumes the defense of the Indemnified Party, the Indemnified Party, at its sole option, may monitor the defense, at its own expense, with counsel of its own choice without relieving the Indemnifying Party of any of its obligations hereunder. No Party shall settle or agree to settle any claim without the prior written consent of the other Party (not to be unreasonably withheld, conditioned or delayed).

25.9 No Double-Recovery. Nothing in this Section 25.9 shall be interpreted as requiring either Party to submit any insurance claim at any time to any insurer or notify any insurer of any actual or potential claim. Notwithstanding anything to the contrary set forth herein, upon the exercise by a third party of any Adverse Third Party Rights in relation to the Site that impacts the System, Owner shall promptly submit and diligently pursue a claim therefor to the carrier under the Owner's Title Policy. Subject to the foregoing, the amount which the Indemnifying Party is required to pay to any Indemnified Party will be reduced by (i) any insurance proceeds actually recovered by or on behalf of such Indemnified Party (or any of its Affiliates) in respect of the related Losses, and (ii) any prior or subsequent recovery by the Indemnified Party (or any of its Affiliates) from any Person (other than an Affiliate of the Indemnified Party) with respect to such Loss. If receipt of any such amounts occurs after payment of any applicable Losses under this Article 25, the Indemnified Party shall reimburse the Indemnifying Party for such payment within ten (10) Business Days after receipt of such amounts (but such reimbursement shall not exceed the amounts paid by the Indemnifying Party for the applicable Loss plus third-party costs and expenses reasonably incurred by the Indemnifying Party in connection therewith). If an Indemnified Party has received the payment required by this Agreement from the Indemnifying Party in respect of Losses and subsequently receives insurance proceeds or the other amounts described in clauses (i) or (ii) above in respect of such Losses, then such Indemnified Party will promptly repay to the Indemnifying Party a sum equal to the amount of such insurance proceeds or other amount received.

26. Limitation of Liability.

26.1 No Consequential Damages. EXCEPT (A) IN CASES OF GROSS NEGLIGENCE, FRAUD OR WILLFUL MISCONDUCT OF A PARTY, (B) WITH RESPECT TO LIQUIDATED DAMAGES EXPRESSLY SET FORTH IN THIS AGREEMENT, (C) WITH RESPECT TO A BREACH BY EITHER PARTY OF ITS OBLIGATIONS UNDER SECTION 32(a), AND (D) TO THE EXTENT THE PAYMENT OF ANY AMOUNTS BY A PARTY PURSUANT TO SUCH PARTY'S INDEMNITY OBLIGATION UNDER ARTICLE 25 COULD OTHERWISE BE DEEMED TO BE SUCH DAMAGES, IN NO EVENT SHALL EITHER PARTY BE LIABLE, WHETHER BASED ON CONTRACT (INCLUDING BREACH, WARRANTY, INDEMNITY) OR TORT (INCLUDING FAULT, NEGLIGENCE AND STRICT LIABILITY), UNDER ANY WARRANTY OR OTHERWISE, RELATING TO OR ARISING OUT OF THE WORK OR THIS AGREEMENT, FOR ANY INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR RELATED TO THE TERMS OF THIS AGREEMENT, INCLUDING LOST PROFITS OR REVENUES, COSTS OF PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES, INCLUDING

REPLACEMENT POWER, OR BUSINESS INTERRUPTION, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

26.2 Aggregate Liquidated Damage Cap. CONTRACTOR'S TOTAL AGGREGATE LIABILITY FOR DELAY LIQUIDATED DAMAGES AND CAPACITY LIQUIDATED DAMAGES ARISING UNDER THIS AGREEMENT SHALL IN NO EVENT EXCEED AN AMOUNT EQUAL TO TWENTY-TWO AND ONE HALF OF ONE PERCENT (22.5%) OF THE CONTRACT PRICE.

26.3 Maximum Total Liability. NOTWITHSTANDING ANY OTHER PROVISION TO THE CONTRARY, WHETHER AN ACTION OR CLAIM IS BASED ON WARRANTY, CONTRACT (INCLUDING BREACH, WARRANTY, INDEMNITY), TORT (INCLUDING FAULT, NEGLIGENCE OR STRICT LIABILITY) OR OTHERWISE, UNDER NO CIRCUMSTANCE SHALL EITHER PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT EXCEED ONE HUNDRED PERCENT (100%) OF THE CONTRACT PRICE (THE "MAXIMUM LIABILITY AMOUNT"); *PROVIDED*, *HOWEVER*, THAT THE MAXIMUM LIABILITY AMOUNT SHALL NOT APPLY TO, AND NO CREDIT SHALL BE ISSUED AGAINST THAT LIMITATION FOR (A) CASES OF GROSS NEGLIGENCE, FRAUD OR WILLFUL MISCONDUCT OF A PARTY OR (B) A PARTY'S INDEMNITY OBLIGATIONS UNDER ARTICLE 25 FOR THIRD PARTY CLAIMS. FOR THE PURPOSE OF DETERMINING WHETHER THE MAXIMUM LIABILITY AMOUNT HAS BEEN MET, INSURANCE PROCEEDS RECEIVED FROM THE INSURANCE POLICIES REQUIRED TO BE MAINTAINED UNDER THIS AGREEMENT SHALL NOT BE INCLUDED.

27. Governing Law; Consent to Jurisdiction; Waiver of Jury Trial.

27.1 Governing Law. The formation, interpretation and performance of this Agreement shall be governed by and construed in accordance with the laws of the state in which the Site is located, without regard to its conflicts of laws principles.

27.2 Consent to Jurisdiction. For all purposes of any litigation arising out of or related to this Agreement, and for all purposes of any litigation arising out of or relating to the transactions contemplated by this Agreement, each Party hereto submits to the exclusive jurisdiction of the courts of the state in which the Site is located and the federal courts of the United States sitting in the state in which the Site is located (or, if such courts do not accept such jurisdiction, then in any state or federal court in the United States of proper jurisdiction), and hereby irrevocably and unconditionally agrees that any such litigation may be heard and determined in such state court or such federal court. Each Party agrees that a final judgment in any such litigation may be enforced in any other jurisdiction by suit on the judgment or in any other manner provided by law.

27.3 Certain Waivers. Each Party irrevocably and unconditionally waives, to the fullest extent it may legally and effectively do so: (a) any objection which it may now or hereafter have to the laying of venue of any litigation arising out of or relating to this Agreement or any

related matter in any state or federal court located in state in which the Site is located; and (b) the defense of an inconvenient forum to the maintenance of such proceeding in any such court.

27.4 Service of Process. Each Party irrevocably consents to service of process by registered mail, return receipt requested, at its address as provided in Article 31. Nothing in this Agreement will affect the right of any Party hereto to serve process in any other manner permitted by law.

27.5 Waiver of Jury Trial. TO THE FULLEST EXTENT PERMITTED BY LAW, EACH PARTY HEREBY WAIVES ALL RIGHTS TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING TO ENFORCE OR INTERPRET THE PROVISIONS OF THIS AGREEMENT OR THAT OTHERWISE RELATES TO THIS AGREEMENT.

28. Liens.

28.1 Liens. Contractor shall keep the System, the Site, the Equipment and all other structures and equipment at the Site free from all Liens (other than such Liens arising from acts or omissions of Owner, including Liens arising due to the non-payment by Owner of an invoice or claims against or arising through Owner), and shall promptly notify Owner of any such Liens.

28.2 Discharge or Bond. Without limiting Contractor's obligations under Article 25, Contractor shall take prompt steps to discharge or bond any Lien (other than such Liens arising from acts or omissions of Owner, including such Liens arising due to the non- payment by Owner of an invoice or claims against or arising through Owner). If Contractor fails to so discharge or promptly bond any such Lien, Owner shall have the right, upon notifying Contractor in writing and providing Contractor reasonable time to discharge or bond the Lien, to take any and all reasonable actions and steps to satisfy, defend, settle or otherwise remove the Lien at Contractor's expense, including reasonable attorneys' fees, costs and expenses. Owner shall have the right to deduct and offset any expenses so incurred from any payment due, or which may become due, to Contractor under this Agreement or to recover those expenses from Contractor. Contractor shall have the right to contest any Lien; *provided* that it first must provide to the lien holder, a court or other third Person, as applicable, a bond or other assurances of payment necessary to remove such Lien in accordance with the Applicable Laws of the State where the System is located.

29. Waiver. The failure of either Party to insist upon or enforce, in any instance, strict performance by the other Party of any of the terms of this Agreement or to exercise any rights herein conferred shall not be construed as a waiver or relinquishment to any extent of its right to assert, or rely upon any such terms or rights on any future occasion. No waiver shall be valid unless stated in writing and executed by the Party so waiving.

30. Dispute Resolution.

30.1 Good Faith Negotiations. In the event that a bona fide good faith dispute, arises out of or is in connection with this Agreement, including any dispute regarding the existence or validity of this Agreement, performance or termination (a "Dispute"), which either Party has notified to the other, senior management personnel from both Contractor and Owner shall meet and diligently attempt in good faith to resolve the Dispute for a period not to exceed thirty (30)

days, unless otherwise mutually agreed upon by the Parties, following one Party's written request to the other Party for such a meeting. If, however, either Party refuses or fails to so meet, or the Dispute is not resolved by negotiation, the provisions of Section 30.2 shall apply.

30.2 Right to Pursue Other Resolution. If the last sentence of Section 30.1 shall be applicable, either Party may pursue such remedies as are available to it at law or in equity in accordance with Article 27. Notwithstanding the foregoing, nothing in this Article 30 shall prevent a Party from pursuing immediate injunctive relief to maintain the status quo or prevent irreparable harm with respect to any Dispute.

30.3 Continued Performance. Subject to the provision of Sections 16.5 and 20.2 permitting Contractor to suspend performance as described therein, the commencement of any dispute resolution procedures specified in this Article 30 shall not excuse Contractor or Owner from continuing to perform its obligations under this Agreement. Contractor and Owner shall continue to perform their obligations hereunder in good faith during any ongoing dispute resolution procedure until final resolution of such dispute is achieved; *provided* Contractor shall continue to be compensated all undisputed amounts due Contractor pursuant to the terms of this Agreement, including payment for all Work which is not the subject of such dispute.

31. Notices and Demands. Except as otherwise expressly provided herein (including with respect to Section 19.3), any notice, request, demand or other communication required or permitted under this Agreement, shall be deemed to be properly given by the sender and received by the addressee if made in writing and (a) delivered in person, (b) mailed, postage prepaid, either by priority or certified mail, return receipt requested, (c) sent by reputable overnight express courier, or (d) transmitted by e-mail if receipt of such transmission by e-mail is specifically acknowledged by the recipient (automatic responses not being sufficient for acknowledgment), addressed in each case to the addresses set forth below, or to any other address either Party shall designate in a written notice to the other Party:

Owner:	Dixon Solar, LLC c/o Brookfield Renewable 200 Liberty St, 14th Floor New York, NY 10281 Attention: John McVaigh, Vice President, Construction Telephone: 717-872-0226 Email: john.mcvaigh@brookfieldrenewable.com
With a copy to:	BGTF UG Cardinal Holdings LLC 200 Liberty St, 14th Floor New York, NY 10281 Attn: General Counsel Telephone: 646-992-2400 Email: Legal.department.na@brookfieldrenewable.com
Contractor:	SunEnergy1, LLC 125 Sweet Meadow Blvd. Suite 220F

Charlotte, NC 28262
Attention: Dirk Corn
Telephone: 704-662-0375
Email: dirk.corn@sunenergy1.com

With a copy to: SunEnergy1, LLC
125 Sweet Meadow Blvd.
Suite 220F
Charlotte, NC 28262
Attention: Legal Department
Telephone: 704-662-0375
Email: legal@sunenergy1.com

32. Nondisclosure; Publicity.

(a) Neither Party (the "Receiving Party") shall use for any purpose other than performing the Work under this Agreement or divulge, disclose, produce, publish, or permit access to, without the prior written consent of the other Party (the "Disclosing Party"), any Confidential Information of the Disclosing Party. "Confidential Information" as used in this Agreement means the terms of this Agreement and the Schedules and Exhibits attached hereto and all non-public, confidential or proprietary information or materials provided by the Disclosing Party or its Affiliates to the Receiving Party in connection with the Work or this Agreement, including designs, drawings, specifications, techniques, models, data, documentation, source code, object code, diagrams, flow charts, research, processes, procedures, know-how, manufacturing, development or marketing techniques and materials, development or marketing timetables, strategies and development plans, customer, supplier or personnel names and other information related to customers, suppliers or personnel, pricing policies and financial information, and other information of a similar nature whether or not reduced to writing or other tangible form, and any trade secrets of the Disclosing Party or its Affiliates. Confidential Information does not, however, include (i) information that was available to the Receiving Party on a nonconfidential basis prior to its disclosure by the Disclosing Party; *provided* that the source of such information was not known by the Receiving Party to be bound by a confidentiality agreement with or other legal obligation of confidentiality to the Disclosing Party with respect to such information, (ii) information that is or becomes generally available to the public other than as a result of a disclosure by the Receiving Party in breach of this Agreement, (iii) information that becomes available to the Receiving Party on a nonconfidential basis from a Person other than the Disclosing Party; *provided* that such Person was not known by the Receiving Party to be bound by a confidentiality agreement with or other legal obligation of confidentiality to the Disclosing Party with respect to such information or (iv) information at any time developed independently by the Receiving Party; *provided*, *however*, that such information is not developed from the Disclosing Party's or its Affiliates' Confidential Information. The Receiving Party shall use a commercially reasonable standard of care to prevent unauthorized use or disclosure of such Confidential Information. Notwithstanding anything herein to the contrary, the Receiving Party has the right to disclose Confidential Information without the prior written consent of the Disclosing Party: (A) to a counterparty to any of the Project Agreements that is not

a party hereto, if reasonably required by the applicable terms of any Project Agreement; *provided* that, as soon as practicable after such disclosure, the Receiving Party shall inform the Disclosing Party thereof, (B) as required by any court or other Governmental Authority, or by any securities exchange on which the shares of any Party are listed, (C) as otherwise required by Applicable Law, (D) as required in connection with any government or regulatory filings, including filings with any regulating authorities covering applicable financial markets, (E) to its Affiliates, Subcontractors, employees, directors, officers, attorneys, accountants, insurers, financial advisors or other agents or contractors, in each case bound by confidentiality obligations no less stringent than those set forth herein, (F) to actual or potential banks, investors and other financing sources, offtakers or power purchasers, and their advisors, in each case bound by confidentiality obligations no less stringent than those set forth herein; or (G) in connection with an actual or prospective merger or acquisition or similar transaction where the party receiving the Confidential Information is bound by confidentiality obligations no less stringent than those set forth herein. If a Receiving Party believes that it will be compelled by a court or other Governmental Authority to disclose Confidential Information of the Disclosing Party, it shall give the Disclosing Party prompt written notice so that the Disclosing Party may determine whether to take steps to oppose such disclosure at Disclosing Party's discretion and sole cost. It is agreed that the Disclosing Party shall be entitled to relief both at law and in equity, including injunctive relief and specific performance, in the event of any breach or anticipated breach of this Section 32(a), without proof of any actual or special damages.

(b) Subject to the foregoing and in accordance with Article 40, the Parties shall jointly agree upon the necessity and content of any press release in connection with the matters contemplated by this Agreement. Any other publication, news release or other public announcement by a Party relating to this Agreement or to the performance hereunder shall first be reviewed and consented to in writing by the other Party, such consent not to be unreasonably withheld. Except as may be prohibited by Applicable Law, Owner agrees that any written press releases or public announcements it makes in relation to this Agreement or the System will identify Contractor as the construction contractor of the project.

33. Time of Essence. Time is expressly agreed to be of the essence of this Agreement and each, every and all of the terms, conditions and provisions herein.

34. Validity. The invalidity, in whole or in part, of any provisions hereof shall not affect the validity of any other provisions hereof.

35. Survival. Articles 1, 2, 4, 12, 16, 17, 18, 19, 21, 22.1, 22.2, 23, 25 (subject to Section 25.4), 26, 27, 28, 29, 30, 31, 32, 35, and 43, Section 5.24 (subject to Section 5.24.6), and the Schedules and Exhibits referenced in such Sections and Articles shall survive termination of this

Agreement for the applicable time period and shall survive final payment to Contractor following Final Completion.

36. Binding Effect. This Agreement shall be binding on the Parties hereto and on their respective permitted successors, heirs and assigns.

37. No Oral Modifications. No oral or written amendment or modification of this Agreement by any officer, director, agent, employee or representative of Contractor or Owner, either before or after execution of this Agreement, shall be of any force or effect unless such amendment or modification is in writing and is signed by an authorized officer or representative of the Party to be bound thereby.

38. Joint Drafting. The Parties have participated jointly in the negotiation and drafting of this Agreement; accordingly, in the event an ambiguity or question of intent or interpretation arises, this Agreement shall be construed as if drafted jointly by the Parties, and no presumption or burden of proof shall arise favoring or disfavoring any Party by virtue of the authorship of any provisions of this Agreement.

39. Counterparts. This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, but all of which shall constitute one and the same instrument. Any counterpart may be delivered by electronic communication in portable document format (.pdf) or tagged image format (.tif), and the Parties agree that their electronically transmitted signatures shall have the same effect as manually transmitted signatures.

40. Announcements and Publications. Each Party shall coordinate with the other Party with respect to, and provide advance copies to such other Party for review of, the text of any proposed announcement or publication that includes any Confidential Information or other non-public information concerning the Work prior to the dissemination thereof to the public or to any Person other than Persons to whom disclosure is allowed pursuant to Section 32(a), in each case, who agree to keep such information confidential. If such other Party delivers written notice rejecting any such proposed announcement or publication to the Party proposing such announcement or publication within five (5) Business Days after receiving such advance copies, the Party proposing such announcement or publication shall not make such public announcement or publication; *provided*, *however*, that either Party may disseminate or release such information in response to requirements of Governmental Authority to the extent required by Applicable Law or the rules of any securities exchange on which the shares of a Party are traded.

41. Entire Agreement. This Agreement, including any Schedules and Exhibits attached hereto and incorporated herein by this reference, constitutes the complete and entire Agreement between the Parties and supersedes any previous communications, representations or agreements, whether oral or written, with respect to the subject matter hereof. There are no additions to, or deletions from, or changes in, any of the provisions hereof, and no understandings, representations or Agreements concerning any of the same, which are not expressed herein, unless stated below. THE PARTIES HEREBY AGREE THAT NO TRADE USAGE, PRIOR COURSE OF DEALING OR COURSE OF PERFORMANCE UNDER THIS AGREEMENT SHALL BE A

PART OF THIS AGREEMENT OR SHALL BE USED IN THE INTERPRETATION OR CONSTRUCTION OF THIS AGREEMENT.

42. No Agency. This Agreement is not intended, and shall not be construed, to create any association, joint venture, agency relationship or partnership between the Parties or to impose any such obligation or liability upon either Party. Neither Party shall have any right, power or authority to enter into any agreement or undertaking for, or act as or be an agent or representative of, or otherwise bind, the other Party.

43. Priority of Documents. In the event of conflicting provisions between any of the Contract Documents, the provisions shall govern in the following priority: first, with respect to technical matters regarding interconnection requirements, the Generation Interconnection Agreement; second, duly executed Change Orders and amendments to this Agreement (to the extent not superseded by a subsequent Change Order or amendment); third, the Articles of this Agreement; fourth, the Schedules and Exhibits of this Agreement; and fifth, the other Contract Documents; provided that in the event of any conflict between the provisions of the Contract Documents and the Project Agreements, the provisions of the Project Agreements, in effect on the Execution Date (except for amendments thereto approved in writing by Contractor) shall control.

44. Assignment.

44.1 Generally. Neither Party shall assign this Agreement or any of its rights hereunder without the prior written consent of the other Party, which consent shall not be unreasonably withheld, denied, conditioned or delayed. Notwithstanding the foregoing, Owner may, upon prior written notice to Contractor, without the need for consent from Contractor (and without relieving itself from liability hereunder), collaterally transfer, pledge or assign its rights and obligations hereunder (a) to any Financing Party as security for any financing or (b) to an affiliated special purpose entity created for the financing or tax credit purposes related to the System; *provided*, *however*, that in the case of any such transfer, pledge or assignment the Owner Guaranty (if it has not already terminated by its terms) remains in full force and effect. Notwithstanding the foregoing, either Party may (i) transfer or assign this Agreement to any person or entity succeeding to all or substantially all of the assets of such Party or (ii) assign its rights under this Agreement to a successor entity in a merger or acquisition transaction; *provided*, *however*, in any case that (A) any such assignee shall agree to be bound by the terms and conditions hereof and (B) (1) in the case of an assignment by Owner, if the Owner Guaranty has not already terminated by its terms, then either (x) the Owner Guaranty remains in full force and effect or (y) such assignee delivers to Contractor a replacement guaranty from a Qualified Guarantor or other performance assurance satisfactory to Contractor in its sole discretion, securing all remaining obligations of Owner to Contractor under this Agreement and (2) in the case of an assignment by Contractor, either (x) the Contractor Guaranty remains in full force and effect or (y) such assignee delivers to Owner a replacement guaranty from a Qualified Guarantor or other performance assurance satisfactory to Owner in its sole discretion, securing all remaining obligations of Contractor to Owner under this Agreement. Any transfer, pledge or assignment made in contravention of this clause shall be void and unenforceable.

44.2 Financing Transactions. With respect to an assignment pursuant to clause (a) in the second sentence of Section 44.1 above, Contractor acknowledges and agrees that, upon

receipt of written direction by a Financing Party, and notwithstanding any instructions to the contrary from Owner, Contractor will recognize such Financing Party, or any third party to whom such Financing Party has reassigned the rights of Owner under this Agreement, as the proper and lawful owner under this Agreement and fully entitled to receive the rights and benefits of Owner hereunder so long as the Financing Party (or its assignee) timely performs the obligations of Owner hereunder and Contractor shall tender performance of any and all other covenants by Contractor under this Agreement to and for the benefit of the Financing Party and as the Financing Party may direct in the future. Contractor shall be protected and shall incur no liability in acting or proceeding in good faith upon any such foregoing written notice and direction by the Financing Party which Contractor shall in good faith believe to be genuine. Contractor shall be under no duty to make any investigation or inquiry as to any statements contained or matters referred to in any such foregoing notice and direction, but may accept and rely upon them as conclusive evidence of the truth and accuracy of such statements.

45. Financing Party Requirements. Contractor acknowledges that Owner may borrow certain funds from the Financing Parties for the System and that, as a condition to making loans to Owner, the Financing Parties may from time to time require certain documents from, and agreements by, Contractor. If requested by Owner, Contractor shall execute a commercially reasonable collateral assignment in favor of the Financing Parties. In connection therewith, Contractor shall (a) execute any commercially reasonable estoppels, amendments and modifications hereto reasonably requested by the Financing Parties, in any case in form and substance reasonably acceptable to Contractor; *provided* that in no event shall Contractor be obligated to execute any documentation that would reasonably be expected to have an adverse effect on its rights or remedies under this Agreement or to expand or materially modify its obligations or liabilities under this Agreement; (b) promptly furnish certificates of good standing, organization certificates and resolutions of Contractor's board of directors (or equivalent governing body) authorizing the execution and delivery of this Agreement as may be reasonably requested by the Financing Parties; and (c) execute commercially reasonable consents and other related documents to the extent reasonably required by the Financing Parties in connection with Owner's financing of the System and this Agreement, in any case in form and substance reasonably acceptable to Contractor, which consents may, among other things, include provisions whereby Contractor agrees to: (i) provide such Financing Parties reasonable notice of and opportunity to cure Owner's defaults hereunder; (ii) allow such Financing Parties (as security for Owner's financing) to be collaterally assigned all of Owner's rights hereunder; (iii) provide for customary review and approvals of various items of Work by the Independent Engineer to supervise the construction of the System on behalf of the Financing Parties, if any; (iv) provide for other commercially reasonable and customary lender protection provisions; and (v) deliver customary legal opinions of counsel to Contractor with respect to Contractor and its interest in this Agreement. Owner shall promptly reimburse Contractor for all actual, demonstrable costs incurred by Contractor in complying with its obligations under this Article 45.

[*Signature page follows*]

IN WITNESS WHEREOF, the Parties have duly executed and delivered this Agreement as of the Execution Date.

DIXON SOLAR, LLC

By: 

Name: Kenny Habul

Title: Manager

SUNENERGY1, LLC

By: 

Name: Kenny Habul

Title: Manager

Execution Version

DIXON SOLAR, LLC
EPC SCHEDULES

Schedules

Schedule 1A	-	Project Schedule
Schedule 1B	-	Performance Tests
Schedule 1C	-	Scope of Work
Schedule 1D	-	Form of Change Order
Schedule 1E	-	Milestone Payment Schedule
Schedule 1F	-	Time and Material Rates Schedule
Schedule 4.1	-	Major Subcontractors
Schedule 4.2	-	Assigned Warranty Equipment Types
Schedule 5.1	-	Technical Specifications/Product Data Sheet and Bill of Materials
Schedule 5.3	-	Prevailing Wage and Apprenticeship Requirements
Schedule 5.4	-	Construction Plans
Schedule 5.5	-	HSSE Requirements
Schedule 5.6	-	Training Course Agenda Outline
Schedule 5.8	-	Spare Parts List
Schedule 5.14	-	Permits
Schedule 5.16	-	Domestic Content Requirements
Schedule 5.21		Compliance Obligations
Schedule 8.1	-	Commissioning Procedures
Schedule 23.4	-	Specified Vendors for Serial Defects Warranties
Schedule 24	-	Insurance Requirements
Schedule 25	-	Owner Equipment Delivery Schedule
Schedule 26	-	Cost Breakdown
Schedule 27	-	Site Information
Schedule 28	-	DAS/SCADA Requirements
Schedule 30	-	Owner Specified Modules

Exhibits

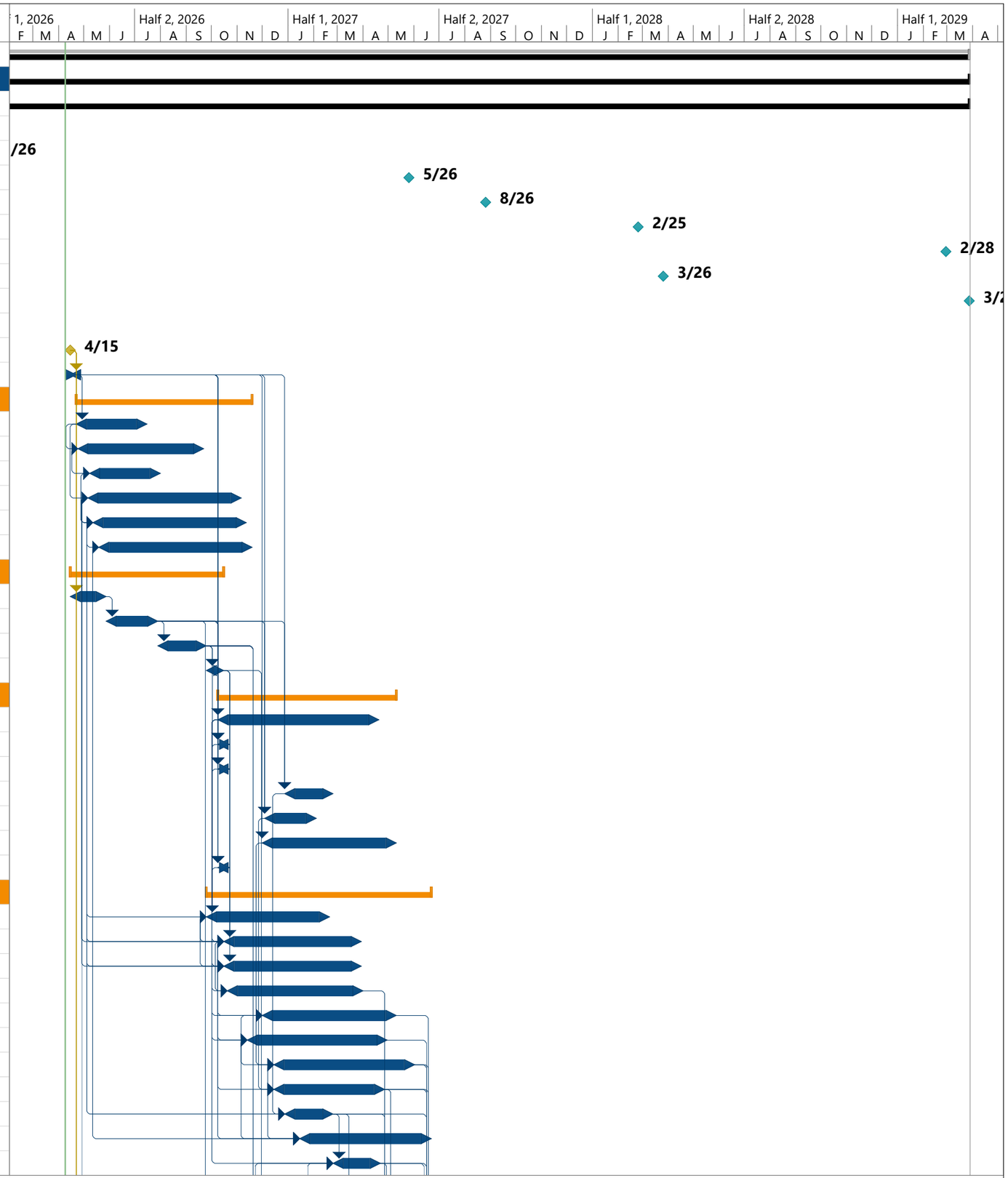
Exhibit 1	-	Description of Site
Exhibit 2	-	Reserved
Exhibit 3	-	Siting Board Obligations
Exhibit 4	-	Form of Certificate of Mechanical Completion
Exhibit 5	-	Form of Certificate of Substantial Completion
Exhibit 6	-	Form of Contractor's Substantial Completion Certifications
Exhibit 7	-	Form of Certificate of Final Completion
Exhibit 8	-	Form of Conditional Waiver and Release (Progress Payment)
Exhibit 9	-	Form of Unconditional Waiver and Release (Progress Payment)
Exhibit 10	-	Form of Conditional Waiver and Release (Final Completion)
Exhibit 11	-	Form of Unconditional Waiver and Release (Final Completion)
Exhibit 12	-	Form of Energization Notice to Proceed
Exhibit 13	-	Form of Performance Bond
Exhibit 14	-	Form of Owner Guaranty
Exhibit 15	-	Form of Contractor Guaranty
Exhibit 16	-	Title Commitment

Schedule 1A

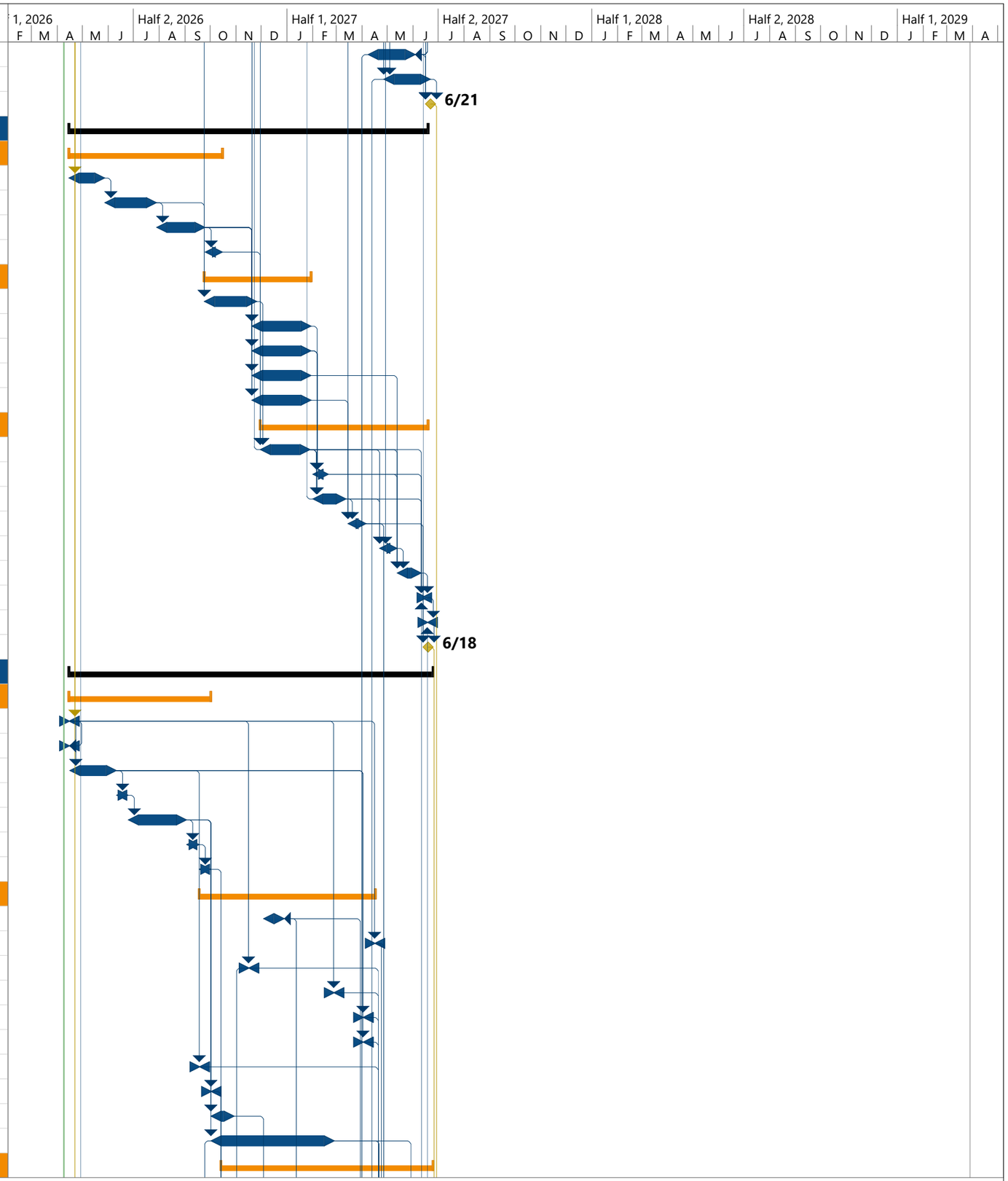
Project Schedule

[Attached]

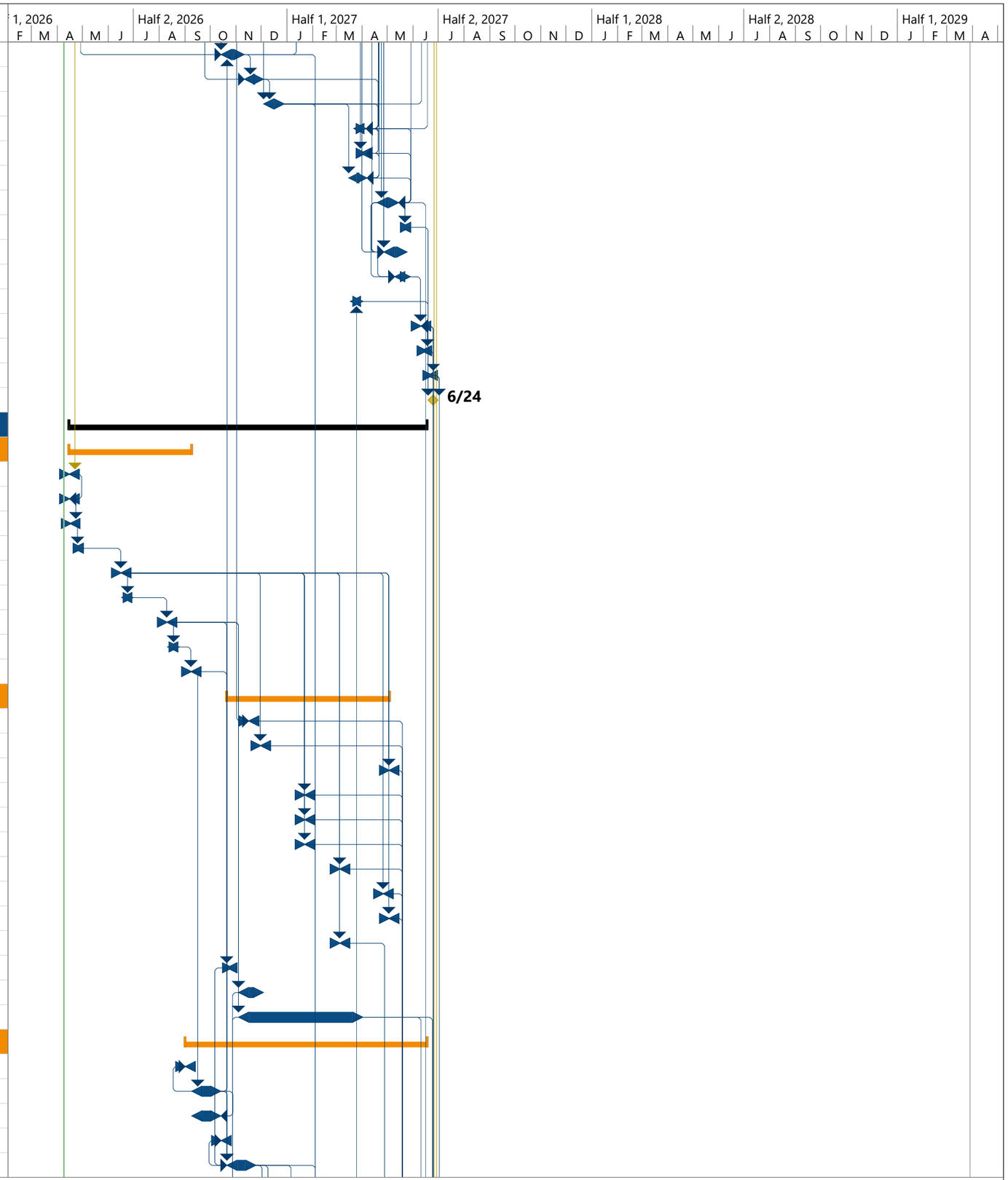
ID	Task Mode	Task Name	Start	Finish
0		**AC1-188/AF2-048 Dixon Solar - EPC Schedule**	**Fri 7/21/23**	**Wed 3/28/29**
1		**PV Facility Construction**	**Fri 7/21/23**	**Wed 3/28/29**
2		**PJM Milestones**	**Tue 8/26/25**	**Wed 3/28/29**
3		Obtain All Necessary Permits	Tue 8/26/25	Tue 8/26/25
4		(MOU) Major Electrical Aquisition	Fri 12/26/25	Fri 12/26/25
5		All Generating Units Delivered to site	Wed 5/26/27	Wed 5/26/27
6		20% Site Work Complete	Thu 8/26/27	Thu 8/26/27
7		COD (AC1-188 Dixon Solar) - PJM/GIA	Fri 2/25/28	Fri 2/25/28
8		COD (AF2-048 June Solar) - PJM/GIA	Wed 2/28/29	Wed 2/28/29
9		Submit As-builts (AC1-188 Dixon Solar)	Sun 3/26/28	Sun 3/26/28
10		Submit As-builts(AF2-048 June Solar)	Wed 3/28/29	Wed 3/28/29
11		Regulatory Approvals & Construction Permits	Fri 7/21/23	Wed 12/31/25
12		NTP	Wed 4/15/26	Wed 4/15/26
13		Mobilization & Site Setup	Wed 4/15/26	Tue 4/21/26
14		**PV Civil**	**Wed 4/22/26**	**Wed 11/18/26**
15		Install Silt Fence	Wed 4/22/26	Wed 7/15/26
16		Install Diversion Ditches	Fri 4/24/26	Mon 9/21/26
17		Install Basins	Fri 5/8/26	Fri 7/31/26
18		Access Pathways & Laydown Areas	Wed 5/6/26	Thu 11/5/26
19		Rough Grade	Tue 5/12/26	Wed 11/11/26
20		Final Grade	Tue 5/19/26	Wed 11/18/26
21		**PV Engineering**	**Wed 4/15/26**	**Thu 10/15/26**
22		30% Design	Wed 4/15/26	Wed 5/27/26
23		60% Design	Thu 5/28/26	Tue 7/28/26
24		90% Design	Wed 7/29/26	Thu 9/24/26
25		Issue for Construction	Fri 9/25/26	Thu 10/15/26
26		**PV Procurement**	**Fri 10/9/26**	**Mon 5/10/27**
27		Receive Racking On-site	Fri 10/9/26	Mon 4/19/27
28		Receive DC Feeder Wire On-site	Fri 10/9/26	Thu 10/22/26
29		Receive MV Wire On-site	Fri 10/9/26	Thu 10/22/26
30		Receive Inverters/MV Transformers On-site	Mon 12/28/26	Tue 2/23/27
31		Receive Combiner Boxes On-site	Fri 12/4/26	Wed 2/3/27
32		Receive Panels On-site	Tue 12/1/26	Mon 5/10/27
33		Receive PV Stringwire On-site	Fri 10/9/26	Thu 10/22/26
34		**PV Array Construction**	**Fri 9/25/26**	**Mon 6/21/27**
35		Post Survey	Fri 9/25/26	Fri 2/19/27
36		Install Combiner Posts	Fri 10/16/26	Mon 3/29/27
37		Install Racking Posts	Fri 10/16/26	Mon 3/29/27
38		Install DC Feeder Cables to Inverter	Tue 10/20/26	Wed 3/31/27
39		Install PV Wire Home-runs to Combiners	Tue 12/1/26	Mon 5/10/27
40		Install Racking	Fri 11/13/26	Thu 4/29/27
41		Install Panels	Tue 12/15/26	Tue 6/1/27
42		Install Combiner Boxes	Tue 12/15/26	Mon 4/26/27
43		Install Inverters/XFMRs (set & anchor)	Mon 12/28/26	Tue 2/23/27
44		PV Fencing	Fri 1/15/27	Mon 6/21/27
45		Install OH MV	Wed 2/24/27	Wed 4/21/27



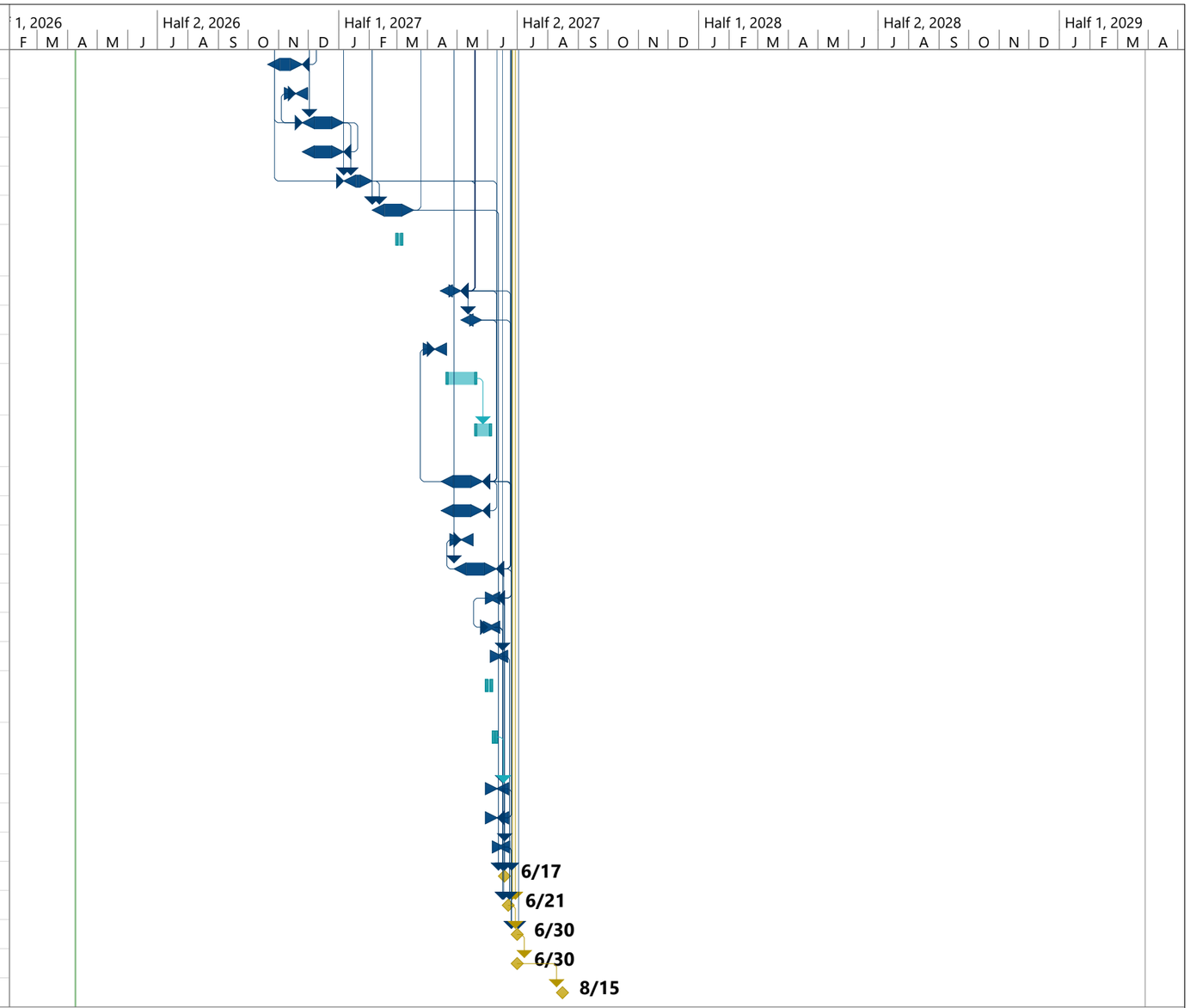
ID	Task Mode	Task Name	Start	Finish
46		PV Stringwire Terminations	Thu 4/8/27	Thu 6/3/27
47		Inverter Terminations	Tue 4/27/27	Mon 6/21/27
48		PV Construction Complete	Mon 6/21/27	Mon 6/21/27
49		**Overhead Distribution**	**Wed 4/15/26**	**Fri 6/18/27**
50		**Distribution Engineering**	**Wed 4/15/26**	**Thu 10/15/26**
51		30% Design	Wed 4/15/26	Wed 5/27/26
52		60% Design	Thu 5/28/26	Tue 7/28/26
53		90% Design	Wed 7/29/26	Thu 9/24/26
54		Issue for Construction	Fri 9/25/26	Thu 10/15/26
55		**Distribution - Procurement**	**Thu 9/24/26**	**Fri 1/29/27**
56		Receive Poles and Crossarms	Thu 9/24/26	Wed 11/25/26
57		Receive Insulators	Fri 11/20/26	Fri 1/29/27
58		Receive Hardware	Fri 11/20/26	Fri 1/29/27
59		Receive Conductor	Fri 11/20/26	Fri 1/29/27
60		Receive Fiber	Fri 11/20/26	Fri 1/29/27
61		**Distribution - Construction**	**Mon 11/30/26**	**Fri 6/18/27**
62		Set Poles	Mon 11/30/26	Thu 1/28/27
63		Install Insulators, Anchors and Guys	Mon 2/1/27	Fri 2/19/27
64		Install Riser Conduit	Mon 2/1/27	Fri 3/12/27
65		Install Fiber	Mon 3/15/27	Mon 4/5/27
66		MV 35 kV Terminations (Potheads)	Thu 4/22/27	Wed 5/12/27
67		String & Sag Conductors (477 ACSR + 4/0 Neutr	Thu 5/13/27	Thu 6/10/27
68		Install UG Riser Conduit at Substation	Fri 6/11/27	Thu 6/17/27
69		Terminate OH to 35 kV Substation Entry	Fri 6/18/27	Fri 6/18/27
70		Distribution Complete	Fri 6/18/27	Fri 6/18/27
71		**Collector Station**	**Wed 4/15/26**	**Thu 6/24/27**
72		**Collector Engineering**	**Wed 4/15/26**	**Thu 10/1/26**
73		30% Design	Wed 4/15/26	Wed 4/15/26
74		SE1 Review	Wed 4/15/26	Wed 4/15/26
75		60% Design	Thu 4/16/26	Wed 6/10/26
76		SE1 Review	Thu 6/11/26	Wed 6/24/26
77		90% Design	Thu 6/25/26	Wed 9/2/26
78		SE1 Review	Thu 9/3/26	Thu 9/17/26
79		IFC Package	Fri 9/18/26	Thu 10/1/26
80		**Collector Procurement**	**Fri 9/18/26**	**Fri 4/16/27**
81		MPT Assembled, Oil Filled & Tested	Fri 12/4/26	Mon 12/28/26
82		Receive Control Enclosure	Fri 4/16/27	Fri 4/16/27
83		Receive 138 kV Circuit Breaker	Mon 11/16/26	Mon 11/16/26
84		Receive Disconnect Switches	Fri 2/26/27	Fri 2/26/27
85		Receive 34.5kV Feeder Breakers	Fri 4/2/27	Fri 4/2/27
86		Receive 138 kV CCVTs	Fri 4/2/27	Fri 4/2/27
87		Receive 35.5kV VTs	Fri 9/18/26	Fri 9/18/26
88		Receive Anchor Bolts	Fri 10/2/26	Fri 10/2/26
89		Receive Steel Structures	Fri 10/2/26	Thu 10/29/26
90		Receive Balance of Materials	Fri 10/2/26	Fri 2/26/27
91		**Collector Construction**	**Wed 10/14/26**	**Thu 6/24/27**



ID	Task Mode	Task Name	Start	Finish
92		Install Foundation	Wed 10/14/26	Tue 11/10/26
93		Grounding & Below Grade Conduit	Wed 11/11/26	Thu 12/3/26
94		Set Steel	Fri 12/4/26	Mon 12/28/26
95		Equipment Setting	Mon 3/22/27	Mon 4/5/27
96		Apparatus Testing	Tue 3/30/27	Mon 4/5/27
97		Bus Work & Above Grade Conduit	Tue 3/16/27	Tue 4/6/27
98		Pull and Terminate Control Cables	Mon 4/19/27	Fri 5/14/27
99		Gravel Yard	Mon 5/17/27	Fri 5/28/27
100		Install SCADA	Tue 4/27/27	Mon 5/24/27
101		Preliminary Testing & Commissioning	Mon 5/10/27	Fri 5/28/27
102		Substation Fence	Thu 3/18/27	Thu 4/1/27
103		Energize Collector Station	Thu 6/10/27	Thu 6/10/27
104		Transformer Soak	Fri 6/11/27	Thu 6/17/27
105		Final Testing & Commissioning	Fri 6/18/27	Thu 6/24/27
106		Collector Station Complete	Thu 6/24/27	Thu 6/24/27
107		**Terrapin Switching Station**	**Wed 4/15/26**	**Thu 6/17/27**
108		**Switching Station Engineering**	**Wed 4/15/26**	**Tue 9/8/26**
109		Scoping issued to Leidos	Wed 4/15/26	Wed 4/15/26
110		Detailed scopes approved by AEP	Wed 4/15/26	Wed 4/15/26
111		30% Issued to Leidos	Thu 4/16/26	Fri 4/17/26
112		Leidos Comments	Mon 4/20/26	Fri 5/1/26
113		60% Issued to Leidos	Tue 6/16/26	Tue 6/16/26
114		Leidos Comments	Wed 6/17/26	Tue 6/30/26
115		90% Issued to Leidos	Mon 8/10/26	Mon 8/10/26
116		Leidos Comments	Tue 8/11/26	Mon 8/24/26
117		Issue IFC	Tue 9/8/26	Tue 9/8/26
118		**Switching Station Procurement**	**Wed 10/21/26**	**Mon 5/3/27**
119		Receive 138 kV Circuit Breakers	Mon 11/16/26	Mon 11/16/26
120		Receive Disconnect Switches	Mon 11/30/26	Mon 11/30/26
121		Receive 138 kV CCVTs	Mon 5/3/27	Mon 5/3/27
122		Receive 138 kV CTs	Fri 1/22/27	Fri 1/22/27
123		Receive 138 kV VTs	Fri 1/22/27	Fri 1/22/27
124		Receive Motor Operator Switch	Fri 1/22/27	Fri 1/22/27
125		Receive Wave Trap	Fri 3/5/27	Fri 3/5/27
126		Receive 138 kV SSVT	Mon 4/26/27	Mon 4/26/27
127		Receie 88kV MCOV Arrester	Mon 5/3/27	Mon 5/3/27
128		Receive Control Enclosure	Fri 3/5/27	Fri 3/5/27
129		Receive Anchor Bolts	Wed 10/21/26	Tue 10/27/26
130		Receive Structural Steel	Wed 11/4/26	Thu 12/3/26
131		Receive Balance of Materials	Wed 11/4/26	Thu 4/1/27
132		**Switching Station Construction**	**Tue 9/1/26**	**Thu 6/17/27**
133		Station Pad Pre-con AEP HOLD POINT	Tue 9/1/26	Tue 9/1/26
134		Grading (Includes AEP Pad Check)	Wed 9/9/26	Tue 10/13/26
135		Station Pad Closeout AEP HOLD POINT	Wed 9/9/26	Tue 10/13/26
136		Concrete Pre-Con AEP HOLD POINT	Wed 10/14/26	Wed 10/14/26
137		Foundations	Wed 10/21/26	Tue 11/24/26



ID	Task Mode	Task Name	Start	Finish
138		Concrete Closeout AEP HOLD POINT	Wed 10/21/26	Tue 11/24/26
139		Below Grade Pre-Con AEP HOLD POINT	Wed 11/18/26	Wed 11/18/26
140		Grounding & Below Grade Conduit	Wed 11/25/26	Tue 1/5/27
141		Below Grade Closeout HOLD POINT	Wed 11/25/26	Tue 1/5/27
142		Set Steel	Wed 1/6/27	Wed 2/3/27
143		Switchyard Fence	Thu 2/4/27	Wed 3/17/27
144		AEP Outage #1 (eDART XXXXXXX) AEP Pier Foundations 39A, 39B & STR 40	Mon 3/1/27	Fri 3/5/27
145		Equipment Setting	Wed 4/14/27	Tue 5/4/27
146		Apparatus Testing	Wed 5/5/27	Tue 5/25/27
147		Welding Pre-Con AEP HOLD POINT	Thu 4/8/27	Thu 4/8/27
148		AEP Outage #2A (eDART XXXXXXX) Tie in (Cut in) Bay 1 and Bay 2	Wed 4/21/27	Wed 5/19/27
149		AEP Outage #2B (eDART XXXXXXX) Tie in (Cut in) Bay 1 and Bay 2	Thu 5/20/27	Thu 6/3/27
150		Bus Work & Above Grade Conduit	Thu 4/15/27	Wed 5/26/27
151		Welding Closeout AEP HOLD POINT	Thu 4/15/27	Wed 5/26/27
152		Testing & Commissioning Pre-Con AEP HOLD P(	Wed 5/5/27	Wed 5/5/27
153		Pull and Terminate Control Cables	Wed 4/28/27	Wed 6/9/27
154		SE1 Install Station Stone	Tue 6/1/27	Thu 6/10/27
155		AEP Inspect Station	Tue 6/1/27	Tue 6/8/27
156		Mechanical Completion AEP HOLD POINT	Wed 6/9/27	Tue 6/15/27
157		AEP Outage #4 (eDART XXXXXXX) Addison Station's Settings Updates	Mon 5/31/27	Fri 6/4/27
158		(Contingency) Dixon Outage #3 (eDART XXXXXXX) Tie-in 130kV Breaker	Mon 6/7/27	Wed 6/9/27
159		Energize Switchyard	Thu 6/10/27	Thu 6/10/27
160		Backfeed Collector Station	Thu 6/10/27	Thu 6/10/27
161		Final Testing & Commissioning	Fri 6/11/27	Thu 6/17/27
162		Switchyard Complete	Thu 6/17/27	Thu 6/17/27
163		Mechanical Completion	Mon 6/21/27	Mon 6/21/27
164		Substantial Completion	Wed 6/30/27	Wed 6/30/27
165		COD	Wed 6/30/27	Wed 6/30/27
166		Final Completion	Sun 8/15/27	Sun 8/15/27



Schedule 1B

Performance Tests

Three DAY PERFORMANCE TEST

1.0 Definitions

1.1 "Clipping" means when an inverter's output is limited by its AC nameplate rating.

1.2 "Commencement Date" means the initial start date for the Performance Test

1.3 "Effective Availability" means the Measured Effective Availability defined by 4.4.2.

1.4 "Expected Facility Performance" means the Performance Test Energy Model predicted performance ration target from Section 5.2.

1.5 "Measured Facility Performance" means the Measured Facility Performance defined in Section 4.4 of this Schedule 1B.

1.6 "Minimum Facility Performance" means 92.5% of the Expected Facility Performance.

1.7 "Interruptions" means any Force Majeure Events, excusable events or outages due to curtailment.

1.8 "Performance Test Energy Model" means the PVSYST model prepared by Natural Power and dated as of [ ][1] as attached hereto as Attachment A, and related post-processing software utilizing input assumptions set forth in Section 5.1 of this Schedule 1B.

1.9 "Reference Period" means a 3-day duration for the Performance Test beginning on the Commencement Date. The Reference Period shall only be extended if one of the conditions of 4.3 or 4.4.2 is met.

1.10 "STC" means irradiance of 1000 Watts/m^2 and cell temperature of 25°C.

[1] [NTD: To be inserted when PvSyst finalized.]

2.0 Pretest activities

2.1 Contractor/Owner Representatives: Prior to the Commencement Date, Owner and Contractor shall each identify lead representatives for the Performance Test.

2.2 Module Flash Test Analysis: Prior to the Commencement Date, Contractor shall obtain from module supplier, a list of all module flash test results from the PV module manufacturer and calculate the total installed DC capacity of the Facility by summing the measured power output of each module at STC as reported in the flash test results.

The sum of all flash test data provided shall be at least equal to the Contract DC Rating of 210 MW (DC). This requirement shall be satisfied before the performance ratio test can commence. The list and calculation shall be submitted in Microsoft Excel spreadsheet format and both Owner and Contractor can validate the DC rating of the installed modules. All flash test results of the PV module manufacturer(s) shall be in accordance with methods and test standards as defined by Sandia National Laboratories PV Characterization Method or other as reasonably approved by Owner.

2.3 Instruments and Calibration: Prior to the Commencement Date, Contractor shall obtain calibration certificates for all instruments to be used in the Performance Ratio Test and deliver them to Owner along with verification of proper equipment mounting and orientation. For the purpose of this test, the following instrumentation shall be used:

2.3.1 **AC Energy** will be measured by the primary project meter(s) which will be the revenue meter(s) used by the Facility for billing to Owner in accordance with the Power Purchase Agreement and Interconnection Service Agreement. The revenue meter shall meet the ANSI C12 standard and also be calibrated by a qualified technician. For sites with multiple interconnect points, the sum of all revenue grade meters for the Site will be used as total AC Energy output for the site.

2.3.2 **Plane of Array (POA) solar irradiance** will be measured by at least one (1) calibrated pyranometer mounted in the plane of the array of the modules. For a tracking system, the pyranometer will be mounted on trackers that are representative of the overall orientation of all tracking systems in the field. If horizon losses are present, the pyranometer will be positioned near the center of the field or dispersed so that they are representative of the overall site horizon. The pyranometer will be verified to be clean and free from shadings for the entire test period. The pyranometer used for this test shall be ISO 9060 second-class instruments (secondary-standard are preferred).

2.3.3 **Module Temperature** will be measured by at least one (1) thermocouple adhered to the back of an operational module located so that the temperature is representative of the average module.

2.3.4 **Horizontal (GHI) solar irradiance** will be measured by at least one (1) calibrated pyranometer which will be used to verify the correct orientation and accuracy of the POA irradiance.

2.4 System Demonstration: Prior to the Commencement Date, Contractor shall demonstrate that the entire facility can operate unattended with automatic operation and expected startups at dawn and shutdowns at dusk. The system demonstration test shall include the following:

2.4.1 **Inverters:** Inverters shall start at wake-up voltage. Inverters shall react properly to ac and dc disconnections. Maximum power point tracking (MPPT) shall be fully functional. The disconnection of the grid/MV interconnection shall be functional during grid/MV interconnection fault or failure.

2.4.2 **DAS:** Data shall be verified to be present and flowing through the DAS in the format that is downloadable by the Owner. All required points for the Performance Test shall be validated for proper configuration.

2.4.3 **Weather station:** The POA sensors shall be free from shade, projected over the entire year. GHI sensors shall be free from shade, projected over the entire year.

2.4.4 **Fixed Tilt (If Applicable):** Shall function normally and to expected orientation within an acceptable level of error.

3.0 PERFORMANCE TEST Summary

3.1 Purpose: The Performance Test is intended to provide a representative measure of a photovoltaic system's long-term performance over a shortened time period, in this case, three days. The performance ratio of a solar plant is defined as the metered energy production divided by the theoretical maximum energy production given varying irradiance and temperatures. This test is intended to provide an energy rating, not a power rating.

3.2 Guaranteed Facility Performance: The Measured Facility Performance shall be no less than the Minimum Facility Performance over the Reference Period (the "Guaranteed Facility Performance").

4.0 PERFORMANCE TEST Procedure and calculations

Beginning on the Commencement Date, Owner shall conduct the Performance Test for the Reference Period, comparing the Measured Facility Performance to the Expected Facility Performance. Owner shall perform the Performance Test in accordance with the procedures, conditions and requirements contained herein.

4.1 Data Collection: Facility test related parameters shall be collected at a frequency of at least 1-minute instantaneous intervals. The data shall consist of the measured project met data, the measured energy of the facility, and the measured AC energy from each Inverter during the Reference Period.

4.2 Compile Test Data Set: The instantaneous sampled test data shall be aggregated into 1, 5 or 15-minute values and averaged across the number of same measurement instruments to produce average 15-minute interval data.

4.3 Test Data Set Filtering: The 15-minute data is then analyzed and any nuisance data points and bad data that exhibit a high degree of error (such as errors caused by faulty instrumentation) are removed from the data set. Owner shall document data that is eliminated based upon faulty instrumentation or erroneous data points. If any of the parameters (AC energy, plane-of-array irradiance, or module temperature) are missing for a given 1, 5 or 15 minute interval, all data for this averaging interval shall be excluded. In the event that the overall filtering due to sensor error is greater than 12-hours, then the test will be extended hour for hour beyond the expected Reference Period.

The following data shall also be filtered from the dataset for the purpose of calculating the Measured Performance Ratio:

4.3.1 POA Irradiance <100 W/m^2: All data during 1, 5 or 15-minute intervals with average POA Irradiance <100 W/m^2 will be excluded.

4.3.2 Clipping: All data during averaging intervals where the output of one or more inverters is being affected by clipping will be excluded. Clipping shall be determined by checking if any of the inverter outputs are greater than 98% of the maximum AC inverter rating.

4.4 Calculate the Measured Facility Performance: The "Measured Facility Performance" shall equal the measured-adjusted performance ratio of the facility, calculated as follows, adjusting for module temperature and effective inverter availability.

$$PR_{madj} = \frac{\sum_i E}{kWp * \frac{\sum_i I_{POA}}{I_{STC}} * T_{corr} * A_{corr}}$$

Where,

PR_{madj} = Measured adjusted performance ratio

E = AC electrical generation (kWh) measured at the utility meter for each included 1, 5 or 15-min time interval

kWp = Contract nameplate rating capacity of modules kW DC

I_{POA} = Plane of array irradiance measurements (Wh/m^2) measured for each included 1, 5 or 15-min time interval

I_{STC} = Irradiance at STC conditions (1,000 W/m^2)

T_{corr} = Module Temperature Correction Factor

A_{corr} = Effective Availability Correction Factor

i = The index for all time intervals in the reference period after filtering

4.4.1 Module Temperature Correction Factor is defined as:

$$T_{corr} = 1 + \alpha \left(t_{wsamp} - t_{west}\right)$$

Where,

α = Temperature Coefficient of Power for the module (negative number).

t_{west} [°C] = the Average Irradiance-weighted Modeled Module Temperature of the PV system for a given month as calculated using the (commonly hourly) data output of the energy production model and defined in Section 5.2.

t_{wsamp} [°C] = the Average Irradiance-weighted Measured Module Temperature over the test period

$$t_{wsamp} = \frac{\sum_i t_i I_{POAi}}{\sum_i I_{POAi}}$$

Where,

t_i is the cell temperature for a given time interval, I_{POAi} is the irradiance incident to the module during the given time interval, and *i* is the index for all time intervals in the reference period after filtering.

4.4.2 Effective Availability Correction Factor is defined as:

$$A_{corr} = \frac{\sum_i E_i}{\sum_i E_i / Avail_i}$$

Where,

$Avail_i$ = Site availability calculated for each included 15-minute interval by the following equation:

$$Avail_i = \frac{kWdc\ Operating}{kWdc\ Installed}$$

Where,

kWdc Operating = Sum of the nameplate kWdc capacity of all Operating Inverters

kWdc Installed = Sum of the nameplate kWdc capacity of all installed inverters

4.4.2.1 ***Minimum Availability Requirements:*** *While it is natural for some level of unavailable time to occur during the test period, a minimum level of availability must be defined to accurately measure system performance. Therefore, the Effective Availability Calculation shall be 90% or greater during the period of the performance test and all individual inverters shall qualify as Operating Inverters for at least 90% of the intervals during the Reference Period. If this does not occur, the test will be extended until all inverters have achieved this requirement for on-line operation.*

4.4.2.2 ***Site Interruptions:*** *In the event of an availability outage or interruption that affects greater than 20% of the site, the entire interval periods during the interruption shall be removed from the calculation. In the event that the overall filtering due to site interruptions is greater than 12 hours, the test will be extended hour for hour beyond the expected Reference Period. Interruptions may include Force Majeure Events, output restrictions due to grid conditions, or curtailment. Periods affected by snow cover will also be treated as a Site Interruption.*

5.0 Performance Test Targets

5.1 Performance Test Energy Model: The performance test targets will be determined based on the site's Performance Test Energy Model, calculated using PVSYST Version 7 or later. Performance test targets will be calculated from the PVSYST hourly model results (8760 output file), following any associated post-processing agreed upon calculations. A copy of the output report and associated loss factors in supplied in Attachment A.

5.1.1 Loss Exclusions: The Performance Test Energy Model will be identical to the Long Term Energy Model, with the exception of the following production losses. These losses shall be disregarded from the energy model and these results have been used to define the values of PR_{exp} .in the table:

- **Soiling:** Production losses due to Soiling shall be capped at 1.0%
- **Degradation:** Module long term degradation affects shall be removed.
- **Availability:** System availability shall be removed.

5.1.2 Filtering of Model Results: The resulting hourly output file (8760) shall furthermore be filtered to remove the following situations:

- **POA Irradiance <100 W/m^2:** All data during intervals with POA Irradiance <100 W/m^2 will be excluded.
- **Clipping:** All data during intervals where the output of one or more inverters is being affected by clipping will be excluded.

5.1.3 Weather Data Requirements: Weather Resource Data used in the Energy Model shall be NSRDB (National Solar Resource Database) TMY2 class 1 or class 2 if project location is less than 25 km from a NSRDB meteorological station or else SUNY Perez Satellite data interpolated to project location, or another reliable weather data source mutually agreed to by both parties.

5.2 Performance Test Targets[2]: Expected Facility Performance (PRexp) and Twest value calculations have been calculated according to the above procedures and are defined according to the table below. Tests that are conducted across months will be prorated respectively.

	PR_{exp}	**T_{west}**
Month	*%*	*DegC*
January	[ ]	[ ]
February	[ ]	[ ]
March	[ ]	[ ]
April	[ ]	[ ]
May	[ ]	[ ]

[2] [NTD: Pending receipt of PvSyst.]

June	[_____]	[_____]
July	[_____]	[_____]
August	[_____]	[_____]
September	[_____]	[_____]
October	[_____]	[_____]
November	[_____]	[_____]
December	[_____]	[_____]

Attachment A

Performance Test Energy Model

[Attached][3]

[3] [NTD: PvSyst to be attached post-closing – pending receipt from IE].

Schedule 1C

Scope of Work

General

Contractor shall furnish all service, materials, labor, tools, equipment, system drawings and everything necessary to undertake and complete the work needed to design and construct the System at the location identified below and further described in Exhibit 1.

Address	City	State	Zip
1378 Luther Jones Rd.	Jackson County	Ohio	45640

Site	Dixon Solar, LLC
Size (MWp)	210
Size (MWac)	140
Expected 1st Yr. Prod. (MWh) (excluding availability)	[ ] MWh[4]

1. INTRODUCTION

Contractor's Scope of Work is to develop, permit, engineer, design, procure, construct, interconnect (as set forth below), commission, startup and test a turnkey photovoltaic ("PV") facility which is built to a nameplate capacity of 210 MW (DC) and which performs to an agreed upon Performance Guarantee as outlined in Schedule 1B. Contractor's interconnection obligation shall be limited to the following:

Contractor will build a 34.5 KV to 138 KV collector substation and connect all transformers to the owner termination (connection) Collector Substation in a position determined by utility and

[4] [NTD: Pending receipt of PvSyst – to be added post-closing].

Contractor. The Contractor shall design and construct the Project to permit compliance with the Generation Interconnection Agreement.

Contractor will design all aspects of the System, including the layout, civil, electrical and structural components. All final design drawings shall be issued by Contractor for the System and shall be approved by Owner in accordance with this Agreement.

Contractor will comply with all Department of Transportation, electrical, building permits and equipment manufacturers guidelines as required.

Contractor will procure, (except as set forth in the paragraph below) or have procured by Subcontractors, all Materials required to build and commission the Facility according to this Scope of Work and the System drawings and all applicable codes and standards, and the Interconnection Service Agreement.

Except as otherwise expressly provided in the Agreement, Owner is not responsible for providing any material, labor or services of any kind during Contractor's execution of the Work. Contractor is fully responsible for all electrical permitting, engineering, procurement, construction, Contractor's scope of interconnection, startup, and testing activities and will deliver a complete and operational PV System to Owner.

2. SYSTEM DESIGN

Contractor shall design and build a ground mount, fixed tilt, photovoltaic solar energy generation facility. The Project will be designed and built to operate at a maximum DC voltage of 1500 volts (DC) and will interconnect to the project substation at 34.5 kV (AC).

The facility will be designed for a useful life of **40** years.

2.1. Equipment.

- Solar modules: Owner shall supply and Contractor shall install First Solar Series 7 TR1 - 550W Average Modules for the System.
- Mounting system: Contractor shall supply and install OMCO Choice / racking as the mounting system for the solar modules. The system shall be composed of galvanized steel and aluminum. The racking manufacturer will supply a suitable twenty (20) year warranty for the installed structure and the racking design will be approved by the solar module manufacturer.
- Inverters: Contractor shall supply and install forty (40) SG4400UD-MV-US inverters. Inverters shall be software limited and nameplated by the manufacturer to limit output to 140 MW/AC at the POI. This rating is determined to be approximately 3500 kW per inverter.
- Main Power Transformer: Contractor shall supply and install one (1) 138 kV Power Transformer 175 MVA.

- Transformers: Contractor shall supply and install forty (40) 4400KVA step-up or equivalent transformers with parallel connections to a single secondary winding suitable for connection with the inverters for the System.

- High Voltage Breaker: Contractor shall supply and install two (2) 138 kV, 1200A, 63kA, Live Tank Circuit Breakers.

- Metering systems: Contractor shall install all metering as defined in the Generation Interconnection Agreement.

- Electrical Interconnection: Contractor shall interconnect the System at the Delivery Point pursuant to the Generation Interconnection Agreement.

- Contractor shall order System component parts referenced in Bill of Materials provided in Schedule 5.1 and all other equipment necessary for Substantial Completion of the System.

2.2. Monitoring System: Contractor shall supply and install monitoring hardware and software as described further in this Scope of Work. The monitoring system will allow the Owner to check the inverter electrical parameters, status, and the information from the weather sensors. The data will show the performance of the plant. The hardware will include electrical protections like surge arresters, and a power supply.

2.3. Drawings. The drawings and data that describe the existing site and the design and construction of the System are included in Schedule 5.4.

2.4. Applicable Codes and Standards. The Project's engineering, design, construction, startup and testing shall follow the applicable codes, standards and publications that are in effect on the date Notice to Proceed is issued and which are consistent with Industry Standards, not limited to those listed below. Contractor will seek written approval from Owner for any variances to codes or standards requested through the AHJ. Written approval will not be unreasonably withheld if Contractor seeks local AHJ Variance.

- Building Code of Jackson County and current National Electric Code with local amendments (NEC)

- International Building Code 2021 Edition, with local amendments

- ASCE 7-10 for building design loads (or more recent as specified by AHJ)

- AISC Allowable Stress Design for galvanized steel post

- National Bureau of Standards model for Allowable Stress Design for un-galvanized steel post

- Aluminum Design Manual 2010 Edition for the aluminum structure

- IEEE 1547 and 929 for interconnect work

- NBS for instruments / calibration

3. PERMITS

All applicable Permits required to execute the Work, interconnect and operate the System through Final Completion are the responsibility of the Contractor. The cost of preparing, filing and obtaining the Permits is included in the Contract Price. Contractor shall provide Owner copies of all approved Permits and applications for Permits still in process on the effective date of this Agreement.

4. PROJECT MANAGEMENT

Contractor shall have project management responsibilities for the duration of the Work.
Contractor shall appoint a single representative as its Project Manager.

5. ENGINEERING

5.1. Contractor is responsible for all engineering and design. For the 90% Design Documents, and where otherwise required by applicable Law or Permits, drawings and documentation shall be signed and sealed by a professional engineer registered in the state of Ohio.

5.2. Contractor will submit to Owner design drawings, data, and documents.

5.3. Owner Independent Engineer shall provide the PVSyst Solar Production Simulation as it is completed and issued in final form.

5.4. Detailed Site Layout and Design

- It is the responsibility of Contractor to generate a site layout that specifies a System with a DC capacity of 210 MWDC. The sum of the nameplate AC capacities of the inverters shall be 140 MWAC (Limited to 140 MWAC at the POI). The DC portion of the System, which is defined as the sum of the nameplate capacities of the solar modules under Standard Test Conditions, shall be at least 210 MW (DC).

- The site layout shall include the location of PV arrays, power stations, fencing, laydown / staging areas, site access roads and any other permanent features of the System such as landscaping, zoning ordinance provisions, and storm water management provisions, if applicable. The site layout shall include pictorial indications of key equipment features (e.g. control enclosures, interconnect point and equipment, and switchgear) so that the detailed designers and construction subcontractors can determine how the equipment and foundations are to be oriented on site.

- Contractor shall generate a site plan, which indicates the civil, structural and electrical Work that is required for the successful completion of the System and for permitting. Layout will correspond with the survey to be performed by surveyor mutually accepted by Owner and Contractor, said survey to be provided by the Owner. The property is approximately 2250 +/- acres.

- Contractor to provide detailed design drawing packages, including calculations, at the agreed stages (30%, 60%, 90%, IFC) pursuant to the dates identified in Schedule 5.4.

- The "60% Design Documents" shall mean a reasonably complete design package. Many of the design submittals may be preliminary or conceptual in nature, without having all exact details defined. 60% Design Documents shall be provided as a single comprehensive submittal in PDF and DWG format. Subject to AHJ permit submittal requirements, 60% Design Documents could be used as the IFP package. To the extent possible, all PDFs shall be combined into a single file

  - The "90% Design Documents" shall mean a nearly complete design package issued for approval, but prior to issuance for Permit approval, of all construction drawings and related plans for the System, the solar array, and Substation, in a single comprehensive submittal package either in a PDF or DWG format.

  - 60% Design Documents and 90% Design Documents shall include the following:

    - Cover sheet with project location map, project description, sheet index, and design summary for all disciplines.

    - An updated version of the previous design Documentation with revisions and additional detail where applicable and all prior comments addressed.

    - Equipment ratings for all power systems equipment, bus work, enclosures, protective devices, etc.

    - Arc flash study and associated safety plan documentation and lock-out-tag-out (LOTO) report to support dc and ac arc flash study.

    - All required information detailed to obtain all necessary construction and land disturbance permits from the AHJs.

    - A licensed engineer stamp on all electrical, civil and structural drawings noting the Documentation is for permitting purpose only (not for construction).

    - General arrangement drawings which include and/or depict:

      • Foundations (including specifications for materials, details of design and plan view, and requirements for testing, inspections, mitigation procedures, etc.)
      • Tracker details such as motors, controllers, sensors and communication equipment (if applicable)
      • Meteorological station, sensors, and Data Acquisition System locations
      • Drainage and storm water improvements;
      • Power Block groupings and locations of PCS
      • Combiner Box locations and string assignments
      • Property boundaries and easements
      • PV arrays

- Preliminary inverters and transformer locations and ratings
- Medium voltage switchgear location and ratings
- Point of interconnection
- Fencing
- Staging and laydown areas
- Site access roads and adjacent public roads
- Interior service roads
- Any on-site buildings
- Surrounding objects that will shade the array at any time of the year (trees, buildings, power lines, or other shade obstructions)
- Notes including design parameters (module count, type, vendor, modules per string, modules per row, inverter model, vendor, and quantity, GCR and pitch, DC capacity, AC capacity, AC capacity at the POI, DC:AC Ratio, site acreage and fenced acreage)
- Locations and type of SWM and ESC BMPs.

- Electrical Package which includes and/or depicts:
  - TOV Study for properly sized protection.
  - MV collection system design, trenching details and MV cable schedule
  - DC collection system design, trenching details and dc cable schedule
  - Low voltage dc and ac and medium voltage ac cable runs (specifying conduit, messenger and/or direct buried)
  - Schematics and single line drawings detailing: ac and dc collection systems
  - Final Grounding Study
  - Final Short Circuit Study
  - Final Insulation Coordination Study
  - Final Cable Thermal Ampacity study for ac, dc and joint trenches
  - Final Load Flow Study showing reactive power capability to support inverter quantity
  - Final Harmonics study (if required by the IA)
  - Final Electrical details and supporting documentation for: site lighting, auxiliary and backup power, MET station, power plant controller (including network diagram), DAS/SCADA and communications systems
  - Conductor and equipment size needed for interconnection (conductors, switches, breaker(s), etc.)
  - Wire management and BOS details
  - Final Equipment pad integration details
  - Final Signage and Markings Drawings
  - Datasheet and quantities for combiner boxes (and/or harness assemblies/dc disconnects)
  - Final Bill of Materials
  - DC and AC loss calculations
  - Point of interconnection and location of revenue meter identified;
  - Determination of modules / string sizing
  - Final Equipment schedule
  - Datasheets for major equipment; quantities and configurations,
  - Power block layouts and PCS locations

- High Voltage package (if applicable) which includes and/or depicts:
  - Updated drawings including, but not limited to: schematics, single line drawings detailing, configuration, general layout, prelim equipment schedule and other drawings relevant to PV Collector Substation
- Structural Package which includes and/or depicts:
  - Mounting system datasheet(s)
  - Calculations
  - Mounting configurations for all equipment
  - Final Foundation designs for all equipment pads and mounting structures, etc.
  - Corrosion analysis
  - Pile foundations test plan, pile load test results and pile design report. Further information such as pile size, pile embedment depth, top of pile elevations should be included in the report and drawings
  - Foundation locations (PV array and substation)
- Civil Package which includes and/or depicts:
  - Final Geotechnical Report
  - Final Hydrology Report
  - Final grading and stormwater design package that can be submitted to the AHJ for approval and permit
  - Detailed Site layout with topographic detail, grading plan, final top of pile elevations to establish PV table height (as inputs for the flood inundation depth and the required freeboard evaluation), height and distance from array of any object that will shade array, internal roads, storm water management plan, etc. in accordance with the Geotechnical Report and Hydrology Report
  - Road profile details and cut sections (if available and applicable)
  - Fencing details
  - Inverter apron grading detail
  - Applicable revegetation in Final SWPPP Construction plan
  - Locations and type of SWM and ESC BMPs.
  - Environmental & permitting agency submittal requirements

5.5. Structural Engineering

- Structural analysis and design of the PV arrays, mounting systems, concrete foundations, canopy / protective housing for electrical gear, piers and storm water management provisions (if applicable) are the responsibility of Contractor. The design shall be based upon the requirements of the applicable codes, standards and permits as well as the data supplied by the module, inverter, transformer, switchgear and tracker/racking suppliers.

- Contractor shall provide all necessary materials to install suitable foundations per the geotechnical report findings (including protective coatings as may be required by the structural engineer of record) based on soil composition, local seismic considerations, and wind or other weather conditions to support the Generation Equipment.

- All structures including the panel mounts shall be designed to withstand sustained winds and snow loads in accordance with ASCE 07-10.

- Concrete pads shall be broom finished, edged and with necessary relief cuts and not have standing water of any kind.

- The racking structures shall be designed for the run of cables such that there are no sharp edges or other conditions that could damage the cables during installation or from contact over time and be compatible with the modules.

5.6. Civil Engineering

- All civil engineering and design requirements will be completed by EPC Contractor.

- Contractor shall design and install all systems for the containment of storm water, as required by codes, standards and permits.

5.7. Electrical Engineering

- Electrical engineering and design shall be based upon meeting Industry Standards, the National Electric Code, IEEE 1547-2003 "IEEE Standard for Interconnecting Distributed Resources with Electric Power Systems." and other applicable codes and standards.

- The engineering and design shall include the appropriate sizing of all cabling (above and below ground) that will connect the modules, arrays, combiner boxes, re-combiner boxes, inverters, transformer and switchgear to the point of interconnection. All equipment shall be named as per Contractor's utility naming convention.

- All protection equipment throughout the system shall be sized and specified to reduce damage on all components and the interconnection point in case of electrical failure.

- The above ground portion of the electrical systems shall be neatly routed to facilitate access, troubleshooting, maintenance, lawn mowing, etc.

- All grounding and surge protection as it exists in the equipment used shall be in accordance with UL requirements and shall be approved by the design engineer.

- All monitoring and communication equipment and cabling shall be designed and specified.

- Contractor shall design and specify all communications hardware and software required for system protection and remote monitoring to the connection point of Owner supplied equipment.

- Contractor shall design, procure and install any necessary power, communications and internet facilities required for solar system operation, control and remote monitoring.

- The security system as provided by Contractor shall include the following:

    - Fencing: wildlife permeable link fence in compliance with OPSB Certificate Conditions unless otherwise required by OPSB or agreed to by Owner.

    - Locked Gates

    - Lockable Combiner Boxes

    - The following signage to be provided at all gates/entrances and at intervals dictated by NEC 2017 along the perimeter fence:

        - Danger High Voltage – Keep Out

        - No Trespassing

    - A sign identifying the name of the facility as well as identifying the Owner information shall be located at an agreed location near the main entrance of a substantial size for visibility. Design shall be agreed upon and coordinated with Owner.

        - Remote alarm and CCTV monitoring capability

        - CCTV and alarming backed up by 8 hour UPS

    - Any conduits under DOT roadways or high impact areas shall be of SCH 80 or like material for adequate support for the application.

    - All wiring, cables, and fastening materials shall be specified and designed for UV, heat exposure, and other inclement weather conditions associated with the application on a Solar facility over the design life of the facility.

- <u>Lightning Protection</u>: Inside an enclosure, there shall be ground bars that all internal ground conductors connect to. As a best practice, this ground bar shall then be bonded to a nearby ground conductor that is bonded to a unified grounding grid for the site. The intent is not to have bonding connectors at every structure, but to ensure that all ground conductors/cables are bonded to the ground grid.

    - Lightning/surge arresters shall be implemented in the following areas as applicable:

- Surge Protection for Combiner Box DC circuits
- Tracker PLC and VFDs
- Inverters
- DAS Box antenna cable
- Weather Station

6. PROCUREMENT

6.1. Procurement and expediting tasks for all Equipment (other than the Owner Supplied Equipment) are the responsibility of Contractor. Such equipment includes the items listed in Section 2.1, and the Equipment includes such items as wire, cable, conduit, imported fill, rip-rap, concrete, imported rock, fencing and gates.

6.2. The Equipment shall be purchased by Contractor, and it is understood that the cost of this equipment and materials, including the risk of any escalation in the price of such equipment and materials, is included in the EPC Contract Price.

6.3. Schedule 4.1 lists Major Subcontractors for specific pieces of equipment.

- Contractor to provide bankability reports for major equipment/Major Subcontractors and ensure the requirements of the IE are met and the project will meet criteria for tax equity financing.
- Contractor shall satisfy IE requirements for module factory QA/QC

6.4. Contractor shall submit to Owner the key vendor drawings and documents. Vendor drawings that shall be submitted to Owner when received by Contractor include, but are not limited to:

- Trackers and Mounting System
- Inverters and Transformer
- Interconnect
- Switchgear and Metering, if applicable
- Control and Monitoring System (DAS)
- Fencing
- Electrical Design including Grounding

- Structural Design

7. CONSTRUCTION

It is the responsibility of Contractor or its Subcontractors to build all aspects of the System as depicted in the System drawings and documents. This includes the electrical system from the modules through the point of delivery to Transmission Provider. Contractor shall also provide all temporary equipment, materials or facilities required to construct the System and place it into operation.

7.1. Construction Management and Quality Control

- Construction management shall be provided by Contractor with an on-site construction management team. SE1 will have competent management personnel on site when construction activities are being conducted.

- Contractor shall install all materials in a quality and workman like manner. All wire placements will ensure the wires will not become damaged during construction and do not rest on sharp metal edges. All work will meet current codes enforced at the time of permitting. All work will be inspected and approved by the local authorities having jurisdiction. Contractor shall submit a copy of the Quality Control processes and procedures for review, comment and approval by Owner, which approval shall not be unreasonably withheld or delayed.

- Quality control shall include inspection of the electrical collection trench system, electrical cabling placement, module placement, tracker / racking layout and assembly.

- Quality inspections on electrical systems/components will be performed at a rate of 100%.

- Mechanical system quality inspections will be performed on 10% of installed components/systems. If the 10% checks identify quality issues, the rate of inspection will move to 100% until the issue has been resolved, at which point the rate may revert to 10%.

- Contractor shall assure that all work including Subcontractors abide with the HSSE Requirements. Contractor shall provide an OSHA 30 qualified Health and Safety representative who shall be present on site whenever construction activities are taking place.

- Contractor shall supply labor, tools, machinery, equipment and equipment transportation for all Work except for the Owner Supplied Equipment.

- Contractor shall supply temporary office space, temporary power, sanitary facilities, communications, and drinking water for Contractor's personnel on the site.

- Contractor shall keep the site clean and orderly throughout the duration of construction. All trash and rubbish shall be disposed of off-site by licensed waste disposal companies and in accordance with applicable Law.

- Contractor shall maintain a copy of all drawings, specifications, permits and vendor installation manuals at the site.

- Contractor shall be responsible for storage and maintenance of all installed equipment. Contractor shall be responsible for obtaining any required off-site warehouse space, temporary parking, and staging or laydown areas.

- Contractor shall provide permanent equipment marking, labeling and signage for the System. Warning signs shall be placed at key areas near equipment, at System entrances, along the perimeter fence, and where required by local jurisdiction. Contractor, during System development, shall identify any environmentally sensitive areas on the site. Contractor shall erect temporary construction fences and silt barriers to protect these environmentally sensitive areas prior to performing any other construction Work. The fences and silt barriers shall be inspected and maintained throughout the duration of construction to prevent any unauthorized discharge to the environmentally sensitive areas including the wetlands area adjacent to the Site.

- Contractor shall recognize and respect any properties adjacent to the site and shall use reasonable efforts to minimize disruption to those neighbors (e.g., sediment control, dust control, traffic control, trash control, noise control, etc.)

- Contractor shall fully comply with all applicable notification, safety and Work rules when working on or near the facilities of Transmission Provider.

- Contractor shall route all field routed electrical collection system in a neat and orderly fashion and in accordance with all applicable code requirements. All cable terminations, excluding module-to-module and module-to-cable harness connections, shall be permanently labeled.

- Contractor shall provide all temporary road and warning signs, flagmen or equipment as required to safely execute the Work.

- Contractor shall provide for the removal and revegetation of any temporary staging areas or laydown areas.

- Contractor shall provide for all zoning ordinance requirements including setbacks, fencing modifications, landscaping, or other as may be required.

- Revegetation plan for the end of the project shall include consideration for native species and species suitable for the long-term maintenance of the Solar facility. A revegetation plan shall be reviewed with the Owner prior to implementation.

7.2. Project Site

- All road/pathways, PV arrays, ancillary structures, storage yard, and fencing shall be built in the locations and orientations set forth in the site plan and site layout drawings and in accordance with the design specifications.

- Contractor shall prepare the site, as necessary, to install the Work.

- Excavated material and/or imported fill material shall be used on site, as needed, to complete the Work.

- Continuous monitoring and maintenance of erosion control measures shall be performed during all construction activities as per the environmental permits, best management practices and System documents.

- Dust control shall be performed as needed during construction.

- During project construction, mowing of the site shall be completed on an as-needed basis.

- All access paths, storage areas, and other project civil design features shall meet all County, State and local grading requirements and environmental documents.

- Control, monitoring, communications and security systems and equipment shall be installed according to the engineering and design documents.

- Contractor must contact 811 or the appropriate company to identify / locate all underground lines prior to digging. Any disconnections of service will be the responsibility of the Contractor.

- During project construction, Contractor is responsible for security measures to protect any materials (including Owner and the interconnect provider supplied materials) staged at the Site at all times including during non-working hours.

7.3. Solar Installation

- Structural solar array works shall be performed in accordance with technical specifications and drawings, which includes installation of the array foundation, racking, and cable management system.

- Electrical solar array works shall be performed in accordance with technical specifications and drawings, which include installation of modules, wire harness, recombiner boxes, array feeders, ground grid, power stations and all electrical connections.

8. COMMISSIONING

All commissioning procedures will be carried out according to the Interconnection Service Agreement, Contractor's standard protocol and equipment manufacturers guidelines. For any aspect of commissioning for which the Interconnection Service Agreement does not specify a procedure, EPC Contractor shall develop and carry out the procedure in accordance with Industry

Standards. Contractor's commissioning procedures and protocol have been provided below in this Schedule 8.1 Commissioning Plan.

9. FINAL COMPLETION

9.1. Contractor shall arrange for and facilitate final construction inspections and certifications by the local authorities having jurisdiction. Copies of all final approvals and certifications shall be provided to Owner.

9.2. Contractor shall complete any Punch List items, clean up the construction site and remove any temporary structures, equipment or services, and construction debris. Contractor shall finish landscaping the site according to the System specifications and submit record drawings to Owner.

9.3. Contractor shall provide an electronic copy including executable CADD files and ".pdf" versions of all design drawings of the final System as-built documentation including:

- All as-built engineering drawings and specifications
- Vendor Drawings and Data
- Instruction Manuals
- Installation, Operation and Maintenance Manuals
- All Permits with copies of close-out records as required
- Control system software specifications
- Spare Parts Lists

9.4. Final Acceptance will be declared once all of the above Work and Punch List items have been completed and the substantial and final commissioning tests and checks result satisfactory. A Final Completion Certificate will be issued by Contractor to Owner at that time in accordance with the Agreement.

10. CONTROL & MONITORING SYSTEM REQUIREMENTS

Contractor shall provide a complete weather station which will monitor ambient temperature, wind speed, wind direction, plane-of-array irradiance, and GHI, to match table below. Cell temperature will also be monitored on a small sample of modules. Weather station equipment shall meet owner's requirements for the performance test. The inverters selected for use in the System include software and hardware to monitor key inverter performance characteristics such as input power, output power, voltage, current, and faults. The tracking system also shall provide for monitoring of instantaneous position.

11. CONTRACTOR SUPPLIED DAS SYSTEM

The following points shall be available at a minimum to the Owner:

Inverter

	Units
AC Power	kW
DC Power	kW
Lifetime Energy	kWh
3 Phase AC Current (A,B,C)	A
DC Current	A
3 Phase AC Voltage (A,B,C line-line)	V
DC Volts	V
AC Frequency	Hz
Power Factor	
Inverter Temps	degC
Inverter Codes (faults, warnings, errors, limits)	
Inverter Operation Mode/State	

Meter

	Units
3 Phase AC Current (A,B,C)	A
3 Phase AC Voltage (A,B,C line-line)	V
Frequency	Hz
Power Factor	
Power Delivered	kW
Power Received	kW
Lifetime Energy Delivered	kWh

Lifetime Energy Received	kWh
VA Delivered	kVA
VA Received	kVA
VAR Delivered	kVAR
VAR Received	kVAR

Weather Station

	Units
Horizontal Irradiance	W/m^2
POA Irradiance	W/m^2
Ambient Temp	degC
Back of Module Temp	degC
Wind Speed	m/s
Wind Direction	deg

Tracker

	Units
Tracker Angle/Position	deg

Recombiner/ Zone Monitoring

	Units
Combiner Box Current	A

Schedule 1D

Form of Change Order

CHANGE ORDER

Change Order No. Change Order Date:

Reference is made to that certain Engineering, Procurement and Construction Agreement (the "EPC Contract"), dated as of [XXX XX], 2026 by and between Dixon Solar, LLC (the "Owner") and SunEnergy1, LLC (the "EPC Contractor" and together with Owner, the "Parties", and individually, a "Party").

(a) *General description* (state as much information as necessary regarding the history of events leading up to this proposed Change):

(b) *Work approach to accomplish Change:*

(c) *If proposed Change involves adjustment to Contract Price, describe adjustment*:

(d) *If proposed Change involves adjustment to the Project Schedule, describe adjustment*:

(e) *Attached as Schedule A hereto is a proposed amendment to the EPC Contract as in effect immediately prior to this Change Order to fully reflect the proposed Change described in this Change Order*

Item(s)Original Contract Price: Description

Previously approved adjustments (if any) to Contract Price:

Contract Price Adjusted for previously approved adjustments to Contract Price:	
Proposed adjustment to Contract Price resulting from this Change Order:	
Proposed New Contract Price:	
Original Guaranteed Substantial Completion Date:	
Previously approved adjustments (if any) to Project Schedule:	
Guaranteed Substantial Completion Date adjusted for previously approved adjustments to Project Schedule:	
Proposed adjustment to Project Schedule resulting from this Change Order:	
Proposed New Guaranteed Substantial Completion Date:	

This Change Order constitutes full, final, and complete compensation to Contractor and adjustment to the Guaranteed Substantial Completion Date, if any, for all costs, delays, expenses, overhead, profit and damages of every kind that Contractor has already incurred, will incur or may incur in connection with the Changes in the Work and events described above, including any impact on the referenced Work and unchanged Work, any delays, acceleration, disruption, rescheduling, or resequencing of any Work, any extended, expanded or increased overhead of any kind, and any other effects on the Work.

Except as otherwise expressly provided herein, all the terms, conditions, covenants, agreements, and understandings contained in the Agreement shall remain unchanged and in full force and effect, and the same are hereby expressly ratified and confirmed by the Parties.

The capitalized terms used in this Change Order, unless otherwise defined herein shall have the meaning given to them in the Agreement. This Change Order is executed in connection with, and is deemed a part of, the Agreement. Wherever the terms of this Change Order and the terms of the Agreement are in conflict, the terms of this Change Order shall govern and control. The exhibits and attachments attached hereto (if any) are incorporated herein by reference and shall be deemed a part of this Change Order and a part of the Agreement.

Accepted and agreed to by EPC Contractor and Owner this [XX] day of [XX], 20___ (the "Change Order Date").

SunEnergy1, LLC	Dixon Solar, LLC
By:_____	By:_____
Name:_____	Name:_____
Title: _____	Title:_____

Schedule 1E

Milestone Payment Schedule (% of Contract Price)

Project Name:	Dixon	
Rated Capacity (MWdc)	210.000	MWdc
Rated Capacity (MWac)	140	MWac

	$/Wdc	USD
Total EPC Contract	0.8600	[redacted]

Schedule of Values (SOV) Milestones

Item	% of EPC	USD
Notice to Proceed	10.00%	[redacted]
Racking and Posts Ordered	1.25%	
MPT Ordered	1.25%	
Inverters Ordered	5.00%	
Control House Ordered	1.25%	
34.5 Breakers Ordered	2.50%	
Steel Package Ordered	2.50%	
25% Racking on site	3.75%	
50% Racking on site	3.75%	
75% Racking on site	3.75%	
100% Racking on site	3.75%	
25% Panels on site	1.25%	
50% Panels on site	1.25%	
75% Panels on site	1.25%	
100% Panels on site	1.25%	
25% Posts installed	2.50%	
50% Posts installed	2.50%	
75% Posts installed	2.50%	
100% Posts installed	2.50%	
25% Rack and panels installed	2.50%	
50% Rack and panels installed	2.50%	
75% Rack and panels installed	2.50%	
100% Rack and panels installed	2.50%	
All inverters set	5.00%	
Interconnection complete (contractor scope)	2.50%	
MPT delivered	2.50%	
Control House Delivered	1.25%	
34.5 Breakers Delivered	2.50%	
Steel Package Delivered	2.50%	
Mechanical Completion	10.00%	
Substantial Completion	5.00%	
Final Completion	5.00%	
[ ]	[ ]	
Total EPC Contract	100.00%	[redacted]

Schedule 1F

Time and Materials Rate Schedule

SunEnergy1 Personnel and Equipment Rates

Personnel Hourly Rates

Labor	$117.00
Equipment Operator	$254.00
Truck Driver	$182.00
Electrician	$182.00
Foreman	$188.00
Supervisor	$201.00
Project Manager	$254.00
Engineer	$370.00
Consulting/Engineering	$390/hr
Service Team Day Rate	$1950/day (2 Persons 10hrs/day)
Sr. PV Technician Rate	$117.00
Jr. PV Technician Rate	$98.00
Daily Per-Diem	$175/person/day
Administration Fee	$1300 Per Day

Equipment Daily Rates

SunEnergy1 Truck	$260.00
Bobcat	$725.00
Heavy Duty Forklift	$700.00
Bucket Truck	$715.00

Mini Excavator	$750.00
Backhoe	$845.00
Road Tractor and Trailer	$1,950.00**

** *Per trip.*

Schedule 4.1

Major Subcontractors

Approved Subcontractor	Address	Responsibility
SunGrow	SunGrow USA Corporation 4050 East Colton Center Blvd #75 Phoenix, AZ 85040	Inverters/Transformers/Skids
OMCO	Omco Solar, LLC 4550 West Warkins St., Suite 100 Phoenix, AZ 85043	Racking
Terrasmart	PO Box 714904 Cincinnati, OH 45271	Combiners
JSHP Transformer	4030 Moorpark Ave, Suite 222 San Jose, CA 95117	Transformers
CLT Commercial SVC	59541 Julian Clark Ave, Ste 108 Huntersville, NC 28078	Labor

Schedule 4.2

Assigned Warranties Equipment Types

Approved Major Subcontractor	Address	Responsibility
SunGrow	SunGrow USA Corporation 4050 East Colton Center Blvd #75 Phoenix, AZ 85040	Inverters/Transformers/Skids
OMCO	Omco Solar, LLC 4550 West Warkins St. STE 100 Phoenix, AZ 85043	Racking
Terrasmart	PO Box 714904 Cincinnati, OH 45271	Combiners
JSHP Transformer	4030 Moorpark Ave, Ste 222 San Jose, CA 95117	Transformers
Siemens	P.O. Box #121057 Dept. 1057 Dallas, TX 75312-1057	Breakers

Assigned Warranties

Copies of each Assigned Warranty are set forth on the following pages of this Schedule 4.2.

SG3150UD-MV-US

Turnkey Station for 1500 Vdc System MV Transformer Integrated



HIGH YIELD

- Advanced three-level technology, max. inverter efficiency 99%
- Full power operation at 40 ℃ (104 ℉)
- Effective cooling, wide operation temperature

EASY O&M

- Integrated current, voltage and MV parameters monitoring function for online analysis and trouble shooting
- Modular design, easy for maintenance

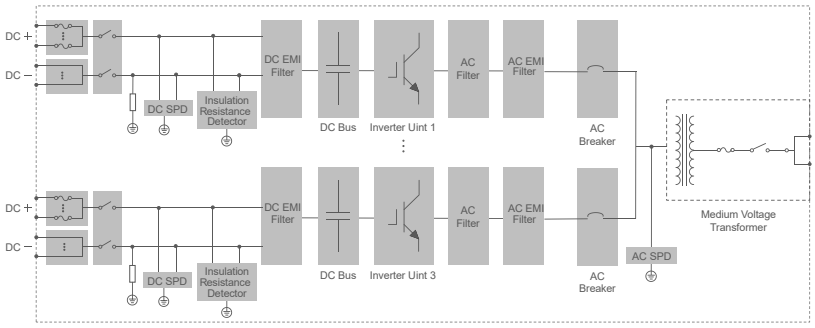
SAVED INVESTMENT

- Low transportation and installation cost due to 20-foot container size design
- DC 1500V system, low system cost
- Integrated MV transformer and LV auxiliary power supply
- Q at night optional

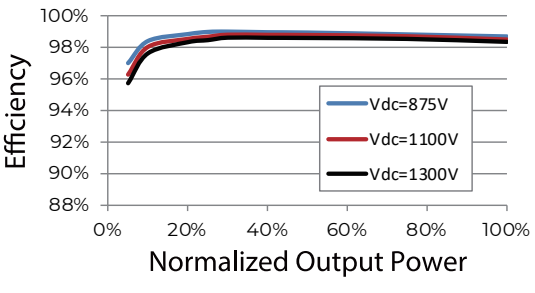
GRID SUPPORT

- Compliance with standards:UL 1741, UL 1741 SA / SB, IEEE 1547, Rule 21 and NEC code
- Low / High voltage ride through (L / HVRT), L / HFRT, soft start / stop
- Active & reactive power control and power ramp rate control

CIRCUIT DIAGRAM



EFFICIENCY CURVE



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Type Designation	SG3150UD-MV-US
Input (DC)	
Max. PV input voltage	1500 V
Min. PV input voltage / Start-up input voltage	875 V / 915 V
Available DC fuse sizes	250 A, 315 A, 400 A, 450 A, 500 A, 630 A
MPP voltage range	875 V – 1500 V
Full power MPP voltage range @ 40 ℃	875 V - 1300 V *
No. of independent MPP inputs	3
No. of DC inputs	21 inputs negative grounding(optional: 18 inputs floating)
Max. PV input current	3 * 1226 A
Max. DC short-circuit current	3 * 3528 A
PV array configuration	Negative grounding or floating
Output (AC)	
AC output power	3150 kVA @ 40 ℃ (104 ℉)
Nominal grid frequency / Grid frequency range	60 Hz / 57 Hz – 63 Hz
Harmonic (THD)	< 3 % (at nominal power)
Power factor at nominal power / Ajustable power factor	> 0.99 / 0.8 leading - 0.8 lagging
Efficiency	
Inverter Max. efficiency	98.9 %
Inverter CEC efficiency	98.5 %
Transformer	
Transformer rated power	3150 kVA
Transformer max. power	3150 kVA
LV / MV voltage	0.6 kV / (12 – 35) kV
Transformer vector	Dy1 (Optional: Dy11, Yny0)
Transformer cooling type	KNAN (Optional: ONAN)
Protection	
DC input protection	Load switch + fuse
Inverter output protection	Circuit breaker
AC MV output protection	Load switch + fuse
Overvoltage protection	DC Type II / AC Type II
Grid monitoring / Ground fault monitoring	Yes / Yes
Insulation monitoring	Yes
Overheat protection	Yes
General data	
Dimensions (W*H*D)	6058 mm * 2896 mm * 2438 mm 238.5'' * 114.0'' * 96.0''
Weight	≤ 31967 lbs
Degree of protection	NEMA 4X (Electronic for Inverter) / NEMA 3R (Others)
Auxiliary power supply	5 kVA, 120 Vac; Optional: 35 KVA 480 Vac + 5 KVA 120 Vac
Operating ambient temperature range (It refers to the ambient temperature of 1m around the inverter)	-35 ℃ - 60 ℃ (> 40 ℃ derating) / optional: -40 - 60 ℃ (> 40 ℃ derating) -31 ℉ - 140 ℉ (> 104 ℉ derating) / optional: -40 ℉ - 140 ℉ (> 104 ℉ derating)
Allowable relative humidity range	0 % - 100 %
Cooling method	Temperature controlled forced air cooling
Max. operating altitude	1000 m (Standard) / > 1000 m (Customized) (3280.8 ft (Standard) / > 3280.8 ft (Customized))
Display	LED Indicators, WLAN+WebHMI
Night reactive power function	Optional
Dc-coupled storage interface	Optional
Charging power from the grid	Optional
Communication	Standard: RS485, Ethernet
Compliance	UL1741, UL62109-1,CSA C22.2 No.107.1-16, IEEE1547-2018, IEEE1547.1-2020, UL1741 SA/SB, California Rule21, HECO SRD V2.0, NEC 2020,PRC-024
Grid support	Q at night function (optional), L/HVRT, L/HFRT, Active & reactive power control and power ramp rate control, Volt-var, Frequency-watt

*Full power MPP range is temperature dependent, check the characteristic curve of the inverter for more information.

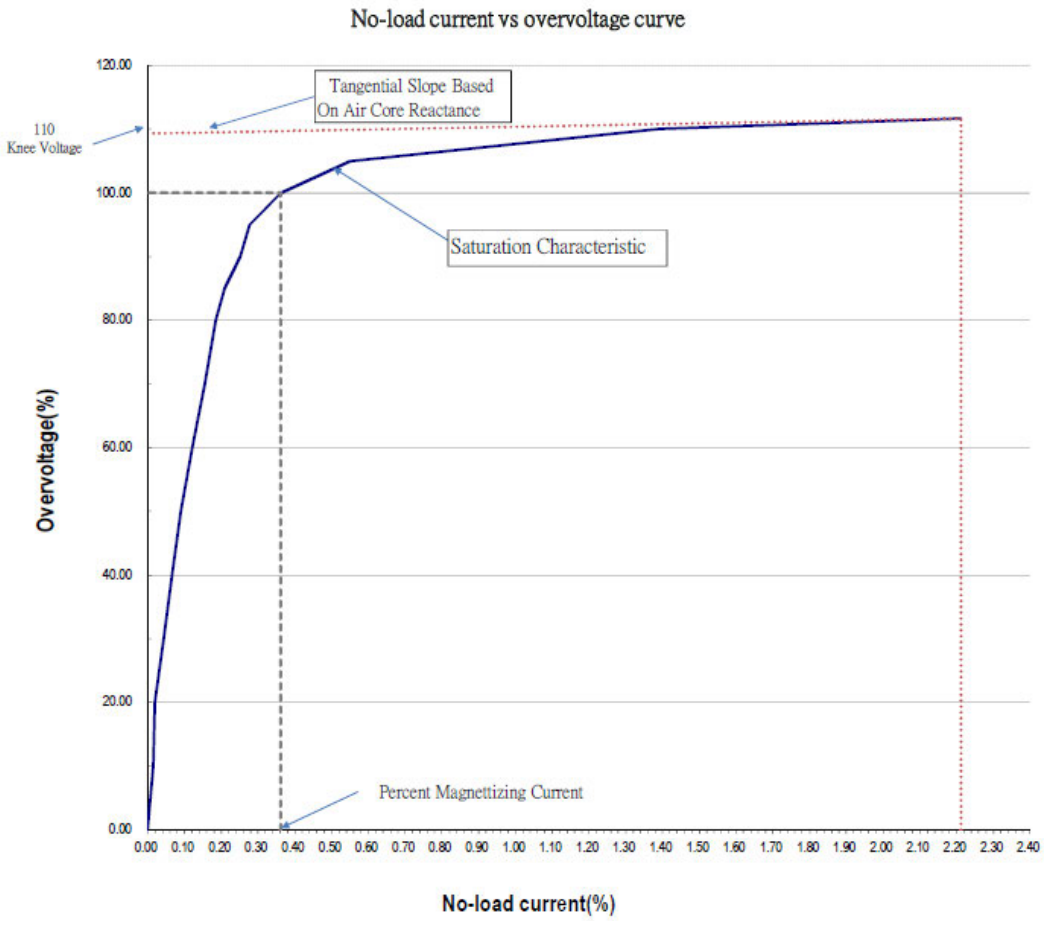
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SUNGROW

SG3150UD-MV-US Transformer Spec

Model	ZGSL-G-3150/34.5
Range of working temperature:	-35 ℃ ~+40 ℃
Transformer performance:	Oil-immersed, self-cooling, fully sealed, chip cooling, low loss, aluminum winding, no-load tap
Rated Capacity:	3150kVA@40 ℃
Rated voltage:	34.5 ± 2 × 2.5%/0.6kV
Maximum voltage of equipment:	36kV
Rated current:	52.7/3031A
Rated frequency:	60Hz
Connection group label:	Dy1
Impedance voltage:	5.75% , deviation ± 7.5% (@85 ℃)
X/R ratio	6.69
Color:	RAL7035
Altitude:	1000m
Protection level:	Fuel tank IP68, others IP54 (high-pressure chamber, accessories, etc.)
Anti-corrosion level:	C4M
Cooling method:	KNAN
Insulation level:	No less than A

Noise:	≤ 63dB(A)(0.3m)
No-load current:	≤ 0.55%
Full load efficiency:	≥ 99% (full load, power factor 1)
Half load efficiency:	≥ 99.28% (half load, power factor 1)
Winding material:	Aluminum
Shield:	Yes (between high and low voltage windings)
Temperature rise:	The top oil temperature is 65 ℃, and the average temperature rise of the winding is 65 ℃.
Transformer oil:	FR3



SG4400UD-MV-US

Turnkey Station for 1500 Vdc System MV Transformer Integrated



HIGH YIELD

- Advanced three-level technology, max. inverter efficiency 98.9 %
- Full power operation at 40 ℃ (104 ℉)
- Effective cooling, wide operation temperature

EASY O&M

- Integrated current, voltage and MV parameters monitoring function for online analysis and trouble shooting
- Modular design, easy for maintenance

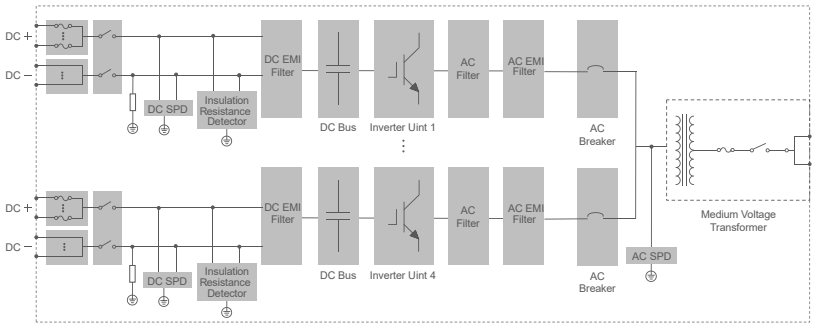
SAVED INVESTMENT

- Low transportation and installation cost due to 20-foot container size design
- DC 1500V system, low system cost
- Integrated MV transformer and LV auxiliary power supply
- Q at night optional

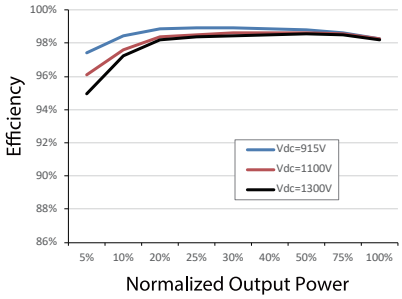
GRID SUPPORT

- Compliance with standards:UL 1741,UL 1741 SA/SB, IEEE 1547, Rule 21 and NEC code
- Low / High voltage ride through (L/HVRT), L/HFRT, soft start / stop
- Active & reactive power control and power ramp rate control

CIRCUIT DIAGRAM



EFFICIENCY CURVE



NA

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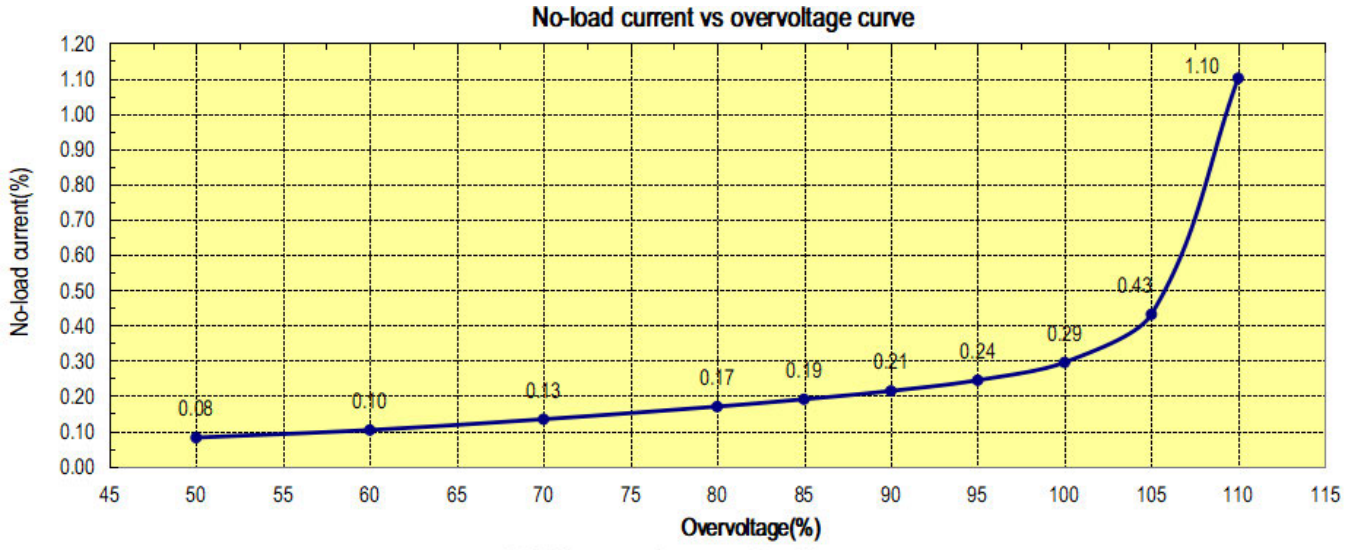
Type Designation	SG4400UD-MV-US
Input (DC)	
Max. PV input voltage	1500 V
Min. PV input voltage / Start-up input voltage	915 V / 955 V
Available DC fuse sizes	250 A, 315 A, 400A, 450 A, 500 A, 630 A
MPP voltage range	915 V – 1500 V
Full power MPP voltage range@40℃	915 V - 1337 V*
No. of independent MPP inputs	4
No. of DC inputs	28 inputs negative grounding (optional: 24 inputs floating)
Max. PV input current	4 * 1226 A
Max. DC short-circuit current	4 * 3528 A
PV array configuration	Negative grounding or floating
Output (AC)	
AC output power	4400 kVA @ 40 ℃ (104 ℉) ** (Optional: 4400 kVA @ 45 ℃(113 ℉)) **
Nominal grid frequency / Grid frequency range	60 Hz / 57 Hz – 63 Hz
Harmonic THD	< 3 % (at nominal power)
Power factor at nominal power / Ajustable power factor	> 0.99 / 0.8 leading - 0.8 lagging
Efficiency	
Inverter Max. efficiency	98.9 %
Inverter CEC efficiency	98.5 %
Transformer	
Transformer rated power	4400 kVA
Transformer Max. power	4400 kVA
LV / MV voltage	0.645 kV / 34.5 kV
Transformer vector	Dy 1 (Optional: Dy 11, Yny 0)
Transformer cooling type	KNAN (Optional: ONAN)
Protection	
DC input protection	Load switch + fuse
Inverter output protection	Circuit breaker
AC MV output protection	Load switch + fuse
Surge protection	DC Type II / AC Type II
Grid monitoring / Ground fault monitoring	Yes / Yes
Insulation monitoring	Yes
Overheat protection	Yes
General Data	
Dimensions (W * H * D)	6058 mm * 2896 mm * 2438 mm 238.5'' * 114.0'' * 96.0''
Weight	≤ 36376 lbs
Degree of protection	NEMA 4X (Electronic for Inverter) / NEMA 3R (Others)
Auxiliary power supply	5 kVA, 120 Vac ; Optional : 35 kVA 480 Vac + 5 kVA 120 Vac
Operating ambient temperature range (It refers to the inverter only and the ambient temperature is 1m around the inverter.)	-35 ℃ - 60 ℃ (> 45 ℃ derating) / optional: -40 ℃ - 60 ℃ (> 45 ℃ derating) -31 ℉ - 140 ℉ (> 113 ℉ derating) / optional: -40 ℉ - 140 ℉ (> 113 ℉ derating)
Allowable relative humidity range	0 % - 100 %
Cooling method	Temperature controlled forced air cooling
Max. Operating altitude	1000 m (Standard) / > 1000 m (Customized) (3280.8 ft (Standard) / > 3280.8 ft (Customized))
Display	LED Indicators , WLAN + WebHMI
Night reactive power function	Optional
DC-Coupled storage interface	Optional
Charging power from the grid	Optional
Communication	Standard: RS485, Ethernet;
Compliance	UL1741, UL62109-1,CSA C22.2 No.107.1-16, IEEE1547-2018, IEEE1547.1-2020, UL1741 SA/SB, California Rule21, HECO SRD V2.0, NEC 2020,PRC-024
Grid support	Q at night function (optional), L/HVRT, L/HFRT, Active & reactive power control and power ramp rate control, Volt-var, Frequency-watt

*Full power MPP range is temperature dependent, check the characteristic curve of the inverter for more information.
**For sustained operation above 40°C, an optional 60 °C temperature rise transformer is recommended.

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1. SG4400UD-MV-US Transformer Spec

- Transformer Rated Power: 4400 kVA
- Manufacturer: SUNGROW
- Nominal voltage for each winding (High/Low): 34.5 /0.645kV
- Include information on any use of an off-nominal tap: 2-2.5% taps above and 2-2.5% below nominal voltage
- Vector group: Dy1 (optional: Dy11 or Yny0)
- Positive sequence impedance 8% on transformer self-cooled (KNAN) MVA base and nominal primary voltage
- MVA base value for %Z (MVA): 8% ± 7.5%
- X/R ratio: 8.83
- Eddy Current (No Load) Losses (kW): <=5KW
- Copper Losses at Full Rated Load (kW): <=39KW
- Magnetizing (No Load) Current at 100% Voltage (% nominal Current):<0.55%
- Knee Voltage (% nominal Voltage): 115
- Air-Core Reactance
    - Ohms:_34____
    - per unit: 0.116(on transformer KNAN MVA base and nominal primary voltage)



- Liquid volume: approximately 2129 liters (562 gallons)

US Office: 47751 Fremont Blvd, Fremont, CA, USA 94538, Tel: 510-656-1259
Canada Office: Unit 63-64, 6535 Millcreek Drive, Mississauga, ON, Canada L5N2M2, Tel: (855) 760-8618 Fax: (905) 760-1158

STANDARD WARRANTY CONTRACT

1.0 DEFINITIONS

1.1. The warrantor for the limited warranties set forth herein is Sungrow Canada Inc., or Sungrow USA Corp. as well as Sungrow Power Supply Co., Ltd. ("Sungrow").

1.2. The "Product" means each Product and component of each Product sold to Customer including but not limited to the photovoltaic Inverters and peripheral devices manufactured by Sungrow and purchased from Sungrow by End-user including but not limited to the Product described in Section 2.1 herein below.

1.3. The "Warranty" means this limited warranty contract for Sungrow Product.

1.4. "End-user" means the owner of the Product for which Service will be performed under the warranty, which includes Customer and Customer's affiliates.

1.5. "Distributor" means an entity who runs a non-competing business and buys Sungrow products or product lines, warehouses them, and resells them to retailers or directly to the end user or customer.

1.6. "Manual" means the current Sungrow installation, operation and maintenance guide for the Product covered under this Warranty.

1.7. The "Registration Form" is the Photovoltaic Inverter Warranty Registration Form as set forth in Exhibit 1 of this Warranty. The Registration Form must be completed and returned to Sungrow.

1.8. "Service" means a site visit or remote services by Sungrow technicians in response to a claim.

1.9. "Site" means the location of End-user's Product that is covered under this Warranty.

1.10. "Warranty Period" means the period of time the Product is covered under this Warranty.

2.0 LIMITED WARRANTY

2.1. Sungrow warrants that Sungrow products (the "Warranted Items") are free from defects in material and workmanship. Sungrow has sole responsibility and discretion for determining the cause and nature of a product defect, and Sungrow's determination with regard thereto shall be commercially reasonable.

2.2. This Warranty extends to the End-user of the Sungrow products, including any subsequent operator or a lessee or assignee of a lease, at the same site during the Warranty Period of the Product purchased by the End-user, with the exception that the continuation of the Warranty for an installed Product relocated to another site is subject to a site inspection by Sungrow at the new site prior to installation, at End-user's expense.

2.3. If, in the commercially reasonable opinion of Sungrow or Customer , a Warranted Item is defective and the defect is within the terms of this Warranty, Sungrow is obligated to repair or replace such defective item (including by providing service, parts and labor, as applicable), at the sole fee, cost and expense of Sungrow. The Warranted Item will be repaired or replaced onsite at the End-user's location or such other location as mutually agreed upon in advance by Sungrow and the End-user.

2.4. Sungrow and the End-user shall mutually agree upon the conduct of any tests required to determine whether a Product is defective in advance of conducting such tests. Sungrow reserves the right to supply a different inverter model to settle a warranty claim provided the same is of the same or better quality as the initial model it replaces and the new replacement parts shall be the property of Customer free and clear of any liens or security interest. Any parts that are replaced shall be new. All parts removed and replaced by Sungrow shall become the property of Sungrow.

2.5 All parts repaired or replaced pursuant to this contract will also be subject to the provisions of this Article 2.0 to the same extent as original Products. The warranty period with respect to repaired or replaced parts will run for in greater of twelve (12) months from the date of completion of the repair or replacement or the Standard Warranty period set forth below.

3.0 WARRANTY PERIOD

3.1. The Warranty Period for Product installed in USA including US 48 States and Alaska, Hawaii, Puerto Rico, Canada and Panama is indicated in the table below, from the date of shipment. If Sungrow receives a completed Registration Form (from the End-user within six (6) months of the ship date, the Warranty will start on the installation date stated on the Registration Form.

Products	**Standard Warranty Period**
Central Inverters, Central Inverter MV Power Stations (inverters only), MV Transformer Manufacturer's standard warranty applies	5 years (Central Inverters) 2 Years (MV Transformers - typical)
String Inverters	10 years
Re-combiners and Combiners	5 years
Communication, Monitoring and Control Equipment	5 years

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All other Products and Components	10 years

Note: All warranty periods are as above unless specified on a Sungrow quote

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4.0 WARRANTY EXCLUSIONS

4.1. This Warranty does not cover any defects or damages caused by:
- a. Improper transportation and delivery by end-user
- b. Failure by end-user to properly store the Product before installation
- c. Improper installation
- d. Use and application beyond the definition in user manual of the Product
- e. Neglect, abuse, misuse, improper maintenance by end-user or lack of maintenance, as set forth in the Sungrow current Manual
- f. Repairing, adjustment or alteration, not authorized in writing by Sungrow
- g. Acts of nature such as fire, flood and lightning
- h. Non-compliance by end-user with applicable regulations and standards
- i. Voltage surge coming from PV array DC side or from grid AC side

4.2. This warranty does not cover fuses, surge suppressors, filters, or cosmetic damages.

4.3. This Warranty shall be void, if
- a. Serial number of the Product has been altered or cannot be clearly identified due to action by end-user
- b. The Product is moved to a new location without written approval from Sungrow, which approval shall not be unreasonably withheld creating a delay
- c. The End-user fails to make any Product subject of a claim available for inspection, testing and correction after receiving prior written notice from Sungrow.

5.0 FORCE MAJEURE

5.1. Neither party (Sungrow or the End-user) shall be liable hereunder by reason of any failure or delay in the performance of its obligations hereunder on account of acts of god or other cause which is beyond the reasonable control of such party and could not have been avoided by the exercise of reasonable prudence, including but not limited to natural disasters (e.g. earthquakes, floods, landslides), explosions, fire, destruction of machines, equipment, factories and of any kind of installation, prolonged break-down of transport, telecommunication or electric current or other circumstances with comparable effects (e.g. terroristic attacks, nuclear accidents, war, civil war or similar uprising, general strike, strike, lock-out).

5.2. In the event of the occurrence of any force majeure event, the affected party shall notify the other party immediately in writing of the invocation of this section, and each party's obligations hereunder to the other shall be suspended for the duration of such force majeure event; provided, however, that the affected party shall be obligated to use its commercially reasonable efforts to restore performance hereunder as soon as reasonably practicable, and provided, further, that if such event continues for more than thirty (30) days in the aggregate in any six (6) month period, the non-affected party shall have the right to terminate this agreement at any time upon written notice to the other party.

6.0 END-USER'S OBLIGATIONS

6.1. In order to receive the benefits of this Warranty, the End-user must use the product in a normal way; follow the Product's current Manual; protect against further damage to the product if there is a discovered defect.

6.2. End-user shall provide Sungrow Service personnel with access to the Site and any special instructions for access to the Site. Sungrow shall have no liability in the event that access is not provided to the Site and End-user will be invoiced for any costs incurred by Sungrow in the event an additional visit is required to the site due to lack of access.

6.3. It is the End-user's responsibility to notify Sungrow of any hazards at the Site and assure that the Site is free from hazards or obstructions, and that all safety precautions are followed at the Site.

7.0 OTHER LIMITATIONS

7.1. Sungrow's obligations under this Warranty are expressly conditioned upon receipt by Sungrow of all payments due to it (including interest charges, if any). During such time as Sungrow has not received payment of any amount due to it for the Product, in accordance with the contract terms under which the Product is sold, Sungrow shall have no obligation under this Warranty. Also during such time, the period of this Warranty shall continue to run and the expiration of this Warranty shall not be extended upon payment of any overdue or unpaid amounts.

8.0 COSTS NOT RELATED TO WARRANTY

8.1. The End-user shall be invoiced for, and shall pay for, all services not expressly provided for by the terms of this Warranty, including without limitation, site calls involving an inspection that determines no corrective maintenance is required. Any costs for replacement equipment, installation, materials, freight charges, travel expenses or labor of Sungrow representatives outside the terms of this Warranty will be borne by the End-user.

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9.0

10.0 WARRANTY CONTRACT EFFECTIVE DATE, APPLICATION ANDVALIDITY

10.1. Present warranty contract conditions are valid as of the corresponding issue date and shall be applicable to all those Sungrow inverters and peripheral devices manufactured, and for which the said guaranty extension has been taken out, remaining valid until December of the year in force, for signed contract, or until the next issue change for the unsigned contracts. Sungrow reserves the right to make any changes and modifications, at no prior notice, for unsigned contracts in addition to the right to decide whether to accept new contracts or the annual contract renewal.

11.0 PRICE

11.1. For services not covered under this contract, Sungrow will charge based on standard service price schedule.
11.2. Sungrow reserves the right to revise prices.

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Canada Office: Unit 63-64, 6535 Millcreek Drive, Mississauga, ON, Canada L5N2M2, Tel: (855) 760-8618 Fax: (905) 760-1158

EXHIBIT 1: SUNGROW WARRANTY REGISTRATIONFORM

Customer information (please print)				
First name		Last name		
Business name				
Business type	☐Integrator	☐Site Owner	☐Financier/PPA	
	☐Other	Please specify:		
Address				
City	State	Zip Code		
Phone Number		Email		
Product subject to this warranty (enter information from inverter nameplate)				
Model Number				
Serial Number				
Location of the product				
Site Name				
Address				
City	State	Zip Code		
Warranty information				
Date of Delivery				
Date of Installation				
Warranty period	Standard	Extended		
Central Inverter	5 years	☐10 years	☐15 years	☐20 years
String Inverter	10 years		☐15 years	☐20 years

The standard period covered by Sungrow Warranty for Product installed in United States including 48 States, Hawaii, Alaska, Puerto Rico, Canada and Panama is 5 years from the date of shipment for central inverters, and 10 years for string inverters. If Sungrow receives a completed Registration Form from the End-user within six (6) months of the ship date, the Warranty will start on the installation date stated on the Registration Form.

To request a warranty extension, please check the box next to the appropriate extension option. A Sungrow representative will contact you to complete your order. Or you can directly contact your Sungrow sales contact person to complete an extension order.

To be completed by Sungrow
Termination date of warranty

To register your Sungrow inverter, please mail a copy of this warranty registration form to:

Sungrow Canada Inc.
Attn: WarrantyRegistration
895 Edgeley Blvd
Vaughan, ON L4K 4V9, Canada

OR

Sungrow USA Corp.
Attn: Warranty Registration
47751 Fremont Blvd, Fremont
CA, USA 94538

Certificate CN15/21022.00

The management system of

Sungrow Power Supply Co., Ltd.

Unified Social Credit Code: 91340100149209742 1
Business Registration Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City
Business Operation Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China

has been assessed and certified as meeting the requirements of

ISO 9001:2015

For the following activities

Design, development of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station
Manufacture of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station and hydrogen-producing rectifiers
Design, development and manufacture of electric vehicle off-board charging equipment
Design, development and manufacture of power conversion system, ESS (energy storage system) and lithium ion storage system battery pack for electric power facilities

This certificate is valid from 15 August 2023 until 14 August 2026 and remains valid subject to satisfactory surveillance audits.
Issue 12. Certified since 07 August 2015
Multiple certificates have been issued for this scope, the main certificate is numbered CN15/21022.00
Certified activities performed by additional sites are listed on subsequent pages.

Authorised by
Jonathan Hall
Global Head - Certification Services

SGS United Kingdom Ltd
Rossmore Business Park, Ellesmere Port, Cheshire, CH65 3EN, UK
t +44 (0)151 350-6666 - www.sgs.com

The certification information can be verified on the web site of Certification and Accreditation Administration of the People's Republic of China
www.cnca.gov.cn

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Sungrow Power Supply Co., Ltd.

ISO 9001:2015

Issue 12
Sites
Sungrow Power Supply Co., Ltd. Unified Social Credit Code: 91340100149209742 1 Business Registration Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City Business Operation Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China Design, development of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station
Sungrow Power Supply Co., Ltd. Unified Social Credit Code: 91340100149209742 1 Business Registration Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City Business Operation Address: No. 608, Changning Avenue, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China Manufacture of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station and hydrogen-producing rectifiers Design, development and manufacture of electric vehicle off-board charging equipment
Sungrow Energy Storage Technology Co., Ltd. Unified Social Credit Code: 91340100336398219A Business Registration Address: No. 788, Mingchuan Road, Boyan Science & Technology Park, New & High Technology Industrial Development Zone, Hefei City Business Operation Address: No. 788, Mingchuan Road, Boyan Science & Technology Park, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China Design, development and manufacture of power conversion system, ESS (energy storage system) and lithium ion storage system battery pack for electric power facilities

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此为证书 CN15/21022.00 译本

下述组织

阳光电源股份有限公司

统一社会信用代码：91340100149209742l
注册地址：合肥市高新区习友路 1699 号
经营地址：中国安徽省合肥市高新区习友路 1699 号

的管理体系已经过审核，并被证明符合下述要求

ISO 9001:2015

所涉及的活动范围覆盖

光伏逆变器、风电变流器、数据采集器、无线通信模块、智能通讯箱、储能逆变器、汇流箱、中压箱变的设计、开发
光伏逆变器、风电变流器、数据采集器、无线通信模块、智能通讯箱、储能逆变器、汇流箱、中压箱变、整流变换器的制造
电动汽车非车载充电设备的设计、开发和制造
储能变流器、储能一体化系统、电力设施用锂电池储能系统电池包的设计、开发和制造

该证书的有效期自 2023 年 08 月 15 日 至 2026 年 08 月 14 日 并须经过符合要求的监督审核保持有效
版本号 12. 初始注册日期 2015 年 08 月 07 日
在此范围内出具了多张证书，主证书编号为 CN15/21022.00
在其它场所实施的认证活动在后续页面上列出

签署
Jonathan Hall
Global Head -
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阳光电源股份有限公司

ISO 9001:2015

版本号 12
场所
阳光电源股份有限公司 统一社会信用代码：913401001492097421 注册地址：合肥市高新区习友路 1699 号 经营地址：中国安徽省合肥市高新区习友路 1699 号 光伏逆变器、风电变流器、数据采集器、无线通信模块、智能通讯箱、储能逆变器、汇流箱、中压箱变的设计、开发
阳光电源股份有限公司 统一社会信用代码：913401001492097421 注册地址：合肥市高新区习友路 1699 号 经营地址：中国安徽省合肥市高新区长宁大道 608 号 光伏逆变器、风电变流器、数据采集器、无线通信模块、智能通讯箱、储能逆变器、汇流箱、中压箱变、整流变换器的制造 电动汽车非车载充电设备的设计、开发和制造
阳光储能技术有限公司 统一社会信用代码：91340100336398219A 注册地址：合肥市高新区柏堰科技园铭传路 788 号 经营地址：中国安徽省合肥市高新区柏堰科技园铭传路 788 号 储能变流器、储能一体化系统、电力设施用锂电池储能系统电池包的设计、开发和制造

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Certificate CN15/21022.01

Sungrow Power Supply Co., Ltd.

Unified Social Credit Code: 91340100149209742 1
Business Registration Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City
Business Operation Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China

Has been assessed under the management system of the certified organisation defined in the main certificate CN15/21022.00 as meeting the requirements of

ISO 9001:2015

For the following activities

Design, development of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station

This certificate is valid from 15 August 2023 until 14 August 2026 and remains valid subject to satisfactory surveillance audits.
Issue 11.
The validity of this certificate depends on the validity of the main certificate.

Authorised by
Jonathan Hall
Global Head - Certification Services

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阳光电源股份有限公司

统一社会信用代码：91340100149209742l
注册地址：合肥市高新区习友路 1699 号
经营地址：中国安徽省合肥市高新区习友路 1699 号

依据主证书 CN15/21022.00 中规定的管理体系已经过审核，并被证明符合下述要求

ISO 9001:2015

所涉及的活动范围覆盖

光伏逆变器、风电变流器、数据采集器、无线通信模块、智能通讯箱、储能逆变器、汇流箱、中压箱变的设计、开发

该证书的有效期自 2023 年 08 月 15 日 至 2026 年 08 月 14 日 并须经过符合要求的监督审核保持有效
版本号 11.
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统一社会信用代码：91340100149209742l
注册地址：合肥市高新区习友路 1699 号
经营地址：中国安徽省合肥市高新区长宁大道 608 号

依据主证书 CN15/21022.00 中规定的管理体系已经过审核，并被证明符合下述要求

ISO 9001:2015

所涉及的活动范围覆盖

光伏逆变器、风电变流器、数据采集器、无线通信模块、智能通讯箱、储能逆变器、汇流箱、中压箱变、整流变换器的制造
电动汽车非车载充电设备的设计、开发和制造

该证书的有效期自 2023 年 08 月 15 日 至 2026 年 08 月 14 日 并须经过符合要求的监督审核保持有效
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Certificate CN15/21022.06

Sungrow Power Supply Co., Ltd.

Unified Social Credit Code: 91340100149209742 1
Business Registration Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City
Business Operation Address: No. 608, Changning Avenue, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China

Has been assessed under the management system of the certified organisation defined in the main certificate CN15/21022.00 as meeting the requirements of

ISO 9001:2015

For the following activities

Manufacture of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station and hydrogen-producing rectifiers
Design, development and manufacture of electric vehicle off-board charging equipment

This certificate is valid from 15 August 2023 until 14 August 2026 and remains valid subject to satisfactory surveillance audits.
Issue 11.
The validity of this certificate depends on the validity of the main certificate.

Authorised by
Jonathan Hall
Global Head - Certification Services

SGS United Kingdom Ltd
Rossmore Business Park, Ellesmere Port, Cheshire, CH65 3EN, UK
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阳光电源股份有限公司

阳光储能技术有限公司

统一社会信用代码：91340100336398219A
注册地址：合肥市高新区柏堰科技园铭传路 788 号
经营地址：中国安徽省合肥市高新区柏堰科技园铭传路 788 号

依据主证书 CN15/21022.00 中规定的管理体系已经过审核，并被证明符合下述要求

ISO 9001:2015

所涉及的活动范围覆盖

储能变流器、储能一体化系统、电力设施用锂电池储能系统电池包的设计、开发和制造

该证书的有效期自 2023 年 08 月 15 日 至 2026 年 08 月 14 日 并须经过符合要求的监督审核保持有效
版本号 10.
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Certificate CN15/21022.07

Sungrow Power Supply Co., Ltd.

Sungrow Energy Storage Technology Co., Ltd.

Unified Social Credit Code: 91340100336398219A
Business Registration Address: No. 788, Mingchuan Road, Boyan Science & Technology Park, New & High Technology Industrial Development Zone, Hefei City
Business Operation Address: No. 788, Mingchuan Road, Boyan Science & Technology Park, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China

Has been assessed under the management system of the certified organisation defined in the main certificate CN15/21022.00 as meeting the requirements of

ISO 9001:2015

For the following activities

Design, development and manufacture of power conversion system, ESS (energy storage system) and lithium ion storage system battery pack for electric power facilities

This certificate is valid from 15 August 2023 until 14 August 2026 and remains valid subject to satisfactory surveillance audits.
Issue 10.
The validity of this certificate depends on the validity of the main certificate.

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Global Head - Certification Services

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Certificate CN20/20685.00

The management system oF

Sungrow Power Supply Co., Ltd.
Sungrow En ergy Storage Techno'ogy Co., Ltd.
HeFei E-Power Technology Co., Ltd.

Unified Social Credit Code: 91340100149209742 1

Business Registration Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City

Business Operation Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China

has been assessed and certified as meeting the requirements of

ISO 45001 :2015

For the following activities

Design, development of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station
Manufacture of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station
Design, development and manufacture of electric vehicle off-board charging equipment
Design, development and manufacture of storage inverters, ESS (energy storage system), lithium ion storage system battery electric power facilities
Design of electrical drive motor controllers

This certificate is valid from 19 March 2023 until 10 March 2025 and remains valid subject to satisfactory surveillance audits.
Issue 6. Certified since 09 February 2010
Multiple certificates have been issued for this since, the main certificate number CN20/20685.00
Certified activities performed by additional sites are listed on subsequent pages.

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Certificate CN20/20855.00

The management system of

Sungrow Power Supply Co., Ltd.
Sungrow Energy Storage Technology Co., Ltd.
HeFei E-Power Technology Co., Ltd.

Unified Social Credit Code: 91340100149209742 1
Business Registration Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City
Business Operation Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China

has been assessed and certified as meeting the requirements of

ISO 45001:2018

For the following activities

Design, development of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station
Manufacture of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station
Design, development and manufacture of electric vehicle off-board charging equipment
Design, development and manufacture of storage inverters, ESS (energy storage system), lithium ion storage system battery electric power facilities
Design of electrical drive motor controllers

This certificate is valid from 01 July 2023 until 30 June 2026 and remains valid subject to satisfactory surveillance audits.
Issue 4. Certified since 01 July 2020
Multiple certificates have been issued for this scope, the main certificate is numbered CN20/20855.00
Certified activities performed by additional sites are listed on subsequent pages.

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Global Head - Certification Services

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ISO 45001:2018

Issue 4
Sites
Sungrow Power Supply Co., Ltd. Unified Social Credit Code: 91340100149209742l Business Registration Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City Business Operation Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China Design, development of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station
Sungrow Power Supply Co., Ltd. Unified Social Credit Code: 91340100149209742l Business Registration Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City Business Operation Address: No. 608, Changning Avenue, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China Manufacture of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station Design, development and manufacture of electric vehicle off-board charging equipment
Sungrow Energy Storage Technology Co., Ltd. Unified Social Credit Code: 91340100336398219A Business Registration Address: No. 788, Mingchuan Road, Boyan Science & Technology Park, New & High Technology Industrial Development Zone, Hefei City Business Operation Address: No. 788, Mingchuan Road, Boyan Science & Technology Park, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China Design, development and manufacture of storage inverters, ESS (energy storage system), lithium ion storage system battery electric power facilities
HeFei E-Power Technology Co., Ltd. Unified Social Credit Code: 91340100MA2MT6GN5Q Business Registration Address: Building 2#, No. 88, Wutong Road, New & High Technology Industrial Development Zone, Hefei City Business Operation Address: Building 2#, No. 88, Wutong Road, New & High Technology Industrial Development Zone, He Fei City, Anhui Province, P.R. China Design of electrical drive motor controllers

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Certificate CN20/20855.01

Sungrow Power Supply Co., Ltd.

Unified Social Credit Code: 91340100149209742 1
Business Registration Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City
Business Operation Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China

Has been assessed under the management system of the certified organisation defined in the main certificate CN20/20855.00 as meeting the requirements of

ISO 45001:2018

For the following activities

Design, development of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station

This certificate is valid from 01 July 2023 until 30 June 2026 and remains valid subject to satisfactory surveillance audits.
Issue 4.
The validity of this certificate depends on the validity of the main certificate.

Authorised by
Jonathan Hall
Global Head - Certification Services

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Certificate CN20/20855.03

Sungrow Power Supply Co., Ltd.

Unified Social Credit Code: 91340100149209742 1
Business Registration Address: No. 1699, Xiyou Road, New & High Technology Industrial Development Zone, Hefei City
Business Operation Address: No. 608, Changning Avenue, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China

Has been assessed under the management system of the certified organisation defined in the main certificate CN20/20855.00 as meeting the requirements of

ISO 45001:2018

For the following activities

Manufacture of PV (photovoltaic) inverters, wind power converters, data logger, wireless communication module, smart communication box, storage inverters, combiner box, MV (medium voltage) station
Design, development and manufacture of electric vehicle off-board charging equipment

This certificate is valid from 01 July 2023 until 30 June 2026 and remains valid subject to satisfactory surveillance audits.
Issue 4.
The validity of this certificate depends on the validity of the main certificate.

Authorised by
Jonathan Hall
Global Head - Certification Services

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Certificate CN20/20855.02

Sungrow Energy Storage Technology Co., Ltd.

Unified Social Credit Code: 91340100336398219A
Business Registration Address: No. 788, Mingchuan Road, Boyan Science & Technology Park, New & High Technology Industrial Development Zone, Hefei City
Business Operation Address: No. 788, Mingchuan Road, Boyan Science & Technology Park, New & High Technology Industrial Development Zone, Hefei City, Anhui Province, P.R. China

Has been assessed under the management system of the certified organisation defined in the main certificate CN20/20855.00 as meeting the requirements of

ISO 45001:2018

For the following activities

Design, development and manufacture of storage inverters, ESS (energy storage system), lithium ion storage system battery electric power facilities

This certificate is valid from 01 July 2023 until 30 June 2026 and remains valid subject to satisfactory surveillance audits.
Issue 3.
The validity of this certificate depends on the validity of the main certificate.

Authorised by
Jonathan Hall
Global Head - Certification Services

SGS United Kingdom Ltd
Rossmore Business Park, Ellesmere Port, Cheshire, CH65 3EN, UK
t +44 (0)151 350-6666 - www.sgs.com

UKAS MANAGEMENT SYSTEMS 0005

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Certificate CN20/20855.05

HeFei E-Power Technology Co., Ltd.

Unified Social Credit Code: 91340100MA2MT6GN5Q
Business Registration Address: Building 2#, No. 88, Wutong Road, New & High Technology Industrial Development Zone, Hefei City
Business Operation Address: Building 2#, No. 88, Wutong Road, New & High Technology Industrial Development Zone, He Fei City, Anhui Province, P.R. China

Has been assessed under the management system of the certified organisation defined in the main certificate CN20/20855.00 as meeting the requirements of

ISO 45001:2018

For the following activities

Design of electrical drive motor controllers

This certificate is valid from 01 July 2023 until 30 June 2026 and remains valid subject to satisfactory surveillance audits.
Issue 2.
The validity of this certificate depends on the validity of the main certificate.

Authorised by
Jonathan Hall
Global Head - Certification Services

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OMCO SOLAR

LIMITED WARRANTY FOR FIXED TILT PV PANEL MOUNTING STRUCTURES

Warranty Coverage:

Subject to the terms hereof, **OMCO Solar LLC**, an Arizona limited liability company ("OMCO"), warrants to the original purchaser ("Purchaser") that the PV Panel Mounting Structure delivered (the "Product") shall be free from material defects in materials and workmanship.

This Warranty covers only those components of the Product that were manufactured by OMCO, which shall only include: (a) posts; (b) beams; (c) tilt brackets; (d) diagonal strut; (e) module rails; (f) clamps; and (g) OMCO supplied fasteners (collectively, the "Components"). The warranty will not be binding until OMCO has received payment in full for the Products.

Warranty Duration:

The Warranty is effective upon delivery of the Product to the Purchaser and valid upon final payment of the full contract value including applicable changes by the Purchaser in good funds. The warranty duration of the product shall be valid for a period of twenty (20) years for the Fixed Tilt PV Panel Mounting Structure.

Warranty Exclusions:

The Warranty does not cover:

- Design flaws resulting from incorrect geo-technical or structural requirements furnished to OMCO by Purchaser or its agents or representatives;
- Incorrect or deficient installation of the Product, including failure to use or deviate from the OMCO Fixed Tilt PV Panel Mounting Structure Installation Manual
- Products that have been altered or used in a manner not consistent with their original design or intended purpose;
- Any failure of the Product due to events exceeding the Product design loads, as based on the Purchaser's geo-technical and structural requirements;
- Deterioration due to excessive exposure to standing water, or any exposure to corrosive chemicals, fumes, ash, or other foreign chemical substances;
- Acts of God;
- Any abuse, alteration, or vandalism of the Product or its Components by Purchaser or a third party;
- White rust, a natural aging process associated with galvanized steel; and any financial or other consequential loss sustained due to a failure of the Product.

THE WARRANTIES STATED HEREIN ARE THE ONLY REPRESENTATIONS AND WARRANTIES OMCO HAS GIVEN TO THE ORIGINAL PURCHASER IN CONNECTION WITH THE PROVISION OF THE PRODUCT TO SUCH PURCHASER. EXCEPT AS SET FORTH HEREIN, OMCO HAS NOT MADE AND HEREBY EXPRESSLY DISCLAIMS ANY OTHER OR FURTHER REPRESENTATION OR WARRANTY, EITHER EXPRESS OR IMPLIED, CONCERNING THE PRODUCT. THE WARRANTIES GIVEN HEREIN ARE IN LIEU OF ALL OTHER WARRANTIES OMCO MIGHT HAVE GIVEN TO THE ORIGINAL PURCHASER, INCLUDING WARRANTIES OF MERCHANTABILITY AND WARRANTIES OF FITNESS FOR INTENDED USE. ALL OTHER WARRANTIES OMCO OR ANYONE PURPORTING TO REPRESENT OMCO, INCLUDING WITHOUT LIMITATION, ANY DISTRIBUTOR OR SALES AGENT OF OMCO, MAY HAVE GIVEN, OR WHICH MAY BE PROVIDED OR IMPLIED BY LAW OR COMMERCIAL PRACTICE, ARE HEREBY EXCLUDED.

Owner Responsibilities:

The owner of the product under this Warranty is required to conduct annual inspections of the Product and to provide necessary maintenance, including tightening of fasteners or other connections, and repairing of any galvanized coatings showing signs of wear, rust, or other deterioration. Failure to conduct annual inspections or to perform required maintenance of the Product will void the Warranty.

Voiding the Warranty:

This Warranty shall be void if:

- Purchaser, or its agents or representatives, use or permit to be used any components in the Product that are not manufactured, supplied or approved by OMCO; or
- Purchaser, or its agents or representatives, repair the Product in a manner not approved by OMCO.

Warranty Administration:

To make a Warranty claim, Purchaser, must notify OMCO in writing of the defect and any pertinent facts or circumstances within thirty (30) days (or such shorter period as may reflect the severity of the defect) of the date Purchaser first become aware of the defect. Written notice should be given via registered mail to OMCO at 30396 Lakeland Blvd, Wickliffe, Ohio 44092 USA, Attention: Warranty Claims Department.

Upon receipt of the written notice, OMCO will establish a claim file and contact Purchaser to discuss the Warranty claim. OMCO shall be entitled to appoint a local agent to assess the claim on its behalf. Purchaser shall be required to provide OMCO and/or its representatives with all reasonable and unhindered access to inspect the Product. Following OMCO's assessment of the Warranty claim, OMCO, at its sole and exclusive option, shall decide whether to repair or replace the Product covered by this Warranty subject to the following:

- If OMCO elects to repair a defect, Purchaser shall, at its sole cost and expense, provide site access necessary to facilitate such repair.
- If OMCO elects to replace the Product, Purchaser shall return the allegedly defective components to OMCO at the address above at OMCO's cost and expense. Components need to be shipped to OMCO within thirty (30) days to be considered for Warranty replacement. OMCO's Warranty excludes labor and associated costs with removing and replacing components.

Warranty Limitations:

OMCO'S LIABILITY FOR ITS PRODUCTS UNDER ALL THEORIES OF LIABILITY SHALL BE LIMITED TO REPAIRING OR REPLACING THOSE FOUND BY OMCO TO BE DEFECTIVE, OR AT OMCO'S OPTION, TO REFUNDING THE PURCHASE PRICE OF SUCH PRODUCTS. OMCO'S WARRANTY DOES NOT EXTEND TO DESIGN OR OUTPUT OF THE SYSTEM.

NOTWITHSTANDING ANYTHING CONTAINED HEREIN TO THE CONTRARY, OMCO SHALL HAVE NO LIABILITY FOR CONSEQUENTIAL OR INCIDENTAL DAMAGES ARISING OUT OF OR IN CONNECTION WITH THIS WARRANTY OR THE PRODUCTS COVERED HEREBY, INCLUDING WITHOUT LIMITATION BREACH OF ANY OBLIGATION IMPROSED ON OMCO HEREUNDER OR IN CONNECTION HEREWITH. CONSEQUENTIAL DAMAGES FOR PURPOSES HEREOF SHALL INCLUDE, WITHOUT LIMITATION, LOSS OF USE, INCOME OR PROFIT.

OMCO MAKES NO WARRANTY AS TO METHODS EMPLOYED BY OR QUALITY OF WORK PRODUCT OF ANY OMCO APPROVED INSTALLER, OR CONSEQUENTIAL DAMAGES DUE TO SUCH INSTALLERS WORK PRODUCT.

Assignation and Law:

- Purchaser may assign its rights and obligations arising under this Warranty to a third-party provided Purchaser furnishes OMCO with written notification within ninety (90) days of the effective date of the assignment. Written notification to OMCO must include: (a) the names, addresses, and contact information of both Purchaser and assignee; (b) the effective date of assignment; Purchaser's original purchase order number(s); and (c) the shipment address of the Products. If such notice is not received by OMCO as set forth herein, the Warranty shall be null and void and of no further force or effect following the effective date of the purported assignment.
- This Warranty shall be governed by and construed in accordance with the laws of the State of Ohio, USA.

Terrasmart, Inc 5 Year Product Warranty for eBOS Solutions

Limited Warranty: Materials and Workmanship

Terrasmart, Inc warrants its photovoltaic system products to be free from defects in materials or workmanship under normal application, installation, use and service conditions for a period of sixty (60) months from the date of sale to the original purchaser. If the product fails to conform to this warranty within this period of time, Terrasmart Inc will, at its own expense, either repair or replace the product(s) or refund the purchase price. The repair, replacement, or refund shall be the sole and exclusive remedy provided under this warranty, and the form of remedy will be decided solely by Terrasmart Inc.

This warranty applies to all source circuit combiners, array combiners, automatic disconnect switches, and cable assemblies built by Terrasmart Inc. Any product(s) repaired or replaced by Terrasmart Inc under a warranty claim shall by covered by the same warranties and original term as the first product purchased under said claim.

Limitations and Conditions

The limited warranties set forth herein do not apply to any product that, in the sole judgment of Terrasmart Inc, has been subjected to misuse, neglect, or accident, or has been damaged via misuse, alteration, improper installation or application, or negligence in use, storage, transportation, or handling; or has in any way been tampered with or repaired by any one other than an agent or employee of Terrasmart Inc.

The limited warranties do not cover costs associated with product installation, removal, testing, packaging, transportation, reinstallation, or any other costs associated with the replacement of the product; nor do these limited warranties cover lost revenues or profits associated with the performance or non-performance of the product(s).

The limited warranties apply only to the first end-user or purchaser of the product(s). Terrasmart Inc shall have no responsibility or liability whatsoever for damage or injury to persons or property, or for other loss or injury resulting from any cause whatsoever arising out of or related to the product, including, without limitation, any defects in the product, or from use or installation. Under no circumstances will Terrasmart Inc be liable for incidental, consequential or special damages, however caused.

Severability

If a part, provision or clause of terms within this document, are held invalid, void, or unenforceable, such holding shall not affect the remainder of the document, and to this end the terms and conditions shall be treated as severable.

JSHP TRANSFORMER

HUA PENG

Five Years Limited Warranty

JSHP Transformer Co., Ltd. (JSHP) warrants to the purchaser that the transformer, together with all parts and components in the original purchase, and following change orders, according with customer's requirement, is free of defects in workmanship and materials.

This warranty extends to all parts manufactured by the seller, JSHP, for 66 months after delivery from the factory or 60 months form commissioning date, whichever period expires first. All other components parts are warranted for the same periods, or for the periods covered by the original equipment manufacturer's warranty, whichever is longer. This warranty covers any defects and malfunction of transformer except that which may happen because of vandalism, improper installation if not provided by JSHP, handling, operation, or for any cause other than defects in workmanship and materials. The method and extent of repairs to be made rests solely with JSHP.

During the warranty period guidance of erection costs are included. This warranty does cover the cost of removal from the site and reinstallation after repair, and costs resulting from the moving of structures or associated equipment are excluded.

The seller, JSHP, shall not be liable for special, indirect, or consequential damages, and this warranty is in lieu of all warranties of merchantability, fitness for a particular purpose or other warranties expressed or implied, and the remedies of the customer herein provided fulfill all liabilities of JSHP, whether in warranty, negligence or otherwise.

Unless otherwise agreed, the transformer will be shipped Shanghai port in China. Shipments will be mutually agreed upon means (e.g. truck) to site specified by customer, provide no unusual circumstances unknown to JSHP (no roads, impassable conditions or extreme grades). Customer agrees to inspect transformer within 48 hours of arrival at destination and notify both JSHP and the carrier of any observable damage or irregularity. **NOTIFICATION SHALL BE ACCOMPLISHED BY COMPLETING AND RETURN JSHP TRANSFORMER CO., LTD. FORM INSPECTION RECEIPCT SUMMARY.**

THE SELLER SHALL IN NO EVENT BE LIABLE FOR INCIDENTAL OR CONSEQUENTIAL DAMAGES. THE SELLER MAKES NO WARRANTY OF MERCHANTABILITY, OR FITNESS FOR A PARTICULAR PURPOSE, OR ANY OTHER WARRANTY EITHER EXPRESSED OR IMPLIED, EXCEPT AS EXPRESSLY SET FOR THE HEREIN.

Revised January, 2008

North America Marketing & Service
355 West Olive Avenue, Suite 103, Sunnyvale, CA94086, USA
Tel: +1-408-850-1416 Email: services@jshp.com Web: www.jshp.com

(For Sales in the USA, Excluding the State of Louisiana & International Sales)

These Terms and Conditions Govern
the Sale of Equipment and Services

The terms and conditions set forth in the SEI proposal and these terms and conditions govern the SEI proposal and any Agreement between the parties for the Equipment and/or Services covered by such proposal. Each proposal is valid for thirty (30) days from the date of the proposal unless extended or withdrawn in writing by SEI. The issuance of a Purchaser purchase order or any other reasonable manner of acceptance by Purchaser communicated to SEI during such validity period will form an Agreement based upon the terms and conditions of the SEI proposal and these terms and conditions. The following order of precedence shall prevail: (i) an integrated agreement, if any, signed by SEI and Purchaser; (ii) any change orders executed by the Parties; (iii) SEI proposal; (iv) these terms and conditions; (v) Purchaser's purchase order (as accepted by SEI and excluding those items noted in Article 1(b) below).

1. Definitions

Whenever used in this document with initial capitalization, the following definitions shall be applicable:

(a) "ACM" as used herein shall mean Asbestos and Presumed Asbestos Containing Materials.

(b) "Agreement" means the SEI proposal, these terms and conditions, Purchaser's purchase order, as accepted by SEI, (excluding any preprinted terms and conditions on said purchase order and in any attachments to or Purchaser documents referenced in said purchase order) or other document evidencing acceptance of the SEI offer as set forth in the SEI proposal; or an integrated agreement signed by SEI and Purchaser; for the Equipment, and/or Services.

(c) "Asbestos" shall have the meaning set forth in United States Code of Federal Regulations Chapter 29, Sections 1926.1101 et seq.

(d) "Delivery" means delivery in accordance with the applicable delivery term stated in Article 5(a) below or, unless otherwise provided in the proposal.

(e) "Equipment" means equipment, components, parts, materials and Software provided by SEI pursuant to the Agreement.

(f) "Field Installation Services" means the installation by SEI of Purchaser's Material at the Site.

(g) "Field Repair and Modernization Services" means the repair, modification or modernization work, or some or all of them, performed by SEI on Purchaser's Material at the Site and for certain activities at a repair facility selected by SEI.

(h) "Hazardous Material" means any material listed in the "Hazardous Material Table" set forth in 49 CFR 172.101 as amended.

(i) "Maintenance Services" means the disassembly, inspection and reassembly of Purchaser's Material at the Site.

(j) "Nuclear Incident" shall have the meaning set forth in the Atomic Energy Act of 1954, 42 U.S.C. 2011, et seq., as amended.

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(k) “Party” means individually either SEI or Purchaser.

(l) “Parties” means collectively both SEI and Purchaser.

(m) “Presumed Asbestos Containing Material” shall have the meaning set forth in United States Code of Federal Regulations Chapter 29, Sections 1926.1101 et seq.

(n) “Purchaser” means the entity purchasing Equipment and/or Services, as well as any other owners of the facility where the Equipment or Purchaser’s Material is or will be situated.

(o) “Purchaser’s Material” means the equipment, materials, components and items of any kind owned by Purchaser or any other owner of the Site for which Services are to be provided or are provided under the Agreement.

(p) “Resultant Data” means data or information that is generated or derived from or a result of any modification, adaption, revision, translation, abridgement, condensation, compilation, evaluation, expansion or other recasting or processing of the Purchaser’s data.

(q) “Services” means Shop Repair and Modernization Services, Field Installation Services, Field Repair and Modernization Services, Maintenance Services, Training Services and Technical Services; or some or all of them provided by SEI pursuant to the Agreement.

(r) “Services on Third Party Parts” means Services in connection with Third Party Parts.

(s) “Shop Repair and Modernization Services” means work performed by SEI on Purchaser’s Material at a SEI manufacturing plant, a SEI repair facility or another suitable facility selected by SEI.

(t) “SEI” means Siemens Energy, Inc. or its affiliated companies and subsidiaries (including but not limited to Siemens Demag Delaval Turbomachinery, Inc., Dresser-Rand, Co.) as set forth in the Agreement, and their respective successors and assigns, and each of their partners, principals, shareholders, directors, officers, employees, and agents.

(u) “Site” means the Purchaser’s facility where the Equipment or Purchaser’s Material is or will be situated.

(v) “Special Services” means the performance by a SEI field service representative of diagnostic and operational troubleshooting on Purchaser’s Material, both online and offline. This work may be conducted on Site or by telecommunication.

(w) “Software” means instructions in machine readable form, other than source code, and associated documentation delivered by SEI to Purchaser in chip, disk and/or tape format.

(x) “Subsupplier” means any subcontractor or supplier of any tier who supplies goods and services to SEI in connection with the obligations of SEI under the Agreement.

(y) “Technical Field Advice” (sometimes referred to as Technical Field Assistance) means the advice and consultation given to Purchaser’s personnel by a field service representative of SEI with respect to:

   a. installation, inspection, repair and/or maintenance activities performed by others at the Site, and

   b. any SEI recommended quality assurance procedures for activities performed at the Site.

   Technical Field Advice does not include management, supervision or regulation of Purchaser’s personnel, agents or contractors.

(z) “Technical Services” means (i) Technical Field Advice; (ii) Special Services; (iii) inspection of equipment which has been disassembled by Purchaser or others; (iv) technical evaluation of inspections performed by SEI, Purchaser or others; (v) technical information provided by SEI, including data interpretation and reports; (vi) inspections, technical evaluation of inspections, technical analysis of materials and technical recommendations related to

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7. Warranty

A. Equipment Warranty and Exclusive Remedy (excluding Software): SEI warrants that each component of the Equipment (excluding Software and consumables) furnished to Purchaser will be free of defects in workmanship and materials until the earlier of eighteen (18) months after the Delivery of such component of the Equipment or one (1) year from the date of first use of such component of the Equipment (the "Equipment Warranty Period").

If during the Equipment Warranty Period (or the Warranty Repair Warranty Period per Article 7(H), if applicable), SEI is promptly notified in writing that the Equipment or any component thereof fails to conform to the Equipment Warranty, SEI will at its option and expense correct such nonconformity by repair or replacement.

B. Software Warranty and Exclusive Remedy: SEI also warrants that the Software will comply with the functional specifications as set for in this Agreement until the earlier of eighteen (18) months after the Delivery of such Software or one (1) year from the date of first use of the Software (the "Software Warranty Period"). SEI does not warrant that the Software will be error free or that Purchaser will experience uninterrupted performance.

If during the Software Warranty Period (or the Warranty Repair Warranty Period per Article 7(H), if applicable), SEI is promptly notified in writing that the Software fails to conform to its warranty, and such failure is reproducible SEI will at its option and expense correct the nonconformity by correction or deployment of an updated version, or patch in the medium originally supplied, or by providing a procedure to Purchaser for correction of the nonconformity. The obligations to provide software updates hereunder shall not include any obligation on Contractor to provide software upgrades without entitlement to a Change Order. Third party Software shall be warranted on a pass-through basis in the same manner and for the same period and extent provided to SEI by the entity which supplied said third party software.

C. Field Installation Services, Field Repair and Modernization Services, Maintenance Services, and/or Shop Repair and Modernization Services Warranty and Exclusive Remedy: SEI warrants that the work performed by SEI on Purchaser's Material, including any materials (excluding consumables) supplied by SEI in connection therewith (hereinafter in this subsection C referred to as the "Work"), will be free of defects in, workmanship and materials until one (1) year after the completion of such services (the "Field and Shop Repair and Modernization Services Warranty Period").

If during the Field and Shop Repair and Modernization Services Warranty Period (or the Warranty Repair Warranty Period per Article 7(H), if applicable), SEI is promptly notified in writing that the Work or any part thereof fails to conform to the Field Installation Services, Field Repair and Modernization Services, Maintenance Services, and/or Shop Repair and Modernization Services Warranty, SEI will at its option and expense correct such nonconformity by repair, replacement or reperformance of the defective portion of the Work. If repair, replacement or reperformance is impracticable, SEI will refund the amount of the compensation paid to SEI by Purchaser for such nonconforming portion of the Work.

D. Technical Services and Training Services Warranties and Exclusive Remedy: SEI warrants for each item of Technical Services that (i) the advice, recommendations and performance of its personnel will reflect competent professional knowledge and judgment and (ii) the technical information, reports and analyses transmitted by SEI in connection therewith will reflect competent professional knowledge and judgment, beginning with the start of the item of Technical Services and ending one (1) year after completion of said item of Technical Services by SEI (the "Technical Services Warranty Period"). SEI warrants that for each item of Training Services that such shall be performed in a professional and workmanlike manner beginning with the start of the item of Training Services and ending ninety (90) days after completion of said item of Training Services by SEI.

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If during the Technical Services Warranty Period or Training Services Warranty Period (or the Warranty Repair Warranty Period per Article 7(H), if applicable), SEI is promptly notified in writing that any portion of the Technical Services fails to conform to the Technical Services Warranty, SEI will promptly reperform such nonconforming portion of the Technical Services. If reperformance is impracticable SEI will refund the amount of the compensation paid to SEI for such nonconforming portion of the Technical Services.

E. Title: SEI warrants that the Equipment, upon Delivery, shall not be subject to any encumbrances, liens, security interests, or other defects in title. In the event of any failure to conform to this warranty, SEI, upon prompt written notice of such failure, shall defend the title to the Equipment.

F. Warranty Conditions: The warranties and remedies set forth in this Article are conditioned upon:

(1) Purchaser's receipt, handling, storage, installation, testing, operation and maintenance, including tasks incident thereto, of the Equipment, Purchaser's Material or Purchaser's equipment, in accordance with the recommendations of SEI to the extent applicable or, in the absence of such recommendations or to the extent not applicable, in accordance with the generally accepted practices of the industry. In addition, such Equipment, Purchaser's Material or Purchaser's equipment shall not have been operated in excess of limitations specified in writing by SEI and not have been subjected to accident, alteration, abuse or misuse.

(2) For all warranty work, Purchaser shall provide access to any operating and maintenance data as requested by SEI, which may include broadband connection.

(3) For all warranty work where disassembly, removal, replacement and reinstallation of Equipment, materials, structures or Purchaser's Material was not part of the SEI scope of work under the Agreement, Purchaser providing, without cost to SEI, access to the nonconformity by disassembling, removing, replacing and reinstalling any Equipment, materials, structures or Purchaser's Material to the extent necessary to permit SEI to perform its warranty obligations.

(4) All warranty work being performed on a single-shift straight-time basis, Monday through Friday. In the event Purchaser requests correction of warranty items on an overtime or multiple shift schedule, the premium portion of such overtime or multiple shift shall be to Purchaser's account.

(5) Purchaser, without cost to SEI, making its Site facilities and personnel (to the extent consistent with personnel job classifications) available to assist SEI in the performance of its warranty obligations.

(6) Purchaser, with respect to subsection 5 above, reimbursing SEI for all costs incurred in the transportation of personnel and defective, repaired or replacement parts to and from the Site.

(7) Prior to the return of any Equipment or Purchaser's Material to SEI, the Purchaser must obtain authorization and shipping instructions from SEI. The Equipment or Purchaser's Material must be returned with complete identification in accordance with instructions furnished by SEI. In no event will SEI be responsible for Equipment or Purchaser's Material returned without proper authorization and identification. SEI reserves the right to reject any unauthorized returns and/or Hazardous Material; and

(8) SEI will have no warranty responsibility for any Software, or portion thereof, which has been modified or merged with another computer program without the prior written consent of SEI to such modification or merger. Further, Purchaser shall indemnify, hold harmless and defend SEI from any claims demands, suits, liabilities, judgments, losses, damages, costs or expenses (including reasonable legal fees, costs and charges) resulting from any unauthorized Software modifications,

(9) SEI shall be entitled to issue updates, upgrades and/ or changes to the Software solutions and applications or to provide functionally equivalent replacements during the term of this Agreement.

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G. For the avoidance of doubt, in the event that physical loss or damage to the Purchaser's property results from the failure of a warranted defective portion of the Equipment or Services to conform to its respective warranty during the applicable warranty period, should SEI have any liability at all, SEI's liability shall in no case exceed SEI's obligation to perform the warranty remedies specified in Article 7 subsections A, B, C, or D, as applicable, which SEI would have had to perform if such warranty remedy had been carried out immediately following such failure but prior to the occurrence of the physical loss or damage.

H. The warranty period for any Services or Equipment (except Software) repaired or replaced by SEI pursuant to this Article 7 shall not exceed the earlier of (i) twelve (12) months after the date of completion of the item of repaired, replaced or reperformed Equipment or Services or (ii) six (6) months after the expiration of the original warranty period (the "Warranty Repair Warranty Period").

I. Additional Conditions Applicable to the Sale of Monitoring Devices: Monitoring devices supplied by SEI pursuant to the Agreement may enable users to better diagnose and control conditions within the monitored equipment. While such monitors may permit earlier detection of harmful conditions, SEI does not warrant or represent that the use of such monitors will prevent failure or detect all harmful conditions in the monitored equipment and Purchaser acknowledges the same.

J. Additional Conditions Applicable to Diagnostic and Non-Destructive Examination and Testing: Diagnostic and non-destructive examination and testing techniques employed by SEI may not detect all of the defects in Purchaser's Material (including indications of cracking) and such failure shall not constitute a breach by SEI of its warranty obligations. Purchaser acknowledges that SEI will not be responsible for the consequences of undetected defects including undetected cracks.

K. Additional Conditions Applicable to Technical Field Advice: Where SEI furnishes Technical Field Advice under the Agreement, Purchaser is responsible for (i) the supervision, management, regulation, arbitration and determination of the number of its personnel, agents, or contractors and their work and (ii) the planning, scheduling, management and progress of the work. Unless expressly agreed to in writing by SEI, under no circumstances shall SEI provide or be obligated to provide Technical Field Advice directly or indirectly to any competitor of SEI or their employees, representatives, or consultants.

L. Additional Conditions Applicable to Remote Services: Where SEI furnishes Services remotely under the Agreement, SEI relies upon the proper and correct transmission of information from the Purchaser personnel. Prior to executing any advice given by SEI remotely, the Purchaser personnel shall repeat the advice given. The Purchaser represents and warrants that any user using a SEI application for the Services provided under a Purchaser account or using Purchaser's log-in credentials duly acts on behalf of the Purchaser and accepts the terms of use which will be made accessible to such user, e.g. on the landing page of an application. The terms of use published on any landing page of an application shall apply in their then current version with respect to the use of the application. The Purchaser shall be responsible for the acts and omissions of any such user as if they were the Purchaser's own acts and omissions.

M. SEI does not warrant or guarantee that any Equipment or Software will be secure from or protect against all cyber threats, hacking or similar malicious activity. Equipment or Software that is networked, connected to the internet, or otherwise connected to computers or other devices must be appropriately protected by Purchaser and owner/end-user against unauthorized access and for implementing product updates, and using the latest product versions, performing regular vulnerability scanning, implementing and maintaining appropriate password policy and using appropriate network security measures such as firewalls, network client authentication and/or network segmentation.

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N. Exclusivity of Warranties and Remedies: THE WARRANTIES PROVIDED BY SEI AS SET FORTH IN THIS ARTICLE ARE EXCLUSIVE AND ARE IN LIEU OF ALL OTHER WARRANTIES WHETHER STATUTORY, EXPRESS, OR IMPLIED (INCLUDING ALL WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE, AND ALL WARRANTIES ARISING FROM COURSE OF DEALING OR USAGE OF TRADE). Correction of nonconformities in the manner and for the period of time provided above constitute SEI's sole and exclusive liability and Purchaser's sole and exclusive remedy for defective or nonconforming Equipment and/or Services whether claims of the Purchaser are based in contract, in tort (including negligence and strict liability), or any other theory of recovery.

This is an extract of warranty section only. Full Siemens Energy Terms apply to what is attached to Siemens Energy Proposal. For avoidance of doubt, these terms are not the full terms applied to purchase order, but only an extraction of a sub-section of the full terms.

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Schedule 5.1

Technical Specifications/Product Data Sheet and Bill of Materials

Item	Description	Quantity
1.0	**Power Generation**	
1.1	Photovoltaic Modules	405,849
2.0	**Structural Components**	
2.1	Racking Structures	1 lot
3.0	**DC Assemblies**	
3.1	DC Combiner Box w Fuses	300 (+/-)
3.2	DC Disconnect switch	0
4.0	**AC Assemblies**	
4.1	Inverters	40
4.2	AC Switchgear	0
4.3	Revenue Grade Meter	1
4.4	Step-up Transformer	40
5	**Communication**	
5.1	SCADA	1
5.2	MET (obtains weather data)	1
6	**Accessories**	
6.1	System Manual	1
6.2	Warning Signs	100

Schedule 5.1

Technical Specs

[See Attached]

Schedule 5.1 Panel Specification Sheet

[Attached]

Product Specification

1. General Product Description

The Product specified in this document is First Solar Series 7 TR1 of model type[1] FS-7XXXA-TR1.

2. Certifications and Independent Testing

a. IEC 61730-1: 2016 and IEC 61730-2: 2016. Tested and certified for 1500V DC maximum system voltage with a 5.0A maximum overcurrent protection rating.

b. IEC 61215-1: 2021, IEC 61215-1-2: 2021, and IEC 61215-2: 2021. Tested and certified to IEC 61215 Standard with a 1500V DC maximum system voltage.

c. UL 61730 Listed with maximum system voltage of 1500V DC. Maximum series fuse rating of 5.0A.

3. Physical Specifications

Approximate physical specifications provided below are for reference only.

a.	Length	2300 (± 2.5 mm)
b.	Width	1216 (± 2.5 mm)
c.	Weight:	39.7 (+3 kg/-4 kg)
d.	Leadwire	2.5 mm^2 (14AWG)
e.	Leadwire connection length from junction box to mating connector:	650 mm
f.	Connector	PV4-S type OR alternate
g.	Bypass Diode	None
h.	Serial Number:	Marked in glass on front of module and printed on nameplate label

[1] Model Type Format variations from the base FS-7XXX-TR1 (where XXX = nominal power rating) within Series 7 product family will be delineated with additional characters. The 'TR' in the model number signifies this product is intended for tracker specific structures. Additional Model Type Formats may be added.

4. Electrical Specifications

The product will be binned according to Maximum Power Point Power (P_{MAX}) at Standard Test Conditions (STC) as measured at the First Solar Manufacturing Facility. The Rated Power is denoted in the 'XXX' position of the corresponding model type format of FS-7XXXA-TR1 (Series 7 TR1).

Table 1: Series 7 Rated Power at STC*

Rated Power** (0/+5%) P_{MAX}(W)	Voltage at P_{MAX} V_{MAX}(V)	Current at P_{MAX} I_{MAX}(A)	Open Circuit Voltage V_{OC}(V)	Short Circuit Current I_{SC}(A)
465.0	175.1	2.66	219.4	2.95
470.0	176.0	2.67	220.0	2.96
475.0	177.0	2.68	220.5	2.97
480.0	177.9	2.70	221.1	2.98
485.0	178.8	2.71	221.7	2.98
490.0	179.7	2.73	222.3	2.99
495.0	180.7	2.74	222.8	3.00
500.0	181.6	2.75	223.4	3.01
505.0	182.5	2.77	223.9	3.01
510.0	183.4	2.78	224.5	3.02
515.0	184.3	2.80	225.0	3.03
520.0	185.2	2.81	225.6	3.04
525.0	186.0	2.82	226.1	3.04
530.0	186.9	2.84	226.7	3.05
535.0	187.8	2.85	227.2	3.06
540.0	188.7	2.86	227.7	3.06
545.0	189.6	2.88	228.2	3.07
550.0	190.4	2.89	228.8	3.08

*All ratings at STC (1000W/m^2, AM 1.5, 25ºC Cell Temperature) ±10%, unless otherwise noted
**Measurement uncertainty applies

Table 2: Temperature Characteristics***		Series 7
Temp. Coefficient of P_{MPP} (Temperature Operating Range: 25°C to 75°C)	$T_K(P_{MPP})$	-0.32%/°C
Temp. Coefficient of V_{OC}	$T_K(V_{OC})$	-0.28%/°C
Temp. Coefficient of I_{SC}	$T_K(I_{SC})$	+0.04%/°C

***All ratings ±10%

5. Labeling

Each module will be delivered with a nameplate label adhered to the back of the module. The label will be printed primarily in English and conform with EN 50380.

The label will contain instructions on contacting First Solar for proper collection and recycling of the module. Further information on the Collection and Recycling Program are available on the First Solar website (www.firstsolar.com/recycling).

Example Label:



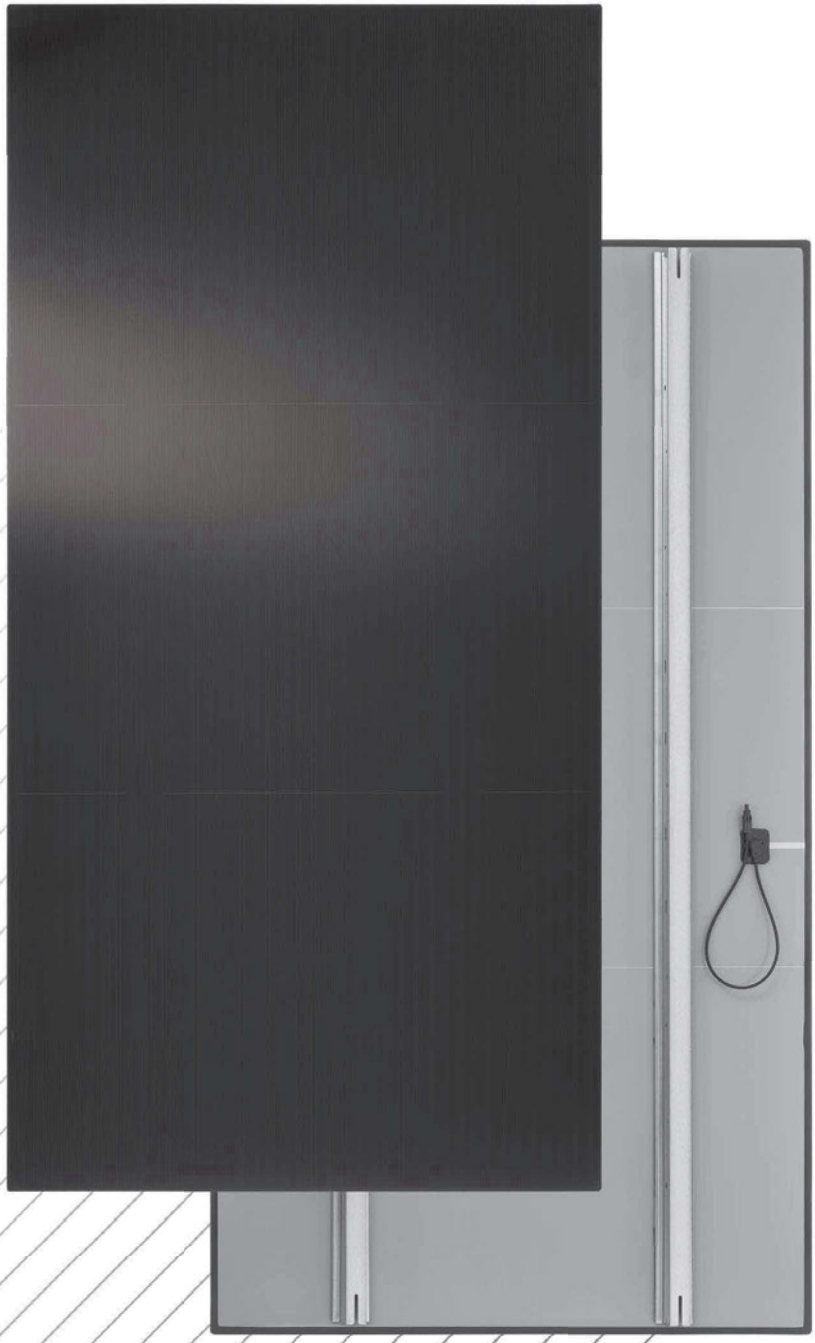
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REV 1.5

First Solar Series 7 TR1 Module - USER GUIDE

MPD-00752-07-US

Not Intended for Residential Use in USA or rooftop applications, including commercial and industrial.



First Solar

NOTICE

First Solar reserves the right to make changes in solar module design and/or specifications at any time without notice. Accordingly, the reader is cautioned to verify that data sheets are current before placing orders or finalizing system permitting and/or design. Information furnished by First Solar is believed to be accurate and reliable. However, no responsibility is assumed by First Solar or its subsidiaries for its use; nor for any infringements of patents or other rights of third parties, which may result from its use. No license is granted by implication or otherwise under any patent or patent rights of First Solar or its subsidiaries.

CONTACT INFORMATION

For information regarding First Solar and its products, please visit www.firstsolar.com. First Solar has an extensive library of supporting Application Notes that can be made available upon request from technical support technicalsupport@firstsolar.com.

GLOBAL

First Solar, Inc.
P.O. Box 730
Toledo, OH USA 43697-0730
Tel: +1 (602) 414-9300
Fax: +1 (602) 414-9400

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1 INTRODUCTION

This document provides information on First Solar Series 7 TR1 modules of model type FS-7XXXA-TR1 ("XXX" references the module power rating) for system designers, installers, and maintenance personnel.

Modules are intended to be used only by qualified professionals. Modules in the USA are intended to be used exclusively in utility-scale markets. Unintended use of the products may void the warranty and subject you to liability.

Modules are designed to have a long operating life and high energy yield when installed, operated, and serviced in accordance with the instructions in this User Guide. Read this User Guide thoroughly before beginning any work related to installation, operation, or maintenance.

Please refer to your First Solar Module Warranty Terms & Conditions for module warranty terms and product return policies. Failure to follow this User Guide may void your warranty.

Keep this User Guide for future reference and provide to all subsequent owners or users of the solar modules. Updates may be found at www.firstsolar.com.

2 SAFETY

All instructions and safety information must be read and understood before attempting to handle, install, or electrically connect First Solar modules. Failure to follow safety, installation, and handling instructions may result in injury. Only qualified personnel must install, operate, or maintain PV modules or systems. PV modules or systems are not intended to be used in USA residential settings (Residential settings must mean and refer to any building or structure intended for human habitation).

Series 7 TR1 modules are designed for 1500 VDC systems at altitudes up to 3000 m (9842 ft) per IEC 61730 and UL 61730. Series 7 TR1 modules are designed for 1000 V systems at altitudes up to 5000 m (16404 ft) per IEC 61730 and UL 61730.

Select installation locations and module support structures to ensure modules and connectors (open or mated) are never submerged in standing water.

Series 7 TR1 modules have a maximum overcurrent protection rating of 5.0 A as defined by IEC/UL 61730-1 and IEC/UL 61730-2. PV systems must be designed to comply with and provide module overcurrent protection consistent with local codes.

DANGER



Series 7 TR1 modules may produce up to 285 Volts DC (VDC) and up to 4.5 A when exposed to sunlight. The danger increases as modules are connected together in series and/or parallel.

A single module or multiple interconnected modules can create a lethal shock hazard during daylight hours, including periods of low light levels.

DANGER



To avoid fire and/or injury due to ground faults and associated electrical hazards:

- Do not unplug PV module connections while under load. Do not disconnect the module connectors during daylight hours unless the module is in an open circuit condition.
- Replace modules with damaged wires immediately. Keep all array wiring out of reach of non-qualified personnel.
- Do not concentrate light on the module in an attempt to increase power output.
- Never allow the PV array system voltage to exceed 1500 VDC under any condition.
- Replace broken modules immediately.
- Repair ground faults immediately.
- Do not work on modules or systems when the modules or wiring is wet.
- All building mounted PV systems must utilize Ground Fault Detector Interrupters (GFDI) and ARC Fault Circuit Interrupters to minimize risk of electrical shocks and fires.

WARNING



Modules must only be installed, operated, maintained or used by qualified personnel for their intended use

The conditions necessary to trigger reverse current overload (RCOL) do not occur in typical operating modes of a properly installed PV system. The system designer must ensure that modules are not subjected to RCOL. The use of GFDI devices or other advanced fault monitoring techniques can significantly reduce the likelihood of sustained ground faults. Properly selected and installed string fuses can increase protection against RCOL.

DANGER



Reverse currents higher than the rated values for a First Solar module, may result in module failure, including module breakage due to RCOL. Extreme and continuous RCOL conditions may cause a fire or create electrical shock hazards. To avoid RCOL:

- Maintain equivalent voltage in parallel strings by installing an equal number of modules per string within the same source circuit. Failure to install modules with balanced voltage in parallel strings can result in voltage imbalance.
- Incorporate measures to protect modules against RCOL for connections of parallel strings.

Modules damaged because of system-induced RCOL are not covered under the First Solar Module Warranty. Module warranty eligibility is not affected by the presence, absence, or type of reverse current protection used in a system design.

CAUTION

Wear safety glasses and **cut-resistant gloves** when working with non-interconnected modules or system components.

Wear electrically rated PPE when working with interconnected modules or system components. Select PPE based on work consistent with local and/or national standards.

WARNING



To avoid risk of fire, do NOT interconnect Series 7 TR1 modules with other FS Series modules (e.g. – Series 6, Series 4, Series 3, or Series 2) within the same interconnected string, inverter, or Maximum Power Point Tracker.

Electrically connected modules with undetected damage, e.g. caused by external impact, carry a higher risk of electric shock and fire hazard. System installation codes and standards require measures for early detection and risk reduction such as insulation monitoring and earth fault protection. See IEC 62548, IEC 60364-7-712 and IEC 63112 for guidance. Local codes apply.

3 REGULATORY COMPLIANCE

It is the responsibility of the installer and/or system integrator to ensure compliance with all local structural and electrical codes, which may be applicable to the installation and use of First Solar Series 7 TR1 modules.

For systems installed in North America, First Solar Series 7 TR1 modules are Listed by a Nationally Recognized Test Laboratory (NRTL) to UL 61730, the standard for Flat-Plate Photovoltaic Modules and Panels. To maintain the modules' application as a UL Listed product:

- Use only components that have been Recognized or Listed by Underwriters Laboratories (UL) for their intended purpose.
- Ensure the PV array open-circuit voltage does not exceed 1500 VDC.
- Install modules with mounting systems that have been evaluated for UL Listed application.
- Protect modules from reverse currents in excess of the 5.0 A maximum series fuse rating.
- The module is considered to be in compliance with the applicable UL standard only when the module is mounted in the manner specified by the mounting instructions in this User Guide.
- A module with exposed conductive parts is considered to be in compliance with the applicable UL standard only when it is electrically grounded in accordance with this User Guide and the requirements of the National Electrical Code, ANSI/NFPA 70.

For system installed internationally and where IEC is applicable, Series 7 TR1 modules are tested and certified per IEC 61730-1/IEC 61730-2 and meet Class II requirements for 1500 VDC systems.

Series 7 TR1 modules are tested and certified per IEC 61215-1/IEC 61215-1-2/IEC 61215-2 for a maximum system voltage of 1500 VDC.

4 PRODUCT IDENTIFICATION & RATINGS

4.1 PRODUCT IDENTIFICATION & RATINGS

Each module is equipped with a product label on the back and laser-etched identification on the front glass. The label identifies the model number, nameplate electrical ratings, and safety information. Do not remove or modify the label on the module.

The module Rated Power is denoted in the 'XXX' position of the base Model Number format of FS-7XXXA-TR1. (Example: FS-7540A-TR1 has a Rated Power of 540W).

The ratings in Table 1 are UL Listed with a tolerance of ±10% unless otherwise noted.

Note: Electrical specifications are subject to change. See module label for final electrical ratings.

Table 1: Ratings at Standard Test Conditions (STC[1])

RATED POWER [2](-0/+5%)	VOLTAGE AT PMAX	CURRENT AT PMAX	OPEN CIRCUIT VOLTAGE	SHORT CIRCUIT CURRENT	MAX SYSTEM VOLTAGE	MAX SERIES FUSE
P_{MAX}(W)	V_{MAX}(V)	I_{MAX}(A)	V_{OC}(V)	I_{SC}(A)	V_{SYS}(V)	I_{CF}(A)
465.0	175.1	2.66	219.4	2.95	1500	5.0
470.0	176.0	2.67	220.0	2.96		
475.0	177.0	2.68	220.5	2.97		
480.0	177.9	2.70	221.1	2.98		
485.0	178.8	2.71	221.7	2.98		
490.0	179.7	2.73	222.3	2.99		
495.0	180.7	2.74	222.8	3.00		
500.0	181.6	2.75	223.4	3.01		
505.0	182.5	2.77	223.9	3.01		
510.0	183.4	2.78	224.5	3.02		
515.0	184.3	2.80	225.0	3.03		
520.0	185.2	2.81	225.6	3.04		
525.0	186.0	2.82	226.1	3.04		
530.0	186.9	2.84	226.7	3.05		
535.0	187.8	2.85	227.2	3.06		
540.0	188.7	2.86	227.7	3.06		
545.0	189.6	2.88	228.2	3.07		
550.0	190.4	2.89	228.8	3.08		

[1] As received and stabilized ratings at STC (1000 W/m², AM1.5, (25 ± 2)°C Cell Temperature) ±10%
[2] Measurement uncertainty applies

Table 2: Temperature Characteristics

TEMPERATURE CHARACTERISTICS		
Module Operating Temperature Range	(°C)	-40 to +85
Temperature Coefficient of P_{MAX}	$T_k(P_{MAX})$	-0.32%/°C (Temperature Range: 25°C to 75°C)
Temperature Coefficient of V_{OC}	$T_k(V_{OC})$	-0.28%/°C
Temperature Coefficient of I_{SC}	$T_k(I_{SC})$	+0.04%/°C

4.2 WIRING SYSTEM DERATING FACTORS

Under normal operation, a PV module may experience conditions that produce higher current and/or voltage than reported at STC. Accordingly, the values of I_{sc} and V_{oc} listed for STC need to be multiplied by a factor of 1.25 when determining component voltage ratings, conductor current ratings, and size of controls connected to the PV output. For UL installations, an additional 1.25 safety factor for short circuit current may be applicable, reference the National Electric Code (NEC) Article 690 for further details. Specific site conditions and local electric code requirements must be used for determining the maximum system voltage.

When calculating module V_{oc} at 1250 W/m^2, AM1.5 spectrum, and cell temperature of -10°C, multiply the specific model type STC listed V_{oc} value by a factor of 1.1. When calculating module I_{sc} at 1250 W/m^2, AM1.5 spectrum, and cell temperature of 75°C, multiply the specific model type STC I_{sc} value by a factor of 1.27.

The safety factor of 1.25 given for the minimum voltage rating of the components in the example statement above may be modified during the design of a system according to the minimum temperature of the installation location and the temperature coefficient for V_{oc}. The safety factor of 1.25 given for conductor current ratings values for I_{sc} may be adjusted based on the maximum values of irradiance incident on the front side of the module. To this purpose, a full simulation for the specific location and module orientation is required. Further guidance for the choice of a safety factor other than 1.25 is given in the NEC.

As per NEC 690 (A) an acceptable method of calculating V_{oc} is published by Sandia National Laboratories (reference SAND 2004-3535, *Photovoltaic Array Performance Model*). This model uses irradiance and temperature of a given location to forecast expected open circuit Voltages on a project specific basis.

5 HANDLING & STORAGE

WARNING

Packs are heavy and must be transported at site in a safe manner.

- Only authorized forklift drivers should operate a forklift to move module packs.
- **Long side pack handling** is recommended after truck unloading.
- Ensure use of correct fork lengths.
- Forks must be safely engaged. Center of gravity and tipping loads must be considered for safe site transportation.

When handling packs using forklifts or other mechanical aids, ensure uniform pack support, and the forks fully extend under the pallet. Packs can be lifted from either the short or long side of the pallet.

5.1 TRUCK/CONTAINER UNLOADING

- **Requirements:**
  - Refer to table 3 below for minimum and maximum fork engagement requirements.
  - All equipment handling packs must have a minimum mast width of 2.3m (92.5in) and minimum height of 1.1m (44in) or use a jig meeting these guidelines.



Figure 1: Example of Mast/Jig

- **Recommendations:**
  - Tilt angle between 0 and 10 degrees.

CAUTION

First Solar is not responsible for the transportation of modules from the original point of destination listed in the purchase order under which the modules are sold to another location. Any damage to the pack, pallet, or modules that are determined to be caused by transportation to an alternate location not specified in the purchase order shall be the sole responsibility of the owner.

5.2 ON-SITE PACK HANDLING

- **Requirements:**
  - Refer to table 3 below for minimum fork engagement requirements.
  - All equipment handling packs must have a minimum mast width of 2.3m (92.5in) and minimum height of 1.1m (44in) or use a jig meeting these guidelines.
  - Packs must be completely closed during all transit, with the exception of active unpack and install.
  - Must handle the packs with reasonable care and in a manner to preserve the integrity of the packs, avoiding any misuse or abuse that may result in damage to the modules.
- **Recommendations:**
  - Long side forklift engagement.
  - Tilt angle between 10 and 15 degrees.
  - Slow traveling speed.

Table 3: Pack Dimensions & Fork Engagement Requirements

Number of Modules in Pack	Pack Dimensions (L x W x H)	Minimum Fork Engagements		Maximum Fork Engagements Truck	Pack Weight
		On Site	Truck		
30	2390 x 1130 x 1551mm (94.1 x 44.5 x 61.1in)	Short Side – 1.82m (71.65in) Long Side – 1.07m (42.13in)	1.07m (42.13 in)	1.15m (45.28in)	1340 kg (2954 lbs.)
44	2390 x 1519 x 1551mm (94.1 x 59.8 x 61.1in)	Short Side – 1.82m (71.65in) Long Side –1.46m (57.48)	1.46m (57.48 in)	1.54m (60.63in)	1870[3]/1927 kg (4114[3]/4248 lbs.)
46	2390 x 1582 x 1551mm (94.1 x 62.3 x 61.1in)	Short Side – 1.82m (71.65in) Long Side – 1.52m (59.84in)	1.52 m (59.84 in)	1.6m (63 in)	2004 kg (4418 lbs.)

CAUTION

The forklift must be able to safely handle the load.



Figure 2: Correct Engagement Points for Lifting Pack from Long Side

[3] +/-1300mm mounting location added to product variant

CAUTION

- Failure to meet fork engagement lengths may cause damage to the modules or pack. Make sure lifting equipment meets specifications based on the dimensions and weight of the pack.
- The fork engagement points shown in green in Figure 2 must be utilized.
- Ensure symmetrical fork engagement at pack lifting points.

5.3 ON-SITE STORAGE

- **Requirements:**
  - Packs must be stored on flat, firm and stable level ground.
  - Packs must **not be** stored in a manner that causes debris to come into contact with the packs or modules (including, without limitation, storage in windy areas which may be susceptible to displacement of debris).
  - Packs must **not be** stacked on site.
    - For prolonged warehouse storage please contact First Solar at technicalsupport.NA@firstsolar.com for guidance and evaluation of pack stacking.
  - Packs must **not be** exposed to standing water or saturated ground.
  - Packs must **not be** exposed in the field for longer than 6 weeks.
  - Packs must be kept dry.

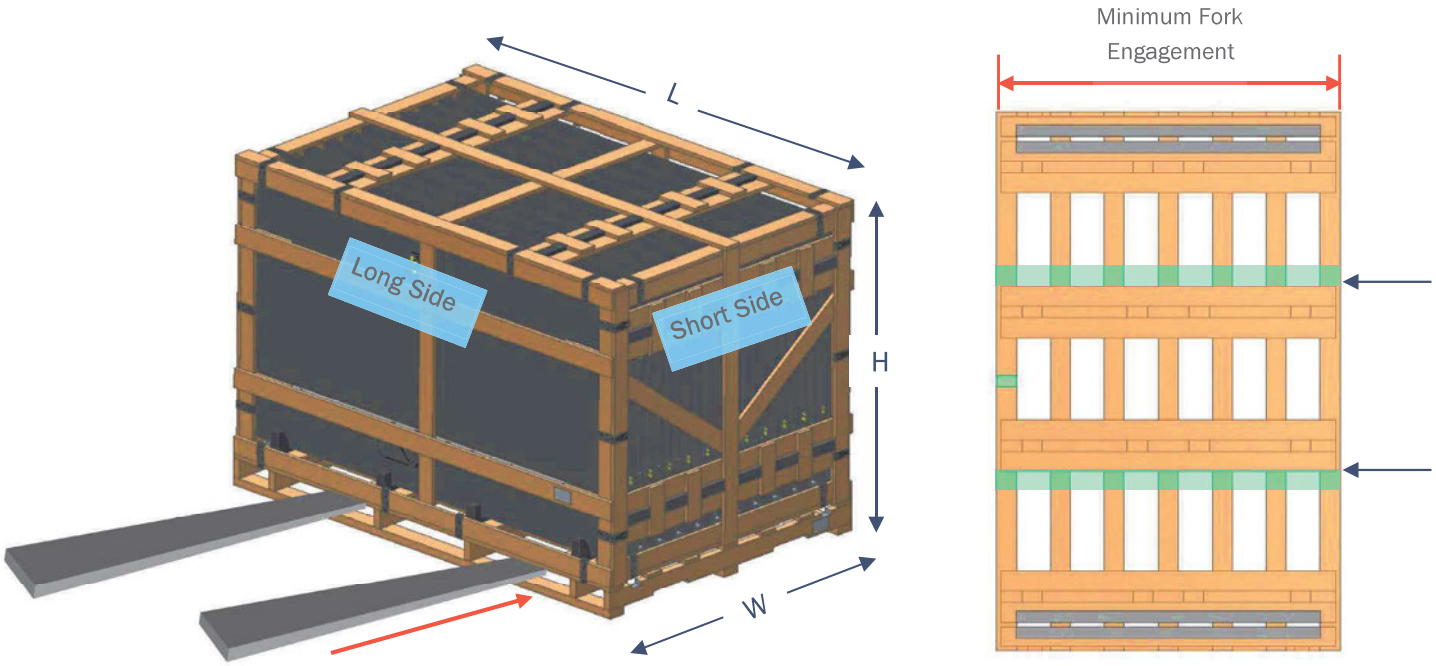


Figure 3: Series 7 TR1 Long Side Forklift Engagement

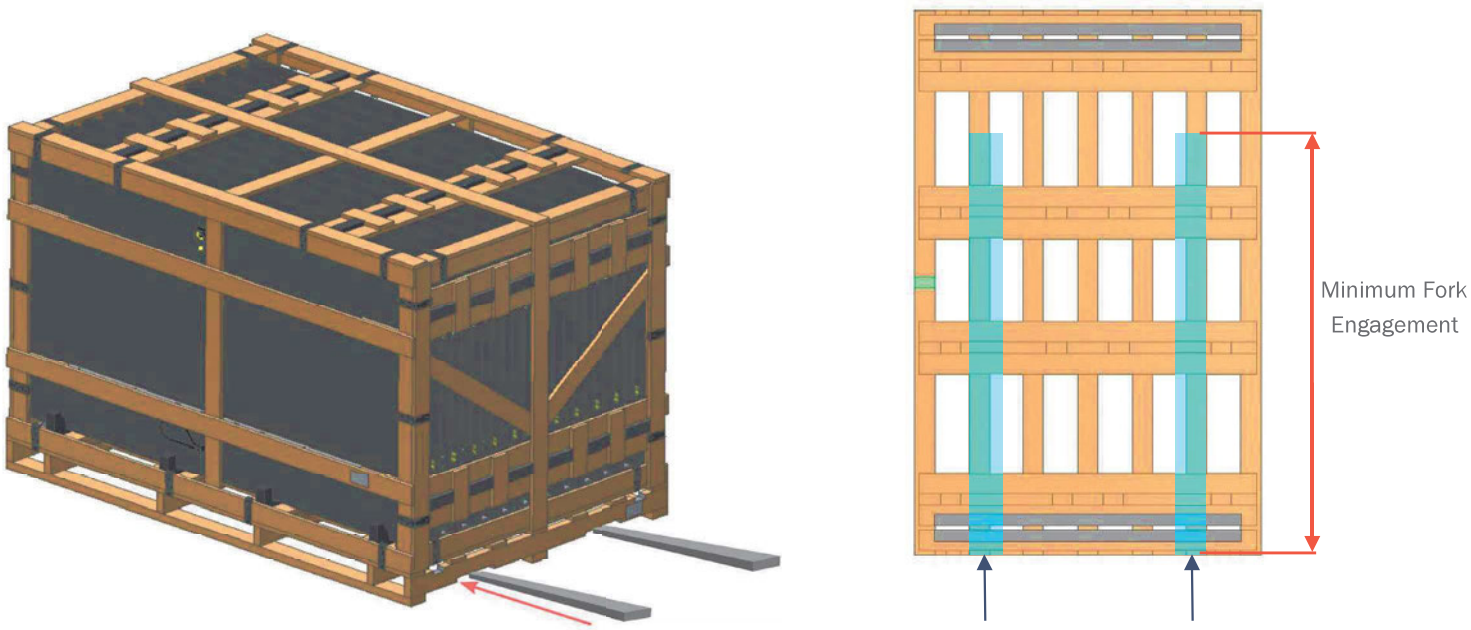


Figure 4: Series 7 TR1 Short Side Forklift Engagement

Modules in a pack may lean or shift on a pallet during shipping. Ensure packs are stable prior to transporting. If any damage is observed, use the Delivery Note to document affected pallets and contact technicalsupport.NA@firstsolar.com.

Please evaluate site conditions for safe pack storage as uneven or recently disturbed ground and moisture may affect pack stability. Packs are not intended for outdoor storage longer than 6 weeks. Packs must not be exposed to standing water or saturated ground.

CAUTION

- To prevent glass scratches, modules should be removed from the long side only and not by sliding across each other.
- **Short side module unpacking is prohibited.** Long-side unpack methods reduce the risk of glass scratches and/or ARC abrasion.

WARNING

Open the packaging with care. A single person should not attempt to lift a Series 7 TR1 module. **Lift the modules from the pallet with two or more persons or with lift assist.** Do not attempt to lift multiple modules at the same time.

During handling and installation, do not make abrasive contact with top glass surface to prevent scratches of ARC film.

6 MECHANICAL SPECIFICATIONS

Table 4: Module Mechanical Specifications

SPECIFICATION	Series 7 TR1 (FS-7XXXA-TR1)
Module Weight	38.4[3] / 39.7 kg ± 3.5 kg (84.66[3] / 87.5 lbs. ± 7.7 lbs.)
Height	56 mm (2.2 in)
Length	2300 mm ± 2.5 mm (90.5 in ± 0.08 in)
Width	1216 mm ± 2.5 mm (49.0 in ± 0.08 in)
Total Area	2.80 m² (30.0 ft²)
Junction Box Lead Wire [4]	2.5 mm² (14 AWG) 650 mm (25.59 in) (+) & Bulkhead (-)
Fire Performance [5]	Type 19: Class A Spread of Flame / Class C Burning Brand
Frame/Rail	Steel with galvanization G115

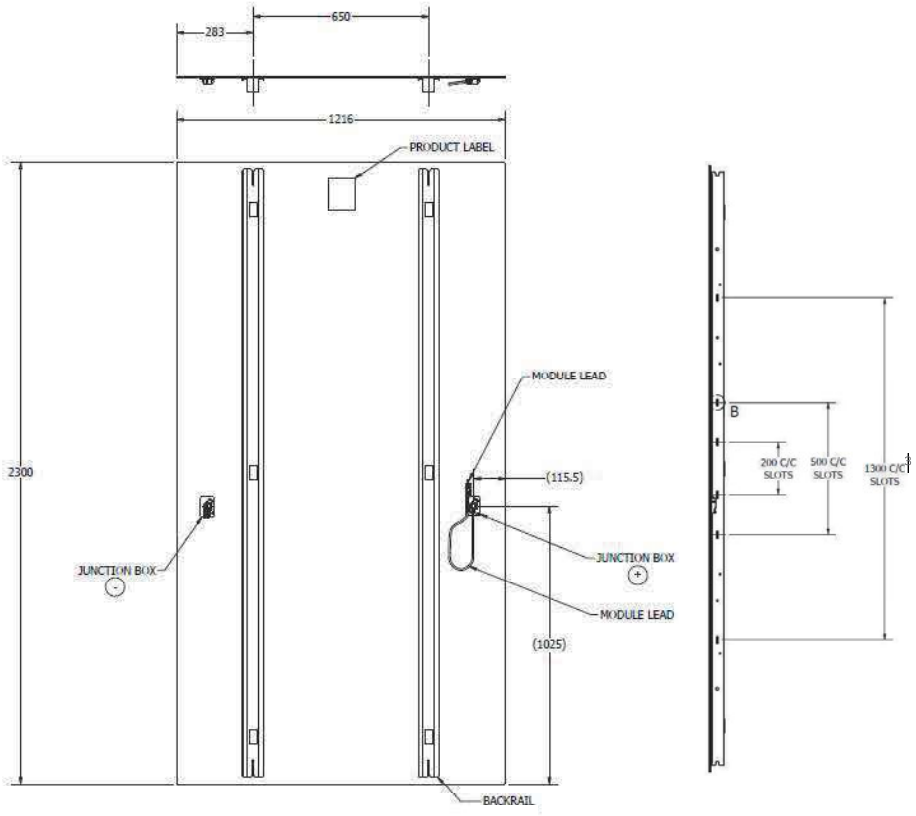


Figure 5: Series 7 Module Mechanical Drawing

[4] Length from junction box exit to connector mating surface
[5] Module UL 61730 fire rating is valid only when mounted in the manner specified in this User Guide. Roof mounted fire rating is established by assessing rack and module as a unit. External fire source resistance has not been evaluated.

7 INSTALLATION & MOUNTING

7.1 MOUNTING

It is best practice to complete heavy construction and trenching prior to module installation to minimize module exposure to dust. Ensure any site preparation or maintenance chemicals (soil binding agents or chemicals used for on-site dust control or weed control) do not spray, splash, or drift onto the surface of the modules or its associated components.

It is the responsibility of the qualified engineer and/or qualified installer to ensure the system and its components meet applicable structural and electrical code requirements for the product application's jurisdiction and to evaluate the product specifications are suitable for the application environment.

First Solar is not responsible for bonding failure, breakage, damage, wear, corrosion, or module performance issues that are deemed to be caused by design or installation practices that do not comply with this User Guide.

CAUTION

Safety hazards or potentially unsafe practices:

- Modules must only be installed, operated, maintained or used by qualified personnel for their intended use.
- Do not install the modules during high wind or wet conditions.
- Handle modules with care during installation, as heavy impact to the front, back, or edge could result in damage to the module. Do not impact module with hammer to aid installation process.
- Do not walk, stand, or sit on modules.
- Do not carry multiple modules on top of one another after removal from pack.
- Do not lift or pull on modules using lead wire or junction boxes.
- Do not rest objects (such as tools, etc.) on module glass.

Modules must have adequate ventilation and airflow to prevent operating temperatures above 85 °C.

7.2 MOUNTING LOCATIONS & LOAD RATINGS

The interface of the mounting structure to the module back rails must meet the technical requirements specified in this User Guide. The mounting system design must provide adequate support for the module to prevent load damage from occurring based on the loading requirements for the given application and the chosen mounting locations. Structures must not come into direct contact with the surface or edges of the module glass.

Modules can be secured to the support structure with clips using the symmetric mounting holes on the back rail.

Series 7 TR1 modules have been evaluated to operate in an ambient air temperature range of at least -40 °C to +40 °C and have been tested to wind/snow loads as detailed in Table 5. Test loads include a safety factor of 1.5 above the design loads.

Series 7 TR1 modules meet the following load ratings when mounted as specified in this User Guide and evaluated according to the listed standard in Table 5.

Table 5: Module Load Ratings

Symmetrical Four-point Mount Location	IEC 61215 / IEC 61730 / UL 61730	
	Design Load	Test Load
200mm	± 1600 Pa (± 33.4 lbs./ft²)	± 2400 Pa (± 50.1 lbs./ft²)
500mm	± 2133 Pa (± 44.5 lbs./ft²)	± 3200 Pa (± 66.8 lbs./ft²)
1300mm [6]	± 1600 Pa (± 33.4 lbs./ft²)	± 2400 Pa (± 50.1 lbs./ft²)

Symmetrically secure the module using a minimum of four back rail contact points. Other mounting solutions not discussed in this User Guide (Such as - asymmetric mounting, higher load ratings, alternative clamp geometry, etc.) may be permitted, but require evaluation by First Solar (technicalsupport@firstsolar.com). First Solar reserves the right to reasonable access to validate proper installation.

- The modules must have a minimum spacing gap of 15 mm (0.59 in) between each other. Usable junction box lead wire lengths accommodate spacing up to 245 mm (9.65 in) (assuming no substructure interference).
- Modules must not contact, overlap, or otherwise apply a lateral force on one another once installed in PV system.
- Mounting clamps certified/designed to electrically bond and/or ground the module back are allowed when used in accordance with the clip manufacturer's instructions.
- Do not attempt to mount directly to module glass edge. Do not modify module back rails in any way. This includes drilling additional holes, altering mounting features or otherwise cutting, trimming, or shaping any part of the module back rails.
- Module attachment hardware (i.e. clips, bolts, etc.) must not contact the module glass or horizontal surfaces of the module back rail.
- Module attachment hardware must not apply a compressive force on the back rail profile.

Mounting hardware that does not meet the minimum requirements may not preserve module certifications or warranty and must be evaluated by First Solar (technicalsupport@firstsolar.com).

[6] Only on new product variant

7.3 BACKRAIL MOUNTING

Series 7 TR1 module back rails include 4 or 6[3] slotted holes through each rail. Mounting Clips must extend beyond either side of the mounting bracket or have a retention feature to prevent module back rail dislodgement under load. Clips must rest on the flat surface of the slotted hole and mounting bracket. Back rail mounting features must be designed with adequate bearing surfaces to prevent module damage under ultimate loads and consider any bending moments from unbalanced loads.

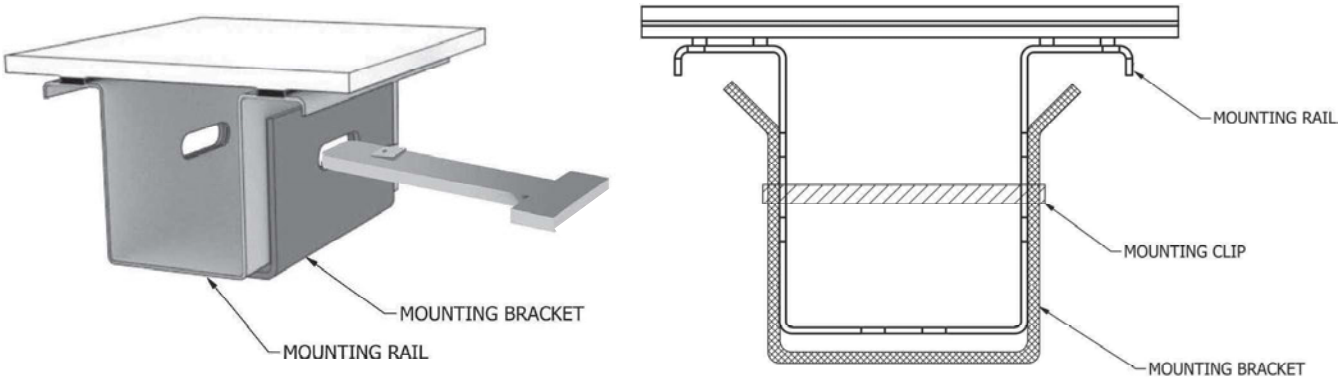


Figure 6: Bracket and Clip Mounting Details

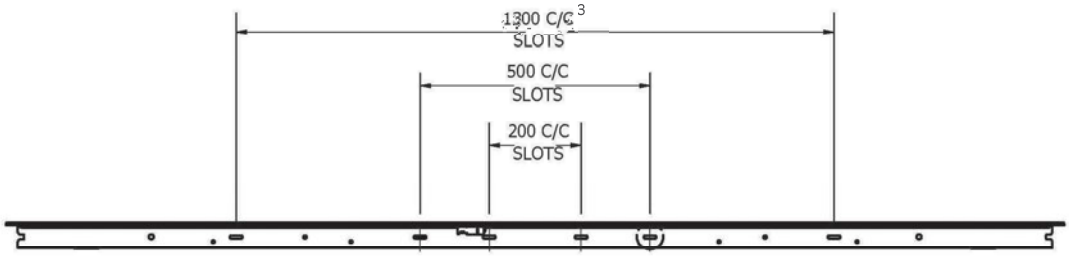


Figure 7: Slot Distance from Backrail Centerline. The nominal rail thickness is 0.89[3]/1.09mm

7.4 MODULE ORIENTATION

PV performance modeling software, such as PlantPredict software by Terabase Energy Inc.(http://www.plantpredict.com), should be used to determine the optimum orientation and tilt angle for each location.

Mount modules in portrait orientation for applications where row-to-row shading could occur. Landscape orientation is permitted only in flat mount applications where the module long side is not completely shaded and when compliant with Section 7.4 Module Shading Considerations.

7.5 MODULE SHADING CONSIDERATIONS

Specific shading patterns can cause damage to module cells due to the creation of localized areas of reverse bias. Reverse bias is generated by one or more series-connected cells being shaded while the rest of the cells are fully illuminated.

There is no risk of module damage due to shading that occurs while modules are in open circuit. Shading that occurs at a distance greater than 2 m (6.6 ft), also known as diffuse shading, carries reduced risk and must be avoided where possible. Row-to-row shading of modules installed in portrait orientation is acceptable.

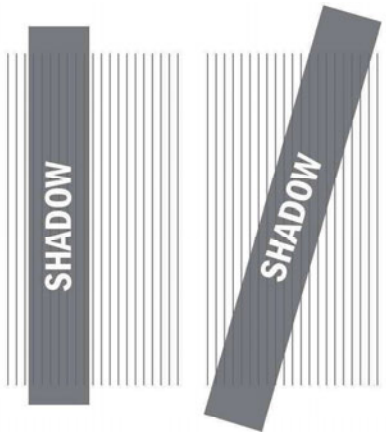


Figure 7: Example of at-risk shading patterns

There is a low risk of module damage due to shading from repeatedly walking or standing in front of operating modules or from repeatedly parking or driving vehicles in front of operating modules during illuminated times. It is best practice to stay close to the backside of the adjacent rack as one travels down a row of operating modules.

Do not subject modules to high-risk shading instances listed below:

- Resting or adhering slender objects (tools, brooms, clothing, wires, tape) on front-side of operating modules, or when within ~2 m (~6.6 ft) above operating modules, especially when the shadow is oriented parallel to cells
- Fixed objects within ~2 m (~6.6 ft) above operating modules that cast a shadow over the long dimension of the cells. Close objects (posts, ropes, fences, etc.) can begin to increase risk of partial shading of full cells when within ~2 m (~6.6 ft) from the front-side of operating module
- A support to the back rails or mounting method of modules that fully shades the entire length of a cell (either partially or completely)
- Cleaning robots or other mechanisms that traverse the module while the system is operating
- Row-to-row shading when the modules are installed in landscape orientation
- Closely “stair-stepped” trackers on northerly slopes (northern hemisphere), or southerly slopes (southern hemisphere).

7.6 WIRE MANAGEMENT

All wire management must comply with the applicable NEC/IEC codes and standards for maintaining and managing wires, as well as any applicable local requirements determined by local authorities having jurisdiction. This document includes evaluation of general wire management requirements based on interpretation of the following codes and standards and does not substitute for a comprehensive evaluation of applicable requirements:

- NEC 2020
  - 300.3(C)(2) – Conductors of Different Systems
  - 334.30 – Support and Securement Spacing
  - 338.24 – Cable Bend Radius Requirements for Type USE cable
- IEC
  - 62548:2016, 7.3.7.3 – Erection Method
  - 62548:2016, 7.3.8 – Segregation of AC and DC Circuits
  - 60364-5-52:2009, 522.8.3 – Cable Bend Radius

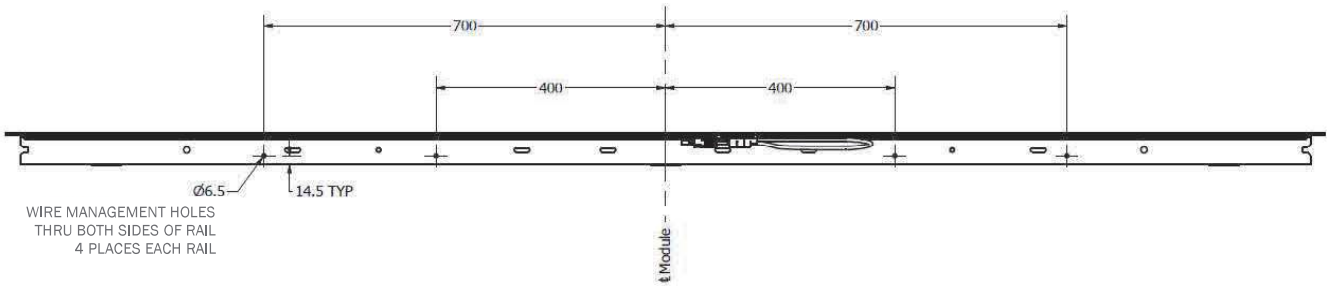


Figure 8: Wire Management Hole Dimensions

Below is a list of best practices that applies to the majority of wire management scenarios:

- The connectors, X/T joints, and in-line fuses should not be in direct contact with the metal back rail or structure. It is recommended that insulated cables do not come in direct contact with the metal back rail or structure, unless unavoidable, to minimize stresses on components.
- The installation of harnesses, harness jumpers, harness whips, and PV array cables (or "Homerun" cables) should not subject the connectors, X/T joints, and in-line fuses to tensile loads.
- Cable ties should be a minimum distance of 25 mm (1 in) from connectors, X/T joints, and in-line fuses.
- Cables should not maintain constant contact with the edges of glass-to-glass solar module laminates.
- Cable ties should be tensioned such that there is at least 13 mm (0.5 in) (two-finger-gap) between the top of the cable bundle and the bottom of the back rail.

Typically, the lead wire connection does not require wire retention or securement due to the proximity of the junction boxes on adjacent modules.

Above-ground DC cabling (typically a bundle of harness and homerun PV cables) may be supported by utilizing the wire management holes located on the back rails. The maximum cable weight carried by each module in totality may not exceed 3.5 kg (7.6 lbs.). Do not use junction box for wire management attachment.

7.7 ELECTRICAL INTERCONNECTION

All electrical components that are interconnected to modules must have an operating voltage range that matches the maximum power point of the array and be capable of operating the array at the maximum power point at all times. Short circuit operation is permitted only during short duration system safety testing or in fail-safe system states.

Series 7 TR1 modules are pre-configured with industry standard connectors that are "touch proof" with all live parts protected against accidental contact and protected against polarity reversal. The cables and connectors are UV and weather resistant from –40 °C to +85 °C and rated for 1500 VDC.

Series 7 TR1 modules use TE Connectivity (https://www.te.com) PV4-S connectors (PV4-S1F/PV4-S1M). Module-to-module and module-to-harness interconnection must utilize the same manufacturer and type of connectors. First Solar cannot guarantee that connectors from different manufacturers or type of connectors will be mateable. Any damage to the module resulting from any such interconnection will not be covered by the First Solar module warranty.

CAUTION

Damaged wires, connectors, or junction boxes may cause ground faults, and associated electrical hazards, including electrical shock. To avoid these conditions:

- Protect unmated connectors from dust and moisture by using sealing caps (not provided, available from connector manufacturer).
- Limit module connectors to 10 or fewer plug cycles.
- Do not pull junction box lead wires tight. After installation, connected wire must not be under stress or tension.
- The minimum module junction box lead wire bend radius is five times the wire diameter. Observe minimum bend radius specifications on all other PV system wiring.
- Do not use junction box assembly to bear weight greater than that of a (properly wire managed) module's own wire and mated connection.
- Secure wire or connected components so they are hanging greater than 0.46 m (1.5 ft) above the ground in free field applications, and so they are hanging clear of roof coverings or pooled water in rooftop applications.
- Ensure connectors are fully mated and locking clip on connector engages.
- Do not loosen, alter, or modify the factory-installed connectors on the module junction box. Do not attempt to unscrew or tighten connector back nut.
- Ensure wire securement methods, such as use of cable ties, do not damage wire insulation.
- Ensure wires are not in contact with sharp edges of the mounting structure to avoid abrading the wire sheath.
- Inspect and maintain wire management requirements over the life of the plant.
- Do not expose modules, wires, junction box, or connectors to environments with the following substances, as they may incur damage and affect module safety or performance: greases, oils, lubricants, plasticizers and organic solvents (including aliphatic hydrocarbons, aromatic, hydrocarbons, halide hydrocarbons, ketones, alcohols, ethyl acetate, tributyl phosphate, kerosene and gasoline).

Wiring harnesses are recommended in system designs. The shorter string size and low string current of Series 7 TR1 modules make it possible to connect multiple strings together in parallel and return a single pair of DC cables to the combiner box or string inverter. Design wiring harnesses that are optimal for the structural layout. Modules per row can vary by structure manufacturer and site design criteria. For example, a structure with 84 modules per row typically uses two, 7-string harnesses in the DC design in a 1500 VDC system.

Components used to interconnect the modules must be compatible with the connectors, and provide proper system operation and fault protection as required by applicable codes. Field wiring must be rated for 90°C and be of a type approved for use in accordance with the NEC (US only).

Positive Connector

Negative Connector
(integrated as part of module bulkhead junction box)



Figure 9: PV4-S Connectors of Part Numbers (PV4-S1F/PV4-S1M)

7.8 INVERTER COMPATIBILITY

Series 7 TR1 modules are compatible with a range of string, central, transformer, and transformerless inverters. When connecting modules or module strings in series ensure inverter ratings are appropriate.

Do not exceed system design voltage and inverter design specifications when connecting modules in a series string. This is typically ensured by limiting series strings to four modules for 1000 VDC applications or six modules for 1500 VDC applications. Do not connect modules in parallel. Strings of modules can be installed in parallel for DC collection purposes.

The Maximum Power Point (MPP) voltage of a module array must be considered for compatibility with the specified inverter MPP window. Similar to the maximum open-circuit voltage, the MPP voltage of the array is dependent on ambient conditions, and the system should be designed to ensure the array MPP voltage remains within the MPP window for expected operating conditions.

7.9 GROUNDING METHOD

- Functional grounding of conductive non-current carrying parts
  - Typically, the grounding can be achieved by mechanical mounting methods or through other methods using the grounding holes provided, in either case the applicable codes and standards, as well as any applicable local requirements determined by local authorities having jurisdiction must be followed.
  - In addition to the above, any grounding/bonding devices must meet the IEC 61730-2 pass/fail criteria of less than 100 mΩ resistance.
  - The use of common grounding hardware (such as lugs, clips, nuts, bolts, split-ring lock washers, flat washers and the like) to attach grounding/bonding device must be in conformance with the grounding device manufacturer's instructions. Figure 12 below indicates locations of grounding holes for S7 TR1.

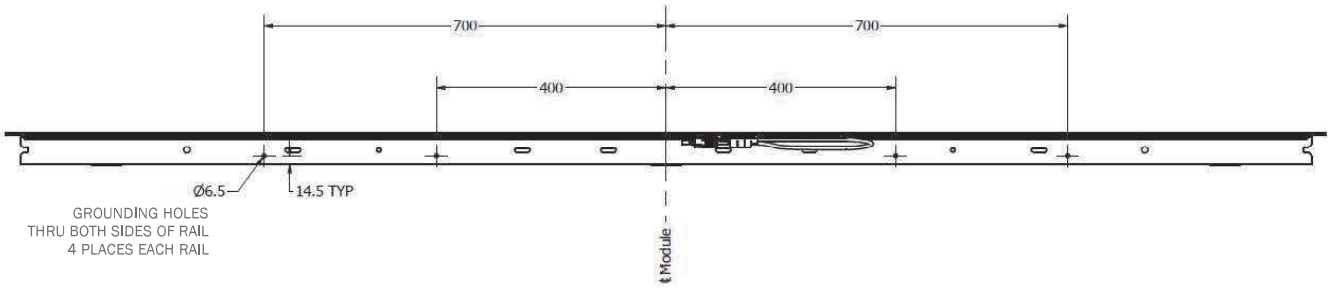


Figure 10: Grounding Hole Dimensions

- Functional grounding of one current carrying pole
  - First Solar recommends Series 7 TR1 modules be used in negative-grounded systems. Modules must not be subjected to negative voltage bias conditions that can occur in voltage floating or bi-polar systems (subjecting modules to conditions that could drive potential induced degradation). If string inverters or other non-negative grounded system architectures are used, alternate methods of preventing negative voltage bias on modules (such as system level voltage controllers/float controllers or integrated inverter array voltage control) must be implemented and include a minimum of hourly logged PV negative voltage to ground to demonstrate compliance in event of a future warranty evaluation. Series 7 TR1 modules must not be used in positive-grounded systems.

NORTH AMERICAN PROJECTS ONLY

For North America, a module with exposed conductive parts is considered to comply with UL 61730 only when it is electrically grounded in accordance with the instructions presented and the requirements of NFPA 70: National Electrical Code, article 250.

The module is considered to be in compliance with this standard only when the module is either mounted in the manner specified by the mounting instructions, or when the mounting means has been evaluated with this PV module to UL 2703. A module with exposed conductive parts is considered to be in compliance with this standard only when it is either electrically grounded in accordance with the manufacturer's instructions and the requirements of the National Electrical Code, ANSI/NFPA 70, or when the bonding means has been evaluated with this PV module to UL 2703.

Grounding kits containing 5/16-32 (M8x0.7) self-threading stainless steel components (Example: self-threading screw, flat washer, and cup washer) or other compatible UL listed hardware can be used to attach copper grounding wire to one of the frame's marked grounding holes per manufacturer instructions. Example:

Slide the flat washer on the screw, followed by the cupped washer with the smaller end of the cup washer closest to the cap bolt head. Affix the copper grounding wire between the flat washer and the cupped toothed washer and tighten the screw securely into the frame grounding hole.
Common hardware items (such as lugs, clips, nuts, bolts, star washers, split-ring lock washers, flat washers and the like) that have not been evaluated or certified for electrical conductivity or for use as grounding devices, must be used only for maintaining mechanical connections and holding electrical grounding devices in proper position for electrical conductivity. Such devices, where supplied with the module and evaluated through the requirements in UL 61730, may be used for grounding connections in accordance with the instructions provided with the module.
Mounting clamps or other hardware components that are UL listed for grounding/bonding may be used in instances where the structure and module have been tested to meet UL 2703.

In order to provide a reliable grounding connection to the module frame, the following hardware or equivalent is required per UL 61730:

- A UL Listed Grounding Lug with paint cutting star washer and 5/16-32 by 3/8 inch thread forming screw.
- A UL Listed grounding strap type EM2050 as manufactured by Electric Motion CO. Inc.
- Grounding means must be secured to grounding hole opening on frame and torqued to 25 in-lbs.

Mounting clamps that are UL listed for grounding/bonding may be used in instances where the structure and module have been tested to meet UL 2703

8 MAINTENANCE

8.1 MAINTENANCE

Only qualified personnel should perform maintenance on PV systems. Maintenance (cleaning, electrical inspection, etc.) may pose a risk of electrical shock, injury, or module damage.

A regular inspection and maintenance schedule should include, but is not limited to:

- Annually at a minimum, inspect modules for any signs of damage or broken glass. Replace broken modules immediately.
- Keep modules free from debris, particulates, or large volumes of snow to maximize system performance.
- Ensure the module surface pressure is at or below the design load by removing snow.
- Inspect wiring and wire management periodically.
- Inspect and confirm electrical connections are tight and corrosion free.
- Avoid using brush/ground maintenance tools (Example: weed trimmer, brush cutter, etc.) that could send projectiles toward module glass.

The most common causes of lower than expected PV system power output are:

- Improperly calibrated or malfunctioning monitoring equipment.
- Inverter failure.
- Improper or faulty field wiring or connections.
- Blown fuses or tripped circuit breakers.
- Excessive amounts of dirt and dust on the modules.
- Shading of modules by trees, poles, or buildings.

It is normal for the modules to exhibit visual irregularities, which do not impact power. ARC modules are more likely to exaggerate the visual appearance of scratches, fingerprints, and other blemishes due to the optical properties of the glass interface.

Snowdrifts may result in a non-uniform loading of modules. If it is expected that snow loads will exceed design, clear snow from modules to ensure that ice/thaw/freeze cycles under snow drifts do not result in excessive stresses on the module.

Varying snow conditions may be cleared from the modules when using dry cloths or mops. Other snow clearing methods, such as blowers, may be used depending on snow conditions and if approved by First Solar. To prevent pile up and overload, periodically clearing snow from the bottom modules first in an array is a critical process.

8.2 MODULE CLEANING GUIDANCE

Modules do not require cleaning in most climates. Installed modules may collect a light layer of dust and/or dirt (soiling) over time and periodic rainfall should be sufficient to remove light soiling in most cases. In locations with heavy soiling, properly timed module cleaning can improve energy yields.



Cleaning activities create risk of damage to the modules and array components, as well as the potential for electric shock.

Cleaning may reduce energy enhancing effects of anti-reflective coating.



Cracked or broken modules represent a shock hazard due to leakage currents and the risk of shock increases when modules are wet. Before cleaning, thoroughly inspect modules for cracks, damage, and loose connections.

The voltage and current present in an array during daylight hours are sufficient to cause a lethal electrical shock.

Only properly trained personnel who understand the risks of applying water to electrical components should clean modules. Trained personnel must wear appropriate electrically insulating Personal Protective Equipment (PPE) during cleaning, inspection operations, or when working near modules. Professional cleaning services trained to work on live electrical systems are available for hire.

Clean modules only when in open circuit (reference Section 7.5 Module Shading Considerations) – either disconnected from load, or during times when the inverter is off. The recommended time to clean modules is from dusk to dawn when production is not affected, and risk of electrical shock hazard is minimized. The following guidelines minimize impact to plant power generation, reduce safety hazards, and minimize risk of module damage.

Important

First Solar does not warrant against breakage, damage, wear, or module performance issues that are determined to be caused by module cleaning.

Cleaning Requirements

- When dry cleaning, it is required to use soft mops or soft cloths only.
- When using water, RO water provides the best results. When RO water is not available, tap water with low mineral content (total hardness <75 mg/L) or deionized water may be used. Calcium must not exceed 75 mg/L.
- Fresh water (TDS < 1500 mg/L) may be used to clean the modules. If needed, a mild, non-abrasive, non-caustic detergent with a final fresh water and detergent solution mix between 6.5 < pH < 8.5 at 25°C may be used. Do not use abrasive cleaners or degreasers, cleaning solutions containing hydrochloric acid, D-Limonene, ammonia, or sodium hydroxide.
- Water temperature must be < 20°C from module temperature applied with water pressure < 35 bar (500 psi) at nozzle.
- Water must be free of floating oil or other immiscible liquids, floating debris, excessive turbidity, and objectionable odors.
- Chlorides must not exceed 250 mg/L and water conductivity must be < 250 mS/cm.
- If necessary for localized cleaning, excessively soiled spots on modules (i.e. bird droppings) may be spot-cleaned with soft cloth or mop and water.
- Do not direct pressurized water at sealed interfaces of module (junction box, edge seal, and connectors).
- Avoid cleaning backside of modules to prevent accidental stress to lead wire or junction box.

Cleaning solutions vary in design and size and can affect the load dispersed onto the modules.

Evenly distributed load per module while cleaning must not exceed 40.8 kg (90 lbs.).

- Uneven loads and pressures (wheels or belts) must be avoided.
- The following load scenarios must not be exceeded:
    - Point loads (P1)
        - Max of 13.6 kg (30 lbs.) each spaced 40.6 cm (16 inches) apart.
    - Up to 0.18 kg/cm (P2) (1 lbs./inch) of contact length for a drive belt anywhere on the module.
    - Up to 0.18 kg/cm (P3) (1 lbs./inch) of contact length for brushes contacting the module anywhere on the module.
    - Any combination of the above load types so that the total of P1, P2, and P3 ≤ 40.8 kg (90 lbs.) normal to the surface of the module.
- No feature of a cleaning solution must extend around the edge or contact the back surface of the module.
- Cleaning solutions must not affect or jeopardize any part of the mounting system.
    - This includes all parts of the mounting system: clips, rails, and trackers.

Robotic Cleaning Requirements

- Minimize vibration from the cleaning apparatus to prevent shifting of the modules in their mounting hardware.
- Edges of Series 7 modules are unsupported and unprotected, and as such must not be used to support the weight of the robotic cleaning system.
- Robotic cleaning systems are restricted from using the module glass edge as a guide or mechanical support for the load of the robot, exemptions may be evaluated and approved by First Solar on a case by case basis.
- Module edges must not be used as drive surface.
- The robot must have a smooth transition from module to module in order to make sure that there is no impact on the edges.

8.3 MODULE DISPOSAL

Modules may be recycled or disposed of in accordance with applicable local requirements.

Please visit www.firstsolar.com/modules/recycling for further details on the recycling program.

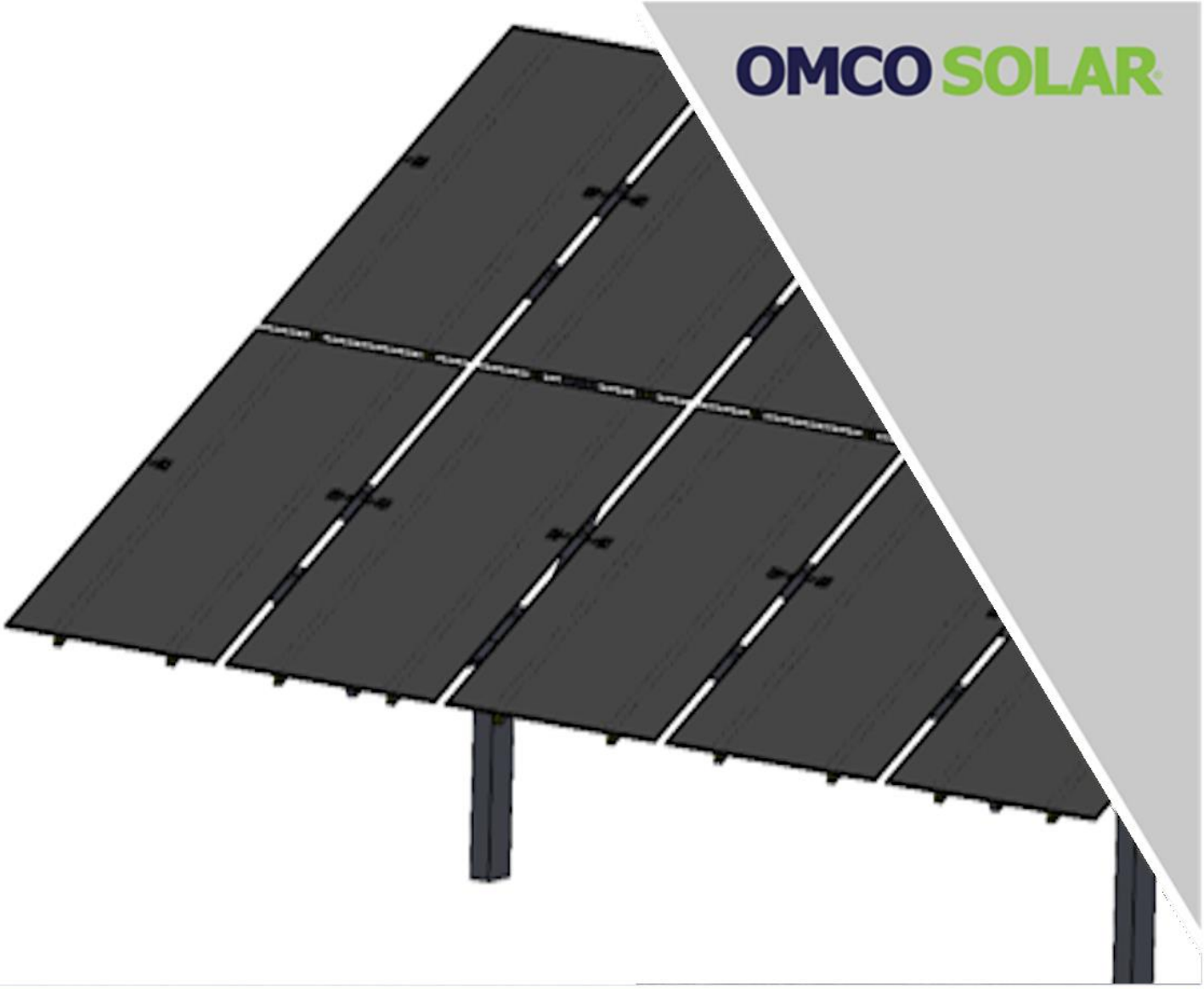
9 REVISION HISTORY

REVISION NUMBER	AMENDMENT DETAILS	REVISION DATE
1.0	Initial Release	09/14/2022
1.1	Updated Mechanical Drawing	01/24/2022
1.2	"Wiring system derating factors" and "Robot Cleaning" updated, Frame/Rail material added in	10/05/2023
1.3	Pack handling sections have been updated	02/23/2024
1.4	New mounting location	09/03/2024
1.5	Mounting section was updated	12/13/2024

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<u>Schedule 5.1</u> Racking Specification Sheet

[Attached]



OMCO SOLAR

OMCO Choice™

Series 7 Fixed Rack Installation Manual

NOTICE

Changes to OMCO Choice™ Racking System Components are common as OMCO Solar continuously strives for product improvements. All products within the same model classification should remain functionally equivalent and compatible with one another, even though there may be slight differences based on product improvements or other changes.

OMCO Solar reserves the right to make changes to the design and specifications applicable to any OMCO Choice™ Racking System Components at any time without notification or update to this document.

CONTACT INFORMATION

For information regarding OMCO Solar and its product, please visit **www.omcosolar.com**.

To request a quote or to discuss your Solar Racking System needs, please email your request to **info@omcosolar.com** or call **602.352.2700**.

CERTIFICATIONS

OMCO Solar operates a Quality Management System which complies with the requirements of ISO 9001.

Certified System ™
Quality
ISO 9001

OMCO Solar is compliant with UL 2703. This standard covers OMCO Choice™ Racking System for modules listed to UL 1703.

PTL US
CERTIFIED

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1 GENERAL DOCUMENT OVERVIEW

PURPOSE

This Installation Manual (OIM-206) is intended to provide information concerning installation of OMCO Solar's OMCO Choice™ Ground Mounted Solar Structure. This document may be used to plan installation of the OMCO Choice™ Racking System components, including developing resource estimates for installation of OMCO Choice™ Racking System components.

Failure to install OMCO Solar's OMCO Choice™ Racking System in the manner described in this document and the site specific Construction Drawings may void the standard warranty (refers to OMCO Solar's Warranty Terms and Conditions).

SCOPE OF DOCUMENT

The OMCO Choice™ Racking System accommodates all types and styles of framed modules and is configurable for a wide variety of site loading requirements. The OMCO Choice™ Racking System is intended for ground mounted systems and is not approved for roof mounted systems.

This document is intended to provide installation and assembly information in support of the OMCO Choice™ Racking System and includes details regarding installation that may not be included in the project Construction Drawings.

This document:

- **Does not** substitute for site-specific Construction Drawings prepared by or on behalf of the Owner to determine relevant project layout, design and installation requirements for the project location.
- **Does not** substitute for permitting documents required for system installation at the relevant location.
- **Does not** suggest any unsafe installation practices.
- **Does not** provide guidance for designing a PV power plant incorporating the OMCO Choice™ Racking System.

DOCUMENT REVISION HISTORY

Revision	Description	Date	Approved By
0	Initial Release	3/20/24	NSS

RELATED DOCUMENTATION

It is important to follow OMCO Solar's specifications and Construction Drawings to ensure proper installation and operation. Documents referred in this Installation Manual include the following:

- "Construction Drawings" refers to the installation drawings provided by OMCO Solar for each specific jobsite.
- "Post Installation Manual" refers to the current version of OMCO Solar Racking System Post Installation Manual (OIM-101)
- "OMCO Choice™ Qualified Modules" refers to the current version of OMCO Solar Qualified Modules document (OMPH917)
- "Marking Label" refers to the labels that will be provided by OMCO Solar that comply with the Standard for Marking and Labeling Systems, UL 969
- "Standard Warranty" refers to OMCO Solar Warranty Terms and Conditions

KEY DEFINITIONS

Certain Terms in this document are defined as the following:

Table 1: Terms and definitions

TERM	DEFINITION
▶ OMCO Choice™	An assembly of OMCO Choice™ Racking System Components that have been installed and commissioned in accordance with all applicable requirements, including this Installation Manual.
▶ OMCO Choice™ Racking System Components	Components & hardware supplied by OMCO Solar that, once assembled, installed and commissioned by Owner, in accordance with all applicable requirements, including this Installation Manual.
▶ Owner	The Owner, purchaser, installer, contractor and/or operator of any OMCO Solar OMCO Choice™ Racking System components & hardware, and their permitted assigns subcontractors and personnel, as applicable.

TOOLS AND SUPPLIES

The OMCO Solar Racking System is designed for simplified assembly using only commercially available tools without the need for any custom tools.
Suggested Tool List – (Pile installation equipment excluded)

- Level
- Line Level
- Measuring Tape
- Magnetic Compass
- Calibrated Torque driver/wrench with range appropriate to torque specifications
- 10 mm, 13 mm, 17 mm, 19 mm sockets
- 10 mm, 13 mm, 17 mm, 19 mm open end wrenches
- Square or other means of checking perpendicularity of components
- Standard ladder, sized for upper beam installation

2 SAFETY

REFERENCE INFORMATION

In all installation and operation practices, safety must be maintained and unsafe practices avoided.

⚠ WARNING

Personal Protection Equipment (PPE) should be used at all times during the installation process.

- Work boots
- Hard hat
- Safety Glasses / Proper eye protection
- Cut-Resistant gloves
- Safety vest
- Electrically rated PPE should be worn when working on interconnected Modules or other electrical system components.

To prevent shock:

- Disconnect ALL incoming power sources.
- More than one disconnect switch may be required to de-energize the equipment.
- Follow Lockout/Tag-out procedures.
- Request servicing by a qualified professional.
- Observe safety practices in every step of the process and report any unsafe or hazardous condition to your supervisor immediately.

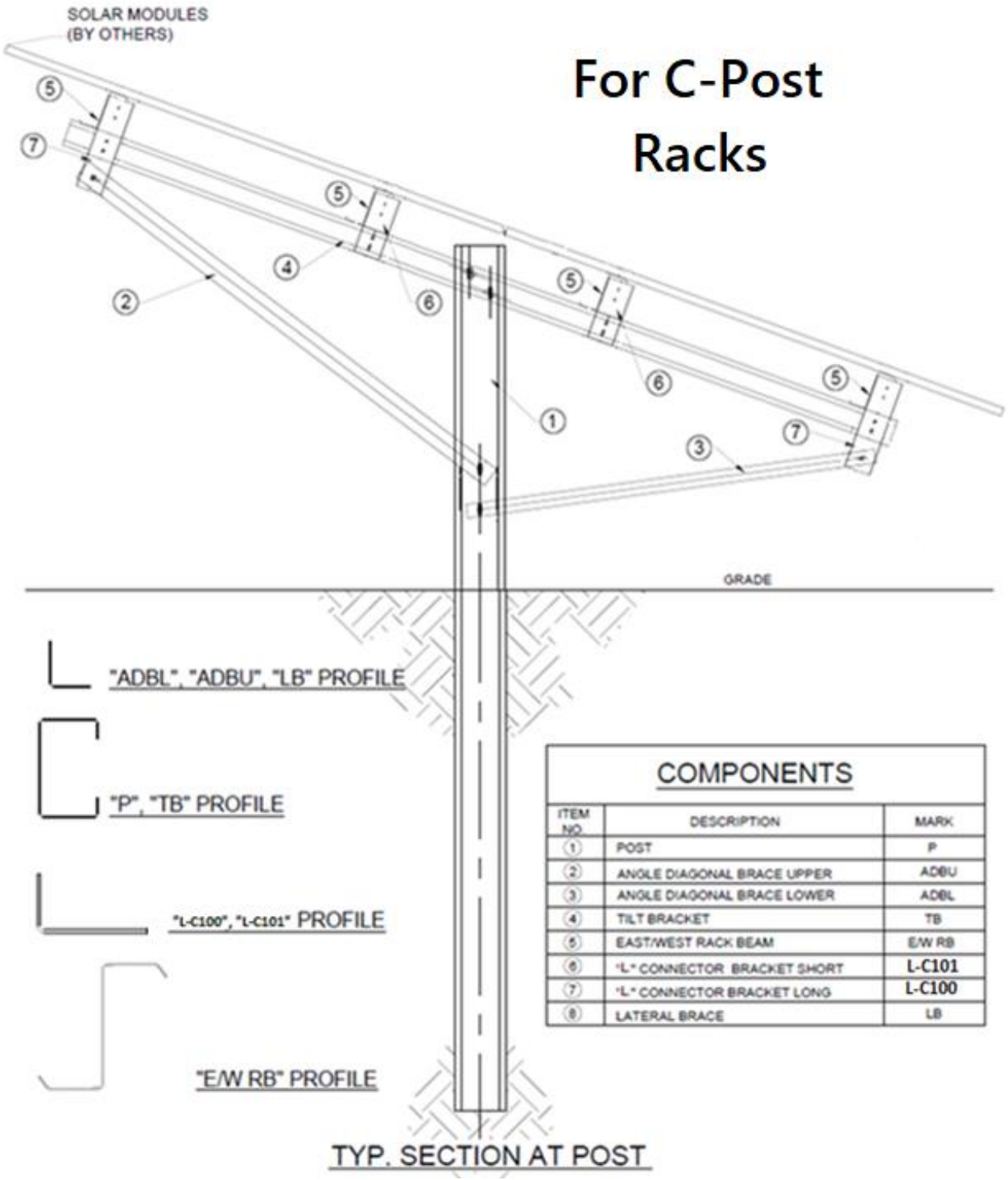
SYSTEM SAFETY INFORMATION

DO NOT use bolts that have been previously tightened or pre-stressed bolts that are structurally compromised as these may not retain their strength when recycled.

Read this document and review the project specific approved Construction Drawings before beginning installation work. This document is not prescriptive regarding safety and does not purport to address all the safety concerns that may arise with its use. The Owner should become familiar with all applicable safety, health and regulatory requirements before beginning work.

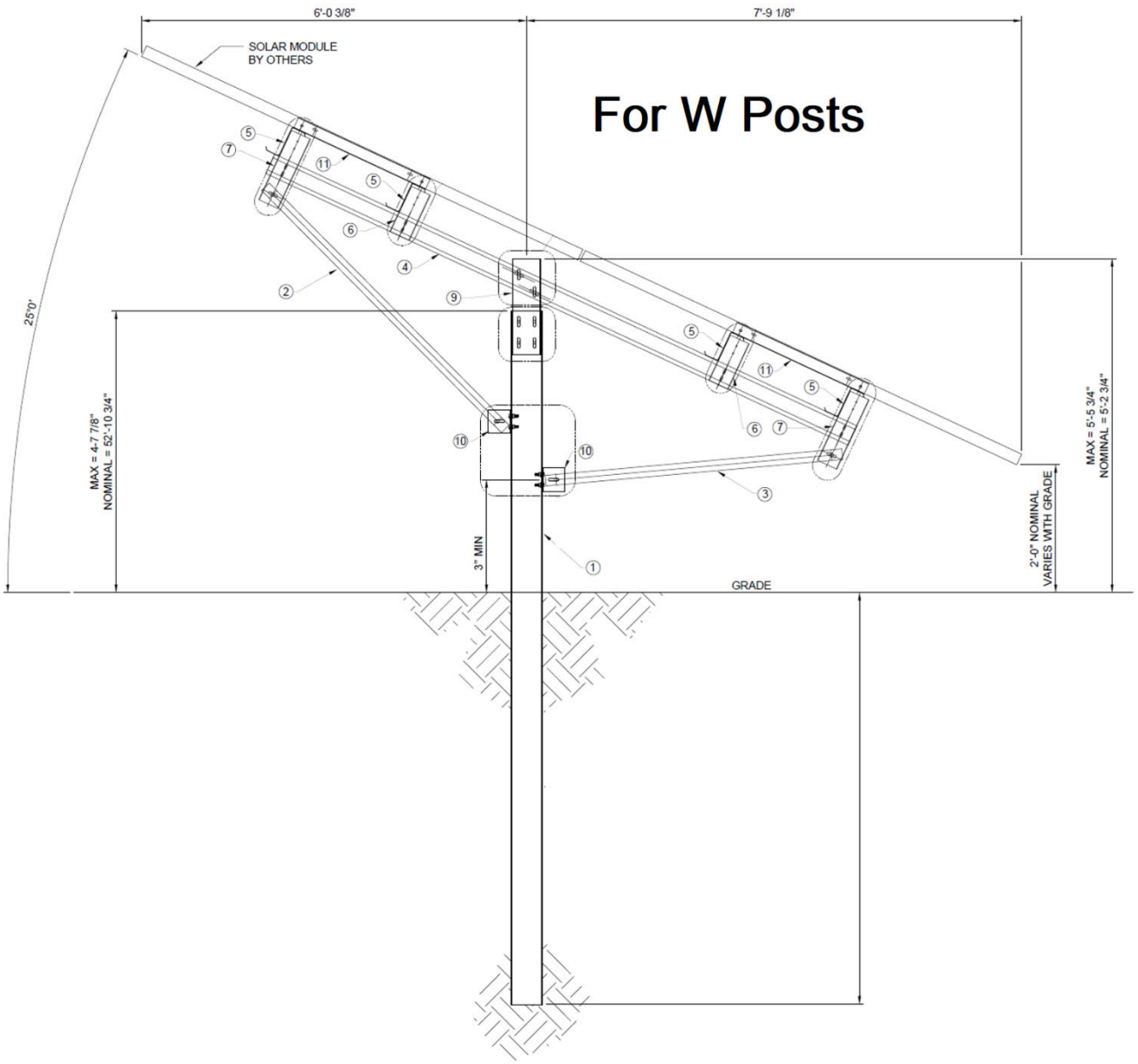
OMCO Solar cannot be held responsible for any injuries or safety incidents during the installation of the OMCO Solar Racking System or solar modules.

3 COMPONENTS & HARDWARE



COMPONENTS

ITEM NO	DESCRIPTION	MARK
1	POST	P
2	ANGLE DIAGONAL BRACE UPPER	ADBU
3	ANGLE DIAGONAL BRACE LOWER	ADBL
4	TILT BRACKET	TB
5	EAST/WEST RACK BEAM	E/W RB
6	"L" CONNECTOR BRACKET SHORT	L-C101
7	"L" CONNECTOR BRACKET LONG	L-C100
8	LATERAL BRACE	LB



TYP. SECTION AT POST (A)
(NTS)

COMPONENTS

ITEM NO.	DESCRIPTION	MARK
①	POST	P
②	DIAGONAL BRACE UPPER	DBU
③	DIAGONAL BRACE LOWER	DBL
④	TILT BRACKET	TB
⑤	EAST/WEST RACK BEAM	E/W RB
⑥	"L" CONNECTOR BRACKET SHORT	CBS
⑦	"L" CONNECTOR BRACKET LONG	CBL
⑧	LATERAL BRACE	LB
⑨	POST TO TILT CONNECTOR	PTC
⑩	"W" DIAGONAL BRACKET	WDB
⑪	SERIES 7 MODRAIL	S7MR

COMPONENTS	SPECIFICATIONS
POST	Gr57 min. G235 Galv.
TILT ASSEMBLY	Gr80 min. G90 Galv.
RACK BEAM	Gr80 min. G90 Galv.
LATERAL BRACE	Gr80 min. G90 Galv.
DIAGONAL BRACE	Gr57 min, G90 Galv.
BONDING STRAP	Gr57 min, G90 Galv.
REINFORCEMENT WASHER	Gr57 min, G90 Galv.

HARDWARE	SPECIFICATIONS
M6-1.0, SERRATED HEX FLANGE BOLT	DIN6921
M6-1.0 x 12, HEX FLANGE LOCK NUT	DIN6927
M8 STAR WASHER	DIN6797 A
M8-1.25 x 16, HEX FLANGE BOLT	DIN6921
M8-1.25, HEX FLANGE LOCK NUT	DIN6927
M8-1.25 x 20, HEX BOLT	DIN933/931
M8-1.25 HEX NUT	DIN934
3/8" USS FLAT WASHER	DIN125A
7/16" USS FLAT WASHER	DIN125A
M12-1.75 x 25, HEX BOLT	DIN933/931
M12-1.75 HEX NUT	DIN934
1/2" USS FLAT WASHER	DIN125A
BONDING STRAP	UL 467
REINFORCEMENT WASHER	Gr50 min, G90 Galv.
INSTALLATION MANUAL	UL 2703
MARKING LABEL	UL 969

Refer to Construction Drawings for length and locations

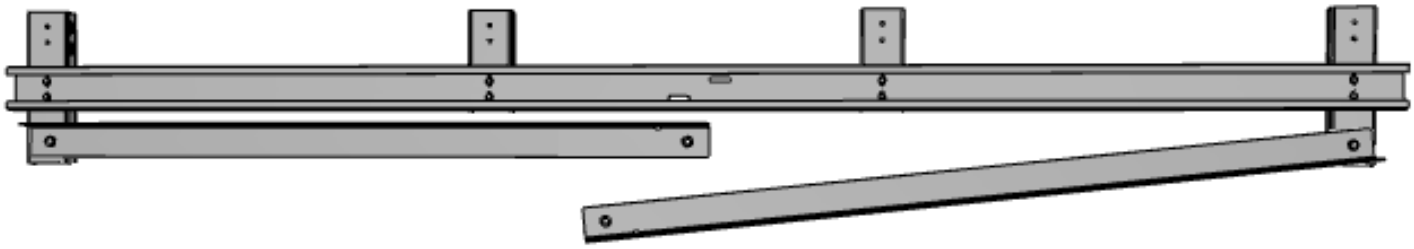
TORQUE REQUIREMENTS - UNLESS OTHERWISE NOTED	
M6 CONNECTIONS	6.6 ft-lb (9 N-m)
M8 CONNECTIONS	16 ft-lb (22 N-m)
M10 CONNECTIONS	32 ft-lb (43 N-m)
M12 CONNECTIONS	55 ft-lb (75 N-m)

4 OMCO Choice™ SUB-ASSEMBLIES

TILT ASSEMBLY

The OMCO Choice™ Tilt Assembly will arrive on site consisting of the Tilt Bracket, Connector Brackets and Upper and Lower Diagonals.

The complete Tilt Assembly is set to nominal locations within slots ready for any minor field adjustments.

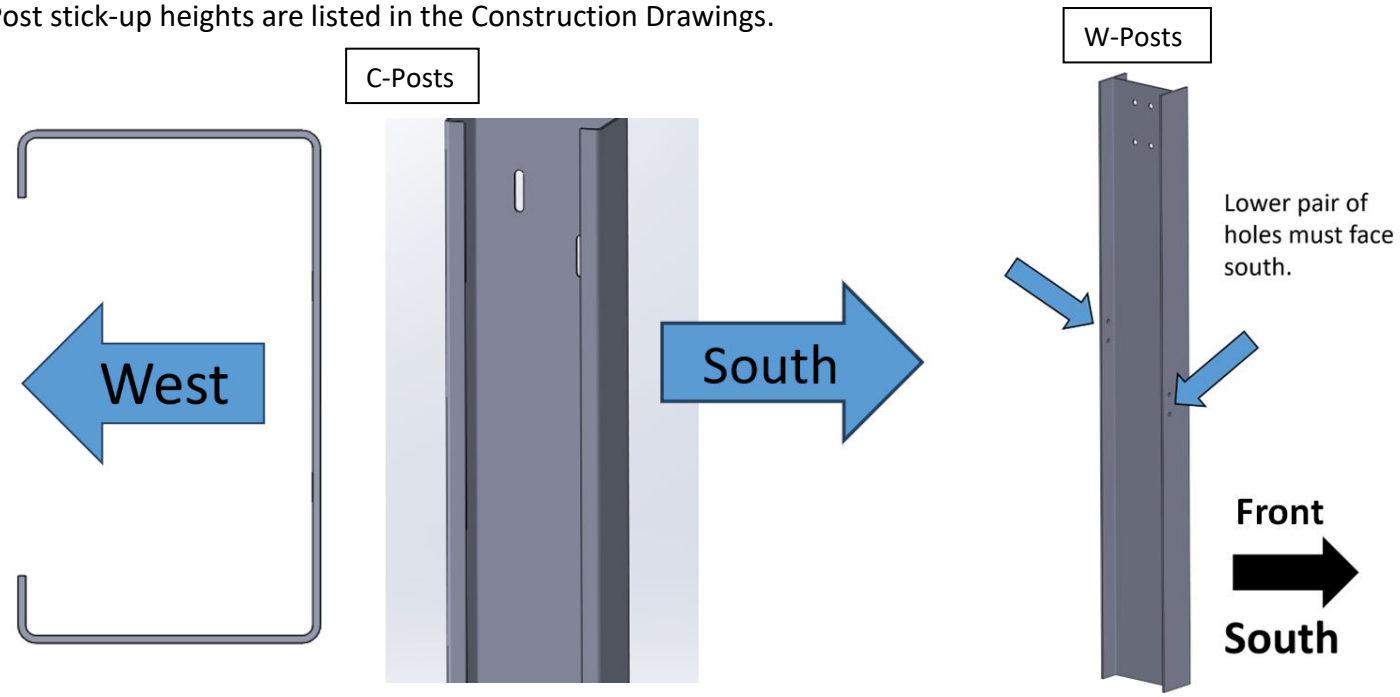


After installaton is complete torque values must be verified.

5 OMCO Choice™ RACKING SYSTEM INSTALLATION

POST INSTALLATION

- Install the Posts through driving or ballasting as required by the Construction Drawings.
- Refer to Post Installation Manual (OIM-101) for more detailed installation instructions.
- Post stick-up heights are listed in the Construction Drawings.



IMPORTANT NOTES

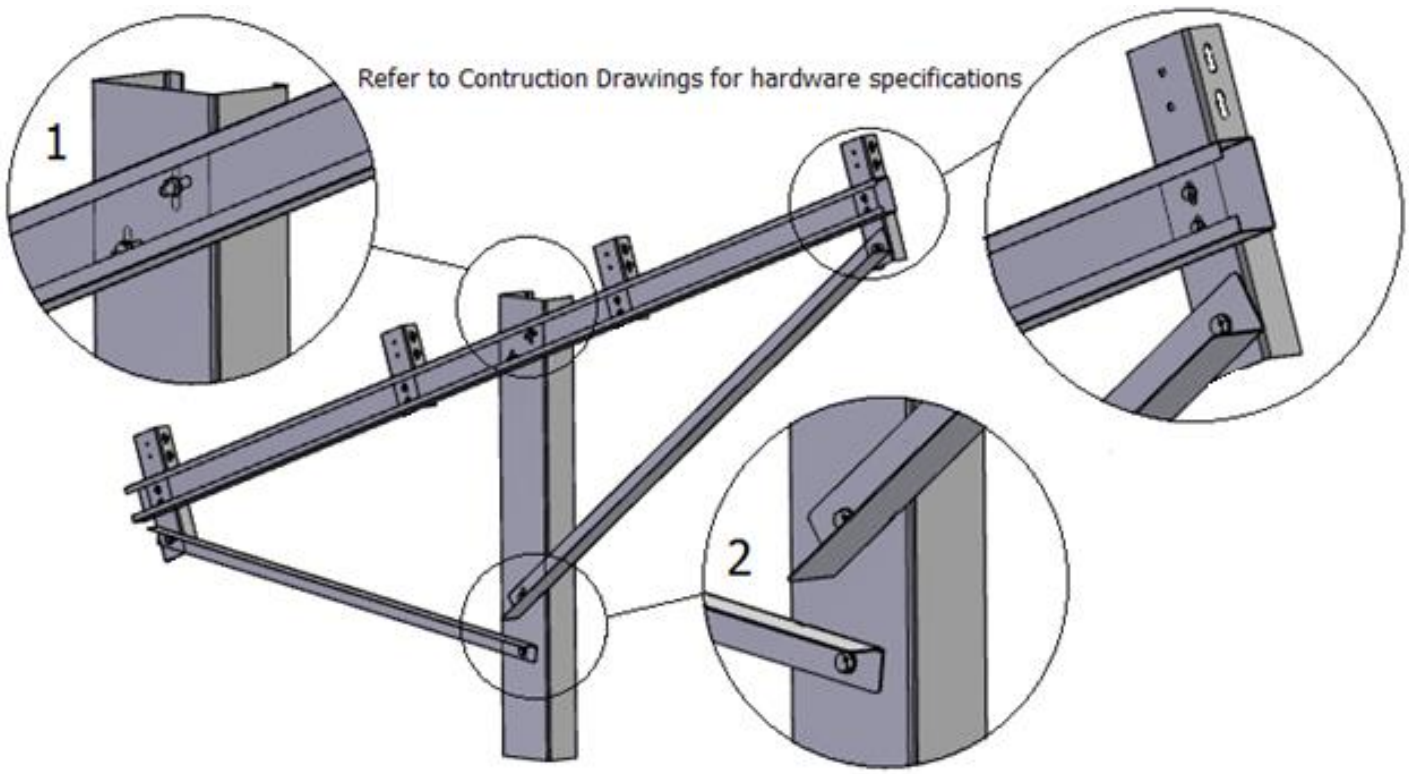
For sites using the W-Post, the flange with the lower pair of holes must face south.
For sites using the C-Post, the open side of the post must face west.

Tolerance Direction	Tolerance
North-South Location	± 0.75” From nominal
East-West Location	± 0.75” From nominal
Elevation	± 1.5” From nominal
North-South Tilt	± 1.0° From nominal
East-West Tilt	± 1.0° From nominal

NOTICE: * Alignment of Posts is a priority. Proper alignment of Posts facilitates precise installation. *

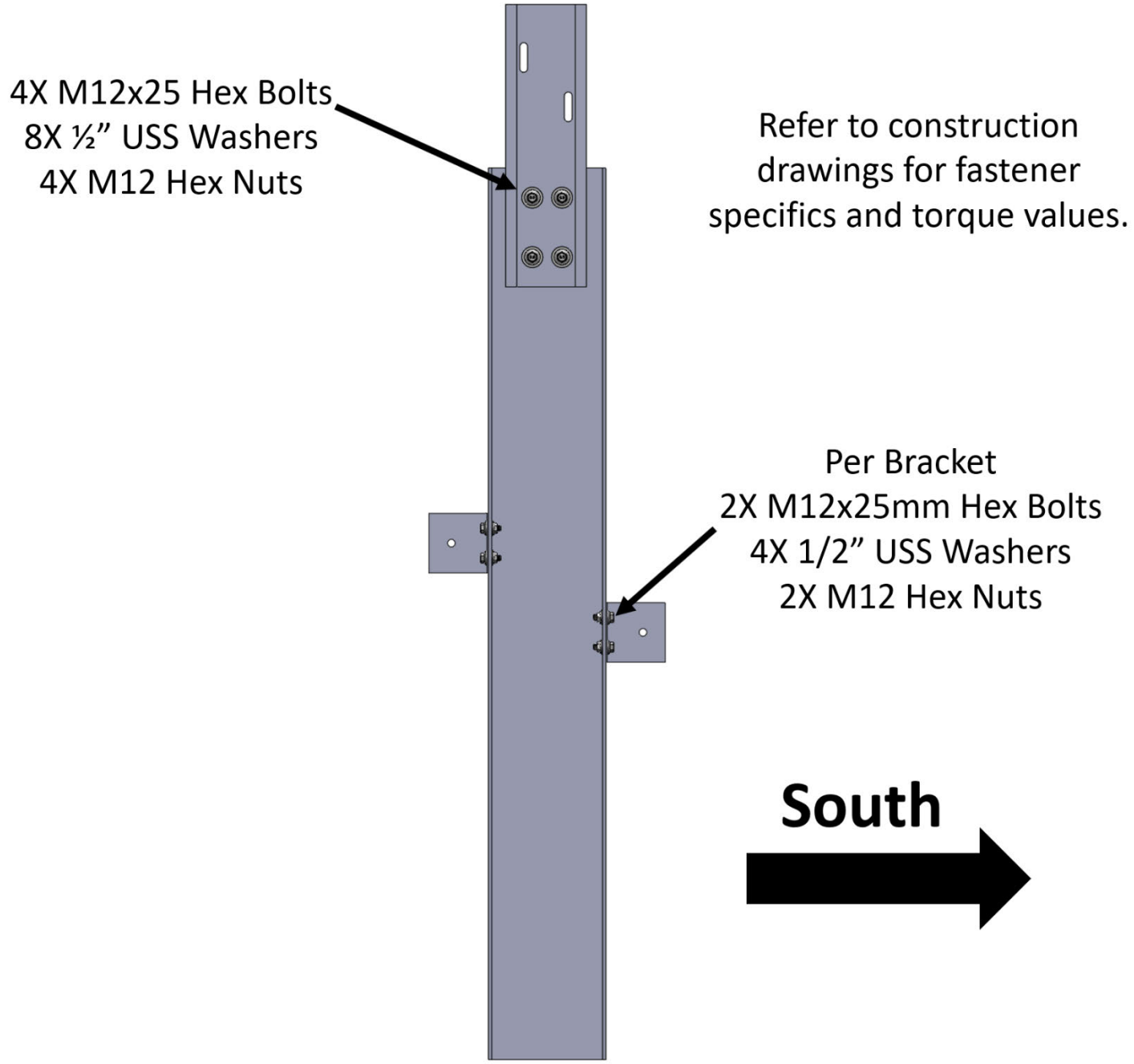
TILT ASSEMBLY INSTALLATION – C-POSTS

- 1. Connect Tilt Bracket Assembly to holes located at the top of the Post.
- 2. Connect each Diagonal to the holes located at the bottom of the Post.
    - Owner to develop exact means and methods of installation.
    - OMCO Solar recommends installing hardware hand tight and completing final torque requirements after any field adjustments are completed.

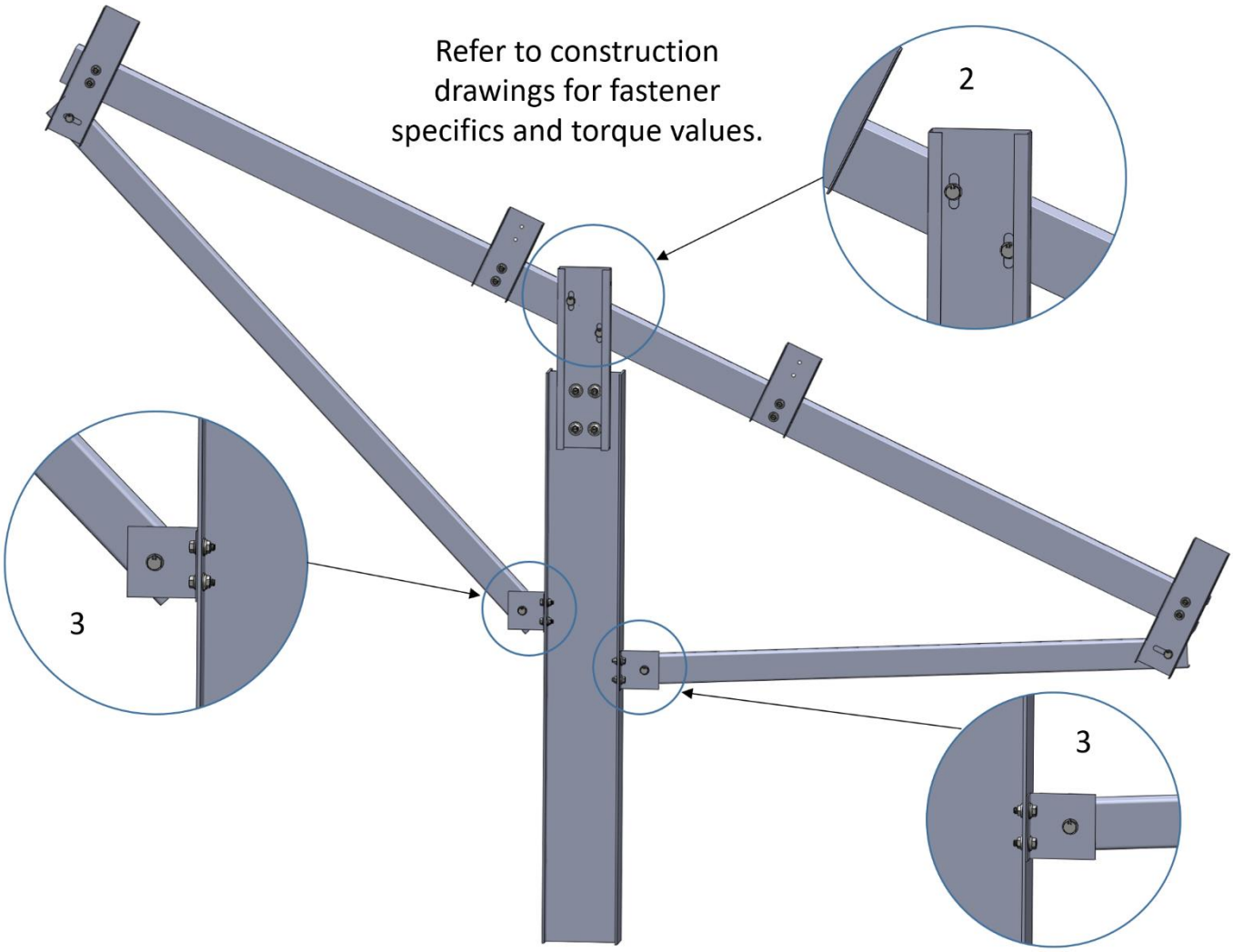


TILT ASSEMBLY INSTALLATION – W-POSTS

- 1. Attach the Post to Tilt Connector and the two W Diagonal Brackets to the Post.



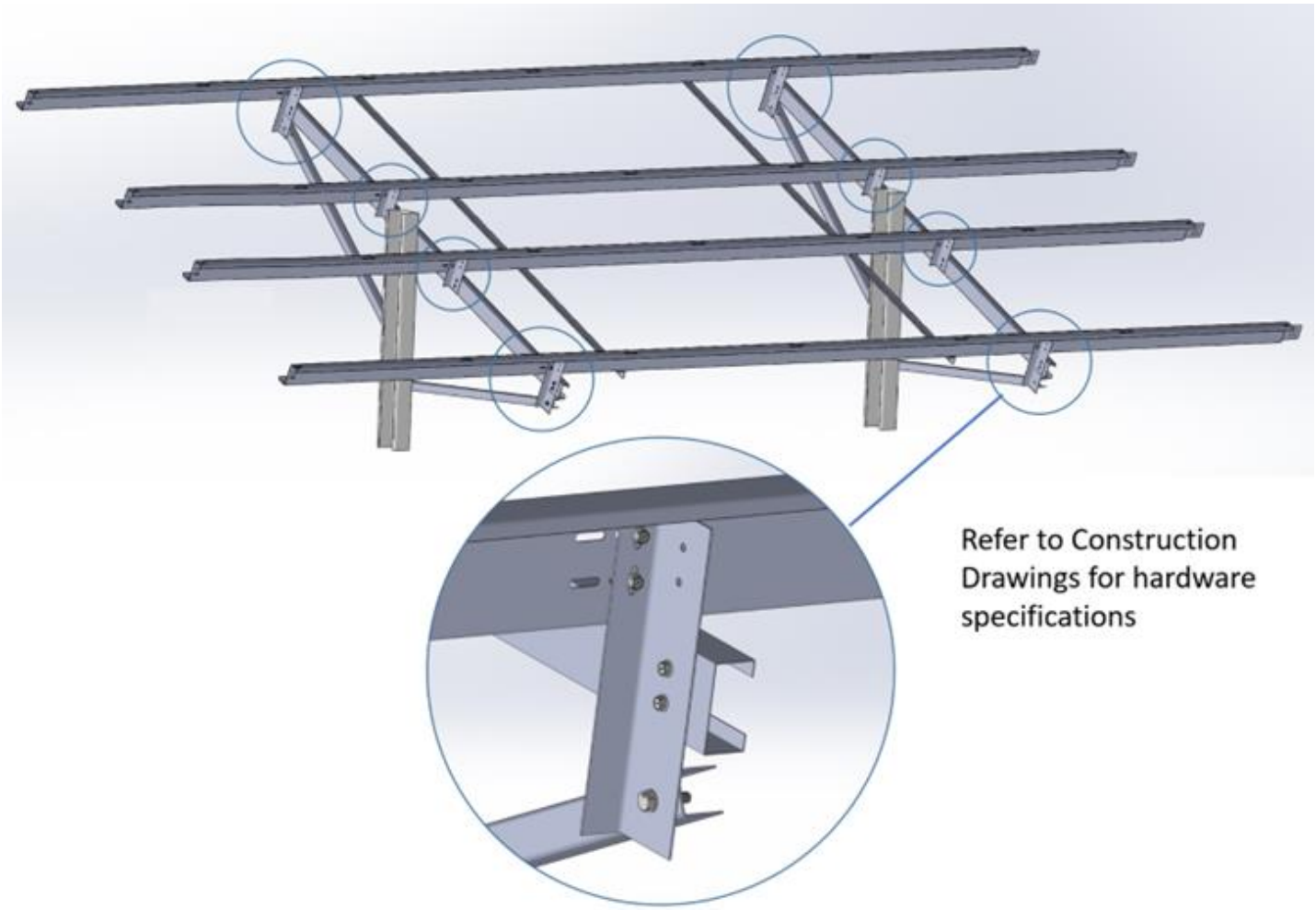
- 2. Connect Tilt Bracket Assembly to holes located at the top of the Post to Tilt Connector.
- 3. Connect each Diagonal to the holes on the W Diagonal Brackets.



  - Owner to develop exact means and methods of installation.
  - OMCO Solar recommends installing hardware hand tight and completing final torque requirements after any field adjustments are completed.

RACK BEAM INSTALLATION

- Rack Beams are installed directly to the Tilt Bracket Assemblies.
- Refer to Construction Drawings for specific hardware.
    - Owner to develop exact means and methods of installation.
    - Using a square verify Beams are parallel to each other.
    - OMCO Solar recommends installing hardware hand tight and completing final torque requirements after any field adjustments are completed.



CONNECTING TABLES (BONDING TABLES)

- Connecting tables together will Bond the tables together properly.
- The Tab of the articulation connection can be installed in front or rear of the adjacent Beam.
    - Recommended best practice is to always orient the articulation connection tab in the same direction.
- One Bolt & Nut per connection required for bonding.
- Refer to Construction Drawings for specific hardware.

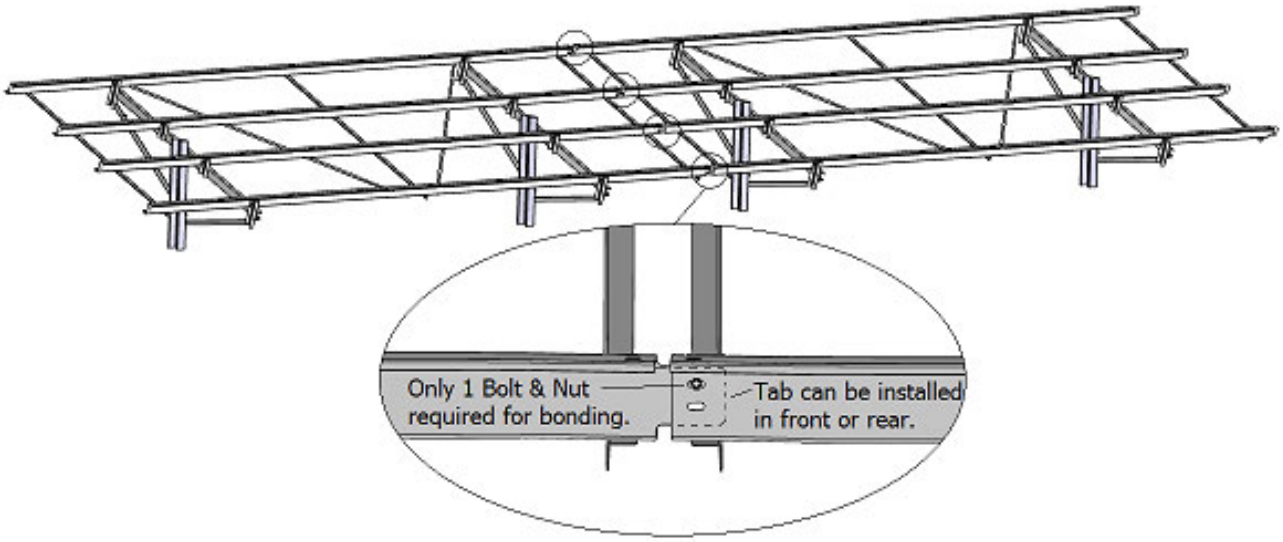
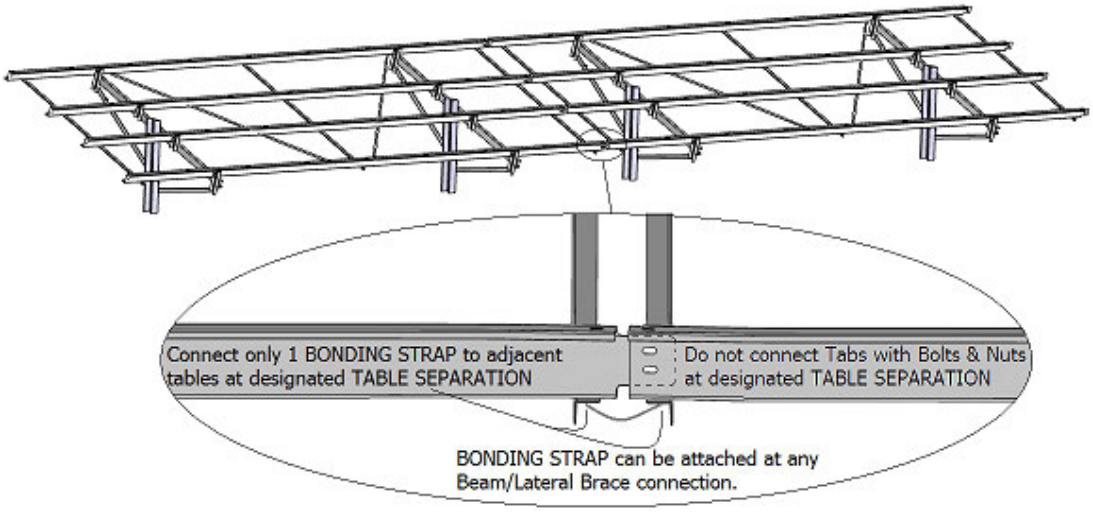


TABLE SEPARATION (BONDING TABLES)

- Table Separation is designed into the OMCO Choice™ Racking System. This is intended to allow for expansion and contraction within the OMCO Choice™ Racking System.
- Refer to the Construction Drawings for Designated Table Separation.
- At Designated Table Separation a Bonding Strap must be attached to adjacent tables at the Beam & Lateral Brace connections. This is required for bonding.
- The Bonding Strap can be attached at any Beam/Lateral Brace connection between 2 adjacent tables.
    - Recommended best practice is to always install the Bonding Strap in the same location consistently.
- Refer to Construction Drawings for specific hardware.



LATERAL & DIAGONAL BRACE INSTALLATION

Lateral Braces will be required for your OMCO Choice™ Racking System. Refer to the Construction Drawings & Table below for quantity, locations & hardware specifications.

LATERAL BRACES

- Location of Lateral Braces are centered on the Beam spans as noted in project specific Construction Drawings.
- Connections for Lateral Braces to be completed at each Beam.
- The Lateral Braces will reinforce the bottom flanges of the Beams and improve the Beam performance for longer spans.

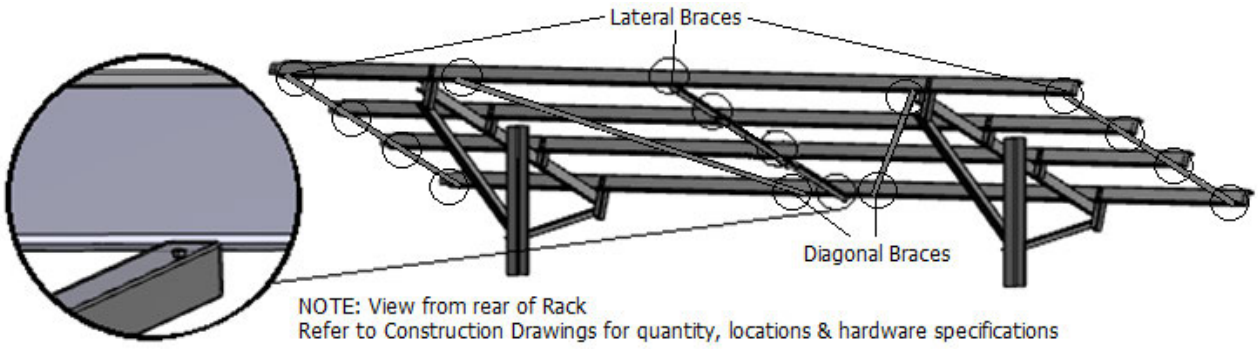
DIAGONAL BRACES

Diagonal Braces may or may not be required for your OMCO Choice™ Racking System depending on the size of the Table. Refer to the Construction Drawings for requirement of quantity, locations & hardware specifications.

- Location of the Diagonal Bracing is mounted at the upper Beam and lower Beam in a diagonal direction.
- Connections for Diagonal Braces to be completed at the upper Beam & lower Beam only.
- The Diagonal Braces will square the table and improve the Beam performance.

Example of 2X9, 2X10 & 2X11 shown below

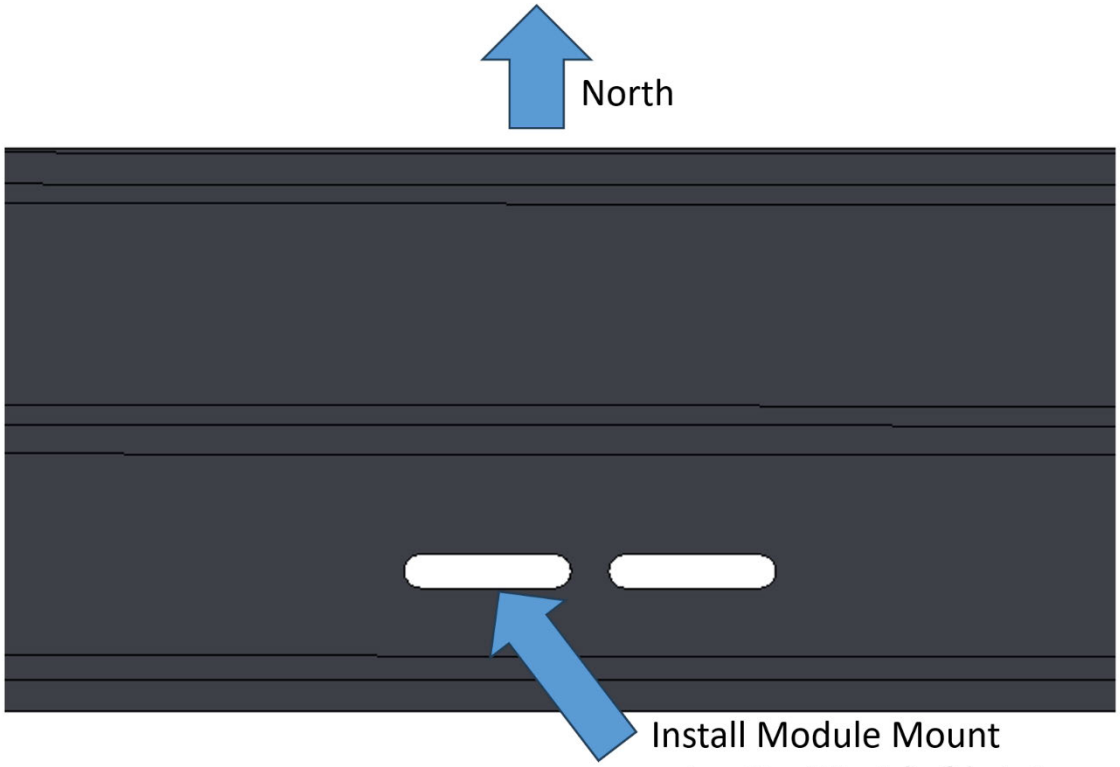
Refer to Construction Drawings for quantity, locations & hardware specifications.

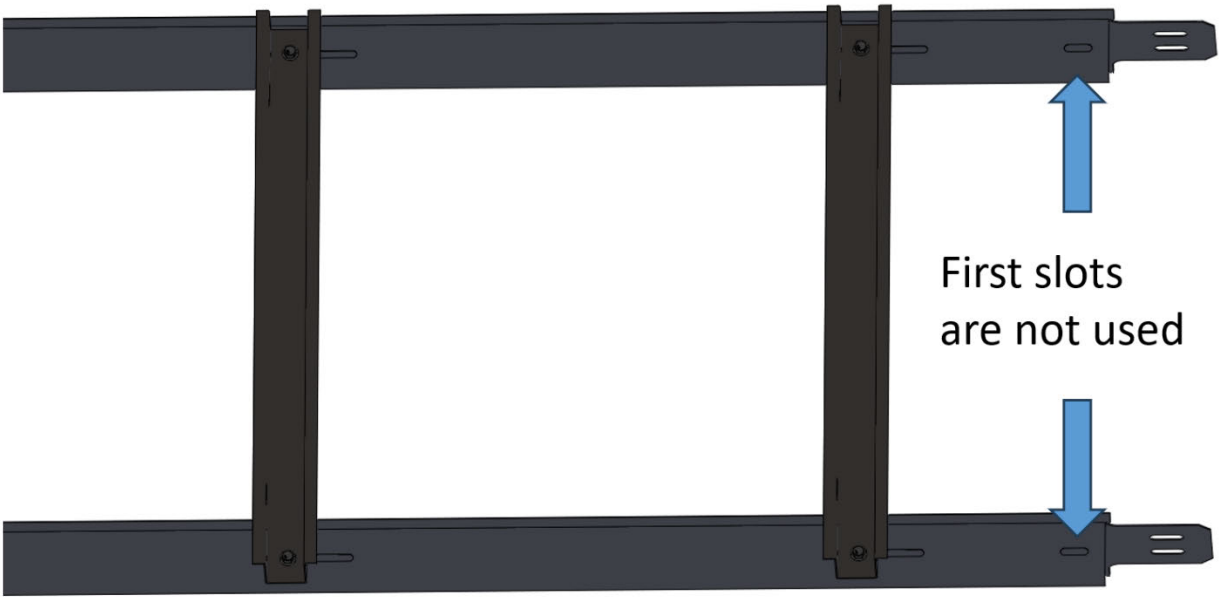


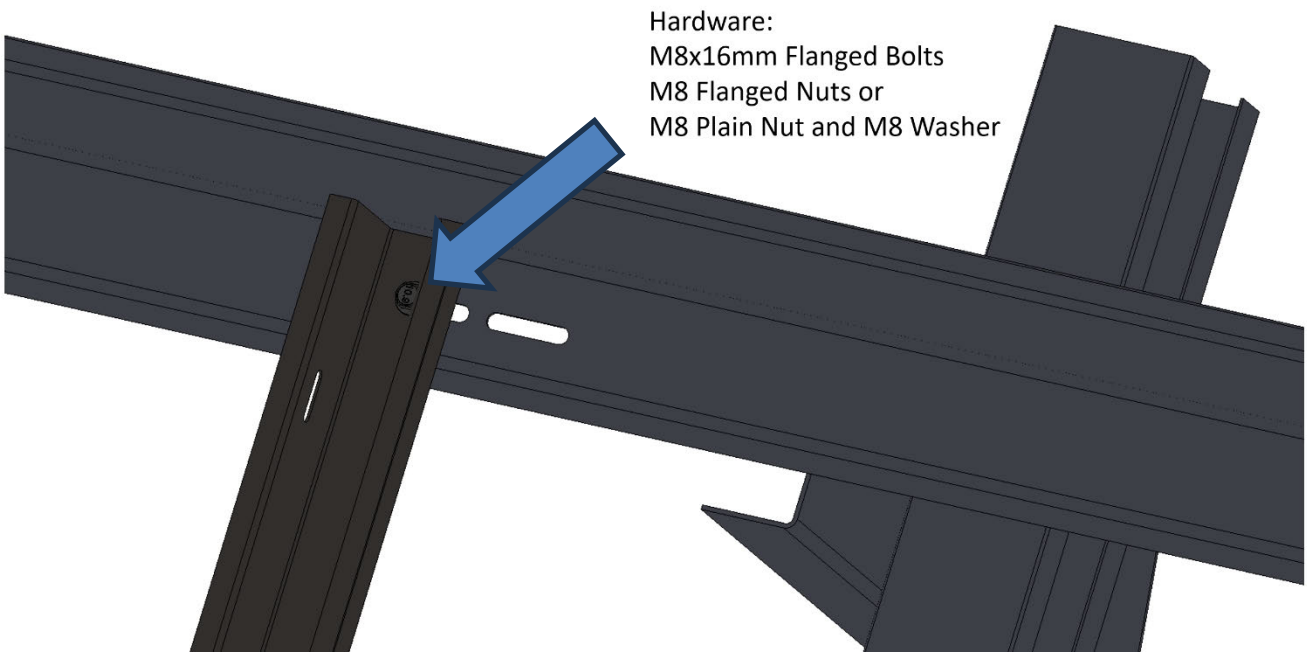
MODULE INSTALLATION

Each Series 7 Module attaches to the table using a pair of Series 7 Module Mounts. These mounts attach between a pair of rack beams.

- Loosely install a Module Mount using M8 hardware at each Module Mount location. In some Module Mount locations there are two adjacent slots in the top of the Rack Beam at each Module Mount location. For these locations, use the West (left side) slot. The slots at the very ends of each Rack Beam are not used.



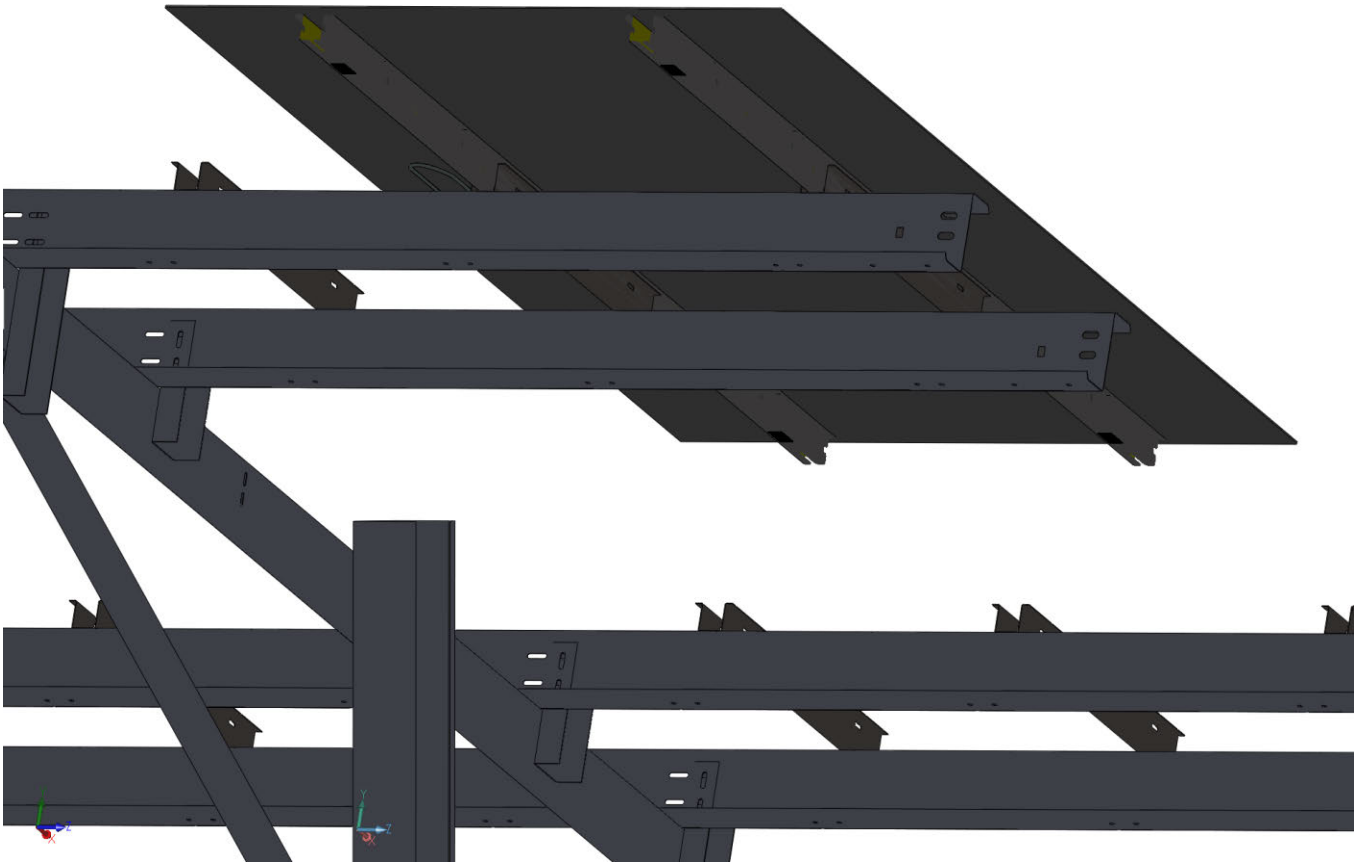


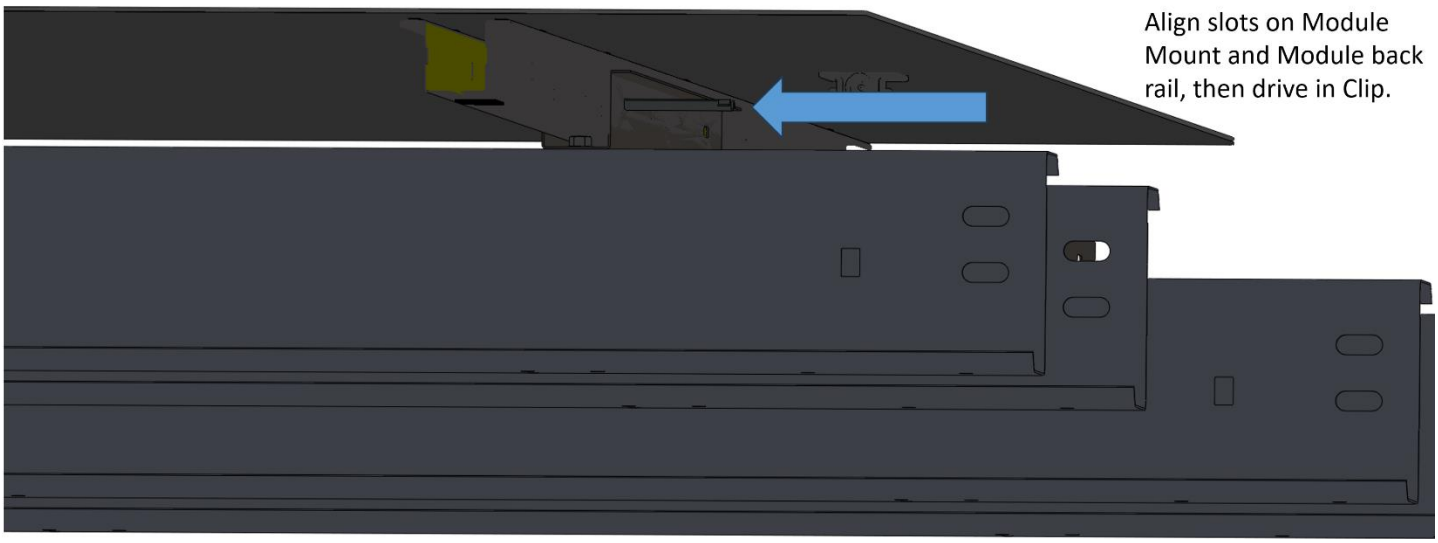


- Install Module Mounts in all West side slots on the table



- Place the Module into the Module Mounts taking care to align the slots in the Module's back rails with the slots on the Module Mounts

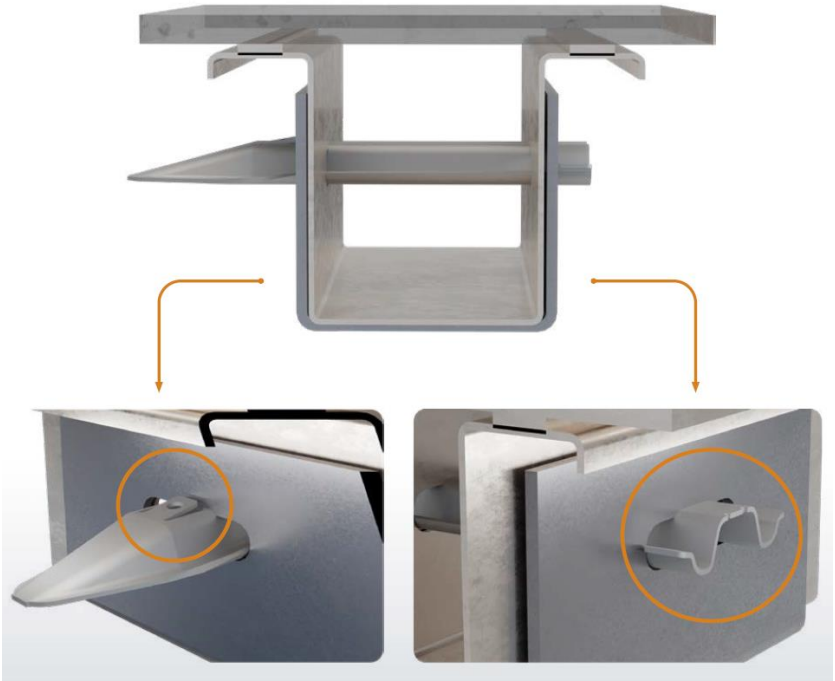




- While supporting the Module, install a Powar Wedge clip into each of the slots using the driving tool and rotary hammer.
    a. Make sure the rotary hammer is set to hammer only, no rotation.



    b. Drive the wedge until it is flush with the Module Mount. Ensure the tab catches the Module Mount as shown below:

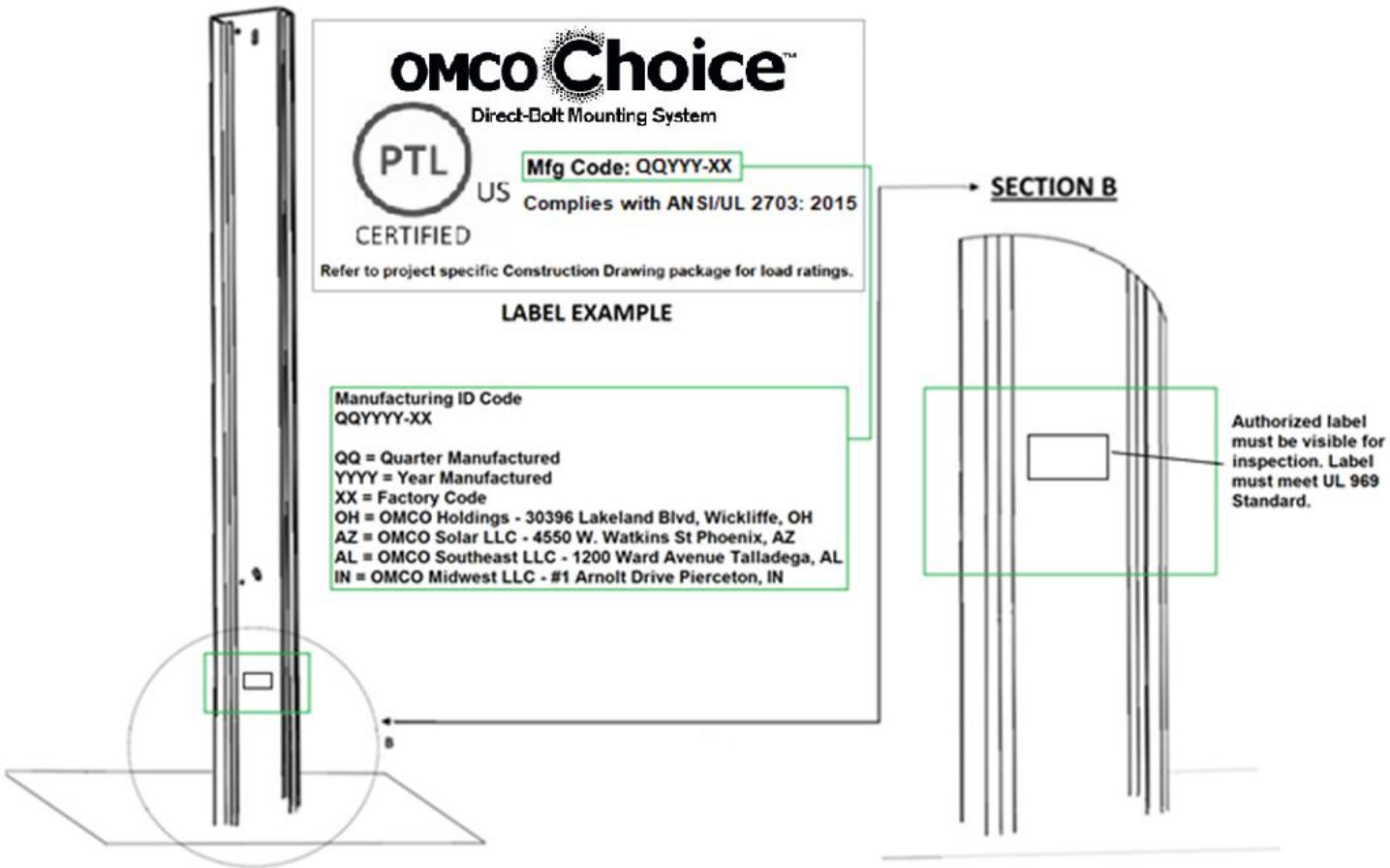


- With the Powar Wedge clips installed, check that the module is square to the table and tighten the M8 hardware holding the Module Mount to the Rack beams to 16 ft-lbs.
- Repeat the above process for all modules on the table. Ensure that there is a 19mm (3/4”) gap between adjacent modules and that all modules are square to the table.



6 MARKING LABEL

The OMCO Solar Racking System shall have a plain, legible, permanent Marking Label. Each Marking Label shall be secured to the end Post of each row.



7 LOAD RATING INFORMATION

Due to the highly customizable nature of the OMCO Choice™ Racking Systems, site specific load ratings will be provided by a qualified Engineer. Refer to the site specific Construction Drawing package for Load Ratings.

Refer to OMCO Solar's Qualified Modules, controlled document (OMPH917), for current modules qualified to OMCO Solar's OMCO Choice™ Racking Systems.

8 OPERATIONS & MAINTENANCE (O&M)

PREVENTATIVE MAINTENANCE

It is recommended that proper preventative maintenance be conducted according to the standard warranty. Inspections, after installation and annually, should be conducted by the Owner, or a qualified person(s). Inspections should include, but not limited to, the following:

- Identify any rust areas;
    - If encountered: Areas affected should have the rust removed and coated with a zinc rust inhibitor to match, or exceed, the designed galvanized coating. Refer to project-specific Construction Drawings for galvanized coating specifications.

- Identify any movement of the systems mechanical components. This should be reviewed after the project encounters extreme wind events.
    - If encountered: Movement should be rectified.

- Torqued hardware should be inspected. If 20% of the hardware connections need to be remedied, then 100% of all torqued hardware should be reviewed and checked.

- The use of any damaged components and/or hardware should be avoided. If installed components and/or hardware are identified as damaged during inspections the product should be replaced with the proper component and/or hardware.

Any inspections or maintenance work not discussed above shall be discussed and approved by OMCO Solar.

The Owner of the OMCO Choice™ Racking System is recommended to conduct the Preventative Maintenance inspections, and possible remedies, as listed above. Failure to conduct the inspections, and or, provide corrective actions not approved by OMCO Solar, could void the standard warranty.

9 WARRANTY

The owner of the OMCO Choice™ Racking System under the standard warranty is recommended to conduct annual inspections of the OMCO Choice™ Racking System to provide necessary maintenance, including torque verification and remediation of hardware connections, replacement of damaged components and/or hardware and repairing of any galvanized coatings showing signs of wear, rust, or other deterioration. Failure to conduct annual inspections or to perform recommended maintenance of the OMCO Choice™ Racking System could void the standard warranty.

10 APPENDIX

APPENDIX A: ELECTRICAL INFORMATION

BONDING PATH 22
GROUNDING & BONDING REQUIREMENTS 23
BONDING & GROUNDING RECOMMENDED COMPONENTS 24
GROUNDING FOR SITES WITHOUT DRIVEN POSTS 25

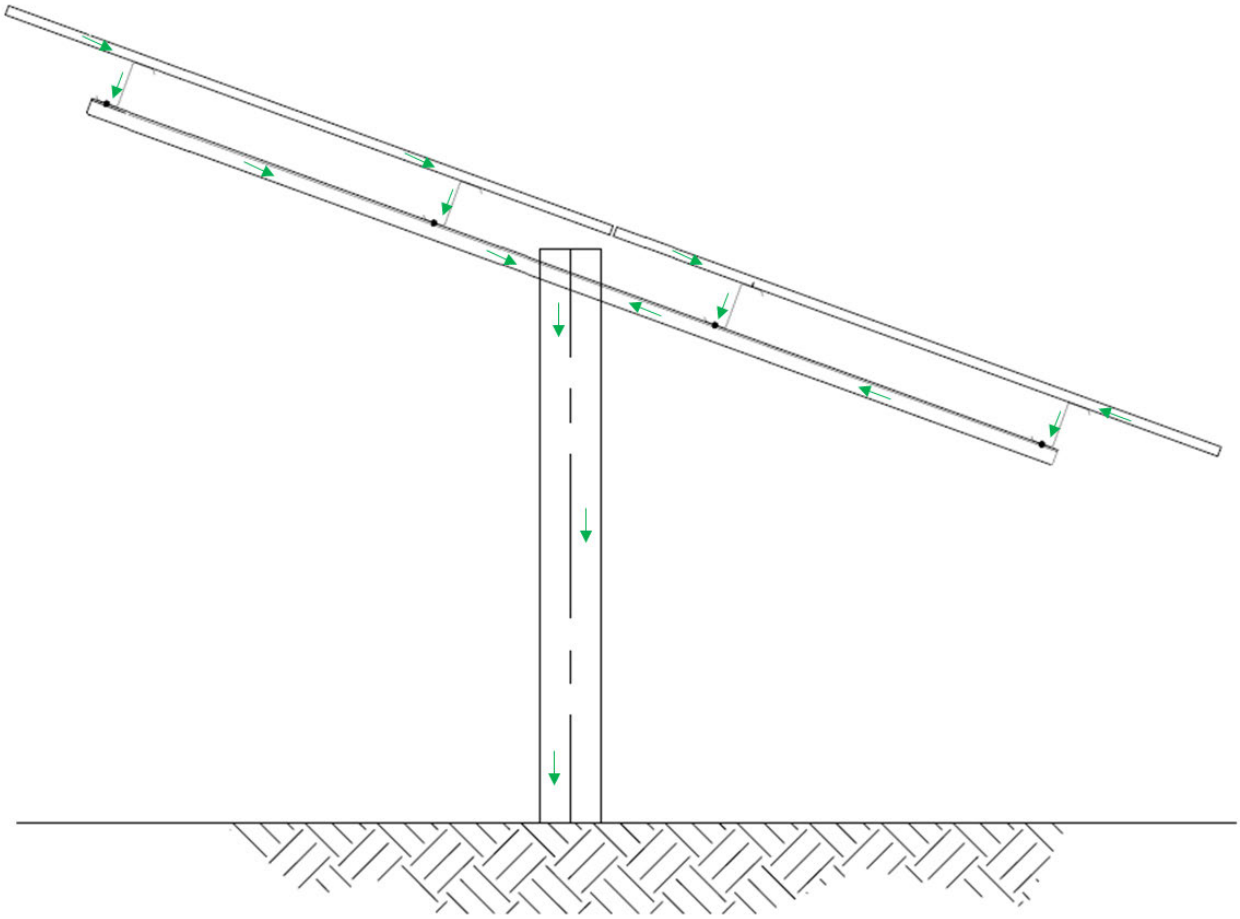
BONDING PATH

OMCO Solar's OMCO Choice™ Racking System may be used to ground and/or mount a PV Module complying with UL 1703 only when the specific Module has been evaluated for grounding and/or mounting in compliance with the included instructions.

It is the Owner's responsibility to ensure that the OMCO Choice™ Racking System installation complies with NFPA 70 Article 250.

Table 1 illustrates the grounding path.

Table 1



GROUNDING & BONDING REQUIREMENTS

Many installations contain more than one OMCO Choice™ Racking System table assemblies. Such cases call for electrically bonding each of the different table assemblies. Since individual table assemblies are fully bonded units, it is only necessary to connect individual table assemblies together from one single point to another single point. Information for this can be found on page 14 of this manual. Take care to prevent copper wires from directly contacting aluminum surfaces as this will cause corrosion.

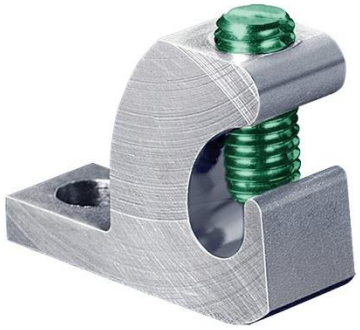
The Owner of OMCO Solar's electrically bonded OMCO Choice™ Racking System must provide components necessary for the final connections to grounding electrode system. Each connected table assembly must be grounded. Installation must comply with all applicable NEC/CSA sections including but not limited to; NEC 250 (Grounding and Bonding), NEC 690 (Solar Photovoltaic Systems), CSA 22.1 (Safety Standard for Electrical Installations), and all other applicable state, and local electrical code requirements.

Final grounding details to be determined by a licensed PE for site specific plans and drawings to specify grounding method and components.

BONDING & GROUNDING RECOMMENDED COMPONENTS

For bonding and grounding connections to the OMCO Choice™ Racking System, the following components are recommended:

- Ilsco GBL-4DBT-14



- Burndy BGBS



- Amphenol HelioLug



For bonding connections between table assemblies without mechanical connections, the following bonding jumper is recommended:

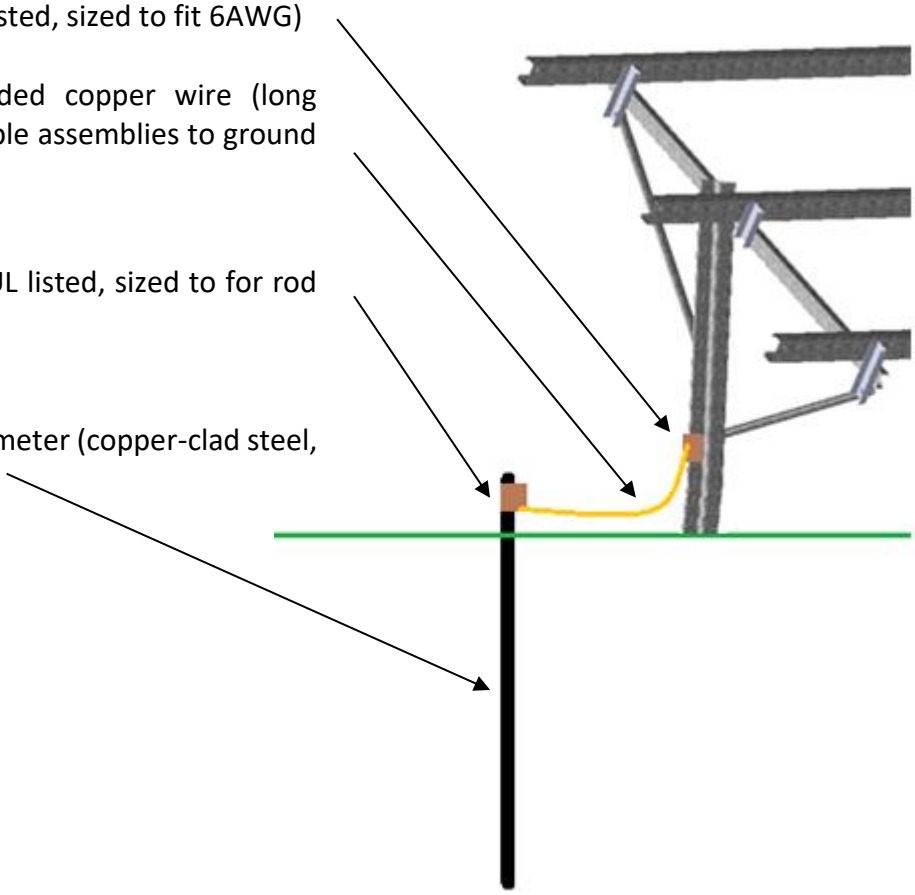
- Wiley Bonding Jumper (length and gauge determined by electrician)

All connections require a hole drilled in the structure to accommodate the clamp or strap. The hole should be sized for a 6mm or ¼" bolt. Torque all connections to 9 ft-lbs. Hole must be deburred after drilling.

GROUNDING FOR JOBSITE WITHOUT DRIVEN POSTS

Jobsites with Posts driven 10 feet into the ground do not require additional grounding measures (NEC 250.52). For table assemblies on jobsites without suitably driven posts, an alternate means of grounding the OMCO Choice™ Racking System is needed. One recommended method for grounding the OMCO Choice™ Racking System is as follows:

- Copper ground lug (UL listed, sized to fit 6AWG)
- 6AWG unjacketed braided copper wire (long enough to span from table assemblies to ground rod)
- Copper ground clamp (UL listed, sized to for rod and wire)
- 10’ ground rod, 5/8” diameter (copper-clad steel, UL 467 approved)



Schedule 5.1 - Combiner Box Specification Sheet

[Attached]

DC Combiners



Terrasmart Combiners are used for DC aggregation before the input of an inverter or charge controller. They provide a convenient location for O&M and disconnecting means. Combiners are highly configurable to fit any application.

Product features

- Listed to UL-1741
- Up to 36 input circuits
- Rated for 1000 or 1500 VDC
- 275, 320, 400, and 600 Amp load break disconnects
- 75/90C Al/Cu output terminals
- NEMA-3R, 4 & 4X enclosures
- Rated for continuous duty

Available options

- Mechanical lugs
- Provisions for compression lugs
- Isolating / grounded / floating configurations
- Touch safe protective cover
- Custom layouts
- Pre-terminated input conductors
- 10kA SCCR and greater
- Battery and energy storage
- Transient surge suppression
- Breather and drain vents
- Pad-lockable enclosures
- Lockout / tagout provision



Floating Disconnect Combiner, 1500VDC, 275A disconnect, 15 input circuits, transient surge protection, NEMA-4X fiberglass enclosure

Specifications

Voltage (Vdc)	1000 / 1500
Disconnect Ampacity	None / 275 / 320 / 400 / 600
Number of Input Circuits	1 to 36
Input Conductor Size (AWG)	#14 - 8 / #12-4
Fuse Size (Amps)	4 to 32 / 35 to 65
Number of Output Conductors Per Polarity	1 or 2
Output Conductor Size Range (MCM)	#6-350 / #2-600 / 300-800
Enclosure Dimensions (Inches)*	24x24x8 / 30x24x8 / 30x30x8
Enclosure NEMA Ratings	3R / 4 / 4X

*Other options available upon request. Please note dimensions and weight may vary for any custom solutions. Contact us for details.

Schedule 5.1 – Inverter Specification Sheet
[Attached]

SG4400UD-MV-US

MV Grid-connected PV Inverter for 1500Vdc System



HIGH YIELD

- Advanced three-level technology
- Full power operation at 40 ℃ (104 ℉)
- Effective cooling, wide operation temperature

EASY O&M

- Integrated current, voltage and MV parameters monitoring function for online analysis and trouble shooting
- Modular design, easy for maintenance

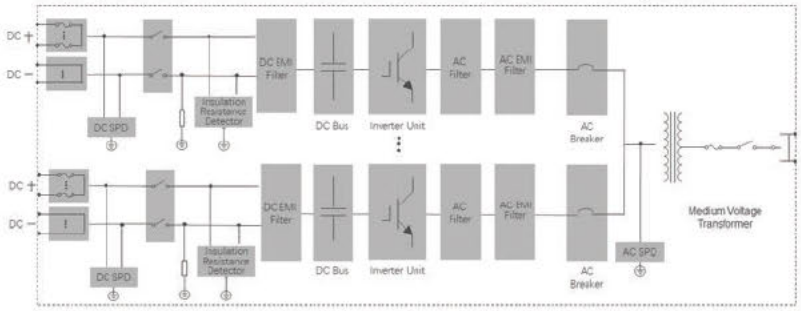
SAVED INVESTMENT

- Low transportation and installation cost due to 20-foot container size design
- DC 1500V system, low system cost
- Q at night

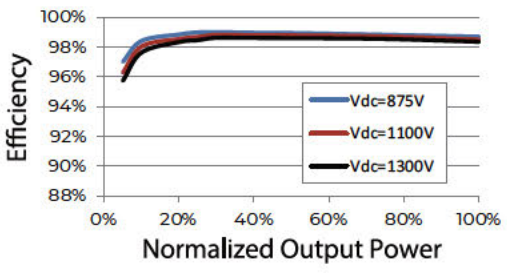
GRID SUPPORT

- Compliance with standards:UL 1741,UL 1741 SA/SB, IEEE 1547, Rule 21 and NEC code
- Low / High voltage ride through (L/HVRT), L/HFRT, soft start / stop
- Active & reactive power control and power ramp rate control

CIRCUIT DIAGRAM



EFFICIENCY CURVE



SUNGROW
Clean power for all

Type designation	SG4400UD-MV-US
Input (DC)	
Max. PV input voltage	1500 V
Min. PV input voltage / Start-up input voltage	915 V / 955 V
Available DC fuse sizes	250 A – 630 A
MPP voltage range	915 V – 1500 V
Full power MPP voltage range @ 40 ℃ [1]	915 V – 1337 V
No. of independent MPP inputs	4
No. of DC inputs	28 inputs negative grounding (optional: 24 inputs floating)
Max. PV input current	4 * 1226 A
Max. DC short-circuit current	4 * 3528 A
PV array configuration	Negative grounding or floating
Output (AC)	
AC output power	4400 kVA @ 40 ℃ (104 °F) (Optional: 4400 kVA @ 45 ℃(113 °F))
Max. AC output current	73 A
Nominal grid frequency / Grid frequency range	60 Hz / 57 Hz – 63 Hz
THD	< 3 % (at nominal power)
Power factor at nominal power / Ajustable power factor	> 0.99 / 0.8 leading – 0.8 lagging
Nominal AC voltage	34.5 kV
Efficiency	
Max. inverter unit efficiency	98.9 %
CEC inverter unit efficiency	98.5 %
Max. efficiency (including transformer)	98.2 %
CEC efficiency (including transformer)	97.5 %
Protection	
DC protection	DC load switch + fuse
AC protection	MV load switch + fuse
Surge protection	DC Type II / AC Type II
Grid monitoring / Ground fault monitoring	Yes / Yes
Insulation monitoring	Yes
Overheat protection	Yes
General data	
Dimensions (W * H * D)	6058 mm * 2896 mm * 2438 mm 238.5'' * 114.0'' * 96.0''
Weight	≤ 36376 lbs
Transformer vector	Dy1 (Optional: Dy11, Yny0, YNd1)
Degree of protection	NEMA 4X (Electronic enclosure) / NEMA 3R (Others)
Auxiliary power supply	5 kVA, 120 Vac ; Optional : 35 kVA 480 Vac + 5 kVA 120 Vac
Operating ambient temperature range [2]	-35 ℃ – 60 ℃ / optional: -40 ℃ – 60 ℃ -31 °F – 140 °F / optional: -40 °F – 140 °F
Allowable relative humidity range	0 % - 100 %
Cooling method	Forced air cooling + KNAN (Optional: ONAN)
Max. Operating altitude	1000 m (Standard) / > 1000 m (Customized) (3280.8 ft (Standard) / > 3280.8 ft (Customized))
Display	LED Indicators , Ethernet + WebHMI
Night reactive power function	Yes
DC-Coupled storage interface	Optional
Charging power from the grid	Optional
Communication	Standard: RS485, Ethernet
Compliance	UL1741, UL62109-1, CSA C22.2 No.107.1-16, IEEE1547-2018, IEEE1547.1-2020, UL1741 SA/SB, California Rule21, HECO SRD V2.0, NEC 2023,PRC-024

1) Full power MPP range is temperature dependent, check the characteristic curve of the inverter for more information.
2) The ambient temperature is determined as the average temperature obtained from at least four evenly distributed temperature monitoring points located at a distance of 1 meter from the equipment, at a height halfway up the machine. The temperature sensors must be shielded from airflow, thermal radiation, and rapid temperature fluctuations to prevent display inaccuracies.

Schedule 5.1

MPT Specification Sheet

JSHP Specification Sheet

[Attached]

Transformer SPEC sheet

General Site Data	
Owner	SunEnergy1, LLC
Date / Revision	July 15, 2025 (Rev A)
Project Name	Dixon Solar (AC1-188 and AF2-048)
Project Rating	140MW PV Generation
Nearest City or Town	Jackson, OH 38.9800000, -82.5100000
County	Jackson County, OH
Project Elevation	<1,000 ft ASL.
Maximum Monthly Ambient Temperature	30°C (Vendor to verify based on design)
Design Wind Speed	90 MPH (Per ASCE 7-10/7-16)
	Exposure Category C
	(Design for wind in all directions)
Finish Color	ANSI No.70 Preferred
Seismic	Low (IEEE-693)
Contamination Level	Moderate, IEEE Class II
Power Transformer Electrical Specifications	
Quantity	One (1) Transformer
Voltage rating	138 / 34.5 kV
MVA rating	93/124/156 MVA, ONAN/ONAF/ONAF @ 65°C
Type	Three (3) Windings
Winding Configuration	Wye - Wye - Delta Tertiary
Vector Group	Ynyn0 + d1
Phase arrangement	Three Phase
3 Phase Frequency	60 Hz
Impedance	H-X impedance shall not exceed 9.0%, (+/- 7.5%) @ 85°C, ONAN base and nominal voltage
Operation	Solar Generation Grid Step-up Transformer
	Designed for load flow in either direction (generation or plant supply)
Short Circuit Withstand	
	Assume 40kA grid connection minimum for the
	Assume the transformer impedance will be used to calculate the short circuit currents
Windings	All windings shall be copper power class circular core and coil construction.
Standards	The transformer shall be manufactured to and tested in accordance with the latest applicable
Oil Preservation	The unit shall be supplied with a bladder air cell
Cooling Fans	2-stage cooling
HV Winding:	
Rating	138kV Nominal (+/- 5%)
Connection	Wye-grounded

Voltage Tap Changer	33 position, on load tap changer (± 10% in 0.625% steps). Taps shall be rated for full capacity operation. Tap "L16" shall be highest
Purpose	Tap changer shall be used to regulate the MV bus. Selectable automatic or manual control,
BIL (Winding)	550 kV
Phase Bushings (H1, H2, H3)	Top cover mounted
Rated Voltage	~80kV L-G (Minimum)
Rated Current	800A Minimum
BIL	650kV Minimum
Creep	Moderate, IEEE Class II
Bushing CTs	
Position	CT Type and Rating:
Outboard	None (not used on previous projects)
Middle	2000:5 MRCT - C800; RF 2.0
Inboard	800:5 MRCT - 0.3B1.8; RF 2.0
Arrestors	96kV MCOV
	Station class surge Arrestors rated per ANSI/IEEE C62.11 latest revision (with tank
HV Winding Neutral:	
Winding BIL	Manufacturer to determine
Neutral Bushing (H0)	Top cover mounted
Rated Current	1200A
Neutral Bushing CT	1200:5 MRCT C400; RF 2.0 (Quantity 1)
Connection	NEMA Pad Connection Solidly Grounded Wye
MV Winding:	
Rating	34.5kV Nominal (L-L) 38kV Max Continous Operating Voltage (+/-
Connection	NEMA Pad Connection
Taps	None , OLTC on HV windings
BIL	200 kV
Phase Bushings (X1, X2, X3)	Top cover mounted
Rated Voltage	22kV L-G
Rated Current	3000A
BIL	200kV
Creep	Moderate, IEEE Class II
Bushing Current Transformers	
Position	CT Type and Rating:
Outboard	None (not used on previous projects)
Middle	3000:5 MRCT - C800; RF 2.0
Inboard	3000:5 SRCT - 0.3B1.8; RF 2.0 (for metering and harmonic monitoring)
Arrestors	24.4kV MCOV
	Station class surge Arrestors rated per ANSI/IEEE C62.11 latest revision (with tank

MV Neutral Winding	
Winding BIL	Manufacturer to determine
Neutral Bushings (X0)	Top cover mounted
Rated Voltage	22 kV L-G
Rated Current	1200A
BIL	200kV
Bushing Current Transformer(s)	1200:5 MRCT C400; RF 2.0 (Quantity 1)
Connection	NEMA Pad Connection Solidly Grounded Wye to Ground Grid - or - Low Impedance Grounded Wye (<1.0 Ohms)
Arrestor	None
Tertiary Winding:	
Rating	13.8 kV Nominal (used for stabilization winding
Connection	Delta, Buried
Taps	None
BIL	110kV
Bushings	Not Required
Tertiary CT	Provide (1) CT in the Y winding inside the delta
Position:	Tertiary Delta
Current Transformer(s)	Manufacturer to determine size for monitoring
Accessories	
Equipment Type	
Oil Level Gauge OLTC Conservator	Qualitrol 042 series
Oil Level Gauge Main Conservator	Qualitrol 042 series
Breather for Conservator	Reinhausen MTraB with test button & insect
Gas Accumulator	Buchholz
Pressure Relief Device Main Tank	Qualitrol XPRD series
ETM and Fan Control (3 sensors: main tank, ambient and OLTC)	Weschler Advantage or Schweitzer SEL-2414
Backup Oil Thermometer	Qualitrol 151-103-01
Hydrogen DG Monitor	None
Annunciator	Schweitzer SEL-2533
OLTC Controller	Schweitzer SEL-2414
Backup OLTC Controller	Manufacturer to recommend backup controller (SEL or Beckwith).
Alternatives to the specific providers listed above are acceptable, provided the overall transformer performance meets the intended purpose, needs of the location, and life-cycle of the overall unit. A lower priced accessory is generally preferred assuming equivalent	
Auxillary Power Source	
Supply Voltage	AC supply 120/240 single phase
	DC supply 125V
Losses	
Total ownership cost ("TOC") will be used as part of the bid evaluations.	

TOC = Initial Cost of Transformer + Cost of the No-load Losses + Cost of the Load Losses	
Load Losses = Unit Losses at Full Nameplate + Aux Losses at ONAF2	
Cost of No-load Losses = A x (No-load Losses)	
Cost of Load Losses = B x (Load Losses)	

Schedule 5.1

Control House (Typical)

Not Available – In Design – to be provided when available – Q3 2026.

Schedule 5.3

Prevailing Wage and Apprenticeship Requirements

[Attached]

Schedule 5.3

Prevailing Wage and Apprenticeship Requirements

PWA Definitions:

"**Additional Classifications and Rates**" shall have the meaning set forth in Treasury Regulations Section 1.45-7(b)(3).

"**Applicable Contractor Party**" means the Contractor, any Subcontractor or any of the Contractor's or any Subcontractor's respective Affiliates that performs any PWA Covered Work.

"**Applicable Percentage**" means 15%.

"**Apprenticeship Requirements**" shall mean the requirements set forth in Sections 45(b)(8) and 48E(d)(4) of the Code, Treasury Regulations Section 1.45-8, and the requirements set forth in Section 1.1.5.

"**Code**" means the Internal Revenue Code of 1986, as amended.

"**IRS**" means the U.S. Internal Revenue Service or any successor agency.

"**Labor Hours**" means the total number of hours devoted to the performance of PWA Covered Work by any individual (regardless of whether the individual would be characterized as an employee or independent contractor for other federal tax purposes).

"**Laborers and/or Mechanics**" means the individuals employed by any Applicable Contractor Party (regardless of whether the individual would be characterized as an employee or independent contractor for other federal tax purposes) whose duties are manual or physical in nature, including individuals who use tools or who are performing the work of a trade, apprentices, trainees, helpers, and certain forepersons, but excluding individuals whose duties are primarily administrative, executive, or clerical. This definition is intended to comply with the meaning set forth in Treasury Regulations Section 1.45-7(d)(8) applicable to the PWA Requirements and shall be construed and applied consistently therewith.

"**Prevailing Wage Requirements**" shall mean the requirements set forth in Sections 45(b)(7), 48(a)(10), and 48E(d)(3) of the Code, as applicable, Treasury Regulations Section 1.45-7, and the requirements set forth in Section 1.1.4.

"**Prevailing Wages**" means wages at rates not less than the prevailing rates for PWA Covered Work set forth in the applicable wage determination issued by the Secretary of Labor pursuant to 40 U.S.C. 3142, 29 C.F.R. part 1, and other implementing guidance for the specified type of construction in the geographic area (as defined in Treasury Regulations Section 1.45-7(d)(7)) in which the applicable PWA Eligible Site is located, determined as of the Effective Date and to the extent applicable, the date on which this Agreement is modified (i) to include additional substantial PWA Covered Work or (ii) pursuant to an option to extend the term of this Agreement (within the meaning of Treasury Regulations Section 1.45-7(b)(5)).

"PWA Benefit" means the increased amount of the federal income tax credit provided under Sections 45, 45Y, 48, or 48E of the Code, as applicable, which, upon the satisfaction of the PWA

Requirements, increases such tax credit to an amount equal to five times (5x) the amount that would otherwise be available (without regard to any other increases, adders or bonuses).

"**PWA Compliance Consultant**" shall have the meaning set forth in Section 1.1.7.

"**PWA Covered Work**" means any Work involving construction, alteration or repair (as defined in Treasury Regulations Section 1.45-7(d)(3) and contemplated by 29 C.F.R. part 5.2) that is performed by Laborers and/or Mechanics at any PWA Eligible Site, including, without limitation: (i) the construction or development of the Project; (ii) altering, remodelling, or installation on any such PWA Eligible Site of items fabricated offsite; (iii) painting and decorating; (iv) manufacturing or furnishing of materials, articles, supplies or equipment by Laborers and/or Mechanics; (v) certain transportation activities; and (vi) in limited circumstances, certain demolition and/or removal activities; provided that, PWA Covered Work shall not include Work that is ordinary and regular in nature and that is designed to maintain and preserve existing functionalities of the Project after it is "placed in service" for U.S. federal income tax purposes (including regular inspections, regular cleaning and janitorial work, regular replacement of materials with limited lifespans, and the regular calibration of any equipment); provided, further notwithstanding the foregoing, PWA Covered Work shall also include any Work that improves the Project, adapts it for a different use, or restores functionality as a result of inoperability. For purposes of satisfying the Apprenticeship Requirements, PWA Covered Work means only any Work involving construction Work occurring prior to the date the Project is "placed in service" for U.S. federal income tax purposes. This definition is intended to comply with and conform to Treasury Regulations Sections 1.45-7(d)(3) and 1.45-8(g)(1) and shall be interpreted consistently therewith.

"**PWA Eligible Site**" means (i) the Site and (ii) any other location (A) where a significant portion of the construction, alteration or repair work (as defined in Treasury Regulations Section 1.45-7(d)(3) and contemplated by 29 C.F.R. part 5.2) occurs with respect to the Project and any Qualified Facility of the Project or (B) which is established specifically for or dedicated exclusively for a specific period of time for such work, in each case, within the meaning of Treasury Regulations Section 1.45-7(d)(7).

"**PWA Indemnity**" shall have the meaning set forth in Section 1.1.6.

"**PWA Requirements**" means collectively, the Prevailing Wage Requirements, Apprenticeship Requirements and the provisions set forth in Section 1.1.

"**Qualified Apprentice**" means an individual who is employed (regardless of whether the individual would be characterized as an employee or independent contractor for other federal tax purposes) by the Contractor or by any Applicable Contractor Party and who is participating in a Registered Apprenticeship Program.

"**Qualified Facility**" shall have the meaning set forth in Section 48E(b)(3) of the Code and Treasury Regulations Section 1.48E-2(b).

"**Registered Apprenticeship Program**" means, in accordance with Treasury Regulations Section 1.45-8(g)(9), an apprenticeship program that has been registered by the U.S. Department of Labor's Office of Apprenticeship or a recognized State apprenticeship agency (within the meaning of Treasury Regulations Section 1.45-8(g)(10)) pursuant to the National Apprenticeship Act and its implementing regulations and that meets the standards of 29 C.F.R. parts 29 and 30.

"**Supplemental Wage Determination**" shall have the meaning set forth in Treasury Regulations Section 1.45-7(b)(3).

"**Treasury Regulations**" means the regulations, including proposed and temporary regulations, promulgated under the Code by the U.S. Department of the Treasury.

PWA Provisions:

1.1 Prevailing Wage and Apprenticeship Matters. Notwithstanding anything to the contrary in this Agreement:

1.1.1 Acknowledgements and Basic Responsibility. The Contractor acknowledges that Owner intends to qualify for, secure and claim the PWA Benefit. In connection therewith, the Contractor and Owner agree that (i) the Contract Price includes all costs and expenses incurred in connection with or associated with satisfying the PWA Requirements; and (ii) the Contract Price is (and/or will be, as applicable) based on the assumptions set forth in Schedule 5.3-1 (as revised by Owner in accordance with Section 1.1.2 below) with respect to the locality, construction type, applicable labor classifications and Work to be performed by such classifications, Prevailing Wage and fringe benefit rates, apprentice wage rates, and apprentice-to-journeyworker ratio applicable to the Project.

1.1.2 PWA Assumptions. The Contractor agrees to prepare and deliver the form attached hereto as Schedule 5.3-1 with respect to each Qualified Facility of the Project (as applicable) to Owner reasonably in advance of the Effective Date such that Owner may review and provide comments to such Schedule 5.3-1 but in no event later than ten (10) days prior to the Effective Date unless such deadline is waived by the Owner, and after the Effective Date but no later than sixty (60) days prior to the commencement of any PWA Covered Work, the Contractor shall provide an update to each Schedule 5.3-1 with such update including any additions or changes. In connection with the preparation of Schedule 5.3-1 (and otherwise in its performance of its obligations under this Section 1.1), the Contractor shall undertake its best efforts to determine which Work is PWA Covered Work and the corresponding Prevailing Wages associated with such PWA Covered Work, which shall, in any event, apply as of the Effective Date, and which Work (if any) is not PWA Covered Work. The Contractor shall notify Owner in writing of any uncertainty regarding whether particular Work is PWA Covered Work and in such event (i) Owner shall determine, in its sole discretion, whether such Work is PWA Covered Work and (ii) if Owner determines that such Work is PWA Covered Work, then the Contractor shall (and shall cause each Applicable Contractor Party to) apply the applicable Prevailing Wage to such Work; provided, however, if such Work does not have an applicable Prevailing Wage available at www.sam.gov, the Contractor shall follow the procedures set forth in Section 1.1.3 with respect to Supplemental Wage Determinations and Additional Classifications and Wage Rates. Further, in connection with the preparation of Schedule 5.3-1 with respect to each Qualified Facility of the Project (and otherwise in its performance of its obligations under this Section 1.1), the Contractor shall notify Owner in writing of any uncertainty of the Contractor or any Applicable Contractor Party regarding whether any Work contemplates PWA Covered Work on more than one (1) Qualified Facility of the Project and in such event, (x) Owner shall determine, in its sole discretion, whether such Work contemplates PWA Covered Work on more than one (1) Qualified Facility of the Project and (y) if Owner determines such Work contemplates PWA Covered Work on more than one (1) Qualified Facility of the Project, then the Contractor shall revise (and/or furnish additional forms of) Schedule 5.3-1 to reflect the estimated PWA Covered Work on each applicable Qualified Facility of the Project. Further, without limiting the generality of the foregoing, if Schedule 5.3-1 is delivered to Owner after the date that is ten (10) days prior to the Effective Date, the Contractor will accept any reasonable changes made by Owner or otherwise contemplated by this Section 1.1.2 to Schedule 5.3-1 (understanding that changes to preserve the PWA Benefit are reasonable) and the Contractor agrees that it shall not be entitled to an increase in the Contract Price on account of such revised Schedule 5.3-1 except as provided in Section 1.1.4.

1.1.3 Supplemental Wage Determination and Additional Classification and Rate Requests. The Parties understand that if not all Work performed by any Applicable Contractor Party is listed under existing general wage determinations available at www.sam.gov, the Contractor shall or shall make each Applicable Contractor Party (i) submit a request to the U.S. Department of Labor's Wage and Hour Division for a Supplemental Wage Determination or Additional Classification and Rate, as applicable, in the manner set forth in Treasury Regulations Section 1.45-7(b)(3)(ii)(A)-(D), and (ii) upon notification from the U.S. Department of Labor's Wage and Hour Division regarding such requests, apply such Supplemental Wage Determination or Additional Classification and Rate, as applicable, retroactively to the Effective Date within 180 calendar days from the date such determinations are issued by the Wage and Hour Division, provided that Contractor or the Applicable Contractor Party shall make any corresponding corrective payments to Laborers and/or Mechanics (pursuant to Treasury Regulations Section 1.45-7(c)(1)) as provided in Section 1.1.6.

1.1.4 Prevailing Wage Requirements. The Contractor shall, solely in connection with any Laborers and/or Mechanics employed by it and any Applicable Contractor Party in any PWA Covered Work, pay Prevailing Wages and cause each Applicable Contractor Party to pay Prevailing Wages to their respective Laborers and/or Mechanics. The Contractor shall be entitled to claim a Change Order in accordance with Section 14.3 of the Agreement, to the extent a Supplemental Wage Determination or Additional Classification and Rate increases Prevailing Wages, and if Owner agrees with such Change Order, the Contractor shall amend Schedule 5.3-1 accordingly. To the extent it is determined that different Prevailing Wages must be paid to the Contractor's or any Applicable Contractor Party's Laborers and/or Mechanics with respect to periods prior to the effective date of such different Prevailing Wages (whether as a result of any Supplemental Wage Determination, Additional Classification and Rate, noncompliance or otherwise), the Contractor shall ensure and shall require each such Applicable Contractor Party to ensure that such different Prevailing Wages are paid to the appropriate Laborers and/or Mechanics no later than ten (10) days after the effective date of such different wage determination, along with interest on such amounts and penalties (determined pursuant to Treasury Regulations Section 1.45-7(c)(1)), to the extent required under Applicable Law to satisfy the Prevailing Wage Requirements.

1.1.5 Apprenticeship Requirements. The Contractor shall, with respect to PWA Covered Work at each Qualified Facility of the Project (as applicable), ensure that (i) not less than the Applicable Percentage of the total Labor Hours of PWA Covered Work (including such PWA Covered Work performed by it or any other Applicable Contractor Party) is performed by Qualified Apprentices; provided, however, this requirement shall be subject to any applicable requirements for apprentice-to-journeyworker ratios of the U.S. Department of Labor and the applicable State apprenticeship agency or Registered Apprenticeship Program; and (ii) if the Contractor or any other Applicable Contractor Party employs four (4) or more individuals to perform such PWA Covered Work at any time during the course of construction, Contractor or each other Applicable Contractor Party, as applicable, shall employ at least one Qualified Apprentice to perform such PWA Covered Work. To the extent the Contractor or any other Applicable Contractor Party is required but is unable to employ one (1) or more Qualified Apprentices with respect to any Qualified Facility of the Project (as applicable), the Contractor shall (and shall cause any other Applicable Contractor Party to) satisfy the requirements of the "Good Faith Effort Exception" under Treasury Regulations Section 1.45-8(f)(1) for purposes of satisfying the Apprenticeship Requirements. Without limiting the generality of the foregoing, in connection therewith, the Contractor shall (and shall cause any other Applicable Contractor Party to) (A) timely submit valid written requests to Registered Apprenticeship Programs for Qualified Apprentices with respect to each type of PWA Covered Work expected to be performed at each Qualified Facility of the Project (as applicable), in the manner set forth in Treasury Regulations Section 1.45-8(f)(1)(i)(A), (B) in the case of requests denied or not responded to, submit additional, valid written requests to such Registered Apprenticeship Programs for Qualified Apprentices within the time prescribed by Treasury Regulations Section 1.45-8(f)(1)(i)(A)(2) (i.e., every 365-day period), and (C) furnish copies of such requests in subclauses (A) and (B) to Owner at the time

such requests are submitted (but in no event later than (x) forty-five (45) days prior to the date the applicable PWA Covered Work is expected to commence and (y) in the case of subsequent requests to the same Registered Apprenticeship Program, fourteen (14) days prior to the date the applicable PWA Covered Work is expected to commence.

1.1.6 Non-Compliance. Each Party shall immediately, but in any event within ten (10) days after gaining knowledge of the same, notify the other Party in writing if such first Party obtains knowledge of any non-compliance with the PWA Requirements, accompanied by a description of the basis for such non-compliance. In the event it is determined that any Applicable Contractor Party has failed to comply with the PWA Requirements, including after Owner has provided notice of such failure, the Contractor shall immediately (but in any event within ten (10) days of the date of such non-compliance) undertake all necessary corrections to cause compliance with the PWA Requirements (including, but not limited to, paying any amounts to (A) its personnel or any Applicable Contractor Party's personnel performing the PWA Covered Work necessary to comply with PWA Requirements and all penalties and additions as are legally required as part of such corrections pursuant to Treasury Regulations Section 1.45-7(c)(1) and Treasury Regulations Section 1.45-8(f)(2)(i) or (B) the applicable State agency under State unclaimed property law) and shall provide Owner with documentary evidence to Owner's satisfaction of such corrections. If the Contractor fails to cure such non-compliance within twenty (20) days of the date of such non-compliance, Owner may, at its sole option, take any necessary corrective action to cause compliance with the PWA Requirements (including, but not limited to, paying any amounts to (A) the Contractor's personnel or any Applicable Contractor Party's personnel performing the PWA Covered Work necessary to comply with PWA Requirements and all penalties and additions as are legally required as part of such corrections pursuant to Treasury Regulations Section 1.45- 7(c)(1) and Treasury Regulations Section 1.45-8(f)(2)(i) or (B) the applicable State agency under State unclaimed property law), and the Contractor shall immediately furnish to Owner, at Owner's request, the information required under Section 1.1.7 to enable Owner to take such corrective action. The Contractor shall indemnify and hold harmless each Owner Indemnified Party from any Losses, corrective payments, penalties and additions arising out of the Contractor's or any Applicable Contractor Party's failure to comply with the PWA Requirements (the "PWA Indemnity"); provided, however, so long as the Contractor furnishes to Owner, at Owner's request, the information required under Section 1.1.7 to enable Owner to take such corrective action, then the PWA Indemnity shall be limited to such corrective payments, penalties, additions and reasonable attorneys' and advisors' fees related thereto. For the avoidance of doubt, neither the Contractor nor any Applicable Contractor Party shall intentionally disregard the PWA Requirements (within the meaning of Treasury Regulations Sections 1.45-7(c)(3)(ii) and 1.45-8(f)(2)(ii)(B)).

1.1.7 Recordkeeping. The Contractor shall keep and maintain, and shall require each Applicable Contractor Party to keep and maintain, detailed and accurate records with respect to its and each such Applicable Contractor Party's efforts to satisfy the PWA Requirements, including, without limitation:

(i) with respect to each person employed by the Contractor or any Applicable Contractor Party as a Laborer and/or Mechanic (including as a Qualified Apprentice), records (including for each Qualified Facility of the Project, as applicable):

(a) of the name, last four digits of a social security or taxpayer identification number, telephone number, and email address of such person;
(b) of the location and type of construction of the Project;
(c) of the laborer classification of each worker on the applicable wage determination and documentation supporting the classification of such person;
(d) of the hourly rate of wages paid to such person;

(e) supporting any contribution irrevocably made on behalf of such person to a trustee or other third person pursuant to a bona fide fringe benefit program, and the rate of costs that were reasonably anticipated in providing bona fide fringe benefits to such person pursuant to an enforceable commitment to carry out a plan or program described in 40 U.S.C. Section 3141(2)(B), including records demonstrating that the enforceable commitment was provided in writing to such person;
(f) of the total number of Labor Hours worked per pay period by such person;
(g) of the total wages paid for each pay period (including identifying any deductions from wages) to such person;
(h) supporting wages paid to any such person that is a Qualified Apprentice at less than the applicable Prevailing Wage, including records reflecting the registration of such person with a Registered Apprenticeship Program and the applicable wage rates and apprentice-to-journeyworker ratios prescribed by the Registered Apprenticeship Program;
(i) of the amount and timing of any correction and penalty payments made to such person and documentation reflecting the calculation of the correction and penalty payment, including records to demonstrate eligibility for the penalty waiver in Treasury Regulations Section 1.45-7(c)(6);
(j) documenting any failures to pay Prevailing Wages and the actions taken to prevent, mitigate, or remedy the failure; and
(k) related to any complaints that any Applicable Contractor Party paid wages less than the applicable Prevailing Wages; and

(ii) with respect to each person employed by the Contractor or any Applicable Contractor Party as a Qualified Apprentice, records (including for each Qualified Facility of the Project, as applicable):

(a) of any written requests for the employment of such person from Registered Apprenticeship Programs, including any contacts with the U.S. Department of Labor's Office of Apprenticeship or a State apprenticeship agency regarding requests for apprentices from Registered Apprenticeship Programs;
(b) of any agreements entered into with the Registered Apprenticeship Program of such person with respect to PWA Covered Work;
(c) of documents reflecting the standards and requirements (within the meaning of Treasury Regulations Section 1.45-8(g)(4)) of all Registered Apprenticeship Programs from which any Applicable Contractor Party employed Qualified Apprentices;
(d) of the total number of Labor Hours worked by such person with respect to PWA Covered Work;
(e) reflecting the daily ratio of apprentices to journeyworkers;
(f) to the extent applicable, of compliance with the "Good Faith Effort Exception" under Treasury Regulations Section 1.45-8(f)(1) (including

requests for Qualified Apprentices, correspondence with Registered Apprenticeship Programs, and denial of requests);

(g) of the amount and timing of any penalty payments and documentation reflecting the calculation of the penalty payments;

(h) documenting any failures to satisfy the Apprenticeship Requirements and the actions taken to prevent, mitigate, or remedy the failure; and

(i) related to any complaints received by any Applicable Contractor Party that the Applicable Contractor Party was not satisfying the Apprenticeship Requirements.

The Contractor shall (with respect to itself and any Applicable Contractor Party) retain such detailed and accurate records (with respect to any such records regarding wages, in the form set forth in Schedule 5.3-2 or a substantially similar form generated from a payroll reporting software containing, at a minimum, the information set forth in Schedule 5.3-2 and (II) itemized wage statements and timecards to enable Owner or any relevant third-party identified by Owner to confirm the accuracy and payment of Prevailing Wages) for a period that is the later of (A) seven (7) years starting on the date the Project (or Qualified Facility of the Project, as applicable) is treated as being "placed in service" for U.S. federal income tax purposes and (B) one (1) year after the expiration of the applicable statute of limitations with respect to any U.S. federal income tax credits claimed with respect to the Project (or Qualified Facility of the Project, as applicable), and the Contractor shall require each Applicable Contractor Party to retain such detailed and accurate records (with respect to any such records regarding wages, in the form set forth in Schedule 5.3-2) for the period determined in the preceding clause (A). At the end of such period, at the option of the Contractor (I) the Contractor shall (and shall cause each other Applicable Contractor Party to) transfer such records to Owner, or (II) the Contractor shall transfer such records with respect to itself and each other Applicable Contractor Party to Owner. The Contractor shall maintain accounting procedures and practices sufficient to reflect properly all direct and indirect costs of whatever nature claimed to have been incurred or anticipated to be incurred in satisfying the PWA Requirements. The Contractor agrees to (x) submit and cause each Applicable Contractor Party to submit, on or before the fifth (5th) day of each month following the earlier of (I) the date of an LNTP, if any, or, if no LNTP has been issued, an NTP and (II) the date any PWA Covered Work commences, the documentation and information required in this Section 1.1.7 directly to the portal system of Owner or any relevant third-party identified by Owner (the "**PWA Compliance Consultant**"), which may be used by Owner in connection with its efforts to demonstrate compliance with the PWA Requirements, including with respect to the filing of any tax return; (y) upon request from Owner or the PWA Compliance Consultant, promptly (but in no event later than ten (10) days following such request) furnish any additional documentation or information relevant or necessary to validate the documentation and information required in this Section 1.1.7; and (z) reasonably cooperate with any inquiry or request by any Governmental Authority with respect to the PWA Requirements, including by the provision of records and the making available of any employees. Notwithstanding anything to the contrary in this Agreement, to the extent that the recordkeeping or reporting obligations under this Section 1.1.7 require the disclosure of personal identifiable information of any Laborers and/or Mechanics or other personnel, then the Contractor and/or the Applicable Contractor Party may take appropriate protective measures with respect to such information, including, without limitation, redacting any such information or utilizing alternative identification codes or numbers in lieu of such information; provided, if such protective measures are taken, the Contractor and/or the Applicable Contractor Party agree to provide such information directly to the IRS together with any key or index such that the redacted or alternative information can be identified as the actual information. The foregoing recordkeeping requirements are intended to comply with and conform to Treasury Regulations Section 1.45-12 and Section 6001 of the Code and the Treasury Regulations promulgated thereunder and shall be interpreted consistently therewith.

1.1.8 PWA Attestation of Compliance. No later than the fifth (5th) day of each quarter beginning after the Effective Date, the Contractor shall submit to Owner certifications attesting to its compliance with the PWA Requirements using the form in Schedule 5.3-3, executed by the Contractor and the Contractor shall also require each Applicable Contractor Party to submit certifications attesting to their compliance with the PWA Requirements using the form in Schedule 5.3-3, executed by such Applicable Contractor Party, which shall be submitted to Owner with the Contractor's quarterly certification.

1.1.9 Amendments. Owner shall be entitled to a Change Order in accordance with Section 14.2 of the Agreement reducing the Contract Price should additional guidance, regulations, or other changes in law occur that decreases the costs or otherwise mitigate the anticipated costs of compliance with the PWA Requirements.

Schedule 5.3-1 PWA Assumptions

Beginning Date of Construction: _____

PWA Eligible Sites[1] Location (City, County, State): _____

Wage Determination (WD) Number[2] (Including Modification # and Last Revised Date): _____

Construction Type (Building[3], Heavy[4], Highway[5], Residential[6]): _____

Laborers and/or Mechanics[7]							
Job Title[8]	**Hourly Rate**	**Fringe Rate**	**WD Labor Classification[9]**	**Work Performed by Labor Classification**	**WD Hourly Rate**	**Minimum Fringe Rates**	**Minimum Hourly Rate If Fringe Not Paid Separately[10]**

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1 As defined by 29 CFR § 5.2 "site of the work." Each PWA Eligible Site must have its own separate Exhibit A completed, unless such PWA Eligible Site is in the same Location and uses the same Wage Determination.

2 [**Instructions to Complete & Then Delete**: Wage Determinations should be pulled from SAM.gov. for Construction (DBA)]

3 [**Instructions to Complete & Then Delete**: Building Construction includes the construction, alteration, or repair of sheltered enclosures with walk-in access for the purpose of housing persons, machinery, equipment, or supplies and the associated installation of utilities and equipment, as well as incidental grading and paving.

4 [**Instructions to Complete & Then Delete**: Heavy projects are those projects that are not properly classified as either "building", "highway", or "residential". Heavy construction is not a homogeneous classification. Because of this catch-all nature, projects within the heavy classification may sometimes be distinguished on the basis of their particular project characteristics, and separate schedules issued. For example, separate schedules may be issued for dredging projects, water and sewer line projects, dams, major bridges, and flood control projects.

5 [**Instructions to Complete & Then Delete**: Highway Construction includes the construction, alteration, or repair of roads, streets, highways, runways, parking areas and most other paving work not incidental to building, residential, or heavy construction.]

6 [**Instructions to Complete & Then Delete**: Residential Construction includes the construction, alteration, or repair of single-family houses, townhouses, and apartment buildings of no more than four stories in height and all incidental work, such as site work, parking areas, utilities, streets, and sidewalks.

7 As defined by Treasury Regulations Section 1.45-7(d)(8).

8 [**Instructions to Complete & Then Delete:** Contractor to complete and insert their hourly rate, identifying all fringe benefits to ensure that rates satisfy the minimums listed by Owner].

9 [**Instructions to Complete & Then Delete**: Each anticipated Laborer and/or Mechanic type should be copied and pasted into its own row.

10 [**Instructions to Complete & Then Delete**: This amount should be calculated by adding the Minimum Hourly Rate and the Minimum Fringe Rate.]

If any Applicable Contractor Party has a Laborer and/or Mechanic whose job duties and job title are not listed on the Wage Determination, Contractor must notify Owner and then initiate a conformance request with the U.S. Department of Labor to add the new class of Laborer and/or Mechanic. For the avoidance of doubt, in the event of any conflict between the terms of this Exhibit A and the terms of Schedule 5.3 of the Agreement, the terms of Schedule 5.3 of the Agreement shall prevail.

Apprentices[11]					
Apprentice Job Title[12]	**Applicable Registered Apprenticeship Program[13]**	**Apprentice Hourly Rate**	**Apprentice Fringe Rate**	**WD Labor Classification[14]**	**Applicable Apprentice-to-Journeyworker Ratio[15]**

Apprentices will be permitted to work at less than the predetermined rate for the work they performed when they are employed pursuant to and individually registered in a Registered Apprenticeship Program, or if a person is employed in his or her first ninety (90) days of probationary employment as an apprentice in such a Registered Apprenticeship Program, who is not individually registered in such Registered Apprenticeship Program, but who has been certified by the Office of Apprenticeship Training, Employer and Labor Services or a State Apprenticeship Agency (where appropriate) to be eligible for probationary employment as an apprentice. The allowable ratio of apprentices to journeyworkers on the job site in any craft classification shall not be greater than the ratio permitted to the Applicable Contractor Party as to the entire work force under the registered program. Any worker listed on a payroll at an apprentice wage rate, who is not registered or otherwise employed as stated above, shall be paid not less than the applicable wage rate on the wage determination for the classification of work actually performed. In addition, any apprentice performing work on the job site in excess of the ratio permitted under the Registered Apprenticeship Program shall be paid not less than the applicable wage rate on the wage determination for the work actually performed. Where an Applicable Contractor Party is performing construction on a project in a locality other than that in which its Registered Apprenticeship Program is registered, the ratios and wage rates (expressed in percentages of the journeyworker's hourly rate) specified in the locality in which the construction is being performed shall be observed. If there is no applicable ratio for the locality in which the construction is being performed, the ratio specified in such Applicable Contractor Party's Registered Apprenticeship Program shall be observed. Every apprentice must be paid at not less than the rate specified in the Registered Apprenticeship Program for the apprentice's level of progress, expressed as a percentage of the journeyworker hourly rate specified in the applicable wage determination.

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11 As defined by Treasury Regulations Section 1.45-8(g)(8)-(9), including with reference to 29 CFR parts 29 and 30.

12 **[Instructions to Complete & Then Delete:** Contractor to complete and insert their hourly rate, identifying all fringe benefits to ensure that rates satisfy the minimums listed by Owner].

13 As defined by Treasury Regulations Section 1.45-8(g)(9)-(10), including with reference to 29 CFR parts 29 and 30.

14 **[Instructions to Complete & Then Delete**: Each anticipated Laborer and/or Mechanic type should be copied and pasted into its own row.

15 As defined by Treasury Regulations Section 1.45-8(c)(1)-(2), including with reference to the applicable Registered Apprenticeship Program. "Journeyworker" is defined by Treasury Regulations Section 1.45-8(g)(6).

Apprentices shall be paid fringe benefits in accordance with the provisions of the Registered Apprenticeship Program, and if such Registered Apprenticeship Program does not specify fringe benefits, apprentices must be paid the full amount of fringe benefits listed on the wage determination for the applicable classification. If the Administrator of the U.S. Department of Labor determines that a different practice prevails for the applicable apprentice classification, fringes shall be paid in accordance with that determination. In the event the Office of Apprenticeship Training, Employer and Labor Services, or a State Apprenticeship Agency recognized by the Office of Apprenticeship, withdraws approval of a Registered Apprenticeship Program, the Applicable Contractor Party will no longer be permitted to utilize apprentices at less than the applicable predetermined rate for the work performed until an acceptable program is approved.

Schedule 5.3-2

Wage Recordkeeping for PWA Requirements

[Attached]

U.S. Department of Labor
Wage and Hour Division

PAYROLL

For contractor's optional use; see instructions at dol.gov/agencies/whd/forms/wh347

Persons are not required to respond to the collection of information unless it displays a currently valid OMB control number.

WAGE AND HOUR DIVISION
Revised December 2008

NAME OF CONTRACTOR ☐ OR SUBCONTRACTOR ☐ | ADDRESS | OMB No. 1235-0008 Expires 09/30/2026

PAYROLL NO. | FOR WEEK ENDING | PROJECT AND LOCATION | PROJECT OR CONTRACT NO.

(1) NAME AND INDIVIDUAL IDENTIFYING NUMBER (e.g., LAST FOUR DIGITS OF SOCIAL SECURITY NUMBER) OF WORKER	(2) NO. OF WITHHOLDING EXEMPTIONS	(3) WORK CLASSIFICATION	OT. OR ST.	(4) DAY AND DATE HOURS WORKED EACH DAY	(5) TOTAL HOURS	(6) RATE OF PAY	(7) GROSS AMOUNT EARNED	(8) DEDUCTIONS FICA	WITH-HOLDING TAX			OTHER	TOTAL DEDUCTIONS	(9) NET WAGES PAID FOR WEEK
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			S											
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While completion of Form WH-347 is optional, it is mandatory for covered contractors and subcontractors performing work on Federally financed or assisted construction contracts to respond to the information collection contained in 29 C.F.R. §§ 3.3, 5.5(a). The Copeland Act (40 U.S.C. § 3145) contractors and subcontractors performing work on Federally financed or assisted construction contracts to "furnish weekly a statement with respect to the wages paid each employee during the preceding week." U.S. Department of Labor (DOL) regulations at 29 C.F.R. § 5.5(a)(3)(ii) require contractors to submit weekly a copy of all payrolls to the Federal agency contracting for or financing the construction project, accompanied by a signed "Statement of Compliance" indicating that the payrolls are correct and complete and that each laborer or mechanic has been paid not less than the proper Davis-Bacon prevailing wage rate for the work performed. DOL and federal contracting agencies receiving this information review the information to determine that employees have received legally required wages and fringe benefits.

Public Burden Statement

We estimate that is will take an average of 55 minutes to complete this collection, including time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. If you have any comments regarding these estimates or any other aspect of this collection, including suggestions for reducing this burden, send them to the Administrator, Wage and Hour Division, U.S. Department of Labor, Room S3502, 200 Constitution Avenue, N.W. Washington, D.C. 20210

(over)

Date _____

I, _____ _____
(Name of Signatory Party) (Title)

do hereby state:

(1) That I pay or supervise the payment of the persons employed by

_____ on the
(Contractor or Subcontractor)

_____; that during the payroll period commencing on the
(Building or Work)

_____ day of _____, _____, and ending the _____ day of _____, _____,

all persons employed on said project have been paid the full weekly wages earned, that no rebates have been or will be made either directly or indirectly to or on behalf of said

_____ from the full
(Contractor or Subcontractor)

weekly wages earned by any person and that no deductions have been made either directly or indirectly from the full wages earned by any person, other than permissible deductions as defined in Regulations, Part 3 (29 C.F.R. Subtitle A), issued by the Secretary of Labor under the Copeland Act, as amended (48 Stat. 948, 63 Stat. 108, 72 Stat. 967; 76 Stat. 357; 40 U.S.C. § 3145), and described below:

_____

_____

_____

_____

(2) That any payrolls otherwise under this contract required to be submitted for the above period are correct and complete; that the wage rates for laborers or mechanics contained therein are not less than the applicable wage rates contained in any wage determination incorporated into the contract; that the classifications set forth therein for each laborer or mechanic conform with the work he performed.

(3) That any apprentices employed in the above period are duly registered in a bona fide apprenticeship program registered with a State apprenticeship agency recognized by the Bureau of Apprenticeship and Training, United States Department of Labor, or if no such recognized agency exists in a State, are registered with the Bureau of Apprenticeship and Training, United States Department of Labor.

(4) That:

(a) WHERE FRINGE BENEFITS ARE PAID TO APPROVED PLANS, FUNDS, OR PROGRAMS

☐ – in addition to the basic hourly wage rates paid to each laborer or mechanic listed in the above referenced payroll, payments of fringe benefits as listed in the contract have been or will be made to appropriate programs for the benefit of such employees, except as noted in section 4(c) below.

(b) WHERE FRINGE BENEFITS ARE PAID IN CASH

☐ – Each laborer or mechanic listed in the above referenced payroll has been paid, as indicated on the payroll, an amount not less than the sum of the applicable basic hourly wage rate plus the amount of the required fringe benefits as listed in the contract, except as noted in section 4(c) below.

(c) EXCEPTIONS

EXCEPTION (CRAFT)	EXPLANATION

REMARKS:

NAME AND TITLE	SIGNATURE

THE WILLFUL FALSIFICATION OF ANY OF THE ABOVE STATEMENTS MAY SUBJECT THE CONTRACTOR OR SUBCONTRACTOR TO CIVIL OR CRIMINAL PROSECUTION. SEE SECTION 1001 OF TITLE 18 AND SECTION 3729 OF TITLE 31 OF THE UNITED STATES CODE.

Schedule 5.3-3
Certification of Compliance

This certification is being delivered pursuant to Section [1.1.8] of Schedule 5.3 of that certain EPC Agreement, dated [●], by and between [●] and [●] (the "Agreement"). Any capitalized terms used but not specifically defined herein shall have the meaning(s) set forth in the Agreement.

I, _____[*Insert Name*], _____[*Insert Title*], do hereby state under penalty of perjury under the laws of the United States of America that the following is true and correct. Further, I acknowledge that the following may be used by Purchaser in the filing of tax returns and that the willful falsification of any of the following may subject the [Contractor / Subcontractor] to civil and/or criminal penalties.

1) That I pay or supervise the payment of the persons employed by: [***Insert Name of Applicable Contractor Party***] (the "[Contractor / Subcontractor]") on the [***Insert Name of Project***], and that during the payroll periods listed below (the "Covered Period") all such persons have been paid the full weekly wages earned, that no rebates have been made or will be made either directly or indirectly to or on behalf of the [Contractor / Subcontractor] from the full weekly wages earned by any person and that no impermissible deductions have been made either directly or indirectly from the full wages earned by any person.

   Payroll Periods: ***[Insert all included payroll period dates in the particular submission period.]***

2) That any payrolls submitted for the above period(s) are correct and complete; that the wage rates for Laborers and Mechanics contained therein are not less than the applicable Prevailing Wage Rates; and that the classifications set forth therein for each Laborer and Mechanic conform with the following designations:

Company Job Title Designation	Wage Determination Job Title Designation

3) That, subject to the Good Faith Effort Exception (if applicable), any Qualified Apprentices employed in the above period(s) were duly registered in a Registered Apprenticeship Program;

4) That, subject to the Good Faith Effort Exception (if applicable), each Applicable Contractor Party who employed four (4) or more individuals to perform PWA Covered Work employed at least one Qualified Apprentice to perform such PWA Covered Work during the Covered Period;

5) That, subject to the Good Faith Effort Exception (if applicable) or any applicable apprenticeship-to-journey worker ratios, the total Labor Hours of PWA Work in the Covered Period is [●] and the amount of Labor Hours performed by Qualified Apprentices in the Covered Period is [●]; and

6) That the following statement is true with regard to fringe benefits [***check which response is applicable***]:

   ☐ Where fringe benefits are paid to approved plans, funds, or programs: in addition to the basic hourly wage rates paid to each Laborer and Mechanic listed in the above referenced payroll, payments of fringe benefits as listed in the wage determination have been or will be made to appropriate programs for the benefit of such employees except as noted here: _____

_____

_____

☐ Where fringe benefits are not paid to approved plans, funds, or programs: Each Laborer and Mechanic listed in the above referenced payroll has been paid, as indicated on the payroll, an amount not less than the sum of the applicable basic hourly wage rate plus the amount of the required fringe benefits as listed in the wage determination, except as noted here: _____

_____

_____

_____

_____ _____

Signature Date

Schedule 1.1.5 to Schedule 5.3

REQUEST FOR QUALIFIED APPRENTICES UNDER 26 C.F.R. § 1.45-8(f)(1)(i)(A)

SENT VIA [REGISTERED MAIL/EMAIL]

Date :_____

[ADDRESS]

[ADDRESS]

[CITY, STATE, ZIP]

Attn: [_____]

REQUESTOR INFORMATION	
Name	
Title	
Company	
Address	
Phone	
Email	
Prospective Employer(s)	

REQUEST DESCRIPTION	
Proposed Date(s) of Employment	
Occupation(s) of Apprentices	
Number of Apprentices	
Location of Work to be Performed	
Estimated Number of Labor Hours	

TERMS

Employer(s) requests apprentices in the occupation(s) for which they are being trained. The requestor believes that this request satisfies the requirements and standards of the apprenticeship program receiving this request; if further information is needed please contact requestor. This request is made with an intent to employ apprentices in the occupation for which they are being trained and in accordance with the requirements and standards of the apprenticeship program receiving this request and to employ apprentices consistent with the expected number of hours and dates of employment specified in this request.

Furthermore, the requestor believes the apprenticeship program receiving this request (1) has a geographic area of operation that includes the location of the subject project; (2) trains apprentices in the occupation(s) needed to perform construction, alteration, or repair with respect to the subject project; and (3) has a usual and customary business practice of entering into agreements with employers for the placement of apprentices in the occupation for which they are training, consistent with the standards and requirements set forth in 29 CFR parts 29 and 30, and any subsequent guidance issued by the Department of Labor. If any of these factors are inapplicable to the apprenticeship program receiving this request, then please notify the requestor accordingly.

Please respond to this request timely. Failure to respond to this request within five business days after the date on which it was received will be deemed a denial.

Schedule 5.4

Construction Plans

The site for construction of the project is identified as **Dixon Solar, LLC** above. Contractor will prepare all System engineering and installation drawings in accordance with the Agreement.

The drawings will include a title page, a general notes, symbols and abbreviations page outlining the scope of work, a staging and access plan as well as the requirements identified in Schedule 1C - Scope of Work Section 5 sub part 5.4.

- 30% Design Documents satisfactory to the Independent Engineer are due by May 27, 2026.
- 60% Design Documents satisfactory to the Independent Engineer are due by July 28, 2026.
- 90% Design Documents satisfactory to the Independent Engineer are due by September 24, 2026.
- Draft studies satisfactory to the Independent Engineer are due by the dates listed in the timeline table below. The final version of the studies noted in the table below, satisfactory to the Independent Engineer, shall be due on or before August 11, 2026.

Required Report / Study	**Description of Deliverable**	**Anticipated Delivery Date**
TOV Study	Substation Scope; The primary objective of a Temporary Overvoltage (TOV) study is to evaluate the performance and capability of surge arresters in a power system under conditions where temporary overvoltage's occur. This study is used in coordination with the insulation coordination study to determine appropriate sizing of arrestor devices.	July 28, 2026.
Short Circuit Study	Facility Level Study; The objective of this study is to determine the fault currents at the high, medium, and low	July 28, 2026.

	voltage busbars throughout the facility. Fault current information is then used to determine conductor and concentric neutral sizes, as well as MV ground conductor sizing	
Arc Flash Study/Report	Facility Level Study; The objective of this report is to determine the arc flash hazards for the AC and DC collection systems at the Solar Facility, as well as the arc flash hazards at the Substation AC system	July 28, 2026.
Harmonics Study (if required by IA)	Facility Level Study (Description is from the Facility Interconnection Requirements Posted by Dominion and reference din the IA); Harmonics: Voltage or current harmonics may be calculated in terms of total harmonic distortion (THD) or total demand distortion (TDD) as outlined in IEEE Standard 519 10.New interconnections that are solely or include inverter-based resources (IBR) must also comply with IEEE 2800. The current distortion levels must remain within the limits in Section 8.2.1 of IEEE Std 2800.	Study is required to understand the Facility Level Total Harmonic Distortion being injected.
Coordination Study of Breakers and Relays	Substation Scope; The objective of this study is to document the relay coordination and protection settings for the Generating Facility. The report ensures	July 28, 2026.

	that the facility complies with NERC standards and Dominion requirements for protection and interconnection to the transmission grid	
Power and Energy Losses	Facility Level Study; The objective of this report is to determine the power and energy losses of the plant and the breakout of losses between the collection system (inverter transformers and MV cables), main transformers, and overhead line. Power loss will be determined on the basis of instantaneous loss in MW and expressed as percentage of full generation. Energy loss will be determined based upon power losses at varying levels of generation applied against the annual site production data and will be expressed as a percentage of annual production.	July 28, 2026.
Load Flow Study	Facility Level Study; The objective of this report is to verify the active power generation of the facility and to ensure that the plant can meet the interconnection reactive power requirements at the project substation HV busbar, at full generation, at the POI, per the Generation Interconnection Agreement and IA Referenced Technical Requirements without	July 28, 2026.

	adversely impacting generator or collection system bus voltages.	
Grounding Study	Facility Level Study; The objective of this study is to assess the facility grounding design for touch and step potential hazards which may arise due to ground faults on the medium voltage electrical system and on fence. The grounding design approach is based on IEEE 2778-2020 and IEEE Std. 80. Touch and step potential assessments are made using the methods of IEEE Std. 80, "IEEE Guide for Safety in AC Substation Grounding"	July 28, 2026.
Insulation Coordination study	Facility Level Study; The objective of this report is to confirm that the surge arresters and insulating devices used on the 34.5 kV side of the MPTs and collection system equipment are rated properly to coordinate with transformer insulation levels and provide protective margins consistent with the requirements of IEEE C62.22 and IEEE 1299/C62.22.1	July 28, 2026.
Cable Ampacity Study for AC & DC conductors	Facility Level Study; The objective of this report is to provide the design basis and calculations for determining the	July 28, 2026.

	ampacity ratings of the MVac and DC conductors from the PV module strings to the collection substation.	
Hydrology Report	Facility Level Study; The purpose of this study is to analyze and review the existing and proposed hydrology of the (Project or Site) and any impacts that the hydrology may play in the design of the proposed solar array. This report is prepared to be used by the Project Team in the design and layout of the Project and **is not intended for submittal to reviewing agencies for stormwater permitting. This study should include inundation maps including water depths and velocities modeled across the site based on a 100 year 24 hour event.** The site shall be designed to withstand such event.	July 28, 2026.

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Schedule 5.5

HSSE Requirements

[Attached]

Brookfield

Schedule 5.5

CONTRACTOR'S HEALTH, SAFETY, SECURITY, AND ENVIRONMENTAL OBLIGATIONS

(2023)

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III. APPENDICES 26

I. OBLIGATIONS

A. General Expectations and Standards of Performance

A1. Compliance

A1.1. The Contractor shall strive to achieve the goal of zero high-risk incidents and take all measures and follow all procedures required to protect workers, members of the public, and the environment.

A1.2. The Contractor shall comply with the obligations contained within this document, applicable local procedures, and/or project-specific technical specifications.

A1.3. The Contractor shall comply with all regulatory requirements, agreements, contract work acts, local regulations, rules, and guidelines.

A1.4. Unless otherwise agreed to by the Owner, any necessary licenses, authorizations, certificates or permits required to perform the work must be obtained by the Contractor and furnished to the Owner upon request. The Contractor shall report promptly to the Owner any situations that may include, or lead to, the reception of a notice or an order from an agency.

A1.5. The Contractor shall monitor and promptly and suitably correct HSS&E-related deficiencies and hazards or threats, including those that may be identified by the Owner, regulatory agencies, or auditing parties. All deficiencies and high-risk hazards found shall be reported to the Owner.

A1.6. If the Contractor is unsure of a proper working procedure, the Contractor shall immediately request guidance from the Owner before proceeding with the work.

A1.7. In addition to the Contractors' disciplinary policy, the Owner is at liberty to object to, and to require, the Contractor to remove from the work site forthwith any person employed by the Contractor in or about the execution of the workers who, in the opinion of the Owner, presents a significant HSS&E risk due to his/her conduct, level of competence, or negligence. Such persons shall not be employed again at the work site without the prior written consent of the Owner.

A1.8. The Contractor shall not deviate, or work contrary to, these Contractor's HSS&E Obligations without written consent formally provided to the Contractor by the Owner, specific to the scope of work for which such a deviation may apply.

A2. Qualification, Training, and HSS&E Meetings

A2.1. The Contractor shall implement and document a thorough qualification process for all Subcontractors that will review both leading (e.g., training, work observations, risk assessments etc.) and lagging indicators (e.g., incident rates, unsafe acts, compliance violations). The Contractor shall verify through this process that the Subcontractor is

capable and qualified to complete its work safely and meet the provisions explained within this document. Each contract with a Subcontractor shall expressly state in the agreement that the Subcontractor is bound by the provisions of these Contractor's HSS&E Obligations insofar as they apply to the work being performed under any such a (sub-)contract. The Contractor shall ensure compliance by all Subcontractors with such provisions and the Contractor shall be fully responsible for the acts and omissions of Subcontractors and other Contractor personnel.

A2.2. The Contractor is required to provide its personnel and all Subcontractor employees the required HSS&E training and work site or project-specific orientation sessions.

A2.3. The Contractor shall conduct HSS&E orientation meetings before the commencement of project work. This orientation meeting is mandatory for both the Contractor's and Subcontractor's personnel. This orientation will be site and work-specific and will identify the limits of the safe working area and all related restrictions, high-risk HSS&E hazards, obligations outlined in this document, and the site emergency response plan.

Once the project has started, the Contractor shall conduct site HSS&E orientation meetings (as above) for new Contractor and Subcontractor personnel before they start work. The Contractor must maintain, and make available to the Owner upon request, written confirmation that these meetings have taken place.

A2.4. The Contractor shall employ in the execution of the work only such persons that are competent in their respective trades. Workers must understand the safety, technical, and environmental aspects of their jobs. The Contractor is responsible for providing primary, update, and refresher training as needed.

A2.5. The Contractor must verify, track, and document employee training and skills. A record of employee skills, training, and designations shall be maintained by the Contractor and available for inspection by the Owner or Owner's representative. Verification must be provided immediately upon the request of the Owner. (i.e.: qualified/competent persons, Licenses, Certifications, etc.)

A2.6. The Contractor shall not use any unqualified employees on any project in a labor capacity that may include high-risk work, including but not limited to:

- work in the operating/generating power stations.
- work on/near energized electrical equipment
- work in forestry (e.g.: right-of-way clearing)
- Driving a vehicle or heavy operating equipment
- Use of high-risk mechanical equipment (e.g.: chainsaws)
- Exposure to high-risk hazards or conditions such as falls greater than 3m (10ft), falling objects, rotating mechanical equipment, confined spaces, etc.

A2.7. For project lasting six weeks or more, the Contractor shall conduct mid-project and/or

monthly site HSS&E meeting with its workers. The Owner reserves the right to require more frequent HSS&E meetings as necessary. The Contractor must ensure involvement in these meetings by their designated project management. Invitation to these meetings shall be extended to the Owner and applicable stakeholders within a reasonable timeframe before assembly. The content of these meetings should be relevant to the exposures anticipated on the project. The minutes of the meetings shall be forwarded to the Owner within three (3) working days of the meeting.

A2.8. The contractor shall participate in the performance evaluation meetings when requested by the Owner.

A3. Other Requirements

A3.1. The Contractor is required to inspect the condition of tools and equipment to establish that they are in proper working condition, designed to applicable safety and environmental standards, approved by the applicable governing body(s) for the purpose for which they are to be used, and free of defects before use.

A3.2. The Contractor shall make available to the Owner, upon request, all work HSS&E-related documentation for review and audit.

A3.3. The Contractor shall provide a positive, inclusive work environment for all workers and exhibit zero tolerance for workplace violence, discrimination, harassment, and bullying whether on the work site or otherwise related to project work.

A3.4. The Contractor shall maintain positive and respectful relations with third parties including government agency representatives and all neighbors and other users of areas in and around the work site.

A3.5. The Contractor shall refer any inquiry from the public or the media related to the work to the Owner.

A3.6. The Contractor shall report problematic relations with third parties to the Owner without delay.

A3.7. The Contractor shall notify the Owner immediately of any visits or inspections from regulatory agencies or governing bodies at the project.

A4. Security

A4.1 The Contractor's personnel will be subject to any security arrangements put in place by the Owner. If Brookfield does not have an operating presence at the project site, the Contractor shall employ adequate security measures to ensure site and personnel security.

A4.2. The Contractor must comply with all qualification requirements about the hiring and employment of workers as outlined in the contract. Contractors must ensure that qualifications are also delegated to third parties as required. Such qualification requirements may include criminal background checks, drug screening, employment eligibility verification, references from previous employers, etc.

A4.3. Drugs and alcohol are strictly prohibited from all Brookfield Renewable facilities and project sites. No persons will be permitted to enter a site/project if believed to be in possession of, or under the influence of, drugs or alcohol.

A4.4. Firearms and other weapons are prohibited from all Brookfield Renewable facilities and project sites. No Contractor personnel (except security Contractors specifically authorized and approved in writing) will be permitted to enter a work site if believed to be in possession of a firearm or other weapon.

A4.5. The Contractor shall maintain prudent office security for office areas used for Brookfield Renewable projects. The Contractor shall also take all reasonable precautions to prevent unauthorized access of persons to the Contractor's and Brookfield Renewable's equipment.

A4.6. The Contractor shall, if physically possible and applicable to their scope of work, close off the work site/project completely with sturdy fencing (height 6 ft / 2m). The entrances to the site/project shall be locked outside working hours at a minimum, and necessary instruction and prohibition signs shall be erected in clearly visible locations along the perimeter of the site/project.

A4.7. Access to the work site / project shall be provided to the Owner at all times and without undue delay.

A4.8. To ensure the safety of Brookfield Renewable's information and project details, the Contractor must practice sound information security measures, such as implementing a clear desk policy, controlling access to sensitive documents, and maintaining confidentiality agreements.

A4.9. The Contractor shall maintain prudent computer and communications security for any computer system and network being used for the handling of Brookfield Renewable information, including controlled computer access, virus protection, security updates, firewalls and backup routines.

A4.10. When requested by the Owner, a Contractor's representative shall be present at the site/project to respond to security or emergency situations within one hour (or a reasonable alternative time frame as pre-agreed by the Owner) after notification.

B. Project Planning and Management

B1. Site Hazard Assessment

B1.1. At the discretion of the Owner and in preparation of the project plan prior to the commencement of project work, the Contractor, in conjunction with the Owner, will review the projects' HSS&E Inherent Hazard Assessment and identify in the project HSS&E Project Plan any additional high-risk HSS&E hazards/ threats that need to be addressed.

B2. Project Planning Level

B2.1. Based on the determination by the Owner of the appropriate level of HSS&E Planning required for the work, the Contractor shall either:

a) Collaborate with the Owner on the development and/or review of the Project HSS&E Planning, or

b) Establish a thorough Project HSS&E Planning process in compliance with the requirements outlined below:

i. Level 1 Planning: If the project involves complex work, or work lasting more than 20 days, the Contractor shall prepare a Project Construction Schedule, a Project HSS&E Plan, and Daily Job HSS&E Plans.

ii. Level 2 Planning: If the project involves a short duration complex work (<20 days), the Contractor shall prepare a Project HSS&E Plan and Daily Job HSS&E Plans.

iii. Level 3 Planning: If the project does not involve any of the above, the Contractor shall prepare Daily Job HSS&E Plans for all tasks related to project work.

Complex Work: Work that has any of the following items: multiple crews/stakeholders, multiple high-risk tasks with no control barriers, interrelated tasks that rely on the completion of others that, if not completed, are likely to create significant delays or major hazards, or work where the timing of resource allocation is vital to the completion of the work.

B3. Project Construction Schedule

B3.1. When applicable as specified in B2.1b, the Contractor shall provide to the Owner, prior to commencement of the work on-site, a Project Construction Schedule showing the sequence of tasks required to complete the work. The Project Construction Schedule will include the timing, resources, and special equipment required for each task in the plan. The Owner reserves the right to review and comment on the Project Construction Schedule. The Contractor is responsible to address to the satisfaction of the Owner all comments and will use the Project Construction Schedule to prepare the Project HSS&E Plan(s) required as per Section B4.

B4. Project HSS&E Plans

B4.1. When applicable as specified in B2.1b, the Contractor shall complete a Project HSS&E Plan based on the projects' inherent hazard assessment and construction schedule, as applicable. The Project HSS&E Plan shall include the sequence of activities to be completed on-site for the entire project term. If a project has multiple major phases or Contractors, then additional plans may be required by the Owner. For each major task, the plan will identify all high-risk HSS&E hazards and include a barrier analysis that identifies the intended means of controlling or mitigating the hazards to an acceptable level of risk. The Owner reserves the right to require specific formats for the Project HSS&E Plan. A sample *HSS&E Form: Project HSS&E Plan* template is attached in Appendix A.

B4.2. The Contractor shall update the Project HSS&E Plan at the request of the Owner or to address any new tasks that may create additional HSS&E high-risk hazards during the project. All changes to the Project HSS&E Plan shall be reviewed by the Owner, and a copy of the Plan shall be maintained at the project site and available for review.

B4.3. The Owner will review the Project HSS&E plan and may, at its sole discretion, require the Contractor to make modifications the Owner deems necessary to ensure compliance with these Contractor's HSS&E Obligations. The Contractor shall provide to the Owner the revised Project HSS&E Plan(s) at least 15 days prior to the start of work unless a shorter duration is mutually agreed to. The Contractor shall inform workers of the details of any such revised Project HSS&E Plan(s) prior to the commencement of project work.

B4.4. The Contractor is responsible for the accuracy, completeness, suitability, implementation and communication of Project HSS&E Plans and site HSS&E hazards to all levels of employees and Subcontractors that they bring on-site throughout the course of their work.

B4.5. The Contractor shall ensure that all HSS&E hazard controls and barriers identified in the Project HSS&E Plan(s) are in place and functional prior to the commencement of work and are always maintained and functional until completion of the work.

B5. Daily Job HSS&E Plans

B5.1. At the start of each work shift and prior to the commencement of any work on-site, each of the Contractor's and Subcontractors work crews shall prepare a Daily Job HSS&E Plan, where all individual workers assess critical HSS&E hazards and/or threats pertaining to the specific tasks to be performed. The Contractor shall provide the Owner with a copy of all Daily Job HSS&E Plans upon request. A sample *HSS&E Form: Daily Job HSS&E Plan* template is attached in Appendix B.

B5.2. The Daily Job HSS&E Plan shall:

a) Identify the sequence of tasks to be completed along with the potential for each to cause:
    i. fatality or serious injury.
    ii. damage to the natural environment, or;
    iii. damage to a Brookfield Renewable or third-party property.
b) an assessment to identify the most effective barriers (control barriers, protective and support barriers) for mitigating each identified risk and completing the work safely. If the work conditions change at any time giving rise to new high-risk safety and/or environmental hazards, the Contractor shall stop, reassess, and revise the Daily Job HSS&E Plan and communicate it to all affected workers before resuming work.

B5.3. The Owner reserves the right to require additional means of hazard mitigation (barriers) if, at the Owner's sole discretion, a hazard is not controlled to an acceptable level.

B5.4. All Daily Job HSS&E Plans shall be approved by a competent person. The Owner reserves the right to determine the process for Daily Job HSS&E Plan approval.

B5.5. Daily Job HSS&E Plans must be communicated to all workers associated with the task each day and every worker shall adhere to the requirements of each applicable Daily Job HSS&E Plan.

B5.6. Members of the Contractor's management team shall regularly participate in meetings where Daily Job HSS&E Plans are discussed.

B5.7. It is the Contractor's responsibility to ensure that all employees receive training on how to create and maintain high-quality Daily Job HSS&E Plans.

B6. Project-Specific HSS&E Programs

B6.1. Personal Protective Equipment

The Contractor shall develop and maintain a minimum Personal Protective Equipment (PPE) program that addresses standards for use, care, inspection, training, and standards for purchasing PPE. The PPE program must meet or exceed applicable Brookfield Renewable requirements and be evaluated as part of the risk assessment process.

B6.2. Product Transport and Delivery Systems and Waste Management

a) The Contractor shall have, and administer, a chemical hazard program that meets the provisions of the Globally Harmonized System (GHS) and applicable regulations. The program shall outline, at a minimum:

    i. Chemical hazard communication plan
    ii. Hazardous material shipping and handling process
    iii. Provide employees with the right to understand chemical hazards via Safety Data Sheets

b) Upon completion of the work or when a particular product is no longer required on site, whichever occurs first, the Contractor shall remove all remaining quantities of the product and all empty containers.

c) Hazardous material, waste or dangerous goods shall not be left on site or with the Owner without the prior written consent of the Owner. The Contractor shall separate all waste material into hazardous and non-hazardous waste. An itemized list with name, classification, and quantities of all waste must be provided to the Owner.

d) Hazardous waste or dangerous goods shall not be disposed of through the Owner's waste management system (unless requested in writing by the Owner) or on the Owner's or third party's property. The Contractor is responsible for waste disposal to an appropriate waste disposal facility in accordance with all applicable laws and regulations.

e) Product delivery systems, including but not limited to, containers, valves, pumps, pipes, hoses, nozzles, and vents, shall be in good working order and without leaks. The Contractor shall provide overflow prevention or protection for chemical, fuel, and oil storage containers/tanks.

B6.3. Industrial Hygiene

a) The Contractor must evaluate the project site for possible health hazards that may be identified after mobilization. Considerations for testing and working with, or around these substances shall be discussed with the Owner. Hazards to consider include, but are not limited to, lead, asbestos, silica, mercury, PCBs, Radon, volatile organic compounds (VOC's), oxygen enrichment/deficiency, SO_2, carbon monoxide, mold, hexavalent chromium, etc.

b) The Contractor is responsible for following all applicable regulatory standards related to health hazards associated with their work.

B6.4. Traffic Control

a) For any projects involving the use of heavy vehicles, shared roadways with pedestrian traffic, or backing of vehicles, the Contractor shall prepare a Site Traffic Control Plan that includes all structures, meeting areas, access roads, drop-off locations, and vehicle parking areas. The plan must be updated as work site conditions change and made available for review by the Owner. The plan shall address:

i. Road marking
ii. Maximum slope degrees for heavy equipment traffic.
iii. Personal protective equipment

iv. Signage
v. Physical barriers
vi. Speed control
vii. Flaggers and spotters
viii. Communication

b) All vehicles on site must be in good working order with current vehicle inspections for safety and mechanical conditions. All vehicles must be operable per original equipment manufacturers' specifications.

c) All vehicles with a gross vehicle weight rating above 10,000lbs (4,500kg) must have backup alarms installed. Dedicated personnel ('spotters') must assist in all situations where a driver's line of sight is obstructed when backing up a vehicle.

d) Drivers must hold the applicable license for the equipment they intend to operate per regulation. The Contractor shall provide copies of driver's licenses to the Owner upon request.

e) All persons in vehicles must always wear seatbelts when the vehicle is in use.

f) The use of handheld cellular devices is prohibited for all persons operating a vehicle within the scope of the project or on Brookfield property.

B7. Contract Monitoring and Work Observations

B7.1. The Contractors' site/project management staff shall develop an HSS&E monitoring plan, conduct structured, documented safe work observations targeting high-risk work performed by its workers and Subcontractors, and report major findings to the Owner. The monitoring plan shall be made available to the Owner upon request. The Owner will review the monitoring plan and may, at its sole discretion, require the Contractor to make necessary modifications. A sample *HSS&E Form: Safe Work Observations* template is attached in Appendix C.

B7.2. At the timing and frequency of its discretion, the Owner may also conduct structured safe work observations of project-related tasks being performed by the Contractor or Subcontractors. The Contractor shall ensure that workers and supervisors cooperate with the Owner during such work observations.

C. Incidents, Emergency Prevention, and Response

C1. Incident Response and Reporting

C1.1. In the event of a high-risk HSS&E incident, the Contractor shall:

i. Stop work.
ii. Secure the work site to ensure the protection of workers, the environment, members of the public, and evidence necessary for incident investigation.

iii. Provide notice to all required appropriate authorities.
iv. Report the incident immediately to the Owner.

C1.2. The Contractor shall immediately take appropriate actions to contain and clean up any chemical spill or release and report all such events to the Owner.

C1.3. The Contractor shall provide to the Owner, as soon as possible and in all cases within 24 hours, all relevant facts necessary for the determination of the severity of the incident. A sample *HSS&E Form: Initial HSS&E Incident Investigation Report template* is attached in Appendix D.

C1.4. The Contractor shall complete an investigation of any incident occurring during the performance of work and provide the Owner with a detailed written report of its findings) as soon as possible.

C1.5. In addition to the requirements outlined in paragraph C1.4 above, the Owner reserves the right to conduct its own internal investigation of any HSS&E-related incident(s) occurring during the project. The Contractor is obligated to cooperate with the Owner during any such investigation and collaborate in the implementation of any action plan(s) resulting from the incident. This may include making available all evidence related to the incident and employees and/or Subcontractors available for interviews or training.

C2. Emergencies, Spills, and Emergency Preparedness

C2.1. The Owner has the authority, and the Contractor and its workers the obligation, to stop work whenever such stoppage may be necessary to ensure the safety of workers or members of the public; the protection of any equipment, structure, or property; or the protection of the environment. This includes the authority to order the Contractor or a Subcontractor to stop working. The Contractor shall notify the Owner immediately upon stoppage of work due to an HSS&E concern.

C2.2. The Contractor shall establish emergency preparedness and response plans for potential HSS&E emergencies related to the Contractor's, and its Subcontractors, scope of work and/or caused by their own activities. Emergency preparedness and response plans must comply with all applicable regulatory requirements and shall, at a minimum, encompass:

i. Fire Prevention and Protection Procedures
ii. Evacuation Plan
iii. Oil/petrol/chemical spill prevention and response procedures
iv. Process for accounting for on-site personnel during an emergency

C2.3. All employees who have responsibilities within an Emergency Response Plan must be trained in their duties. Emergency drills / exercises to test response capabilities must be considered in the Emergency Response Plan and conducted at the direction of the

Owner for any work.

C2.4. The Contractor shall provide and make available:

i. Adequate and suitable rescue and firefighting equipment
ii. The minimum level of first-aid equipment required by regulation for the scope of work and size of the workforce and adequate personnel trained in first aid and cardiopulmonary resuscitation (CPR)
iii. Chemical spill kits

D. Activities with Additional Requirements

D1. Work in proximity to Exposed energized electrical equipment.

D1.1. For any work involving – or in close proximity to – exposed energized electrical equipment, regardless of the voltage involved, the first alternative must always be to de-energize, test, and ground the equipment and evaluate adjacent equipment for arc flash potential.

D1.2. All Contractor and Subcontractors' workers must be qualified pursuant to industry practices and have been trained on the specific procedure prior to performing any work in proximity to exposed energized equipment (see Section I Definitions). The Contractor shall inform affected workers employed in the execution of the contract regarding the location of all electrically energized apparatus in the vicinity of the work and the correct and safe working procedures consistent with their hazard exposure, including but not limited to (as applicable to the work) isolation, de-energizing, grounding, and maintaining safe distances for work in proximity to energized equipment.

The Contractor shall verify that every on-site supervisor and worker is fully conversant with the correct and safe working procedures consistent with their hazard exposure, including but not limited to (as applicable to the work) isolation, de-energizing, grounding, and maintaining safe distances for work in proximity to energized equipment.

D1.3. Minimum Clearance Distance to exposed energized electrical equipment must be outlined for various voltage levels for qualified workers, unqualified workers, and relevant equipment, with the following additional conditions:

a) The minimum distance to exposed energized electrical equipment for qualified workers per voltage range (phase-to-phase or phase-to-ground for AC or DC voltages) must be either the distance set by local regulatory requirements or by the table below, whichever is most stringent.

b) The positioning of workers, conductive tools, equipment, or materials must take into consideration arc flash exposure, planned action, equipment failure, and unintentional movement that may result in encroachment on the minimum clearance distance.

Voltage Range, Phase to Phase or Phase to Ground	Minimum Distance to Exposed Energized Electrical Equipment for Qualified Workers
750 V to 50 kV	1 meter (3 feet)
51 to 125 kV	1.5 meters (5 feet)
126 to 250 kV	2.5 meters (8 feet)
251 to 550 kV	4 meters (13 feet)
> 550 kV	6 meters (20 feet)

D1.4. If it is not possible to de-energize the electrical equipment, the workers, conductive tools, equipment or materials must be kept outside of the minimum clearance distance to exposed energized electrical equipment.

D1.5. For any work that may encroach on the minimum clearance distance to exposed energized electrical equipment, physical control barriers must be applied to prevent inadvertent electrical contact and a qualified dedicated observer must be present at all times.

D1.6. For any work that cannot be completed by applying the above criteria:

a) A specific work procedure to prevent contact with exposed energized equipment that includes shock and arc flash hazard analysis, along with multiple Protective Barriers and all necessary Support Barriers must be documented and subsequently approved by the Owner.

b) All work (except for troubleshooting, testing, or isolating on or in proximity to control voltages at a voltage less than 600 volts), must be monitored by a qualified, dedicated observer who was involved in the preparation of the Daily Job HSS&E Plan.

D2 Work On exposed energized electrical equipment.

D2.1. No work on exposed energized electrical equipment is allowed unless specific written consent has been granted by the Owner following a formal request by the Contractor. Such requests must include proposed work-specific procedures and control barriers and must be evaluated during the project planning process as far in advance of the work as possible. The Owner's responsible authority reserves the right to not approve work to be conducted on exposed energized equipment above 600 volts.

D3. Use of mobile and heavy operating equipment

D3.1. The Contractor shall ensure that operators of heavy operating equipment have up-to-date licenses and are qualified to operate the heavy operating equipment as per all regulatory requirements.

D3.2. The Contractor must ensure that operators have received on the safe operation of heavy equipment at the site, including site-specific hazards, operating restrictions, communications, etc.

D3.3. Operators shall familiarize themselves with the operation of the specific piece(s) of heavy equipment that they will be required to operate, and shall conduct thorough pre-use checks on all heavy equipment. Pre-use equipment checklist completion must be recorded and documented.

D3.4. Operators of heavy equipment must be involved in the preparation of Daily Job HSS&E Plan for the work. Daily Job HSS&E Plans must include details on the use of the heavy equipment such as vehicle setup, pre-use inspection, and testing, stabilization, work zone protection, rigging requirements, operating limitations, minimum clearance distances to energized electrical equipment, oil/fuel spill prevention and control measures, and end-of-day securing of equipment.

D3.5. Heavy equipment must be inspected and maintained in compliance with manufacturer requirements. Appropriate maintenance and inspection records must be maintained.

D3.6. Unless performed by qualified powerline workers on transmission and distribution circuits, all work requiring the use of mobile heavy operating equipment near electrical supporting structures, such as towers, poles, and guy wires, shall comply with the following conditions:

i. Mobile heavy equipment shall remain at a minimum safe working distance of 3 meters (10 feet) from any electrical supporting structure;
ii. A safe work zone must be established around the electrical supporting structure. The perimeter of the zone and the structure must be marked with cones, flags, or caution tape. These visual aids must be attached or positioned so that they are easily visible to the operators of heavy equipment working in the area.
iii. For any work required within 3 meters (10 feet) of an electrical supporting structure, the first alternative must be the use of hand tools. If the use of hand tools is not feasible, the work requires detailed job safety planning, physical barriers and/or a dedicated observer.
iv. If the above conditions cannot be met, a documented work procedure highlighting the risks and limitations, must be approved by the Owner.

D3.7. Hand-held electronic devices shall not be used while operating heavy equipment. This includes speaking on the phone, texting, attending e-mails, surfing the Internet, actively using GPS devices that are not fixed in the vehicle, etc.

D3.8. When Rigging & Lifting with Multiple Use Equipment (other than cranes or non-crane lifts) the Contractor must ensure that:

i. The specific heavy equipment has been designed for lifting in the specific manner of the intended lift, including considerations for setup, ground conditions, and meteorological/ weather considerations.

ii. All rigging equipment has been properly rated and will be used in accordance with the manufacturer's recommendations.

iii. All rigging equipment has been stamped with a load rating and is in good working order as per manufacturers' specifications.

iv. The weight of the intended load (including any soil loading) has been properly assessed.

v. A rigging & lifting plan has been developed and approved by a competent and qualified person.

vi. Operators have been trained in the proper use of any equipment intended to use in conducting the lift.

D3.9. Original Equipment Manufacturers (OEM) ladders installed on heavy equipment may be used as intended per the manufacturer's specification. These ladders must be free of debris/material, in good working order, and have no damage or modifications. Any non-OEM installed ladders intended to be used on or with the operation of heavy equipment must meet all requirements outlined below in Section D4.

D4. Climbing and working at Height

D4.1. The Contractor must have a fall protection and prevention program established and applicable to the work on site. This program must meet the standards established by the Owner. Fall protection measures must be taken whenever there is a potential for a high-risk HSS&E event involving gravitational energy.

D4.2. For all temporary and permanent work structures, equipment, and installations, where there is a gravitational hazard, the first alternative is to change the design to eliminate the hazard. If it is not practical to eliminate the falling hazard through engineering or design change, a Fall Protection Hierarchy system must be implemented in the following order of priority:

a) Fall Prevention System
   i. Guardrail System
   ii. Travel Restraint System
b) Fall Limiting System
c) other Fall Arrest System

D4.3. Whenever there is a possibility of objects falling from height, an adequate safe work zone must be established to ensure that workers and others are not exposed to falling objects from the work above. For example, the area where potentially dropped tools

or equipment could land might be delineated with caution tape or monitored by a dedicated observer, and work platforms might have kick plates installed.

D4.4. Any time workers are required to perform work in a situation that requires Fall Protection and cannot reasonably be expected to self-rescue, the Contractor must develop and implement a fall rescue plan appropriate to the work and ensure that rescue team members have received all necessary training and are deemed competent to conduct the specific type of rescue called for in the plan. At a minimum, the rescue plan must:

a) outline emergency procedures for the removal or extraction of workers from elevation should they need retrieval for any reason, and;
b) address the availability and accessibility of rescue personnel and required equipment (internal and external).

D5. Cranes, Hoisting, and Rigging

D5.1. The Contractor must have a formal craning and hoisting program that defines the requirements for all types of lifts using such equipment. The program requirements must include, but are not limited to, the following:

a) Crane assembly and disassembly.
b) Levelling, stabilizing, and securing of cranes.
c) Loading and off-loading of craning/hoisting equipment.
d) Crane walking (including transit from road to use area).
e) Crane fueling and storage.
f) Communication/signaling requirements during hoisting or moving materials and equipment.
g) Clearly defined, documented, and communicated roles and responsibilities related to all workers involved in craning, hoisting, and rigging tasks, including hoisting/erection crew supervisor, crane operator, signal-person, riggers, and any other applicable qualified/competent persons assigned to such operations (including designated engineer or consultant).

D5.2. All crane operators and riggers must receive training within a structured program on the crane's safe operation; have a thorough understanding of the operating limitations of the specific equipment with which they are working; and have up-to-date training and operating licenses (as applicable).

D 5.3 A formal Lift Plan must be prepared:

a) For all lifts using mobile cranes (including mobile tire mounted and track cranes, tower cranes, and boom truck cranes).

b) When using fixed overhead/tower or gantry cranes any time an activity using the equipment is determined to be Medium or High-Risk on the Daily HSS&E Job Plan.

D5.4 The Lift Plan must include a drawing or picture showing:

i. the anticipated location of the hoisting equipment, structures, utilities, public and site traffic, and other operations/activities/equipment within 150% of the crane's boom length,
ii. the proposed travel of the lift(s), and expected delivery entry/exit points,
iii. the staging of support vehicles/equipment and materials
iv. the hazards in the lift's vicinity (e.g., overhead or underground utilities, manholes, structures, traffic, excavations).

D5.5 For all lifts using any type of crane, hoist, or other lifting device, the Daily Job Safety Plan must include key activities related to craning and hoisting activities such as crane and hoist setup, pre-use inspection and/or testing, operating limitations, minimum clearance distances to energized electrical equipment, and oil and fuel spill prevention and control measures if applicable. Daily Job Safety Plans must be reviewed with all workers who could be affected by the operation of the Crane and/or Hoist prior to the start of Work.

D5.6 Pre-use checks must be done on all Cranes and Hoists prior to operating the equipment. Pre-use checklists must be used by the Operators and records must be maintained for a minimum of 5 years.

D5.7 There must be a pre-lift meeting/discussion with all workers involved in the lift.

D5.8 A safe work zone around the crane's operating range and possible drop areas must be established and delineated with boundaries and postings identifying the hazard.

D5.9 Any area in which workers could be trapped or crushed by the movement of the counterweight of a mobile crane must be fenced or barricaded.

D5.10 An evaluation of the expected meteorological/ weather conditions (e.g., wind speed, lightning) expected during the craning and hoisting activities must be performed.

D5.4 Requirements Specific to Critical and High-Risk Lifts

All Critical or High-Risk Lifts require the Lift Plan to be completed by a designated competent person. At a minimum, the plan must address the following elements:

a) Description of the lift
b) Crane(s) involved in the lift activity and relevant equipment specifications.
c) Drawing for the lift that identifies:
    i. Location of lifting equipment
    ii. Lift height
    iii. Load radius
    iv. Load chart (and boom length & angle when possible)
    v. Size & weight of the load
    vi. Flight path of load
    vii. Rigging specifications and attachment points
    viii. Percent of Crane's rated capacity

d) Personnel involved
e) Communication method
f) Ground conditions
g) Required meteorological/ weather conditions to safely perform the lift
h) Pre-lift inspection procedures and, if necessary, load test and practice lifts
i) Intermediate emergency load-down points in the load path
j) Procedures for lifting Workers (when applicable)
k) Procedures for keeping unwanted persons from crossing below-suspended loads

D5.5 Lifts to Be Reviewed by a Qualified Engineer

At a minimum, the following lifts must be reviewed by a Qualified Engineer prior to the lift taking place:

a) Any Critical Lift
b) When rigging components are altered or used in a way that is different from manufacturer's specification
c) When rigging components are site or shop fabricated
d) When the vertical sling angle is greater than 45° while using eye bolts and greater than 60° for other lifts
e) When structural members are used for hoisting and the strength of the anchor points cannot be ensured
f) When specifically requested in the Project HSS&E Plan
g) When specifically requested by the Owner

A Qualified Engineer shall be responsible to ensure that the lift will be done in conformance with applicable standards, codes, regulations, instructions, and procedures.

D6. Use of Off-Road Vehicles (ATV's) and Snowmobiles

D6.1. The use of straddle-type all-terrain vehicles and motorcycles is not permitted on work sites.

D6.2. All off-road vehicles used by the Contractor or Sub-Contractor shall be designed for work travel and hauling, not recreation; shall be equipped with seat belts; and shall have rollover protection that meets the regulatory design standards.

D6.3. Off-road vehicle operators and riders shall wear seatbelts at all times while the vehicle is in operation, and approved safety helmets if the off-road vehicle is not equipped with a cab and windshield.

D6.4. Operators shall operate at prudent speeds for trail conditions and in no instance (unless approved in writing by the Owner) shall exceed 50 kph (30 mph).

D6.5. Operators shall have completed a combination of both instruction and hands-on training regarding the safe operation of off-road vehicles.

D6.6. The Contractor shall have an emergency plan in place for the use of off-road vehicles,

including snowmobiles, that includes emergency communication, survival gear appropriate for the weather and conditions, and an Emergency Response Plan.

D6.7. In addition to the above, where snowmobiles are required for the execution of work by contractors or sub-contractors, operators must:

a) always wear approved full-face shield helmets
b) must have completed training regarding the safe operation of the specific type of snowmobile to be used, and;
c) must respect trail conditions and speed limits on groomed snowmobile trails.

D7. Confined Spaces

D7.1. Before allowing any worker to enter a confined space, the Contractor must develop a written Confined Space Plan. The primary objective of the plan is to eliminate the hazard before entry. If this is not possible, then control measures and procedures must be put in place to ensure that workers are not placed in a dangerous situation. At a minimum, the Confined Space Plan must consider:

a) A method for assessing the hazards to which the worker may be exposed.
b) A method for developing plans for eliminating or controlling the hazards.
c) An entry permit system setting out measures and procedures to be followed when working in a confined space.
d) The requirements of any applicable confined space regulations

D7.2. The Contractor shall only permit qualified workers to enter confined spaces.

D7.3. A copy of the confined space plan must be provided to the Owner upon request.

D7.4. If workers from more than one Contractor will be entering a confined space, the prime Contractor must prepare a confined space coordination plan.

D7.5. The Contractor is responsible for developing rescue protocols for every confined space that are outlined in the Confined Space Plan and readily available for prompt execution.

II. DEFINITIONS

In the event of a conflict between the definitions set forth below and any defined terms contained in a definitive agreement with a Contractor, the definitions outlined in the definitive agreement shall govern and control.

1. **Brookfield Renewable:** Brookfield Renewable includes Brookfield Renewable Energy Partners L.P., Brookfield Renewable Power and Transition Inc., Brookfield Energy Marketing, and the subsidiaries, affiliates, and operating businesses managed by such entities.

2. **Barriers:** A component whose function is to control HSS&E hazardous energy to protect the worker, the environment, and the public. Barriers can be classified as:

    a. **Control Barriers:** A barrier that eliminates, minimizes (to a safe level), or substitutes hazardous energy or is engineered to comprehensively and physically isolate the worker from the energy source. These are normally barriers that do not depend on human performance to be effective.

    b. **Protective Barriers:** Barriers whose function is to protect the workers, the members of the public, the natural environment, third party's properties, and/or Brookfield Renewable facilities, Operations, and/or image in case of out-of-control energy. These barriers interact with the energy.

    c. **Support Barriers:** Barriers whose function is to enhance the effectiveness of control barriers and Protective Barriers. These barriers rely entirely on human performance. Examples include HSS&E rules, written procedures, training, dedicated observers, etc.

3. **Competent Person:** A worker who can identify existing and predictable hazards in the surroundings or working conditions that are unsanitary, hazardous, or dangerous to workers, members of the public, or to the environment and who has the authorization to take prompt corrective measures to eliminate them.

4. **Confined Space:** A space that has limited or restricted means of entry, is not designed for continuous occupancy, and is large enough and configured so that a person can enter the space and maneuver well enough to perform tasks. (In cases where different jurisdictions have varying definitions, the definition with stricter requirements should be used.)

5. **Contractor:** A person or company contracted or engaged to perform Work for Brookfield Renewable.

6. **Critical Lift:** is a lift which requires exceptional care in handling due to any of the following:

    a. the potential for the load to be greater than 75% of the rated capacity of the crane (other than an overhead/gantry crane) and/or any associated rigging.

b. the potential for the load to be greater than the rated capacity of a fixed overhead/gantry crane permanently installed at a work site, or.
c. the use of two or more cranes for the same lift.

7. **Complex Work:** Work that has any of the following items: multiple crews/ stakeholders, multiple high-risk tasks with no control barriers, interrelated tasks that rely on the completion of others that, if not completed, are likely to create significant delays or major hazards, or work where the timing of resource allocation is vital to the completion of the work.

8. **Environment:** Environment refers to the natural environment (plants, animals, earth, water, etc. whether on Brookfield Renewable property or not) and to members of the public that could be affected by the facilities' Operations or by any work.

9. **Environmental Protection:** Environmental Protection includes elements such as, but not limited to, protection of members of the public, dam protection, oil and chemical spill prevention, waste management practices, and protection of critical areas such as waterways, areas with certain protection or preservation status, or designated species habitat.

10. **Hazard:** A condition or situation with the potential for the release of unwanted energy that could result in (1) an injury or an illness to a worker or to a member of the public; and/or (2) an injury or (monetary) loss due to an intentional, security-related event; and/or (3) damage to the natural environment, Brookfield Renewable facilities or third party's properties.

11. **High-Risk Work:** Activities which, if an event were to occur, the energy released would be powerful enough to cause (1) an injury or an illness to a worker or to a member of the public; and/or (2) an injury or (monetary) loss due to an intentional, security-related event; and/or (3) damage to the natural environment, Brookfield Renewable facilities or third party's properties.

12. **HSS&E:** Health, Safety, Security, and Environment.

13. **HSS&E event:** HSS&E events include unsafe acts and incidents.

14. **Health, Safety, Security & Environment Incident:** An HSS&E event *with energy out of control* that resulted in or could have resulted in, had it not been for good fortune, (1) an injury or an illness to a worker or to a member of the public; and/or (2) an injury or (monetary) loss due to an intentional, security-related event; and/or (3) damage to the natural environment, Brookfield Renewable facilities or third party's properties.

15. **High-Risk Incident:** An HSS&E Incident involving *powerful energy out of control* that resulted in or could have resulted in, had it not been for good fortune, a Serious Injury or Fatality or significant environmental damage.

    a. Powerful Energy: An element of work that involves energy capable of inflicting a serious injury or fatality.

    b. Serious Injury or Fatality: Life-threatening or life-altering incident resulting in serious injury,

disability, or death.

16. **High-Risk Lift:** a lift that falls in any of the following categories:

    i. Lift where any part of the equipment within the mobile Crane's swing radius may become closer than 20 feet (6 meters) to electrical lines independently of the lines' voltage level. ***Note:*** *the first alternative is to de-energize, test, and ground exposed electrical equipment.*
    ii. Lift where the load weight or its center of gravity is difficult to determine.
    iii. Lift that may be subject to adverse weather conditions (i.e. high winds, lightning, etc.).
    iv. Lift in poor soil/ground conditions.
    v. Lift where chain falls or other dynamic rigging are used to alter the rigging configuration and/or center of gravity while a load is suspended.
    vi. Lifts where the loss of control may result in:
        - Significant injury or fatality of a Workers and/or of members of the public,
        - Catastrophic damage to a structure's integrity,
        - The loss of an irreplaceable or un-repairable item that would jeopardize future operations, the safety of a facility, or result in a delay to schedule or other serious program impacts,
        - Significant financial impact to the extent it would affect Facilities/project commitments and/or
        - Negative impact on the Environment including the release of hazardous substances.
    vii. Lifting of Workers with a Crane or Hoist.
    viii. Any lift specifically identified or designated as a High-Risk Lift by the Project Responsible Authority or Qualified Engineer.

17. **Mobile and heavy operating equipment ('heavy equipment'):** Heavy-duty vehicles and equipment specially designed for executing construction, maintenance, or transportation tasks, frequently involving earthwork or material handling operations.

18. **Owner:** refers to a Brookfield Renewable representative assigned to oversee the contracted work. This may include the Brookfield Renewable Project Managers, Operational Managers, Asset Managers, Contractor Monitors, or designated 3rd party oversight vendors and is assigned on a per-project basis by the local Brookfield Renewable business.

19. **Project:** Refers to any operations, maintenance, or construction work conducted under a definitive agreement or contract for a Brookfield Renewable business.

20. **Public Safety:** includes the protection of members of the public who could be impacted by Brookfield Renewable operations, facilities, or by any work related thereto.

21. **Qualified Person:** A person is deemed qualified if he/she has obtained through education and/or experience the knowledge, skills, and expertise required to perform the job/assigned work according to prudent and current industry practice; and his/her manager has determined/verified the person's skill level.

22. **Security:** The protection of a person, physical assets, or organization against a Threat or

(monetary) loss brought about by the intentional act.

23. **Sub-contractor:** A person or company contracted or engaged by a Contractor to perform any aspect of the Work or portions thereof.

24. **Threat:** Any action, circumstance or event which has the potential or possibility to cause harm, loss, or damage to workers, assets, and/or operations.

25. **Work:** Any tasks related to activities such as construction, projects, maintenance, operating, switching, service work, field studies, etc., performed by Brookfield Renewable employees, Contractors, and/or Sub-contractors at Brookfield Renewable work sites. This may include activities at any stage of the project lifecycle (i.e., mobilization, setup, execution, commissioning or demobilization).

26. **Work in Proximity to Exposed Energized Electrical Equipment:** is work where a person, or conducting tools, equipment, or other objects are within the minimum clearance distance to energized electrical equipment, or are physically capable of, through unintentional movement, encroaching on the minimum clearance distance to energized electrical equipment.

27. **Work on exposed energized electrical equipment**: work where contact is made with an energized conductor or equipment.

28. **Work Site:** refers to the location at which the work is conducted. The work site may include Brookfield Renewable facilities or associated sites (such as roads used for the work, etc.), whether on Brookfield Renewable property or not.

29. **Workers:** Includes Brookfield Renewable employees, Contractors, and Subcontractor employees engaged in work as part of or affected by the project.

Schedule 5.6

Training Course Agenda Outline

1. SunEnergy1 Training Program

SunEnergy1 offers many training opportunities to educate our clients and their employees about PV Systems. We believe training and education is the key to understanding and safely living with renewable energy.

The training courses offered below are free of charge for systems installed by SunEnergy1. Additional training may be available on specific topics or systems installed by other contractors. Please contact SunEnergy1 for availability and pricing of other courses not listed below.

All training courses are limited to groups of 25 or less. The small group environment encourages attendees to ask questions and in order to gain a deeper understanding of the material presented. If a large number of personnel need to be trained, we will offer several training sessions to accommodate everyone.

2. PV System Training (Estimated Time: 1 hour)

This course is offered to our clients and their employees. The course will allow personnel to see every part of the system. This course is recommended for anyone working closely with the system, i.e. system owners, maintenance staff, grounds keepers and personnel involved with system monitoring. By the end of this training, personnel should have a basic knowledge of how the system works.

The training will begin by taking personnel to the PV array. Here we will explain about the PV panels, how they work, system maintenance, emergency protocols, and how to safely work around the system. This session will also allow personnel to look inside of the combiner boxes and to see how the system is wired.

The next part of the training will take place at the inverter equipment. Here we will discuss each of the pieces of equipment and their specific function. We will train personnel how to use the inverter monitor screen to retrieve information from the inverter, how to safely shut the inverter down and which controls should be left alone. We will also discuss how the inverter works and emergency protocols. We will offer the opportunity for personnel to see the inside of an inverter.

The last part of the training will take place at the point of interconnection. We will discuss each piece of equipment involved with the interconnection including equipment owned by the utility company.

Schedule 5.8

Spare Parts List

Quantity	Description	Manufacturer	Part Number
1	Combiner Box	Terrasmart	CSFT 400-13-50-4XF
2	OMCO Choice Rack	OMCO	Typical

Schedule 5.14

Permits

1. General Stormwater Permit, OH000006, issued by the Environmental Protection Agency to Dixon Solar, LLC issued on August 1, 2025.
2. USACE Preliminary Jurisdictional Determination, LRH-2022-33-OHR, dated March 24, 2022.
3. Permit to Plug a Well for the purpose of Oil & Gas, issued by Ohio Department of Natural Resources Division of Oil and Gas Resources Management, Well Name: RAPIER / D1-16-3541, API Well Number 34-079-2-0261-00-00 issued on November 24, 2025.
4. No Permit Required Letter from Department of the Army, Corps of Engineers dated March 11, 2025 confirming that Dixon Solar does not require a 404 Permit, issued for file number LRH-2022-33-OHR.
5. Certificate of Environmental Compatibility and Public Need (CECPN) issued by the Ohio Power Siting Board on September 21, 2023, in Case No. 21-768-EL-BGN, as amended on November 20, 2025, in Case No. 25-956-EL-BGA.
6. Ohio Environmental Protection Agency – NPDES Notice of Intent for Construction Stormwater (Effective August 1, 2025-April 22, 2028).

Schedule 5.16

Domestic Content Requirements

[See attached]

SCHEDULE 5.16

Domestic Content Definitions:

"**Applicable Domestic Content Parties**" means (i) the Contractor, (ii) any Subcontractor or (iii) any of their respective Affiliates that supply any of the Components.

"**Code**" means the Internal Revenue Code of 1986, as amended.

"**Components**" means any article, material, or supply, whether manufactured or unmanufactured, that is directly incorporated into the System specifically identified and limited to the components described in Table 1 of this Schedule. This definition is intended to comply with the definition of "Applicable Project Component" as set forth in the Domestic Content Requirements, specifically IRS Notice 2023-38, as modified by IRS Notice 2024-41, and shall be construed and applied consistently therewith.

Table 1:

Component
Steel photovoltaic module racking
Pile or ground screw
Steel or iron rebar in foundation

"**Domestic Content Bonus Credit**" means the bonus amount of the federal income tax credit provided under Code Sections 45, 45Y, 48 or 48E upon satisfaction of the Domestic Content Requirements.

"**Domestic Content Requirements**" means the requirements set forth in Code Sections 45(b)(9), 45Y(g)(11), 48(a)(12) or 48E(a)(3)(B), as applicable, meaning in general, as such concepts and definitions are further defined and described by guidance issued with respect to satisfying the applicable conditions set forth in the Code (including, without limitation, IRS Notice 2023-38 and IRS Notice 2024-41), that Owner must be in a position to certify that any steel, iron, or manufactured product that is a Component (upon completion of construction) was produced in the United States (as determined under 49 C.F.R. § 661).

"**IRS**" means the U.S. Internal Revenue Service or any successor agency.

Domestic Content Provisions:

1. Notwithstanding anything to the contrary in the Agreement:

    a. Contractor shall, and shall cause each Applicable Domestic Content Party to:

        i. With respect to the Components, satisfy the Domestic Content Requirements, including, without limitation, by provision to Owner of:

            I. a certification substantially in the form attached hereto as Appendix 1, with respect to the Components, executed by such Applicable Domestic Content Party; and

II. certified mill test reports or other documentation showing United States manufacture for each production run of the Components, substantially in the form of the example attached hereto as Appendix 2, executed by such Applicable Domestic Content Party.

ii. provide to Owner, upon request, records sufficient to establish and certify (as determined in the reasonable discretion of Owner, provided that the information set forth in Section 5 of IRS Notice 2023-38 and Section 4.08 of IRS Notice 2024-41 is reasonable) that, for each Component, Contractor and each Applicable Domestic Content Party have complied with the Domestic Content Requirements;

iii. maintain and preserve (and cause any Applicable Domestic Content Party to maintain and preserve) records associated with, and sufficient to demonstrate satisfaction of the Domestic Content Requirements with respect to the Components for a period ending on the date that is seven (7) years after the System is "placed in service" for U.S. federal income tax purposes; and

iv. promptly notify Owner of any failure by any Applicable Domestic Content Party to comply with its obligations under this Schedule.

b. If the IRS conducts an audit or examination with respect to Owner's submission that the System meets the Domestic Content Requirements, the Applicable Domestic Content Parties shall use reasonable best efforts to cooperate with and support Owner in such audit or examination. If the IRS determines that the System is not eligible to receive the Domestic Content Bonus Credit, the Applicable Domestic Content Parties shall cooperate with and support Owner in its efforts to pursue an administrative protest or judicial remedy with respect to such determination.

c. To the extent any additional guidance, regulations or other changes in law occur with respect to the Domestic Content Requirements that affect or otherwise relate to the System's eligibility for the Domestic Content Bonus Credit, the Parties shall negotiate to amend the Agreement and this Schedule as reasonably necessary in order to preserve the intent and benefit of the bargain to preserve the System's eligibility for the Domestic Content Bonus Credit.

d. Contractor shall indemnify, defend and hold harmless each Owner Indemnitee from any loss, reduction or disallowance of any Domestic Content Bonus Credit as a result of any breach of or failure to comply with or satisfy (i) the obligations of the Applicable Domestic Content Parties set forth in this Schedule or (ii) the PWA Requirements (as defined in Schedule 5.3).

Appendix 1 to Schedule 5.16

Form of Certification

To whom it may concern:

This Appendix 1 makes the following certification for each Component (as defined in Schedule 5.16), produced by [●] (the "**Applicable Domestic Content Party**") for the System:

a. With respect to any Component that is steel or iron and an "Applicable Project Component" (within the meaning of the Domestic Content Requirements), (I) the Applicable Domestic Content Party has treated the classification of such Component in accordance with the "New Elective Safe Harbor" (as set forth in Section 4 of IRS Notice 2024-41); and (II) all manufacturing processes took place in the U.S. (except with respect to metallurgical processes involving refinement of steel additives), as further described below, at the following location(s): [●]

The Applicable Domestic Content Party (i) has knowledge of the matters of this certification and (ii) acknowledges that the Owner will rely on this certification in the filing of tax returns.

A detailed description of the manufacturing process is as follows: [Applicable Domestic Content Party to provide complete description of the process that occurred to produce the product from raw materials to product (whether labeled a "manufacturing process" or another part of the process), and identify where each item on the list occurred (whether in the U.S. or otherwise).]

Appendix 2 contains certified mill test reports and/or other documentation substantiating the certifications set forth above.

Appendix 2 to Schedule 5.16

Certified Mill Test Reports and/or Other Documentation

[Applicable Domestic Content Party to attach]

Schedule 5.21

Compliance Obligations

[Attached]

Brookfield
Renewable Partners

BROOKFIELD RENEWABLE PARTNERS L.P.

VENDOR CODE OF CONDUCT

May 2024

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I. Introduction

Brookfield Renewable Partners L.P. and its controlled subsidiaries (collectively "Brookfield Renewable") are committed to conducting business activities with honesty and integrity and in compliance with applicable legal and regulatory requirements. We expect that anyone that provides goods or services directly or indirectly to Brookfield Renewable ("**Vendors**") adhere, at a minimum, to the same commitment to ethical business practice as set out in this Vendor Code of Conduct ("**Code**"), and to have the necessary policies and procedures in place to support such commitments within their supply chain.

If you have any questions regarding this Code, please contact your Brookfield Renewable representative.

II. Legal and Regulatory Compliance

Brookfield Renewable has global business activities and is subject to the supervision of numerous regulators. Brookfield Renewable expects all Vendors to:

a. Understand and comply with applicable laws and regulations.

b. Maintain all appropriate licenses, permits and other regulatory authorizations and requirements necessary to conduct the activities for which they have been hired by Brookfield Renewable.

III. Sustainability

Brookfield Renewable's Sustainability principles are embedded throughout its operations to ensure that its business model will be sustainable. As such, we encourage our Vendors to:

a. Have appropriate policies and programs to maintain good relationships with local communities, stakeholders, and Indigenous communities.

b. Have strategies in place to reduce their environmental impact, including measuring, reducing, and, as may be requested by Brookfield Renewable or required by law, reporting greenhouse gas emissions. Brookfield Renewable may actively engage with individual Vendors to encourage these practices, set robust emission reduction targets, and track progress against environmental commitments.

c. Assess the availability of, and where feasible use, equipment and components of high durability and recyclability and that are easy to dismantle and refurbish, incorporating recycled components into the manufacturing process when viable.

d. Use resources responsibly and conduct operations with the aim to protect and preserve the environment. As appropriate, Vendors facilities must have suitable plans for notifying local authorities in the case of accidental discharge or release of hazardous materials or any other environmental emergency.

e. Where adverse impact(s) directly linked to the Vendor's operation, products or services could not be mitigated or were unforeseen, collaborate with relevant stakeholders to remedy impacts.

IV. Integrity, Ethics and Anti-Corruption

Brookfield Renewable has a zero-tolerance approach towards illegal activities, including bribery and corruption, money laundering, tax evasion and sanctions and export control violations and views the prevention of Brookfield Renewable being involved in, or facilitating, any illegal activities as integral to its business.

Brookfield Renewable has in place an Anti-Bribery and Anti-Corruption Policy and Program designed to prevent employees and Vendors from paying or receiving bribes or undertaking corrupt activities. We expect our Vendors to share these principles and uphold our standards and to develop and maintain policies and programs as appropriate to ensure that their representatives understand and adhere to these standards.

Brookfield Renewable expects all Vendors to:

a. Comply with all applicable anti-bribery, anti-corruption, and anti-money laundering laws.

b. Comply with all applicable competition and antitrust laws.

c. Refrain from offering or making any payments of money or anything of value to any public officials, political parties, candidates for public office, charities or other business-related parties that could be considered to improperly influence any act or decision of such official or person for the purpose of promoting the business interests of Brookfield Renewable in any respect, or otherwise in violation of applicable law. This includes a prohibition on "facilitation[1]" payments of any kind.

d. Refrain from entering into business relationships or transactions with Brookfield Renewable personnel in an individual capacity or in any way that could create the appearance of a conflict of interest or impropriety.

e. Disclose to Brookfield Renewable and avoid or appropriately manage any actual or potential conflicts of interest arising due to either personal or business relationships.

f. Deal fairly and honestly in their activities, behaving in an ethical manner and not take unfair advantage of anyone through manipulation, concealment, abuse of privileged information, misrepresentation of facts, or any other unfair practice.

g. Comply with all applicable tax laws and refrain from knowingly facilitating a person committing fraudulent evasion of tax.

h. Confirm that neither they nor any related company (including parent companies) have been: (i) named or listed as the target of any economic, trade, or transactional sanctions imposed by any governmental agency; or (ii) otherwise banned or blocked pursuant to any laws that are enforced or administered by any governmental agency and promptly inform Brookfield Renewable if this changes.

i. Comply with all applicable trade restrictions and sanctions laws, and not knowingly employ or do business with anyone suspected of being connected with criminal or terrorist activities or who is the subject of applicable trade sanctions.

[1] Facilitation payments are small payments made to secure or speed up routine actions by public officials or other third parties that they are otherwise obligated to perform. This could include issuing permits, approving immigration documents, or releasing goods held in customs. Facilitation payments do not include fees prescribed by government agencies for expedited services.

j. Adopt and implement appropriate policies and exercise due diligence to ensure that minerals used in Vendors' supply chains originating from conflict-affected and high-risk areas have not directly or indirectly financed or benefited armed groups or other actors that that might contribute to human rights abuses or other violence. Any minerals originating in a conflict-affected and high-risk area shall be responsibility sourced in accordance with these requirements (including but not limited to tantalum, tin, tungsten, and gold). Vendors are encouraged to align their policies and due diligence with the OECD Due Diligence Guidance for Responsible Business Conduct, OECD Due Diligence Guidance for Responsible Supply Chains for Minerals from Conflict-Affected and High-Risk Areas, and/or IFC Performance Standards, where high risk is present or where relevant.

V. Responsible Labor Practices

Brookfield Renewable requires that workers be treated with dignity, respect and in accordance with applicable laws and its Human Rights Policy and in a manner that respects human rights. Brookfield Renewable expects our Vendors to respect human rights and maintain processes to identify and prevent adverse human rights impacts including modern slavery that could arise from their or their suppliers' operations. Our Vendor Code of Conduct expectations are integrated into Brookfield Renewable's Human Rights Policy (link).

Brookfield Renewable expects Vendors to:

a. Provide a safe and secure workplace for employees, contractors, and representatives that complies with all applicable health and safety laws, regulations, and practices.

b. Provide fair compensation, fair benefits, overtime pay, time off, breaks, leave, and holidays in the context of local market factors that allows workers to cover their essential needs, at a minimum, comply with applicable laws and regulations, including those pertaining to withholding taxes, minimum wage, labor relations, insurance, health and occupational safety, and timely compensation. Wage deductions will not be used as a disciplinary measure.

c. Provide training as necessary to ensure personnel have the required skills and certifications to perform the assigned work.

d. Adhere to age-related standards set by the International Labor Organization and not use child labor or any form of forced[1] or involuntary labor, human trafficking, slavery, or servitude.

e. Provide workers with clear, documented employment terms and not withhold workers' documentation including identity or immigration documents.

f. Respect freedom of movement allowing workers to voluntarily leave work at any time or terminate their employment upon reasonable notice without penalty.

g. Provide a workplace free from discrimination and harassment, whether on the basis of gender, age, disability, ethnicity or cultural affiliation, sexual orientation, belief, educational background, or any other basis prohibited by applicable law.

h. Respect the right for freedom of association and/or collective bargaining unless restricted under local law, without fear of discrimination or reprisal.

[1] Forced labor includes the transportation, harboring, recruitment, transfer, receipt, or employment of persons by means of threat, force, coercion, abduction, fraud, or payments to any person having control over another person for the purpose of their exploitation.

i. Provide fair and appropriate pay, benefits and working conditions.

VI. Workplace Health & Safety

Brookfield Renewable expects its Vendors to assess potential hazards to its workers and provide a workplace that seeks to prevent injury and ill-health and, at a minimum:

a. Provide and maintain a clean, safe, and healthy working environment that complies with applicable laws, directives, and regulations, and minimizes occupational hazards. Working conditions must include reasonable access to sanitary facilities, fire exits, potable water and sanitary food preparation, storage and eating facilities, and adequate lighting and ventilation.

b. Ensure that any Vendor-provided residential spaces are sanitary and safe, and equipped with adequate emergency egress, lighting, heat and ventilation, hot water for bathing, and reasonable personal space and entry/exit privileges.

c. Obtain, keep current and comply with all required health and safety permits.

d. Eliminate or control potential hazards through design, engineering, administrative controls, preventative maintenance and/or safe work procedures. When this is not possible, protect worker health through appropriate personal protective equipment programs.

e. Implement procedures and related measures designed to prevent injury to workers, including providing adequate work training and personal protective equipment as appropriate and safeguards against infectious disease.

f. Provide workers with appropriate workplace health and safety training in their language (or a language the worker can understand) for all identified workplace hazards that may be encountered in the course of their work.

g. Post required health and safety information in the work facility or a location identifiable and accessible by all workers.

h. Maintain reporting systems for workers to document, track and report health and safety hazards, incidents, and occupational injuries, and encourage workers to raise safety concerns without fear of retaliation or reprisal for so doing.

i. Enforce workplace health and safety rules, and promptly and suitably address workplace health and safety-related deficiencies, hazards, or risks.

j. Promptly inform Brookfield Renewable of any material health and safety incidents that occur while performing services for, or delivering goods to, Brookfield Renewable or its clients.

VII. Confidentiality

Vendors will protect personal, proprietary, and confidential information ("Confidential Information"), including information that they access, receive or process on behalf of Brookfield Renewable. Vendors must adopt and maintain processes to provide reasonable protections for such information and a degree of care that would apply to Vendor's own confidential information, but in any event, a reasonable degree of care.

VIII. Data Protection and Information Security

The safeguarding of Brookfield Renewable Confidential Information and privacy is of paramount importance to Brookfield Renewable. Brookfield Renewable expects Vendors to:

a. Comply with applicable laws and regulations, including those relating to the data protection, privacy, security or the processing of personal data and information ("Global Data Protection Laws") and not take any action that would prevent Brookfield Renewable from complying with its obligations thereunder.

b. Provide services, where Vendors have access to Brookfield Renewable Confidential Information, in accordance with an industry recognized information security framework and information security policy. Maintain appropriate administrative, technical, organization and physical safeguards to preserve and protect Brookfield Renewable Confidential Information.

c. Vendors must notify Brookfield Renewable immediately of any privacy breaches, security breaches or loss of Brookfield Renewable Confidential Information.

IX. Business Continuity and Disaster Recovery

We expect our Vendors to have adequate business continuity and disaster recovery plans in place designed in accordance with industry standards to maintain continuity of services to a reasonable degree after the occurrence of an event that results in an interruption or suspension of services. Upon request by Brookfield Renewable, Vendors will disclose in reasonable detail and discuss the elements of their business continuity plans.

X. Insider Trading

Information provided to Vendors by Brookfield Renewable may include material information that is not available to the public ("MNPI") and that could influence an investor's decision to buy or sell securities. Our Vendors agree not to, and will not permit their employees, contractors and agents who are in possession of Brookfield Renewable MNPI to (a) buy or sell any securities based on MNPI; or (b) recommend that any other person buy or sell any securities while in possession of MNPI.

If Vendors have any employees, contractors or agents located physically on-site at a Brookfield Renewable office, they may be subject to additional trading restrictions.

XI. Insurance

Vendors will maintain all required insurance coverage needed to provide services to Brookfield Renewable. Vendors will upon request promptly provide documentation to Brookfield Renewable that demonstrates such insurance coverage is in place.

XII. No Publicity

Vendors will not use any of Brookfield Renewable or its affiliates' name, marks other proprietary trademarks in any public or promotional materials without the prior written consent of Brookfield Renewable.

XIII. Ethics Reporting Hotline

Brookfield Renewable maintains an Ethics Reporting Hotline for its employees, Vendors, partners, and various other interested parties to anonymously report any concerns or raise any issues free of discrimination, retaliation or harassment pertaining to (i) accounting, auditing, or other financial reporting irregularities; (ii) unethical business conduct (including safety, environment, conflicts of interest, theft, and fraud); or (iii) violations of applicable law.

The Brookfield Renewable Ethics Hotline may be accessed by telephone (toll free) at the numbers listed in Appendix A or by submitting an anonymous report online at www.brookfield.ethicspoint.com. Brookfield Renewable will investigate all reports in compliance with applicable laws or as it otherwise deems necessary.

XIV. Compliance with this Vendor Code of Conduct

Vendors will ensure that their personnel, contractors, agents, and other representatives understand and comply with this Code. We expect our Vendors to share our commitment to the minimum standards and principles in this Code and to have their own internal policies and procedures in place to support and monitor their compliance with such commitment. Brookfield Renewable reserves the right to monitor, assess and audit all Vendors according to this Code. Where incorporated into any contract, this Code will survive the contractual term. Brookfield Renewable expects that Vendors will:

a. Promptly notify Brookfield Renewable as soon as it becomes aware of any actual or suspected breach of this Code.

b. Ensure that the contents of this Code are additional to and do not in any way affect or prejudice any of Brookfield Renewable's rights and remedies under any applicable agreement with Vendors. In the event of any non-compliance with the requirements of this Code or breach of any applicable agreement, Brookfield Renewable reserves its rights and retains the sole discretion to exercise any rights under this Code, any relevant agreement and/or local laws and regulations. The failure or omission by Brookfield Renewable to insist upon strict performance and compliance with any provision of this Code shall in no way constitute a waiver of its right to do so. For further information on reporting, see Section 13, Ethics Reporting Hotline.

c. Cooperate with Brookfield Renewable to ensure its compliance with applicable laws and regulations. This includes responding to Brookfield Renewable's reasonable requests for information, maintaining adequate documentation of compliance programs and obtaining compliance certifications as reasonably requested.

d. In the event of any conflict or ambiguity between any provision of this Code and the provisions of any relevant agreement with any Vendor, the provisions of that agreement will prevail.

e. This Code is subject to modification from time to time. The latest version of this Code is available here.

ETHICS REPORTING LINE:

Australia – 1800957963
Barbados – 1-833-388-0834
Bermuda – 1-833-388-0833
Brazil – 0800 550 0049
Canada – 1-800-665-0831
Cayman Island – 833-425-1502
Chile – 800914483
China – 86 21 8036 5429
Colombia – 01-800-5189736
France – 0800-91-2964
Germany – 0800 182 1227
Hong Kong – 800967085
India – 000 800 0502 237
Ireland – 1800849310
Japan –0800-123-9234
Luxembourg – 80027819
Mexico – 01800-436-0065
New Zealand – 0800 450 194
Peru – 0800 74879
Portugal – 800815087
Qatar – 800-0249
Singapore – 8004922253
South Korea – 080-880-0303
Spain – 900751347
Switzerland –0800-225-163
United Arab Emirates – 800 0120127
United Kingdom and Northern Ireland – 0800 652 6598
United States – 1-770-613-6339
Uruguay - 000 416 205 6408

Online (Rest of the world) – www.brookfield.ethicspoint.com
Online (Elera) - www.canalconfidencial.com.br/elera
Online (China, except Hong Kong) – https://brookfield.whispli.com.cn/pages/renewables

Note: The type of reports that can be made to the Ethics Reporting Line and Website may be restricted in certain jurisdictions under applicable local law. Please contact the Network for further details on such restrictions.

Schedule 5.21 - Attachment 2

Greenhouse Gas Protocol

See attached.

BRNA - Greenhouse Gas Data Collection Worksheet

***Deadline for data submission: ESG Emissions Scope 3 Suppliers data is due for entry by 15th of the following month.**

Overview

This spreadsheet provides data collection templates for vendor-related greenhouse gas ("GHG") emissions to be submitted to BRNA for the purpose of calculating Scope 3 GHG emissions.
This template will collect data for quantifying three main emission sources that contribute to construction emissions:

- emissions associated with manufacture of capital goods installed on-site (blades, PV modules, and battery cells),
- emissions associated with the manufacture of construction materials used on-site, and
- emissions from construction activity (fuel consumption in vehicles and machinery used on-site)

Project Description

Fill out/adjust the project description below, the information will be automatically populated in each Tab for 'Capital Goods','Construction materials' and 'On-Site Fuel Consumption'

Business Asset:	
Project Name:	
Project ID (IRF #):	
Type of Work:	
Supplier Name:	
COD Date:	

Instructions for completing template

This template contains three data collection sheets: 1. Capital Goods 2. Construction Materials, and 3. On-Site Fuel Consumption. To see what data is needed for each emission source, please refer to the tables below broken down by source type.

Emission Source	Frequency	Information needed
Capital Goods	As agreed based on contract	- List a description of equipment and the number of items (e.g. 100 259W solar PV panels, 11 turbines: Nordex N90/2500 (power 2 500 kW, diameter 90 m)) - The name of the manufacturer of the equipment. - The address of the manufacturing facility. If the address of the manufacturing facility is not known, the address of the distribution facility may be substituted and a note added in the comments column stating that the address is of the distribution facility.
Construction materials	As agreed based on contract	- Total cement/concrete (metric tonnes) and steel consumption (metric tonnes)
On-site fuel consumption	As agreed based on contract	- Onsite fuel (litres)

GHG Data Collection - Capital Goods

Business Asset: 0
Project Name: 0
Project ID (IRF #): 0
Type of Work: 0
Supplier Name: 0
COD Date: 0

Data Metric description: Equipment and capital goods, such as major components of electricity generation, transmission, and distribution (e.g. 100 259W solar PV panels, 11 turbines: Nordex N90/2500 (power 2 500 kW, diameter 90 m)

Equipment Description

Delivery Data(mm/yy)	Description of Equipment	Number of Units	Manufacturer of Equipment	Address of Manufacturing Facility(Optional)	Country of Manufacturing	Equipment Commisioning Date(mm/yy)

Construction Emissions | Construction materials | GHG Data Collection

Business Asset	0
Project Name:	0
Project ID(IRF #):	0
Type of Work:	0
Supplier Name:	0
COD Date:	0

Data Metric description Construction Materials used on site

	Construction Materials	
	Concrete	**Steel**
Unit	(Metric Tonne)	(Metric Tonne)
January		
February		
March		
April		
August		
June		
July		
August		
September		
October		
November		
December		
TOTAL	**0.0**	**0.0**

Construction Emissions | On-site Fuel Consumption | GHG Data Collection

Business Asset	0
Project Name:	0
Project ID(IRF #):	0
Type of Work:	0
Supplier Name:	0
COD Date:	0

Data Metric description: Construction activity (fuel consumption in vehicles and machinery used on site)

	On-Site Fuel Combustion						
	Stationary Combustion (e.g. generators, equipment operation, etc.)				Mobile Combustion (e.g. vehicles, crane)		Other Fuel combustion (Optional)
	Diesel	Gasoline	Propane	Natural Gas	Diesel	Gasoline	Acetylene for welding
Unit	(L)	(L)	(L)	(M^3)	(L)	(L)	(M^3)
January							
February							
March							
April							
August							
June							
July							
August							
September							
October							
November							
December							
TOTAL	**0.0**	**0.0**	**0.0**	**0.0**	**0.0**	**0.0**	**0.0**

Brookfield
Renewable Partners

BROOKFIELD RENEWABLE PARTNERS L.P.

ANTI-BRIBERY AND ANTI-CORRUPTION POLICY

May 2024

APPLICATION OF THE POLICY

This Anti-Bribery and Anti-Corruption Policy (this "Policy") applies to all directors, officers, employees, and temporary workers[1] collectively "personnel" of Brookfield Renewable Partners L.P. ("BEP"), Brookfield Renewable Corporation and all of their controlled subsidiaries, and the Board of directors of BEP's general partner (collectively, "Brookfield Renewable", "we", "us", "our" or "the Organization"). This Policy is applicable to the Organization's operations worldwide, unless such a controlled subsidiary has adopted its own Anti- Bribery and Anti-Corruption Policy that is consistent with the provisions of this Policy[2].

This Policy reflects the standards to which the Organization expects any person or entity that performs services on behalf of the Organization to adhere to when acting on the Organization's behalf. Such persons or entities acting on the Organization's behalf could include business associates, partners (including joint venture partners), agents, intermediaries, representatives, suppliers, contractors, third party service providers, consultants, and any other individual or entity that performs services for or on behalf of the Organization (collectively "Third Parties").

This Policy should be read in conjunction with the Code of Business Conduct and Ethics ("the Code"), which serves as a guide for how you should conduct yourself as a member of the Brookfield Renewable team. The Organization has a corresponding *Anti-Bribery and Anti-Corruption Program* that outlines the specific actions we take to prevent and detect bribery in our business. As set forth in this Policy, there are certain circumstances in which you are required to take specific actions in accordance with the Anti-Bribery and Anti-Corruption Program.

Please direct any questions and requests for authorization relating to this Policy to the Chief Risk Officer ("CRO"), internal legal counsel or any Senior Vice President or more senior individual within the Organization ("Senior Executive"). Please see Appendix "A" hereto for contact information for the CRO and the internal legal counsel that should be contacted with respect to this Policy.

COMMITMENT TO ANTI-BRIBERY AND ANTI-CORRUPTION

Brookfield Renewable and its subsidiaries are committed to operating with the highest ethical standards and this includes preventing bribery in our business activities. This Policy sets forth key principles and standards, as well as certain key supporting policies and procedures, that address bribery risk in our business and which should guide your conduct.

The purpose of this Policy is to reiterate the Organization's commitment to conducting its business with honesty and integrity and in full compliance with applicable anti-bribery or anti-corruption laws, including, but not limited

[1] For purposes of the Policy, "temporary workers" include non-full-time employees and consultants and contractors etc. that work on our premises. The business group retaining a temporary worker is responsible for ensuring that the temporary worker certifies their commitment to comply with the Policy.

[2] Where a controlled subsidiary has adopted its own policies that are consistent with the provisions of this Policy, the controlled subsidiary's directors, officers, employees, and temporary workers follow those policies, and, in case of a conflict, the terms of that Policy control. Where a controlled subsidiary has not adopted their own policies that are consistent with the provisions of this Policy, the controlled subsidiary must review the Policy in the context of their business to ensure that the Policy and such policies are appropriate and address all legal and regulatory requirements and risks applicable to their business.

to, those applicable in the jurisdictions which we operate. If local laws are more restrictive than this policy, the more stringent local requirement will apply.

PROHIBITION

Bribery and corruption are strictly prohibited.

We do not pay bribes in furtherance of our business and expect that you will not do so on our behalf. We have a zero-tolerance approach towards bribery. This commitment comes from the highest levels of management and you must meet this standard.

A "bribe" is anything of value that is offered, promised, given or received by any party to influence a decision or to gain or reward an improper or unfair advantage for the benefit of the Organization or any other party. "Corruption" is the abuse of power or position for private gain. Bribery and corruption can take many forms, including the offering, provision or acceptance of:

- Cash payments;
- Non-arm's length loans, forgiveness of debt or other transactions;
- Phony jobs or "consulting" relationships;
- Kick-backs;
- Political contributions, charitable donations or sponsorships;
- Employment opportunities, directorships, internships or secondments;
- Social benefits;
- Excessive discounts or rebates;
- Procurement and service contracts; or
- Gifts, travel, entertainment, hospitality, and the reimbursement of expenses

The Organization strictly prohibits all bribery or corruption, in any form whatsoever.

Do not make "facilitation payments".

Facilitation payments are also a form of bribe and are, therefore, not permitted. Facilitation payments are small payments made to secure or speed up routine actions or otherwise induce public officials or other Third Parties to perform routine functions they are otherwise obligated to perform, such as issuing permits, approving immigration documents or releasing goods held in customs. This does not include official, legally permitted statutory or administrative fees formally imposed and codified by government agencies for expedited services.

If you have a question about whether a particular payment is permitted under this Policy, please contact the CRO, internal legal counsel listed in Appendix "A" or a Senior Executive prior to making such payment.

DEALING WITH PUBLIC OFFICIALS

Interactions with public officials require enhanced scrutiny and sensitivity.

A "public official" is any person who is employed by or is acting in an official capacity for a government, a department, agency or instrumentality of a government, regulator or a public international organization or any

other persons so defined in the applicable laws of the jurisdictions in which we operate. This is a broadly defined term and includes elected or appointed persons who hold legislative, administrative or judicial positions such as politicians, bureaucrats, civil servants, and judges. It also includes candidates for political office, political party officials and persons who perform public functions such as professionals working for public pension plans, public health agencies, water authorities, planning officials and agents of public international organizations such as the United Nations or World Bank. A "public official" also includes employees of government-owned or controlled businesses such as the manager of a state-owned public utility. For example, if a government has an interest in a utility and exercises control over the activities of that utility, then the utility's officials are likely to be considered public officials. Third-parties acting at the direction of these individuals and entities should also be considered public officials.

There is increased sensitivity and scrutiny of dealings with public officials because this has traditionally been an area where bribery activity and corruption are more likely to occur. Be cognizant of these risks in your dealings and interactions with public officials and consider how your actions may be viewed. For example, providing payments, gifts or employment to close relatives of public officials has been treated by enforcement authorities as direct payments to the public officials and therefore may constitute violations of law.

This means that any gift to a public official must strictly comply with any applicable guideline for the giving and/or receipt of gifts, meals, entertainment and solicited charitable donations of the Organization or such other guidelines as may be established from time to time under the supervision of the Organization's CFO and General Counsel. Because interactions with public officials carry special risks under applicable anti- bribery and anti-corruption laws, contracts and payments to public officials should be reviewed carefully to determine what additional safeguards, if any, may be necessary to protect the Organization. Please seek authorization from the CRO, internal legal counsel listed in Appendix "A" or a Senior Executive prior to entertaining, contracting with, or offering or making payments to public officials.

Hiring public officials or persons referred by public officials requires enhanced scrutiny.

Hiring public officials or applicants related to, or referred by, public officials could be seen as a bribe in certain situations and should be subject to enhanced review to ensure that the related risks are appropriately mitigated. Consult your Human Resources team for procedures related to identifying and mitigating these risks. In practice, these sorts of situations can be complex and this Policy may not cover every circumstance that you may encounter when making hiring decisions. When in doubt, please contact the CRO, internal legal counsel listed in Appendix "A" or a Senior Executive.

GIFTS, MEALS AND ENTERTAINMENT

The giving or receiving of gifts, meals and entertainment should be proportionate and reasonable for the circumstances, for legitimate purposes only, and not with a view to improperly inducing a third-party to misuse their position or as a quid pro quo for official action or with linkage to an official decision.

Subject to the restrictions set out in the prior section relating to public officials, gifts given to or received from persons who have a business relationship with the Organization are generally acceptable, if the gift is reasonable in value, is appropriate to the business relationship, is not given or received to gain an improper advantage and does not create an appearance of impropriety. No cash payment or cash equivalents should be given or received.

Meals and other entertainment (e.g. tickets to sporting events or theatre, rounds of golf) given to or received from persons who have a business relationship with the Organization are generally acceptable, but again only if the meal or entertainment is reasonable in value, appropriate to the business relationship, infrequent, is not given or received to gain an improper advantage, does not create an appearance of impropriety, is otherwise in accordance with applicable laws and regulations, and if a representative from the sponsoring organization (the party paying for the meal or entertainment) is present at the event. For the avoidance of doubt, if a representative from the sponsoring organization is NOT present at the event, the meal or entertainment would be considered a gift. Note that many jurisdictions have laws restricting meals and entertainment of public officials or their close relatives.

Gifts, meals and entertainment that are repetitive, no matter how small, may be perceived to be an attempt to create an obligation to the giver and should not be provided. Gifts or entertainment given close in time to when a decision impacting Brookfield Renewable's business is being made (including by a private business partner) may be perceived as a bribe in return for a favourable decision and should also not be provided. Employees should not pay for gifts, meals and entertainment personally to avoid having to report or seek approval for it.

Travel (e.g. for due diligence, site visit or Investor Day) and related items given or received should follow the same principles as for gifts. When travel or related items are given, payment should be made directly to the provider (as opposed to providing a reimbursement to the individual), whenever possible. Under no circumstances should cash or per diem reimbursements be provided.

If you are in doubt as to whether gifts, meals or entertainment proposed to be given or received are proportionate and reasonable for the circumstances, please consult the CRO, internal legal counsel listed in Appendix "A" or a Senior Executive.

POLITICAL CONTRIBUTIONS AND LOBBYING

Do not offer or make contributions to political parties, officials and/or candidates that might influence, or be perceived as influencing, a business decision.

To ensure that we do not violate law and regulations regarding political contributions in any country, all political contributions, no matter how small or insignificant, made on behalf of the Organization (directly or indirectly), or otherwise relating to its business, must comply with the applicable regional *Political Contribution Policy*. Political contributions should not be made on behalf of the Organization in countries in which we do not have a presence. Consult the applicable regional *Political Contribution Policy* before making any political contributions on behalf of the Organization.

Political contributions made by individuals on their own behalf and unrelated to the Organization's business should comply with local laws and regulations. You should also consult the applicable regional *Political Contribution Policy* before making any political contributions on your own behalf.

If you are in doubt as to whether a proposed political contribution is appropriate, please consult the CRO, internal legal counsel listed in Appendix "A" or a Senior Executive.

Do not engage in any lobbying activities on behalf of the Organization without specific authorization.

Lobbying activities generally include attempts to influence the passage or defeat of legislation and it may trigger registration and reporting requirements. In many jurisdictions, the definition of lobbying activity is extended to cover efforts to induce rule-making by executive branch agencies or other official actions of agencies, including the decision to enter into a contract or other arrangement.

You may not engage in lobbying activities on behalf of the Organization without the prior authorization from the CRO, internal legal counsel listed in Appendix "A" or a Senior Executive.

CHARITABLE DONATIONS

Do not solicit or offer donations to suppliers, vendors or public officials in a manner which communicates that a donation is a prerequisite for future business or that the offer of a donation is intended to obtain or retain business and a business advantage.

We encourage our directors, officers and employees to contribute personal time and resources to charities and nonprofit organizations. However, unless the solicitation is supported by the Organization, you are prohibited from using the Organization's resources to solicit donations. Charitable donations made by individuals on their own behalf should have no relationship to company business and must comply with local laws and regulations.

Requests for donations may take many forms (e.g. direct requests or indirect requests such as purchasing a table, a round of golf or otherwise contributing to an event designated to raise money for a particular charitable cause/organization). All requests on behalf of the Organization for corporate donations to charities and other not-for-profit organizations shall be authorized in advance by the CRO, internal legal counsel listed in Appendix "A" or a Senior Executive. Charitable donations or requests for charitable donations made by individuals on their own behalf should have no relationship to the Organization or its business and must comply with local laws and regulations.

To help ensure that our practices are reasonable, appropriate and otherwise in accordance with applicable regulatory requirements, the making of certain solicited donations must be logged and/or pre-approved. If you are requested by a public official to make a donation to a particular charity, please seek authorization from the CRO, internal legal counsel listed in Appendix "A" or a Senior Executive before agreeing to or making the donation.

RECORD-KEEPING

Record all our transactions in a complete, accurate and detailed manner so that the purpose and amount of the transaction is clear.

In addition to prohibiting bribery and corruption, some anti-bribery and anti-corruption legislation requires proper record-keeping and the establishment and maintenance of internal controls. The purpose of these provisions is to prevent companies from concealing bribes and to discourage fraudulent accounting practices.

All the Organization's transactions must be recorded completely, accurately and with sufficient detail so that the purpose and amount of any payment is clear. No accounts or payments may be kept "off-book". False, misleading, or artificial entries must never be made in the books and records of the Organization for any reason.

THIRD PARTIES

Third Parties are not permitted to pay, offer, accept or request bribes on our behalf.

The Organization may be scrutinized and/or prosecuted for failing to detect and prevent bribery by a person associated with it. This includes any Third Party (as defined above). Employees should avoid doing business with Third Parties who do not have a zero-tolerance approach to bribery.

This means due diligence shall be undertaken on Third Parties to establish their anti-bribery credentials, where warranted by the assessed level of risk. This could include informing these persons (and associated companies) of this Policy, meeting with them to better assess their character, and making inquiries into their reputation and past conduct. Other risk mitigation strategies, such as putting appropriate anti-bribery provisions in agreements with Third Parties, should also be implemented, as appropriate.

Please refer to Brookfield Renewable's Third-Party Due Diligence Guidelines – Bribery and Corruption Risks for further details.

REPORTING

The Organization's personnel have an obligation to adhere to this Policy. If you witness behavior on the part of the Organization's personnel or any Third Party that you believe may represent a violation of this Policy, you must promptly report it. Internal reporting is important to the Organization and it is both expected and valued.

You are required to be proactive and promptly report any suspected violations of this Policy, or any illegal or unethical behavior of which you become aware, including, but not limited, to any situations where a public official or other party requests or appears to request an inappropriate benefit. The Organization takes all reports seriously, and every report received will be assessed and, where necessary, an appropriate investigation will be undertaken. The confidentiality of reported violations will be maintained where possible, consistent with the need to conduct an adequatereview and subject to applicable law.

Reports should in the first instance be made to the CRO, internal legal counsel listed in Appendix "A", or a Senior Executive, who will ensure that the information is properly handled and escalated, as necessary. In the event that this does not appear to be an appropriate avenue because of the nature or the content of the report, it should be made to the Ethics Reporting Line or the Ethics Reporting Website. The Ethics Reporting Line is managed by an independent third party called the Network and allows anyone to anonymously report suspected unethical, illegal or unsafe behavior, in English, French, Portuguese, Spanish and other languages, toll-free, 24 hours a day, 7 days a week. Anonymous reports can also be made online using the Ethics Reporting Website, which is also managed by the Network and is offered 24 hours a day, 7 days a week in the same languages as the telephone line. Please see Appendix "A" for the contact details of the Ethics Reporting channels.

No retribution or retaliation will be taken against any person who has made a report based on the reasonable good faith belief that a violation of this Policy has occurred.

ENFORCEMENT AND DISCIPLINARY ACTION

The Organization will impose discipline on individuals found to have breached this Policy, in a manner that is fair,

consistent and that reflects the nature and facts of the violation. Anyone subject to this Policy who violates it may face disciplinary actions up to and including termination of his or her employment for cause and without notice. The violation of this Policy may also violate certain anti-bribery and anti-corruption laws. If the Organization discovers a violation of any anti-bribery laws, it may refer the matter to the appropriate authorities, which could lead to penalties, fines or imprisonment or other liability.

APPENDIX A

CONTACT INFORMATION FOR POLICY

INTERNAL LEGAL COUNSEL

Jennifer Mazin	(416) 369-3369	jennifer.mazin@brookfield.com
Adrienne Moore	(416) 369-4912	adrienne.moore@brookfield.com
Ronnie Ollo	(416) 369-6015	ronnie.ollo@brookfield.com
William Fyfe	(416) 369-2330	william.fyfe@brookfield.com
Alexander Metz	(646) 992-2514	alexander.metz@brookfieldrenewable.com
Carlos Gustavo Andrioli	+55 (21) 2439 5156	gustavo.andrioli@elera.com
Emmanuelle Rouchel	+44 (20) 7408 8470	emmanuelle.rouchel@brookfield.com
Wayne Su	+86 21 2306 0743	wayne.su@brookfield.com
Tanya Mehta	+91 22 6600 0716	tanya.mehta@brookfield.com
Fernando Arbelaez Soto	+57 (604) 325 6940	farbelaez@isagen.com.co

CHIEF RISK OFFICER

Brian Cook	(819) 639-8441	brian.cook@brookfield.com

ETHICS REPORTING LINE:

Australia – 1800957963
Barbados – 1-833-388-0834
Bermuda – 1-833-388-0833
Brazil – 0800 550 0049
Canada – 1-800-665-0831
Cayman Island – 833-425-1502
Chile – 800914483
China – 86 21 8036 5429
Colombia – 01-800-5189736
France – 0800-91-2964
Germany – 0800 182 1227
Hong Kong – 800967085
India – 000 800 0502 237
Ireland – 1800849310
Japan –0800-123-9234
Luxembourg – 80027819
Mexico – 01800-436-0065
New Zealand – 0800 450 194
Peru – 0800 74879
Portugal – 800815087
Qatar – 800-0249
Singapore – 8004922253
South Korea – 080-880-0303
Spain – 900751347
Switzerland –0800-225-163
United Arab Emirates – 800 0120127
United Kingdom and Northern Ireland – 0800 652 6598
United States – 1-770-613-6339
Uruguay - 000 416 205 6408

Online (Rest of the world) – www.brookfield.ethicspoint.com
Online (Elera) - www.canalconfidencial.com.br/elera
Online (China, except Hong Kong) – https://brookfield.whispli.com.cn/pages/renewables

Note: The type of reports that can be made to the Ethics Reporting Line and Website may be restricted in certain jurisdictions under applicable local law. Please contact the Network for further details on such restrictions.

Schedule 8.1

Commissioning Procedures

When the System is ready for commissioning, Contractor's construction manager shall submit a request for commissioning to the Contractor's commissioning crew that includes results for conductor insulation testing, dc polarity testing, and inspection. The commissioning crew is independent of the construction crew, reviews the documentation provided with the commissioning request, performs an independent walk down of the physical construction and performs the testing listed in Schedule 1B.

Contractor will commission the completed System, including inspection, testing and approval of the operation of the System and will provide a "Commissioning Notice," which verifies that the System is functioning as expected within acceptable parameters set forth in Schedule 1B. An operations and maintenance manual will be furnished for the System as well as initial operations and maintenance training.

System		
	Overall Site Condition	Inspect general condition of Site. Verify the cleanliness of Site, structure, and tiles. Confirm 'Danger' signage is erected and check security and safety features are in place.
	Installed Equipment	Verify that all equipment on construction drawings is installed.
	PV Mounting	Verify that all modules are properly placed, spaced and aligned. Check for cracks and other defects in each module. Verify that condition frames and clamps are in place.
Electrical		
	Inverter	Follow manufacturers start up and commissioning procedures.
	AC/DC Disconnect	Inspect each disconnect and ensure the proper positioning. Also, check that the appropriate safety signage is in place.

Monitoring		
	System ("DAS")	Inspect the DAS logger and modem. Verify that operational data is correctly collected.

	Power Meter	Check the functionality of power readings through the DAS.
	Weather Station	Check the functionality of meteorological sensors.

Testing	
	Performance Tests in accordance with Schedule 1B.

Mechanical Tests

Visual and Mechanical Inspections

- All Cables Installed: Inspections of cables for physical damage, and proper connections where accessible, shall be performed and documented. Inspection shall apply to Contractor-installed wiring. Visual torque marks shall be made on each lug with pounds/inch measurement and initials of the installer. Preassembled equipment will be visually inspected to ensure factory torque marks have not been changed or altered.
- General Array Visual Inspection: Look for any broken modules, dangling string wires, and shading issues. Verify that mounting structures and tracking components are intact and free of obstructions. Check for oxidation or corrosion issues and rectify as needed. Check for condition of welded assemblies.
- As-Built Drawings: Accurate and legible drawings of string layout and system configuration shall be provided.
- Conformance with Technical and Warranty Requirements: Contractor shall prepare and provide a checklist to reflect that Contractor has constructed the Facility in accordance with the requirement of this Agreement. The checklist should include but not be limited to specifications on the major equipment including the PV modules, inverters, transformer, combiner, and recombiner boxes, conduit, wire, and monitoring system components.
- Documentation: Digital photos with time stamps at time of inspection shall be submitted to Owner. Each inverter and transformer shall have a nameplate and external photo to document placement, condition, installation and craftsmanship.

Electrical Operation Tests:

- Insulation Tests: Perform insulation resistance testing on each cable with respect to ground and adjacent cables by applying a potential of 1000 VDC for one minute to check for contamination due to moisture, dirt or carbonization. This test does not represent the total dielectric strength of cable insulation or identify weak spots in the cable insulation. Test shall include cables from the Inverter to DC disconnects, from the inverter to the (transformer, from the transformer to the) AC disconnect, from AC disconnect to the tie in breaker or bus.

- Continuity Testing: To ensure that proper grounding is established in the array and entire system including all electrical equipment, modules, sub arrays, inverters, transformers, and ground rods.
- String Tests: Testing shall verify VOC (open circuit voltage) and IOP (operating current) for all strings and make corrective actions if values are not within ranges specified for the Equipment. Check individual string harness fuses for operation and proper size. The irradiance, module temperature, time of day and string identifiers shall be included in the report. IV Curve tracing to be performed on 5% of strings, to be distributed evenly across the site.

COMMISSIONING PROCEDURES

1.0 OVERVIEW

1.1 The Facility comprises components and systems as described in Schedule 1C (Scope of Work).

A. The commissioning plan shall detail the pre-commissioning and commissioning activities required to make the Facility operational.

B. The commissioning plan shall provide a detailed methodology and procedures for all commissioning team activities, provide check lists to record commissioning activities, and function as the record document that assures that equipment and systems installed during the construction process have been inspected for conformance to the design specifications and drawings, are in accordance with manufacturer's requirements, and made ready for operation.

1.2 Switchgear installation and interconnection work shall be completed prior to commencement of AC commissioning work on-site.

1.3 Contractor shall conduct a Completion Test that includes Functional Tests as described in this, to verify the functional performance of the Facility. Such testing to be followed by Facility Substantial Completion Tests as described in Schedule 8.1, to demonstrate that the Facility has achieved at least the Minimum Capacity for the purposes of meeting the requirements of the Agreement.

1.4 Capitalized terms used in this Schedule 8.1, but not otherwise defined herein, shall have the same meaning set forth in the Agreement.

2.0 MECHANICAL COMPLETION TESTS

2.1 LOW VOLTAGE INSULATION RESISTANCE TESTING

A. PURPOSE: To verify the condition of electrical insulation for low voltage conductors

B. SCOPE: All DC and AC conductors 1500v and below

C. EQUIPMENT: Insulation tester

D. CONDITIONS: N/A

E. PROCEDURE: Following the testers' procedures, measure all conductors by applying a known voltage at low current and measuring resistance to ensure no ground-faults are occurring.

F. CRITERIA: Record all values and troubleshoot any wires that have a reading under 50 M Ohms corrected for Temp and humidity. If under 50 M Ohms requires investigation and may require replacement of the wire. For medium voltage conductors, perform tests to applicable IEEE and NETA testing standards for medium voltage conductors.

2.2 OPEN CIRCUIT VOLTAGE TESTING

A. PURPOSE: To determine that all strings are properly connected (number of modules and string polarity) and that all PV modules are producing an appropriate voltage level.

B. SCOPE: All module strings.

C. EQUIPMENT: Voltmeter with an accuracy of at least 1%; Calibrated Thermocouple or infrared thermometer

D. CONDITIONS: The test shall be conducted under full sun (>400W/m2) and stable sky conditions, generally between the hours of 10:00 am and 2:00 pm. If such conditions are not available due to the season of the year, then such test shall not be conducted until the earlier of the date on which such conditions exist and 3 Business Days following the date on which the test would otherwise have been conducted. If such conditions are not available following 3 Business Days, then the rest may be conducted under stable sky conditions with a minimum irradiance of 100W/m2.

E. PROCEDURE: Measure the temperature of the PV modules using a thermocouple or infrared thermometer. It is sufficient to measure the temperature of 2-3 modules and take the average. Calculate expected Voc: Referring to the PV manufacturer-supplied equation for Voc as a function of temperature, calculate the expected Voc of each string. Independently test each string at the combining location (typically a combiner box or at the inverter). Contractor may also use a solmetric IV curve tracer to capture Voc. Record the voltage of each string.

F. CRITERIA: For stable sky conditions and irradiance above 400W/m2, string voltages shall conform to within 5% of the expected voltage as calculated in the procedure in the previous section. Each string shall conform to within 3% of the average string voltage in the same combiner box under identical temperature and irradiance conditions. For irradiance less than 400W/m2 or for unstable sky conditions (if irradiance changes by more than 10%, or ambient temperature changes by more than 5˚C), compare each string's measured voltage to periodic measurements on a known good (reference) string. The reference string must be measured at irradiance above 500W/m2 and its measured voltage must be within 5% of the voltage as calculated in the procedure in the previous section. Voltage on non-reference strings shall be within 5% of the reference string voltage under the same temperature and irradiance conditions. If results fall outside of parameters, notify OWNER within 72 hours.

2.3 MECHANICAL COMPLETION QA/QC REPORTS for modules, inverters, racking, combiner boxes, and transformers.

A. PURPOSE: To verify all equipment is inspected and tested to the following parameters and ensure parameters are within manufacturer's approved specifications.

B. SCOPE: All modules, inverters, racking, combiner boxes, and transformers, as applicable. QAQC forms shall be submitted.

C. EQUIPMENT: Per EPC

D. CONDITIONS: N/A

E. PROCEDURE/CRITERIA: The following items will be confirmed (if applicable):

i. Confirm Equipment has been installed per manufacturer's specification.
ii. Confirm the Equipment is properly grounded.
iii. Verify ground connected in a continuous path with surrounding Equipment
iv. All disconnect switches are functional.
v. Equipment has been protected from damage
vi. The Equipment has the correct number of strings per the design.
vii. DC string feeders are labeled and tightened to the correct torque per the manufacturer's installation manual and are installed in the correct order.
viii. Physically tug on all wires for a visual inspection of loose connections.
ix. All conductors should be marked with a straight line on the screw once they have been torqued to the appropriate setting.

2.4 POWER TRANSFORMER Factory testing

Product/Design Testing:

Performs the routine tests as defined in the current IEEE standards C57.12.00 and C57.12.90, which include:

- **Winding resistance measurements (Section 5):** Of all windings on the rated voltage tap and at the tap extremes. Acceptance Criteria: Total Loss within tolerance.
- **Ratio test and phase relation (Section 6, 7):** On the rated voltage connection and on all tap connections. Acceptance Criteria: ±0.5% of Calculated Ratio.
- **No-load and excitation current (Section 8):** At 100% and 110% voltage and at rated frequency. Acceptance Criteria: +10% of Guaranteed NLL.
- **Impedance voltage and load loss (Section 9):** At rated current and frequency on the rated voltage connection and at the tap extremes. Acceptance Criteria: +6% of Guaranteed Total Losses
  ±7.5 of guaranteed %IZ.

- Low Frequency Test
  - **Applied Voltage (Section 10.6):** On rated voltage connection of primary and secondary windings. HY & LV Winding Test Voltage. Acceptance Criteria: See IEEE C57.12.90
  - Induced Voltage (Section 10.7) - Class I Power Transformer Test: On the rated voltage connection of primary & secondary windings. AC Level: 2 times rated voltage for 7200 cycles. Acceptance Criteria: See IEEE C57.12.90

- **Lightning Impulse Test (Section 10.4):** Quality Control test One reduced wave followed by one full wave on HV phase terminals only. Chopped wave and switching impulse are not included. Acceptance Criteria: See IEEE C57.12.90
- **Auxiliary Wiring Dielectric** Test: Dielectric insulation of 1000VDC to ground. Acceptance Criteria: See IEEE C57.12.90
- **Bushing Current Transformers:** Dielectric insulation of 2500VDC to ground. Check of polarity and ratio of bushing current transformers. Acceptance Criteria: ±0.5% of Calculated Ratio
- **Standard Leak test of Fully Assembled Transformer (Section 8.2 of C57.12.00):** *5* psig of dry air (oil at ambient temperature) for 24 hours. Acceptance Criteria: No leaks.
- **Mechanical inspection:** Conformance to specs, standards and drawings, Check of layout, dimensions, clearances, etc., Check of nameplate data, Functional test of all accessories and auxiliary devices.

2.5 MEDIUM VOLTAGE CONDUCTOR INSULATION TESTING

A. PURPOSE: To verify the condition of electrical insulation **for medium voltage conductors**

B. SCOPE: All field installed conductors over 1500v

C. EQUIPMENT: All conductors over 1500v

D. **CONDITIONS:** Following the testers' procedures to perform the following tests.

E. PROCEDURE/CRITERIA:

- Cables – Medium & High Voltage Tests -Applies to AC cables between and transformer and substation (per documentation provided by Engineer of record) and/or Point of Interconnection. Inspect and test each medium and high voltage cable in accordance with IEEE 400 and 400.2. Each cable shall:
  (1) pass a VLF acceptance withstand test, based on table #3 in IEEE 400.2, with a minimum test time of 30 minutes, per the cable rating of the MV system (VLF Withstand Voltage test parameters. The purpose of a withstanding test to verify the integrity of the cable under test. This is a common test will complete.

2.6 AC DISTRIBUTION TEST

A. PURPOSE: Typical inspections and testing procedure for AC Distribution equipment prior to system start-up.

B. SCOPE: All equipment incorporated into the AC Distribution scheme including substation (per documentation provided by Engineer of record, switchgear, switches, medium voltage cables, relays, surge arrestors, grounding and other equipment required based on AC Distribution configuration.

C. EQUIPMENT: to be determined by Contractor.

D. CONDITIONS: N/A

E. PROCEDURE/CRITERIA:

(i) All Equipment

Visual and Mechanical Inspection

- Compared equipment nameplate data with drawings and specifications.
- Inspected for physical damage, electrical and mechanical condition.

(ii) Switchgear and Switchboard Assemblies - General

Visual and Mechanical Inspection

- Inspected for proper alignment, anchorage, required area clearances and grounding.
- Inspected all doors, panels and sections for paint, dents, scratches, fit and missing hardware.
- Inspected for proper identification of protective devices and switches.
- Inspected all mechanical indicating devices for correct operation.
- Physically tested all electrical or mechanical interlocks to assure proper function.
- Checked tightness of accessible bolted bus joint connections by calibrated torque wrench method and mark accordingly.
- Cleaned interior and insulator surfaces. Inspected insulators for evidence of physical damage or contaminated surfaces.
- Inspected control power source for physical damage, cracked insulation, broken leads, tightness of connections, defective wiring, and overall general condition. Verified that primary and secondary fuse ratings or circuit breakers matched drawings. Verified correct functioning of the draw-out disconnecting and grounding contacts and interlocks (as applicable).
- Verified that fuse and/or circuit breaker sizes and types corresponded to drawings and power system study as well as to the circuit breakers address for microprocessor communication packages (as applicable).
- Verified that current and potential transformer ratios corresponded to drawings.
- Verified correct barrier and shutter installation and operation.
- Verified that filters were in place and/or vents were clear.

Electrical Tests

- Measured insulation resistance of each bus section phase-to-phase and phase-to-ground.

- Performed resistance tests per manufacture installation testing requirements through all bus joints with a low resistance ohmmeter. Any joints that could not be directly measured, due to permanently installed insulation wrap, were measured from the closest accessible connection.
- Performed insulation resistance tests at 1000 volts dc on all control wiring. This test is not performed on wiring connected to solid-state components.
- Performed an over-potential test on each bus section phase-to-ground for one minute.
- Verified correct function of control power transfer relays located in switchgear with multiple power sources.

(iii) Medium Voltage Switch

Visual and Mechanical Inspection

- Inspected for physical damage, proper installation, required area clearances, anchorage and grounding. Cleaned interior, insulators, arc chutes and interphase barriers.
- Performed mechanical operator tests in accordance with manufacturer's instructions. Cleaned and lubricated contacts and mechanism as applicable. Confirmed correct application of manufacturer's recommended lubricants.
- Checked contact alignment, wipe and pressure.
- Inspected for correct phase barrier materials and installation.
- Checked fuse linkage and element for proper holder and current rating. Recorded fuse data.
- Verified tightness of accessible bolted electrical connections by calibrated torque-wrench method and mark accordingly.
- Verified that fuse sizes and types were in accordance with drawings and power system studies.
- Inspected all indicating and control devices for correct operation.
- Verified that expulsion-limiting devices are in place on all holders having expulsion-type elements.
- Verified arc interrupter operation (as applicable).

Electrical Tests

- Performed contact resistance test across each switch blade and fuse link.
- Measured fuse resistance.

- Performed insulation-resistance tests on each pole, phase-to-phase and phase-to-ground with switch closed and across each open pole for one minute.
- Performed ac very low frequency test phase-to-phase and phase-to-ground.
- Verified heater operation (as applicable).

(iv) Protective Relays

Visual and Mechanical Inspection

- Inspected shorting hardware, connection paddles, and/or knife switches.
- Verified target reset.
- Set relays in accordance with power system study supplied by client.
- Verified proper relay operation.

(v) Surge Arresters

Visual and Mechanical Inspection

- Inspected for correct mounting and adequate clearances.
- Verified the ground lead on each arrester was individually attached to a ground bus or ground electrode.
- Verified tightness of accessible bolted electrical connections by calibrated torque-wrench method. Inspected ground and discharge counter connections for integrity.
- Verified that stroke counter was correctly mounted and electrically connected.

Electrical Tests

- Performed an insulation-resistance test.

(vi) Grounding Systems

Visual and Mechanical Inspection

- Inspected ground system connections for completeness and proper termination in accordance with design drawings.

(vii) Electrical Tests

- Performed "fall-of-potential" method test or “clamp-on ground testing” on the main grounding electrode per IEEE Standard No. 81. If suitable locations for test rods were not available, a low resistance dead earth or reference ground was utilized.

2.7 INVERTER TESTS

A. PURPOSE: To verify proper installation per manufacturer's specifications. Please note that this scope of work does not involve activating the inverters, but rather verifies that they are ready for commissioning.

B. SCOPE: All PV inverters

C. EQUIPMENT: Per EPC

D. CONDITIONS: N/A

E. PROCEDURE/CRITERIA:

(i) Confirm Inverter is installed per manufacturer's recommendations

(ii) Confirm the Inverter is grounded, and the wire is secure

(iii) Confirm the Inverter is plumb and level

1. Confirm the Inverter has been cleaned

(iv) All Feeders are routed neatly and zip-tied

(v) All entry doors have watertight barrier strip installed

(vi) Ensure no signs of water are present within the Inverter

(vii) Confirm all AC and DC feeders are labeled and tightened to the correct torque and marked

(viii) Confirm Inverter control power wiring is per drawing set

(ix) Tug test all wires

(x) Check communication switch on each inverter is in the necessary position

(xi) Confirm all internal communication devices are operational

(xii) GFI relay wiring is correct

(xiii) Inverter Commissioning

a. Only after all testing in previous sections has been completed can inverter be commissioned
b. Follow inverter manufacturer commissioning procedures

3.0 SUBSTANTIAL COMPLETION TESTS

The following tests, procedures and documentation shall be completed:

3.1 SUBSTANTIAL COMPLETION QA/QC REPORTS for modules, inverters, racking, combiner boxes, and transformers, as applicable. To be turned in as a condition of Substantial Completion

A. PURPOSE: To verify all equipment is inspected and tested to the following parameters and ensure parameters are within manufacturer's approved specifications.

B. SCOPE: All modules, inverters, racking, combiner boxes, and transformers, as applicable. QAQC forms shall be submitted.

C. EQUIPMENT: Module, inverters, racking, combiner boxes, DAS components, and transformers

D. CONDITIONS: N/A

E. PROCEDURE/CRITERIA: The following items will be confirmed (if applicable):

x. Equipment is plumb and level.
xi. Equipment has the correct signage and labeling.
xii. Equipment has been cleaned and/or vacuumed
xiii. Feeders have been zip-tied neatly and the cable is supported per the approved drawings.
xiv. Equipment has been protected from damage
xv. Uni-Strut has been installed properly.
xvi. Barrier strip cover is installed.
xvii. Watertight fittings are tight and installed in manufacturer recommended locations.
xviii. Duct Seal is installed properly.

3.2 FIELD XFMR DGA TESTING

A. PURPOSE: To verify XFMRs are in proper working order.

B. SCOPE: Perform DGA test and send laboratory test results for review.

C. EQUIPMENT: All oil filled XFMRs

D. CONDITIONS: N/A

E. PROCEDURE/CRITERIA: Take Dissolved Gas Analysis sample from each oil filled XFMR on site per laboratory instructions and send to laboratory for testing.

3.3 STRING I-V CURVE TESTING

A. PURPOSE: to compare strings on a qualitative basis using I-V curves to identify array problems and characterize array performance.

B. SCOPE: Performance analysis is to be performed on a sample of 5% module strings via I-V Curve Testing

(xiv) Isc

(xv) Voc

(xvi) Irradiance

(xvii) Imp

(xviii) Vmp

(xix) Module Temperature

C. EQUIPMENT: I-V curve tracer

D. CONDITIONS: The test shall be conducted under full sun (>400W/m^2) and stable sky conditions, generally between the hours of 10:00 am and 2:00 pm. If such conditions are not available due to the season of the year, then such test shall not be conducted until the earlier of the date on which such conditions exist and 3 Business Days following the date on which the test would otherwise have been conducted. If such conditions are not available following 3 Business Days, then the rest may be conducted under stable sky conditions with a minimum irradiance of 100W/m^2.

E. PROCEDURE: Following the manufacturers' procedures, isolate each string from the system. Connect the curve tracer to the desired string and sweep the load such that it operates the string over its range of Voc and Isc. Curve tracer clips can be connected to positive/negative DC bus in the combiner while independently inserting fuse to test desired string. Record voltage and current readings for at least 10 steps. Along with the series of current-voltage readings, array and ambient conditions should be recorded for each curve including:

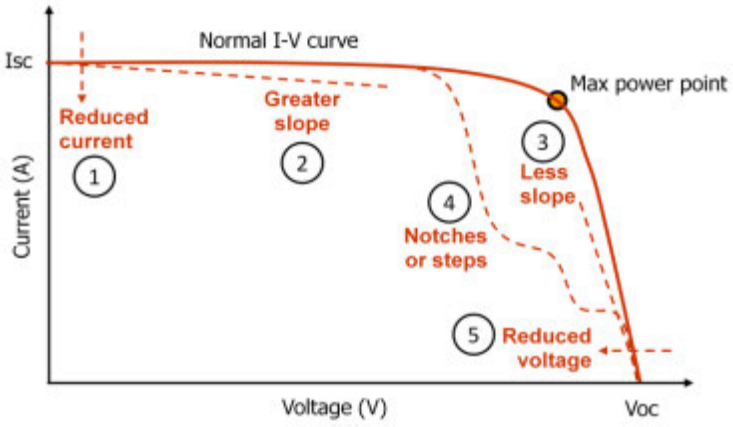
- Irradiance (of the appropriate components and orientation)
- Module temperature
- Ambient temperature
- Date and time

The measurement equipment must be capable of monitoring the conditions and readings with sufficient speed and accuracy as to not be influenced by fluctuations in irradiance or temperature.

F. CRITERIA: The string Voc shall meet the criteria defined in the Open Circuit Voltage Test above. Under clear sky conditions of 400W/m^2 or greater, the string Isc shall be within 5% of the expected Isc based on the short circuit current at a reference irradiance, adjusted for the measured irradiance and multiplied by 0.95. Under clear sky conditions of less than 400W/m^2, the string Isc shall be within 5% of the expected Isc based on the short circuit current at a reference irradiance, adjusted for the measured irradiance and multiplied by 0.95. All I-V curves shall be similar in shape (other than differences due to changes in irradiance or temperature). If results show anomalies, per Figure 1 below, including fill factor, voltages, or currents outside expected limits, as defined in Section F CRITERIA or humps on the curve, then Contractor shall review IV curve traces and investigate, troubleshoot, and immediately correct any anomalous strings including evaluating issues such as bypass diode conduction, out-of-tolerance module performance, or other possible problems. In the event that the Contractor can't immediately correct the anomaly the Contractor shall record the recommended corrective action, identify why the correction

action can't be completed immediately, and shall execute the corrective action within no more than 45 days from Mechanical Completion.

Figure 1:



3.4 **For the purposes of Mechanical Completion, the data will be evaluated to indicate that the strings are functioning, but they may not be operating within the weather criteria outlined in 2.4 (F). In the event, weather is the primary contributor for bad data, Contractor shall submit the data for Owner review as part of the Mechanical Completion turnover documentation. For the purposes of Substantial Completion, the Criteria outlined in 2.4 (F) will be adhered to.**

3.5 INVERTER COMMISSIONING

A. PURPOSE: To verify proper inverter performance per manufacturer's specifications given the current system performance parameters.

B. SCOPE: All inverters within the system

C. EQUIPMENT: DC clamp-on ammeter with 2% accuracy or better or data provided via the DAS.

D. CONDITIONS: The test shall be conducted under stable sky conditions with a minimum irradiance of 200W/m2.

E. PROCEDURE/CRITERIA:

(i) Verify proper and reliable electrical performance given environmental conditions and system DC power input.

(ii) Verify proper communication and reporting to the DAS.

3.6 METER COMMISSIONING

A. Verification of proper meter operation and installation per the manufacturer's specifications.
B. SCOPE: All meters within the system.
C. EQUIPMENT: Per EPC
D. CONDITIONS: System must be producing enough power to activate meter. Check manufacturer's recommendations.
E. PROCEDURE/CRITERIA:

(i) Verify proper wiring and installation per manufacturer's specifications

(ii) Verifying proper Current and Voltage Transformer (CT/VT) selection based on required accuracy classification

(iii) Verify proper CT & VT ratio programming into meter

(iv) Verify meter is accurately capturing and recording performance data

(v) Verify meter is properly communicating with DAS system

3.7 Tracker Commissioning

(vi) Perform commissioning tests per manufacturers recommendations and manufacturers provided installation and commissioning manual

3.8 DATA ACQUISITION SYSTEM (DAS) COMMISSIONING

A. PURPOSE: Verification of proper operation and installation per the manufacturer's specifications.
B. SCOPE: All DAS communication, and monitoring equipment within the system.
C. EQUIPMENT: Per EPC
D. CONDITIONS: System must be producing power.
E. PROCEDURE/CRITERIA:

(vii) Verify proper installation to all components providing data

(viii) Verify accurate and reliable data collection and recording

(ix) Verify data is being communicated to the designated Operations Center successfully and accurately

(x) Verify all irradiance, module temperature, and meteorological sensors are calibrated and connected to the correct locations & orientations

(xi) Verify all temperature sensors installed and terminated correctly

(xii) Verify all security cameras have been installed and are functioning properly

(xiii) Contractor will coordinate commissioning with monitoring system provider

(xiv) Verify calibration sheets for all sensors

All DAS commissioning shall be done in accordance with the applicable equipment manufacturer's recommendations and in a manner that complies with the applicable manufacturer warranty requirements.

Additional Testing

Commissioning Checklists: (Contractor to supply similar checklist if not using the following)

Mechanical Inspections



Project ID:	
Date:	
Name:	

TA #	
Section ID:	
Mechanical Inspection	**Complete**
Motor has acceptable lubricant levels	
Modules are torqued and installed per manufacturers specifications	
Couplings torqued per manufacturers specifications	
Couplings installed per manufacturers specifications	
Damper installed per manufacturers specifications	
Damper torqued per manufacturers specifications	
Drive shaft is installed per manufacturers specifications	
Drive shaft set screws have been installed per manufacturers specifications	
Post caps have been installed and torqued per manufacturers specifications	
Bearing housings have been installed and torqued per manufacturers specifications	
Center assembly installed per manufacturers specifications	

Factory assembled hardware inspected for proper construction	
Field assembled equipment is torqued and marked	
All source circuit cables are free of damage	
All source circuits are managed properly and secured	
All racking structures are free of obstructions	
All modules are free of soiling, debris and shading	
All module nameplates match as-built drawings	
All modules are free of physical damage	
Ground continuity verified	
Inspection Notes:	

INVERTERS & SWITCH



Project ID:	
Date:	
Name:	

Inverter Model	
Inverter #	
Serial Number	
Description	**Complete**
Inverter free of exterior damage	
Inverter secured to foundation per plan	
Exterior signage installed per plan	
All inverter doors are functional	
GFDI Fuse is functioning and intact	
DC OCPD sized properly and installed per plan	
All compartments are free from debris and soiling	
Monitoring/DAS wiring installed per plan	
DC conductors present and free of damage	
DC conductors sized, colored, labeled per plan	
All terminations stripped and seated properly	
Conductor compression lugs are sized/rated per plan	
Anti-seize compound used on all appropriate terminations	

All termination hardware meets manufacturer specifications	
Bolt stacks at all terminations meet manufacturer specifications	
All DC terminations torqued to manufacturer's specification	
All DC terminations are torque marked	
Grounding electrode conductor is installed per plan	
Grounding electrode conductor is torqued to manufacturer's specification	
EGCs are installed per plan	
EGCs are torqued to manufacturer's specification	
All grounding conductors are torque marked	
AC output conductors free from excessive strain/damage	
AC output conductors installed per plan	
All conduit entrances sealed	
All arc shields installed and hardware present	
AC/DC disconnect functionality confirmed	

Inspection Notes:

COMBINER CHECK LIST



Project ID:	
Date:	
Name:	

Combiner Model	
Combiner Number	
Serial Number	
Description	
Combiner is level, securely mounted and installed per plan	
Conduit entry secure and flush with combiner	
Source circuit whips are secured properly	
Strain reliefs, bushings and knockout covers are present and secure	
Lock rings and bushings installed properly	
Source circuit weather tight strain reliefs are fully tightened.	
All source circuit conductors are present and undamaged	
Source circuit conductors are sized, colored, labeled per plan	
Source circuit conductors are terminated properly	
Surge protection devices present and fully seated	
Factory terminated source circuits pass "tug test"	
Output circuit conductors are present and undamaged	
Output circuit conductors are sized, colored, labeled per plan	

Output circuit conductors are terminated properly with proper hardware	
Corrosion inhibitor is applied to output circuit and ground wiring	
EGCs present and terminated properly with adequate slack	
GEC present and terminated properly with adequate slack	
Positive output conductor is torqued to manufacturer's specification	
Negative output conductor is torqued to manufacturer's specification	
EGCs torqued to manufacturer's specification	
GEC torqued to manufacturer's specification	
All output circuits, grounds are torque marked	
Combiner box door is functional, hardware is present	
Exterior signage installed per plan and free of damage	
Combiner box is free from damage (interior and exterior)	
Installation is organized and clean	
All conduit entrances sealed	
DC Contactor Installed and functioning properly	
Arc shield replaced and secured, all hardware present	
Inspection Notes:	

INSULATION TESTING

Insulation Testing

Project ID:	
Date:	
Name:	

Test Voltage:	Testing Device:
Ambient Temperature:	
Humidity:	Rainfall in past 72 hours?

Device #	P-N (Ω)	P-G (Ω)	N-G (Ω)	Device #	P-N (Ω)	P-G (Ω)	N-G (Ω)

Inspection Notes:								

Schedule 23.4
Specified Vendors for Serial Defects Warranties

Approved Subcontractor	Address	Responsibility
SunGrow	SunGrow USA Corporation 4050 East Colton Center Blvd #75 Phoenix, AZ 85040	Inverters/Transformers/Skids
OMCO	Omco Solar, LLC 4550 West Warkins St. STE 100 Phoenix, AZ 85043	Racking
Terrasmart	PO Box 714904 Cincinnati, OH 45271	Combiners
JSHP Transformer	4030 Moorpark Ave, Ste 222 San Jose, CA 95117	Transformers

Contractor shall use commercially reasonable efforts to obtain customary and commercially available serial defect warranties from the suppliers of the Equipment set forth on Schedule 23.4 and such serial defect warranties, to the extent obtained, shall be Assigned Warranties. If obtaining such serial defect coverage will result in additional payments to the applicable supplier of the relevant Equipment, Contractor will notify Owner of this in writing and give Owner a reasonable opportunity to determine whether it will cover the additional amount. If Owner elects to pay such additional amount, then (a) such obtained serial defect warranties shall be Assigned Warranties, and (b) Contractor shall be entitled to a Change Order pursuant to Section 14.4 to adjust the Contract Price for any incremental costs or expenses to be incurred by Contractor in obtaining such serial defect warranties. If Owner elects not to pay such additional amount, then Contractor shall have no further obligation to obtain serial defect coverage with respect to the applicable Equipment.

Schedule 24

Insurance Requirements

[Attached]

Schedule 24

Insurance Requirements

Section 1.1 Insurance Coverages. Contractor shall purchase and maintain, at its own expense, with an insurer or insurers reasonably acceptable to Owner, at least the following minimum coverages during the term of this Agreement, and, as provided herein, thereafter. If there is any conflict between this Schedule 24 and the EPC Agreement, this Schedule 24 shall govern.

(a) Workers' Compensation/Employer's Liability Insurance. Contractor shall maintain Workers' compensation insurance (statutory limits complying with the laws of the state in which the System is located) and employer's liability insurance with limits not less than $1,000,000 bodily injury by accident (each accident), $1,000,000 bodily injury by disease (policy limit), and $1,000,000 bodily injury by disease (each employee). Such policies shall contain a waiver of subrogation in favor of Owner and the Financing Parties. Contractor shall require each of its Major Subcontractors (not including suppliers) to purchase and maintain insurance coverage as provided in this Section 1.1(a), with the same waiver of subrogation by subcontractors (not including suppliers) in favor of Owner and the Financing Parties.

(b) Commercial General Liability Insurance ("CGL"). Contractor shall maintain CGL insurance written on an occurrence policy form at least as broad as ISO form CG 00 01 04 13 modified occurrence ("claims-made" policy forms are not acceptable), providing coverage for bodily injury, property damage, personal injury and advertising injury, including premises-operations (including explosion, collapse and underground coverage), products-completed operations coverage, and sudden and accidental pollution liability coverage, with limits of not less than $10,000,000 bodily injury and property damage per occurrence limit, $10,000,000 general aggregate limit (with a "per project" endorsement specifying the System), $2,000,000 advertising injury limit, and $10,000,000 products-completed operations aggregate limit, or limits carried, whichever are greater. Deductibles or self-insured retentions in excess of $50,000 shall be subject to review and approval by the Owner and the Financing Parties. The liability policy shall provide full separation of insureds, contractual liability coverage and broad form property damage coverage (including completed operations). XCU (explosion, collapse and underground) exclusions, if any, shall be deleted and fellow employee coverage shall be afforded. There shall be no sublimit for wildfire or forest fire liability. Contractor agrees to maintain continuous coverage for the insurance required in this Section 1.1(b) in effect during the term of the Agreement and until all claims and suits arising out of the Work and the System are barred by the applicable statutes of limitations and repose. CGL insurance will include primary, non-contributory, severability of interest and cross liability provisions.

Subcontractors. Contractor shall require each subcontractor (not including suppliers) to obtain, maintain and keep in force during the time during which they are involved in performance of the Work at the Site insurance coverage as provided in this subparagraph in the following amounts:

(i) $10,000,000 per occurrence/annual aggregate for any subcontractor (not including any suppliers) conducting site excavation, concrete forming or placement and mid and high voltage electrical operations;

(ii) $5,000,000 per occurrence/annual aggregate for any other subcontractor (not including any suppliers) that performs any improvements to the Site; and

(iii) $2,000,000 per occurrence/annual aggregate for all other subcontractors (not including any suppliers) that are present on Site, but do not perform improvements to the Site, or such limit for similar scopes at similar projects; however, the limits of liability shall be note less than $2,000,000 per occurrence/annual aggregate.

(c) Auto Liability Insurance. Contractor shall maintain commercial or business automobile liability insurance, including liability arising out of "any auto" or all owned, non-owned, leased, and hired automobiles, trucks and trailers, or semi-trailers, including any machinery or apparatus attached thereto, with limits of not less than $1,000,000 each accident. Deductibles or self- insured retentions in excess of $50,000 shall be subject to review and approval by the Owner and the Financing Parties. Owner and the Financing Parties and any other applicable persons or entities requested by Owner in writing will be named as an additional insured as their interests may appear. Contractor shall also cause this coverage to contain a waiver of subrogation in favor of referenced parties. The commercial automobile liability insurance shall include contractual liability coverage. Contractor shall require each subcontractor (not including suppliers) to purchase and maintain insurance coverage (with limits not less than $1,000,000 each accident and provide the same waiver of rights, as provided in this Section 1.1(c).

(d) Umbrella or Excess Liability Insurance. Contractor shall maintain umbrella or follow form excess liability insurance, written on an occurrence policy form ("modified occurrence" and "claims made" forms are not acceptable), at least as broad as the primary CGL insurance, with limits of liability of not less than $20,000,000 per occurrence/annual aggregate, or limits carried in excess of the limits of the employer's liability, CGL and auto liability policies required in Sections 1.1(a) (b) and (c) above. There shall be no sublimit for wildfire or forest fire liability. Umbrella or excess liability shall be maintained for the same duration as required for the CGL coverage in Section 1.1(b) above. Contractor shall require each subcontractor for similar scopes at similar projects; however, the limits of liability shall be not less than $2,000,000.00 per occurrence/annual aggregate.

(e) Professional Liability Insurance. Where professional liability insurance is required by contract or if contractor is responsible for design and/or engineering work, Contractor shall maintain, by itself or through third party engineers, professional liability insurance including full prior

acts coverage (or a retroactive date no later than the date of commencement of the Work) and shall have limits of not less than $5,000,000 per claim and $5,000,000 annual aggregate. Deductibles or self-insured retentions in excess of $50,000 shall be subject to review and approval by the Owner and the Financing Parties. Such insurance shall include contractual liability coverage to the maximum extent possible for the indemnifications contained in this Agreement. This insurance shall be maintained by Contractor, or third-party engineers, continuously in effect during the contract term and until all claims and suits arising out of the Work and the System are barred by the applicable statutes of limitations and repose. Any material change in limits, coverages or loss of aggregate limit due to outstanding claims must be reported to Owner within thirty (30) days of any such events.

(f) Pollution Liability. To the extent exposure exists and to the extent Contractor uses Hazardous Materials, Contactor (and any subcontractor (not including suppliers) hired by Contractor) shall obtain and maintain pollution liability with limits not less than $2,000,000 per occurrence and in the annual aggregate applying to sudden and gradual pollution conditions including the discharge, dispersal, release, or escape of dust, smoke, vapors, soot, fumes, acids, alkalis, toxic chemicals, liquids or gases, waste materials, or other irritants, contaminants or pollutants into or upon land, the atmosphere, or any watercourse or body of water, which result in any bodily injury, sickness, disease, mental anguish or shock sustained by any person, including death; and/or property damage including physical injury to or destruction of tangible property including the resulting loss of use thereof, clean-up costs, and the loss of use of tangible property that has not been physically injured or destroyed (any such incident referred to herein as a "Pollution Incident"). Coverage also must include Mold and other organic microbial growth in the definition of covered perils. Coverage shall apply to the cost of defending any claims arising from a Pollution Incident including costs, charges, and expenses incurred in the investigation, adjustment, or defense of such claims. In addition, coverage shall apply to pollution liability arising out of the use of vehicles to transport pollutants or contaminants; such coverage to be included in the pollution liability policy or by endorsing the Auto Liability policy with the Pollution Liability – Broadened Coverage For Covered Autos – Business Auto, Motor Carrier And Truckers Coverage Form (form CA 99 48) or a similar form; and where required by law, the Auto Liability policy shall include the MCS-90 endorsement; and pollution liability arising out of non-owned disposal sites. Claims made coverage forms are acceptable. Coverage shall be maintained in full force and effect during the period from commencement of the Work and ending two (2) years after of the Final Completion Date.

(g) Aircraft Insurance. If as part of the Work Contractor or any of its subcontractors (not including suppliers) will be operating aircraft (excluding drones), then Contractor and such subcontractors (not including suppliers) shall maintain or cause to be maintained liability insurance with a limit of $5,000,000 per occurrence against bodily injury, death or property damage, including loss of use thereof, arising from or relating to the same. If as part of the Work, Contractor, or any of its subcontractors (not including suppliers), will be operating drones (but no aircraft), then Contractor and such subcontractors (not including suppliers) shall

maintain or cause to be maintained liability insurance with a limit of $1,000,000 per occurrence against bodily injury, death or property damage, including loss of use thereof, arising from or relating to the same.

(h) Builder's All-Risk Insurance ("BAR"). Owner will procure builder's risk coverage no later than the first day equipment to become a permanent part of the Project is delivered to Site until the Substantial Completion Date. The limit of liability under the Builder's Risk Policy shall be the full replacement cost, provided, that (a) the Builder's Risk Policy may contain separate sub-limits (Owner shall be responsible for claims over such sublimits) and deductibles subject to insurance company underwriting guidelines, and (b) the per occurrence deductible shall not exceed the amounts which are available to Owner on a commercially reasonable basis, as determined by Owner in its sole discretion. Contractor shall be responsible for the lesser of (a) Builder's All-Risk deductible or (b) $500,000 per occurrence to the extent the loss giving rise to a claim is caused by the negligence of Contractor, its Subcontractors, or their respective employees or agents. For the avoidance of doubt, Owner shall be responsible for the deductible if the loss giving rise to a claim is due to any Act of God (including but not limited to earthquake, severe convection storm, named windstorm, or other natural catastrophe). Such insurance shall cover the Work and all property in the course of construction, including the Owner Equipment, the Equipment, all buildings and structures, machinery, fixtures, furnishings and other property constituting a part of the Project (other than Contractor's equipment, which shall be covered under Contractor's insurance), on an "all risk basis" (with market standard exclusions) for all loss or damage caused by perils covered by a builder's all-risk form or equivalent coverage. Such insurance shall: (i) include "extended coverage" (including earthquake, flood, collapse, sinkhole, subsidence), (ii) include mechanical and electrical breakdown coverage during testing and commissioning, including performance tests and other operations of the Project prior to Project Substantial Completion, (iii) cover the Project and the Site for removal of debris and (iv) otherwise cover damage to property and other claims arising out of the unloading, lifting, lowering or other handling of property at the Site. The Builder's Risk policy shall name Contractor and its subcontractors of every tier as additional insured, include a waiver of subrogation in favor of Contractors and its subcontractors of every tier and provide a 30-day notice of cancellation (10 days' for non-payment of premium). The Builder's Risk Policy shall name Contractor as a loss payee (as its interests may appear) with respect to covered physical loss or damage to the Work. Owner shall provide Contractor with a certificate of insurance evidencing coverage including major sublimits, deductibles and exclusions.

Section 1.2 General Insurance Provisions. Contractor's above policies shall include the following provisions:

(a) Loss Payee and Additional Insured Endorsements. Owner and the Financing Parties, and such other applicable persons and entities as may from time to time be designated by Owner in writing, shall be named as additional insureds and loss payees under the BAR policy as described in Section 1.1 (h) as their interest may appear. Additionally, such parties shall be

endorsed as Additional Insureds under the liability policies described in Sections 1.1 (a) – employer's liability only, (b) (c), (d), (f) and (g) by issuance of ISO form CG 20 26 -04 13 or both ISO form CG 20 10 04 13 and CG 20 37 04 13 additional insured endorsements, or equivalents reasonably acceptable to Owner and the Financing Parties. The additional insured endorsements on the liability policies must provide coverage arising out of both ongoing and completed operations and product liability. The endorsements must specify Contractor as the named insured and must include the policy number and expiration date. The coverage provided to the additional insureds must be at least as broad as that provided to Contractor and may not contain any additional exclusionary language or limitations applicable to the additional insureds. Contractor shall maintain such additional insured status for the referenced parties on the CGL and umbrella/follow form excess liability policies continuously during the term of this Agreement and until all claims and suits arising out of the Work and the System are barred by the applicable statutes of limitations and repose.

(b) Primary Coverage. The CGL, umbrella or follow form excess liability, automobile liability, pollution liability and aircraft liability policies maintained by Contractor shall be primary coverage, and any coverage or self-insurance maintained by or available to Owner shall be excess and non-contributory. The additional insured and primary/non-contributory endorsements shall contain a primary insurance clause equivalent of the following: *"The insurance provided to the additional insured by this endorsement is excess over any valid and collectible "other insurance" or self-insurance, whether primary, excess, contingent or on any other basis, that is available to the additional insured for a loss we cover under this endorsement. However, if the "written contract requiring insurance" specifically requires that this insurance apply on a primary and non-contributory basis, this insurance is primary to "other insurance" available to the additional insured which covers that person or organization as a named insured for such loss, and we will not share with that "other insurance" or self-insurance. But the insurance provided to the additional insured by this endorsement still is excess over any valid and collectible "other insurance" or self-insurance, whether primary, excess, contingent or on any other basis, that is available to the additional insured when that person or organization is an additional insured under such "other insurance" or self-insurance*."

(c) Certificates of Insurance and Other Insurance Documents. Prior to commencing the Work, Contractor shall deliver to Owner, and to the Financing Parties (if requested), the endorsements and waivers of subrogation referred to in this Schedule 24, as well as certificates of insurance evidencing the coverages referred to in this Schedule 24. Each insurer's NAIC number must be listed on the certificate. Upon Owner's request, prior to commencing the Work, Contractor shall deliver to Owner and the Financing Parties a true and correct copy of all of the insurance policies and other insurance documents required by this Schedule 24. All policies, endorsements and certificates are subject to Owner's review and approval. In the case of policies expiring while Work is in progress, a renewal certificate with all applicable endorsements and policy forms must be presented to Owner and the Financing Parties upon

the expiration of the existing policy or policies. Permitting Contractor to start Work, continue Work, or releasing any payment prior to or without compliance with any of these requirements shall not constitute a waiver of, or estoppel to assert, any such requirement.

(d) Insurer Ratings. All insurance referred to in this Schedule 24 to be carried by Contractor shall be maintained by Contractor at its sole expense, with insurance carriers qualified to do business in the state in which the System is located and maintaining a rating of not less than A- : VII from A.M. Best & Co., unless Owner, in writing, in its sole discretion, accepts a lower Best's rating.

(e) Cancellation, Non-Renewal, Impairment. Contractor shall immediately notify Owner in writing upon receipt by Contractor, or its insurance broker or agent, of any notice of cancellation, non-renewal or rescission of any policy required to be maintained by Contractor pursuant to this Schedule 24. In addition, Contractor shall immediately notify Owner in writing in the event the payment of any claim(s), or the establishment of any reserve(s), results in impairment of fifty percent (50%) or more of the aggregate limits of the primary CGL or umbrella/follow form excess liability policies required to be maintained by Contractor pursuant to this Schedule 24. Each certificate and endorsement must be executed by an authorized agent of the respective insurers. All certificates of insurance must provide (and the policies shall be endorsed to provide) Owner with sixty (30) days advance written notice of cancellation ten (10) days in the event of cancellation for non-payment of premium).

(f) Contractor Failure to Secure or Maintain Insurance. If at any time Contractor's insurance fails to meet the requirements stated herein, all payments may be held until the non-compliance has been corrected to Owner's satisfaction and in the event Contractor fails to secure or maintain any policy of insurance required hereby, Owner at its sole discretion and election, may after fifteen (15) days prior written notice (i) secure such policy of insurance in the name of and for the account of Contractor and in such event, Contractor shall reimburse Owner upon demand for the cost thereof; or (ii) terminate this Agreement, and Owner shall retain all remedies hereunder for breach of this Agreement. Owner shall have the right to offset the costs of any such insurance, including but not limited to premiums, against any sums payable to Contractor under this Agreement or otherwise.

(g) No Limitation. None of the requirements contained herein as to types, limits and acceptability of insurance coverage to be maintained by Contractor are intended to, and shall not in any manner, limit or qualify the liabilities and obligations assumed by Contractor under this Agreement or at law, including Contractor's indemnification obligations and liability in excess of the limits of the coverages required herein. Neither receipt of certificates, endorsements or policies showing less or different coverage than requested, nor any other forbearance or omission by Owner, shall be deemed a waiver of, or estoppel to assert, any right or obligation regarding the insurance requirements herein. None of the requirements contained herein shall

relieve Contractor, or its subcontractors of any tier, of their respective obligations to exercise due care in the performance of their duties in connection with the Work or to complete the Work in strict compliance with the Agreement. Insurance coverage limits included in this contract in no way serve as a limitation of Contractor's insurance carrier(s)' legal liability.

(h) Deductibles and Self-Insured Retentions. Contractor shall be solely responsible to pay any amount that lies within the deductible(s) or self-insured retention(s) of Contractor's policies, regardless of the amount of the deductible(s) or self-insured retention(s) and regardless of the cause of the loss or damage.

(i) Exclusions. The insurance policies required of and maintained by Contractor pursuant to this Agreement may not contain any exclusion or limitation for claims or suits by one insured against another insured, nor any exclusion applicable to liabilities arising from blasting, subsidence or earth movement, or for any type of Work to which this Agreement applies.

(j) Waivers of Subrogation. With respect to any insurance Contractor is required to maintain pursuant to this Agreement, or does maintain, for or in connection with the Work, including but not limited to that set forth herein, Contractor shall waive, and does hereby waive any and all present and future rights of subrogation which Contractor and Contractor's insurance carriers might have or claim against Owner or its Affiliates or the Financing Parties arising out of the Work and/or the System and agrees, to the fullest extent permitted by law, to defend and indemnify Owner and the Financing Parties from and against all claims based upon any theory of subrogation. Contractor shall require such waivers of its subcontractors. Contractor and its subcontractors' policies shall provide such waivers by endorsements acceptable to Owner and the Financing Parties.

(k) Excess Liability Coverage. Excess Liability Insurance coverage that is for an amount greater than that required above may be used to satisfy the limit requirements for Employer's Liability Insurance, Commercial General Liability Insurance, and Business Automobile Liability Insurance set out above. Such excess liability policy shall follow the form of those primary coverages, be in excess of those underlying policies without gaps in limits and provide coverage as broad as the underlying policies.

Inclusion of This Schedule in Bid Packages. Contractor shall furnish each bidding and negotiating subcontractor a copy of this Schedule 24 and shall require each bidding and negotiating subcontractor and supplier to obtain insurance coverage commensurate with this Schedule 24 from each of their subcontractors and vendors (with the understanding that only subcontractors performing design work are required to maintain Professional Liability insurance). Each subcontractor shall be contractually obligated by Contractor to include Owner as additional insured and to waive subrogation in favor of Owner under all such insurance policies. Contractor shall also contractually obligate subcontractors to maintain their coverage on a primary basis, and to not seek contribution from any similar insurance being maintained by Owner. Contractor shall require evidence of insurance from all subcontractors

prior to allowing such subcontractors to commence the performance of any Work with respect to the Project.

Schedule 25

Owner Equipment Delivery Schedule

Description	Model Number	Delivery Date
First Solar Series 7 Modules	FS-7XXXA-TR1	Deliver 405,849 units at a minimum average wattage of 530W plus 2.1% spares/Breakage beginning on **12-01-2026** and ending **05-10-2027**

Delivery Window			
Delivery Quantity (MWdc)	**Delivery Start Date**	**Delivery End Date**	**Delivery Deadline (no later than date)**
9.35	12/05/26	12/09/26	12/09/26
9.35	12/12/26	12/16/26	12/16/26
9.35	12/19/26	12/23/26	12/23/26
9.35	12/26/26	12/30/26	12/30/26
9.35	01/02/27	01/06/27	01/06/27
9.35	01/09/27	01/13/27	01/13/27
9.35	01/16/27	01/20/27	01/20/27
9.35	01/23/27	01/27/27	01/27/27
9.35	01/30/27	02/04/27	02/04/27
9.35	02/07/27	02/11/27	02/11/27
9.35	02/14/27	02/18/27	02/18/27
9.35	02/21/27	02/25/27	02/25/27
9.35	02/28/27	03/01/27	03/01/27
9.35	03/04/27	03/08/27	03/08/27
9.35	03/11/27	03/15/27	03/15/27
9.35	03/18/27	03/22/27	03/22/27
9.35	03/25/27	03/29/27	03/29/27
9.35	04/01/27	04/05/27	04/05/27

9.35	04/08/27	04/12/27	04/12/27
9.35	04/15/27	04/19/27	04/19/27
9.35	04/22/27	04/26/27	04/26/27
9.35	05/01/27	05/05/27	05/05/27
9.39997	05/08/27	05/12/27	05/10/27

Schedule 26

Cost Breakdown

[Attached]

Schedule 26

Cost Breakdown

Brookfield Renewable - EPC Breakdown Example

EPC Scope of Work	KPMG Notes
Array EPC - General Conditions (PM, Mobilization, Demobilization, Insurance, Bonding, etc.)	Can also include this basis within the cost of the various array tangible improvements as well versus showing separate
Array EPC - Design & Engineering (Electrical)	
Array EPC - Design & Engineering (Structural)	
Array EPC - Design & Engineering (Civil)	
Array EPC - Design & Engineering (Other/General)	
Array EPC - Permitting, SWPPP, etc.	
Array EPC - Initial earthwork cut-fill/clearing/grubbing/demo/Vegetation Control or Management	
Array EPC - Grading/Finish Grading	
Array EPC - Sediment Basins/Permanent Stormwater	
Array EPC - Access Road (Array/Substation Only)	
Array EPC - Access Road (General Entrance, Perimeter Roads, O&M Road)	
Array EPC - Site Seeding	
Array EPC - Public Road Improvements (if applicable)	
Array EPC - PV Modules & transport (if procured by EPC)	
Array EPC - Piers Material & Installation	
Array EPC - Equipment Pads/Foundations	
Array EPC - Racking / Tracker Material & Installation	
Array EPC - PV Modules Installation	
Array EPC - Inverters / Power Conversion Stations / Transformer Material & Installation	
Array EPC - Balance of System Material & Installation - AC Collector	
Array EPC - Balance of System Material & Installation - DC Collector	
Array EPC - Grounding Material & Installation	
Array EPC - Fiber Optic Material & Installation	
Array EPC - Combiner Box Material & Installation	
Array EPC - Permanent Site Security Material & Installation	
Array EPC - MET Material & Installation	
Array EPC - Permanent Fencing	
Array EPC - SCADA System	
Array EPC - Testing & Commissioning	
Array EPC - O&M Facility	
Array EPC - Overhead, Profit, Sales Tax	Can also include this basis within the cost of the various array tangible improvements as well versus showing separate
Array EPC - Spare Parts	
Array EPC - Contingency	
Substation - Control House/Enclosure/Equip. Foundations/Metering/Electrical Material/Grounding System/Cabling/Steel Support/Misc. HV equipment/Etc.	
Substation - Substation Engineering & Design	
Substation - General Conditions, Sales Tax, Permitting, etc.	Can also include this basis within the cost of the various tangible substation improvements as well versus showing separate
Substation - Testing and Commissioning	
Substation - Initial earthwork cut-fill/clearing/grubbing/demo	
Substation - Grading/Finish Grading/Finish Rock	
Substation - Permanent Fencing/Landscaping/Bollards	
Substation - MPT/GSU	
Substation - Spare Parts	
Transmission & Distribution - Gen-tie (all steel, cable, sitework, engineering, etc. from Substation to POI)	
*Interconnection/Switchyard (if self-build) before POI - All materials, labor, engineering, sales tax, etc.	
*Interconnection/Switchyard (if self-build) after POI - All materials, labor, engineering, sales tax, etc.	

*Don't necessarily need a detailed breakdown of the various materials/labor/engineering. But if available from EPC, we will utilize it. Can provide a breakdown as well as an example.

Schedule 27

Site Information

SITE ADDRESS: 1378 Luther Jones Rd, Jackson OH 45640

SITE NAME: Dixon Solar, LLC

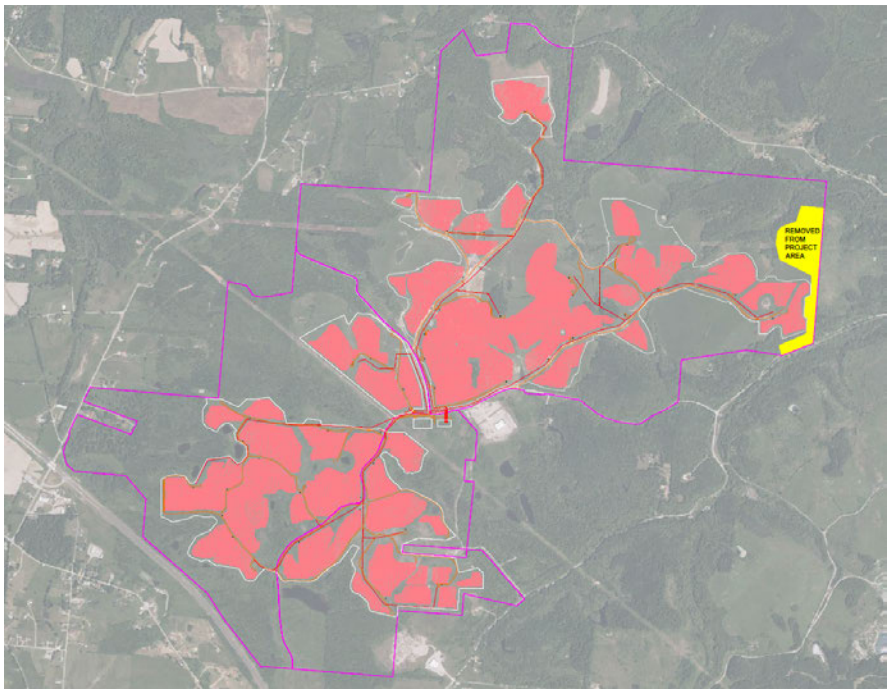
SITE OWNERS: Dixon Land Holdings, LLC

SITE ACREAGE: 2250 +/- Acres

SYSTEM SIZE: 140 MW AC and 210 MW DC

SYSTEM TYPE: Solar Power Plant

Facility Site:



Schedule 28

DAS/SCADA Requirements

[Attached]

DAS/SCADA TECHNICAL SPECIFICATIONS

31 May 2022
Rev1. October 2022
Rev2: 8 December 2023

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2 INTRODUCTION

This Schedule 28 provides requirements and technical specifications for the control, data acquisition, and communications for the Project.

3 DEFINITIONS

All capitalized terms herein not defined below shall have the meaning prescribed to them in Exhibit A.

4 DAS/SCADA SYSTEM, COMMUNICATIONS AND METERING REQUIREMENTS

4.1 General

4.1.1 Supervisory Control and Data Acquisition system (DAS/SCADA) requirements include design, engineering, labor, material, products, guarantee, training and services for, and incidental to, the complete installation of a new and fully functional DAS/SCADA system for the Project. The SCADA system shall be comprised of environmentally ruggedized industrial PLC hardware and software, redundant SCADA servers, one Historian server, one (1) HMI (Human Machine Interface) workstation, field instrumentation. Meteorological stations, and communication devices.

4.1.1.1 Preferred SCADA vendor for the HMI or site SCADA is Ignition

4.1.1.2 Centralized Data Concentrators that integrated data from PLC, Substation and Meteorological data should be SEL 3355 running Windows Operating System or suitable substitute with Owner approval

4.1.2 All hardware must be sourced from trusted vendors and equipment must be NERC compliant

4.1.3 Owner will provide all fire walls, routers, site security cameras, and badge system. Supplier shall be responsible for installing communication lines within the Project. Supplier shall be responsible for all DAS/SCADA equipment, software and programming inside Project and for all DAS/SCADA-related communications equipment to communicate with all Supplier-provided Equipment. Supplier shall provide managed ethernet switches (if required), real-time automation controller (RTAC), meters and all protection relays. Supplier shall provide conduits to cameras, gates and security system.

4.1.3.1 Preferred vendor for Network equipment like Switches and Routers is Cisco Meraki, if hardened equipment is not available and appropriate enclosure cannot be put in place then Cisco hardened equipment can be used. Suitable substitute with Owner approval will be considered in the event Cisco network equipment is unavailable.

4.1.4 The DAS/SCADA system shall include all instrumentation, hardware and capability to support the required data acquisition and equipment control requirements of the Project, including Interconnection Agreement (IA) and Power Purchase Agreement (PPA) requirements.

4.1.5 The DAS/SCADA system shall include or interface with the solar PV plant controller (if applicable) to ensure dynamic plant level adjustments and their impact on operations and plant control to satisfy all contractual requirements.

4.1.6 Supplier shall provide the following DAS/SCADA submittals within 60 days following the Limited Notice to Proceed Date:

4.1.6.1 Hardware and software manufacturer and specification sheets

4.1.6.2 Single line drawings, including devices, interconnection of devices, wiring types and protocols used

4.1.6.3 Data list with device name and individual addresses of data points

4.1.6.4 Installation, Operation and Maintenance manual

4.1.6.5 Software manuals.

4.2 DAS/SCADA Equipment

4.2.1 Devices shall be listed to UL and labeled by a Nationally Recognized Testing Laboratory (NRTL).

4.2.2 Enclosures located outdoors shall be NEMA 3R rated or better. NEMA 4X shall be required in locations within 10 miles of a body of salt water or wet locations.

4.2.3 Fuse holders shall be finger safe.

4.2.4 Supplier shall provide a Remote Terminal Unit (RTU) in the substation, which supports Modbus and DNP 3.0 protocols. The RTU shall be connected to the project SCADA and will be utilized to interface with the Utility SCADA requirements per project Interconnection Agreement. Existing RTAC may be used to satisfy Utility SCADA/telemetry requirements to avoid procurement of additional hardware.

4.2.5 Supplier shall supply, program, install and commission the SCADA hardware to be located in the Substation Control Building.

4.3 Acceptable Manufacturers

4.3.1 Equipment manufacturer and software suppliers shall be registered on Exhibit I Owner Approved Vendor List or approved by Owner.

4.4 Operator Requirements

4.4.1 The DAS/SCADA system shall comply with all requirements set forth by the Owner including, but not limited to:

4.4.1.1 Monitoring, reporting, and control requirements

4.4.2 Supplier shall configure and test DAS/SCADA equipment to verify that all aspects of required control and technical owner specifications are satisfied.

4.4.3 Supplier shall submit a test plan to Owner at least 60 days prior to Commissioning. DAS/SCADA test plan shall include detailed test procedures for confirming DAS/SCADA system is in compliance with the Owner requirements. Factory Acceptance Testing and Site Acceptance Testing documentation provided by Supplier and Supplier's vendors will satisfy this requirement.

4.4.4 Where Interconnection to Bulk Electric Power System is required, Supplier shall:

4.4.4.1 Determine specific equipment required by the Utility/Transmission Owner and the System Operator, specifically relating to DAS/SCADA, metering and telemetering due to the interconnection agreement as well as equipment required to complete the indicated control and protection requirements.

4.4.4.2 Incorporate plans for the communications needs required to interconnect the facility to the bulk electric power system. This may include transfer trip and any of special or remedial protection schemes needed for the interconnection of the facility to the bulk electric power system. This design shall meet any requirements from the interconnecting utility, the Public Utility Commission, and/or the Independent System Operator for DAS/SCADA or Metering.

4.4.4.3 Build any fiber, microwave, or leased facilities needed in order to tie facility into bulk electric power system.

4.5 Communication System

4.5.1 The communication system shall consist of the following:

4.5.1.1 Telecommunication infrastructure to communicate to the internet with a bandwidth of 100MB/sec or more where available from Internet Service Providers. Preferable internet access is Fiber. If Fiber infrastructure is not available, High Voltage Protection like a Positron will be needed to secure any copper telecommunication infrastructure

4.5.1.2 A network which shall extend to each inverter and each weather station data logger.

4.5.1.3 Fiber Optic cables from point to point shall have a minimum of 15% spare fibers rounded to the nearest pair.

4.5.1.3.1 Supplier shall bury fiber optic cable according to Owner and cable vendor recommendations when installed in joint-trench with power cables. Supplier shall reference Exhibit A for backfill requirements

4.5.2 At nodes in the network, managed switches shall be used.

4.5.2.1 Switches shall be approved by Owner

4.5.2.2 Switches shall have a minimum of one spare port and one spare switch.

4.5.3 The communication protocol between the primary DAS/SCADA system location and inverters shall be Ethernet TCP/IP with MODBUS TCP.

4.5.4 Communication system security shall be NERC compliant.

4.6 Component Level Communication

4.6.1 Communication between fiber nodes and equipment at each node (such as inverters and data loggers) shall be copper Ethernet

4.6.1.1 Transmission speed shall be 100BASE-T

4.6.1.2 Ports shall be standard Ethernet RJ-45

4.6.1.3 Cabling shall be a minimum of CAT 5E with a jacket rating that meets NEC code and/or AHJ requirements.

4.6.2 Communication between components such as data loggers, sub meters, Inverters, weather station and Sensor I/O components shall comply with the component manufacturer's installation instructions.

4.6.2.1 The cable shield shall be grounded on one end of the cable only.

4.6.2.2 Termination resistors shall be used at each end of any daisy chain connections in accordance with device manufacturer instructions.

4.6.2.3 CAT 5E cable distances shall not exceed 300 ft.

4.6.3 Inverters that have a proprietary communication protocol shall be ordered with conversion devices to connect them to the network.

4.7 Sensor Level Communication

4.7.1.1 Cabling shall be specified by the component manufacturer or provided with the sensors.

4.7.1.2 Sensor cabling that is not completely contained within enclosures and conduit shall be outdoor and UV rated.

4.7.1.3 Sensor cabling shall not exceed the manufacturer's recommended maximum length.

4.8 Metering

4.8.1 AC Metering shall be revenue grade, provided by Contractor, located to satisfy interconnection and PPA requirements, and the selection, testing, and calibration shall comply with ISO and connected utility requirements.

4.8.2 The DAS/SCADA system shall communicate with meters.

4.9 Monitored Data Points

4.9.1 Solar PV Plant Controller (if applicable)

4.9.2 Trackers (if applicable)

4.9.3 Commanded tilt (each motor or drive system)

4.9.4 Actual tilt (at a minimum, each motor or drive system and each plane of array irradiance sensor)

4.9.5 Recommended additional monitoring: battery voltage, state of charge, temperature, and motor current.

4.9.6 Meteorological Stations

4.9.6.1 Irradiance (horizontal and plane of array)

4.9.6.2 Ambient air temperature

4.9.6.3 Back of module temperature

4.9.6.4 Wind speed

4.9.6.5 Wind direction

4.9.6.6 Relative humidity

4.9.6.7 Barometric Pressure

4.9.6.8 Soiling sensor to measure the soiling losses produced by dust, sand, snow, or other type of sediment.

4.9.6.9 Rain gauge to measure cumulative precipitation.

4.9.7 Inverter Performance

4.9.7.1 Real time ac and dc electrical characteristics, including power, energy, voltage, current, frequency, power factor, inverter status, major and minor fault codes and fault and alarm status words, change of operating mode and all data available from inverter system

4.9.7.2 High- and low-voltage ride-through and frequency ride-through, Phase-Locked Loop (PLL) loss of synchronism, and pulse width modulation index (if applicable)

4.9.7.3 Control system command values, reference values, and feedback signals

4.9.7.4 DC circuit monitoring at each inverter input at the recombiner shall include operating current and voltage

4.9.8 Transformers

4.9.8.1 Alarms including but not limited to transformer oil temperature, transformer pressure/vacuum, and transformer oil level

4.9.8.2 Digital and analog signals including tap changer status except on inverter step-up transformers

4.9.9 AC Collection and Interconnection

4.9.9.1 AC disconnect switch points with position feedback

4.9.9.2 Protection relaying auxiliary contacts for alarming to meet utility requirements only

4.9.10 AC Metering

4.9.10.1 Voltage, current, real power, power factor

4.9.10.2 Kilowatt-hours delivered, consumed and net

4.10 Meteorological Stations

4.10.1 Each meteorological station shall be compatible with the DAS/SCADA and/or DAS system. DAS/SCADA system shall provide alarming to alert operators as to when Met Station data is lost.

4.10.2 The design and location of the Meteorological Station(s), while suitable for use in the Site climate, shall be so as to minimize interference and non-representative recordings. Consideration shall be specifically given to terrain and slopes, nearby shading objects, nearby reflective surfaces and air flow at any anemometers and wind vanes.

4.10.3 The Supplier shall be responsible for ensuring and demonstrating that the meteorological stations are fit for purpose and that the design and construction are in accordance with all Applicable Standards.

4.10.4 Each meteorological station shall include, at minimum, the following or IEC 61724:

4.10.4.1 Corrosion-resistant tower, tripod or similar structure for mounting sensors and other station equipment.

4.10.4.2 Data logger shall be equipped/capable of the following:

4.10.4.2.1 Sample each sensor at no greater than 5 second intervals

4.10.4.2.2 Calculate minimum, maximum, average and standard deviation values for the measurements at 1-, 5-, and 15-minute intervals

4.10.4.2.3 Local data buffering

4.10.4.2.4 Battery backup power

4.10.4.2.5 Low battery alarm

4.10.4.3 One (1) global horizontal Irradiance (GHI) sensor secondary standard pyranometer positioned without obstruction

4.10.4.3.1 For systems using bifacial modules:

4.10.4.3.1.1 One (1) albedometer positioned without obstruction

4.10.4.3.1.2 One (1) albedometer positioned within the array

4.10.4.4 One (1) plane of array (POA) secondary standard pyranometer positioned without obstruction

4.10.4.4.1 For systems using bifacial modules: One (1) plane of array (POA) secondary standard pyranometer

4.10.4.5 For trackers, the tilt angle of the POA sensor must be directly monitored

4.10.4.6 Pyranometers shall comply with testing requirements of IEC 61724

4.10.4.7 Three (3) back of module temperature sensors per IEC requirements

4.10.4.8 One (1) Ambient air temperature sensor, with an accuracy of ±1ºC

4.10.4.9 One (1) Wind speed sensor, with an accuracy of 1 m/s, installed at or above 3 meters in height in a location free of obstructions

4.10.4.10 One (1) Wind direction sensor with an accuracy of ±5º heading

4.10.4.11 One (1) relative humidity sensor ±2.5%

4.10.4.12 One (1) barometric pressure sensor

4.10.4.13 Soiling measurement station consisting of:

- One or more “soiled” reference PV Modules which are identical to and mounted in the same plane as those used in the PV Array to be monitored.
- One or more “clean” reference PV Modules which are identical to and mounted in the same plane as those used in the PV Array to be monitored.
- One (1) rain gauge to complement soiling data
- A measurement and calibration system for measuring at a minimum the short circuit current and temperature of the reference PV Modules.

4.10.5 Pyranometers shall include device-specific characterization data that shall, at minimum, include cosine and temperature response.

4.10.6 Pyranometers shall comply with the requirements of the testing described in all agreed upon guarantees and warranties.

4.11 Meteorological Sensors

4.11.1 All pyranometers, including quantity, are to conform to international standards ISO 9060 and IEC 61724: "Photovoltaic system performance monitoring".

4.11.2 For each array tilt and orientation angle, digital secondary standard pyranometers with a measurement tolerance of ±2% will be used to measure the incident irradiation at each PV plant. It is agreed by both parties that the measurement tolerance and uncertainty of the plane of array irradiation measurements is no more than ±2%. Refer to IEC 61724 for specifications on the required number of meteorological stations per system size.

4.11.3 The pyranometer misalignment tolerance should not exceed either in azimuth or elevation more than 0.5 degrees. Each sensor is to be accompanied by its individual calibration certificate supplied by the manufacturer.

4.11.4 Pyranometers must be calibrated and maintained in accordance with the manufacturers' recommendations

4.11.5 Pyranometers will be attached to the installation in accordance with manufacturers' installation and mounting instructions on the module plane of the array. The critical points are presented below:

4.11.5.1 Pyranometers will be mounted in the same plane and azimuth as the PV module, with the exact same angle within the acceptable level of tolerance.

4.11.5.2 Albedometers will be installed on the front row of PV modules so that it sees the ground (so same type of reflection as the PV modules) but is not obstructed by other PV modules.

4.11.5.3 Pyranometers will be appropriately distributed within the installation area so that the average measured irradiance is representative as possible for the Site.

4.11.5.4 Pyranometers will be mounted in unobstructed field of view – all shadows must be avoided at all times of the year: when installing a weather station care has to be taken that the mast or tower does not shade the Pyranometer or the PV modules.

4.11.5.5 Met Station shall also include sensors and instrumentation for measuring: (a) Outside Air Temperature and relative humidity; (b) Rainfall; (c) Barometric Pressure; (d) Back of module temperature;(e) Wind speed and direction.

4.11.6

4.12 DAS/SCADA Control Equipment

4.12.1 Required system data from monitored data points in section 4.9 of this exhibit shall be recorded per IEEE 2800 section 11, table 19 which describes measurement data for performance monitoring and validation. Any exceptions, including equipment capabilities for recording rates shall be reviewed and agreed to between both parties. In some cases, equipment capabilities may dictate recording rates.

4.12.2 The DAS/SCADA system shall have provisions for secure full remote access per NERC compliance standards

4.12.3 A firewall shall be installed between the Project network and the incoming connection.

4.12.4 Single pair instrument cable shall be rated, sized, and specified to meet NEC and AHJ requirements

4.12.5 Multiple pair instrument cable shall be rated, sized, and specified to meet NEC and AHJ requirements.

4.12.6 Single or multiple twisted shielded pair cable shall be rated, sized, and specified to meet NEC and AHJ requirements

4.12.7 Data communications cable shall be rated, sized, and specified to meet NEC and AHJ requirements

4.13 Monitoring/Controls Software and Hardware

4.13.1 A PPC (Power Plant Controller) (if applicable) must be integrated in the monitoring system. PPC shall meet all commissioning requirements.

4.13.2 The monitoring system will comply with all applicable NEC & NERC standards, as well as RTO, utility, and interconnection agreement requirements. The system will consist of a secure local area network connected over a combination of copper, aerial and buried fiber, & wireless mediums that will connect all plant controllers or data acquisition systems to all field equipment including but not limited to inverters, MET stations & sensors, communications enclosures, UPS systems, and trackers if applicable.

Substation devices including relays, meters, monitoring devices, and automation controllers will be connected over copper and fiber mediums as well and integrated into the monitoring system.

The monitoring system will utilize Modbus, DNP3.0, and/or SEL communications protocols and will interface with all plant, substation, & field equipment for real time controls and status monitoring.

All fiber and splices will be tested to ensure BISCI standards are met or exceeded for signal loss or attenuation.

All monitoring and communication equipment will be commissioned, tested, and validated to be operational and performing as intended.

4.14 DAS/SCADA System Software Functionality

4.14.1 The DAS/SCADA system and user interface, or Human Machine Interface (HMI), shall be based on commercially available software. Software selection shall be submitted by Supplier for Owner approval. Software shall include as a minimum the following licenses: (a) System Platform; (b) HMI Development; (c) HMI Runtime; (d) Historian; (e) Reporting; (f) Alarm Notification (if applicable)

4.14.2 External Interfaces

4.14.2.1 A secure external interface shall be available to authorized users to view the DAS/SCADA system screens through an Internet browser with reporting capability upon request and availability.

4.15 Uninterruptable Power Supply

4.15.1 SCADA/DAS and met stations shall have local UPS or equivalent supply, capable of lasting a minimum of eight hours.

4.16 Delivery & Identification

4.16.1 Supplier shall provide an identification nameplate or UV rated adhesive label for major field equipment.

4.16.2 Shipment and handling of materials shall be in a manner that avoids damage.

4.16.3 Equipment shall be inspected for damage prior to installation. Damaged equipment shall be repaired or replaced.

End of Exhibit

Schedule 30

Owner Supplied Modules

Owner shall provide the following number of Modules as the Base Supply pursuant to Section 5.17.4:

Number of Base Supply Modules: 405,849 units at a minimum average wattage of 530W

Of the Base Supply Modules, the following shall be considered as Additional Modules for Breakage and O&M Spare Modules:

Number of Additional Modules for Breakage: Two and one tenth percent (2.1%) of the Number of Base Supply Modules (to be rounded down to the next whole number)

Number of O&M Spare Modules: Eight-tenths of one percent (0.8%) of the Number of Base Supply Modules (to be rounded up to the next whole number)

Exhibit 1

Description of Site

SITE ADDRESS: 1378 Luther Jones Rd, Jackson OH 45640

SITE NAME: Dixon Solar, LLC

SITE OWNERS: Dixon Land Holdings, LLC

SITE ACREAGE: 2250 +/- Acres

SYSTEM SIZE: 140 MW AC and 210 MW DC

SYSTEM TYPE: Solar Power Plant

Facility Site:

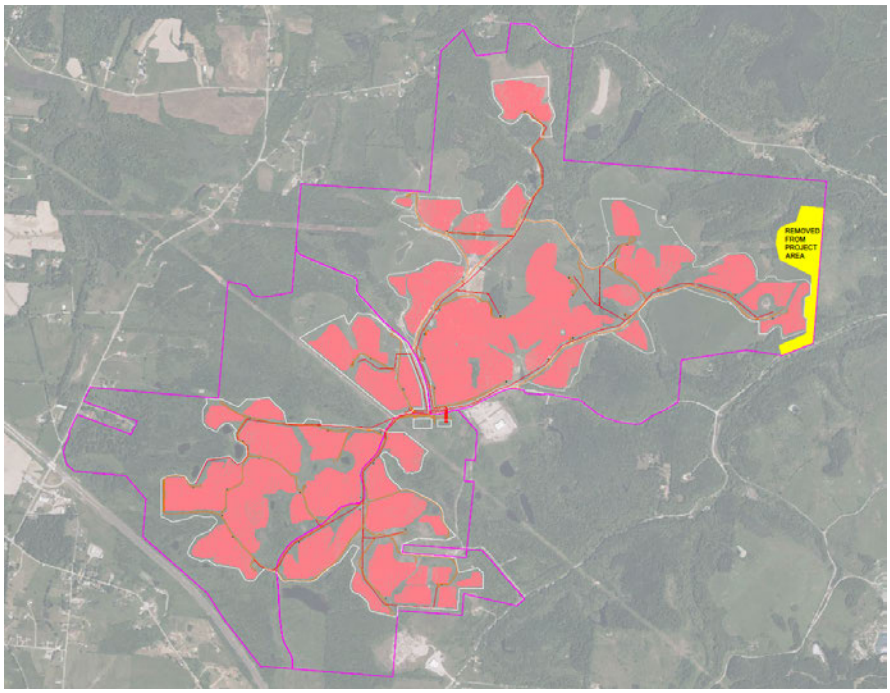


Exhibit 2

[Reserved]

Exhibit 3 – Siting Board Obligations

1. Purpose; Order of Precedence

1.1 **Purpose.** This Exhibit sets forth Contractor's obligations to support Owner's compliance with the Ohio Power Siting Board ("**OPSB**") certificate conditions applicable to engineering, procurement, construction, and commissioning of the Project set forth in the Opinion and Order dated September 21, 2023 in OPDB Case No. 21-768-EL-BGN, attached to this Exhibit as Attachment 3-1 (the "**Certificate Conditions**").

1.2 **No limitation.** Contractor was, at all relevant times, closely affiliated with the "Applicant" under the Certificate Conditions and therefore has a direct and thorough knowledge of the Application (including any modified or supplemental filings), Staff Report, replies to data requests, and any other filings made in relation to or in support of the Certificate Conditions. Therefore, Contractor acknowledges that it possesses all information referenced in, or necessary to comply with the obligations of, the Certificate Conditions and this Exhibit and it is not a condition of Contractor's compliance with this Exhibit that Owner provide any information or documents to Contractor. Furthermore, until the Substantial Completion Date, Contractor shall be responsible for performing or completing the obligations of the Owner as the "Applicant" under the Certificate Conditions, regardless of the fact that the Certificate Conditions reference or place certain obligations on the "Applicant." These obligations are in addition to, and do not limit, any other Contractor obligations under the Agreement, Applicable Law, Applicable Permits, or Industry Practice.

1.3 **Order of precedence.** In the event of conflict between this Exhibit and the Agreement, then the order of precedence in the Agreement shall govern; however, Contractor shall promptly notify Owner of any actual or potential conflict affecting compliance.

2. Definitions

Terms defined in this Exhibit shall apply solely to this Exhibit and shall not modify or supersede definitions in the Agreement. Capitalized terms used in this Exhibit that are not defined herein shall have the meaning ascribed to them in the Agreement or, if not defined in the Agreement, shall be interpreted in accordance with Industry Standards.

2.1 **"Applicant"** means the Owner.
2.2 **"Application"** means the application filed on September 29, 2021, as amended on October 7, 2021, and as supplemented on November 4, 2021, and November 17, 2021, by the Applicant for a certificate of environmental compatibility and public need to construct the Project as referenced in the Certificate of Conditions.
2.3 **"Compliance Deliverables"** means the plans, schedules, studies, drawings, logs, notices support, and other submittals described in Section 3.
2.4 **"Staff"** means OPSB Staff (or any successor/assignee acting in that capacity).
2.5 **"Staff Report"** means the report referenced in the Certificate of Conditions as the "Staff Report" or "Report" prepared by the Staff that sets forth certain recommendations, conditions, requirements, and obligations as to the design, engineering, construction, and commissioning of the Project.

2.6 **"Sensitive Areas"** includes wetlands, streams, floodplains, threatened/endangered species habitats/locations, and other protected resources identified in the Certificate Conditions, Permits, final engineering, or by Owner/Staff.

Part A – Contractor Deliverables Before Notice to Proceed (or as a condition to Notice to Proceed, as applicable)

3. Compliance Deliverables (Prior to Each Pre-Construction Conference)

To the extent Applicant has not yet provided or included in the OPSB Docket (or otherwise delivered to OPSB) the following Compliance Deliverables prior to the Effective Date of the EPC Agreement, Contractor shall deliver to Owner draft versions, and prepare and file/submit (if applicable), the following Compliance Deliverables consistent with the Certificate Conditions:

3.1 **Preconstruction Conference Package Support.** Agenda and certificate compliance presentation, including proposed procedures for on-site investigations by Staff during Construction and a list of Subcontractors attending each pre-construction conference.

3.2 **Transportation / Traffic Control Support.** Transportation management plan (including Transportation Study completion support, road use agreements, and, as applicable, any temporary road closures, driveway permits, lane closures, road access restrictions, and traffic control necessary for the construction of the Facility.

3.3 **Permit/Authorization Register (Construction).** To the extent the pre-construction conference pertains to the commencement of construction activities in areas that require permits or authorizations by federal, state, or local law and regulations, the Contractor shall provide a permit/authorization needs list for Contractor scope (federal/state/local), including lead times, dependencies, and responsible persons.

3.4 **Drainage / Field Tile Protection Plan.** Certification that Contractor has documented benchmark conditions as to drainage systems prior to commencement of construction.

3.5 **Spill Prevention Plan.** Spill Prevention Countermeasures and Control Plan or comparable plan that addresses prevention of, response to, and notification to the appropriate authorities in the event of any spills.

3.6 **Glare Analysis.** An updated glare analysis based on the final design.

3.7 **Corrosion Review.** An engineer's report on, or a geotechnical report that addresses, how potentially corrosive soils, and their impact on the installations, will be mitigated.

Timing note. Contractor shall provide its inputs to Owner with sufficient time for Owner review ahead of the timing required by the Certificate Conditions. The Parties agree that in order to comply with the Project Schedule, Owner shall have two (2) Business Days to review the documentation and provide comments; *provided, however*, Owner shall have ten (10) days to review any engineered drawings, reports, or data. If comments are not received from Owner within two (2) Business Days of receipt of documentation or ten (10) days for any engineered drawings, reports, or data, the documentation shall be deemed accepted and Contractor shall submit the same to OPSB. If Owner provides comments to Contractor within the applicable

timeframe, to the extent Contractor agrees with Owner's comments, Contractor will implement and submit to OPSB. To the extent Contractor disagrees with Owner's comments, Contractor and Owner shall discuss prior to filing to reach a commercially reasonable resolution; *provided however*, that if the Parties are unable to reach a commercially reasonable resolution within three (3) Business Days, then Contractor shall be obligated to proceed pursuant to the written direction issued by Owner. If Contractor believes that such direction constitutes a Scope Change, then Contractor shall be entitled to submit for a Scope Change pursuant to Article 14 of the Agreement. In addition to the foregoing, the Parties agree that if a Pre-Construction Conference is missed or delayed as a result of Owner's failure to provide comments within the time periods set forth above, the resulting Owner Delay on the Critical Path shall include the time reasonably required to reschedule the Pre-Construction Conference or to schedule a new Pre-Construction Conference, to the extent such rescheduling or new scheduling causes or exacerbates a Critical Path delay to the Project Schedule.

Part B – Contractor Deliverables Before Start of Field Construction (post-Notice to Proceed / pre-mobilization, as applicable)

4. Pre-Construction Start Gate Items

Contractor shall not commence field construction at the Site until Owner confirms the applicable start-gate conditions are satisfied. Contractor shall provide timely support, including:

4.1 **Transportation Permits.** Evidence of required Applicable Permits for transportation activities that require them.

4.2 **Permit Compliance Readiness.** Confirmation that all required Applicable Permits applicable to Contractor's Work areas are in place, and that site crews have been briefed on permit conditions.

4.3 **Environmental Specialist Coordination.** Staffing plan and scheduling to ensure the Staff-approved environmental specialist is on site when required for activities affecting Sensitive Areas.

4.4 **Fencing / Lighting / Screening Implementation Readiness.** Installation plans and materials readiness for the landscape/lighting plan and wildlife-permeable perimeter fencing requirements ensuring fencing around panels incorporate gaps or spaces of at least 6 inches by 6 inches to allow passage of small mammals. Fencing along the perimeter of the project shall be maintained in good repair until the Substantial Completion Date and any damage shall be promptly repaired. With the exception of fencing surrounding the Substation, no barbed wire fencing may be used for the perimeter fence.

4.5 **Seasonal Restriction Lookahead.** A schedule flagging seasonal restriction windows (tree clearing; in-water work; crane/harrier habitat restrictions) and associated "no-work" buffers.

Part C – Field Execution Requirements (Construction Phase)

5. General Compliance

5.1 **Construct as certificated.** Contractor shall perform the Work consistent with the Application and Staff Report adopted in the Certificate Conditions and any Compliance Deliverables provided pursuant to this Exhibit as part of the Contract Price.

5.2 **Staff access.** Contractor shall cooperate with Staff site investigations/inspections, including providing safe access, escorts as required, and timely responses to reasonable information requests routed through Owner provided that Owner consults with Contractor regarding scheduling the Staff site investigations/inspections.

5.3 **Set Backs.** Contractor shall design the Project to maintain, and shall thereafter maintain during construction, minimum setbacks of at least 150 feet from non-participating parcel boundaries, at least 300 feet from non-participating residences, and at least 150 feet from the edge of any paved state, county, or township road.

5.4 **Wells.** Contractor shall construct the Project infrastructure, maintaining a 25-foot setback from any plugged and abandoned oil and gas wells.

5.5 **Subcontractor Flowdown Package.** Contractor shall provide a draft of proposed Subcontract language and/or compliance exhibit to flow down applicable Certificate Conditions and this Exhibit to all Subcontractors performing Work on Site.

6. Transportation; Traffic Control; Road Use

6.1 **Authority coordination.** Contractor shall coordinate traffic control, temporary closures, lane restrictions, access controls, and road use requirements through Owner and the applicable authorities, and shall comply with the final transportation management plan and Applicable Permits.

7. Construction Hours; Noise Controls; Notifications Support

7.1 **Work hours.** Unless otherwise authorized by OPSB, Contractor shall limit general construction activities to the hours of 7AM to 7PM, or until dusk when sunset occurs after 7PM. Contractor shall comply with the permitted construction hours and restrictions for impact pile driving and hoe ram operations (if used) and shall implement noise monitoring when required by the Certificate Conditions. Contractor shall not perform impact pile driving between 7AM and 9AM or after 6PM unless the noise impact at non-participating receptors is not greater than daytime ambient Leq plus 10 dBA.

7.2 **Neighbor notice support.** Contractor shall provide Owner a draft of any notices to be sent out to neighboring property owners regarding anticipated nighttime activities or heightened noise levels. The Parties agree that in order to comply with the Project Schedule, Owner shall have two (2) Business Days to review the documentation and provide comments. If comments are not received from Owner within two (2) Business Days of receipt of documentation, the documentation shall be deemed accepted and Contractor may submit the same to the neighboring property owners.

8. Drainage; Field Tile; Soils; Adjacent Property Protection

8.1 **Avoid/minimize damage.** Contractor shall avoid or minimize damage to field tile drainage systems and soils, and, in the event any are disturbed or damaged by Contractor, shall, at its sole expense, (1) notify Owner of the location of the drainage system, (2) promptly repair or reroute damaged systems to at least original condition or modern equivalent, in consultation with the county engineer, consistent with OPSB requirements; and (3) provide post-construction mapping support.

However, if the affected landowner(s) agrees to not having the damaged field tile system repaired, they may do so only if: i) the field tile systems of adjacent landowners remain unaffected by the non-repair of the landowner's field tile system; and ii) the damaged field tile does not route directly onto or into an adjacent parcel.

8.2 **Documentation and mapping.** Contractor shall document discovered drainage infrastructure and repairs in a manner that enables Owner to prepare the required post-construction mapping/docket filing.

9. Floodplain Avoidance; Stormwater; Wetlands/Surface Water Buffers

9.1 **Floodplain.** Contractor shall avoid construction within the FEMA-designated 100-year floodplain.

9.2 **Stormwater controls.** Contractor shall install and maintain stormwater controls consistent with the Applicable Permits under OHC00005 in accordance with the Ohio EPA's Guidance on Post-Construction Storm Water Controls for Solar Panel Arrays and the Certificate Conditions (including post-construction stormwater management requirements where within Contractor's scope).

9.3 **Wetlands/surface waters.** Contractor shall avoid wetland impacts associated with panel installation and maintain required buffers around surface water resources.

10. Vegetation; Weeds; Tree Clearing Limits and Seasonal Restrictions

10.1 **Pollinator Habitat.** Contractor shall implement the approved vegetation management plan during construction, including planting beneficial vegetation and establishing pollinator habitat. Contractor shall follow routine mowing restrictions in accordance with the approved plan until the Substantial Completion Date.

10.2 **Noxious weeds.** Contractor shall implement measures to prevent establishment/propagation of noxious weeds in connection with pollinator/vegetation work within Contractor's scope, including following specified seed selection requirements and implementing required treatment actions as directed by the Vegetation Management Plan; *provided, however*, Contractor's obligation to maintain or implement any noxious weed measures shall cease at Substantial Completion.

10.3 **Tree clearing restrictions.** Contractor shall comply with seasonal tree clearing date windows and tree clearing minimization requirements and shall coordinate any deviation only through Owner after required agency coordination/approvals are confirmed. Contractor shall minimize tree clearing to the greatest extent possible, including cutting no more than 127.5 acres.

11. Wildlife and Habitat Seasonal Restrictions; Listed Species Encounter Procedures

11.1 **Seasonal habitat restrictions.** Contractor shall avoid construction in identified sandhill crane (from April 1-September 1) and northern harrier (May 15-August 1) preferred nesting habitats during restricted dates types (unless modified by documented agency coordination provided by Owner), and shall comply with mapping/instructions provided by Applicant.

11.2 **In-water work restriction.** Contractor shall perform no in-water work in perennial streams during restricted dates from April 15-June 30 (unless modified by documented agency coordination provided by Owner).

11.3 **Listed species encounter.** If state or federally listed species are encountered, Contractor shall (i) immediately halt any activity that could adversely impact the species, (ii) secure the area, and (iii) notify Owner immediately so Owner can meet the required 24-hour agency notification.

11.4 **Environmental specialist authority.** Contractor shall retain, at its sole cost, a Staff-approved environmental specialist to be present on site during construction activities that may affect Sensitive Areas. Contractor shall comply with the environmental specialist's directives, including stop-work authority, for activities in/near Sensitive Areas. A map shall be provided to Staff showing sensitive areas which would be impacted during construction with information on when the environmental specialist will be present on Site.

12. Design Conformance; Change Management

12.1 **Build to approved drawings.** Contractor shall construct strictly in accordance with the final engineering drawings and mapping. The solar panels shall be installed no higher than 12 feet above ground level and above-ground electrical components shall be screened from approximately 95% of the visual study area.

12.2 **No unilateral layout changes.** Contractor shall not implement any change to Facility layout or disturbance limits without Owner written approval; Contractor shall provide documentation necessary for Staff review where required.

12.3 **Mine locations and subsidence constraints.** Contractor shall comply with design and avoidance constraints relating to mine locations JKN-179 and JKN-132 and in compliance with the Subsidence Mitigation Plan.

13. Cultural Resources / Unanticipated Discoveries

13.1 **Stop-work protocol.** Contractor shall comply with the Unanticipated Discovery Plan and Contractor's field protocol, including immediate stop-work, protection, documentation, and notification to Owner.

14. Community Complaints (Construction)

14.1 **Routing and documentation.** Contractor shall (1) promptly provide copies to Owner of any complaints, (2) comply with the Complaint Resolution Program and (3)document complaint details and responsive actions taken by Contractor in accordance with the Complaint Resolution Program.

Part D – Evidence; Records; Audit Rights

15. Records and Reporting

15.1 **Compliance records.** Contractor shall maintain records sufficient to demonstrate compliance with this Exhibit to the extent required by the OPSB (e.g., work hours logs and to the extent applicable: noise monitoring outputs, environmental specialist logs, drainage/tile repair logs, photo documentation). In addition, Contractor shall provide as-built documentation within thirty (30) days of the Substantial Completion Date so that Owner may file, in compliance with the Certificate Condition No. 3, a copy of the as-built specifications for the Facility.

15.2 **Provision to Owner.** To the extent not otherwise submitted by the Contractor, the Contractor shall provide compliance records to Owner upon request and, in any event, within timeframes reasonably required for Owner's docketing or reporting obligations, file or docket such records with the OPSB.

16. Subcontractor Flowdowns

16.1 **Flowdowns.** Contractor shall flow down applicable obligations in this Exhibit to all Subcontractors performing any portion of the Work on Site, and shall be responsible for Subcontractor compliance as if performed by Contractor.

17. Noncompliance; Corrective Action

17.1 **Stop-work/corrective action.** Contractor shall immediately stop any noncompliant activity upon discovery or direction by Owner/environmental specialist, implement corrective actions, and not resume until Owner authorizes restart, provided however that such authorization shall not be unreasonably delayed or withheld.

17.2 **Notice.** Contractor shall promptly notify Owner of any actual or threatened noncompliance, permit deviation, environmental incident, or condition that could trigger Staff/agency notification requirements.

THE OHIO POWER SITING BOARD

IN THE MATTER OF THE APPLICATION OF DIXON RUN SOLAR, LLC FOR A CERTIFICATE OF ENVIRONMENTAL COMPATIBILITY AND PUBLIC NEED FOR A SOLAR FACILITY LOCATED IN JACKSON COUNTY, OHIO.

CASE NO. 21-768-EL-BGN

OPINION AND ORDER

Entered in the Journal on September 21, 2023

I. SUMMARY

{¶ 1} The Ohio Power Siting Board issues a certificate of environmental compatibility and public need to Dixon Run Solar, LLC for the development, construction, and operation of a 140 megawatt solar-powered electric generation facility in Jackson County, Ohio, subject to the conditions set forth in the stipulation and consistent with this Opinion and Order.

II. PROCEDURAL HISTORY

{¶ 2} All proceedings before the Ohio Power Siting Board (Board) are conducted according to the provisions of R.C. Chapter 4906 and Ohio Adm. Code Chapter 4906-1, et seq.

{¶ 3} Dixon Run Solar, LLC (Dixon Run or Applicant) is a person as defined in R.C. 4906.01.

{¶ 4} Pursuant to R.C. 4906.04, no person shall construct a major utility facility without first having obtained a certificate from the Board. In seeking a certificate, applicants must comply with the filing requirements outlined in R.C. 4906.04, as well as Ohio Adm. Code Chapters 4906-2 through 4906-4.

{¶ 5} On June 30, 2021, Applicant filed a preapplication notification letter with the Board regarding a proposed 140 megawatt (MW) solar-powered electric generation facility in Bloomfield Township, Jackson County, Ohio (Facility). In the letter, Dixon Run explained that construction of the Facility was estimated to begin in the fourth quarter of 2022, with commercial operations commencing by December 31, 2023.

{¶ 6} On July 14, 2021, Dixon Run filed proof of its compliance with Ohio Adm. Code 4906-3-03(B)(2), requiring notice of the public information meeting to be sent to each property owner and affected tenant.

{¶ 7} That same day, Dixon Run filed proof of its compliance with Ohio Adm. Code 4906-3-03(B)(1), by publishing the required notification in the *The Vinton County Courier* newspaper on July 7, 2021. An in-person public information meeting was held at the ParksEdge Event Center in Jackson, Ohio, on July 22, 2021.

{¶ 8} On September 29, 2021, as amended on October 7, 2021, and supplemented on November 4 and November 17, 2021, Dixon Run filed with the Board its application for a certificate of environmental compatibility and public need to construct the Facility (Application).

{¶ 9} Also on September 29, 2021, Applicant filed two motions: one for a waiver from the requirement of Ohio Adm.Code 4906-4-08(D)(2)-(4) for a ten-mile study area for the impact on landmarks and cultural resources; and another for a protective order to keep confidential a portion of Exhibit C, which assesses the socioeconomic impact of the Facility. Additionally, Dixon Run notes that Application Section 4906-4-06(B)-€ incorporates, without reproducing, Exhibit C with respect to financial data and seeks to keep this information confidential and not part of the public record. The administrative law judge (ALJ) granted the Applicant's motion for waivers and motion for protective order by Entry issued September 14, 2022.

{¶ 10} Pursuant to Ohio Adm. Code 4906-3-06, within 60 days of receipt of an application for a major utility facility, the Chair of the Board must either accept the application as complete and compliant with the content requirements of R.C. 4906.06 and Ohio Adm. Code Chapters 4906-1 through 4906-7 or reject the application as incomplete.

{¶ 11} Through Entries issued on November 24, 2021, and February 28, 2022, the ALJ granted multiple requests to extend the deadline for Staff to make its recommendation regarding the completeness of the application.

{¶ 12} On March 14, 2022, Dixon Run filed proof of its notification of a second public information meeting sent to each property owner and affected tenant.

{¶ 13} That same day, Dixon Run filed proof of publication of the required notification in the *The Vinton County Courier* and *The Telegram* newspapers on March 9, 2022. An in-person public information meeting was held at the ParksEdge Event Center in Jackson, Ohio, on March 22, 2022.

{¶ 14} By letter dated July 22, 2022, the Board notified Dixon Run that its Application was complete and provided sufficient information to permit Staff to commence its review and investigation. Pursuant to Ohio Adm. Code 4906-3-06 and 4906-3-07, the Board's July 22, 2022 letter directed Applicant to serve appropriate government officials and public agencies with copies of the complete, certified Application and to file proof of service with the Board. The letter further instructed Dixon Run to submit its application fee pursuant to R.C. 4906.06(F) and Ohio Adm. Code 4906-3-12.

{¶ 15} On August 2, 2022, Applicant filed a certificate of service of its accepted and complete application.

{¶ 16} August 24, 2022, Dixon Run filed proof that it submitted its application fee to the Board as required by Ohio Adm. Code 4906-3-07.

{¶ 17} On September 14, 2022, the ALJ issued an Entry establishing the procedural schedule for this case. Specifically, the Entry stated that the effective date of the Application is September 14, 2022; the local public hearing would be held on November 29, 2022; and the adjudicatory hearing would commence on December 14, 2022. The ALJ further directed Dixon Run to issue public notices of the Application and hearings pursuant to Ohio Adm.Code 4906-3-09 indicating that petitions to intervene would be accepted by the Board up to 30 days following service of the notice, or October 28, 2022, whichever was later.

{¶ 18} In accordance with R.C. 4906.06(C), Dixon Run filed proof of first publication of a description of the accepted, complete Application, in *The Telegram* on September 24, 2022; and in *The Vinton County Courier* on September 30, 2022. Proof of publication was filed in the docket on October 4, 2022. The published notice also contained information regarding the scheduled hearing dates.

{¶ 19} On October 24, 2022, and October 28, 2022, motions for intervention were filed by the Ohio Environmental Council (OEC) and the Ohio Farm Bureau Federation (OFBF), respectively. Neither motion was opposed. By Entry dated December 7, 2022, the ALJ granted the motions to intervene.

{¶ 20} On November 14, 2022, Staff filed its report of investigation (Staff Report).

{¶ 21} In accordance with R.C. 4906.06(C), Dixon Run filed proof of the second publication of a description of the accepted, complete Application, in *The Telegram* on November 12, 2022; and in *The Vinton County Courier* on November 18, 2022. Proof of publication was filed in the docket on November 28, 2022. The published notice also contained information regarding the scheduled hearing dates.

{¶ 22} On November 29, 2022, the ALJ conducted the public hearing at Jackson Middle School, 21 Tropic Street, Jackson, Ohio. Seven people provided testimony during the hearing. Of the seven, three voiced support for the project, two voiced opposition to it, and two individuals expressed concerns without explicitly supporting or opposing it.

{¶ 23} On December 6, 2022, Dixon Run, OEC, OFBF, and Staff filed a joint motion to call and continue the evidentiary hearing and to extend filing deadlines for the purposes of continuing settlement discussions.

{¶ 24} By Entry issued December 7, 2022, the ALJ granted the joint motion to call and continue the December 14, 2022 evidentiary hearing and to continue the remaining filing deadlines. At the hearing on December 14, 2022, the record in the case was opened, counsel for attending parties entered appearances, and then the ALJ and the parties discussed setting a new procedural schedule and hearing date. The hearing then adjourned to reconvene at a later date.

{¶ 25} By Entry dated January 10, 2023, the ALJ scheduled the evidentiary hearing to reconvene on March 21, 2023.

{¶ 26} On March 10, 2023, Dixon Run, OEC, OFBF, and Staff filed a joint stipulation and recommendation (Stipulation) through which the parties intend to resolve all matters pertinent to the certification, construction, and operation of the proposed Facility. In support of the Stipulation, Dixon Run filed the supplemental direct expert testimony of Dustin Smith that same day.

{¶ 27} On March 21, 2023, the evidentiary hearing convened. On behalf of Dixon Run, Dustin Smith presented his direct testimony in support of the Application (Applicant Ex. 23) and the Stipulation (Joint Ex. 1).

III. PROJECT DESCRIPTION

{¶ 1} Dixon Run seeks certification to build a 140 MW solar-powered electric generation facility in Jackson County, Ohio. The Facility would consist of the fenceline, photovoltaic (PV) panel arrays, overhead electrical collection lines, inverters, transformers, access pathways, substation, AEP switching station, weather stations, construction trailers, and laydown yards. The Facility will deliver power to a single point of interconnection on the Rio – Lick 138 kV circuit, owned by AEP Ohio Transmission Company, Inc. (AEP). The

point of interconnection would consist of a new three circuit breaker 138 kV switching station and a short gen-tie line from the Facility substation to the AEP switching station. The application for certification includes the Facility and the point of interconnection. From there, the renewable energy generated by the Facility will be transferred to the transmission grid operated by PJM Interconnection, LLC (PJM) for sale at wholesale price or under a power purchase agreement. (Applicant Ex. 1 at 3.)

IV. CERTIFICATION CRITERIA

{¶ 28} Pursuant to R.C. 4906.10(A), the Board shall not grant a certificate for the construction, operation, and maintenance of a major utility facility, either as proposed or as modified by the Board, unless it finds and determines all of the following:

1. The basis of the need for the facility if the facility is an electric transmission line or a gas or natural gas transmission line;

2. The nature of the probable environmental impact;

3. That the facility represents the minimum adverse environmental impact, considering the state of available technology and the nature and economics of the various alternatives, and other pertinent considerations;

4. In the case of an electric transmission line or generating facility, that the facility is consistent with regional plans for expansion of the electric power grid of the electric systems serving this state and interconnected utility systems and that the facility will serve the interests of electric system economy and reliability;

5. That the facility will comply with R.C. Chapters 3704, 3734, and 6111, as well as all rules and standards adopted under those chapters and under R.C. 4561.32;

6. That the facility will serve the public interest, convenience, and necessity;

7. The impact of the facility on the viability as agricultural land of any land in an existing agricultural district established under R.C. Chapter 929 that is located within the site and alternate site of any proposed major facility; and

8. That the facility incorporates maximum feasible water conservation practices as determined by the Board, considering available technology and the nature and economics of various alternatives.

V. SUMMARY OF EVIDENCE

{¶ 29} The Board will review the evidence presented with regard to each of the eight criteria by which we are required to evaluate applications. Any evidence not specifically addressed herein has nevertheless been considered and weighed by the Board in reaching its final determination.

A. Local Public Hearing

{¶ 30} On November 29, 2022, the ALJ conducted the public hearing at Jackson Middle School, 21 Tropic Street, Jackson, Ohio. Seven people provided testimony during the hearing: Dan Shirey, Andrew Murray, Dana Shutte, James Hammons, William Martin, Debra Yates, and Steve Laurent. Of the seven, three voiced support for the project, two voiced opposition to it, and two individuals expressed concerns without explicitly supporting or opposing it. The supporters identified such benefits as employment opportunities, the future prospects of solar, and positive reuse of reclaimed strip-mined land. The opponents and those who expressed concerns about the project pointed to possible habitat degradation, loss of farmable land, runoff issues, proximity to witness residences, and aesthetics. (Local Public Hearing Tr. at 11-33.)

{¶ 2} In addition to the testimony provided at the public hearing, the Board received thirteen written comments regarding the proposed Facility. One public comment was supportive of the project; the rest expressed concerns, raised questions, or opposed the project. Eleven of the thirteen comments came from three opposing citizens: one citizen filed five public comments, another four, and another two.

B. Staff Report

{¶ 31} Pursuant to R.C. 4906.07(C), Staff completed an investigation into the Application, which included recommended findings regarding R.C. 4906.10(A). The following is a summary of Staff's findings.

1. BASIS OF NEED

{¶ 32} R.C. 4906.10(A)(1) requires an applicant for an electric transmission line or gas pipeline to demonstrate the basis of the need for such a facility. Because the Facility is a proposed electric generation facility, Staff recommends that the Board find this consideration is inapplicable. (Staff Ex. 1 at 10.)

2. NATURE OF PROBABLE ENVIRONMENTAL IMPACT

{¶ 33} R.C. 4906.10(A)(2) requires that the Board determine the nature of the probable environmental impact of the proposed facility. As a part of its investigation, Staff reviewed the nature of the probable impact of the battery energy storage and the following is a summary of Staff's findings.

a. Community Impacts

{¶ 34} The Applicant states the primary land use within one mile of the project area is agricultural and residential, with some commercial, industrial, and exempt land.

Structures within one mile of the project include residences, commercial buildings, and churches. The Applicant states the only land use type the Facility would directly impact is pastureland and designated agricultural land use. Historically, mining operations, both underground and surface mining, occurred in the project area. The proposed project would permanently impact approximately 1,219 acres of agricultural land. Impacts from construction would be contained to participating properties and would be temporary. No structures are planned to be removed as part of this project. The Applicant has stated it is considering the possibility of utilizing sheep grazing for vegetation management. The Applicant has designed the project layout to include setbacks of panels at least 300 feet from non-participating residences and 100 feet from non-participating property lines. (Staff Ex. 1 at 11.)

{¶ 35} Staff agrees with the Applicant's determination that the Facility would align with Jackson County's regional land use planning. Jackson County has designated the county as an alternative energy zone to encourage and approve alternative energy facilities. Staff states that the Facility would be expected to support the local economy by providing local farmers and landowners with supplemental income for their leased land and increasing local tax revenues. Also, Staff notes, by committing the project area to construction and operation of the Facility, the land on which it sits will be protected from permanent development and could be returned to agricultural use after the Facility's decommissioning. (Staff Ex. 1 at 12.)

{¶ 36} Staff determined that the Facility will not impact recreation areas. While the proposed Facility would be somewhat visible from several nearby recreation areas, existing vegetation partially or mostly obscures the view. (Staff Ex. 1 at 12.)

{¶ 37} As for aesthetics, Staff notes that the agricultural nature of the Facility's location limits the number of potential viewers. Also, Staff reviewed Applicant's Visual Resource Assessment (VRA), which includes results for a five-mile visual analysis. The solar panels installed no higher than 12 feet above ground level, and above-ground electrical

components would be screened from approximately 95 percent of the visual study area (VSA). Nearby woodlots would screen the panels from nearby sensitive receptors. The project area's visual landscape already includes transmission lines and their large support structures. Staff reports that the Facility will be mostly screened visually, either by existing forested areas or conifer tree plantings in two areas of visibility from residences. The Applicant plans to utilize a seven-foot-tall woven wire fence with metal posts and with one barbed wire strand at the top for the Facility's perimeter fencing. However, Staff adds conditions stating that perimeter fencing should allow for passage of small mammals, with gaps of at least six inches by six inches, and be aesthetically fitting for a rural setting. Staff has also conditioned that the Applicant does not use barbed wire on the fence per recommendation from the Ohio Department of Natural Resources (ODNR) because barbed wire would be an entanglement risk to animals that would jump over the fence. Onsite lighting would be minimal, motion-activated, downward-facing, and oriented towards the Facility when needed between dawn and dusk. Staff also proposed requiring that the Applicant consult with a certified professional landscape architect when developing its landscaping mitigation plan to minimize visual impact. Finally, Staff recommends that aesthetic impact mitigation include good neighbor agreements or other methods in consultation with affected landowners and subject to Staff review. Staff believes that the project, with its recommended conditions, will have minimal overall aesthetic impact. (Staff Ex. 1 at 12-13.)

{¶ 38} Dixon Run enlisted a consultant to complete a cultural resources study for the project. Staff notes that the archaeology survey identified the presence of six newly identified archaeological sites and 14 previously identified sites within the project area. The consultant recommends avoiding three of those sites, and Applicant and the Ohio Historic Preservation Office (OHPO) agree. The consultant also recorded 18 cemeteries and 97 archaeological resources within a two-mile radius of the project. But the consultant found that the project would have minimal visual impact on the historical properties, and OHPO agrees. Staff determines that, based on the work performed by the Applicant and confirmed

by the OHPO, the proposed project would have minimal adverse environmental impacts to cultural resources. (Staff Ex. 1 at 14.)

{¶ 39} The Applicant engaged an independent economic consulting firm to analyze the direct and indirect economic impact of building and operating the Facility. The firm identified the following direct, indirect, and induced economic impacts:

a. About 680 new construction-related job impacts and 11 long-term operational jobs;

b. About $59.1 million in construction earnings and $600,000 in operation earnings; and

c. About $89.5 million output during construction and $1.4 million in annual output during operation.

(Staff Ex. 1 at 14.)

{¶ 40} Staff notes that, assuming a Payment in Lieu of Taxes (PILOT) plan, the Applicant would pay $7,000 per MW on an annual basis, or about $980,000 annually, in taxes to Jackson County. (Staff Ex. 1 at 15.)

{¶ 41} Applicant studied the potential for glare from the Facility, and determined that some temporary impacts of glare would occur near US Route 35, visible to drivers on that road and others in that area. However, Applicant has proposed vegetative screening throughout the project area to minimize the impact. The Applicant would also implement a complaint resolution plan to address and resolve glare concerns and would propose additional mitigation efforts should such complaints arise. Staff adds a recommendation that Applicant should submit an updated glare study based upon final design, and also recommends that additional screening should be utilized along the side of the Facility facing US Route 35. Staff further recommends that the solar panel model utilized for the project chosen must have an anti-reflective coating. (Staff Ex. 1 at 15-16.)

{¶ 42} The Applicant prepared a decommissioning plan and total decommissioning cost estimate of $3,761,841. Staff reviewed the plan and determined that the cost estimate is significantly lower than other comparable solar facilities, which usually require between $7.5 million and $12.5 million for proper decommissioning. Staff recommends that the Applicant update its decommissioning plan with a more accurate estimate prior to the preconstruction conference and implement a performance bond for that amount prior to construction. Staff also recommends that the Applicant provide financial security, specifically a performance surety bond, to ensure proper funds are available for decommissioning and land restoration. (Staff Ex. 1 at 16-17.)

{¶ 43} The Applicant's decommissioning plan outlines removal of panels, weather stations, inverters, electrical equipment, racking, scrap, piles, access roads, electrical collection lines, fencing, and substation. These activities are estimated to be completed over the course of six months to one year. Some components (e.g., substation and access roads) may remain in place if other agreements with landowners or the local utility require their continued use. Staff recommends that the Applicant coordinate with the appropriate local agency, i.e., the County Engineer, to coordinate repair of any public roads if damaged or modified during decommissioning. The Applicant would restore the land significantly to its pre-Facility use, allowing for agricultural use of the land to resume. Staff recommends that the Applicant monitor the site's revegetation and rehabilitation. As for the equipment, the Applicant intends to salvage what it can and dispose of other materials in appropriately licensed waste disposal facilities. The solar modules the Applicant is considering for the project meet the U.S. Environmental Protection Agency's (EPA) definition of non-hazardous waste; Staff recommends that whatever modules the Applicant decides upon, they not be materials which would exhibit the TCLP test characteristic of toxicity. The solar panels will also, upon decommissioning, be disposed of in a landfill appropriate for the material's characteristics.

{¶ 44} During construction of the facility, the Applicant would perform minimal grading and follow existing contours to the extent practicable. The Applicant intends to

segregate topsoil and redistribute it following grading activities to maintain soil productivity. Staff recommends that the Applicant submit a final grading plan which demonstrates that the project would minimize impacts to future agricultural land use. (Staff Ex. 1 at 17.)

{¶ 45} The Applicant analyzed high-wind velocities, including a tabulation of daily maximum wind speeds from three airports near the project area for the calendar year of 2020. Because it would be an unoccupied structure, the Facility is constructed under Risk Category I for wind load design using a minimum design wind load of 100 miles per hour (mph). Staff notes Applicant's analysis that a minimum wind speed of 150 mph would be necessary to separate the solar panels from their support structures. The Facility would utilize a fixed tilt system, with the panels tilted toward the south at an angle of fifteen degrees above the horizontal. The panels would not track the sun from east to west throughout the day. The construction components would include posts, racking structures, connections and related hardware. The Applicant stated that the racking hardware grades and the strength and spacing of the ground-imbedded support posts would be designed to withstand site specific site criteria. (Staff Ex. 1 at 18.)

{¶ 46} Facility construction would result in a temporary increase in truck traffic on local and state roads. Although the Applicant has yet to finalize its delivery route, the roads with expected impacts are Dixon Run Road, Luther Jones Road, and Keystone Furnace Road. Deliveries are expected to come from US Route 35 to State Route 327. The Applicant conducted a Route Evaluation Study and Traffic Control Plan along the transportation routes to identify possible impacts from construction. The Applicant expects some modifications to local roads, mainly at the access points to the project area, but anticipates no significant change to overall traffic patterns. The Applicant's investigation did not uncover any issues regarding road surface, bridge, or culvert quality that may impact the project. No overhead obstructions were observed. No traffic impacts are expected after construction is complete. Before commencing construction, the Applicant has committed to obtain and comply with all necessary transportation permits. Finally, the Applicant intends

to enter a Road Use Maintenance Agreement with the Jackson County Engineer. (Staff Ex. 1 at 18-19.)

{¶ 47} Staff notes that noise impacts from construction activities would include site clearing, installation of mechanical and electrical equipment, and commissioning and testing of equipment. Staff determines that many of the construction activities would generate significant noise levels during the construction period. However, Staff observes that the adverse impact of the construction noise would be temporary, intermittent, limited to daytime working hours, and would occur away from most residential structures. The Applicant conducted an ambient noise level study to understand the existing noise levels near the proposed facility. The study showed that no non-participating receptors were modeled to receive noise impacts greater than the ambient noise level plus five dBA. Staff said that Applicant would use mitigation practices such as limiting construction activities to daytime hours and establishing a complaint resolution process. Therefore, Staff finds that the project is expected to have minimal adverse noise impact on the community. (Staff Ex. 1 at 19.)

b. Site Geology

{¶ 48} According to Staff, the surficial geology of this project area is defined by historic mining operations (underground and surface) dating back to the early 1900s and continuing until 2013. Today, the area primarily consists of mine spoils or a thin layer of topsoil sitting on top of several feet of mine spoils. Seven known abandoned underground mines (AUM) are located within the project area. While ODNR has records of several mine openings in the area, the Applicant has not found any evidence of them. (Staff Ex. 1 at 19-20.)

{¶ 49} ODNR records also indicate six oil and gas wells within one mile of the proposed project area: five that are plugged, abandoned, or not drilled; and one active well. The Applicant has indicated SunEnergy1 will acquire the property and properly seal and

abandon the well in accordance with ODNR requirements prior to construction. Staff notes that a minimum solar facility component setback from this well will be necessary. (Staff Ex. 1 at 20-21.)

{¶ 50} Staff concludes, after reviewing the Application, all data provided by the Applicant, and relevant ODNR guidance, that it cannot determine the project's compatibility with the geology of an area of thick layers of mine spoils that may overlie AUMs vulnerable to collapse or subsidence. While the Applicant intends to perform additional geotechnical investigations in the AUM areas, Staff also recommends that the Applicant do the following:

a. Account in the final detailed engineering drawings of the project for geological features, and include the identity of the licensed and registered professional engineer(s), structural engineer(s), or engineering firm(s) who reviewed and approved the designs.

b. Provide a final geotechnical engineering report to Staff at least 30 days prior to the preconstruction conference.

c. Provide a final Unanticipated Discovery Plan that would address potential discovery of any subsurface conditions which may necessitate remedial actions during construction at least 30 days prior to the preconstruction conference.

d. Develop a formal Subsidence Mitigation Plan. This plan should outline details regarding recognition, reporting, and courses of action to be taken in the event of subsidence occurring within the project area.

e. Set back from one currently active oil and gas production well that the Applicant has indicated it will plug and abandon.

f. Consult with a professional(s) versed in corrosion engineering as it develops the final project design.

(Staff Ex. 1 at 21-22.)

c. Ecological Impacts

{¶ 51} There are no public drinking water supplies or water wells located within the project area. Therefore, Staff does not expect the proposed project will have any impact on these resources. Staff does recommend that Applicant develop a plan that considers spill prevention and spill response, including notification to the appropriate authorities. (Staff Ex. 1 at 23.)

{¶ 52} Applicant delineated eight streams in the project area: three ephemeral, one intermittent, and four perennial. The current project proposal, according to Applicant, would cross streams at four locations (three perennial and one intermittent) via trenching/culvert installation, resulting in 11.40 linear feet of temporary impact and 167.98 linear feet of permanent impact to streams. Applicant also delineated 33 wetlands totaling 21.31 acres in the project area; of those, 22 are Category 1 and eight are Category 2 wetlands. Applicant's current proposal crosses or impacts 20 wetlands at 29 locations due to installation of collection lines, PV panels, inverters, and access pathways. The project would temporarily impact 3.466 acres and permanently impact 2.436 acres of wetlands, and would occur in 15 of the Category 1 wetlands and five of the Category 2 wetlands. The Applicant would obtain coverage under a USACE individual permit or Nationwide Permit under Section 404 of the Clean Water Act, as well as an Ohio EPA Section 401 Water Quality Certification and an Isolated Wetland Permit, if necessary, as determined after engineering plans have been finalized. Also, Staff has recommended that Applicant avoid impacting wetlands with PV panel installation, which as proposed would impact 2.44 acres of wetlands. Finally, Applicant delineated 27 ponds in the project area, all of which it determined were remnant mining ponds. (Staff Ex. 1 at 23-24.)

{¶ 53} Applicant might locate several collection lines underground using horizontal directional drilling (HDD). HDD can result in fewer impacts when crossing surface water resources than other techniques like open-cut trenching; however, HDD includes the risk of a "frac-out," which occurs when the drilling lubricant, typically water or a non-toxic, fine clay bentonite slurry, is forced through cracks in bedrock and/or surface soils. Staff notes that Applicant prepared an HDD Contingency Plan that would be implemented at any stream crossing. Staff recommends that the Applicant also have an environmental specialist on site during construction activities where HDD activities may impact surface waters. The environmental specialist should have authority to stop HDD activities to ensure that any impacts related to a frac-out are addressed. (Staff Ex. 1 at 24.)

{¶ 54} Staff recognizes that Applicant would demarcate the boundaries of jurisdictional streams and wetlands within and immediately adjacent to the construction limits of disturbance with highly visible flaggable, staking, or fencing prior to construction. Staff notes that any further specifics about how surface waters would be protected from indirect construction stormwater impacts would be outlined in Applicant's Stormwater Pollution Prevention Plan (SWPPP). The Applicant would obtain an Ohio National Pollutant Discharge Elimination System (NPDES) construction stormwater general permit through the Ohio EPA prior to the start of construction. Staff does not anticipate issues with the Applicant's procurement of this permit. Staff recommends the Applicant apply Ohio EPA published Guidelines for Post-Construction Storm Water Control for Solar Panel Arrays to project construction and operation. (Staff Ex. 1 at 24.)

{¶ 55} Staff notes that a small portion of the project (northeast corner) overlaps the 100-year floodplain. To address the issue, the Applicant plans to avoid construction in this area entirely, designate the remaining area within the project area as an area of Minimal Flood Hazard, and address all hydrologic concerns via avoidance or through design measures in the final Facility layout. Also, Staff notes that the project will involve only minor grading, which is unlikely to alter the area's topography. Therefore, Staff concurs

that the project will not likely have a significant negative impact on the 100-year floodplain. (Staff Ex. 1 at 24-25.)

{¶ 56} After the Applicant gathered information from ODNR and U.S. Fish and Wildlife Service (USFWS), and Staff performed field assessments and reviewed published ecological information, one state listed species—the tri-colored bat —was identified in the project area. The capture of one member of this species led ODNR to conclude seasonal tree clearing restrictions were appropriate to limit impacts to state listed species. Thus, the ODNR recommends that no side-trimming or cutting of any trees in the project area between April 1 and September 30 should occur. The Applicant commits to these restrictions. Staff recommends that Applicant should contact Staff, ODNR, and USFWS, as applicable, if the Applicant encounters any listed plant or animal species during construction. Further, Staff recommends that if the Applicant encounters any listed plant or animal species prior to construction, the Applicant include the location and how impacts would be avoided in mapping based on final engineering drawings to be provided to Staff prior to the preconstruction conference. (Staff Ex. 1 at 24-27.)

{¶ 57} The project is within range of the habitats of several other listed species. To protect the Ohio lamprey, spotted darter, and lake chubsucker, Staff recommends that the in-water work be avoided in perennial streams from March 15 through June 30. To protect the migratory northern harrier, Staff recommends that construction in grasslands be avoided during the species' nesting period of April 15 and July 31. And to protect the sandhill crane, Staff recommends that construction in grassland, prairie, and wetland habitats be avoided during the species' nesting period of April 1 through August 31. (Staff Ex. 1 at 27.)

{¶ 58} According to Staff, permanent impacts on vegetation in the project area would primarily be to hay and pastureland. Staff notes that the Applicant developed a vegetation management plan with the goal of improving ecological benefit by enhancing species diversity and encouraging the development of native plant species, achieving a

minimum score of 80 on the Ohio Solar Site Pollinator Habitat Planning and Assessment Form. To further ensure such benefits are realized, Staff recommends that the Applicant take steps to prevent establishment and/or further propagation of noxious weeds identified in Ohio Adm.Code 901:5-37 during implementation of any pollinator friendly plantings. The Applicant also intends to routinely mow or utilize grazing animals. The Applicant also proposes to cut approximately 127.5 acres of trees for the project. The Applicant intends to record a deed restriction for a portion of the project area, establishing a "preservation zone" of 227 acres of protected forested land. The deed restriction would remain in place until Facility decommissioning. Staff recommends that the Applicant provide copies of the deed restriction, as well as of the power purchase agreement related to the tree clearing components, at least 30 days prior to the preconstruction conference. (Staff Ex. 1 at 28.)

{¶ 59} Staff recommends that the Board find the Applicant has determined the nature of the probable environmental impact for the Facility and therefore complies with the requirements specified in R.C. 4906.10(A)(2), provided that any certificate issued by the Board for the Facility include the conditions specified in the Staff Report. (Staff Ex. at 29.)

3. MINIMUM ADVERSE ENVIRONMENTAL IMPACT

{¶ 60} Pursuant to R.C. 4906.10(A)(3), the proposed facility must represent the minimum adverse environmental impact, considering the state of available technology and the nature and economics of the various alternatives, along with other pertinent considerations.

{¶ 61} Staff explains that Applicants sought the following initial criteria for site selection: strong electricity demand, adequate solar resources, access to the bulk power transmission system, area topography, and geology. Applicant then selected a specific geographical location—southeastern Ohio—based on solar resources and topography, considered areas where the transmission system had sufficient capacity to accommodate the solar facility with minimal electric system upgrade requirements, and identified locations

with contiguous parcels with willing participating landowners adjacent to a point-of-interconnection. Then Applicant contacted those landowners, engaged local officials and the public, and located land with land use characteristics generally suitable for hosting a solar facility. (Staff Ex. 1 at 30.)

{¶ 62} Staff notes that the project would positively impact the state and local economy due to the increase in construction spending, wages, purchasing of goods and services, and increased tax revenues of a potential PILOT payment. The geology of the selected site, Staff states, is unlikely to create difficulties for the Facility's construction and operation. Prior to construction, Staff recommends that Applicant do the following:

a. Submit a final geotechnical engineering report for Staff's review and concurrence, which shall include final detailed engineering drawings of the final project design and include all applicable geotechnical study results.

b. Finalize an Unanticipated Discovery Plan and input from a qualified corrosion engineer to account for potentially corrosive soils for the final project design.

(Staff Ex. 1 at 30.)

{¶ 63} Staff confirms it appears unlikely that the Facility construction or operation would adversely impact public or private drinking water supplies. (Staff Ex. 1 at 30.)

{¶ 64} Staff noted the various expected impacts on nearby water bodies and habitat. Applicant anticipates 11.40 linear feet of temporary impacts and 167.98 linear feet of permanent impacts to streams in the area. Additionally, the Applicant anticipates 3.466 acres of temporary impacts and 2.436 acres of permanent impacts to wetlands. These impacts would be a result of installation of collection lines, access roads, PV panels, and inverters. Where feasible, the Applicant would utilize HDD for collection line installation to minimize impacts to streams. The Applicant identified one listed species, a tricolored bat,

during field surveys. Applicant can avoid impacts to listed species by following seasonal restrictions for construction in certain habitat types, as detailed by the ODNR and the USFWS. The Applicant plans to avoid construction or operation within the 100-year floodplain within the northeast corner of the project area. (Staff Ex. 1 at 30-31.)

{¶ 65} Staff observes that the construction period will cause a temporary increase in truck traffic on local, state, and county roads, due to deliveries of equipment and materials. To minimize these impacts, the Applicant plans to enter into a Road Use Maintenance Agreement with the county and repair any damaged public roads and bridges under the guidance of the appropriate regulatory authority. (Staff Ex. 1 at 31.)

{¶ 66} Staff observes that the project's low profile and the area's existing vegetation will limit the more pronounced visual impacts to landowners in the immediate vicinity of the Facility. Staff recommends a condition requiring a final landscape and lighting plan to reduce visual impacts to adjacent non-participating parcels containing residences with a direct line of sight to the project. Further, Staff recommends a condition that the Applicant implement a minimum setback from the project's solar modules of at least 150 feet from non-participating parcel boundaries; at least 300 feet from non-participating residences; and at least 150 feet from the edge of any state, county, or township road within or adjacent to the project area. (Staff Ex. 1 at 31.)

{¶ 67} Applicant prepared a draft decommissioning plan for the Facility. Staff recommends that the Applicant would provide financial security to ensure that funds are available for decommissioning and land restoration. Applicant would restore the land significantly to its original topography, allowing for resumption of prior agricultural land use. Staff recommends a condition requiring that the draft decommissioning plan be updated to include, among other things, financial assurance and a decommissioning cost estimate. (Staff Ex. 1 at 31.)

{¶ 68} The Applicant is currently only considering using panels certified to comply with the U.S. EPA's Toxicity Characteristics Leaching Procedure (TCLP) test and meet the

U.S. EPA definition of non-hazardous waste. Staff has recommended proper solar panel end of life disposal. (Staff Ex. 1 at 31.)

{¶ 69} Staff notes that noise impacts are expected to be temporary (during construction), intermittent, and occurring away from most residential structures. Staff recommends that Applicant limit the hours of construction to address potential construction and operational related concerns from any nearby residents. Modeling of noise to be experienced by non-participating receptors suggested no noise impacts greater than the daytime ambient noise level plus five dBA. Further, the Applicant will implement a complaint resolution plan throughout construction and operation. (Staff Ex. 1 at 31.)

{¶ 70} OHPO agrees with the Applicant's finding that avoiding three archaeological sites will prevent the project from adversely impacting historical properties or archaeological sites. (Staff Ex. 1 at 31.)

{¶ 71} Overall, Staff recommends that the Board find that the proposed Facility represents the minimum adverse environmental impact and, therefore, complies with the requirements of R.C. 4906.10(A)(3), provided that any certificate issued by the Board include the conditions specified in the Staff Report. (Staff Ex. 1 at 32.)

4. ELECTRIC GRID

{¶ 72} Pursuant to R.C. 4906.10(A)(4), the Board must determine that the proposed facility is consistent with regional plans for expansion of the electric power grid of the electric systems serving this state and interconnected utility systems. Under the same authority, the Board must also determine that the proposed facility will serve the interest of the electric system economy and reliability.

{¶ 73} Staff evaluated the impact of integrating the proposed Facility into the existing regional electric transmission grid. As proposed, the Facility would be capable of producing 140 MW and connect to the regional transmission grid through a gen-tie line to

the AEP Rio - Lick 138 kV section of the Addison - Lick 138 kV circuit. The connection will require the construction of a new 138 kV switching station arranged in the double bus double configuration, though operated as a ring bus. The installation will also require associated protective and control equipment, SCADA-related instrumentation, and 138 kV line risers and metering. (Staff Ex. 1 at 33.)

{¶ 74} According to Staff, the Applicant is subject to compliance with various North American Electric Reliability Corporation reliability standards. The Applicant submitted two generation interconnection requests for the proposed Facility to PJM, the regional transmission organization responsible for planning upgrades and administering the generation queue for the regional transmission system in Ohio. PJM completed the feasibility and system impact studies for both requests. PJM also studied energy delivery impacts and identified no overloading or congestion issues for the project. While noting that one line had the possibility of overloading, PJM advised the Applicant to proceed with network upgrades that would eliminate the resulting operational restrictions. (Staff Ex. 1 at 33-35.)

{¶ 75} Staff concludes that the Facility would be consistent with plans for expansion of the electric power grid of the electric systems serving this state and interconnected utility systems and would serve the interests of electric system economy and reliability. Accordingly, Staff recommends that the Board find that the Facility complies with the requirements of R.C. 4906.10(A)(4) so long as any certificate issued for the proposed Facility includes the conditions specified in the Staff Report. (Staff Ex. 1 at 35.)

5. AIR, WATER, SOLID WASTE, AND AVIATION

{¶ 76} Pursuant to R.C. 4906.10(A)(5), the facility must comply with Ohio law regarding air and water pollution control, withdrawal of waters of the state, solid and hazardous wastes, and air navigation.

{¶ 77} Although the proposed Facility would not require any air quality permits, Staff states fugitive dust rules may be applicable to its construction. Accordingly, Applicant would need to control temporary and localized fugitive dust by using best management practices, such as minimizing exposed/disturbed areas, containing excavated material, implementing rock pads at construction exits, and using water or calcium carbonate as a dust suppressant. (Staff Ex. 1 at 36.)

{¶ 78} Applicant indicated that it would obtain environmental permits if and where necessary. Specifically, if required, Applicant confirmed it would submit a Notice of Intent for coverage under the Ohio NPDES construction stormwater general permit, Ohio EPA Permit No. OHC000005. This permit would limit pollutants from construction stormwater runoff discharging into a surface water of the state and would impose monitoring requirements or conditions upon Applicant. The NPDES permit would be required where ground disturbance results in at least one acre. Coverage under the NPDES construction general permit also requires the development of an SWPPP, which outlines best management practices for soil erosion control. (Staff Ex. 1 at 36-37.)

{¶ 79} pplicant estimates the project would generate 9,450 cubic yards of solid waste, consisting of wood, cardboard, metal, packaging materials, construction scrap, and general refuse. The Applicant plans to collect and dispose of the waste in dumpsters in the laydown yards, which will be transported by private contractors to a licensed solid waste disposal facility. Recycling would be done where possible, and other classified wastes would be handled in accordance with local, state, and federal regulations. (Staff Ex. 1 at 37-38.)

{¶ 80} Staff notes that the height of the tallest structures, the substation support structures at the collector substation, are approximately 65 feet tall each. That height is under the height requirement in the Federal Aviation Administration's regulations. According to Applicant, the James A. Rhodes airport is the closest public-use airport to the Facility, approximately two miles southwest of the project area. The Applicant has

contacted the airport owner and informed it about the proposed solar facility. According to the Applicant, there are no other public use airports or heliports within five miles of the project area. Further, Staff's consultation with the ODOT Office of Aviation during the review of this application identified no concerns over potential impacts of the Facility on local airports. (Staff Ex. 1 at 38.)

{¶ 81} Based on these findings, Staff recommends that the Board find that the proposed Facility complies with the requirements specified in R.C. 4906.10(A)(5), provided that any certificate issued for the Facility include the conditions specified in the Staff Report (Staff Ex. 1 at 39).

6. PUBLIC INTEREST, CONVENIENCE, AND NECESSITY

{¶ 82} Pursuant to R.C. 4906.10(A)(6), the Board must determine that the facility will serve the public interest, convenience, and necessity.

{¶ 83} Applicant said that it would only use and select reliable equipment that adheres to applicable industry codes and standards. Staff recognizes that Applicant planned for the expenses of operation and maintenance to keep the Facility in a safe and reliable status. (Staff Ex. 1 at 40.)

{¶ 84} Staff explains that the Applicant will implement the following setbacks for the Facility: 300 feet from the solar panels to a non-participating residence, 100 feet from the solar panels to property line of any non-participating property line, and 100 feet from solar panels to the centerline of public roads. The Applicant would also incorporate any manufacturer recommended setbacks into its final site plan. As noted in this section and in the aesthetics section, Staff recommended additional setback distances. (Staff Ex. 1 at 40.)

{¶ 85} The Applicant intends to use warning signs, fencing, and gates to restrict public access to potential hazards within the solar project area. The Facility as proposed would be enclosed by a six-foot tall perimeter fence with an additional one foot of barbed

wire stand. Access will be restricted to gates. However, Staff has recommended that, except for the substation fencing, the solar panel perimeter fence type be both wildlife permeable and aesthetically fitting for a rural location. Prior to construction, the Applicant also intends to develop and implement an emergency response plan in further consultation with potentially affected emergency response personnel (e.g., Jackson County Emergency Management Agency). The Applicant has provided an example site safety plan for use as an emergency response plan, which Staff has reviewed. (Staff Ex. 1 at 40.)

{¶ 86} Staff explains that electric transmission lines, when energized, generate electromagnetic fields (EMF). Despite public concerns about EMF impact on human health, Staff notes that laboratory studies have failed to establish a strong correlation between exposure to EMF and effects on human health. Staff determines that the gen-tie transmission line is not within 100 feet of an occupied structure, therefore calculation of the production of EMF during operation of the proposed gen-tie transmission line is not warranted per Ohio Adm. Code 4906-5-07(A)(2). The Applicant stated that the transmission facilities would be designed and installed according to best utility practices and standards. (Staff Ex. 1 at 40-41.)

{¶ 87} Applicant hosted two public informational meetings for the project that gave attendees an opportunity to review information about the project, ask questions, and provide comments. Staff notes that Applicant maintains a project website at www.dixonrunsolar.com. Staff notes that Applicant committed to notify, by mail, the following individuals prior to the start of construction: affected property owners and tenants who were provided notice of the public information meeting, local officials who had received a copy of the Application, residences located within one mile of the certificated boundary, and any other person who has requested updates regarding the project. Staff recommends that these notices also be mailed to schools, libraries, and emergency responders serving residents in the project area. (Staff Ex. 1 at 41.)

{¶ 88} Applicant drafted a complaint resolution plan to handle complaints during the construction and operation of the facility. Additionally, the Applicant will log all complaints received and generate a quarterly report based on the information recorded about the nature and resolution of all complaints received in that quarter and submit the report to OPSB Staff on or before April 15, July 15, October 15, and January 15. Staff recommends that Applicant file the final complaint resolution plan on the docket no later than 30 days prior to the start of construction, and the quarterly complaint reports on the docket as well. (Staff Ex. 1 at 41.)

{¶ 89} Based on these findings, Staff recommends that the Board find that the proposed Facility complies with the requirements specified in R.C. 4906.10(A)(6), provided that any certificate issued for the Facility include the conditions specified in the Staff Report. (Staff Ex. 1 at 42.)

7. AGRICULTURAL DISTRICTS AND AGRICULTURAL LAND

{¶ 90} Pursuant to R.C. 4906.10(A)(7), the Board must determine the facility's impact on the agricultural viability of any land in an existing agricultural district within the Project area of the proposed utility facility.

{¶ 91} The proposed project will take approximately 1,105 acres of agricultural land out of production for approximately 40 years. Staff explains that none of those acres are classified as part of an "agricultural district" as described in R.C. Chapter 929, and therefore are not prohibited by law from being utilized for uses other than exclusive agricultural use. Nevertheless, Applicant states the repurposed land could be restored for agricultural use when the project is decommissioned. No agricultural structures will be removed because of the project. (Staff Ex. 1 at 43.)

{¶ 92} The construction and operation of the proposed Facility will disturb the existing soil and could lead to broken drainage tiles. However, the Applicant stated there are no known drain tiles in the project area. A Geology and Hydrogeology study

(Application Ex. M) revealed no major drainage concerns. The Applicant has committed to repair any drain tile found to be damaged by the project during the operational life of the project. (Staff Ex. 1 at 43.)

{¶ 93} The Applicant has committed to take steps to address potential impacts to farmland, including restoring temporarily impacted land to its original use. Excavated topsoil will be separated during construction and returned as topsoil after construction unless otherwise specified by landowners. Disturbed areas will be restored for agricultural use upon Facility decommissioning. (Staff Ex. 1 at 43.)

{¶ 94} Staff recommends that the Board find that the impact of the proposed Facility on the viability of existing agricultural land in an agricultural district has been determined and, therefore, the requirements of R.C. 4906.10(A)(7) are satisfied, so long as any certificate issued by the Board include the conditions specified in the Staff Report. (Staff Ex. 1 at 43.)

8. WATER CONSERVATION PRACTICE

{¶ 95} Pursuant to R.C. 4906.10(A)(8), the proposed facility must incorporate maximum feasible water conservation practices, considering available technology and the nature and economics of the various alternatives.

{¶ 96} Staff states that neither construction nor operation of the Facility would require the use of significant amounts of water. The extent of water use would be dust suppression during construction on construction access roads and one building with a bathroom as a resource for staff performing operations and maintenance tasks onsite. (Staff Ex. 1 at 44.)

{¶ 97} Staff recommends that the Board find that the proposed Facility would incorporate maximum feasible water conservation practices and, therefore, the

requirements of R.C. 4906.10(A)(8) are satisfied, so long as any certificate issued by the Board include the conditions specified in the Staff Report. (Staff Ex. 1 at 44.)

9. RECOMMENDATIONS

{¶ 98} In addition to making various findings throughout its report, Staff recommended that 48 conditions be made part of any certificate issued by the Board for the proposed Facility. (Staff Ex. 1 at 45-53.) The recommended conditions found within the Staff Report were modified and adopted in the parties' March 10, 2023 Stipulation. (Joint Ex. 1.) The conditions are discussed below.

VI. STIPULATION AND CONDITIONS

{¶ 99} At the evidentiary hearing, Dixon Run presented the Stipulation executed by Dixon Run, OEC, OFBF, and Staff. (Joint Ex. 1). Pursuant to the Stipulation, the parties recommend that the Board issue the certificate requested by Applicant, subject to 46 conditions. The following is a summary of the conditions agreed to by the parties and is not intended to replace or supersede the actual Stipulation. The parties stipulate that:

1. The Applicant shall install the Facility, utilize equipment and construction practices, and implement mitigation measures as described in the Application and as modified and/or clarified in supplemental filings, replies to data requests, and recommendations in the Staff Report.

2. The Applicant shall conduct a preconstruction conference prior to the commencement of any construction activities. Staff, the Applicant, and representatives of the primary contractor and all subcontractors for the project shall attend the preconstruction conference. The conference shall include a presentation of the measures to be taken by the Applicant and contractors to ensure compliance with all conditions of the certificate, and discussion of the procedures for on-site investigations by Staff during construction. Prior to the conference, the Applicant

shall provide a proposed conference agenda for Staff review and shall file a copy of the agenda on the case docket. The Applicant may conduct separate preconstruction conferences for each stage of construction.

3. Within 60 days of commencement of commercial operation of the Facility, point-of interconnection switchyard, the Applicant shall submit to Staff a copy of the as-built specifications for that facility. If the Applicant demonstrates that good cause prevents it from submitting a copy of the as-built specifications for the entire Facility within 60 days after commencement of commercial operation, it may request an extension of time for the filing of such as-built specifications. The Applicant shall use reasonable efforts to provide as-built drawings in both hard copy and as geographically referenced electronic data.

4. In the event that the federal requirements for an SPCC Plan does not apply to the proposed Facility, the Applicant shall develop and implement a Spill Prevention Plan or comparable plan that will address prevention of, response to, and notification to the appropriate authorities in the event of any spills.

5. The certificate shall become invalid if the Applicant has not commenced a continuous course of construction of the Facility within five years of the date of the certificate's journalization, unless the Board grants a waiver or extension of time.

6. As the information becomes known, the Applicant shall file on the public docket the date on which construction will begin, the date on which construction was completed, and the date on which the Facility begins commercial operation.

7. The Applicant shall obtain transportation permits prior to the commencement of construction activities that require them. The Applicant shall coordinate with the appropriate authority regarding any temporary road closures, road use agreements, driveway permits, lane closures, road access restrictions, and traffic control necessary for construction and operation of the proposed facility. The Applicant

shall detail this coordination as part of a final transportation management plan submitted to Staff prior to the preconstruction conference for review and confirmation by Staff that it complies with this condition. That Applicant shall also submit the completed Transportation Study as part of the final transportation management plan.

8. Prior to the commencement of construction activities in areas that require permits or authorizations by federal, state, or local laws and regulations, the Applicant shall obtain and comply with such permits or authorizations. The Applicant shall provide copies of permits and authorizations, including all supporting documentation, to Staff within seven days of issuance or receipt by the Applicant and shall file such permits or authorizations on the public docket. The Applicant shall provide a schedule of construction activities and acquisition of corresponding permits for each activity at the preconstruction conference(s). Any permit violation received by the Applicant from the permitting agency shall be provided on the case docket within seven days of receipt.

9. The certificate authority provided in this case shall not exempt the Facility from any other applicable and lawful local, state, or federal rules or regulations nor be used to affect the exercise of discretion of any other local, state, or federal permitting or licensing authority with regard to areas subject to their supervision or control.

10. The Facility shall be operated in such a way as to assure that no more than 140 MW would be injected into the Bulk Power System at any time.

11. The Applicant shall not commence any construction of the Facility until it has executed an Interconnection Service Agreement and Interconnection Construction Service Agreement with PJM, which includes construction, operation, and maintenance of system upgrades necessary to integrate the proposed generating Facility into the regional transmission system reliably and safely. The Applicant shall docket in the case record a letter stating that the Agreement has been signed or a copy

of the executed Interconnection Service Agreement and Interconnection Construction Service Agreement.

12. At least 30 days prior to the preconstruction conference, the Applicant shall provide to Staff, and shall file on the public docket, an updated glare analysis based on the final design that:

    a. Accounts for glare along roads and nearby residences in the project area,

    b. Provides an executive summary of the results, and

    c. Includes a recommendation to minimize and address all predicted glare impacts.

13. At least 30 days prior to the preconstruction conference, the Applicant shall provide proof that the solar panels used for the project utilize an anti-reflective coating.

14. Prior to commencement of construction, the Applicant shall prepare a landscape and lighting plan in consultation with a landscape architect licensed by the Ohio Landscape Architects Board that addresses the aesthetic and lighting impacts of the Facility with an emphasis on any locations where an adjacent non-participating parcel contains a residence with a direct line of sight to the project area. The plan shall include measures such as fencing, vegetative screening or good neighbor agreements. Unless alternative mitigation is agreed upon with the owner of any such adjacent, non-participating parcel containing a residence with a direct line of sight to the fence of the facility, the plan shall provide for the planting of vegetative screening designed by the landscape architect to enhance the view from the residence and be in harmony with the existing vegetation and viewshed in the area. The plan shall incorporate planting design features or measures to address aesthetic impacts to the traveling public, nearby communities,

sensitive institutional land uses and recreationalists. The Applicant shall maintain vegetative screening for the life of the Facility and the Applicant shall substitute or replace any failed plantings so that, after five years, at least 90 percent of the vegetation has survived. The Applicant shall maintain all fencing along the perimeter of the project in good repair for the term of the project and shall promptly repair any significant damage as needed. Lights shall be motion-activated and designed to narrowly focus light inward toward the Facility, such as being downward facing and/or fitted with side shields. The Applicant shall provide the plan to Staff for review and confirmation that it complies with this condition.

15. Prior to commencement of construction, the Applicant shall submit to Staff for approval a solar panel perimeter fence type that is small-wildlife permeable. This fencing should be aesthetically fitting for a rural setting in locations where vegetative screening is planned. Fencing around panels should incorporate gaps or spaces of at least six inches by six inches to allow passage of small mammals. The Applicant shall maintain all fencing along the perimeter of the project in good repair for the term of the project and shall promptly repair any damage as needed. Barbed wire shall not be utilized for the perimeter fence. This condition shall not apply to substation fencing.

16. General construction activities shall be limited to the hours of 7:00 a.m. to 7:00 p.m., or until dusk when sunset occurs after 7:00 p.m. Impact pile driving shall be limited to the hours between 9:00 a.m. and 6:00 p.m. Impact pile driving may occur between 7:00 a.m. and 9:00 a.m., and after 6:00 p.m. or until dusk when sunset occurs after 6:00 p.m., if the noise impact at non-participating receptors is not greater than daytime ambient Leq plus 10 dBA. If impact pile driving is required between 7:00 a.m. and 9:00 a.m., and after 6:00 p.m. or until dusk when sunset occurs after 6:00 p.m., the Applicant shall install a noise monitor in a representative location to catalog that this threshold

is not being exceeded. Hoe ram operations, if required, shall be limited to the hours between 10:00 a.m. and 4:00 p.m., Monday through Friday. Construction activities that do not involve noise increases above ambient levels at sensitive receptors are permitted outside of daylight hours when necessary. The Applicant shall notify property owners or affected tenants within the meaning of Ohio Adm.Code 4906-3-03(B)(2) of upcoming construction activities including potential for nighttime construction.

17. The Applicant shall operate a facility that limits sound levels emitted to non-participating receptors to no higher than the daytime ambient Leq level plus five dBA, during the day, and nighttime ambient Leq level plus five dBA, during the night. If the facility is found to be above these limits, the Applicant shall install additional noise mitigation measures to maintain compliance with this provision. If an inverter or transformer model with a higher sound power level than the proposed inverter or transformer model is chosen, the Applicant shall submit a noise report confirming that no non-participating receptors were modeled to receive noise impacts greater than the daytime and nighttime ambient noise level, respectively, plus five dBA.

18. The Applicant shall avoid, where possible, or minimize to the extent practicable, any damage to functioning field tile drainage systems and soils resulting from the construction, operation, and/or maintenance of the Facility in agricultural areas. Damaged field tile systems shall be promptly repaired or rerouted to at least original conditions or modern equivalent at the Applicant's expense to ensure proper drainage. However, if the affected landowner(s) agrees to not having the damaged field tile system repaired, they may do so only if: i) the field tile systems of adjacent landowners remain unaffected by the non-repair of the landowner's field tile system; and ii) the damaged field tile does not route directly onto or into an adjacent parcel. The Applicant shall design the project to ensure that nearby parcels are protected

from unwanted drainage problems due to construction and operation of the project. Applicant shall document benchmark conditions of surface and subsurface drainage systems prior to construction, including the location of laterals, mains, grassed waterways, and county maintenance/repair ditches. The Applicant shall consult with owners of all parcels adjacent to the property, the county soil and water conservation district, and the county to request drainage system information over those parcels. The Applicant shall consult with the county engineer for tile located in a county maintenance/repair ditch. A map of discovered and repaired drain tile systems shall be filed in the case docket once construction is complete.

19. At least 30 days prior to the preconstruction conference, the Applicant shall submit an updated decommissioning plan and total decommissioning cost estimate without regard to salvage value on the public docket that includes:

    a. A provision that the decommissioning financial assurance mechanism include a performance bond where the company is the principal, the insurance company is the surety, and the Ohio Power Siting Board is the obligee;

    b. A timeline of up to one year for removal of the equipment;

    c. A provision to monitor the site for at least one additional year to ensure successful revegetation and rehabilitation;

    d. A provision where the performance bond is posted prior to the commencement of construction;

    e. A provision that the performance bond is for the total decommissioning cost and excludes salvage value;

f. A provision to coordinate repair of public roads damaged or modified during the decommissioning and reclamation process;

g. A provision that the decommissioning plan be prepared by a professional engineer registered with the state board of registration for professional engineers and surveyors;

h. A provision stating that the bond shall be recalculated every five years by an engineer retained by the Applicant; and

i. A provision that underground equipment will be removed to the extent that allows for future drain tile repairs and installation to be completed. The Applicant shall implement and comply with the decommissioning plan as approved by Staff.

20. At the time of solar panel end of life disposal, any retired panel material that is not recycled and that is marked for disposal shall be sent to an engineered landfill with various barriers and methods designed to prevent leaching of materials into soils and groundwater, or another appropriate disposal location at the time of decommissioning approved by Staff.

21. The Applicant shall only use solar panel modules that do not exhibit the characteristic of toxicity verified through analysis or documentation with the US EPA's TCLP test.

22. The Applicant shall avoid construction within the Federal Emergency Management Agency (FEMA)-designated 100-year floodplain.

23. The Applicant shall construct the Facility in a manner that incorporates post-construction stormwater management under OHC00005 (Part III.G.2.e, pp. 19-27) in accordance with the Ohio EPA's Guidance on Post-Construction Storm Water Controls for Solar Panel Arrays.

24. The Applicant take steps to prevent establishment and/or further propagation of noxious weeds identified in Ohio Adm. Code Chapter 901:5-37 during implementation of any pollinator-friendly plantings. This would be achieved through appropriate seed selection, and annual vegetative surveys. If noxious weeds are found to be present, the Applicant shall remove and treat them with herbicide pursuant to R.C. 921.06, as necessary, and shall follow all applicable state laws regarding noxious weeds and invasive plant species.

25. The Applicant shall adhere to seasonal cutting dates of October 1 through March 31 for the removal of trees three inches or greater in diameter to avoid impacts to listed bat species, unless coordination with the ODNR and the USFWS allows a different course of action. If coordination with these agencies allows clearing between April 1 and September 30, the Applicant shall docket proof of completed coordination on the case docket prior to clearing trees.

26. The Applicant shall conduct no in-water work in perennial streams from April 15 through June 30 to reduce impacts to aquatic species and their habitat, unless coordination with the ODNR reflects a different course of action which shall be filed on the docket.

27. Construction in sandhill crane preferred nesting habitat types shall be avoided during the species' nesting period of April 1 through September 1. If present, mapping of these habitat areas shall be provided to the construction contractor along with instructions to avoid these areas during the restricted dates, unless coordination with the ODNR reflects a different course of action which shall be filed on the docket.

28. Construction in the northern harrier preferred nesting habitat types shall be avoided during the species' nesting period of May 15 through August 1. If present mapping of these habitat areas shall be provided to the construction contractor along with instructions to avoid these areas during the restricted

dates, unless coordination with the ODNR reflects a different course of action which shall be filed on the docket.

29. The Applicant shall have a Staff-approved environmental specialist on site during construction activities that may affect sensitive areas. Sensitive areas may include, but are not limited to, wetlands and streams, and locations of threatened or endangered species. The environmental specialist shall be familiar with water quality protection issues and potential threatened or endangered species of plants and animals that may be encountered during project construction. The environmental specialist shall have authority to stop construction to assure that unforeseen environmental impacts do not progress and recommend procedures to resolve the impact. A map shall be provided to Staff showing sensitive areas which would be impacted during construction with information on when the environmental specialist would be present.

30. The Applicant shall minimize tree clearing to the greatest extent possible. This includes cutting no more than 127.5 acres.

31. Prior to commencement of any construction, the Applicant shall prepare an updated vegetation management plan in consultation with ODNR. The goals of the plan shall include planting a minimum of 70 percent of the impacted project area in beneficial vegetation, utilizing plant species listed in Attachment A of ODNR Recommended Requirements for Proposed Solar Energy Facilities in Ohio, and shall follow the Ohio Solar Site Pollinator Habitat Planning and Assessment Form with a minimum score of 80 points. The plan shall include a narrative on how the project proposes to establish and maintain beneficial vegetation and pollinator habitat in accordance with the guidelines provided above. The plan shall include mapping of the areas where pollinator habitat would be established and maintained. The plan shall include that routine mowing would be limited to fall/spring seasons, as

needed, to allow for natural reseeding of plantings and reduce impacts to ground-nesting birds.

32. At least 30 days prior to the preconstruction conference, the Applicant shall file a copy of the grazing plan on the public docket for Staff review and acceptance. The grazing plan shall include:

    a. A map of the area to be utilized for sheep grazing,

    b. Seed mix selected for the site,

    c. Times of year when sheep grazing would occur,

    d. Stocking rate,

    e. How manure and deceased livestock would be managed, and

    f. Applicant's plan to comply with Condition 9 in relation to sheep grazing.

33. The Applicant shall contact Staff, the ODNR, and the USFWS within 24 hours if state or federal listed species are encountered during construction activities. Construction activities that could adversely impact the identified plants or animals shall be immediately halted until an appropriate course of action has been agreed upon by the Applicant, Staff and the appropriate agencies. The Applicant shall also keep a running list of and notify OPSB Staff and the ODNR Division of Wildlife if any wildlife mortality or entrapment is discovered in the Facility during operation.

34. The Applicant shall avoid wetland impacts associated with panel installation. Avoidance shall also include a 25-foot buffer from panels surrounding these surface water resources.

35. Should construction be delayed beyond five years of the date of the certificate, certain wildlife surveys may be required to be updated as determined by Staff and the ODNR.

36. Separate preconstruction conferences may be held for the different phases of civil construction and equipment installation. At least 30 days prior to each preconstruction conference, the Applicant shall submit to Staff, for review and acceptance, one set of detailed engineering drawings of the final project design for that phase of construction and mapping in the form of PDF, which the Applicant shall also file on the docket of this case, and geographically referenced data (such as shapefiles or KMZ files) based on final engineering drawings to confirm that the final design is in conformance with the certificate. Mapping shall include the limits of disturbance, permanent and temporary infrastructure locations, areas of vegetation removal and vegetative restoration as applicable, and specifically denote any adjustments made from the siting detailed in the Application. The detailed engineering drawings of the final project design for each phase of construction shall account for geological features and include the identity of the registered professional engineer(s), structural engineer(s), or engineering firm(s), licensed to practice engineering in the state of Ohio who reviewed and approved the designs. All applicable geotechnical study results shall be included in the submission of the final project design to Staff for review and concurrence.

37. The Applicant shall avoid construction over mine locations JKN-179 and JKN-132.

38. With written concurrence from the parcel's title and/or deed holder, the Applicant shall plug and abandon oil and gas well API 34079202610000 in accordance with all applicable laws and regulations prior to initiation of any construction. The Applicant's final design shall observe a minimum setback

of 25 feet between any plugged and abandoned oil and gas wells and any project infrastructure.

39. At least 30 days prior to the preconstruction conference, the Applicant shall provide Staff, for review and acceptance, the final Unanticipated Discovery Plan.

40. At least 30 days prior to the reconstruction conference, the Applicant shall provide Staff, for review and acceptance, a Subsidence Mitigation Plan.

41. If any changes are made to the Facility layout after the submission of final engineering drawings, the Applicant shall provide all such changes to Staff in hard copy and as geographically referenced electronic data. All changes are subject to Staff review for compliance with all conditions of the certificate, prior to construction in those areas.

42. The Applicant's final project design shall include input from a qualified corrosion engineer to account for potentially corrosive soils.

43. At least 30 days prior to the start of construction, the Applicant shall file a copy of the final complaint resolution plan for construction and operation of the project on the public docket. At least seven days prior to the start of construction and at least seven days prior to the start of Facility operations, the Applicant shall notify via mail all affected property owners and tenants who were provided notice of the public informational meetings and OPSB hearings; local officials who received a copy of the Application; residences located within one mile of the certificated boundary; schools, libraries, and emergency responders that serve residents in the project area; and any other person who has requested updates regarding the project. These notices shall provide information about the project, including contact information and a copy of the complaint resolution program. The start of construction notice

shall include written confirmation that the Applicant has complied with all preconstruction-related conditions of the certificate, as well as a timeline for construction and restoration activities. The start of facility operations notice shall include written confirmation that the Applicant has complied with all construction-related conditions of the certificate, as well as a timeline for the start of operations. The Applicant shall file a copy of these notices on the public docket. Staff also recommends that the Applicant prepare a quarterly complaint summary report about the nature and resolution of all complaints received in that quarter and file these reports on the public docket during the first five years of operation. The Applicant shall file on the public docket a complaint summary report by the fifteenth day of April, July, October, and January of each year during construction and through the first five years of operation. The report shall include a list of all complaints received through the Applicant's complaint resolution program, a description of the actions taken toward the resolution of each complaint, and a status update if the complaint has yet to be resolved.

44. At least 30 days prior to the preconstruction conference, the Applicant shall provide proof that it has a fully executed power purchase agreement and a deed restriction which outlines a preservation zone for 227 acres of forested land within the project area.

45. The Applicant shall implement a minimum setback from the project's solar modules of at least 150 feet from non-participating parcel boundaries, at least 300 feet from non-participating residences, and at least 150 feet from the edge of any paved state, county, or township road within or adjacent to the project area.

46. The Applicant shall avoid, where possible, or minimize to the extent practicable any damage to installations and/or land forming located within

> the project footprint that are used to prevent subsidence, maintain drainage, and preserve soils that impact adjacent landowners. If it is established that damages occurred to such installations and/or land forming located within the project footprint due to the Applicant's activities which affect adjacent landowners, the Applicant shall promptly ensure adequate repairs are performed to the extent necessary to cease impact on adjacent landowners and for proper soil preservation, drainage, subsidence, and erosion control. If, during construction, operation, or decommissioning, it is established that an incident occurred which results in physical damage to an adjacent landowner's property due to the Applicant's activities within the project footprint, the Applicant will coordinate with: (1) the affected adjacent landowner and (2) the relevant governmental entities involved with regulating soil preservation, erosion control, subsidence prevention and/or drainage system protection (e.g., ODNR – Division of Mineral Resources Management, the county soil and water conservation district, the county engineer) to the extent such coordination with the governmental entities is necessary.
>
> (Joint Ex. 1 at 2-10.)

VII. CONSIDERATION OF THE STIPULATION

{¶ 100} Pursuant to Ohio Adm. Code 4906-2-24, parties before the Board are permitted to enter into stipulations concerning issues of fact, the authenticity of documents, or the proposed resolution of some or all of the issues in a proceeding. In accordance with Ohio Adm. Code 4906-2-24(D), no stipulation is binding on the Board. However, the Board affords the terms of the stipulation substantial weight. The standard of review for considering the reasonableness of a stipulation has been discussed in numerous Board proceedings. See, e.g. *In re Hardin Wind LLC*, Case No. 13-1177-EL-BGN, et al., Opinion, Order, and Certificate (Mar. 17, 2014); *In re Northwest Ohio Wind Energy, LLC*, Case No.

13-197-EL-BGN, Opinion, Order, and Certificate (Dec. 16, 2013); *In re AEP Transm. Co., Inc.*, Case No. 12-1361-EL-BSB, Opinion, Order, and Certificate (Sept. 30, 2013); *In re Rolling Hills Generating, LLC*, Case No. 12-1669-EL-BGA, Order on Certificate Amendment (May 1, 2013); *In re American Transm. Systems, Inc.*, Case No. 12-1727-EL-BSB, Opinion, Order, and Certificate (Mar. 11, 2013). The ultimate issue for the Board's consideration is whether the agreement, which embodies considerable time and effort by the signatory parties, is reasonable and should be adopted. In considering the reasonableness of a stipulation, the Board has used the following criteria:

a. Is the settlement a product of serious bargaining among capable, knowledgeable parties?

b. Does the settlement, as a package, benefit ratepayers and the public interest?

c. Does the settlement package violate any important regulatory principal or practice?

{¶ 101} Upon review, the Board finds that the Stipulation is reasonable as judged by this three-part test and should be approved. Initially, the Board finds that the Stipulation is the product of serious bargaining among capable, knowledgeable parties. The parties agree that the Stipulation is a product of lengthy, serious bargaining among knowledgeable and capable parties in a cooperative process (Joint Ex. 1 at 2). The Board further acknowledges the expertise of the signatories to the Stipulation, and is persuaded that all parties involved were represented by counsel with similar experience.

{¶ 102} The Board also concludes that the second prong of the test is satisfied. The record evidence supports the conclusion that the Stipulation, as a package, benefits ratepayers and the public interest. In his testimony, Applicant witness Dustin Smith states that the Facility would help Ohio meet its demand for in-state carbon-free energy resources; generate electricity using virtually no fuels and minimal waters, with effectively zero

emissions and waste generation; and fill the need for a more diverse energy portfolio that will include a higher percentage of renewable energy generation. (Applicant Ex. 23 at 2.)

{¶ 103} Mr. Adams also states that the construction and operation of the Facility will positively impact the local economy through construction spending and jobs, and an annual payment in lieu of taxes. (Applicant Ex. 23 at 2.)

{¶ 104} Finally, the Board finds that the record supports the conclusion that the Stipulation observes and promotes regulatory practices and principles. Consistent with our recent findings in similar cases, the evidence demonstrates that the Application, as modified by the Stipulation, satisfies each of the necessary statutory components enumerated in R.C. 4906.10(A). (Staff Ex. 1 at 10-44; Joint Ex. 1 at 2-10.) The record is devoid of any evidence to contradict this conclusion. As such, we find the third facet of our analysis has been met.

{¶ 105} In conclusion, and based on the record in this proceeding, the Board finds that all relevant required elements of R.C. Chapter 4906 are satisfied for the construction, operation, and maintenance of the Facility described in Dixon Run's Application, subject to the conditions set forth in the Stipulation and consistent with this Opinion and Order. The Board clarifies that all required information submitted to Staff in support of the conditions addressed in the Stipulation should be filed on the docket of this case. Based on the record in this case, the Board thus approves and adopts the Stipulation and hereby issues a certificate to Dixon Run in accordance with R.C. Chapter 4906.

VIII. FINDINGS OF FACT AND CONCLUSIONS OF LAW

{¶ 106} Dixon Run is a person under R.C. 4906.01(A).

{¶ 107} The proposed Facility is a major utility facility as that term is defined in R.C. 4906.01(B).

{¶ 108} On June 30, 2021, Applicant filed a preapplication notification letter informing the Board of its proposed 140 MW solar-powered electric generation facility in Jackson County, Ohio.

{¶ 109} On July 14, 2021, Dixon Run filed its confirmation of notification to property owners and affected tenants of the dates and formats of the public informational meetings in accordance with Ohio Adm. Code 4906-3-03.

{¶ 110} Dixon Run held a public informational meeting regarding the proposed Facility on July 22, 2021.

{¶ 111} On September 29, 2021, as amended on October 7, 2021, and supplemented on November 4 and November 17, 2021, Dixon Run filed its Application for a certificate of environmental compatibility and public need to construct the Facility. Dixon Run also filed a motion for protective order to keep portions of its Application confidential and a motion for waivers to allow for a reduced study area regarding the review of cultural resources, landmarks, recreation areas, and visual impacts.

{¶ 112} By Entry dated September 14, 2022, the ALJ granted Applicant's motion for waivers and motion for protective treatment.

{¶ 113} On November 23, 2021, and February 25, 2022, Dixon Run filed motions to suspend the procedural schedule and a request for expedited treatment, seeking new deadlines for Staff's completeness determination. The ALJ granted both motions, ultimately extending the deadline for Staff to make its recommendation regarding the completeness of the application until July 29, 2022.

{¶ 114} On March 14, 2022, Dixon Run filed its confirmation of notification to property owners and affected tenants of a second public information meeting.

{¶ 115} Dixon Run held a second in-person public information meeting regarding the proposed Facility on March 22, 2022.

{¶ 116} By letter dated July 22, 2022, the Board notified Dixon Run that its Application had been found to be sufficiently complete pursuant to Ohio Adm. Code Chapter 4906-1, et seq.

{¶ 117} On August 2 and August 24, 2022, Dixon Run filed a certificate of service of its accepted and complete Application and proof that it submitted its application fee to the Treasurer of the State of Ohio as required by Ohio Adm. Code 4906-3-07, respectively.

{¶ 118} On September 14, 2022, the ALJ established the effective date of the Application as September 14, 2022, and adopted a procedural schedule, which included the date of the local public hearing and the adjudicatory hearing.

{¶ 119} On October 4, 2022, Dixon Run filed proof of publication, in *The Telegram* and *The Vinton County Courier*, of a public notice regarding the date and time of the scheduled hearings, including the process to participate in the public hearing.

{¶ 120} On October 24 and October 28, 2022, OEC and OFBF filed motions to intervene, respectively which were later granted by the ALJ on December 7, 2022.

{¶ 121} On November 14, 2022, Staff filed its Staff Report.

{¶ 122} On November 29, 2022, the ALJs conducted the public hearing at Jackson Middle School.

{¶ 123} On December 6, 2022, Dixon Run, OEC, OFBF, and Staff filed a joint motion to call and continue the evidentiary hearing set for December 14, 2022; and to extend filing deadlines for the purposes of continuing settlement discussions.

{¶ 124} By Entry issued December 7, 2022, the ALJ granted the joint motion to call and continue the December 14, 2022 evidentiary hearing and to continue the remaining filing deadlines.

{¶ 125} By Entry dated January 10, 2023, the ALJ scheduled the evidentiary hearing to reconvene on March 21, 2023.

{¶ 126} On March 10, 2023, Dixon Run, OEC, OFBF, and Staff filed a Stipulation resolving all issues in the case.

{¶ 127} On March 21, 2023, the evidentiary hearing was conducted, as scheduled. Sufficient information regarding the proposed electric generation Facility has been provided to make the applicable determinations required by R.C. 4906.10(A). The record evidence in this matter provides sufficient factual evidence to enable the Board to make an informed decision.

{¶ 128} The record establishes that the Facility is not an electric transmission line or gas pipeline and, therefore, R.C. 4906.10(A)(1) is not applicable.

{¶ 129} The record establishes the nature of the probable environmental impact from construction, operation, and maintenance of the Facility, consistent with R.C. 4906.10(A)(2).

{¶ 130} The record establishes that the Facility, subject to the conditions set forth in the Stipulation and consistent with this Opinion and Order, represents the minimum adverse environmental impact, considering the available technology and nature and economics of the various alternatives, and other pertinent considerations, consistent with R.C. 4906.10(A)(3).

{¶ 131} The record establishes that the Facility, an electric generation facility, is consistent with regional plans for expansion of the electric power grid of the electric systems serving this state and interconnected utility systems and that the Facility will serve the interests of electric system economy and reliability consistent with R.C. 4906.10(A)(4).

{¶ 132} The record establishes that the Facility, subject to the conditions set forth in the Stipulation and consistent with this Opinion and Order, will comply with R.C. Chapters

3704, 3734, and 6111; R.C. 4561.32; and all rules and regulations thereunder, to the extent applicable, consistent with R.C. 4906.10(A)(5).

{¶ 133} The record establishes that the Facility, subject to the conditions set forth in the Stipulation and consistent with this Opinion and Order, will serve the public interest, convenience, and necessity, consistent with R.C. 4906.10(A)(6).

{¶ 134} The record establishes the impact of the Facility on agricultural lands and agricultural district land consistent with the requirements of R.C. 4906.10(A)(7).

{¶ 135} The record establishes that the Facility incorporates maximum feasible water conservation practices considering available technology and the nature and economics of the various alternatives. Accordingly, the Facility meets the requirements of R.C. 4906.10(A)(8).

{¶ 136} The evidence supports a finding that all of the criteria in R.C. 4906.10(A) are satisfied for the construction, operation, and maintenance of the Facility as proposed by Dixon Run, subject to the conditions set forth in the Stipulation and consistent with this Opinion and Order.

{¶ 137} Based on the record, the Board should issue a certificate of environmental compatibility and public need to Dixon Run, pursuant to R.C. Chapter 4906, for the construction, operation, and maintenance of the Facility subject to the conditions set forth in the Stipulation and consistent with this Opinion and Order.

IX. ORDER

{¶ 138} It is, therefore,

{¶ 139} ORDERED, That the Stipulation be approved and adopted. It is, further,

{¶ 140} ORDERED, That a certificate be issued to Dixon Run for the construction, operation, and maintenance of the solar-powered electric generation facility subject to the

conditions set forth in the Stipulation and consistent with this Opinion and Order. It is, further,

{¶ 141} ORDERED, That a copy of this Opinion and Order be served upon all parties and interested persons of record.

BOARD MEMBERS:
Approving:

Jenifer French, Chair
Public Utilities Commission of Ohio

Jack Christopher, Designee for Lydia Mihalik, Director
Ohio Department of Development

Damian Sikora, Designee for Mary Mertz, Director
Ohio Department of Natural Resources

Drew Bergman, Designee for Anne Vogel, Director
Ohio Environmental Protection Agency

Sarah Huffman, Designee for Brian Baldridge, Director
Ohio Department of Agriculture

Jon Hensley, Ad Hoc Member
Jackson County Commissioner

Richard Erwin, Ad Hoc Member
Bloomfield Township Trustee

CRW/dr

This foregoing document was electronically filed with the Public Utilities

Commission of Ohio Docketing Information System on

9/21/2023 2:22:27 PM

in

Case No(s). 21-0768-EL-BGN

Summary: Opinion & Order issuing a certificate of environmental compatibility and public need to Dixon Run Solar, LLC for the development, construction, and operation of a 140 megawatt solar-powered electric generation facility in Jackson County, Ohio, subject to the conditions set forth in the stipulation and consistent with this Opinion and Order electronically filed by Debbie S. Ryan on behalf of Ohio Power Siting Board.

Exhibit 4

Form of Certificate of Mechanical Completion

The undersigned, SunEnergy1, LLC ("Contractor") hereby delivers this Certificate of Mechanical Completion on this [___] day of [____] 20[__] (the "Mechanical Completion Notice Date") to Dixon Solar, LLC ("Owner"). Terms used and not defined herein shall have the meanings set forth in that certain Engineering, Procurement, and Construction Agreement dated [_], 20[__], between Contractor and Owner (the "Agreement"). Contractor hereby certifies that all of the conditions set forth in Section 8.1 of the Agreement have been achieved (other than the requirement that Owner countersign this certificate) and the following statements are true and correct as of the Mechanical Completion Notice Date:

1. the System is mechanically, electrically, and structurally constructed and completed in accordance with all requirements applicable thereto as specified in the Agreement (it being agreed, for purposes hereof, that the "System" shall exclude the DAS/SCADA, provided that (a) such exclusion shall not adversely affect safe operation of the System, and (b) Contractor shall continue to use commercially reasonable efforts to complete the construction, completion and commissioning of the DAS/SCADA as soon as practicable);

2. the System is mechanically, electrically and functionally installed and ready for commissioning, Energization (but has not yet achieved Energization), adjustment and testing on a safe and reliable basis without damage to equipment or personnel;

3. Contractor has completed the following tests, at a minimum, in accordance with the requirements of the Agreement: (a) insulation testing of all MV underground cables, (b) DC wire test to include insulation testing, (c) DC voltage testing, and (d) DC polarity testing of 100% of the System; provided, however, transformer testing (Transformer Turns Ratio (TTR), winding resistance, insulation resistance, DGA oil sample) is specifically excluded; and

4. Contractor has in accordance with the requirements of the Agreement (a) completed the engineering, design, assembly, installation and construction of all components comprising the Substation, and all relay and protection testing has been completed thereupon; (b) completed the engineering, design, assembly, installation and construction of all components comprising the Transmission Line; (c) interconnected the Internal Connector Line to the Oak Substation (but without causing Energization to occur); (d) successfully completed all functional testing on the Substation and the Internal Connector Line (which excludes any tests that require Energization to have occurred or that would cause Energization to occur); and (e) the Substation and Internal Connector Line are ready for (but have not yet achieved) Energization.

[*Signature Pages Follow*]

CONTRACTOR

SunEnergy1, LLC

By: _____

Name: _____

Title: _____

Signing of this Certificate of Mechanical Completion by Owner in no way alters the responsibility of Contractor to complete all the Work in accordance with the Agreement. Owner to cross through one of the following statements to invalidate such statement and indicate the validity of the remaining statement:

A. Owner agrees that Contractor has satisfied all of the requirements for the achievement of Mechanical Completion as described above.

B. Owner does not agree that Contractor has satisfied all of the requirements for the achievement of Mechanical Completion due to the following reasons:

_____

_____

_____

_____

OWNER

Dixon Solar, LLC

By: _____

Name: _____

Title: _____

Date: _____

Exhibit 5

Form of Certificate of Substantial Completion

The undersigned, SunEnergy1, LLC ("Contractor") hereby delivers this Certificate of Substantial Completion on this [___] day of [___] 20[__] (the "Substantial Completion Notice Date") to Dixon Solar, LLC ("Owner"). Terms used and not defined herein shall have the meanings set forth in that certain Engineering, Procurement, and Construction Agreement dated [_], 20[_], between Contractor and Owner (the "Agreement"). Contractor hereby certifies that all of the conditions set forth in Section 10.1 of the Agreement have been achieved (other than the requirement that Owner countersign this certificate) and the following statements are true and correct as of the Substantial Completion Notice Date:

1. Mechanical Completion has been achieved;

2. (a) the System has satisfied the Minimum Performance Guarantee and (b) either (i) the System has satisfied the Performance Guarantee (subject to the Deadband) or (ii) Contractor has paid the applicable Capacity Liquidated Damages in accordance with Section 12.4 of the Agreement;

3. the System has proven capable of delivering energy on a sustained basis without experiencing any abnormal or unsafe operating conditions on any interconnected sub-system;

4. the System (including the DAS/SCADA) is (a) mechanically, electrically, and structurally constructed and completed and commissioned in accordance with the commissioning procedures in Schedule 8.1 of the Agreement and all other requirements applicable thereto in accordance with the Agreement, (b) interconnected to the Grid in accordance with the requirements of the Interconnection Service Agreement, and (c) generating verifiable, billing quality electricity production data, as evidenced by the DAS/SCADA;

5. Contractor has provided a certificate substantially in the form of Exhibit 6 to the Agreement to Owner stating that:
    a. all Applicable Permits have been obtained and maintained as required by Applicable Law, and, to the extent applicable to achieve Final Completion, are in full force and effect;
    b. Contractor has provided the training to Owner's personnel required pursuant to Section 5.6 of the Agreement; and
    c. except with respect to the Owner Equipment or as otherwise authorized by Owner in writing, all Work furnished or delivered by Contractor and all materials and tools used by Contractor on the Site contain zero percent (0%) asbestos, refractory ceramic fibers, lead, methylene chloride or polychlorinated biphenyls;

6. Contractor has provided to Owner a list of the System's major equipment, including the make and model number of all PV modules, inverters, racking, step-up transformers, switchgear and solar irradiation and meteorological monitoring equipment;

7. Contractor has delivered to Owner a final version of the Spare Parts List required pursuant to Section 5.8 of the Agreement;

8. the Punch List has been agreed upon and accepted in writing by Contractor and Owner as described in Section 5.20 of the Agreement, and a copy of the Punch List is attached hereto as Appendix 1;

9. Contractor has provided to Owner (a) substantially complete drafts of an operation and maintenance manual for the System, (b) substantially complete drafts of as-built drawings for the System, and (c) any other Documentation set forth in Schedule 1C of the Agreement that is required to be delivered at Substantial Completion;

10. Contractor has provided to Owner a breakdown by category for purposes of determining ITC-eligible and non-ITC-eligible costs (excluding the Owner Equipment) in respect of the Contract Price, substantially in the form of Schedule 26 of the Agreement;

11. Contractor has submitted to Owner all duly executed conditional lien waivers and releases from Contractor and each Major Subcontractor, in the form of Exhibit 8 to the Agreement;

12. Contractor has paid all accrued and undisputed Delay Liquidated Damages;

13. Contractor has provided to Owner copies of all Subcontracts with Major Subcontractors as required under Section 4.2(b) of the Agreement;

14. Contractor has delivered to Owner all special tools (if any) that are required by the manufacturers of Equipment to operate and maintain the same; and

15. Contractor has assigned to Owner the Assigned Warranties as contemplated by Section 4.2(d) of the Agreement.

[*Signature Pages Follow*]

CONTRACTOR

SunEnergy1, LLC

By: _____

Name: _____

Title: _____

Signing of this Certificate of Substantial Completion by Owner in no way alters the responsibility of Contractor to complete all the Work in accordance with the Agreement. Owner to cross through one of the following statements to invalidate such statement and indicate the validity of the remaining statement:

A. Owner agrees that Contractor has satisfied all of the requirements for the achievement of Substantial Completion as described above.

B. Owner does not agree that Contractor has satisfied all of the requirements for the achievement of Substantial Completion due to the following reasons:

_____

_____

_____

_____

OWNER

DixonSolar, LLC

By: _____

Name: _____

Title: _____

Date: _____

APPENDIX 1

PUNCH LIST

Exhibit 6

Form of Contractor's Substantial Completion Certification

[MONTH] [DAY], [20__]

[_____]

Subject: Substantial Completion – Contractor Certification

Reference: Engineering, Procurement, and Construction Agreement between Dixon Solar, LLC ("Owner") and SunEnergy1, LLC ("Contractor"), dated as of [XXX XX], 20__ (the "Agreement")

Pursuant to Section 10.1.5 of the Agreement, Contractor hereby certifies that:

(a) *all Applicable Permits have been obtained and maintained as required by Applicable Law, and, to the extent applicable to achieve Final Completion, are in full force and effect;*

(b) *Contractor has provided the training to Owner's personnel required pursuant to Section 5.6 of the Agreement; and*

(c) *except with respect to the Owner Equipment or as otherwise authorized by Owner in writing, all Work furnished or delivered by Contractor and all materials and tools used by Contractor on the Site contain zero percent (0%) asbestos, refractory ceramic fibers, lead, methylene chloride or polychlorinated biphenyls.*

Capitalized terms used herein and not defined herein shall have the meanings ascribed thereto in the Agreement.

Sincerely,

SunEnergy1, LLC

By: _____

Name: _____

Title: _____

Date: _____

Exhibit 7

Form of Certificate of Final Completion

The undersigned, SunEnergy1, LLC ("Contractor") hereby delivers this Certificate of Final Completion on this [__] day of [___] 20[__] (the "Final Completion Notice Date") to Dixon Solar, LLC ("Owner"). Terms used and not defined herein shall have the meanings set forth in that certain Engineering, Procurement, and Construction Agreement dated [_____], 20[__], between Contractor and Owner (the "Agreement"). Contractor hereby certifies that all of the conditions set forth in Section 11.1 of the Agreement have been achieved (other than the requirement that Owner countersign this certificate) and the following statements are true and correct as of the Final Completion Notice Date:

1. Substantial Completion has been achieved;

2. all items on the Punch List, with the exception of any Seasonally Constrained Work, has been completed or otherwise resolved by mutual agreement of the Parties;

3. Contractor has provided Owner with the final versions in electronic formats of an operation and maintenance manual and final as-built drawings for the System including updates depicting all changes or installations made since Substantial Completion, together with all other Documentation required to be delivered to Owner by Contractor pursuant to the Agreement and Schedule 1C of the Agreement and not otherwise delivered in final form to Owner in connection with the achievement of Substantial Completion, including other test and inspection certificates and reports applicable to the Work;

4. Contractor has removed all of its construction equipment, material and support personnel from the Site (other than such as is required to perform Seasonally Constrained Work at a later time), and the Site is free of construction debris;

5. Contractor has provided Owner with redacted invoices or other documentation evidencing Contractor's proof of purchase of the Equipment and has submitted completed warranty cards for the Equipment to the original equipment manufacturers, as applicable (for clarity, excluding in each case the Owner Equipment);

6. Contractor has provided Owner a certification that all invoices that include sales and use taxes have been paid and that Contractor and all of its Subcontractors have no outstanding claims or expenses relating to such sales and use taxes; and

7. Contractor has provided Owner with duly executed conditional lien waivers and releases from Contractor and each Major Subcontractor (and any other Subcontractor who performed Work at the Site, to the extent obtained by Contractor, after reasonable efforts), in the form of Exhibit 10 to the Agreement.

[*Signature Pages Follow*]

CONTRACTOR

SunEnergy1, LLC

By: _____

Name: _____

Title: _____

Signing of this Certificate of Final Completion by Owner in no way alters the responsibility of Contractor to complete all the Work in accordance with the Agreement. Owner to cross through one of the following statements to invalidate such statement and indicate the validity of the remaining statement:

a. Owner agrees that Contractor has satisfied all of the requirements for the achievement of Final Completion as described above.

b. Owner does not agree that Contractor has satisfied all of the requirements for the achievement of Final Completion due to the following reasons:

_____

_____

_____

_____

OWNER

Dixon Solar, LLC

By: _____

Name: _____

Title: _____

Date: _____

Exhibit 8

Form of Conditional Waiver and Release (Progress Payment)

CONDITIONAL WAIVER AND RELEASE ON PROGRESS PAYMENT

Project: Dixon Solar**,** LLC

Job No.:

On receipt by the undersigned the sum of $ [**Amount**] payable to [PAYEE OR PAYEES] by check, wire transfer or ACH and, in the case of a check, when the same has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to unconditionally and irrevocably waive and release any right to any lien or other encumbrance or similar right or restriction of any kind whatsoever that the undersigned has, including any mechanic's lien, whether on real property, funds, or otherwise, any state or federal statutory bond right, any private bond right, any claim for payment and any rights under any similar ordinance, rule or statute related to claim or payment rights for persons in the undersigned's position that the undersigned has on the job of **[DESCRIBE THE PROJECT/OWNER]** for all labor, services, equipment or materials furnished to the jobsite or to [**PERSON WITH WHOM UNDERSIGNED HAS CONTRACTED**] through [**XXXX XX, 20_**], and does not cover any retention, pending modifications and changes acknowledged by **[PERSON WITH WHOM UNDERSIGNED HAS CONTRACTED]**, or items furnished after that date.

The undersigned warrants that it either has already paid or will use the monies it receives from this progress payment to promptly pay in full all of its laborers, subcontractors, materialmen and suppliers for all work, materials, equipment or services provided for or to the above referenced project up to the date of this waiver.

[For Major Subcontractors Only: The undersigned acknowledges and agrees that [OWNER ENTITY] is relying upon the representations and warranties made herein as a material inducement for [OWNER ENTITY] to make payments to SunEnergy1, LLC.]

Dated: XXXX XX, 20

[Contractor/Major Subcontractor]

By: _____

Name: _____

Title: _____

Exhibit 9

Form of Unconditional Waiver and Release (Progress Payment)

UNCONDITIONAL WAIVER AND RELEASE ON PROGRESS PAYMENT

Project: Dixon Solar, LLC

Job No.:

The undersigned has been paid and has received a progress payment in the sum of $ [**Amount**] for all labor, services, equipment or material furnished to the jobsite or to [**PERSON WITH WHOM UNDERSIGNED HAS CONTRACTED**] on the job of **[DESCRIBE THE PROJECT/OWNER]**, and does hereby unconditionally and irrevocably waive and release any right to any lien or other encumbrance or similar right or restriction of any kind whatsoever that the undersigned has, including any mechanic's lien, whether on real property, funds, or otherwise, any state or federal statutory bond right, any private bond right, any claim for payment and any rights under any similar ordinance, rule or statute related to claim or payment rights for persons in the undersigned's position that the undersigned has on the above referenced project for all such labor, services, equipment or materials furnished to the jobsite or to [**PERSON WITH WHOM UNDERSIGNED HAS CONTRACTED**] through [**APPLICABLE DATE**], and does not cover any retention, pending modifications and changes acknowledged by [**PERSON WITH WHOM UNDERSIGNED HAS CONTRACTED**], or items furnished after that date.

The undersigned warrants that it either has already paid or will use the monies it receives from this progress payment to promptly pay in full all of its laborers, subcontractors, materialmen and suppliers for all work, materials, equipment or services provided for or to the above referenced project up to the date of this waiver.

[For Major Subcontractors Only: The undersigned acknowledges and agrees that [OWNER ENTITY] is relying upon the representations and warranties made herein as a material inducement for [OWNER ENTITY] to make payments to SunEnergy1, LLC.]

Dated: XXXX XX, 20

[Contractor/Major Subcontractor]

By: _____

Name: _____

Title: _____

Notice: This document waives rights unconditionally and states that you have been paid for giving up those rights. This document is enforceable against you if you sign it, even if you have not been paid. If you have not been paid, use a conditional release form.

Exhibit 10

Form of Conditional Waiver and Release (Final Payment)

CONDITIONAL WAIVER AND RELEASE ON FINAL PAYMENT

Project: Dixon Solar, LLC

Job No.:

On receipt by the undersigned of the sum of $ [**Amount**] payable to [PAYEE OR PAYEES] by check, wire transfer or ACH and, in the case of a check, when the same has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to unconditionally and irrevocably waive and release any right to any lien or other encumbrance or similar right or restriction of any kind whatsoever that the undersigned has, including any mechanic's lien, whether on real property, funds, or otherwise, any state or federal statutory bond right, any private bond right, any claim for payment and any rights under any similar ordinance, rule or statute related to claim or payment rights for persons in the undersigned's position that the undersigned has on the job of **[DESCRIBE THE PROJECT/OWNER]** for the final payment to the undersigned for all labor, services, equipment or materials furnished to the jobsite or to [**PERSON WITH WHOM UNDERSIGNED HAS CONTRACTED**], except for disputed claims in the amount of $ [**0**], which are detailed in an attachment hereto. (If zero is stated, if no amount is stated or if there is no detailed breakdown of disputed claims attached to this document, then no disputed claims are reserved).

The undersigned warrants that it either has already paid or will use the monies it receives from this final payment to promptly pay in full all of its laborers, subcontractors, materialmen and suppliers for all work, materials, equipment or services provided for or to the above referenced project up to the date of this waiver.

[For Major Subcontractors Only: The undersigned acknowledges and agrees that [OWNER ENTITY] is relying upon the representations and warranties made herein as a material inducement for [OWNER ENTITY] to make payments to SunEnergy1, LLC]

Dated: XXXX XX, 20__

[Contractor/Major Subcontractor/Subcontractor]

By: _____

Name: _____

Title:

Exhibit 11

Form of Unconditional Waiver and Release (Final Payment)

UNCONDITIONAL WAIVER AND RELEASE ON FINAL PAYMENT

Project: Dixon Solar, LLC

Job No.:

The undersigned has been paid in full for all labor, services, equipment or material furnished to the jobsite or to [**PERSON WITH WHOM UNDERSIGNED HAS CONTRACTED**], on the job of **[DESCRIBE THE PROJECT/OWNER]**, and does hereby unconditionally and irrevocably waive and release any right to any lien, charge, claim, or other encumbrance or similar right or restriction of any kind whatsoever that the undersigned has, including any mechanic's lien, whether on real property, funds, or otherwise, any state or federal statutory bond right, any private bond right, any claim for payment and any rights under any similar ordinance, rule or statute related to claim or payment rights for persons in the undersigned's position, except for disputed claims for extra work in the amount of $ [0],which are detailed in an attachment hereto. (If zero is stated, if no amount is stated or if there is no detailed breakdown of disputed claims attached to this document, then no disputed claims are reserved).

The undersigned warrants that it either has already paid or will use the monies it receives from this final payment to promptly pay in full all of its laborers, subcontractors, materialmen and suppliers for all work, material, equipment or services provided for or to the above referenced project.

[For Major Subcontractors Only: The undersigned acknowledges and agrees that [OWNER ENTITY] is relying upon the representations and warranties made herein as a material inducement for [OWNER ENTITY] to make payments to SunEnergy1, LLC.]

Dated: XXX XX, 20__

[Contractor/Major Subcontractor/Subcontractor]

By: _____

Name: _____

`Title: _____

Notice: This document waives rights unconditionally and states that you have been paid for giving up those rights. This document is enforceable against you if you sign it, even if you have not been paid. If you have not been paid, use a conditional release form.

Exhibit 12

FORM OF ENERGIZATION NOTICE TO PROCEED

[_____, 20__]

[Name and Contact Information of Contractor]

Subject: Energization Notice to Proceed

Reference: Engineering, Procurement and Construction Agreement between Dixon Solar, LLC ("Owner") and SunEnergy1, LLC ("Contractor"), dated as of [XXX XX], 20__ (the "Agreement")

[Name:]

This Energization Notice to Proceed is delivered pursuant to Section 8.5 of the Agreement and authorizes Contractor to proceed with Energization of the System.

Capitalized terms not otherwise defined in this notice shall be as defined in the Agreement.

By signature below Owner authorizes Contractor to cause Energization of the System to occur.

Sincerely,

Owner

Dixon Solar, LLC

By:_____

Name: _____

Title:_____

Exhibit 13

FORM OF PERFORMANCE BOND

PERFORMANCE BOND

Bond No.:

CONTRACTOR:
(Name, legal status and address)

SURETY:
(Name, legal status and principal place of business)

OWNER:
(Name, legal status and address)

CONSTRUCTION CONTRACT
Date:
Amount: $
Description:
(Name and location)

BOND
Date:
(Not earlier than Construction Contract Date)

Amount: $

CONTRACTOR AS PRINCIPAL
Company: *(Corporate Seal)*

Signature:
Name and Title:

SURETY
Company: *(Corporate Seal)*

Signature:
Name and Title:

§ 1 The Contractor and Surety, jointly and severally, bind themselves, their executors, administrators, successors and permitted assigns to the Owner for the performance of the Construction Contract, which is incorporated herein by reference to the extent not contrary to the provisions hereof.

§ 2 If the Contractor performs the Construction Contract, the Surety and the Contractor shall have no obligation under this Bond, except when applicable to participate in a conference as provided in Section 3.

§ 3 If there is no Owner Default under the Construction Contract, the Surety's obligation under this Bond shall arise after

§ 3.1 the Owner first provides notice to the Contractor and the Surety that the Owner is considering declaring a Contractor Default. Such notice shall indicate whether the Owner is requesting a conference among the Owner, Contractor and Surety to discuss the Contractor's performance. If the Owner does not request a conference, the Surety may, within five (5) business days after receipt of the Owner's notice, request such a conference. If the Surety timely requests a conference, the Owner shall attend. Unless the Owner agrees otherwise, any conference requested under this Section 3.1 shall be held within ten (10) business days of the Surety's receipt of the Owner's

notice. If the Owner, the Contractor and the Surety agree, the Contractor shall be allowed a reasonable time to perform the Construction Contract, but such an agreement shall not waive the Owner's right, if any, at any time to declare a Contractor Default, nor shall such agreement in any way waive or modify any of Owner's other rights and remedies under the Construction Contract; and

§ 3.2 the Owner declares a Contractor Default and terminates Contractor's right to complete the work under the Construction Contract and notifies the Surety of such termination; and

§ 3.3 the Owner has agreed with Surety (or notified Surety in writing of its willingness) to pay the Balance of the Contract Price in accordance with the terms of the Construction Contract to the Surety (or to a contractor selected to perform the Construction Contract in accordance with Section 5.3), so long as Surety proceeds as described in Sections 5.1, 5.2 or 5.3.

§ 4 Failure on the part of the Owner to comply with the notice requirement in Section 3.1 shall not constitute a failure to comply with a condition precedent to the Surety's obligations, or release the Surety from its obligations, except to the extent the Surety demonstrates actual prejudice.

§ 5 When the Owner has satisfied the conditions of Section 3, the Surety shall promptly and at the Surety's expense take one of the following actions:

§ 5.1 Arrange for the Contractor, with the consent of the Owner, to perform and complete the Construction Contract; or

§ 5.2 Undertake, with the consent of the Owner, to perform and complete the Construction Contract itself, through its agents or through independent contractors; or

§ 5.3 With the consent of the Owner, (i) obtain bids or negotiated proposals from qualified contractors acceptable to the Owner for a contract for performance and completion of the Construction Contract, (ii) arrange for a contract (in form acceptable to Owner) to be prepared for execution by the Owner and the contractor selected with the Owner's concurrence, which will be secured with performance and payment bonds executed by a qualified surety equivalent to the bonds issued on the Construction Contract, and by such other security instruments as were required under the Construction Contract, and (iii) pay to the Owner the amount of damages as described in Section 7 that are in excess of the Balance of the Contract Price and incurred by the Owner as a result of the Contractor Default; or

§ 5.4 If Owner withholds its consent for Surety to take any of the actions set forth in, or if Surety waives its rights to proceed under, Sections 5.1, 5.2 or 5.3 above, then Surety will with reasonable promptness under the circumstances:

5.4.1 After investigation, determine the amount for which it may be liable to the Owner and, as soon as practicable after the amount is determined, make payment thereof to the Owner; or

5.4.2 Deny liability in whole or in part and notify the Owner citing the reasons for denial.

§ 6 If the Surety does not proceed as provided in Section 5 with reasonable promptness, the Surety shall be deemed to be in default on this Bond seven days after receipt of an additional written notice from the Owner to the Surety demanding that the Surety perform its obligations under this Bond, and the Owner shall be entitled to enforce any remedy available to the Owner. If the Surety proceeds as provided in Section 5.4, and the Owner refuses the payment or the Surety has denied liability, in whole or in part, then without further notice the Owner may elect to complete the Construction Contract (including correction of any defective work after completion during the warranty period under the Construction Contract) and shall be entitled to enforce any remedy available to the Owner under the Construction Contract or under this Bond.

§ 7 If the Surety elects (with Owner's consent as described therein) to act under Section 5.1, 5.2 or 5.3, then, except as otherwise provided in this Bond, (a) the responsibilities of the Surety to the Owner shall not be greater than those of the Contractor under the Construction Contract, (b) the responsibilities of the Owner to the Surety shall not be

greater than those of the Owner under the Construction Contract, and (c) without prejudice to the foregoing or any other provision of this Bond, and subject to commitment by the Owner to pay the Balance of the Contract Price as described in Section 3.3 above, the Surety will be obligated without duplication for:

§ 7.1 the costs and responsibilities of the completion of the Construction Contract and for the correction of defective work (including via warranty per the warranty terms in the Construction Contract);

§ 7.2 additional legal, design professional, and delay costs resulting from the Contractor's Default; and

§ 7.3 liquidated damages as specified in the Construction Contract (for delay, performance shortfalls or otherwise), or, to the extent that no such liquidated damages are specified in the Construction Contract, actual damages caused by delayed performance or non-performance of the Contractor.

§ 8 If the Surety elects to act under Section 5.1, 5.3 or 5.4, the Surety's liability to Owner for is limited to the amount of this Bond.

§ 9 If Surety proceeds under Section 5.2, Surety will, without limitation, be bound by the same terms and conditions of the Construction Contract regarding guaranteed completion deadlines (applying the dates as were applicable as at the occurrence of the Contractor Default) and related liquidated damages for failure to achieve the same. If it is determined that Owner will proceed under Section 5.3 or Section 6, Owner's costs may include premium charges for double-shifts, overtime and premium pricing as necessary to attempt to complete the work described in the Construction Contract by the original completion deadline(s) therein (or, if that is not feasible, then by the date(s) as soon as reasonably practicable thereafter).

§ 10 The Surety shall not be liable to the Owner or others for obligations of the Contractor that are unrelated to the Construction Contract, and the Balance of the Contract Price shall not be reduced or set off on account of any such unrelated obligations. No right of action shall accrue on this Bond to any person or entity other than the Owner or its respective executors, administrators, successors and permitted assigns.

§ 11 The Surety hereby waives notice of any change, including changes of time, to the Construction Contract or to related subcontracts, purchase orders and other obligations.

§ 12 Any proceeding, legal or equitable, under this Bond may be instituted in any court of competent jurisdiction in the location in which the work or part of the work is located, and in any court(s) having jurisdiction over the parties to the Construction Contract. If Contractor becomes bound by or subject to any order, decision or award by an arbitrator pursuant to an arbitration under the Construction Contract, the same shall hereby be deemed to apply to and be binding upon Surety. This Bond shall be governed and construed by and in accordance with the same law that governs the Construction Contract (pursuant to its governing law clause), excluding any laws that would dictate the application of the laws of another state. If Surety breaches its obligations under this Bond, it will be liable to Owner for any damages allowed under law, and for Owner's legal fees incurred to enforce its rights under this Bond, and the stated limit of this Bond shall not apply to such damages or fees, nor shall they count toward such limit.

§ 13 Notice to the Surety, the Owner or the Contractor shall be mailed or delivered to the address shown on the page on which their signature appears.

§ 14 When this Bond has been furnished to comply with a statutory or other legal requirement in the location where the construction was to be performed, any provision in this Bond conflicting with said statutory or legal requirement shall be deemed deleted herefrom and provisions conforming to such statutory or other legal requirement shall be deemed incorporated herein. When so furnished, the intent is that this Bond shall be construed as a statutory bond and not as a common law bond.

§ 15 Neither Surety nor Contractor may assign or delegate any of its respective rights or obligations under this Bond to any third party without the prior written consent of Owner. Within ten (10) days of Owner's request, Surety will add Owner's lenders and/or the lenders' agent dual obligees under this Bond pursuant to an industry standard dual obligee rider reasonably acceptable to the lenders and Surety.

§ 16 TO THE FULLEST EXTENT PERMISSIBLE UNDER APPLICABLE LAW, EACH PARTY HERETO WAIVES ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN RESPECT OF ANY DISPUTE ARISING OUT OF OR RELATING TO THIS BOND.

§ 17 Except as may be specifically agreed in writing, the failure of a Party hereto to insist in any one or more instances upon the strict performance of any one or more of the provisions of this Bond or to exercise any right herein contained or provided by law or equity shall not be construed as, or constitute in any way, a waiver, modification or relinquishment of the performance of such provision or right(s), or of the right to subsequently demand strict performance or exercise of such right(s), and all such rights shall continue unchanged and remain in full force and effect.

§ 18 Definitions

The following terms shall have the meanings as set forth below (i.e., not as set forth in the Construction Contract):

§ 18.1 Balance of the Contract Price: The total amount payable by the Owner to the Contractor under the Construction Contract for the work thereunder, after all proper adjustments have been made as allowed under the Construction Contract, reduced by all payments made to or on behalf of the Contractor under the Construction Contract as of the time of the Contractor Default.

§ 18.2 Construction Contract: The agreement between the Owner and Contractor identified on the first page of this Bond, including all other Contract Documents, and all past, present or future change orders, amendments, or supplements thereto.

§ 18.3 Contractor Default: Failure of the Contractor, which has not been remedied or waived in writing, to perform or otherwise to comply with a material term of the Construction Contract.

§ 18.4 Owner Default: Failure of the Owner, which has not been remedied or waived in writing, to pay the Contractor as required under the Construction Contract or otherwise to comply with a material term of the Construction Contract.

§ 18.5 Contract Documents. All the documents that comprise agreements between the Owner and Contractor and that relate to the work or project described in the agreement between the Owner and Contractor identified on the first page of this Bond.

Exhibit 14
FORM OF OWNER GUARANTY

This **GUARANTY AGREEMENT** (this "Guaranty"), dated as of [_____], is issued and delivered by (i) Brookfield Global Transition Fund-A, L.P., a Delaware limited partnership, (ii) Brookfield Global Transition Fund-B, L.P., a Delaware limited partnership, (iii) Brookfield Global Transition Fund-C, L.P., a Delaware limited partnership and (iv) Brookfield Global Transition Fund (ER) SCSp, a Luxembourg special limited partnership (société encommandite spéciale) (each a "Guarantor" and, collectively, the "Guarantors"), jointly and severally, in favor of SunEnergy1, LLC, a North Carolina limited liability company (each, a "Contractor", and, together with the Guarantors, each a "Party" and, collectively, the "Parties"). Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in the EPC Agreement (as defined below).

Background Statements

WHEREAS, Dixon Solar, LLC ("Owner") has entered into that certain Engineering, Procurement and Construction Agreement dated [_____] (the "EPC Agreement") for a solar PV electric generating system located in Ohio ("Project"), with the Contractor; and

WHEREAS, it is a condition of the EPC Agreement that the Guarantors execute and deliver this Guaranty.

NOW THEREFORE, in consideration of the premises and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

Agreement

1. Guaranty; Limitation of Liability.

(a) Subject to any rights, setoffs, counterclaims and any other defenses that the Guarantors expressly reserves to themselves under this Guaranty and the limitations set forth herein, the Guarantors, jointly and severally, absolutely and unconditionally guarantee the timely and complete payment when due and payable of any and all amounts payable by the Owner to the Contractor under the EPC Agreement (collectively, the "Guaranteed Obligations"); provided, however, that, as of any date of determination, the Guarantors' aggregate liability to the Contractor for the Guaranteed Obligations shall not in any event exceed the Maximum Guaranteed Amount; provided, that the Maximum Guaranteed Amount shall not apply to Guarantors' obligations under Section 15 of this Guaranty. For all purposes hereof, the "Maximum Guaranteed Amount" shall mean, as of any date of determination, the Contract Price, as the same may be increased or decreased by Change Order under the EPC Agreement, as such amount shall be decreased from time to time in accordance with Section 1(c).

(b) Subject to the other terms of this Guaranty, the aggregate liability of the Guarantors under this Guaranty is limited to payments expressly required to be made by the Owner under the EPC Agreement, and the Guarantors shall not be liable for or required to pay any consequential or

indirect losses (including but not limited to lost profits or revenues, costs of procurement of substitute goods or services, including replacement power, or business interruption), exemplary damages, punitive damages, special damages or any other damages or costs that do not directly and naturally arise from or are not the reasonably foreseeable result of the matter in question.

(c) Notwithstanding anything to the contrary contained herein, any portion of the Contract Price paid to a Contractor, setoff pursuant to the terms of the EPC Agreement, or otherwise satisfied by the Owner or any other Person on behalf of the Owner shall automatically decrease the Maximum Guaranteed Amount dollar for dollar.

(d) The Guarantors shall not in aggregate under this Guaranty or any of its provisions have any greater obligations or liability than Owner has under the EPC Agreement, and the limitations and exclusions of obligations and liability included in the EPC Agreement shall equally limit and exclude liability and obligations of the Guarantors under this Guaranty.

2. Effect of Amendments to the EPC Agreement. The Guarantors agree that the Owner and the Contractor may modify, amend, waive and supplement the EPC Agreement and that the Contractor may delay or extend the date on which any payment must be made pursuant to the EPC Agreement or delay or extend the date on which any act must be performed by the Owner thereunder, all without notice to or further assent by the Guarantors, who shall remain bound by this Guaranty, notwithstanding any such act by the Owner or the Contractor; provided, however, that the Guarantors shall have the benefit of any such extension of time of payment, waiver or alteration with respect to any of the Guaranteed Obligations or any liability incurred directly or indirectly in respect thereof to the same extent as the Owner.

3. Waiver of Rights. The Guarantors expressly waive (i) protest, (ii) notice of acceptance of this Guaranty by the Contractor, and (iii) subject to Section 7, demand, diligence or presentment for payment of any of the Guaranteed Obligations.

4. Reservation of Defenses. Without limiting the Guarantors' own defenses and rights hereunder, the Guarantors reserve to themselves all rights, setoffs, counterclaims and other defenses that the Owner may have to payment of all or any portion of the Guaranteed Obligations except defenses arising from (a) the bankruptcy, insolvency, dissolution or liquidation of the Owner, (b) defenses relating to the due authorization, incapacity or lack of authority, execution and delivery by the Owner of the EPC Agreement, (c) defenses based upon lack of validity or enforceability of the Guaranteed Obligations, and (d) other defenses expressly waived in this Guaranty.

5. Rights of Contractor. Contractor may at any time and from time to time without the consent of, or notice to, the Guarantors, without incurring responsibility to the Guarantors:

(a) exercise or refrain from exercising any rights against Owner, any other guarantor of Owner or others or otherwise act or refrain from acting;

(b) consent to or waive any breach of, or any act, omission or default under, the EPC Agreement or any of the instruments or agreements referred to therein;

(c) act or fail to act in any manner that may deprive the Guarantors of their right to subrogation against Owner to recover full indemnity for any payments made pursuant to this Guaranty; and/or

(d) take any other action or omit to take any other action that would, under otherwise applicable principles of common law, give rise to a legal or equitable discharge of the Guarantors from their liabilities under this Guaranty (including, without limitation, any action or omission whatsoever that might otherwise vary the risk of such Guarantor or constitute a legal or equitable defense to or discharge of the liabilities of a guarantor or surety or that might otherwise limit recourse against such Guarantors).

6. Settlements Conditional. This Guaranty shall remain in full force and effect or shall be reinstated (as the case may be) if at any time any monies paid to a Contractor in respect of the Guaranteed Obligations have to be repaid by such Contractor by virtue of any provision or enactment relating to bankruptcy, insolvency or liquidation of the Owner for the time being in force, and, in such case, the liability of the Guarantors under this Guaranty shall be computed as if such monies had never been paid to such Contractor.

7. Notice of Claim. The Contractor will provide written notice to the Guarantors if an Owner Event of Default occurs as a result of Owner's failure to comply with the Guaranteed Obligations, which such written notice shall specify in reasonable detail the nature and amount of such defaulted payment obligation, but failure to give such notice shall not limit or invalidate the obligations of the Guarantors hereunder.

8. Primary Liability of the Guarantors. The Guarantors agree that the Contractor may enforce this Guaranty after an Owner Event of Default without the necessity at any time of resorting to or exhausting any other remedies, security or collateral. This is a continuing guaranty of payment and not merely of collection. The Guarantors' obligations under this Guaranty are independent of any obligation of the Owner or any other person and a separate action or actions may be brought and prosecuted by a Contractor against the Guarantors under this Guaranty whether or not any action is brought or prosecuted against the Owner or any other person and whether or not the Owner or any other person is joined in any action under this Guaranty.

9. Representations and Warranties. Each Guarantor represents and warrants, as to itself, to the Contractor as of the date hereof that:

(a) Each Guarantor is duly organized, validly existing and in good standing under the laws of the jurisdiction of its formation and has full power and legal right to execute and deliver this Guaranty and to perform the provisions of this Guaranty on its part to be performed;

(b) The execution, delivery and performance of this Guaranty by such Guarantor have been and remain duly authorized by all necessary limited partnership or other entity, as applicable, action and do not contravene any provision of its organizational documents or any law, regulation or contractual restriction binding on it or its assets;

(c) All consents, authorizations, approvals, registrations and declarations required for the due execution, delivery and performance of this Guaranty by such Guarantor have been obtained from or, as the case may be, filed with the relevant governmental authorities having jurisdiction and remain in full force and effect, and all conditions thereof have been duly complied with and no other action by, and no notice to or filing with, any governmental authority having jurisdiction is required for such execution, delivery or performance;

(d) This Guaranty constitutes the legal, valid and binding obligation of such Guarantor enforceable against it in accordance with its terms, except as enforcement hereof may be limited by applicable bankruptcy, insolvency, reorganization or other similar laws affecting the enforcement of creditors' rights or by general equity principles;

(e) Neither the execution, delivery or performance by such Guarantor of this Guaranty, nor compliance by it with the terms and provisions hereof, will (i) contravene any provision of any Applicable Law, statute, rule or regulation or any applicable order, writ, injunction or decree of any court or governmental instrumentality or (ii) conflict with, violate or result in any breach of any of the terms, covenants, conditions or provisions of, or constitute a default under any agreement, contract or instrument to which such Guarantor is a party, in each case, except where non-compliance would not reasonably be expected to have a material adverse effect upon the legality, validity, binding effect or enforceability against such Guarantor of this Guaranty; and

(f) No order, consent, approval, license, authorization or validation of, or filing, recording or registration with (except as have been obtained or made prior to the date when required and which remain in full force and effect), or exemption by, any governmental or public body or authority, or any subdivision thereof, is required to authorize, or is required in connection with, (i) the execution, delivery and performance of this Guaranty by the Guarantors or (ii) the legality, validity, binding effect or enforceability of this Guaranty, in each case, except where non-compliance would not reasonably be expected to have a material adverse effect upon the legality, validity, binding effect or enforceability against the Guarantors of this Guaranty.

10. Nature of Guaranty. The Guarantors hereby agree that their obligations hereunder shall be unconditional irrespective of (i) the impossibility, illegality or unenforceability of performance by the Owner under the EPC Agreement; (ii) the absence of any action to enforce the EPC Agreement; (iii) subject to Section 2, any waiver or consent by a Contractor concerning any provisions of the EPC Agreement; or (iv) the rendering of any judgment against the Owner or any action to enforce the same.

11. Subrogation. The Guarantors will not exercise any rights that they may acquire by way of subrogation until all Guaranteed Obligations shall have been paid in full. Subject to the foregoing, upon payment of all such Guaranteed Obligations, the Guarantors shall be subrogated to the rights

of each Contractor against the Owner, and each Contractor agrees to take at the Guarantors' expense such steps as the Guarantors may reasonably request to implement such subrogation.

12. Term of Guaranty. This Guaranty shall remain in full force and effect until the earlier to occur of (i) the date that the Maximum Guaranteed Amount is reduced to zero, (ii) such time at which the Owner has no further Guaranteed Obligations and any claims made with respect to the Guaranteed Obligations prior to such date have been satisfied in full, and (iii) the date that Owner provides to Contractor written confirmation that financing for the Project is secured and available to be drawn upon by Owner to pay the Contractor the Contract Price (or remaining portion thereof), such written confirmation to the Contractor to include Owner confirmation that such financing provides sufficient coverage of Owner's payment obligations with respect to the Contract Price under the EPC Agreement.

13. Governing Law. This Guaranty shall be governed by and construed in accordance with the internal laws of the State of New York without giving effect to principles of conflicts of law. However, the derivative application by the Guarantors of any rights, setoffs, counterclaims or other defenses available to Owner and relied upon by Guarantors under this Guaranty shall be governed by and construed in accordance with the governing law as set forth in the EPC Agreement.

14. Jurisdiction; Service of Process. Each Party (a) hereby irrevocably consents to the exclusive jurisdiction of the courts of the County of New York in the State of New York and of any federal court located in the Southern District of New York (or, if such courts do not accept jurisdiction, any state or federal court of competent jurisdiction in the United States) in connection with any suit, action or other proceeding arising out of or relating to this Guaranty or the transactions contemplated hereby, (b) hereby agrees to waive any objection to venue in the County of New York in the State of New York, and (c) agrees that, to the extent permitted by law, service of process in connection with any such proceeding may be effected by mailing in the same manner provided in Section 21 hereof.

15. Expenses. The Guarantors agree to pay all documented and reasonable out-of-pocket expenses (including the documented and reasonable fees and expenses of the Contractor's counsel) relating to the enforcement of the Contractor's rights hereunder in the event the Guarantors dispute their obligations under this Guaranty and it is finally determined (whether through settlement, arbitration or adjudication, including the exhaustion of all permitted appeals) that the Contractor is entitled to receive payment of a portion of or all of such disputed amounts.

16. Waiver of Jury Trial. The Guarantors and the Contractor, through acceptance of this Guaranty, waive all rights to trial by jury in any action, proceeding or counterclaim arising or relating to this Guaranty.

17. Entire Agreement; Amendments; Severability. This Guaranty integrates all of the terms and conditions mentioned herein or incidental hereto and supersedes all oral negotiations and prior writings in respect to the subject matter hereof. This Guaranty may only be amended or modified by an instrument in writing signed by the Guarantors and the Contractor. In case any one or more of the provisions contained in this Guaranty should be invalid, illegal or unenforceable in any

respect, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired thereby.

18. Headings. The headings of the various Sections of this Guaranty are for convenience of reference only and shall not modify, define or limit any of the terms or provisions hereof.

19. No Third-Party Beneficiary. This Guaranty is given by the Guarantors solely for the benefit of the Contractor and is not to be relied upon by any other person or entity.

20. Assignment. The Guarantors or the Contractor may not assign their respective rights or obligations under this Guaranty without the prior written consent of the non-assigning parties hereto, which consent may not be unreasonably withheld or delayed. Subject to the foregoing, this Guaranty shall be binding upon and shall inure to the benefit the Guarantors and the Contractor and their respective successors and permitted assigns.

21. Notices. Any communication, demand or notice to be given hereunder will be duly given when delivered in writing or sent by electronic mail to the Guarantors or to the Contractor, as applicable, at its address as indicated below:

If to the Guarantors, at:

c/o Brookfield Corporation
Brookfield Place
250 Vesey Street, 15th Floor
New York, NY 10281
Attention: Mark Srulowitz
Email: mark.srulowitz@brookfield.com
With a copy e-mail to: renewable.legal@brookfield.com

If to a Contractor, at:

c/o SunEnergy1, LLC
595 Summer Street
Fourth Floor
Stamford, Connecticut 06901
Attention: Dirk Corn
Telephone: 704-662-0375
Email: dirk.corn@sunenergy1.com

With a copy to:

SunEnergy1, LLC
595 Summer Street
Fourth Floor
Stamford, Connecticut 06901
Attention: Legal Department
Telephone: 704-662-0375

Email: legal@sunenergy1.com

or such other address as the Guarantors or the Contractor shall from time to time specify. Notice shall be deemed given (a) when received, as evidenced by signed receipt, if sent by hand delivery, overnight courier or registered mail or (b) when received, as evidenced by email confirmation, if sent by email (automatic responses not being sufficient for acknowledgment).

22. Electronic Signatures. The words "execution," "signed," "signature," and words of like import in this Guaranty shall be deemed to include electronic signatures (including via DocuSign or similar method) or the keeping of records in electronic form, each of which shall be of the same legal effect, validity or enforceability as a manually executed signature or the use of a paper-based recordkeeping system, as the case may be, to the extent and as provided for in any Applicable Law, including the Federal Electronic Signatures in Global and National Commerce Act, the New York State Electronic Signatures and Records Act, or any other similar state laws based on the Uniform Electronic Transactions Act.

[*signature page follows*]

IN WITNESS WHEREOF, each Guarantor has executed this Guaranty as of the day and year first above written.

Guarantors:

Brookfield Global Transition Fund-A, L.P.

By:_____

Name:_____

Title:_____

Brookfield Global Transition Fund-B, L.P.

By:_____

Name:_____

Title:_____

Brookfield Global Transition Fund-C, L.P.

By:_____

Name:_____

Title:_____

Brookfield Global Transition Fund (ER) SCSp

By:_____

Name:_____

Title:_____

EXHIBIT 15

FORM OF CONTRACTOR GUARANTY

GUARANTY

THIS GUARANTY is dated and effective as of _____ (as amended, restated or modified from time to time, this "Guaranty"), and is made by SE1 Holdco, LLC, a limited liability company organized under the laws of the Delaware ("Guarantor"), in favor of Dixon Solar, LLC ("Owner"), a Delaware limited liability company. All capitalized terms used and not otherwise defined herein shall have the meanings ascribed to them in the Agreement (defined below).

WHEREAS, pursuant to that certain Engineering, Procurement and Construction Agreement, dated as of [__], by and between SunEnergy1, LLC, a North Carolina limited liability company ("Contractor"), and Owner (the "Agreement"), Contractor has agreed to perform the Work, as more specifically set forth in the Agreement;

WHEREAS, pursuant to Section 5.23 of the Agreement, Contractor is required to deliver to Owner the Contractor Guaranty, and in connection therewith, Guarantor has agreed to execute and deliver this Guaranty to Owner;

NOW, THEREFORE, in consideration of the mutual covenants and agreements of the parties hereinafter set forth and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties each intending to be legally bound, hereby do agree as follows:

2. GUARANTY.

(a) For value received and in consideration of the direct and indirect benefits to be derived by Guarantor in connection with the Agreement, with effect from the date of this Guaranty, Guarantor hereby irrevocably, absolutely and unconditionally guarantees to Owner as a primary obligor and not merely as surety, the full and prompt payment and performance, upon written demand by Owner, of Contractor's obligations under the Agreement (the "Guaranteed Obligations"), subject in all respects to all of the conditions, defenses, limitations, and qualifications set forth in the Agreement. Notwithstanding the foregoing, Guarantor's aggregate total liability under this Guaranty including, without limitation, on account of the Guaranteed Obligations, shall not exceed the Contract Price, as the same may be adjusted by Change Orders ("Guaranty Capped Value"); provided, that the Guaranty Capped Value shall not apply to Guarantor's obligations under Section 8 of this Guaranty.

(b) Guarantor understands, agrees and confirms that Owner may enforce this Guaranty against Guarantor without proceeding first against Contractor or under any other guaranty covering all or a portion of the Guaranteed Obligations. This Guaranty is a guaranty of payment and

performance and not of collection, and is limited to payment of the Guaranteed Obligations and is subject to, except as set forth in Section 1(a), the Guaranty Capped Value.

(c) In the event of a good faith dispute between the Contractor and the Owner with respect to the validity and existence of any Guaranteed Obligation, the Owner shall be required to commence efforts to seek remedies against the Contractor (including dispute resolution proceedings), in accordance with the Agreement, prior to making a claim hereunder. The obligations of the Guarantor as set forth in this Guaranty shall be solely the obligations of the Guarantor and shall not be or be deemed to be obligations of any past, present or future stockholder, partner, member, director or officer of the Guarantor.

3. LIABILITY OF GUARANTOR ABSOLUTE; DEFENSES. The liability of Guarantor hereunder is primary, absolute and unconditional and is exclusive and independent of any security for or other guaranty of the obligations of Contractor whether executed by Guarantor, any other guarantor or by any other party. Notwithstanding the foregoing, the Guarantor shall be entitled to assert any and all rights, setoffs, counterclaims and other defenses which the Contractor may have to payment or performance of any of the Guaranteed Obligations, other than defenses based upon (1) lack of authority, capacity, legal right or power of the Contractor to enter into and/or perform its obligations under the Agreement, (2) any bankruptcy, insolvency, reorganization, arrangement, composition, liquidation, dissolution or similar proceeding with respect to the Contractor, or (3) any defense based upon or relating to any lack of enforceability of or defect or deficiency in the Agreement.

4. REPRESENTATIONS, WARRANTIES, AND COVENANTS OF GUARANTOR. Guarantor hereby represents, warrants and covenants that:

(a) Guarantor (i) is a duly organized and validly existing limited liability company, in good standing under the laws of the jurisdiction of its organization and (ii) has the limited liability company power and authority to own its property and assets and to transact the business in which it is engaged and presently proposes to engage;

(b) Guarantor has the limited liability company power and authority to execute, deliver and perform the terms and provisions of this Guaranty and has taken all necessary limited liability company action to authorize the execution, delivery and performance by it of this Guaranty;

(c) Guarantor has duly executed and delivered this Guaranty, and this Guaranty constitutes the legal, valid and binding obligation of such Guarantor enforceable in accordance with its terms, except as such enforceability may be limited or denied by (i) applicable bankruptcy laws, and (ii) general principles of equity, regardless of whether enforcement is pursuant to a proceeding in equity or at law;

(d) neither the execution, delivery or performance by Guarantor of this Guaranty, nor

compliance by it with the terms and provisions hereof, will (i) contravene any provision of any Applicable Law, statute, rule or regulation or any applicable order, writ, injunction or decree of any court or governmental instrumentality or (ii) conflict with, violate or result in any breach of any of the terms, covenants, conditions or provisions of, or constitute a default under any agreement, contract or instrument to which Guarantor is a party, in each case, except where non-compliance would not reasonably be expected to have a material adverse effect upon the legality, validity, binding effect or enforceability against Guarantor of this Guaranty; and

(e) no order, consent, approval, license, authorization or validation of, or filing, recording or registration with (except as have been obtained or made prior to the date when required and which remain in full force and effect), or exemption by, any governmental or public body or authority, or any subdivision thereof, is required to authorize, or is required in connection with, (i) the execution, delivery and performance of this Guaranty by such Guarantor or (ii) the legality, validity, binding effect or enforceability of this Guaranty, in each case, except where non-compliance would not reasonably be expected to have a material adverse effect upon the legality, validity, binding effect or enforceability against Guarantor of this Guaranty.

5. WAIVERS BY GUARANTOR. The Guarantor hereby waives: (a) any and all notice of the creation, renewal, extension or accrual of any of the Guaranteed Obligations and notice of or proof of reliance by the Owner upon this Guaranty or acceptance of this Guaranty; (b) presentment, demand (other than demand delivered pursuant to Section 1(a) hereof), notice, and protest of all instruments included in or evidencing any of the Guaranteed Obligations and all other demands (other than demand delivered pursuant to Section 1(a) hereof) and notices in connection with the delivery, acceptance, performance, default or enforcement of any such instrument or this Guaranty; (c) except as provided in Section 1(c), any right to require the Owner to proceed against the Contractor, or to pursue any other remedy in the Owner's power before proceeding against the Guarantor; (d) any defense based upon an election of remedies by the Owner, which destroys or otherwise impairs the subrogation rights of the Guarantor, the right of the Guarantor to proceed against the Contractor for reimbursement, or both; (e) except as set forth in the Section 2 hereof, any defense based on any offset against any amounts which may be owed by any Person to the Guarantor for any reason whatsoever; and (f) any defense based upon any statute or rule of law which provides that the obligation of a surety must be neither larger in amount nor in other respects more burdensome than that of the principal. The Guarantor agrees that Owner and Contractor may modify, amend, waive and supplement the Agreement (including by Change Orders thereunder), all without notice to or further assent by the Guarantor, who shall remain bound by this Guaranty, notwithstanding any such modification, amendment, waiver, supplement or Change Order.

6. RIGHTS OF OWNER. Owner may at any time and from time to time without the consent of, or notice to, Guarantor, without incurring responsibility to Guarantor:

(a) exercise or refrain from exercising any rights against Contractor, any other guarantor

of Contractor or others or otherwise act or refrain from acting;

(b) consent to or waive any breach of, or any act, omission or default under, the Agreement or any of the instruments or agreements referred to therein;

(c) act or fail to act in any manner which may deprive Guarantor of its right to subrogation against Contractor to recover full indemnity for any payments made pursuant to this Guaranty; and/or

(d) take any other action or omit to take any other action which would, under otherwise applicable principles of common law, give rise to a legal or equitable discharge of Guarantor from its liabilities under this Guaranty (including, without limitation, any action or omission whatsoever that might otherwise vary the risk of such Guarantor or constitute a legal or equitable defense to or discharge of the liabilities of a guarantor or surety or that might otherwise limit recourse against such Guarantor).

7. CONTINUING GUARANTY. This Guaranty is a continuing one and all liabilities to which it applies or may apply under the terms hereof shall be conclusively presumed to have been created in reliance hereon. No failure or delay on the part of Owner in exercising any right, power or privilege hereunder shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, power or privilege. The rights and remedies herein expressly specified are cumulative and not exclusive of any rights or remedies that Owner would otherwise have. No notice to or demand on Guarantor in any case shall entitle Guarantor to any other further notice or demand in similar or other circumstances or constitute a waiver of the rights of Owner to any other or further action in any circumstances without notice or demand.

8. REINSTATEMENT PROVISION; SUBROGATION; CONSEQUENTIAL DAMAGES.

(a) If Owner receives any payment or payments on account of the Guaranteed Obligations, which payment or payments of any part thereof are subsequently invalidated, declared to be fraudulent or preferential, set aside and/or required to be repaid to a trustee, receiver, or any other party under any bankruptcy act or code, state or federal law, common law or equitable doctrine, then to the extent of any sum not finally retained by Owner, Guarantor's obligations to Owner hereunder shall be reinstated and this Guaranty, shall remain in full force and effect (or be reinstated) until payment and performance of the Obligations shall have been made to Owner (or performance completed as the case may be), which payment shall be due on demand.

(b) Guarantor will not exercise any rights that it may acquire by way of subrogation until all Guaranteed Obligations shall have been performed in full. Subject to the foregoing, the Guarantor's rights of claim against Contractor shall be subrogated to the rights of Owner against Contractor, and Contractor agrees to take at the Guarantor's expense such steps as the Guarantor may reasonably

request to implement such subrogation.

(c) In no event shall the Guarantor be subject to any consequential, exemplary, special, indirect, incidental or punitive damages (including any damages on account of lost profits or opportunities or business interruption and the like), whether by statute, in tort or under contract, under any indemnity provision or otherwise.

9. EXPENSES. Guarantor hereby agrees to pay all reasonable out-of-pocket costs and expenses of Owner in connection with the enforcement of this Guaranty and the protection of Owner's rights hereunder and any amendment, waiver or consent relating hereto (including, in each case, without limitation, the reasonable out-of-pocket fees and disbursements of counsel employed or retained by Owner) if Owner prevails in any legal action or proceeding initiated by Owner against Guarantor to enforce its right hereunder. Notwithstanding the foregoing, the Guarantor shall have no obligation to pay any such costs or expenses if, in any action or proceeding brought by the Owner giving rise to a demand for payment of such costs or expenses, it is finally adjudicated by a court of competent jurisdiction that the Guarantor is not liable to make payment under Section 1 of this Guaranty.

10. TERM OF GUARANTY. This Guaranty and the rights and obligations hereunder shall terminate and be of no further force or effect (and no party hereto shall have any further liability hereunder) at the earlier of (a) such time as all of the Guaranteed Obligations have been fully performed; provided, however, that for purposes of this Guaranty the discharge or modification of the Guaranteed Obligations in a bankruptcy or insolvency proceeding shall not constitute performance thereof, and (b) the expiration of the Warranty Period. Upon such termination, Guarantor shall be released from all obligations of Guarantor arising under this Guaranty other than for outstanding claims made with respect to the Guaranteed Obligations that are unresolved as of such date.

11. ASSIGNMENT; BENEFIT AND BINDING EFFECT. Guarantor may not assign its rights or obligations under this Guaranty without the prior written consent of the non-assigning parties hereto, which consent may not be unreasonably withheld or delayed. Owner may without requirement of Guarantor consent assign its rights under this Guaranty to any permitted assignee to which Owner assigns the Agreement pursuant to the terms thereof; *provided*, that Owner will notify Guarantor of such assignment. Subject to the foregoing, this Guaranty shall be binding upon Guarantor and its successors and assigns and shall inure to the benefit of Owner and its successors and assigns.

12. AMENDMENTS; WAIVERS. Neither this Guaranty nor any provision hereof may be changed, waived, discharged or terminated except with the written consent of each of Guarantor and Owner.

13. NOTICE. All notices and other communications shall be in writing and addressed to such party at (a) in the case of Owner, as provided in the Agreement, and (b) in the case of Guarantor, at its address set forth opposite its signature page below; or in any case at such other address as any of the

Persons listed above may hereafter notify the others in writing.

14. CONSENT TO JURISDICTION; SERVICE OF PROCESS.

(a) This Guaranty shall be governed by and construed in accordance with the laws of the State of New York without giving effect to laws of such state that would require the application of the laws of any other state. However, the derivative application by Guarantor of any rights, setoffs, counterclaims and other defenses available to Contractor under the Agreement, and relied upon by Guarantor under this Guaranty. shall be governed by and construed in accordance with the governing law as set forth in the Agreement.

(b) The parties irrevocably acknowledge and accept that all actions arising under or relating to this Guaranty shall be brought exclusively in a United States District Court or New York State Court located in New York, New York having subject matter jurisdiction over such matters. Each party further irrevocably consents to the service of process out of any of the aforementioned courts in any such action or proceeding by the mailing of copies thereof by registered or certified mail, postage prepaid, to Guarantor at its address set forth opposite its signature below, such service to become effective thirty (30) days after such mailing.

(c) Each party hereby irrevocably waives any objection to such service of process and further irrevocably waives and agrees not to plead or claim in any action or proceeding commenced hereunder that such service of process was in any way invalid or ineffective. Nothing herein shall affect the right of either party to serve process in any other manner permitted by law or to commence legal proceedings or otherwise proceed against the other party in any other jurisdiction.

(d) Each party hereby irrevocably waives (to the fullest extent permitted by Applicable Law) any objection that it may now or hereafter have to the laying of venue of any of the aforesaid actions or proceedings arising out of or in connection with this Guaranty brought in the courts referred to in Section 13(a) above and hereby further irrevocably waives and agrees not to plead or claim in any such court that such action or proceeding brought in any such court has been brought in an inconvenient forum.

(e) EACH PARTY HEREBY IRREVOCABLY WAIVES ALL RIGHTS TO A TRIAL BY JURY IN ANY ACTION, PROCEEDING OR COUNTERCLAIM ARISING OUT OF OR RELATING TO THIS GUARANTY OR THE TRANSACTIONS CONTEMPLATED HEREBY.

15. COUNTERPARTS. This Guaranty may be executed in any number of counterparts and by the parties hereto on separate counterparts, each of which when so executed and delivered shall be an original, but all of which shall together constitute one and the same instrument.

16. ENTIRE AGREEMENT; AMENDMENTS; SEVERABILITY. This Guaranty integrates all

of the terms and conditions mentioned herein or incidental hereto and supersedes all oral negotiations and prior writings in respect to the subject matter hereof. In case any one or more of the provisions contained in this Guaranty should be invalid, illegal or unenforceable in any respect, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired thereby.

17. HEADINGS. The headings of the various Sections of this Guaranty are for convenience of reference only and shall not modify, define or limit any of the terms or provisions hereof.

18. ELECTRONIC SIGNATURES. The words "execution," "signed," "signature," and words of like import in this Guaranty shall be deemed to include electronic signatures (including via DocuSign or similar method) or the keeping of records in electronic form, each of which shall be of the same legal effect, validity or enforceability as a manually executed signature or the use of a paper-based recordkeeping system, as the case may be, to the extent and as provided for in any applicable law, including the Federal Electronic Signatures in Global and National Commerce Act, the New York State Electronic Signatures and Records Act, or any other similar state laws based on the Uniform Electronic Transactions Act.

[Signature page follows]

IN WITNESS WHEREOF, Guarantor has caused this Guaranty to be executed and delivered as of the date first above written.

Guarantor

SE1 Holdco, LLC

By:_____

Name:

Title:

Accepted and Agreed to:

Owner

Dixon Solar, LLC

By: _____

Name:

Title:

Exhibit 16

Title Commitment

ALTA COMMITMENT FOR TITLE INSURANCE

issued by:

Commonwealth
LAND TITLE INSURANCE COMPANY

Commitment Number:

GLC2600326 Revision 2 (added liability amount and updated Survey)

NOTICE

IMPORTANT - READ CAREFULLY: THIS COMMITMENT IS AN OFFER TO ISSUE ONE OR MORE TITLE INSURANCE POLICIES. ALL CLAIMS OR REMEDIES SOUGHT AGAINST THE COMPANY INVOLVING THE CONTENT OF THIS COMMITMENT OR THE POLICY MUST BE BASED SOLELY IN CONTRACT.

THIS COMMITMENT IS NOT AN ABSTRACT OF TITLE, REPORT OF THE CONDITION OF TITLE, LEGAL OPINION, OPINION OF TITLE, OR OTHER REPRESENTATION OF THE STATUS OF TITLE. THE PROCEDURES USED BY THE COMPANY TO DETERMINE INSURABILITY OF THE TITLE, INCLUDING ANY SEARCH AND EXAMINATION, ARE PROPRIETARY TO THE COMPANY, WERE PERFORMED SOLELY FOR THE BENEFIT OF THE COMPANY, AND CREATE NO EXTRACONTRACTUAL LIABILITY TO ANY PERSON, INCLUDING A PROPOSED INSURED.

THE COMPANY'S OBLIGATION UNDER THIS COMMITMENT IS TO ISSUE A POLICY TO A PROPOSED INSURED IDENTIFIED IN SCHEDULE A IN ACCORDANCE WITH THE TERMS AND PROVISIONS OF THIS COMMITMENT. THE COMPANY HAS NO LIABILITY OR OBLIGATION INVOLVING THE CONTENT OF THIS COMMITMENT TO ANY OTHER PERSON.

COMMITMENT TO ISSUE POLICY

Subject to the Notice; Schedule B, Part I-Requirements; Schedule B, Part II-Exceptions; and the Commitment Conditions, Commonwealth Land Title Insurance Company, a Florida corporation (the "Company"), commits to issue the Policy according to the terms and provisions of this Commitment. This Commitment is effective as of the Commitment Date shown in Schedule A for each Policy described in Schedule A, only when the Company has entered in Schedule A both the specified dollar amount as the Proposed Amount of Insurance and the name of the Proposed Insured.

If all of the Schedule B, Part I-Requirements have not been met within one hundred eighty (180) days after the Commitment Date, this Commitment terminates and the Company's liability and obligation end.

Commonwealth Land Title Insurance Company

By:

Michael J. Nolan, President

Attest:

Marjorie Nemzura, Secretary

Countersigned By:

Brandin McMillen
Authorized Officer or Agent

This page is only a part of a 2021 ALTA® Commitment for Title Insurance issued by Commonwealth Land Title Insurance Company. This Commitment is not valid without the Notice; the Commitment to Issue Policy; the Commitment Conditions; Schedule A; Schedule B, Part I-Requirements; Schedule B, Part II-Exceptions; and a counter-signature by the Company or its issuing agent that may be in electronic form.

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COMMONWEALTH LAND TITLE INSURANCE COMPANY

Transaction Identification Data, for which the Company assumes no liability as set forth in Commitment Condition 5.e.:

ISSUING OFFICE:	FOR SETTLEMENT INQUIRIES, CONTACT:
Title Officer: Genevieve Jonas Commonwealth Land Title Insurance Company 312 Walnut Street, Suite 2250 Cincinnati, OH 45202 Phone: 513-337-5489 Fax: 513-682-5927 Main Phone: (513)985-0550 Email: GJonas@cltic.com	Escrow Officer: Brianne M Brown Commonwealth Land Title Insurance Company 312 Walnut Street, Suite 2250 Cincinnati, OH 45202 Phone: 513-337-5492 Fax: 513-794-3565 Main Phone: (513)985-0550 Email: Brianne.Brown@cltic.com

Order Number: GLC2600326
Property Address: Solar Project off Dixon Run, State Route 327, and Luther Jones Rd (TR-512) in Township of Bloomfield, Oak Hill, OH 45656

Project Name:

SCHEDULE A

1. Commitment Date: March 27, 2026 at 06:59 AM

2. Policy to be issued:

   (a) ALTA Owner's Policy 2021 - OH (12/01/2022)
   Proposed Insured: Dixon Solar, LLC
   Proposed Amount of Insurance: $31,500,000.00
   The estate or interest to be insured: Leasehold

3. The estate or interest in the Land at the Commitment Date is:

   Fee Simple

4. The Title is, at the Commitment Date, vested in:

   Dixon Land Holdings, LLC, an Ohio limited liability company, by deeds filed for record March 12, 2025 in OR Book 185, Page 1284, in OR Book 185, Page 1295, and in OR Book 185, Page 1308 of the Jackson County, Ohio Records. (Parcel 1)

   Dixon Land Holdings, LLC, an Ohio limited liability company, by deed filed for record December 31, 2025 in OR Book 192, Page 332 of the Jackson County, Ohio Records. (Parcel 2)

   Dixon Land Holdings, LLC, an Ohio limited liability company, by deed filed for record March 20, 2025 in OR Book 185, Page 1944 of the Jackson County, Ohio Records. (Parcel 3)

5. The Land is described as follows:

   SEE EXHIBIT "A" ATTACHED HERETO AND MADE A PART HEREOF

END OF SCHEDULE A

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EXHIBIT "A"

Legal Description

PARCEL 1:

Situated in the State of Ohio, County of Jackson, Township of Bloomfield, being a part of Sections 16, 17, 19, 20, 21, and 29, Township 8N, Range 17W, Congress Lands East of the Scioto River, and being part of the Rapier Properties, Parcel Numbers A010020018300, A010020017800, A010020017700, A010020017500, A010020017600, A010020018000, A010020017200, A010020017400, A010030025201, A010030025100, A010030025301, A010030008800, A010030008900, A010030008700, A010030013004, A010030025400, A010030025300, A010030023102, A010030013600, A010030023001, A010030014002, A010030014100, A010020018201, A010030023201, as conveyed to Daniel R. & Naomi L. Rapier as recorded in Official Record Volume 40, Page 1325, Official Record Volume 40, Page 1371, Official Record Volume 53, Page 2825, Official Record Volume 62, Page 1369, Official Record Volume 89, Page 2981, Official Record Volume 108, Page 2352, Official Record Volume 111, Page 191, Official Record Volume 130, Page 86, Volume 328, Page 897, all references being to those of record in the Recorder's Office, Jackson County, Ohio, said 640.779 acre Parcel being more particularly bounded and described as follows:

Beginning at a 5/8" rebar found marking the southeast corner of Section 18, the northeast corner of Section 19, the southwest corner of Section 17, and the northwest corner of Section 20, and also being the south corner of a 28.979 acre tract as conveyed to Danielle Leia Jones in Official Record Volume 53, Page 2825, also being the southwest corner of a 36.833 acre tract as conveyed to Danielle Leia Jones in Volume 328 Page 897;

Thence easterly along the southerly line of Section 17 and the northerly line of Section 20 and the southerly line of the said 36.833 acre tract, South 85°07'25" East, 1310.63 feet, to a 5/8" rebar found marking the southeast corner of the said 36.833 acre tract;

Thence northeasterly along the easterly line of the said 36.833 acre tract, and the easterly line of a 28.572 acre tract as conveyed to Michael & Jennifer Wright in Official Record Volume 145, Page 2542, North 4°44'17" East, 2385.66 feet to a 5/8" rebar found marking the southwest corner of a 40.341 acre tract as conveyed to Daniel R. & Naomi L. Rapier in Official Record Volume 40, Page 1371;

Thence easterly along the southerly line of the said 40.341 acre tract the following five (5) courses and distances;

South 78°26'24" East, 388.05 feet, to an iron pin set;
South 32°30'01" East, 228.75 feet, to a 5/8" rebar found;
South 75°12'07" East, 186.08 feet, to a 5/8" rebar found;
North 82°10'47" East, 179.97 feet, to a 5/8" rebar found; and
North 80°48'25" East, 448.02 feet, to an iron pin set marking the southeast corner of the said 40.341 acre tract;

Thence northerly along the easterly line of the said 40.341 acre tract, North 4°47'57" East, 959.06 feet, to a point in the centerline of Luther Jones Road (T. R. 152);

Thence southeasterly along the centerline of Luther Jones Road (T. R. 152) the following twenty-two (22) courses and distances;

South 6°49'01" East, 50.79 feet, to a point;
South 15°15'36" East, 51.10 feet, to a point;
South 31°22'37" East, 57.10 feet, to a point;
South 45°16'34" East, 56.91 feet, to a point;
South 67°24'08" East, 1159.52 feet, to a point;
South 58°33'02" East, 87.28 feet, to a point;
South 13°00'03" East, 86.85 feet, to a point;
South 10°32'15" West, 73.37 feet, to a point;

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South 1°35'00" East, 92.51 feet, to a point;
South 33°57'18" East, 110.68 feet, to a point;
South 44°48'00" East, 239.30 feet, to a point;
South 41°33'59" East, 467.69 feet, to a point;
South 49°47'55" East, 643.43 feet, to a point;
South 30°52'32" East, 187.21 feet, to a point;
South 29°02'26" East, 198.25 feet, to a point;
South 21°39'27" East, 90.42 feet, to a point;
South 20°18'22" East, 310.07 feet, to a point;
South 18°14'54" East, 152.79 feet, to a point;
South 14°17'25" East, 102.61 feet, to a point;
South 6°50'53" East, 372.05 feet, to a point;
South 6°37'13" East, 88.21 feet, to a point;
South 5°39'13" East, 40.55 feet, to a point; and

South 44°26'16" East, 36.25 feet, to a point on the northerly line of a 1.201 acre tract as conveyed to Jeffrey S. Watson Trustee of the Jeffrey S. Watson Revocable Trust Dated June 17, 1998, in Official Record Volume 53, Page 2395;

Thence westerly along the northerly line of the said 1.201 acre tract, North 88°08'34" West, 384.23 feet, to a 5/8" rebar found marking the northerly line of a 37.226 acre tract as conveyed to Jeffrey S. Watson Trustee of the Jeffrey S. Watson Revocable Trust Dated June 17, 1998, in Official Record Volume 53, Page 2395;

Thence southerly along the westerly line of the tracts conveyed to Jeffrey S. Watson Trustee of the Jeffrey S. Watson Revocable Trust Dated June 17, 1998 in Official Record Volume 23, Page 1590, the following twenty four (24) courses and distances;

South 80°37'39" West, 169.69 feet, to a 5/8" rebar found with cap "DEPUE";
South 68°21'01" West, 237.21 feet, to a 5/8" rebar found;
South 36°05'33" West, 254.88 feet, to an iron pin set;
South 21°20'54" West, 521.64 feet, to a 5/8" rebar found;
South 43°20'08" West, 448.13 feet, to a 5/8" rebar found;
South 11°15'05" West, 134.28 feet, to a 5/8" rebar found with cap "CRAYCRAFT";
South 16°31'46" East, 297.43 feet, to a 5/8" rebar found with cap "CRAYCRAFT";
South 1°04'02" West, 173.49 feet, to a 5/8" rebar found with cap "CRAYCRAFT";
South 45°21'20" West, 144.68 feet, to a 5/8" rebar found with cap "CRAYCRAFT";
South 84°38'17" West, 208.90 feet, to a 5/8" rebar found;
South 68°51'43" West, 204.98 feet, to a 5/8" rebar found with cap "CRAYCRAFT";
South 47°10'50" West, 492.25 feet, to an iron pin set;
South 60°00'34" West, 514.70 feet, to a 5/8" rebar found with cap "DEPUE";
South 58°18'38" West, 133.28 feet, to the point of curvature of a curve to the left;

Along the curve to the left, (Radius = 445.00 feet, Delta = 25°17'00", L=196.37 feet), a chord bearing and distance of South 48°20'18" West, 194.78 feet to an iron pin set at the point of tangency;

South 35°41'47" West, 205.13 feet, to an iron pin set at the point of curvature of a curve to the left;

Along the curve to the left, (Radius = 580.00 feet, Delta = 42°35'56", L=431.22 feet), a chord bearing and distance of South 14°23'50" West, 421.36 feet to an iron pin set at the point of tangency;

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EXHIBIT "A"
Legal Description

South 6°54'07" East, 233.61 feet, to an iron pin set;
South 2°56'55" East, 644.02 feet, to an iron pin set;

South 7°57'59" East, 362.25 feet, to an iron pin set at the point of curvature of a curve to the left;
Along the curve to the left, (Radius = 575.00 feet, Delta = 21°35'24", L=216.67 feet), a chord bearing and distance of South 18°45'41" East, 215.39 feet to an iron pin set at the point of tangency;

South 29°33'23" East, 182.58 feet, to an iron pin set at the point of curvature of a curve to the right;

Along the curve to the right, (Radius = 375.00 feet, Delta = 29°22'07", L=192.22 feet), a chord bearing and distance of South 14°52'18" East, 190.12 feet to an iron pin set at the point of tangency;

South 0°11'13" East, 138.23 feet, to an iron pin set on the northerly line of a 28.62 acre tract as conveyed to Cyrus Horsley in Official Record Volume 144, Page 2870, and on the northerly line of Section 29, and the southerly line of Section 20;

Thence westerly along the northerly line of the said 28.62 acre tract, the northerly line of Section 29, the southerly line of Section 20, North 85°24'53" West, 624.41 feet, to an iron pin set at the northwest corner of the said 28.62 acre tract;

Thence southerly along the westerly line of the said 28.62 acre tract, South 4°18'49" West, 28.64 feet, to a ODOT Concrete Monument found on the northerly Limited Access Right-of-Way of U.S 35;

Thence northwesterly along the Limited Access Right-of-Way of U.S. 35 the following three (3) courses and distances;

North 38°00'44" West, passing a 5/8" rebar found with cap "CRAYCRAFT" at 1238.58 feet, 1240.75 feet, to a ODOT Concrete Monument found on the northerly Limited Access Right-of-Way of U.S 35;

North 32°36'55" West, 637.34 feet, to a ODOT Concrete Monument found on the northerly Limited Access Right-of-Way of U.S 35; and…

North 48°41'04" West, 1750.44 feet, to a ODOT Concrete Monument found on the northerly Limited Access Right-of-Way of U.S 35, and also being the southeast corner of a 20 acre tract as conveyed to Joseph Paul & Crystal Lynn Finch in Official Record Volume 110, Page 215;

Thence with the easterly and northerly lines of the said 20 acre tract the following three (3) courses and distances;

North 4°35'20" East, passing a 5/8" rebar found with cap 'CRAYCRAFT" at 551.30 feet, 763.74 feet to a 5/8" rebar found;

North 40°25'56" West, passing a 5/8" rebar found at 316.69 feet, 632.97 feet to a 5/8" rebar found with cap "CRAYCRAFT"; and…

North 85°00'03" West, 1065.46 feet to an iron pin set on the northeasterly right-of-way of U.S. 35 and State Route 327;

Thence northerly along the northeasterly right-of-way of U.S. 35 and State Route 327 the following seven (7) courses and distances;
North 27°09'34" West, 35.46 feet to an iron pin set;
North 48°41'04" West, 176.96 feet to an iron pin set;
North 14°04'54" West, 231.67 feet to an iron pin set;
North 8°09'16" East, 120.14 feet to an iron pin set;
North 23°13'56" East, 211.71 feet to an iron pin set;

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North 16°17'56" East, 91.14 feet to an iron pin set; and …
North 64°13'44" West, 25.00 feet to a point in the centerline of State Route 327;

Thence northerly along the centerline of State Route 327, North 25°16'52" East, 410.03 feet to the southwest corner of a 5.538 acre tract as conveyed to John P. & Penny L. Rupert in Official Record Volume 13, Page 786;

Thence around said Rupert tract the following three (3) courses and distance;
South 69°33'37" East, passing a 5/8" rebar found at 33.95 feet, 1169.19 feet to an iron pin set;
North 25°04'34" East, 300.00 feet to a 5/8" rebar found with cap "THORTON"; and
North 69°33'37" West, passing an iron pin set at 1138.11 feet, 1168.11 feet to the centerline of State Route 327;

Thence northerly along the centerline of State Route 327, North 25°16'52" East, 310.71 feet to a point at the southwest corner of a 28.979 acre tract as conveyed to Danielle Leia Jones in Official Record Volume 53, Page 2825, and being on the southerly line of Section 18, and the northerly line of Section 19;

Thence easterly along the southerly line of the said 28.979 acre tract, and the southerly line of Section 18, and the northerly line of Section 19, South 85°05'58" East, passing a 5/8" rebar found with cap "THORTON" at 30.00 feet, 1312.53 feet to the Point of Beginning and containing 640.779 acres, of which, more or less, according to a survey made by Hull & Associates, Inc. in September of 2021.

The above described 640.779 acre parcel consist of either all or the remainder of the following parcels, A010020018300 (27.247 acres), A010020017800 (5.118 acres), A010020017700 (54.821 acres), A010020017500 (40.967 acres), A010020017600 (20.000 acres), A010020018000 (9.213 acres), A010020017200 (5.655 acres), A010020017400 (11.374 acres), A010030025201 (21.925 acres), A010030025100 (41.453 acres), A010030025301(40.678 acres), A010030008800 (40.182 acres), A010030008900 (39.724 acres), A010030008700 (15.051 acres), A010030013004 (2.283 acres), A010030025400 (40.162 acres), A010030025300 (40.563 acres), A010030023102 (35.537 acres), A010030013600 (73.629 acres), A010030023001(19.985 acres), A010030014002 (8.793 acres), A010030014100 (0.022 acres), A010020018201 (40.435 acres), and A010030023201 (5.962 acres).

The bearings in the above description are based on the Ohio State Plane Coordinates System, South Zone, NAD83.

All iron pins set are 5/8" in diameter rebar by 30" in length with red identification caps marked "HULL, PS 8283"or HULL, P.S. 7830".

For Informational Purposes Only:
PPN: A01-003-00-088-01

PARCEL 2:
Situated in the State of Ohio, County of Jackson, Township of Bloomfield, being a part of Sections 9, 15, 16, and 17, Township 8N, Range 17W, Congress Lands East of the Scioto River, being part of the Stephen P. & Michelle D. Sherman Revocable Trust Dated June 7, 2016, Parcel Numbers A010020014302, A010020014401, A010020014700, A010020016600, A010020016302, A010020016301, A010010009701, A010020016500, A010020016900, A010020017000, A010020017203, A010030017100, A010020017300, A010020017900, A010020016700, A010020016601), as conveyed to Stephen P. & Michelle D. Sherman Trustees For The Stephen P. & Michelle D. Sherman Revocable Trust Dated June 7, 2016, as recorded in Official Record Volume 122, Page 571, all references being to those of record in the Recorder's Office, Jackson County, Ohio, said 1080.776 acre lease area being more particularly bounded and described as follows:

Beginning at a ¼" rebar found marking the southeast corner of Section 8, the northeast corner of Section 17, the

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southwest corner of Section 9, and the northwest corner of Section 16, and also being the northeast corner of a 47.997 acre tract as conveyed to Kenneth V. & Susan J. Taylor in Official Record Volume 128, Page 671, also being the southeast corner of a 32.7 acre tract as conveyed to Donald G. Green Jr., in Volume 332, Page 228;

Thence northerly along the easterly line of Section 8 and the westerly line of Section 9, the easterly line of the said 32.7 acre tract and the easterly line of a 3.3 acre tract as conveyed to William C. Harshbarger in Volume 294, Page 369, North 4°50'25" East, 2039.04 feet, passing a 5/8" rebar found with cap "DEPUE" at 2009.95 feet, to the centerline of Keystone Furnace Road (C. R. 9);

Thence northeasterly along the centerline of Keystone Furnace Road (C. R. 9), North 46°05'27" East, 629.34 feet to a point on the westerly line of a 20.00 acre tract as conveyed to Jeffrey McCarty in Official Record Volume 45, Page 652;

Thence around the said 20.00 acre tract the following three (3) courses and distances;
South 27°11'15" East 598.98 feet, passing a 5/8" rebar found at 29.75 feet, to an iron pin set;
North 82°33'16" East 614.51 feet, to a 5/8" rebar found; and …
North 8°27'58" East 592.68 feet, passing a 5/8" rebar found at 562.55 feet, to a point on the centerline of Keystone Furnace Road;

Thence easterly along the centerline of Keystone Furnace Road (C. R. 9) the following ten (10) courses and distances;
South 85°42'32" East, 142.45 feet, to a point;
South 88°46'27" East, 223.34 feet, to a point;
South 64°59'46" East, 156.02 feet, to a point;
South 36°02'37" East, 212.82 feet, to a point;
South 50°06'00" East, 220.38 feet, to a point;
South 59°24'04" East, 60.54 feet, to a point;
South 68°40'51" East, 129.04 feet, to a point;
South 74°11'28" East, 89.77 feet, to a point;
South 83°45'38" East, 80.40 feet, to a point; and…
North 89°05'44" East, 131.30 feet, to a point on the westerly line of a 115 ace tract as conveyed to Donald D. Diaz in Official Record Volume 37, Page 2653;

Thence southerly along the westerly line of the said 115 acre tract, South 4°48'33" West, 2295.91 feet. passing a 5/8" rebar found at 30.00 feet, to a 5/8" rebar found with cap" DEPUE" on the north line of Section 16 and the south line of Section 9 and also being the southwest corner of the said 115 acre tract;

Thence easterly along the south line of Sections 9 and the north line of Sections 16, South 85°44'51" East, 621.19 feet to a 5/8" rebar found with cap" DEPUE";

Thence easterly along the south line of Sections 9 and 10, and the north line of Sections 16 and 15, South 85°21'53" East, 4752.10 feet, to a 5/8" rebar found at the southeast corner of a 1 acre tract as conveyed to Michael Wesley Morgan in Official Record Volume 120, Page 1088, and the northwest corner of a 38.782 acre tract as conveyed to Ohio Valley Conservation Coalition in Volume 99, Page 2087;

Thence southerly along the westerly line of the said 38.782 acre tract, and the westerly line of a 45.04 acre tract as conveyed to JEML Enterprises in Official Record Volume 214, Page 489, and the westerly line of a 7.0 acre tract as conveyed to Marilyn V. Graham in Official Record Volume 12, Page 597, South 4°38'32" West, 551.68 feet to a point;

Thence, leaving said westerly line of the said 38.782 acre tract, creating a new line through the parcel the following Sixteen (16) courses and distances;

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North 84°12'30" West, 469.83 feet to a point;
South 17°46'14" West, 333.06 feet to a point;
South 69°38'01" West, 321.20 feet to a point;
South 42°12'28" West, 112.22 feet to a point;
South 09°59'51" West, 132.78 feet to a point;
South 05°10'13" West, 132.30 feet to a point;
South 12°36'23" East, 320.92 feet to a point;
South 63°33'26" East, 729.36 feet to a point;
South 01°40'34" West, 412.17 feet to a point;
South 64°38'32" West, 117.65 feet to a point;
South 04°45'24" West, 363.62 feet to a point;
South 55°21'28" East, 78.03 feet to a point;
South 02°33'15" West, 275.92 feet to a point;
South 21°37'09" West, 55.39 feet to a point;
South 66°37'09" West, of 597.65 feet to a point;
South 17°11'07" East a distance of 211.86' to the northeast corner of a 35.26 acre tract as conveyed to Deborah K. Lovejoy in Official Record Volume 113, Page 1292;

Thence around said 35.26 acre tract the following three (3) courses and distances;
North 81°04'18" West, passing a 5/8" rebar found at 32.73 feet, 724.82 feet, to a 5/8" rebar found;
South 81°19'25" West, 1351.82 feet, to an iron pin set; and …
South 4°19'38" West, passing a 5/8" rebar found at 834.93 feet, 862.46 feet, to a point in the centerline of Luther Jones Road (T. R. 152);

Thence westerly and northerly along the centerline of Luther Jones Road (T. R. 152) the following Seventeen (17) courses and distances;
South 64°06'51" West, 102.23 feet, to a point;
South 56°12'37" West, 170.84 feet, to a point;
South 64°50'46" West, 339.99 feet, to a point;
South 54°22'56" West, 231.66 feet, to a point;
South 70°27'41" West, 78.24 feet, to a point;
South 89°27'13" West, 75.17 feet, to a point;
North 83°22'37" West, 190.28 feet, to a point;
North 81°08'57" West, 175.41 feet, to a point;
North 72°11'51" West, 144.98 feet, to a point;
North 71°49'43" West, 98.63 feet, to a point;
North 62°35'24" West, 204.20 feet, to a point;
North 53°33'39" West, 260.50 feet, to a point;
North 48°22'16" West, 150.98 feet, to a point;
North 69°43'08" West, 78.28 feet, to a point;
North 83°55'48" West, 118.30 feet, to a point;
North 76°05'55" West, 215.99 feet, to a point; and …
North 79°58'59" West, 348.79 feet, to a point;

Thence southerly leaving Luther Jones Road (T. R. 152), South 4°39'43" West, 27.12 feet, to a 5/8" rebar found with cap "DEPUE" marking the northeast corner of a 17.582 acre tract as conveyed to Jerden Properties LLC., in Official Record Volume 146, Page 815;

Thence along the said 17.582 acre tract the following two (2) courses and distances;

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EXHIBIT "A"
Legal Description

North 85°32'05" West, 402.32 feet, to an iron pin set; and …
North 7°09'31" West, 58.85 feet, to a point in the centerline of Luther Jones Road (T. R. 152);

Thence with the centerline of Luther Jones Road (T. R. 152) the following thirty (30) courses and distances;
North 79°41'00" West, 180.88 feet, to a point;
North 88°55'36" West, 90.01 feet, to a point;
South 81°59'53" West, 95.50 feet, to a point;
South 69°27'14" West, 152.60 feet, to a point;
South 62°38'50" West, 658.47 feet, to a point;
South 77°23'17" West, 688.32 feet, to a point;
North 89°44'47" West, 130.19 feet, to a point;
North 44°26'16" West, 36.25 feet, to a point;
North 5°39'13" West, 40.55 feet, to a point;
North 6°37'13" West, 88.21 feet, to a point;
North 6°50'53" West, 372.05 feet, to a point;
North 14°17'25" West, 102.61 feet, to a point;
North 18°14'54" West, 152.79 feet, to a point;
North 20°18'22" West, 310.07 feet, to a point;
North 21°39'27" West, 90.42 feet, to a point;
North 29°02'26" West, 198.25 feet, to a point;
North 30°52'32" West, 187.21 feet, to a point;
North 49°47'55" West, 643.43 feet, to a point;
North 41°33'59" West, 467.69 feet, to a point;
North 44°48'00" West, 239.30 feet, to a point;
North 33°57'18" West, 110.68 feet, to a point;
North 1°35'00" West, 92.51 feet, to a point;
North 10°32'15" East, 73.37 feet, to a point;
North 13°00'03" West, 86.85 feet, to a point;
North 58°33'02" West, 87.28 feet, to a point;
North 67°24'08" West, 1159.52 feet, to a point;
North 45°16'34" West, 56.91 feet, to a point;
North 31°22'37" West, 57.10 feet, to a point;
North 15°15'36" West, 51.10 feet, to a point;
North 6°49'01" West, 50.79 feet, to a point;

North 4°47'57" East, 1261.70 feet, to a point at the southwest corner of a 1.02 acre tract as conveyed to Larry & Lisa Taylor in Official Record Volume 211, Page 72;

Thence leaving the centerline of Luther Jones Road (T. R. 152) with the southerly line of the said 1.02 tract, the southerly line of a 4.982 acre tract as conveyed to Larry E. & Lisa A. Taylor in Volume 335, Page 798, the southerly line of a 47.997 acre tract as conveyed to Kenneth V. & Susan J. Taylor in Official Record Volume 128, Page 671, South 86°21'17" East, passing ½" rebar found at 11.63 feet, 5/8" pipe found at 333.62 feet, 2618.70 feet, to an iron pin set at the southeast corner of the said 47.997 acre tract, and on the easterly line of Section 17, and the westerly line of Section 16;

Thence northerly along the easterly line of Section 17 and the westerly line of Section 16, North 4°16'29" East, 844.90 feet to the Point of Beginning and containing 1080.776 acres, of which, more or less, according to a survey made by Hull & Associates, Inc. in September of 2021.

The above described 1080.776 acre parcel consist of either all or the remainder of the following parcels, A010020014302

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(47.925 acres), A010020014401(15.734 acres), A010020014700 (80.292 acres), A010020016600 (81.793 acres), A010020016302 (19.093 acres), A010020016301 (223.110 acres), A010010009701 (190.733 acres), A010020016500 (69.697 acres), A010020016900 (47.977 acres), A010020017000 (21.371 acres), A010020017203 (66.480 acres), A010030017100 (2.115 acres), A010020017300 (27.620 acres), A010020017900 (103.834 acres), A010020016700 (41.468 acres), and A010020016601(41.534 acres).

The bearings in the above description are based on the Ohio State Plane Coordinates System, South Zone, NAD83. by

All iron pins set are 5/8" in diameter rebar by 30" in length with red identification caps marked "HULL, PS 8283"or HULL, P.S. 7830".

For Informational Purposes Only:
Part of PPN: A01-001-00-097-01

PARCEL 3:
Situated in the State of Ohio, County of Jackson, Township of Bloomfield, being a part of Sections 20, and 21, Township 8N, Range 17W, Congress Lands East of the Scioto River, and being part of, Parcel Numbers A010030025001, A010020017202, A010030023300, A010030023400, A010030025200, A010030023200, A010030023101, A010030023000, A010030023100, A010030017700, A010030019000,A010030019400, A010030017800, A010030022800, as conveyed to Jeffrey S. Watson Trustee of the Jeffrey S. Watson Revocable Trust Dated June 17, 1998 as recorded in Official Record Volume 23, Page 1590, Official Record Volume 53, Page 2395, Official Record Volume 108, Page 2352, Official Record Volume 130, Page 86, all references being to those of record in the Recorder's Office, Jackson County, Ohio, said 338.925 acre parcel being more particularly bounded and described as follows:

Beginning at a 5/8" rebar found marking the southeast corner of Section 17, the northeast corner of Section 20, the southwest corner of Section 16, and the northwest corner of Section 21;

Thence easterly along the northerly line of a 1.201 acre tract as conveyed to Jeffrey S. Watson Trustee of the Jeffrey S. Watson Revocable Trust Dated June 17 1998, in Official Record Volume 53, Page 2395, South 88°08'34" East, 384.23 feet to a point in the centerline of Luther Jones Road (T. R. 152, 30' ROW);

Thence with said 1.201 acre parcel and the centerline of Luther Jones Road (T. R. 152), South 89°44'47" East, 130.19 feet to a point;

Thence continuing with the 1.201 acre parcel and Luther Jones Road (T. R. 152), North 77°23'17" East, 408.83 feet to a point, being the northwest corner of a 0.893 acre tract conveyed to Jerden Properties LLC., in Official Record Volume 146, Page 815;

Thence leaving Luther Jones Road (T.R. 152) southeasterly along the westerly line of the said 0.893 acre tract and the 0.777 acre tract conveyed to Jerden Properties LLC., in Official Record Volume 146, Page 815, South 41°54'44" East, passing iron pins set at 30.94 feet and 212.93 feet, 592.65 feet to an iron pin set on the westerly line of a 40 acre tract as conveyed to Jerden Properties LLC., in Official Record Volume 146, Page 815;

Thence southerly along the westerly line of the said 40 acre tract, South 3°28'37" West, 591.42 feet, to an iron pin set at the northeast corner of a 1.997 acre tract as conveyed to Buckeye Rural Electric in Official Record Volume 47, Page 1219;

Thence around the said 1.997 acre tract the following three (3) courses and distances;

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Legal Description

North 86°22'43" West, 200.00 feet, to an iron pin set;
South 3°28'37" West, 435.00 feet, to an iron pin set; and
South 86°22'43" East, 200.00 feet, to an iron pin set marking the southeast corner of the said 1.997 acre tract;

Thence southerly along the westerly line of the said 40 acre tract, South 3°28'37" West, 54.58 feet, to a 5/8" rebar found with cap "DEPUE" at the northwest corner of a 41.161 acre tract as conveyed to Gary R. & Kimberly L. Allen in Official Record Volume 108, Page 2219;

Thence southerly along the westerly line of the said 41.161 acre tract, South 6°10'19" West, 1333.11 feet, to an iron pin set at the southwest corner of the said 41.161 acre and on the northeast corner of this 5.00 acre parcel (PN: A010030023500) conveyed Todd L. Oglesbee in Official Record 78, Page 2394, Thence, with the north line of said 5.00 acre tract, North 85°34'31" West, 1303.53 feet to an iron pin set on the northwest corner of said 5.00 acre parcel;

Thence with the west line of said 5.00 acre parcel, South 04°24'52" West, 166.99 feet to an iron pin set at the southwest corner of said 5.00 acre parcel;

Thence with the south line said 5.00 acre parcel, South 85°34'31" East, 1304.86 feet, to an iron pin set on the southeast corner of said 5.00 acre parcel;

Thence with the east line of said 5.00 acre parcel, North 3°57'37" East, 167.00 feet to the iron pin set at the southwest corner of the said 41.161 acre tract;

Thence easterly along the southerly line of the said 41.161 acre tract, South 85°34'33" East, 313.75 feet, to an iron pin set at the northwest corner of a 22.927 acre tract as conveyed to Gary R. & Kimberly L. Allen in Official Record Volume 108, Page 2213;

Thence southeasterly along the southwesterly line of the said 22.927 acre tract the following three (3) courses and distances;
South 42°49'00" East, 286.31 feet, to an iron pin set;
South 39°03'40" East, 273.09 feet, to an iron pin set;
South 41°30'18" East, passing an iron pin set at 715.35 feet, 745.35 feet to a point in the centerline of Dixon Run Road (C. R. 41, 60' ROW);

Thence southwesterly along the centerline of Dixon Run Road the following two (2) courses and distances;
South 44°47'57" West, 123.05 feet, to a point;
South 50°58'19" West, 95.15 feet, to a point at the northeast corner of a 8.00 acre tract as conveyed to Travis Oglesbee in Official Record Volume 97, Page 2694;

Thence westerly and southerly along the said 8.00 acre tract the following two (2) courses and distances;

North 76°57'17" West, passing an iron pin set at 30.00 feet, 1103.77 feet, to a 5/8" rebar found with cap "MELISSA MILLER", South 3°57'39" West, 441.15 feet, to a 5/8" rebar found with cap "MELISSA MILLER", marking the northeast corner of a 38.50 acre tract as conveyed to LL Chapman Properties LLC., in Official Record Volume 144, Page 2751;

Thence westerly and southerly along the said 38.50 acre tract the following two (2) courses and distances;

North 85°53'48" West, 1314.22 feet, to an iron pin set;
South 4°24'52" West, 1353.19 feet, to a 5/8" rebar found marking the northeast corner of a 56.48 acre tract as conveyed to Cyrus Horsley in Official Record Volume 144, Page 2870;

This page is only a part of a 2021 ALTA® Commitment for Title Insurance issued by Commonwealth Land Title Insurance Company. This Commitment is not valid without the Notice; the Commitment to Issue Policy; the Commitment Conditions; Schedule A; Schedule B, Part I-Requirements; Schedule B, Part II-Exceptions; and a counter-signature by the Company or its issuing agent that may be in electronic form.

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EXHIBIT "A"
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Thence westerly along the northerly line of the said 56.4799 acre tract and the northerly line of a 28.62 acre tract as conveyed to Cyrus Horsley in Official Record Volume 144, Page 2870, North 85°24'53" West, 2051.43 feet, to an iron pin set at the southeast corner of a 19.849 acre tract as conveyed to Daniel R. & Naomi L. Rapier in Official Record Volume 111, Page 191;

Thence northerly along the easterly line of the said Rapier tracts the following twenty four (24) courses and distances;
North 0°11'13" West, 138.23 feet, to an iron pin set at the point of curvature of a curve to the left;
Along the curve to the left, (Radius = 375.00 feet, Delta = 29°22'07", L=192.22 feet), a chord bearing and distance of North 14°52'18" West, 190.12 feet to an iron pin set at the point of tangency;
North 29°33'23" West, 182.58 feet, to an iron pin set at the point of curvature of a curve to the right;
Along the curve to the right, (Radius = 575.00 feet, Delta = 21°35'24", L=216.67 feet), a chord bearing and distance of North 18°45'41" West, 215.39 feet to an iron pin set at the point of tangency;
North 7°57'59" West, 362.25 feet, to an iron pin set;
North 2°56'55" West, 644.02 feet, to an iron pin set;
North 6°54'07" West, 233.61 feet, to an iron pin set at the point of curvature of a curve to the right;
Along the curve to the right, (Radius = 580.00 feet, Delta = 42°35'56", L=431.22 feet), a chord bearing and distance of North 14°23'50" East, 421.36 feet to an iron pin set at the point of tangency;
North 35°41'47" East, 205.13 feet, to an iron pin set at the point of curvature of a curve to the right;
Along the curve to the right, (Radius = 445.00 feet, Delta = 25°17'00", L=196.37 feet), a chord bearing and distance of North 48°20'18" East, 194.78 feet to an iron pin set at the point of tangency;
North 58°18'38" East, 133.28 feet, to a 5/8" rebar found with cap 'DEPUE";
North 60°00'34" East, 514.70 feet, to an iron pin set;
North 47°10'50" East, 492.25 feet, to a 5/8" rebar found with cap "CRAYCRAFT";
North 68°51'43" East, 204.98 feet, to a 5/8" rebar found;
North 84°38'17" East, 208.90 feet, to a 5/8" rebar found with cap "CRAYCRAFT";
North 45°21'20" East, 144.68 feet, to a 5/8" rebar found with cap "CRAYCRAFT";
North 1°04'02" East, 173.49 feet, to a 5/8" rebar found with cap "CRAYCRAFT";
North 16°31'46" West, 297.43 feet, to a 5/8" rebar found with cap "CRAYCRAFT";
North 11°15'05" East, 134.28 feet, to a 5/8" rebar found;
North 43°20'08" East, 448.13 feet, to a 5/8" rebar found;
North 21°20'54" East, 521.64 feet, to an iron pin set;
North 36°05'33" East, 254.88 feet, to a 5/8" rebar found;

North 68°21'01" East, 237.21 feet, to a 5/8" rebar found with cap "DEPUE"; and North 80°37'39" East, 169.69 feet to the Point of Beginning, containing 338.925 acres, more or less, according to a survey made by Hull & Associates, Inc. in September of 2021, consisting of 1.175 acres, more or less, in Section 16, 133.021 acres, more or less, in Section 20, and 204.729 acres in Section 21.

The above described 338.925 acre parcel consist of either all or the remainder of the following parcels, A010030023000 (62.417 acres), A010020017202 (1.175 acres), A010030025001 (38.866 acres), A010030023300 (6.313 acres), A010030023400 (40.150 acres), A010030025200 (19.584 acres), A010030023200 (27.945 acres), A010030023101 (4.966 acres), A010030023100 (41.590 acres), A010030017700 (22.003 acres), A010030019000 (13.547 acres), A010030019400 (18.457 acres), A010030017800 (40.412 acres), and A010030022800 (1.500 acres). The bearings in the above description are based on the Ohio State Plane Coordinates System, South Zone, NAD83.

All iron pins set are 5/8" in diameter rebar by 30" in length with red identification caps marked "HULL, PS 8283" or HULL, P.S. 7830".

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EXHIBIT "A"

Legal Description

For Informational Purposes Only:
PPN: A01-003-00-230-00

This page is only a part of a 2021 ALTA® Commitment for Title Insurance issued by Commonwealth Land Title Insurance Company. This Commitment is not valid without the Notice; the Commitment to Issue Policy; the Commitment Conditions; Schedule A; Schedule B, Part I-Requirements; Schedule B, Part II-Exceptions; and a counter-signature by the Company or its issuing agent that may be in electronic form.

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SCHEDULE B, PART I - Requirements

All of the following Requirements must be met:

1. The Proposed Insured must notify the Company in writing of the name of any party not referred to in this Commitment who will obtain an interest in the Land or who will make a loan on the Land. The Company may then make additional Requirements or Exceptions.

2. Pay the agreed amount for the estate or interest to be insured.

3. Pay the premiums, fees, and charges for the Policy to the Company.

4. Documents satisfactory to the Company that convey the Title or create the Mortgage to be insured, or both, must be properly authorized, executed, delivered, and recorded in the Public Records.

5. Receipt of proof of corporate status, or limited liability company status, or partnership status, and all agreement(s), and necessary consents, authorizations, resolutions, notices and corporate/partnership actions have been conducted, given or properly waived relating to the transaction to be insured, including entity resolution(s) authorizing and designating appropriate officers/members/or partners to execute any and all necessary documents.

6. Completion of real property conveyance fee statement, if transferring subject premises.

7. The Company should be furnished an Owner's/Seller's Affidavit.

   The Company reserves the right to add additional items or make further requirements after review of the requested Affidavit.

8. The Company should be furnished a letter from Planning and Zoning and/or a surveyor certification stating there are no zoning violations, if a zoning endorsement is requested.

9. Payment of taxes, charges, and assessments levied and assessed against the Land, which are due and payable.

10. The actual value of the estate or interest to be insured must be disclosed to the Company and, subject to approval by the Company, shown on this Commitment as the liability of the policy(ies) to be issued. Until the liability of the policy(ies) to be issued shall be determined and shown on the Commitment, the total liability of the Company under this Commitment shall not exceed $100,000.00.

11. For each policy to be issued as identified in Schedule A, Item 2; the Company shall not be liable under this Commitment until it receives a designation for a Proposed Insured, acceptable to the Company. The Company may amend this commitment to add, among other things, additional exceptions or requirements after the designation of the Proposed Insured.

12. The Company may make additional requirements and/or exceptions upon further ascertaining details of the transaction and/or its review of the documents creating the interest or estate to be insured.

13. Notice: If the Company will be serving as the closing agent, closing funds provided in excess of $10,000.00 must be good funds in compliance with Ohio Revised Code Section 1349.21. In order to comply and close your

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SCHEDULE B, PART I - Requirements
(continued)

transaction timely, we require all closing funds be tendered to our office by wire transfer, so that all funds are collected in the escrow account and available at the time of closing.

14. The search did not disclose any open mortgages or deeds of trust of record, therefore the Company reserves the right to require further evidence to confirm that the property is unencumbered, and further reserves the right to make additional requirements or add additional items or exceptions upon receipt of the requested evidence.

15. INTENTIONALLY DELETED (further underwriting). Release or Compliance with requirements the Company deems necessary arising out of Memorandum of Offer to Purchase and Contract by and between The Steven P. Sherman and Michelle D. Sherman Revocable Trust, Steven P. Sherman as Trustee (seller) and VL Group A, LLC (buyer), filed for record September 24, 2021 in OR Book 159, Page 421 of the Jackson County, Ohio Records. (PARCEL 2)

16. Any documents being executed in conjunction with this transaction must be signed in the presence of an authorized Company employee, an authorized employee of a Company agent, an authorized employee of the insured lender, or by using Bancserv or other Company-approved third-party service. If the above requirement cannot be met, please call the Company at the number provided in this report.

Notice: Please be aware that due to the conflict between federal and state laws concerning the cultivation, distribution, manufacture or sale of marijuana, the Company is not able to close or insure any transaction involving Land that is associated with these activities.

Notice: Please be aware that the Company will not insure a prohibited person as defined under Ohio Revised Code Section 5301.256 as to the ownership in agricultural land or land in proximity to a military installation as defined under the referenced code section which is an excluded matter under Exclusion 1 of the Exclusions from Coverage of any policy issued as an ordinance or governmental regulation that restricts, regulates, prohibits, or relates to the occupancy, use, or enjoyment of Land.

END OF SCHEDULE B, PART I

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SCHEDULE B, PART II - Exceptions

Some historical land records contain Discriminatory Covenants that are illegal and unenforceable by law. This Commitment and the Policy treat any Discriminatory Covenant in a document referenced in Schedule B as if each Discriminatory Covenant is redacted, repudiated, removed, and not republished or recirculated. Only the remaining provisions of the document will be excepted from coverage.

The Policy will not insure against loss or damage resulting from the terms and conditions of any lease or easement identified in Schedule A, and will include the following Exceptions unless cleared to the satisfaction of the Company:

1. Any defect, lien, encumbrance, adverse claim, or other matter that appears for the first time in the Public Records or is created, attaches, or is disclosed between the Commitment Date and the date on which all of the Schedule B, Part I—Requirements are met.

2. Taxes or special assessments which are not shown as existing liens by the Public Records.

3. Rights or claims of parties in possession not shown by the Public Records.

4. INTENTIONALLY DELETED BY FINAL AND SIGNED ALTA/NSPS Land Title Survey by Bryan D. Butler PS 8904 of Vendantas dated April 1, 2026, last revised _____, 2026 and known as Project No. 17242 ("SURVEY"). Any encroachment, encumbrance, violation, variation, or adverse circumstance affecting the title that would be disclosed by an accurate and complete land survey of the Land. The term "encroachment" includes encroachments of existing improvements located on the Land onto adjoining land, and encroachments onto the Land of existing improvements located on adjoining land.

   In order to delete the survey exception shown above, a satisfactory survey of the subject Land, which complies with the minimum standards for land surveys made for title insurance purposes, is to be furnished to the Company.
   The Company reserves the right to add additional items as disclosed by the survey, or make further requirements after review of the requested documentation.

5. Any lien, or right to a lien, for services, labor, or material heretofore or hereafter furnished, imposed by law and not shown by the Public Records.

6. Oil and gas leases, pipeline agreements or any other instruments related to the production or sale of oil and gas which may arise subsequent to the date of the Policy, pursuant to Ohio Revised Code Section 1509.31(D).

7. TO BE DELETED BY APPROVED TITLE AFFIDAVIT AND SURVEY. Easements or claims of easements not shown by the Public Records.

8. Rights of public to use those portions of the Land lying within the confines of Luther Jones Road, Dixon Run Road, Keystone Furnace Road, and St. Rt 327.

9. Any lease, grant, exception or reservation of minerals or mineral rights together with any rights appurtenant thereto.

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SCHEDULE B, PART II - Exceptions
(continued)

10. No liability is assumed for tax increases occasioned by retroactive revaluation arising out of the change in land usage, on account of errors or omissions and changes in the valuation of the property by legally constituted authorities.

11. Deed Restrictions by Dixon Land Holdings, LLC an Ohio limited liability company, filed March 12, 2026, and recorded in OR Book 193, Page 1847, of the Jackson County Records. (as to all Parcels)

PARCEL 1:

12. Easement for Highway Purposes to the County of Jackson, filed for record January 5, 1937, in Deed Book 112, Page 11, of the Jackson County, Ohio Records.

13. Easement for Highway Purposes to the County of Jackson, filed for record January 5, 1937, in Deed Book 112, Page 12, of the Jackson County, Ohio Records.

14. Right-of-Way to The Southern Ohio Electric Co., filed for record March 29, 1937, in Deed Book 97, Page 259 of the Jackson County, Ohio Records.

15. Right-of-Way to The Southern Ohio Electric Company, filed for record March 29, 1937, in Deed Book 97, Page 264 of the Jackson County, Ohio Records.

16. Easement to Columbus and Southern Ohio Electric Company, filed for record December 30, 1938, in Deed Book 114, Page 141, of the Jackson County, Ohio Records.

17. Easement to Columbus and Southern Ohio Electric Company, filed for record October 31, 1940, in Deed Book 120, Page 20, of the Jackson County, Ohio Records.

18. Easement to Columbus and Southern Ohio Electric Company, filed for record October 31, 1940, in Deed Book 120, Page 22, of the Jackson County, Ohio Records.

19. Right-of-Way to the Board of Education of The Bloomfield Local School District of Jackson County, Ohio, filed for record May 24, 1947, in Deed Book 130, Page 630 of the Jackson County, Ohio Records.

20. Right-of-Way Agreement to Tennessee Gas Transmission Company, filed for record December 9, 1949, in Deed Volume 139, Page 319 of the Jackson County, Ohio Records.

21. Right-of-Way Agreement to Tennessee Gas Transmission Company, filed for record January 25, 1950, in Deed Book 139, Page 364 of the Jackson County, Ohio Records.

22. Easement to Columbus and Southern Ohio Electric Company, filed for record September 16, 1952, in Deed Volume 146, Page 224, of the Jackson County, Ohio Records.

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SCHEDULE B, PART II - Exceptions
(continued)

23. Easement to Columbus and Southern Ohio Electric Company, filed for record September 4, 1953, in Deed Volume 150, Page 178, of the Jackson County, Ohio Records and shown on the Survey.

24. Easement to Columbus and Southern Ohio Electric Company, filed for record October 17, 1953, in Deed Volume 150, Page 221, of the Jackson County, Ohio Records.

25. Easement to Columbus and Southern Ohio Electric Company, filed for record October 17, 1953, in Deed Book 150, Page 222, of the Jackson County, Ohio Records.

26. Easement to Columbus and Southern Ohio Electric Company, filed for record August 7, 1954, in Deed Book 150, Page 573, of the Jackson County, Ohio Records.

27. Right-of-Way Easement to Jackson County Water Company, Inc., filed for record June 22, 1978, in Deed Volume 231, Page 735 of the Jackson County, Ohio Records.

28. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record May 17, 1984, in Deed Book 252, Page 973, of the Jackson County, Ohio Records. This Exception contains Coal and Mineral Reservations.

29. Right of Way Easement to Jackson County Water Company, Inc., filed for record November 26, 1986, in Deed Book 262, Page 605, of the Jackson County, Ohio Records.

30. Easement to Columbus Southern Power Company, filed for record June 22, 1993, in Deed Book 290, Page 483, of the Jackson County, Ohio Records.

31. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record April 26, 2004, in OR Book 20, Page 2417, of the Jackson County, Ohio Records.

32. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record February 6, 2006, in OR Book 40, Page 1325, of the Jackson County, Ohio Records and shown on the Survey.

33. Easement to Western Land Services, Inc., filed for record July 9, 2007, in OR Book 53, Page 2773, of the Jackson County, Ohio Records.

34. Right-of-Way to Western Land Services, Inc., filed for record July 9, 2007, in OR Book 53, Page 2775 of the Jackson County, Ohio Records.

35. Right-of-Way to Western Land Services, Inc., filed for record July 30, 2007, in OR Book 54, Page 1345 of the Jackson County, Ohio Records.

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SCHEDULE B, PART II - Exceptions
(continued)

36. Right-of-Way Agreement to Western Land Services, Inc., filed for record May 27, 2008, in OR Book 61, Page 1410 of the Jackson County, Ohio Records.

37. Right-of-Way Agreement to Western Land Services, Inc., filed for record February 27, 2009, in OR Book 66, Page 2026 of the Jackson County, Ohio Records.

38. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record June 30, 2015, in OR Book 111, Page 191, of the Jackson County, Ohio Records and shown on the Survey.

39. Right-of-Way Easement to Jackson County Water Company, Inc., filed for record October 30, 2015, in OR Book 113, Page 1278 of the Jackson County, Ohio Records.

40. The following tax parcels have been RETIRED for 2025, payable in 2026, however there are delinquencies for the last half 2024 tax year and are due for the first half 2025 tax period.

PPN: A01-002-00-172-00
Taxes for the first half, in the amount of $8.64, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-002-00-174-00
Taxes for the first half, in the amount of $27.58, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-002-00-175-00
Taxes for the first half, in the amount of $60.41, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-002-00-176-00
Taxes for the first half, in the amount of $30.20, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

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SCHEDULE B, PART II - Exceptions
(continued)

PPN: A01-002-00-177-00
Taxes for the first half, in the amount of $84.62, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-002-00-178-00
Taxes for the first half, in the amount of $7.64, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-002-00-180-00
Taxes for the first half, in the amount of $8.99, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-002-00-182-01
Taxes for the first half, in the amount of $217.67, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-002-00-183-00
Taxes for the first half, in the amount of $55.91, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-087-00
Taxes for the first half, in the amount of $547.74, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-088-00
Taxes for the first half, in the amount of $84.26, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-089-00
Taxes for the first half, in the amount of $504.19, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-130-04
Taxes for the first half, in the amount of $13.33, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-136-00

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SCHEDULE B, PART II - Exceptions
(continued)

Taxes for the first half, in the amount of $319.94, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-140-02
Taxes for the first half, in the amount of $110.89, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-141-00
Taxes for the first half, in the amount of $0.18, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-230-01
Taxes for the first half, in the amount of $208.68, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-231-02
Taxes for the first half, in the amount of $77.69, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-232-01
Taxes for the first half, in the amount of $14.08, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-251-00
Taxes for the first half, in the amount of $88.00, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-252-01
Taxes for the first half, in the amount of $85.57, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-253-00
Taxes for the first half, in the amount of $295.55, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-253-01
Taxes for the first half, in the amount of $206.42, are a prior delinquency, plus penalty and interest if any, and are

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SCHEDULE B, PART II - Exceptions
(continued)

due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

PPN: A01-003-00-254-00
Taxes for the first half, in the amount of $82.94, are a prior delinquency, plus penalty and interest if any, and are due and payable.
Taxes for the second half, in the amount of $0.00, are RETIRED.

41. Taxes and assessments, if any, for 2026 and subsequent years are a lien, but not yet due and payable.
The County Treasurer's General Tax records for the year 2025 are as follows:

PPN: A01-003-00-088-01
Taxes for the first half, in the amount of $2,611.88 are a lien, UNPAID, PAST DUE AND DELINQUENT.
Taxes for the second half, in the amount of $2,611.88 are a lien, UNPAID, NOT YET DUE.

NOTE: NEW COMBINED TAX PARCEL.

Attention is directed to the fact that the premises described under Schedule A hereof is currently listed on the Auditor's Agricultural Land Tax List and is currently taxed at this agricultural use under the provisions of Section 5713.32 of the Ohio Revised code. If the land is removed from the Agricultural Land Tax List a charge may be levied against said land. Under Section 5713.34 of the Ohio Revised Code the charge shall constitute a lien upon the property as of the first day of January of the tax year in which the charge is levied. No liability is assumed under this policy for any lien arising under the provisions of Section 5713.34 of the Ohio Revised Code.

PARCEL 2:

42. Easement for Highway Purposes to The County of Jackson, filed for record June 15, 1942, in Deed Volume 118, Page 592, of the Jackson County, Ohio Records.

43. Right-of-Way Easement to Buckeye Rural Electric Cooperative, Inc., filed for record November 14, 1945, in Deed Volume 128, Page 117 of the Jackson County, Ohio Records.

44. Right of Way Agreement to the Tennessee Gas Transmission Company, filed for record December 5, 1949, in Deed Volume 139, Page 300 of the Jackson County, Ohio Records.

45. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record December 30, 1949, in Volume 137, Page 532, of the Jackson County, Ohio Records as to Tract 1.

46. Deed of Easement to Ohio Valley Electric Corporation, filed for record May 4, 1953, in Deed Volume 146, Page 634, of the Jackson County, Ohio Records.

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SCHEDULE B, PART II - Exceptions
(continued)

47. Deed of Easement to Ohio Valley Electric Corporation, filed for record May 29, 1953, in Deed Volume 146, Page 684, of the Jackson County, Ohio Records.

48. Deed of Easement to Ohio Valley Electric Corporation, filed for record May 29, 1953, in Deed Volume 146, Page 685, of the Jackson County, Ohio Records.

49. Easement to Columbus and Southern Ohio Electric Company, filed for record October 17, 1953, in Deed Volume 150, Page 222, of the Jackson County, Ohio Records.

50. Deed of Easement to Ohio Valley Electric Corporation, filed for record April 22, 1954, in Deed Volume 148, Page 353, of the Jackson County, Ohio Records and shown on the Survey.

51. Easement to Columbus and Southern Ohio Electric Company, filed for record September 24, 1955, in Deed Volume 152, Page 443, of the Jackson County, Ohio Records.

52. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record February 10, 1961, in Volume 170, Page 42, of the Jackson County, Ohio Records.

53. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record February 10, 1961, in Volume 170, Page 53, of the Jackson County, Ohio Records.

54. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record February 10, 1961, in Volume 170, Page 64, of the Jackson County, Ohio Records.

55. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record February 21, 1961, in Volume 170, Page 213, of the Jackson County, Ohio Records.

56. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record January 8, 1963, in Volume 175, Page 771, of the Jackson County, Ohio Records.

57. Coal and Limestone Lease by and between Barbara Massie, ETAL (lessors) and Cecil S. Arthur (lessee), filed for record June 14, 1965 in Lease Volume 30, Page 741 of the Jackson County, Ohio Records. NOTE: FOR FURTHER CONDITIONS, SEE RECORD. THIS COMPANY HAS MADE NO FURTHER EXAMINATION UNDER THE ABOVE INSTRUMENT.

58. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record May 17, 1984, in Deed Book 252, Page 973, of the Jackson County, Ohio Records.

59. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record January 9, 1991, in Volume 279, Page 148, of the Jackson County, Ohio Records.

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SCHEDULE B, PART II - Exceptions
(continued)

60. Right-of-Way Easement to Jackson County Water Company, Inc., filed for record May 19, 1992, in Deed Volume 284, Page 646 of the Jackson County, Ohio Records.

61. Right-of-Way Easement to Jackson County Water Company, Inc., filed for record October 9, 1992, in Deed Volume 286, Page 519 of the Jackson County, Ohio Records.

62. Right-of-Way Easement to Buckeye Rural Electric Cooperative, Inc., filed for record December 20, 1996, in Volume 307, Page 859 of the Jackson County, Ohio Records.

63. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record June 17, 1999, in Volume 320, Page 392, of the Jackson County, Ohio Records.

64. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record August 3, 1999, in OR Book 321, Page 10, of the Jackson County, Ohio Records.

65. Right-of-Way Easement to Buckeye Rural Electric Cooperative, Inc., filed for record September 14, 1999, in OR Book 321, Page 747 of the Jackson County, Ohio Records.

66. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record April 26, 2004, in OR Book 20, Page 2417, of the Jackson County, Ohio Records.

67. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record July 19, 2004, in OR Book 23, Page 1590, of the Jackson County, Ohio Records.

68. Right of Way Easement by and between Daniel R. Rapier and Naomi L. Rapier (grantors) and Jeffrey S. Watson, Trustee of the Jeffrey S. Watson Revocable Trust dated June 17, 1998 (grantee), filed for record February 6, 2006, in OR Book 40, Page 1371, of the Jackson County, Ohio Records.

69. Right-of-Way Easement by and between Daniel R. Rapier and Naomi L. Rapier (grantors) and Jeffrey S. Watson, Trustee of the Jeffrey S. Watson Revocable Trust dated June 17, 1998 (grantee), filed for record February 06, 2006, in OR Book 40, Page 1374 of the Jackson County, Ohio Records.

70. Right-of-Way Easement to Buckeye Rural Electric Cooperative, Inc., filed for record January 12, 2007, in OR Book 49, Page 1103 of the Jackson County, Ohio Records.

71. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record February 12, 2007, in OR Book 50, Page 378, of the Jackson County, Ohio Records.

72. Right-of-Way Agreement to Western Land Services, Inc., filed for record June 12, 2007, in OR Book 53, Page 713 of the Jackson County, Ohio Records.

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SCHEDULE B, PART II - Exceptions
(continued)

73. Right-of-Way Agreement to Western Land Services, Inc., filed for record July 30, 2007, in OR Book 54, Page 1345 of the Jackson County, Ohio Records.

74. Right-of-Way Agreement to Western Land Services, Inc., filed for record September 29, 2008, in OR Book 63, Page 2904 of the Jackson County, Ohio Records.

75. Right-of-Way Agreement to Western Land Services, Inc., filed for record February 27, 2009, in OR Book 66, Page 2026 of the Jackson County, Ohio Records.

76. Right-of-Way Easement to Jackson County Water Company, Inc., filed for record October 21, 2011, in OR Book 84, Page 2333 of the Jackson County, Ohio Records.

77. Right-of-Way Easement to Jackson County Water Company, Inc., filed for record October 30, 2015, in OR Book 113, Page 1278 of the Jackson County, Ohio Records.

78. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record January 9, 2017, in OR Book 122, Page 571, of the Jackson County, Ohio Records.

79. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record February 28, 2019, in OR Book 137, Page 2450, of the Jackson County, Ohio Records.

80. Taxes and assessments for the second half of 2025 and subsequent years are a lien, but not yet due and payable. The County Treasurer's General Tax records for the year 2025 are as follows:

PPN: A01-001-00-097-01
Taxes for the first half, in the amount of $3,368.20 are a lien, UNPAID, PAST DUE AND DELINQUENT.
Taxes for the second half, in the amount of $3,368.20 are a lien, UNPAID, NOT YET DUE.

Attention is directed to the fact that the premises described under Schedule A hereof is currently listed on the Auditor's Agricultural Land Tax List and is currently taxed at this agricultural use under the provisions of Section 5713.32 of the Ohio Revised code. If the land is removed from the Agricultural Land Tax List a charge may be levied against said land. Under Section 5713.34 of the Ohio Revised Code the charge shall constitute a lien upon the property as of the first day of January of the tax year in which the charge is levied. No liability is assumed under this policy for any lien arising under the provisions of Section 5713.34 of the Ohio Revised Code.

PARCEL 3:

81. Easement to Buckeye Rural Electric Cooperative, Inc., filed for record November 14, 1945, in Volume 128, Page 107, of the Jackson County, Ohio Records.

82. Easement to Columbus and Southern Ohio Electric Company, filed for record September 30, 1952, in Volume 146, Page 243, of the Jackson County, Ohio Records.

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SCHEDULE B, PART II - Exceptions
(continued)

83. Easement to Columbus and Southern Ohio Electric Company, filed for record September 30, 1952, in Deed Book 146, Page 252, of the Jackson County, Ohio Records.

84. Easement to Columbus and Southern Ohio Electric Company, filed for record November 13, 1952, in Deed Book 146, Page 320, of the Jackson County, Ohio Records.

85. Right-of-Way Easement to Buckeye Rural Electric Cooperative, Inc., filed for record May 29, 1985, in Volume 256, Page 685 of the Jackson County, Ohio Records.

86. Right of Way Easement to Buckeye Rural Electric Cooperative, Inc, filed for record May 29, 1985, in Volume 256, Page 686, of the Jackson County, Ohio Records.

87. Easement to Jackson County Water Company, Inc., filed for record December 16, 1986, in Volume 262, Page 891, of the Jackson County, Ohio Records.

88. Easement to Jackson County Water Company, Inc., filed for record January 20, 1987, in Volume 263, Page 221, of the Jackson County, Ohio Records.

89. Easement to Buckeye Rural Electric Cooperative, Inc., filed for record March 10, 1987, in Volume 263, Page 644, of the Jackson County, Ohio Records.

90. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record July 19, 2004, in OR Volume 23, Page 1590, of the Jackson County, Ohio Records.

91. Right-of-Way to Buckeye Rural Electric Cooperative, Inc., filed for record July 21, 2006, in OR Volume 44, Page 2541 of the Jackson County, Ohio Records.

92. Right of Way Easement to Jackson County Water Company, Inc., filed for record August 25, 2006, in OR Volume 45, Page 2296, of the Jackson County, Ohio Records.

93. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record October 30, 2006, in OR Volume 47, Page 1219, of the Jackson County, Ohio Records.

94. Right of Way Easement to Buckeye Rural Electric Cooperative, Inc., filed for record January 12, 2007, in OR Volume 49, Page 1103, of the Jackson County, Ohio Records.

95. Right of Way Agreement to Western Land Services, Inc., filed for record June 12, 2007, in OR Volume 53, Page 713, of the Jackson County, Ohio Records.

96. Reservations, restrictions, covenants, limitations, easements, and/or conditions, as established in instrument, filed for record June 30, 2015, in OR Volume 111, Page 191, of the Jackson County, Ohio Records.

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SCHEDULE B, PART II - Exceptions
(continued)

97. Taxes and assessments for the second half of 2025 and subsequent years are a lien, but not yet due and payable. The County Treasurer's General Tax records for the year 2025 are as follows:

PPN: A01-003-00-230-00
Taxes for the first half, in the amount of $965.70 are a lien, UNPAID, PAST DUE AND DELINQUENT.
Taxes for the second half, in the amount of $965.70 are a lien, UNPAID, NOT YET DUE.

Attention is directed to the fact that the premises described under Schedule A hereof is currently listed on the Auditor's Agricultural Land Tax List and is currently taxed at this agricultural use under the provisions of Section 5713.32 of the Ohio Revised code. If the land is removed from the Agricultural Land Tax List a charge may be levied against said land. Under Section 5713.34 of the Ohio Revised Code the charge shall constitute a lien upon the property as of the first day of January of the tax year in which the charge is levied. No liability is assumed under this policy for any lien arising under the provisions of Section 5713.34 of the Ohio Revised Code.

END OF SCHEDULE B, PART II

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COMMITMENT CONDITIONS

1. DEFINITIONS

a. "Discriminatory Covenant": Any covenant, condition, restriction, or limitation that is unenforceable under applicable law because it illegally discriminates against a class of individuals based on personal characteristics such as race, color, religion, sex, sexual orientation, gender identity, familial status, disability, national origin, or other legally protected class.

b. "Knowledge" or "Known": Actual knowledge or actual notice, but not constructive notice imparted by the Public Records.

c. "Land": The land described in Item 5 of Schedule A and improvements located on that land that by State law constitute real property. The term "Land" does not include any property beyond that described in Schedule A, nor any right, title, interest, estate, or easement in any abutting street, road, avenue, alley, lane, right-of-way, body of water, or waterway, but does not modify or limit the extent that a right of access to and from the Land is to be insured by the Policy.

d. "Mortgage": A mortgage, deed of trust, trust deed, security deed, or other real property security instrument, including one evidenced by electronic means authorized by law.

e. "Policy": Each contract of title insurance, in a form adopted by the American Land Title Association, issued or to be issued by the Company pursuant to this Commitment.

f. "Proposed Amount of Insurance": Each dollar amount specified in Schedule A as the Proposed Amount of Insurance of each Policy to be issued pursuant to this Commitment.

g. "Proposed Insured": Each person identified in Schedule A as the Proposed Insured of each Policy to be issued pursuant to this Commitment.

h. "Public Records": The recording or filing system established under State statutes in effect at the Commitment Date under which a document must be recorded or filed to impart constructive notice of matters relating to the Title to a purchaser for value without Knowledge. The term "Public Records" does not include any other recording or filing system, including any pertaining to environmental remediation or protection, planning, permitting, zoning, licensing, building, health, public safety, or national security matters.

i. "State": The state or commonwealth of the United States within whose exterior boundaries the Land is located. The term "State" also includes the District of Columbia, the Commonwealth of Puerto Rico, the U.S. Virgin Islands, and Guam.

j. "Title": The estate or interest in the Land identified in Item 3 of Schedule A.

2. If all of the Schedule B, Part I-Requirements have not been met within the time period specified in the Commitment to Issue Policy, this Commitment terminates and the Company's liability and obligation end.

3. The Company's liability and obligation is limited by and this Commitment is not valid without:

a. the Notice;

b. the Commitment to Issue Policy;

c. the Commitment Conditions;

d. Schedule A;

e. Schedule B, Part I-Requirements; and

f. Schedule B, Part II-Exceptions; and

g. a counter-signature by the Company or its issuing agent that may be in electronic form.

4. COMPANY'S RIGHT TO AMEND

The Company may amend this Commitment at any time. If the Company amends this Commitment to add a defect, lien, encumbrance, adverse claim, or other matter recorded in the Public Records prior to the Commitment Date, any liability of the Company is limited by Commitment Condition 5. The Company is not liable for any other amendment to this Commitment.

5. LIMITATIONS OF LIABILITY

a. The Company's liability under Commitment Condition 4 is limited to the Proposed Insured's actual expense incurred in the interval between the Company's delivery to the Proposed Insured of the Commitment and the delivery of the amended Commitment, resulting from the Proposed Insured's good faith reliance to:

i. comply with the Schedule B, Part I-Requirements;

ii. eliminate, with the Company's written consent, any Schedule B, Part II-Exceptions; or

iii. acquire the Title or create the Mortgage covered by this Commitment.

b. The Company is not liable under Commitment Condition 5.a. if the Proposed Insured requested the amendment or had Knowledge of the matter and did not notify the Company about it in writing.

c. The Company is only liable under Commitment Condition 4 if the Proposed Insured would not have incurred the expense had the Commitment included the added matter when the Commitment was first delivered to the Proposed Insured.

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(continued)

d. The Company's liability does not exceed the lesser of the Proposed Insured's actual expense incurred in good faith and described in Commitment Condition 5.a. or the Proposed Amount of Insurance.

e. The Company is not liable for the content of the Transaction Identification Data, if any.

f. The Company is not obligated to issue the Policy referred to in this Commitment unless all of the Schedule B, Part I-Requirements have been met to the satisfaction of the Company.

g. The Company's liability is further limited by the terms and provisions of the Policy to be issued to the Proposed Insured.

6. LIABILITY OF THE COMPANY MUST BE BASED ON THIS COMMITMENT; CHOICE OF LAW AND CHOICE OF FORUM

a. Only a Proposed Insured identified in Schedule A, and no other person, may make a claim under this Commitment.

b. Any claim must be based in contract under the State law of the State where the Land is located and is restricted to the terms and provisions of this Commitment. Any litigation or other proceeding brought by the Proposed Insured against the Company must be filed only in a State or federal court having jurisdiction.

c. This Commitment, as last revised, is the exclusive and entire agreement between the parties with respect to the subject matter of this Commitment and supersedes all prior commitment negotiations, representations, and proposals of any kind, whether written or oral, express or implied, relating to the subject matter of this Commitment.

d. The deletion or modification of any Schedule B, Part II-Exception does not constitute an agreement or obligation to provide coverage beyond the terms and provisions of this Commitment or the Policy.

e. Any amendment or endorsement to this Commitment must be in writing and authenticated by a person authorized by the Company.

f. When the Policy is issued, all liability and obligation under this Commitment will end and the Company's only liability will be under the Policy.

7. IF THIS COMMITMENT IS ISSUED BY AN ISSUING AGENT

The issuing agent is the Company's agent only for the limited purpose of issuing title insurance commitments and policies. The issuing agent is not the Company's agent for closing, settlement, escrow, or any other purpose.

8. PRO-FORMA POLICY

The Company may provide, at the request of a Proposed Insured, a pro-forma policy illustrating the coverage that the Company may provide. A pro-forma policy neither reflects the status of Title at the time that the pro-forma policy is delivered to a Proposed Insured, nor is it a commitment to insure.

9. CLAIMS PROCEDURES

This Commitment incorporates by reference all Conditions for making a claim in the Policy to be issued to the Proposed Insured. Commitment Condition 9 does not modify the limitations of liability in Commitment Conditions 5 and 6.

10. CLASS ACTION

ALL CLAIMS AND DISPUTES ARISING OUT OF OR RELATING TO THIS COMMITMENT, INCLUDING ANY SERVICE OR OTHER MATTER IN CONNECTION WITH ISSUING THIS COMMITMENT, ANY BREACH OF A COMMITMENT PROVISION, OR ANY OTHER CLAIM OR DISPUTE ARISING OUT OF OR RELATING TO THE TRANSACTION GIVING RISE TO THIS COMMITMENT, MUST BE BROUGHT IN AN INDIVIDUAL CAPACITY. NO PARTY MAY SERVE AS PLAINTIFF, CLASS MEMBER, OR PARTICIPANT IN ANY CLASS OR REPRESENTATIVE PROCEEDING. ANY POLICY ISSUED PURSUANT TO THIS COMMITMENT WILL CONTAIN A CLASS ACTION CONDITION.

11. ARBITRATION

The Policy contains an arbitration clause. All arbitrable matters when the Proposed Amount of Insurance is Two Million And No/100 Dollars ($2,000,000.00) or less may be arbitrated at the election of either the Company or the Proposed Insured as the exclusive remedy of the parties. A Proposed Insured may review a copy of the arbitration rules at http://www.alta.org/arbitration.

END OF CONDITIONS

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